INTERNATIONAL MARITIME ORGANIZATION

STATUS OF IMO TREATIES

Volume II

Comprehensive information on the status of multilateral Conventions and instruments in respect of which the International Maritime Organization or its Secretary-General performs depositary or other functions






30 September 2026
14 October 2026

Information concerning the status of SOLAS and MARPOL is contained in Volume I.

INTRODUCTION

The International Maritime Organization (IMO) or its Secretary-General acts as depositary for a number of multilateral international instruments. In discharging these depositary responsibilities, the Secretary-General notifies the Governments concerned of signatures or the deposit of formal instruments in respect of the various international acts, of the entry into force of these acts, and of the receipt of other notifications and declarations in relation to them.

This document contains a compilation of the above data on the instruments in relation to which IMO discharges the above-mentioned responsibilities. Information is given of the status of each instrument and the relation of various Governments to it. In the case of each treaty instrument the document reproduces those final clauses which have a direct bearing on the information furnished.

In respect of a number of instruments, actions taken in the name of China prior to 23 May 1972 have not been recorded in this document, in view of the decision taken by the Council in its resolution C.53(XXVIII) of 23 May 1972.

This document is for information only and is not intended to replace in any way the official communications which the Secretary-General is required to make under the provisions of the conventions or their related international acts.

Information relating to the London Convention (LC 1972) is also herewith included. IMO performs secretariat duties in relation to the Convention and depositary functions in respect of amendments to the Convention. The depositary functions of the parent Convention are assigned to the Governments of Mexico, the Russian Federation, the United Kingdom of Great Britain and Northern Ireland and the United States of America. Accordingly, information reproduced here is based on information received from the depositary Governments to which requests for authoritative information of depositary character should be addressed.

This document also contains information relating to the International COSPAS-SARSAT Programme Agreement, for which IMO is joint depositary with ICAO. Accordingly, information reproduced here is based on information received from the second depositary.

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CONVENTION ON FACILITATION OF INTERNATIONAL MARITIME TRAFFIC, 1965, AS AMENDED (FAL 1965)

Done at London, 9 April 1965

Entry into force: 5 March 1967

Signature, acceptance and accession

Article X

(1) The present Convention shall remain open for signature for six months from this day's date and shall hereafter remain open for accession.

(2) The Governments of States Members of the United Nations, or of any of the specialized agencies, or the International Atomic Energy Agency or Parties to the Statute of the International Court of Justice may become Parties to the present Convention by:

(a) signature without reservation as to acceptance;

(b) signature with reservation as to acceptance followed by acceptance; or

(c) accession.

Acceptance or accession shall be effected by the deposit of an instrument with the Secretary-General.

Entry into force

Article XI

The present Convention shall enter into force sixty days after the date upon which the Governments of at least ten States have either signed it without reservation as to acceptance or have deposited instruments of acceptance or accession. It shall enter into force for a Government which subsequently accepts it or accedes to it sixty days after the deposit of the instrument of acceptance or accession.

Amendment of the Convention

Article IX

The Secretary-General shall convene a conference of the Contracting Governments for revision or amendment of the present Convention at the request of not less than one-third of the Contracting Governments. Any revision or amendments shall be adopted by a two-thirds majority vote of the Conference and then certified and communicated by the Secretary-General to all Contracting Governments for their acceptance. One year after the acceptance of the revision or amendments by two-thirds for the Contracting Governments, each revision or amendment shall enter into force for all Contracting Governments except those which, before its entry into force, make a declaration that they do not accept the revision or amendment. The Conference may by a two-thirds majority vote determine at the time of its adoption that a revision or amendment is of such a nature that any Contracting Government which has made such a declaration and which does not accept the revision or amendment within a period of one year after the revision or amendment enters into force shall, upon the expiration of this period, cease to be a party to the Convention.

Amendment of the Annex

Article VII

(1) The Annex to the present Convention may be amended by the Contracting Governments, either at the proposal of one of them or by a Conference convened for that purpose.

(2) Any Contracting Government may propose an amendment to the Annex by forwarding a draft amendment to the Secretary-General of the Organization (hereinafter called the "Secretary-General"):

(a) Any amendment proposed in accordance with this paragraph shall be considered by the Facilitation Committee of the Organization, provided that it has been circulated at least three months prior to the meeting of this Committee. If adopted by two-thirds of the Contracting Governments present and voting in the Committee, the amendment shall be communicated to all Contracting Governments by the Secretary-General.

(b) Any amendment to the Annex under this paragraph shall enter into force fifteen months after communication of the proposal to all Contracting Governments by the Secretary-General unless within twelve months after the communication at least one-third of Contracting Governments have notified the Secretary-General in writing that they do not accept the proposal.

(c) The Secretary-General shall inform all Contracting Governments of any notification received under subparagraph (b) and of the date of entry into force.

(d) Contracting Governments which do not accept an amendment are not bound by that amendment but shall follow the procedure laid down in article VIII of the present Convention.

(3) A conference of the Contracting Governments to consider amendments to the Annex shall be convened by the Secretary-General upon the request of at least one-third of these Governments. Every amendment adopted by such conference by a two-thirds majority of the Contracting Governments present and voting shall enter into force six months after the date on which the Secretary-General notifies the Contracting Governments of the amendment adopted.

(4) The Secretary-General shall notify promptly all signatory Governments of the adoption and entry into force of any amendment under this article.

I. Signatories

II. Contracting Governments

III. Declarations, Reservations and Statements

IV. Amendments

A. To the Convention

B. To the Annex

I. Signatories

Algeria	Sous réserve de ratification
Argentina	Subject to acceptance
Belgium	Sous réserve de ratification 9 Septembre 1965
Brazil	Subject to acceptance
Canada	Sous réserve de ratification
Côte d'Ivoire	Sous réserve d'approbation
Denmark	Subject to acceptance
Dominican Republic	*[Translation]* Subject to acceptance
Ecuador	Ad referendum
Egypt	Subject to acceptance and reserve to be made by the Government of UAR
Finland	Subject to acceptance
France	Sous réserve d'approbation

Germany, Federal Republic of	Subject to acceptance
Ghana	Subject to acceptance
Greece	Subject to acceptance
Hungary	Subject to acceptance
Ireland	Subject to acceptance
Israel	With reservation as to acceptance
Italy	With reservation as to the acceptance
Japan	With reservations as to acceptance 30.9.1965
Lebanon	Ad referendum
Madagascar	Sous réserve d'approbation
Malaysia	Subject to acceptance
Monaco	
Netherlands	With reservation as to acceptance 6th October 1965
Nicaragua	*[Translation]* Subject to acceptance
Norway	With reservation as to acceptance October 9th, 1965
Philippines	With reservation as to acceptance
Poland	Subject to acceptance by my government
Republic of Korea	Subject to acceptance
Senegal	Sous réserve d'approbation
Spain	Subject to acceptance 9 October 1965
Sweden	Subject to acceptance
Switzerland	Subject to acceptance 1.9.65
Trinidad and Tobago	Subject to acceptance
Ukrainian SSR	*[Translation]* With reservation as to subsequent acceptance
USSR	*[Translation]* With reservation as to subsequent acceptance
United Kingdom	With reservation as to acceptance
United States	Subject to acceptance
Yugoslavia	Ad referendum

II. Contracting Governments

	Date of signature or deposit of instrument	Date of entry into force or succession
Albania (accession)	19 December 2005	17 February 2006
Algeria (acceptance)	28 November 1983	27 January 1984
Antigua and Barbuda (accession)	24 November 2015	23 January 2016
Argentina (acceptance)	29 January 1980	29 March 1980
Australia (accession)	28 April 1986	27 June 1986
Austria (accession)	20 June 1975	19 August 1975
Azerbaijan (accession)	12 June 2006	11 August 2006
Bahamas (accession)	22 July 1976	20 September 1976
Bahrain (accession)	24 July 2024	22 September 2024
Bangladesh (accession)	21 September 2000	20 November 2000
Barbados (accession)	30 September 1982	29 November 1982
Belarus (accession)	5 December 2016	3 February 2017
Belgium (acceptance)	4 January 1967	5 March 1967
Belize (accession)	9 October 2023	8 December 2023
Benin (accession)	2 March 1992	1 May 1992
Brazil (acceptance)	22 August 1977	21 October 1977
Brunei Darussalam (accession)	4 June 2025	3 August 2025
Bulgaria (accession)	22 April 1999	21 June 1999
Burundi (accession)	29 September 1998	28 November 1998
Cameroon (accession)	10 April 1997	9 June 1997
Canada (acceptance)	18 July 1967	16 September 1967
Cabo Verde (accession)	28 April 1977	27 June 1977
Chile (accession)	14 February 1975	15 April 1975
China (accession)[5]	16 January 1995	17 March 1995
Colombia (accession)	3 June 1991	2 August 1991
Congo (accession)	7 August 2002	6 October 2002
Costa Rica (accession)[1]	12 February 2019	13 April 2019
Côte d'Ivoire (acceptance)	16 February 1967	5 March 1967
Croatia (succession)	-	8 October 1991
Cuba (accession)[1]	27 November 1984	26 January 1985
Cyprus (accession)	9 March 2004	8 May 2004
Czechia (succession)[1]	-	1 January 1993
Democratic People's Republic of Korea (accession)	24 April 1992	23 June 1992
Denmark (acceptance)	9 January 1968	9 March 1968
Dominica (accession)	31 August 2001	30 October 2001
Dominican Republic (acceptance)	11 July 1966	5 March 1967
Ecuador (ratification)	17 May 1988	16 July 1988
Egypt (acceptance)[1]	19 February 1987	20 April 1987
El Salvador (accession)	21 December 2006	19 February 2007
Equatorial Guinea (accession)	3 December 2025	1 February 2026
Estonia (accession)	22 March 2002	21 May 2002
Fiji (accession)	29 November 1972	28 January 1973
Finland (acceptance)	20 March 1967	19 May 1967
France (acceptance)	29 November 1967	28 January 1968
Gabon (accession)	12 April 2005	11 June 2005
Gambia (accession)	1 November 1991	31 December 1991
Georgia (accession)	25 August 1995	24 October 1995
Germany (acceptance)[1]	26 July 1967	24 September 1967
Ghana (acceptance)	5 November 1965	5 March 1967
Greece (acceptance)	8 June 1972	7 August 1972
Guatemala (accession)	7 March 2023	6 May 2023
Guinea (accession)	19 January 1981	20 March 1981
Guinea-Bissau (accession)	12 May 2022	11 July 2022
Guyana (accession)	10 December 1997	8 February 1998
Honduras (accession)	24 January 2006	25 March 2006
Hungary (acceptance)[1]	15 December 1976	13 February 1977
Iceland (accession)	24 January 1967	5 March 1967
India (accession)	25 May 1976	24 July 1976
Indonesia (accession)	4 November 2002	3 January 2003
Iran (Islamic Republic of) (accession)	27 March 1995	26 May 1995
Iraq (accession)[1]	15 November 1976	14 January 1977
Ireland (acceptance)	18 June 1971	17 August 1971

Israel (acceptance)	13 October 1967	12 December 1967
Italy (acceptance)	25 September 1972	24 November 1972
Japan (acceptance)	2 September 2005	1 November 2005
Jordan (accession)	27 March 1997	26 May 1997
Kenya (accession)	10 November 2006	9 January 2007
Latvia (accession)	20 January 1998	21 March 1998
Lebanon (ratification)	17 July 2001	15 September 2001
Liberia (accession)	14 February 1978	15 April 1978
Libya (accession)	28 April 2005	26 June 2005
Lithuania (accession)	25 January 2000	25 March 2000
Luxembourg (accession)	14 February 1991	15 April 1991
Madagascar (acceptance)	8 July 1970	6 September 1970
Malaysia (accession)	10 April 2019	9 June 2019
Mali (accession)	12 October 2004	11 December 2004
Malta (accession)	24 September 2002	23 November 2002
Marshall Islands (accession)	29 November 1994	28 January 1995
Mauritius (accession)	18 June 1990	17 August 1990
Mexico (accession)	31 May 1983	30 July 1983
Moldova (accession)	13 April 2023	12 June 2023
Monaco (signature)	9 April 1965	5 March 1967
Montenegro (succession)[8, 9]	-	3 June 2006
Netherlands (acceptance)[2]	21 September 1967	20 November 1967
New Zealand (accession)[6]	27 July 1973	25 September 1973
Nicaragua (accession)	4 July 2007	2 September 2007
Nigeria (accession)	24 January 1967	5 March 1967
Norway (acceptance)	8 September 1966	5 March 1967
Palau (accession)	29 September 2011	28 November 2011
Panama (accession)	1 September 2008	31 October 2008
Peru (accession)	16 July 1982	14 September 1982
Poland (acceptance)	25 July 1969	23 September 1969
Portugal (accession)	6 August 1990	5 October 1990
Republic of Korea (acceptance)	6 March 2001	5 May 2001
Romania (accession)	25 April 2001	24 June 2001
Russian Federation (acceptance)[1,7]	25 October 1966	5 March 1967
Saint Kitts and Nevis (accession)	7 October 2004	6 December 2004
Saint Lucia (accession)	20 May 2004	19 July 2004
Saint Vincent and the Grenadines (accession)	2 July 2020	31 August 2020
Samoa (accession)	18 May 2004	17 July 2004
Saudi Arabia (accession)	9 May 2018	8 July 2018
Senegal (acceptance)	17 October 1980	16 December 1980
Serbia (succession)[8, 9]	-	3 June 2006
Seychelles (accession)	13 December 1989	11 February 1990
Sierra Leone (Accession)	10 March 2008	9 May 2008
Singapore (accession)	3 April 1967	2 June 1967
Slovakia (succession)	-	1 January 1993
Slovenia (succession)	-	25 June 1991
Somalia (accession)	26 June 2026	25 August 2026
Spain (acceptance)	24 August 1973	23 October 1973
Sri Lanka (accession)	6 March 1998	5 May 1998
Suriname (succession)	-	25 November 1975
Sweden (acceptance)	28 July 1967	26 September 1967
Switzerland (acceptance)	23 April 1968	23 June 1968
Syrian Arab Republic (accession)[1]	6 February 1975	7 April 1975
Thailand (accession)	28 November 1991	27 January 1992
Togo (accession)	8 July 2021	6 September 2021
Tonga (accession)	18 September 2003	17 November 2003
Trinidad and Tobago (acceptance)	16 March 1967	15 May 1967
Tunisia (accession)	27 January 1969	28 March 1969
Türkiye (accession)	13 May 2016	12 July 2016
Uganda (accession)	3 April 2019	2 June 2019
Ukraine (acceptance)	25 October 1993	24 December 1993
United Arab Emirates (accession)	10 April 2018	9 June 2018
United Kingdom (acceptance)[3]	24 February 1966	5 March 1967
United Republic of Tanzania	23 July 2008	21 September 2008
United States (acceptance)[4]	17 March 1967	16 May 1967
Uruguay (accession)[1]	2 December 1992	31 January 1993
Vanuatu (accession)	13 January 1989	14 March 1989

Venezuela (Bolivarian Republic of) (accession)	10 May 2002	9 July 2002
Vietnam (accession)	23 January 2006	24 March 2006
Yemen (accession)	6 March 1979	5 May 1979
Zambia (accession)	14 December 1965	5 March 1967

Number of Contracting States: 133

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[1] For the text of a declaration, reservation or statement see section III.

[2] The Convention has been extended by Netherlands to:

Suriname*, Netherlands Antilles♣	21 September 1967	20 November 1967
Aruba (with effect from 1 January 1986)	-	-

♣ The Netherlands Antilles has ceased to exist as an autonomous country within the Kingdom of the Netherlands with effect from 10 October 2010. Since that date, the Kingdom of the Netherlands consists of four autonomous countries: The Netherlands (European part and Caribbean part), Aruba, Curaçao and Sint Maarten. For more details see footnote 4, in section II of SOLAS 1974.. The Convention applies as follows:

		Effective from
The Netherlands (European part)	)	20 November 1967
Caribbean part of the Netherlands	)	10 October 2010
Aruba	)	1 January 1986
Curaçao	)	10 October 2010
Sint Maarten	)	10 October 2010

[3] The Convention has been extended by the United Kingdom to:

Hong Kong***	24 September 1970	24 September 1970

[4] The Convention has been extended by the United States to:

Puerto Rico, Guam, Panama Canal Zone, Virgin Islands, American Samoa, Trust Territory of the Pacific Islands	9 September 1975	9 September 1975
Midway Islands, Wake Island, Johnston Island	18 March 1976	18 March 1976

With reference to the extension by the United States to the Panama Canal Zone and the Trust Territory of the Pacific Islands, the United States informed the Depositary as follows:

The Panama Canal Zone reverted to Panama on 1 October 1978. On that date the United States Panama Canal Zone ended.

The Trust Territory of the Pacific Islands was terminated by the UN Security Council, acting on the recommendation of the Trusteeship Council. The Trust Agreement, with regard to the three territories that entered into Compacts of Free Association with the United States was terminated, as follows:

The Marshall Islands on 21 October 1986, and by United Nations Security Council resolution 683(1990) of 22 December 1990; Micronesia on 3 November 1986, and by the United Nations Security Council resolution 683(1990), of 22 December 1990; Palau in 1981, and by United Nations Security Council resolution 156(1994), of 25 November 1994.

The fourth territory, the Commonwealth of the Northern Mariana Islands came under full United States sovereignty on 4 November 1986.

* Has since become the independent State of Suriname and a Contracting State to the Convention.

** The Netherlands Antilles has ceased to exist as an autonomous country within the Kingdom of the Netherlands with effect from 10 October 2010. For full details see footnotes on section II of SOLAS 1974.

*** Ceased to apply to Hong Kong with effect from 1 July 1997.

[5] Applies to the Hong Kong Special Administrative Region with effect from 1 July 1997 and to the Macao Special Administrative Region with effect from 24 June 2005.

[6] Accession by New Zealand was declared not to extend to the Cook Islands, Niue and the Tokelau Islands.

[7] As from 26 December 1991 the membership of the USSR in the Convention is continued by the Russian Federation.

[8] As from 4 February 2003, the name of the State of the Federal Republic of Yugoslavia was changed to Serbia and Montenegro. The date of succession by Serbia and Montenegro to the Convention is the date on which the Federal

Republic of Yugoslavia assumed responsibility for its international relations.

[9] Following the dissolution of the State Union of Serbia and Montenegro on 3 June 2006, all Treaty actions undertaken by Serbia and Montenegro continue to be in force with respect to Republic of Serbia. Montenegro has informed that it wished to succeed to this treaty with effect from the same date, ie. 3 June 2006.

III. Declarations, Reservations, Statements and Notifications

COSTA RICA

The instrument of accession was accompanied by the following text:

"ARTICLE 2 – The Government of the Republic of Costa Rica makes the following reservations to this Convention and its amendments:

1 Standard 2.3, in which it is established that the Cargo Declaration shall be the basic document on arrival and departure providing data required by public authorities relating to the cargo, shall not apply insofar as only the ship's manifest, contemplated in Standard 2.3.4, shall be accepted.

2 In Recommended Practice 2.6.4, which establishes that where a ship, serving in a scheduled programme, calls again at the same port at least once within 14 days and where minor changes in the crew have taken place, public authorities should not normally require a new, full Crew List to be submitted but should accept the existing Crew List with the changes indicated, shall not apply insofar as each time a ship enters a Costa Rican port, coming from a foreign port, it must submit the Crew List.

3 Recommended Practice 2.7.2 – in which it is established that public authorities should not require embarkation or disembarkation cards in addition to Passenger Lists in respect of passengers whose names appear on those Lists; however, where public authorities have special problems constituting a grave danger to public health, a person on an international voyage may on arrival be required to give a destination address in writing – shall not apply given that those passengers disembarking or embarking in Costa Rican ports must complete the respective embarkation/disembarkation document. Regarding cruise ships, those passengers leaving the country in the same ship and by the same port of entry, to the extent possible, shall not be required to submit the said forms.

4 Recommended Practice 2.7.3 shall not apply if in the Passenger List the passport number is not included.

5 In Recommended Practice 3.6, which establishes the information that the embarkation/disembarkation card should contain, the following information should be added:

- type of travel document;
- reason for travel;
- type of transport;
- country of residence; and
- country of destination.

6 Standard 3.10.2 shall not apply insofar as the Costa Rican immigration authorities only accept submission of the passport and the crew member must have a visa for entry into Costa Rican territory in accordance with their nationality.

7 Standard 3.15 shall not be used in Costa Rica, on account of the fact that domestic legislation establishes that if admission of a foreign national to Costa Rican territory is denied, the transport operator by which the said person arrived in the country is obliged to transport him or her at its own cost and risk to the country of provenance or origin or to another country that will accept him or her.

8 Standard 3.31 shall not apply in Costa Rica, given that the legislation does not allow duty-free goods to be sold on board cruise ships during the ship's stay in port.

9 Recommended Practice 3.38 shall not apply, given that the immigration authorities shall require passengers in transit to complete a disembarkation/embarkation card.

10 Standard 3.47 shall not apply in Costa Rica, given that, for the purpose of shore leave, a crew member must obtain a shore leave pass from the immigration authorities.

11 Standard 5.19 shall not apply, given that specific regulations exist to deal with cases where any cargo listed on the Cargo Declaration is not discharged at the port of intended destination, including Act No.7557, General Customs Act, of 20 October 1995.

12 Recommended Practice 6.11 shall not apply, given that animals, plants and animal and plant products prohibited by Costa Rican laws and technical regulations may not be imported even when accompanied by a quarantine certificate. In the case of export, special additional requirements, needs or declarations of quarantine importance for the buyer country must be known in advance.

13 The Republic of Costa Rica makes a reservation to articles VII, VIII and IX of the Convention on Facilitation of International Maritime Traffic, 1965, as amended, in the sense that the amendments to the said Convention shall come into force in the country once they have been approved, in accordance with the procedures established in the Political Constitution of the Republic of Costa Rica."

CUBA

The instrument of accession of the Republic of Cuba contained the following declarations:

[Translation]

"The Government of the Republic of Cuba considers that the provisions of article X of the Convention, notwithstanding the fact that it deals with matters of interest for all States, are discriminatory in nature in that they withhold from a number of States the right of signature and accession, which is contrary to the principle of universality."

"The Government of the Republic of Cuba considers that the application of the provisions contained in article XII of the Convention is at variance with the Declaration on the Granting of Independence to Colonial Countries and Peoples contained in resolution 1514(XV) adopted by the General Assembly of the United Nations on 14 December 1960, which proclaims the necessity of putting a speedy and unconditional end to colonialism in all its forms and manifestations."

CZECHIA

The instrument of accession of the Czechoslovak Socialist Republic contains the following paragraph (in the Czechoslovak language):

[Translation]

"In acceding to the Convention, the Government of the Czechoslovak Socialist Republic regard it necessary to call attention to the discriminatory nature of article X of the Convention since its provisions do not provide to all States the equal right to accede to the Convention and in their consequences deprive certain States of the possibility to become Contracting Parties to it. The Convention regulates questions concerning all States and accordingly it should be open to participation of all States without limitations. In harmony with the principle of sovereign equality no States have the right to exclude other States from participation in treaties, especially in treaties of this kind."

Czechia and Slovakia, as successor States to the Czech and Slovak Federal Republic, consider themselves bound by the multilateral international treaties to which the Czech and Slovak Federal Republic was a party, as of 1 January 1993, including reservations and declarations made earlier by the Czech and Slovak Federal Republic.

EGYPT

The instrument of acceptance of the Arab Republic of Egypt contained the following declaration:

[Unofficial translation]

"We declare ... that we accepted, supported and ratified that convention with reservation that this convention does not contradict the terms of the Constantinople Treaty for the year 1888 concerning the Suez Canal."

FEDERAL REPUBLIC OF GERMANY[1]

A letter (in the English language) from the Ambassador of the Federal Republic of Germany in London, which accompanied the instrument of acceptance, contains the following sentence:

"The said Convention shall also apply to Land Berlin with effect from the date on which it enters into force for the Federal Republic of Germany."

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[1] The following Governments do not accept the declaration accompanying the instrument of acceptance of the Federal Republic of Germany, and the texts of their Notes to this effect were circulated by the depositary: Poland, the USSR.

The texts of further communications from the Governments of France, the Federal Republic of Germany, the United Kingdom and the United States were also circulated by the depositary.

HUNGARY

The instrument of acceptance of the Hungarian People's Republic was accompanied by the following statement (in the English language):

"The Presidential Council of the Hungarian People's Republic declares that article 10 of the Convention on Facilitation of International Maritime Traffic contains discriminative provisions since it does not give every State an equal right to become a party to the Convention. The Convention regulates such questions which concern all States and, therefore, it should be open for all States, without any restriction and discrimination."

IRAQ

The instrument of accession of the Republic of Iraq contained the following sentence (in the Arabic language):

[Translation]

"ENTRY INTO the above convention by the Republic of Iraq shall, however, in no way signify recognition of Israel or be conducive to entry into any relations therewith."

MALTA

The instrument of accession of Malta contained the following reservations:

“Standard 2.6.3 – a crew list has to be submitted by every ship calling in a local port after an international voyage”; and

“Standard 2.22 – ships calling in a port to disembark a sick or injured person have to submit all the applicable documents to the relative public authority, but this will not delay clearance”.

SYRIAN ARAB REPUBLIC[1]

The instrument of accession of the Syrian Arab Republic contains the following sentence (in the Arabic language):

[Translation]

"... this accession ... to this Convention ... in no way implies recognition of Israel and does not involve the establishment of any relations with Israel arising from the provisions of this Convention."

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[1] The depositary received a communication dated 11 February 1976 from the Chargé d'affaires ad interim of the Embassy of Israel in London. The communication, the full text of which was circulated by the depositary, includes the following:

"The Government of Israel notes that in acceding to the Convention ... the Government of the Syrian Arab Republic included in its instruments of accession sentences relating to the State of Israel. This statement by the Government of the Syrian Arab Republic is a political one and it is the view of the Government of Israel that the [International Maritime Organization] and its conventions are not the proper place for making such pronouncements. These pronouncements are, moreover, in flagrant contradiction to the principles, objects and purposes of the Convention in question.

"The Government of Israel rejects the said statement as being devoid of any legal validity whatsoever and will proceed on the assumption that it cannot in any way affect the obligations incumbent on the Syrian Arab Republic under the above-mentioned Convention.

"The Government of Israel will, in so far as concerns the substance of the matter, adopt towards the Government of the Syrian Arab Republic an attitude of complete reciprocity."

URUGUAY

The instrument of accession of the Eastern Republic of Uruguay was accompanied by the following declaration:

[Translation]

"Where, during the unloading of goods from ships or on their receipt in national warehouses, differences in packages are found, in terms of plus or minus quantities, in relation to what is stated in the consular cargo manifest, or where differences occur between the cargo of a ship and the manifest originating at the last port of call, unless those documents have been corrected in accordance with the regulations, the seizure of the excess packages shall be declared or a fine equal to the value of the missing goods shall be imposed.

In the case of goods carried in bulk or without packaging, the sanction shall be applied on the plus or minus differences with respect to the weights or quantities declared in the above-mentioned documents.

The determination of these differences shall invariably be subject, for the sole purpose of exemption from the sanction, to a tolerance of up to 5% (five per cent) with respect to the amount declared. This tolerance shall be applied to the amount declared for each ship and for each consignment.

The value of missing goods shall be established on the basis of the original documents, if they are not subject to a tariff, or on the basis of the maximum indicated by the tariff.

If the value cannot be determined, a fine of between $200.00 (two hundred pesos) or $10,000.00 (ten thousand pesos) shall be imposed.

If the difference relates to missing goods, liability shall be invoked only where it appears, from the circumstances of the case, that the shortfall occurred subsequent to the time at which the master took receipt of the goods or effects.

The consular manifest shall contain in generic form all the details provided by the regulations in order to identify the goods."

USSR

The instrument of acceptance of the Union of Soviet Socialist Republics was accompanied by a letter (in the English language) containing the following paragraph:

"The Union of the Soviet Socialist Republics states that the provision in paragraph 2, article X of the Convention on Facilitation of International Maritime Traffic, 1965, under which the Governments of a number of States are deprived of the opportunity to become Parties to this Convention, is of a discriminatory nature and believes that in accordance with the principle of sovereign equality of States the Convention should be open for participation to all interested nations without any discrimination or limitation."

IV. Amendments

A. Amendments to the Convention

1973 Amendment

A Adoption

A conference of Contracting Governments to the Convention convened in accordance with the provisions of article IX and held at London in November 1973 adopted an amended article VII.

B. Entry into force

The 1973 Amendment entered into force on 2 June 1984.

C. Accepting Governments[1]

	Date of acceptance or succession
Argentina	29 January 1980
Austria	28 March 1983
Bahamas	22 March 1978
Belgium	13 January 1976
Brazil	6 July 1978
Canada	19 December 1974
Chile	2 August 1977
Denmark	28 March 1974
Finland	4 October 1976
France[2]	12 December 1974
Germany, Federal Republic of [3]	30 December 1974
Greece	16 May 1978
Hungary	9 February 1981
Iceland	4 December 1981
India	2 June 1983
Ireland	20 October 1981
Israel	17 February 1982
Italy	19 October 1977
Mexico	31 May 1983
Monaco	8 January 1982
Netherlands	25 April 1975
New Zealand	17 August 1976
Norway	10 November 1975
Peru	16 July 1982
Poland	3 June 1975
Singapore	23 March 1978
Spain	14 April 1975
Suriname (succession)	25 November 1975
Sweden	28 April 1975
Switzerland	30 December 1975
Tunisia	19 February 1975
USSR	22 October 1976
United Kingdom	7 October 1974
United States	2 April 1975
Yugoslavia	11 July 1975

The amendments are also effective in respect of:

	Date of notification
Netherlands Antilles*	25 April 1975
Aruba (with effect from 1 January 1986)	-

* The Netherlands Antilles has ceased to exist as an autonomous country within the Kingdom of the Netherlands with effect from 10 October 2010.

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[1] Listed are only those acceptances which brought about the entry into force of the amendment.

[2] The instrument of acceptance was accompanied by the following declaration (in the French language):

[Translation]

"In the view of the Government of the French Republic, the provisions of article VII 2(d) apply to all amendments adopted under the terms of paragraph 3 of that article."

[3] The instrument of acceptance was accompanied by a declaration (in the English language) that "the said amendment" shall also apply to Berlin (West) with effect from the date on which it enters into force for the Federal Republic of Germany".

B. Amendments to the Annex

(1) 1969 Amendments

A. Proposal by Party to the Convention and Secretariat action

On 28 November 1969, in Note Verbale Al/F/2.04 (NV.2), the Secretary-General communicated to the Parties to the Convention for acceptance the text of a draft amendment to the Annex of the Convention proposed by the United Kingdom of Great Britain and Northern Ireland.

B. Entry into force

On 24 February 1971, in Note Verbale Al/F/2.04 (NV.4), the Secretary-General informed the Parties to the Convention that as of 11 February 1971 a majority of the Parties to the Convention had accepted the amendment. Pursuant to article VII(2)(d), the amendment entered into force on 12 August 1971.

C. Accepting Governments[1]

	Date of deposit of acceptance
Belgium	20 April 1970
Canada[2]	14 December 1970
Denmark	30 November 1970
Finland[2]	17 November 1970
France[2]	9 November 1970
Germany, Federal Republic of [2]	30 November 1970
Ghana[2]	11 February 1971
Iceland[2]	28 December 1970
Netherlands[2]	18 November 1970
Norway[2]	27 November 1970
Singapore[2]	2 November 1970
Sweden	27 November 1970
United Kingdom	2 November 1970
United States[2]	31 December 1970
Yugoslavia[2]	18 December 1970

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[1] Listed are only those acceptances which brought about the entry into force of the amendment.

[2] Acceptance includes notification of differences.

(2) 1977 Amendments

A. Adoption

A Conference of Contracting Governments to the Convention convened in accordance with article VII(3) of the Convention and held at London in November 1977 adopted a number of amendments to the Annex to the Convention.

B. Entry into force

By Note Verbale A1/F/2.04 (NV.22) of 30 January 1978 the Secretary-General transmitted the texts of the amendments to the Annex to the Contracting Governments to the Convention. In accordance with article VII(3) of the Convention the amendments entered into force on 31 July 1978.

(3) 1986 Amendments

A. Adoption

A Conference of Contracting Governments to the Convention convened in accordance with article VII(3) of the Convention and held at London in March 1986 adopted a number of amendments to the Annex to the Convention.

B. Entry into force

By Note Verbale Al/F/2.04 (NV.28) of 1 April 1986 the Secretary-General transmitted the texts of the amendments to the Annex to the Contracting Governments to the Convention. In accordance with article VII(3) of the Convention the amendments entered into force on 1 October 1986.

(4) 1987 Amendments (FAL.1(17))

A. Adoption

The Facilitation Committee at its seventeenth session (September 1987) adopted by resolution FAL.1(17), in accordance with article VII of the Convention, a number of amendments to the Annex to the Convention.

B. Entry into force

The Facilitation Committee determined, in accordance with article VII(2)(b) of the Convention, that the amendments shall enter into force on 1 January 1989 unless, prior to 1 October 1988, at least one-third of the Contracting Governments to the Convention have notified the Secretary-General in writing that they do not accept the amendments. No such notification was received and the amendments accordingly entered into force on 1 January 1989.

(5) 1990 Amendments (FAL.2(19))

A. Adoption

The Facilitation Committee at its nineteenth session (May 1990) adopted by resolution FAL.2(19), in accordance with article VII of the Convention, a number of amendments to the Annex to the Convention.

B. Entry into force

The Facilitation Committee determined, in accordance with article VII(2)(b) of the Convention, that the amendments shall enter into force on 1 September 1991 unless, prior to 1 June 1991, at least one-third of the Contracting Governments to the Convention have notified the Secretary-General in writing that they do not accept the amendments. No such notification was received and the amendments accordingly entered into force on 1 September 1991.

(6) 1992 Amendments (FAL.3(21))

A. Adoption

The Facilitation Committee at its twenty-first session (May 1992) adopted by resolution FAL.3(21), in accordance with article VII of the Convention, a number of amendments to the Annex to the Convention.

B. Entry into force

The Facilitation Committee determined, in accordance with article VII(2)(b) of the Convention, that the amendments shall enter into force on 1 September 1993 unless, prior to 1 June 1993, at least one-third of the Contracting Governments to the Convention have notified the Secretary-General in writing that they do not accept the amendments. No such notification was received and the amendments accordingly entered into force on 1 September 1993.

(7) 1993 Amendments (FAL.4(22))

A. Adoption

The Facilitation Committee at its twenty-second session (April 1993) adopted by resolution FAL.4(22), in accordance with article VII of the Convention, a number of amendments to the Annex to the Convention.

B. Entry into force

The Facilitation Committee determined, in accordance with article VII(2)(b) of the Convention, that the amendments shall enter into force on 1 September 1994 unless, prior to 1 June 1994, at least one-third of the Contracting Governments to the Convention have notified the Secretary-General in writing that they do not accept the amendments. No such notification was received and the amendments accordingly entered into force on 1 September 1994.

(8) 1996 Amendments (FAL.5(24))

A. Adoption

The Facilitation Committee at its twenty-fourth session (January 1996) adopted by resolution FAL.5(24), in accordance with article VII of the Convention, a number of amendments to the Annex to the Convention.

B. Entry into force

The Facilitation Committee determined, in accordance with article VII(2)(b) of the Convention, that the amendments shall enter into force on 1 May 1997 unless, prior to 1 February 1997, at least one-third of the Contracting Governments to the Convention have notified the Secretary-General in writing that they do not accept the amendments. No such notification was received and the amendments accordingly entered into force on 1 May 1997.

(9) 1999 Amendments (FAL.6(27))

A. Adoption

The Facilitation Committee at its twenty-seventh session (September 1999) adopted by resolution FAL.6(27), in accordance with article VII of the Convention, a number of amendments to the Annex of the Convention.

B. Entry into force

The Facilitation Committee determined, in accordance with article VII(2)(b) of the Convention, that the amendments shall enter into force on 1 January 2001 unless, prior to 1 October 2000, at least one-third of the Contracting Governments to the Convention have notified the Secretary-General in writing that they do not accept the amendments. As at 1 October 2000, two objections[1] had been notified to the Secretary-General and the amendments accordingly entered into force on 1 January 2001.

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[1] Objections received from the Governments of Germany and Italy.

(10) 2002 Amendments (FAL.7(29))

A. Adoption

The Facilitation Committee at its twenty-ninth session (January 2002) adopted by resolution FAL.7(29), in accordance with article VII of the Convention, a number of amendments to the Annex of the Convention.

B. Entry into force

The Facilitation Committee determined, that in accordance with article VII(2)(b) of the Convention, the amendments shall enter into force on 1 May 2003 unless, prior to 1 February 2003, at least one-third of Contracting Governments have notified the Secretary-General in writing that they do not accept the amendments. As at 1 February 2003, three objections[1] had been notified to the Secretary-General and the amendments accordingly entered into force on 1 May 2003.

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[1] Objections received from the Governments of Finland, Italy and Spain.

The Depositary further received, on 30 October 2017, a communication from the Embassy of Finland that its Government had fulfilled the national procedural requirements for the entering into force of the aforementioned amendments (FAL.7(29)) and could thus withdraw its objection. The said amendments entered into force with respect to Finland on 1 November 2017.

(11) 2005 Amendments (FAL.8(32))

A. Adoption

The Facilitation Committee at its thirty-second session (July 2005) adopted by resolution FAL.8(32), in accordance with article VII of the Convention, a number of amendments to the Annex of the Convention.

B. Entry into force

The Facilitation Committee determined, that in accordance with article VII(2)(b) of the Convention, the amendments shall enter into force on 1 November 2006 unless, prior to 1 August 2006, at least one-third of Contracting Governments have notified the Secretary-General in writing that they do not accept the amendments. One objection[2] was received and the amendments accordingly entered into force on 1 November 2006.

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[2] The depositary received, on 13 July 2006, a communication from the Embassy of Finland that the Government of Finland would not able to accept the amendments due to national procedural requirements.

The Depositary further received, on 30 October 2017, a communication from the Embassy of Finland that its Government had fulfilled the national procedural requirements for the entering into force of the aforementioned amendments FAL.8(32)) and could thus withdraw its objection. The said amendments entered into force with respect to Finland on 1 November 2017.

(12) 2009 Amendments (FAL.10(35))

A. Adoption

The Facilitation Committee at its thirty-fifth session (January 2009) adopted by resolution FAL.10(35), in accordance with article VII of the Convention, a number of amendments to the Annex of the Convention.

B. Entry into force

The Facilitation Committee determined, that in accordance with article VII(2)(b) of the Convention, the amendments shall enter into force on 15 May 2010 unless, prior to 15 February 2010, at least one-third of Contracting Governments have notified the Secretary-General in writing that they do not accept the amendments. No such notification was received, and the amendments will accordingly enter into force on 15 May 2010.

(13) 2016 Amendments (FAL.12(40))

A. Adoption

The Facilitation Committee at its fortieth session (April 2016) adopted by resolution FAL.12(40), in accordance with article VII of the Convention, a number of amendments to the Annex of the Convention.

B. Entry into force

The Facilitation Committee determined, that in accordance with article VII(2)(b) of the Convention, the amendments shall enter into force on 1 January 2018 unless, prior to 1 October 2017, at least one-third of Contracting Governments have notified the Secretary-General in writing that they do not accept the amendments. As at 1 October 2017, no objection had been received, and the amendments accordingly entered into force on 1 January 2018.

(14) 2022 Amendments (FAL.14(46))

A. Adoption

The Facilitation Committee at its forty-sixth session (May 2022) adopted by resolution FAL.14(46), in accordance with article VII of the Convention, amendments to the Annex of the Convention.

B. Entry into force

The Facilitation Committee determined, that in accordance with article VII(2)(b) of the Convention, the amendments shall enter into force on 1 January 2024 unless, prior to 1 October 2023, at least one-third of Contracting Governments have notified the Secretary-General in writing that they do not accept the amendments. No such notification was received and the amendments accordingly entered into force on 1 January 2024.

(15) 2023 Amendments (FAL.15(47))

A. Adoption

The Facilitation Committee at its forty-seventh session (March 2023) adopted by resolution FAL.15(47), in accordance with article VII(2)(a) of the Convention, amendments to the Annex of the Convention.

B. Entry into force

The Facilitation Committee determined, that in accordance with article VII(2)(b) of the Convention, the amendments shall enter into force on 1 January 2025 unless, prior to 1 October 2024, at least one-third of Contracting Governments have notified the Secretary-General in writing that they do not accept the amendments.

(16) 2026 Amendments (FAL.19(50))

A. Adoption

The Facilitation Committee at its fiftieth session (March 2026) adopted by resolution FAL.19(50), in accordance with article VII(2)(a) of the Convention, amendments to the Annex of the Convention.

B. Entry into force

The Facilitation Committee determined, that in accordance with article VII(2)(b) of the Convention, the amendments shall enter into force on 1 January 2028 unless, prior to 1 October 2027, at least one-third of Contracting Governments have notified the Secretary-General in writing that they do not accept the amendments.

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INTERNATIONAL CONVENTION ON LOAD LINES 1966 (LL 1966)

Done at London, 5 April 1966

Entry into force: 21 July 1968

Signature, acceptance and accession

Article 27

(1) The present Convention shall remain open for signature for three months from 5 April 1966 and shall thereafter remain open for accession. Governments of States Members of the United Nations, or of any of the Specialized Agencies, or of the International Atomic Energy Agency, or parties to the Statute of the International Court of Justice may become parties to the Convention by:

(a) signature without reservation as to acceptance;

(b) signature subject to acceptance followed by acceptance; or

(c) accession.

(2) Acceptance or accession shall be effected by the deposit of an instrument of acceptance or accession with the Organization ...

Entry into force

Article 28

(1) The present Convention shall come into force twelve months after the date on which not less than fifteen Governments of States, including seven each with not less than one million gross tons of shipping, have signed without reservation as to acceptance or deposited instruments of acceptance or accession in accordance with article 27 ..

(2) For Governments which have deposited an instrument of acceptance of or accession to the present Convention during the twelve months mentioned in paragraph (1) of this article, the acceptance or accession shall take effect on the coming into force of the present Convention or three months after the date of deposit of the instrument of acceptance or accession, whichever is the later date.

(3) For Governments which have deposited an instrument of acceptance of or accession to the present Convention after the date on which it comes into force, the Convention shall come into force three months after the date of the deposit of such instrument.

(4) After the date on which all the measures required to bring an amendment to the present Convention into force have been completed, ... any instrument of acceptance or accession deposited shall be deemed to apply to the Convention as amended.

Entry into force of amendments

Article 29

(3) Amendment after consideration in the Organization:

(c) Such amendment shall come into force twelve months after the date on which it is accepted by two-thirds of the Contracting Governments. The amendment shall come into force with respect to all Contracting Governments except those which, before it comes into force, make a declaration that they do not accept the amendment.

I. Signatories

II. Contracting States

III. Declarations, Reservations and Statements

IV. Amendments

I. Signatories

Argentina	Subject to acceptance
Australia	Subject to acceptance 4th July 1966
Belgium	Sous réserve d'approbation et de ratification
Brazil	Subject to acceptance
Bulgaria	Subject to acceptance
Canada	Subject to ratification
Côte d'Ivoire	Sous réserve d'approbation
Denmark	Subject to acceptance
Egypt	Subject to ratification with declaration1
France	Sous réserve d'approbation ultérieure
Germany, Federal Republic of	Subject to acceptance
Ghana	Subject to acceptance
Greece	Subject to acceptance
Iceland	Subject to acceptance
India	Subject to acceptance
Ireland	Subject to acceptance
Israel	Subject to acceptance
Italy	Sous réserve d'acceptation
Japan	Subject to acceptance
Kuwait	Subject to acceptance
Liberia	Subject to acceptance
Madagascar	Sous réserve d'approbation
	Subject to acceptance 4th July l966
New Zealand	Subject to acceptance 30th June l966
Norway	Subject to acceptance July 1, l966
Pakistan	Subject to acceptance
Panama	5/13/66
Peru	Ad referendum
Philippines	Subject to ratification or acceptance 1 July l966
Poland	Subject to acceptance
Republic of Korea	Subject to acceptance
South Africa	Subject to acceptance
Spain	Subject to acceptance
Switzerland	Sous réserve d'approbation 11 may l966
Trinidad and Tobago	Subject to acceptance
Tunisia	Sous réserve d'approbation le 5 juillet l966
USSR	With a statement relating to article 27(1)[1]
United Kingdom	Subject to acceptance
United States	Subject to acceptance
Venezuela (Bolivarian Republic of)	Ad referendum
Yugoslavia	Subject to acceptance

[1] See section III.

II. Contracting States

	Date of signature or deposit of instrument	Date of entry into force or succession
Albania (accession)	30 May 2003	30 August 2003
Algeria (accession)	4 October 1976	4 January 1977
Angola (accession)	3 October 1991	3 January 1992
Antigua and Barbuda (accession)	9 February 1987	9 May 1987
Argentina (acceptance)	3 June 1971	3 September 1971
Australia (acceptance)	29 July 1968	29 October 1968
Austria (accession)	4 August 1972	4 November 1972
Azerbaijan (accession)	1 July 1997	1 October 1997
Bahamas (accession)	22 July 1976	22 October 1976
Bahrain (accession)	21 October 1985	21 January 1986
Bangladesh (accession)	10 May 1978	10 August 1978
Barbados (accession)	1 September 1982	1 December 1982
Belarus (accession)	7 January 1994	7 April 1994
Belgium (acceptance)	22 January 1969	22 April 1969
Belize (accession)	2 April 1991	2 July 1991
Benin (accession)	1 November 1985	1 February 1986
Bolivia (Plurinational State of) (accession)	4 June 1999	4 September 1999
Brazil (acceptance)	12 September 1969	12 December 1969
Brunei Darussalam (accession)	6 March 1987	6 June 1987
Bulgaria (acceptance)	30 December 1968	30 March 1969
Cambodia (accession)	28 November 1994	28 February 1995
Cameroon (accession)	14 May 1984	14 August 1984
Canada (acceptance)	14 January 1970	14 April 1970
Cabo Verde (accession)	28 April 1977	28 July 1977
Chile (accession)	10 March 1975	10 June 1975
China (accession)[1,6]	5 October 1973	5 January 1974
Colombia (accession)	6 May 1987	6 August 1987
Comoros (accession)	22 November 2000	22 February 2001
Congo (accession)	6 June 1986	6 September 1986
Cook Islands (accession)	21 December 2001	21 March 2002
Côte d'Ivoire (acceptance)	19 July 1971	19 October 1971
Croatia (succession)	-	8 October 1991
Cuba (accession)	6 February 1969	6 May 1969
Cyprus (accession)	5 May 1969	5 August 1969
Czechia (succession)[14]	-	1 January 1993
Democratic People's Republic of Korea (accession)	18 October 1989	18 January 1990
Democratic Republic of the Congo (accession)[7]	20 May 1968	20 August 1968
Denmark (acceptance)	28 June 1967	21 July 1968
Djibouti (accession)	1 March 1984	1 June 1984
Dominica (accession)	21 June 2000	21 September 2000
Dominican Republic (accession)	28 June 1973	28 September 1973
Ecuador (accession)	12 January 1976	12 April 1976
Egypt (acceptance)[1]	6 December 1968	6 March 1969
Equatorial Guinea (accession)	24 April 1996	24 July 1996
Eritrea (accession)	22 April 1996	22 July 1996
Estonia (accession)	16 December 1991	16 March 1992
Ethiopia (accession)	18 July 1985	18 October 1985
Fiji (accession)	29 November 1972	1 March 1973
Finland (accession)	15 May 1968	15 August 1968
France (acceptance)	30 November 1966	21 July 1968
Gabon (accession)	21 January 1982	21 April 1982
Gambia (accession)	1 November 1991	1 February 1992
Georgia (accession)	19 April 1994	19 July 1994
Germany (acceptance)[1,8]	9 April 1969	9 July 1969
Ghana (acceptance)	25 September 1968	25 December 1968
Greece (acceptance)	12 June 1968	12 September 1968
Grenada (accession)	28 June 2004	28 September 2004
Guatemala (accession)	5 September 1994	5 December 1994
Guinea (accession)	19 January 1981	19 April 1981
Guinea-Bissau (accession)	12 May 2022	12 August 2022
Guyana (accession)	10 December 1997	10 March 1998

Haiti (accession)	6 April 1989	6 July 1989
Honduras (accession)	16 November 1977	16 February 1978
Hungary (accession)	25 September 1973	25 December 1973
Iceland (acceptance)	24 June 1970	24 September 1970
India (acceptance)	19 April 1968	21 July 1968
Indonesia (accession)	17 January 1977	17 April 1977
Iran (Islamic Republic of) (accession)	5 October 1973	5 January 1974
Iraq (accession)	13 February 2025	13 May 2025
Ireland (acceptance)	28 August 1968	28 November 1968
Israel (acceptance)	5 July 1967	21 July 1968
Italy (acceptance)	19 April 1968	21 July 1968
Jamaica (accession)	18 August 1982	18 November 1982
Japan (acceptance)	15 May 1968	15 August 1968
Jordan (accession)	17 May 2000	17 August 2000
Kazakhstan (accession)	7 March 1994	7 June 1994
Kenya (accession)	12 September 1975	12 December 1975
Kiribati (accession)	5 February 2007	5 May 2007
Kuwait (acceptance)	28 August 1968	28 November 1968
Latvia (accession)	20 May 1992	20 August 1992
Lebanon (accession)	7 July 1970	7 October 1970
Liberia (acceptance)	8 May 1967	21 July 1968
Libya (accession)	12 August 1974	12 November 1974
Lithuania (accession)	4 December 1991	4 March 1992
Luxembourg (accession)	14 February 1991	14 May 1991
Madagascar (acceptance)	16 January 1967	21 July 1968
Malawi (accession)	7 January 2002	7 April 2002
Malaysia (accession)	12 January 1971	12 April 1971
Maldives (accession)	29 January 1968	21 July 1968
Malta (accession)	11 September 1974	11 December 1974
Marshall Islands (accession)	26 April 1988	26 July 1988
Mauritania (accession)	4 December 1967	21 July 1968
Mauritius (accession)	11 October 1988	11 January 1989
Mexico (accession)	25 March 1970	25 June 1970
Moldova (accession)	11 October 2005	11 January 2006
Monaco (accession)	25 March 1970	25 June 1970
Mongolia (accession)	3 March 2003	3 June 2003
Montenegro (succession)[12,13]	-	3 June 2006
Morocco (accession)	19 January 1968	21 July 1968
Mozambique (accession)	30 October 1991	30 January 1992
Myanmar (accession)	11 November 1987	11 February 1988
Namibia (accession)	22 February 2002	22 May 2002
Nauru (accession)	18 June 2018	18 September 2018
Netherlands (acceptance)[2]	21 July 1967	21 July 1968
New Zealand (acceptance)	5 February 1970	5 May 1970
Nicaragua (accession)	2 February 1994	2 May 1994
Nigeria (accession)	14 November 1968	14 February 1969
Niue (accession)	27 June 2012	27 September 2012
Norway (acceptance)	18 March 1968	21 July 1968
Oman (accession)[1]	20 August 1975	20 November 1975
Pakistan (acceptance)	5 December 1968	5 March 1969
Palau (accession)	29 September 2011	29 December 2011
Panama (signature)	13 May 1966	21 July 1968
Papua New Guinea (accession)	18 May 1976	18 August 1976
Peru (acceptance)	18 January 1967	21 July 1968
Philippines (acceptance)	4 March 1969	4 June 1969
Poland (acceptance)	28 May 1969	28 August 1969
Portugal (accession)[5]	22 December 1969	22 March 1970
Qatar (accession)	31 January 1980	1 May 1980
Republic of Korea (acceptance)	10 July 1969	10 October 1969
Romania (accession)[1]	3 June 1971	3 September 1971
Russian Federation (signature)[1,9]	4 July 1966	22 July 1968
Saint Kitts and Nevis (accession)	11 June 2004	11 September 2004
Saint Lucia (accession)	20 May 2004	20 August 2004
Saint Vincent and the Grenadines (accession)	29 April 1986	29 July 1986
Samoa (accession)	23 October 1979	23 January 1980
San Marino	19 April 2021	19 July 2021
São Tomé and Principe (accession)	29 October 1998	29 January 1999

Saudi Arabia (accession)	5 September l975	5 December l975
Senegal (accession)	18 August l977	18 November l977
Serbia (succession)[12,13]	-	3 June 2006
Seychelles (accession)	1 October l976	1 January l977
Sierra Leone (accession)	13 August 1993	13 November 1993
Singapore (accession)	21 September 1971	21 December 1971
Slovakia (succession)	-	1 January 1993
Slovenia (succession)	-	25 June 1991
Solomon Islands (accession)	30 June 2004	30 September 2004
Somalia (accession)	30 March l967	21 July l968
South Africa (acceptance)	14 December l966	21 July l968
Spain (acceptance)	1 July l968	1 October l968
Sri Lanka (accession)	10 May l974	10 August l974
Sudan (accession)	26 September 1991	26 December 1991
Suriname (succession)	-	25 November l975
Sweden (accession)	28 July l967	21 July l968
Switzerland (acceptance)	23 April l968	23 July l968
Syrian Arab Republic (accession)[1]	6 February l975	6 May l975
Thailand (accession)	30 December 1992	30 March 1993
Togo (accession)	19 July 1989	19 October 1989
Tonga (accession)	12 April l977	12 July l977
Trinidad and Tobago (acceptance)	24 August l966	21 July l968
Tunisia (acceptance)	23 August l966	21 July l968
Türkiye (accession)	5 August l968	5 November l968
Turkmenistan (accession)	4 February 2009	4 May 2009
Tuvalu (accession)	22 August 1985	22 November 1985
Uganda (accession)	10 October 2019	10 January 2020
Ukraine (accession)	25 October 1993	25 January 1994
United Arab Emirates (accession)	15 December l983	15 March l984
United Kingdom (acceptance)[3]	11 July l967	21 July l968
United Republic of Tanzania (accession)	28 February 1989	28 May 1989
United States (acceptance)[4]	17 November l966	21 July l968
Uruguay (acceptance)	18 April l977	18 July l977
Vanuatu (accession)	28 July l982	28 October l982
Venezuela (Bolivarian Republic of) (acceptance)	15 October l974	15 January l975
Viet Nam (accession)[10]	18 December 1990	18 March 1991
Yemen[11] (accession)	6 March l979	6 June l979
Zambia (accession)	2 September l970	2 December l970

Number of Contracting States: 166
(the combined merchant fleets of which constitute approximately 99.03% of the gross tonnage of the world's merchant fleet)

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[1] For the text of a declaration, reservation or statement, see section III.

[Footnotes continued]

[Footnotes continued]

[2] The Convention has been extended by the Netherlands to:

	Date of deposit of instrument	Date of entry into force
Suriname*, Netherlands Antilles**	21 July l967	21 July l968
Aruba (with effect from 1 January 1986)	-	-

[3] The Convention has been extended by the United Kingdom to:

Hong Kong***	16 August l972	16 August l972
Bermuda	27 May l975	1 April l975
Isle of Man	11 October l984	19 October l984
Cayman Islands	9 May 1988	23 June 1988
Gibraltar	1 November 1988	1 December 1988
The Bailiwick of Jersey Falkland Islands♣	19 May 2004	19 May 2004
British Virgin Islands St. Helena	10 June 2004	10 June 2004
Turks and Caicos Islands	7 July 2004	7 July 2004

[4] The Convention has been extended by the United States to:

Puerto Rico, Guam, the Canal Zone, Virgin Islands, American Samoa, Trust Territory of the Pacific Islands	9 September l975	9 September l975
Midway Islands, Wake Island, Johnston Island	18 March l976	18 March l976

♣ A dispute exists between the Governments of Argentina and the United Kingdom of Great Britain and Northern Ireland concerning sovereignty over the Falkland Islands (Malvinas). The Secretary-General received a communication from the Embassy of the Argentine Republic, dated 18 February 2014, informing him that the Argentine Government objects and rejects the extension, by the UK Government, of the application of the Convention to the Falkland Islands (Malvinas). The full text of the communication is contained in Circular Letter No.3439.

With reference to the acceptance in respect of the Panama Canal Zone and the Trust Territory of the Pacific Islands, the United States informed the Depositary as follows:

The Panama Canal Zone reverted to Panama on 1 October 1978. On that date the United States Panama Canal Zone ended.

The Trust Territory of the Pacific Islands was terminated by the UN Security Council, acting on the recommendation of the Trusteeship Council. The Trust Agreement, with regard to the three territories that entered into Compacts of Free Association with the United States was terminated, as follows:

The Marshall Islands on 21 October and by United Nations Security Council resolution 683(1990), of 22 December 1990, Micronesia on 3 November 1986, and by United Nations Security Council resolution 683(1990), of 22 December 1990; and Palau on 1 October 1994, and by United Nations Security Council resolution 156(1994), of 10 November 1994.

The fourth territory, the Commonwealth of the Northern Mariana Islands, came under full United States sovereignty on 4 November 1986.

[5] The Convention was extended by Portugal to:

Macau****	19 November 1999	19 November 1999

* Has since become the independent State of Suriname and a Contracting State to the Convention.

** The Netherlands Antilles has ceased to exist as an autonomous country within the Kingdom of the Netherlands with effect from 10 October 2010. Since that date, the Kingdom of the Netherlands consists of four autonomous countries: The Netherlands (European part and Caribbean part), Aruba, Curaçao and Sint Maarten. For more details see footnote 4, in section II of SOLAS 1974.. The Convention applies as follows:

		Effective from
The Netherlands (European part)	)	21 July 1968
Caribbean part of the Netherlands	)	10 October 2010
Aruba	)	1 January 1986
Curaçao	)	10 October 2010
Sint Maarten	)	10 October 2010

*** Ceased to apply to Hong Kong with effect from 1 July 1997.

**** Ceased to apply to Macau with effect from 20 December 1999.

[6] Applies to the Hong Kong Special Administrative Region with effect from 1 July 1997, and to the Macao Special Administrative Region with effect from 18 July 2005.

[7] Formerly Zaire.

[8] On 3 October 1990 the German Democratic Republic acceded to the Federal Republic of Germany. The German Democratic Republic had acceded[1] to the Convention on 15 May 1975.

[9] As from 26 December 1991 the membership of the USSR in the Convention is continued by the Russian Federation.

[10] The former Republic of Viet Nam had acceded to the Convention on 14 June 1968.

[11] On 22 May 1990, Democratic Yemen and Yemen merged to form a single State. Since that date, they have been represented as one Member with the name "Yemen". The Democratic Yemen had acceded to the Convention on 20 May 1969.

[12] As from 4 February 2003, the name of the State of the Federal Republic of Yugoslavia was changed to Serbia and Montenegro. The date of succession by Serbia and Montenegro to the Convention is the date on which the Federal Republic of Yugoslavia assumed responsibility for its international relations.

[13] Following the dissolution of the State Union of Serbia and Montenegro on 3 June 2006, all Treaty actions undertaken by Serbia and Montenegro continue to be in force with respect to Republic of Serbia. Montenegro has informed that it wished to succeed to this treaty with effect from the same date, ie. 3 June 2006.

[14] Czechia and Slovakia, as successor States to the Czech and Slovak Federal Republic, consider themselves bound by the multilateral international treaties to which the Czech and Slovak Federal Republic was a party, as of 1 January 1993, including reservations and declarations made earlier by the Czech and Slovak Federal Republic.

III. Declarations, Reservations and Statements

CHINA

The instrument of accession of the People's Republic of China contains a declaration (in the Chinese language):

[Translation]

"that the acceptance of the ... Convention[s] by the Chiang Kai-shek clique usurping the name of China is illegal and null and void."

Furthermore, the instrument of accession contains the following reservation:

"With respect to its off-coast areas, the People's Republic of China will not be bound by the defining of zones and seasonal areas in the relevant provisions of regulations 49 and 50 of Annex II to the Convention."*

* The reservation made by the Government of the People's Republic of China to Regulations 49 and 50 of the Annex II to the Convention will also apply to the Hong Kong Special Administrative Region with effect from 1 July 1997.

EGYPT

The signature of the Representative of the United Arab Republic (now the Arab Republic of Egypt) was accompanied by the following paragraph (in the English language):

"The Government of the United Arab Republic register the following reservation: Nothing in this Convention should in any way, affect any of the rules and regulations promulgated by the Suez Canal Authority. In case of any contradiction between them the latter shall prevail."

GERMAN DEMOCRATIC REPUBLIC[1]

The instrument of accession of the German Democratic Republic was accompanied by the following statement and declarations (in the German language):

[Translation]

"With regard to the application to Berlin (West) of the Convention the Government of the German Democratic Republic states in accordance with the Quadripartite Agreement of 3 September l97l between the Governments of the Union of Soviet Socialist Republics, the United Kingdom of Great Britain and Northern Ireland, the United States of America and the French Republic that Berlin (West) is no constituent part of the Federal Republic of Germany and must not be governed by it. Consequently, the statement of the Government of the Federal Republic of Germany that the Convention applies also to the 'Land Berlin' is contrary to the Quadripartite Agreement and can have no legal effects."

"The Government of the German Democratic Republic considers that the provisions of article 27 of the Convention are inconsistent with the principle that all States pursuing their policies in accordance with the purposes and principles of the Charter of the United Nations shall have the right to become parties to conventions affecting the interests of all States."

"The position of the Government of the German Democratic Republic on article 32 of the Convention, as far as the application of the Convention to colonial and other dependent territories is concerned, is governed by the provisions of the United Nations Declaration on the Granting of Independence to Colonial Countries and Peoples (resolution 1514(XV) of 14 December l960) proclaiming the necessity of bringing to a speedy and unconditional end colonialism in all its forms and manifestations."

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[1] In respect of the statement by the German Democratic Republic, the texts of communications received from the Governments of the Federal Republic of Germany, the United Kingdom and the United States, together with the relevant parts of a statement from the Government of France were circulated by the depositary.

FEDERAL REPUBLIC OF GERMANY[1]

A letter (in the English language) from the Chargé d'affaires of the Federal Republic of Germany in London, which accompanied the instrument of acceptance, contains the following sentence:

> "the said Convention shall also apply to Land Berlin with effect from the date on which it enters into force for the Federal Republic of Germany."

OMAN

The instrument of accession of the Sultanate of Oman contained the following statement (in the English language):

> "It is understood that accession to this International Convention on Load Lines does not, in any way, imply recognition of Israel by the Government of the Sultanate of Oman, and furthermore, no treaty relations will arise between the Sultanate of Oman and Israel by virtue of this action by the Government of the Sultanate of Oman."

ROMANIA

The letter (in the French language) accompanying the instrument of accession of the Socialist Republic of Romania contains the following declaration:

[Translation]

"(a) The Council of State of the Socialist Republic of Romania considers that the maintenance in a state of dependence of certain territories referred to in the provisions contained in article 32 of the Convention is not in accordance with the Declaration on the granting of independence to colonial countries and peoples adopted by the General Assembly of the United Nations Organization on 14 December l960 in resolution 1514(XV), which proclaims the need to put an end rapidly and unconditionally to colonialization in all its forms and manifestations, nor with the Declaration on principles of international law on friendly relations and co-operation between States in conformity with the United Nations Charter, adopted unanimously in resolution 2625(XXV) on 24 October l970 by the General Assembly of the United Nations Organization, which proclaims solemnly that it is the duty of States to foster the fulfilment of the principle of equal rights between peoples and their right to self-determination, with the aim of bringing colonialism to a speedy end.

"(b) The Council of State of the Socialist Republic of Romania considers that the provisions of article 27, paragraph one, of the Convention are not in accordance with the principle that multilateral international treaties whose aims and objects concern the international community as a whole, should be open to participation by all.

"(c) ...

"(d) The Government of the Socialist Republic of Romania considers that the approval given by the 'Republic of Korea' to the International Convention on Load Lines done in London on 5 April l966 has no legal effect, since the South Korean authorities have no title to speak on behalf of Korea."

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[1] The following Governments do not accept the declaration accompanying the instrument of acceptance of the Federal Republic of Germany and the texts of their Notes to this effect were circulated by the depositary: Bulgaria, Poland, the USSR.

The texts of further communications from the Government of France, the Federal Republic of Germany, the United Kingdom and the United States were also circulated by the depositary.

SYRIAN ARAB REPUBLIC[1]

The instrument of accession of the Syrian Arab Republic contains the following sentence (in the Arabic language):

[Translation]

"... this accession" ... to this Convention ... in no way implies recognition of Israel and does not involve the establishment of any relations with Israel arising from the provisions of this Convention."

USSR

At the time of signature, the Representative of the Union of Soviet Socialist Republics addressed to the depositary a letter (in the English language) which contains the following statement:

> "The Union of the Soviet Socialist Republics states that article 27(1) of the International Convention on Load Lines l966, under which the Governments of a number of States are deprived of the opportunity to become Parties to this Convention, is of a discriminatory nature and believes that in accordance with the principles of sovereign equality of Sates the Convention should be open for participation to all the interested nations without any discrimination or limitation."

On 16 October l969, a communication (in the Russian language) was received by the depositary from the Embassy of the Union of Soviet Socialist Republics in London, of which the following is an excerpt:

[Translation]

> "... the Soviet Union does not recognize the acceptance of the Convention on Load Lines, l966 by the authorities of South Korea as lawful since the above-mentioned authorities cannot act in any way on behalf of Korea."

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[1] The depositary received a communication dated 11 February l976 from the Chargé d'affaires ad interim of the Embassy of Israel in London. The communication, the full text of which was circulated by the depositary, includes the following:

> "The Government of Israel notes that in acceding to the ... Convention ...The Government of the Syrian Arab Republic included in its instruments of accession sentences relating to the State of Israel. This statement by the Government of the Syrian Arab Republic is a political one and it is the view of the Government of Israel that the [International Maritime Organization] and its conventions are not the proper place for making such pronouncements. These pronouncements are, moreover, in flagrant contradiction to the principles, objects and purposes of the Convention in question.
>
> "The Government of Israel rejects the said statement as being devoid of any legal validity whatsoever and will proceed on the assumption that it cannot in any way affect the obligations incumbent on the Syrian Arab Republic under the above-mentioned Convention.
>
> "The Government of Israel will, in so far as concerns the substance of the matter, adopt towards the Government of the Syrian Arab Republic an attitude of complete reciprocity."

IV. Amendments

(1) 1971 Amendments (A.231(VII))

A. Adoption

On 12 October l97l the Assembly adopted by resolution A.231(VII) amendments to the Convention, in accordance with article 29(3). The Secretary General communicated to the Parties to the Convention for acceptance the texts of the amendments on 12 June l972 in Note Verbale A1/G/2.07 (NV.1). In his Note he drew particular attention to the Assembly's invitation to all Governments concerned to accept the amendments at the earliest possible date.

B. Entry into force

The l97l Amendments are not yet in force

Number of acceptances necessary for entry into force: 104

Number of acceptances deposited: 52

C. Accepting Governments

	Date of succession or deposit of acceptance
Algeria	4 January l977
Antigua and Barbuda	25 August 1999
Argentina	18 February 1987
Australia	10 November l980
Bahamas	20 January l977
Bahrain	21 October 1985
Barbados	1 December l982
Belgium	19 March l98l
Bulgaria	2 November l983
Canada	14 August l974
Chile	21 January 1986
China[1]	1 August l980
Cyprus	3 October l974
Denmark	15 August l972
Estonia	18 August 1992
Finland	8 August 1985
France	28 November l972
Germany[2]	29 April l98l
Greece	13 April l973
Honduras	24 September 1985
Hungary	5 January l982
Ireland	10 August l976
Israel	25 August l976
Italy	4 April 1985
Jamaica	18 November l982
Kenya	15 December 1992
Kuwait	25 May l977
Lebanon	19 January l973
Liberia	25 September l972
Myanmar	11 November 1987
Netherlands	30 May l973
Nicaragua	2 February 1994
Norway	21 February l973
Panama	14 March l979
Peru	7 June l984

	Date of succession or deposit of acceptance
Philippines	1 February l973
Poland	15 July l976
Russian Federation[3]	23 April l974
Saudi Arabia[4]	21 August 1987
Serbia and Montenegro	27 April 1992
Seychelles	1 October l980
South Africa	13 November l979
Spain	12 August 1985
Suriname (succession)	25 November l975
Sweden	16 May l977
Switzerland	24 January l973
Tonga	12 July l977
Tunisia	3 April l973
Ukraine	25 October 1993
United Arab Emirates	15 March l984
United Kingdom	12 February l976
United States	16 November l973

The amendments will also be effective in respect of:

	Date of notification
Netherlands Antilles♣	30 May l973
Aruba (with effect from 1 January 1986)	-
Bermuda, Hong Kong*	8 June l977
Isle of Man	24 June 1985

♣ The Netherlands Antilles has ceased to exist as an autonomous country within the Kingdom of the Netherlands with effect from 10 October 2010.

* Ceased to apply to Hong Kong with effect from 1 July 1997.

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[1] Applies to the Hong Kong Special Administrative Region with effect from 1 July 1997.

[2] The instrument of acceptance was accompanied by the following declaration:

"that the said amendments shall also apply to Berlin (West) with effect from the day on which they enter into force for the Federal Republic of Germany".

On 3 October 1990 the German Democratic Republic acceded to the Federal Republic of Germany. The German Democratic Republic had accepted the amendments on 15 August 1975.

[3] As from 26 December 1991 the membership of the USSR in the Convention is continued by the Russian Federation.

[4] The instrument of acceptance contained the following declaration (in the Arabic language):

[Translation]

"This ratification, however, does not carry in any way any implication of recognition of Israel, nor does it lead to any dealings with Israel within the arrangements of the International Maritime Organization."

(2) 1975 Amendment (A.319(IX))

A. Adoption

On 12 November l975 the Assembly adopted by resolution A.319(IX) an amended article 29 to the Convention in accordance with article 29(3). The Secretary-General communicated to the Parties to the Convention for acceptance the text of the amended article 29 on 24 February l976 in Note Verbale Al/G/2.07 (NV.3). In his Note he drew particular attention to the Assembly's invitation to all Governments concerned to accept the amendment at the earliest possible date.

B. Entry into force

The l975 Amendment is not yet in force

Number of acceptances necessary for entry into force: 104

Number of acceptances deposited: 47

C. Accepting Governments

	Date of deposit
Antigua and Barbuda	25 August 1999
Argentina	18 February 1987
Australia	10 November l980
Bahamas	22 March l978
Bahrain	21 October 1985
Barbados	1 December l982
Belgium	22 February l977
Brazil	18 August l977
Bulgaria	2 November l983
Canada	14 October l976
Cape Verde	28 July l977
Chile	21 January 1986
China[1]	1 August l980
Cyprus	10 January l980
Denmark	8 April l976
Ecuador	20 April l977
Estonia	18 August 1992
Finland	29 November l976
France[2]	28 June l976
Germany[3]	29 April l98l
Honduras	24 September 1985
Hungary	5 June l98l
India	31 January l977
Israel	18 June 1981
Jamaica	18 November l982
Kenya	15 December 1992
Kuwait	23 December l976
Libya	29 October l976
Netherlands	26 April l977
New Zealand	13 February l98l
Nicaragua	2 February 1994
Norway	6 October l977
Panama	14 March l979
Peru	7 June l984
Romania	5 March l98l
Russian Federation[4]	6 January l98l
Saudi Arabia[5]	21 August 1987
Serbia and Montenegro	27 April 1992
Seychelles	1 October l980
Spain	12 August 1985

	Date of deposit
Sweden	16 May l977
Switzerland	15 December 1987
Ukraine	25 October 1993
United Arab Emirates	15 March l984
United Kingdom	29 March 1977
United States	12 August l980
Zaire	10 February l977

The amendment will also be effective in respect of:

	Date of deposit
Netherlands Antilles♣	26 April l977
Aruba (with effect from 1 January 1986)	-
Bermuda, Hong Kong*	8 June l977
Isle of Man	24 June 1985

* Ceased to apply to Hong Kong with effect from 1 July 1997.

♣ The Netherlands Antilles has ceased to exist as an autonomous country within the Kingdom of the Netherlands with effect from 10 October 2010.

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[1] Applies to the Hong Kong Special Administrative Region with effect from 1 July 1997.

[2] The instrument of acceptance contained the following declaration (in the French language):

[Translation]

"The Government of the French Republic formulates the following reservation with regard to paragraph 4(a) of the amended article 29: the application of this provision to its own vessels is not accepted because it is contrary to international law."

[3] The instrument of acceptance was accompanied by the following declaration:

"that the said amendments shall also apply to Berlin (West) with effect from the day on which they enter into force for the Federal Republic of Germany."

On 3 October 1990 the German Democratic Republic acceded to the Federal Republic of Germany. The German Democratic Republic had accepted the amendments on 21 February 1980.

[4] As from 26 December 1991 the membership of the USSR in the Convention is continued by the Russian Federation.

[5] The instrument of acceptance contained the following declaration (in the Arabic language):

[Translation]

"This ratification, however, does not carry in any way any implication of recognition of Israel, nor does it lead to any dealings with Israel within the arrangements of the International Maritime Organization."

(3) 1979 Amendment (A.411(XI))

A. Adoption

On 15 November l979 the Assembly adopted by resolution A.411(XI) an amendment to regulation 49(4)(b) of the Convention in accordance with article 29(3). The Secretary-General communicated to the Parties to the Convention for acceptance the text of the amended regulation 49(4)(b) on 31 January l980 in Note Verbale A1/G/2.07 (NV.6).

B. Entry into force

The l979 Amendment is not yet in force

Number of acceptances necessary for entry into force: 104

Number of acceptances deposited: 45

C. Accepting Governments

	Date of deposit
Antigua and Barbuda	25 August 1999
Argentina	26 April 1990
Australia	10 November l980
Bahamas	15 May l98l
Bahrain	21 October 1985
Barbados	1 December l982
Belgium	5 February l98l
Brazil	15 August l984
Bulgaria	2 November l983
Canada	2 June l983
Chile	21 January 1986
China[1]	1 August l980
Cyprus	3 September l984
Denmark	22 May l980
Estonia	18 August 1992
Finland	8 August 1985
France	12 May l980
Germany[2]	29 April l98l
Greece	10 November l98l
Honduras	24 September 1985
Hungary	5 January l982
India	23 May 1988
Israel	2 July l982
Italy	4 April 1985
Jamaica	18 November l982
Kenya	15 December 1992
Madagascar	28 April l98l
Malaysia	4 March l983
Maldives	11 March l980
Morocco	25 September l980
Netherlands	20 November l980
Nicaragua	2 February 1994
Norway	25 February l98l
Peru	7 June l984
Russian Federation[3]	15 February l983
Saudi Arabia[4]	21 August 1987
Serbia and Montenegro	27 April 1992
Seychelles	1 October l980
Spain	12 August 1985
Sri Lanka	27 November l980

	Date of deposit
Sweden	17 October l980
Switzerland	19 January 1988
Ukraine	25 October 1993
United Arab Emirates	15 March l984
United Kingdom	22 September l980

The amendment will also be effective in respect of:

	Date of notification
Bermuda, Hong Kong*	22 September l980
Netherlands Antilles♣	20 November l980
Aruba (with effect from 1 January 1986)	-
Isle of Man	24 June 1985

* Ceased to apply to Hong Kong with effect from 1 July 1997.

♣ The Netherlands Antilles has ceased to exist as an autonomous country within the Kingdom of the Netherlands with effect from 10 October 2010.

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[1] Applies to the Hong Kong Special Administrative Region with effect from 1 July 1997.

[2] The instrument of acceptance was accompanied by the following declaration:

"that the said amendments shall also apply to the Berlin (West) with effect from the day on which they enter into force for the Federal Republic of Germany."

On 3 October 1990 the German Democratic Republic acceded to the Federal Republic of Germany. The German Democratic Republic had accepted the amendments on 21 March 1983.

[3] As from 26 December 1991 the membership of the USSR in the Convention is continued by the Russian Federation.

[4] The instrument of acceptance contained the following declaration (in the Arabic language):

[Translation]

"This ratification, however, does not carry in any way any implication of recognition of Israel, nor does it lead to any dealings with Israel within the arrangements of the International Maritime Organization."

(4) 1983 Amendments (A.513(13))

A. Adoption

On l7 November l983 the Assembly adopted by resolution A.513(13) amendments to Annex II of the Convention, in accordance with article 29(3). The Secretary-General is charged with communicating the texts of the amendments to the Parties to the Convention for acceptance. In his Note Verbale he draws particular attention to the Assembly's invitation to all States concerned to accept the amendments at the earliest possible date.

B. Entry into force

The l983 Amendments are not yet in force

Number of acceptances necessary for entry into force: 104

Number of acceptances deposited: 29

C. Accepting Governments

	Date of deposit
Antigua and Barbuda	25 August 1999
Australia	16 May l984
Bahamas	23 September 1985
Bahrain	21 October 1985
Barbados	14 August 1985
Chile	21 January 1986
China[1]	9 September 1986
Cyprus	14 October 1986
Denmark	2 October l984
Estonia	18 August 1992
Finland	8 August 1985
France	26 September l984
Greece	17 May 1985
Israel	28 July 1987
Kenya	15 December 1992
Liberia	31 October 1991
Maldives	25 April l984
Netherlands	6 March l984
Nicaragua	2 February 1994
Norway	19 July l984
Panama	20 October 1997
Peru	11 July 1988
Serbia and Montenegro	27 April 1992
Seychelles	21 June l984
Sweden	29 November l984
Switzerland	19 January 1988
Syrian Arab Republic	13 July 1988
Ukraine	25 October 1993
United Kingdom	24 June 1985

The amendments will also be effective in respect of:

	Date of notification
Netherlands Antilles♣	6 March l984
Aruba (with effect from 1 January 1986)	-
Bermuda, Hong Kong*, Isle of Man	24 June 1985

♣ The Netherlands Antilles has ceased to exist as an autonomous country within the Kingdom of the Netherlands with effect from 10 October 2010.

* Ceased to apply to Hong Kong with effect from 1 July 1997.

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[1] Applies to the Hong Kong Special Administrative Region with effect from 1 July 1997.

(5) 1995 Amendments (A.784(19))

A. Adoption

On 23 November 1995 the Assembly adopted by resolution A.784(19) an amendment to regulation 49(7)(b) of the Convention in accordance with article 29(3). The Secretary-General communicated to the Contracting Governments for acceptance the text of the amended regulation 49(7)(b), together with consequential changes to the chart of zones and seasonal areas, on 21 March 1996 by Note Verbale A1/G/2.07 (NV.8).

B. Entry into force

The 1995 Amendment is not yet in force

Number of acceptances necessary for entry into force: 104

Number of acceptances deposited: 7

C. Accepting Governments

	Date of deposit
Antigua and Barbuda	25 August 1999
Australia	20 June 1997
Estonia	28 August 1996
Finland	5 September 1996
Germany	4 March 1999
Netherlands	3 March 1997
Switzerland	5 March 1997

The amendments will also be effective in respect of:

	Date of notification
Netherlands Antilles♣, Aruba	3 March 1997

♣ The Netherlands Antilles has ceased to exist as an autonomous country within the Kingdom of the Netherlands with effect from 10 October 2010.

(6) 2005 Amendments (A.972(24))

A. Adoption

On 1 December 2005, the Assembly adopted, by resolution A.972(24) amendments to the International Load Line Certificate (1966) and the International Load Line Exemption Certificate of the Convention in accordance with article 29(3)(b). The Secretary-General communicated to the Contracting Governments for acceptance the text of the amendments by Note Verbale A1/G/2.07 (NV.9), on 3 February 2006.

B. Entry into force

The proposed amendments, in accordance with article 29(2)(b) of the Convention, shall enter into force on 3 February 2010, after their acceptance by all Contracting Governments to the Convention by 3 February 2009. A Contracting Government which does not communicate its acceptance or rejection of the amendments to the Organization by 3 February 2009 shall be deemed to have accepted the amendments. In accordance with article 29(2)(c) of the Convention, the amendments shall be deemed to have been rejected if they are not accepted by 3 February 2009. As at 3 February 2009, no contracting Government had communicated either its acceptance or its rejection of the amendments and, therefore the amendments were deemed to have been accepted and entered into force on 3 February 2010.

(7) 2013 Amendments (A.1082(28))

A. Adoption

On 4 December 2013, the Assembly adopted, by resolution (A.1082(28)) amendments to the International Load Line Certificate (1966) in accordance with article 29(3)(b).

B. Entry into force[1]

The proposed amendments, in accordance with article 29(2)(b) of the Convention, shall enter into force on 28 February 2018 after their acceptance by all Contracting Governments to the Convention by 28 February 2017. A Contracting Government which does not communicate its acceptance or rejection of the amendments to the Organization by 28 February 2017 shall be deemed to have accepted the amendments. As at 28 February 2017 no objection was received, and the amendments accordingly entered into force on 28 February 2018.

(8) 2013 Amendments (to make the use of the III Code mandatory) (A.1083(28))

A. Adoption

On 4 December 2013, the Assembly adopted, by resolution (A.1083(28)) amendments to the International Load Line Certificate (1966) in accordance with article 29(3)(b).

B. Entry into force[1]

The proposed amendments, in accordance with article 29(2)(b) of the Convention, shall enter into force on 28 February 2018 after their acceptance by all Contracting Governments to the Convention by 28 February 2017. A Contracting Government which does not communicate its acceptance or rejection of the amendments to the Organization by 28 February 2017 shall be deemed to have accepted the amendments. As at 28 February 2017 one objections [2] was received, and the amendments accordingly entered into force on 28 February 2018.

[1] The adoption of the amendments were also announced through circulars LL.12/Circ.1 and LL.12/Circ.2.

2 The depositary received, on 17 November 2016, the following communication from the Embassy of Finland informing that "Finland rejects these amendments (A.1083(28)) in accordance with article 29(2)(b) of the Convention, due to national procedural requirements, and that it intends to accept them as soon as the legislative amendments necessary to such acceptance have been carried out.".
The depositary received, on 21 December 2017 a further communication from the Embassy of Finland as follows: "The Embassy has the honour hereby to inform the Secretary-General that the Government of Finland has fulfilled the national procedural requirements for the entry into force of the aforementioned amendments and can thus withdraw its objection."

PROTOCOL OF 1988 RELATING TO THE INTERNATIONAL CONVENTION ON LOAD LINES, 1966 (LL PROT 1988)

Done at London, 11 November 1988

Entry into force: 3 February 2000

Signature, ratification, acceptance, approval and accession

Article IV

(1) The present Protocol shall be open for signature at the Headquarters of the Organization from 1 March 1989 to 28 February 1990 and shall thereafter remain open for accession. Subject to the provisions of paragraph 3, States may express their consent to be bound by the present Protocol by:

(a) signature without reservation as to ratification, acceptance or approval; or

(b) signature subject to ratification, acceptance or approval, followed by ratification, acceptance or approval; or

(c) accession.

(2) Ratification, acceptance, approval or accession shall be effected by the deposit of an instrument to that effect with the Secretary-General of the Organization.

(3) The present Protocol may be signed without reservation, ratified, accepted, approved or acceded to only by States which have signed without reservation, accepted or acceded to the Convention.[1]

Entry into force

Article V

(1) The present Protocol shall enter into force twelve months after the date on which both the following conditions have been met:

(a) not less than fifteen States, the combined merchant fleets of which constitute not less than 50% of the gross tonnage of the world's merchant shipping, have expressed their consent to be bound by it in accordance with article IV, and

(b) the conditions for the entry into force of the Protocol of 1988 relating to the International Convention for the Safety of Life at Sea, 1974 have been met,

provided that the present Protocol shall not enter into force before 1 February 1992.

(2) For States which have deposited an instrument of ratification, acceptance, approval or accession in respect of the present Protocol after the conditions for entry into force thereof have been met but prior to the date of entry into force, the ratification, acceptance, approval or accession shall take effect on the date of entry into force of the present Protocol or three months after the date of deposit of the instrument, whichever is the later date.

(3) Any instrument of ratification, acceptance, approval or accession deposited after the date on which the present Protocol enters into force shall take effect three months after the date of deposit.

[1] International Convention on Load Lines, 1966.

I. Signatories

II. Contracting States

III. Amendments

I. Signatories

China	Subject to approval
Cyprus	Subject to ratification
France	Sous réserve d'approbation
Greece	Subject to ratification
Netherlands	Subject to acceptance
Seychelles	Subject to ratification
Sweden	Subject to ratification
United States	Subject to ratification
Uruguay	Sujeto a ratificación

II. Contracting States

	Date of deposit of instrument or succession	Date of entry into force
Algeria (accession)	20 August 2001	20 November 2001
Angola (accession)	26 November 2025	26 February 2026
Antigua and Barbuda (accession)	25 August 1999	3 February 2000
Argentina (accession)	2 September 1993	3 February 2000
Australia (accession)	7 February 1997	3 February 2000
Azerbaijan (accession)	16 July 2004	16 October 2004
Bahamas (accession)	2 February 1999	3 February 2000
Bahrain (accession)	29 June 2015	29 September 2015
Bangladesh (accession)	18 December 2002	18 March 2003
Barbados (accession)	11 August 2000	11 November 2000
Belarus (accession)	5 December 2016	5 March 2017
Belgium (accession)	19 March 2007	19 June 2007
Belize (accession)	14 June 2007	14 September 2007
Bulgaria (accession)	4 June 2004	4 September 2004
Cambodia (accession)	8 June 2001	8 September 2001
Canada (accession)	8 April 2010	8 July 2010
Chile (accession)	3 March 1995	3 February 2000
China[2] (approval)	3 February 1995	3 February 2000
Colombia (ratification)	28 July 2026	28 October 2026
Congo (accession)	28 May 2015	28 August 2015
Cook Islands (accession)	12 March 2007	12 June 2007
Croatia (accession)	31 January 2000	30 April 2000
Cuba (accession)	25 October 2005	25 January 2006
Cyprus (ratification)	4 February 1998	3 February 2000
Democratic Peoples' Republic of Korea (accession)	8 August 2001	8 November 2001
Denmark (accession)	2 December 1991	3 February 2000
Dominica (accession)	21 June 2000	21 September 2000
Ecuador (accession)	28 September 2006	28 December 2006
Egypt (accession)	21 April 1995	3 February 2000
Equatorial Guinea (accession)	24 April 1996	3 February 2000
Eritrea (accession)	4 February 2000	4 May 2000
Estonia (accession)	3 July 2002	3 October 2002
Ethiopia (accession)	3 June 2015	3 September 2015
Fiji (accession)	28 July 2004	28 October 2004
Finland (acceptance)	17 December 1999	17 March 2000
France (approval)	5 October 1990	3 February 2000
Gabon (accession)	17 April 2019	17 July 2019
Georgia (accession)	28 March 2019	28 June 2018
Germany (accession)	22 June 1995	3 February 2000
Ghana (accession)	18 November 2019	18 February 2020
Greece (ratification)	19 July 1994	3 February 2000
Grenada (accession)	28 June 2004	28 September 2004

Guinea-Bissau (accession)	12 May 2022	12 August 2022
Honduras (accession)	1 December 2010	1 March 2011
Hungary (accession)	17 April 2003	17 July 2003
Iceland (accession)	12 May 2000	12 August 2000
India (accession)	10 August 2000	10 November 2000
Indonesia (accession)	28 November 2017	28 February 2018
Iran, Islamic Republic of (accession)	31 October 2006	31 January 2007
Iraq (accession)	13 February 2025	13 May 2025
Ireland (accession)	7 May 2002	7 August 2002
Italy (accession)	18 April 1991	3 February 2000
Jamaica (accession)	2 May 2003	2 August 2003
Japan (accession)	24 June 1997	3 February 2000
Jordan (accession)	14 October 2003	14 January 2004
Kazakhstan (accession)	17 February 2009	17 May 2009
Kenya (accession)	7 July 2015	7 October 2015
Kiribati (accession)	5 February 2007	5 May 2007
Kuwait (accession)	26 September 2019	26 December 2019
Latvia (accession)	22 July 2002	22 October 2002
Lebanon (accession)	30 March 2005	30 June 2005
Liberia (accession)	26 February 1997	3 February 2000
Libya (accession)	20 January 2009	20 April 2009
Lithuania (accession)	20 June 2006	20 September 2006
Luxembourg (accession)	14 February 1991	3 February 2000
Madagascar (accession)	26 July 2019	26 October 2019
Malawi (accession)	7 January 2002	7 April 2002
Malaysia (accession)	11 November 2011	11 February 2012
Malta (accession)	28 January 1999	3 February 2000
Marshall Islands (accession)	29 November 1994	3 February 2000
Mauritius (accession)	17 December 2002	17 March 2003
Mexico (accession)	13 May 1994	3 February 2000
Moldova (accession)	11 October 2005	11 January 2006
Mongolia (accession)	19 April 2007	19 July 2007
Montenegro (accession)	27 January 2012	27 April 2012
Myanmar (accession)	3 October 2019	3 January 2020
Namibia (accession)	22 February 2002	22 May 2002
Nauru (accession)	18 June 2018	18 September 2018
Netherlands[1] (acceptance)	22 February 1991	3 February 2000
New Zealand (accession)	6 March 2001	6 June 2001
Nicaragua (accession)	2 February 1994	3 February 2000
Nigeria (accession)	18 June 2015	18 September 2015
Niue (accession)	27 June 2012	27 September 2012
Norway (accession)	13 October 1994	3 February 2000
Oman (accession)	17 June 1991	3 February 2000
Pakistan (accession)	25 April 2002	25 July 2002
Palau (accession)	29 September 2011	29 December 2011
Panama (accession)	17 September 2007	17 December 2007
Peru (accession)	24 June 2009	24 September 2009
Philippines (accession)	24 April 2018	24 July 2018
Poland (accession)	5 November 2008	5 February 2009
Portugal (accession)	2 July 2001	2 October 2001
Qatar (accession)	15 January 2019	15 April 2019
Republic of Korea (accession)	14 November 1994	3 February 2000
Romania (accession)	18 May 2001	18 August 2001
Russian Federation (accession)	18 August 2000	18 November 2000
Saint Kitts and Nevis (accession)	11 June 2004	11 September 2004
Saint Lucia (accession)	20 May 2004	20 August 2004
Saint Vincent and the Grenadines (accession)	9 October 2001	9 January 2002
Samoa (accession)	18 May 2004	18 August 2004
Sao Tome and Principe	15 August 2022	15 November 2022
Saudi Arabia (accession)	18 July 2019	18 October 2019
Senegal (accession)	15 October 2018	15 January 2019
Seychelles (ratification)	27 September 1989	3 February 2000
Sierra Leone (accession)	26 July 2001	26 October 2001
Singapore (accession)	18 August 1999	3 February 2000
Slovakia (succession)	1 January 1993	3 February 2000
Slovenia (accession)	3 June 1999	3 February 2000
Solomon Islands (accession)	27 November 2025	27 February 2026
Spain (accession)	7 July 1993	3 February 2000
Sri Lanka (accession)	8 March 2024	8 June 2024
Sweden (ratification)	4 February 1993	3 February 2000
Thailand (accession)	25 March 2025	25 June 2025

Togo (accession)	17 May 2022	17 August 2022
Tonga (accession)	15 June 2000	15 September 2000
Trinidad and Tobago (accession)	7 June 2012	7 September 2012
Tunisia (accession)	13 January 1999	3 February 2000
Türkiye (accession)	4 June 2008	4 September 2008
Turkmenistan (accession)	3 June 2025	3 September 2025
Tuvalu (accession)	8 July 2004	8 October 2004
Ukraine (accession)	5 December 2018	5 March 2019
Uruguay (accession)	12 July 2023	12 October 2023
United Arab Emirates (accession)	27 September 2017	27 December 2017
United Kingdom (accession)[3]	8 March 2000	8 June 2000
United States (ratification)	1 July 1991	3 February 2000
Vanuatu (accession)	26 November 1990	3 February 2000
Venezuela (Bolivarian Republic of) (accession)	18 November 1998	3 February 2000
Viet Nam (accession)	27 May 2002	27 August 2002
Yemen (accession)	11 January 2012	11 April 2012

Number of Contracting States: 129

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[1] Acceptance by the Netherlands was declared to be effective in respect of the Netherlands Antilles* and Aruba.

* The Netherlands Antilles has ceased to exist as an autonomous country within the Kingdom of the Netherlands with effect from 10 October 2010. Since that date, the Kingdom of the Netherlands consists of four autonomous countries: The Netherlands (European part and Caribbean part), Aruba, Curaçao and Sint Maarten. For more details see footnote 4, in section II of SOLAS 1974.

The Protocol applies as follows:

	Effective from
The Netherlands (European part))	3 February 2000
Caribbean part of the Netherlands)	10 October 2010
Aruba)	3 February 2000
Curaçao)	10 October 2010
Sint Maarten)	10 October 2010

[2] China declared that the Protocol would be effective in respect of the Hong Kong Special Administrative Region (HKSAR) with effect from 23 October 2002, and to the Macao Special Administrative Region with effect from 11 October 2010.

[3] The United Kingdom declared that the Protocol would be effective in respect of:

Bermuda)	
Cayman Islands)	
Gibraltar)	with effect from 30 January 2004
Isle of Man)	
Bailiwick of Jersey)	
Falkland Islands*)	with effect from 19 May 2004
British Virgin Islands)	
St. Helena)	with effect from 10 June 2004
Turks and Caicos Islands)	with effect from 7 July 2004.

* A dispute exists between the Governments of Argentina and the United Kingdom of Great Britain and Northern Ireland concerning sovereignty over the Falkland Islands (Malvinas). The Secretary-General received a communication from the Embassy of the Argentine Republic, dated 18 February 2014, informing him that the Argentine Government objects and rejects the extension, by the UK Government, of the application of the Protocol to the Falkland Islands (Malvinas Islands). The full text of the communication is contained in Circular Letter No.3439

III. Amendments

(1) 2003 (Annex B) Amendments (MSC.143(77))

A. Adoption

The Maritime Safety Committee, at its seventy-seventh session (June 2003) adopted, by resolution MSC.143(77), in accordance with paragraph 2(d) of article VI of the 1988 Load Lines Protocol, amendments to Annex B to the 1988 Load Lines Protocol.

B. Entry into force

In accordance with paragraph 2 (f)(ii)(bb) of article VI of the 1988 Load Lines Protocol, and as determined by the Maritime Safety Committee, the amendments shall enter into force on 1 January 2005, unless, prior to 1 July 2004, more than one-third of the Parties to the 1988 Load Lines Protocol, or Parties the combined merchant fleets of which constitute more than fifty per cent of the gross tonnage of all the merchant fleets of the Parties, have notified their objection to the amendments. No such notification was received, and the amendments therefore entered into force on 1 January 2005.

(2) 2004 (Annex B) Amendments (MSC.172(79))

A. Adoption

The Maritime Safety Committee, at its seventy-ninth session (December 2004) adopted, by resolution MSC.172(79), in accordance with paragraph 2(d) of article VI of the 1988 Load Lines Protocol, amendments to Annex B to the 1988 Load Lines Protocol.

B. Entry into force

In accordance with paragraph 2 (f)(ii)(bb) of article VI of the 1988 Load Lines Protocol, and as determined by the Maritime Safety Committee, the amendments shall enter into force on 1 July 2006, unless, prior to 1 January 2006, more than one-third of the Parties to the 1988 Load Lines Protocol or Parties, the combined merchant fleets of which constitute more than fifty per cent of the gross tonnage of the world's merchant fleet, have notified their objection to the amendments. As at 31 December 2005, no such notification was received, and the amendments accordingly entered into force on 1 July 2006.

(3) 2006 (Annex B) Amendments (MSC.223(82))

A. Adoption

The Maritime Safety Committee, at its eighty-second session (December 2006) adopted, by resolution MSC.223(82), in accordance with paragraph 2(d) of article VI of the 1988 Load Lines Protocol, amendments to Annex B to the 1988 Load Lines Protocol.

B. Entry into force

In accordance with paragraph 2 (f)(ii)(bb) of article VI of the 1988 Load Lines Protocol, and as determined by the Maritime Safety Committee, the amendments shall enter into force on 1 July 2008, unless, prior to 1 January 2008, more than one-third of the Parties to the 1988 Load Lines Protocol or Parties, the combined merchant fleets of which constitute more than fifty per cent of the gross tonnage of the world's merchant fleet, have notified their objection to the amendments. No such objection was received, and the amendments accordingly entered into force on 1 July 2008.

(4) 2008 (Annex B) Amendments (MSC.270(85))

A. Adoption

The Maritime Safety Committee, at its eighty-fifth session (December 2008) adopted, by resolution MSC.270(85), in accordance with paragraph 2(d) of article VI of the 1988 Load Lines Protocol, amendments to Annex B to the 1988 Load Lines Protocol.

B. Entry into force

In accordance with paragraph 2 (f)(ii)(bb) of article VI of the 1988 Load Lines Protocol, and as determined by the Maritime Safety Committee, the amendments shall enter into force on 1 July 2010, unless, prior to 1 January 2010, more than one-third of the Parties to the 1988 Load Lines Protocol or Parties, the combined merchant fleets of which constitute more than fifty per cent of the gross tonnage of the world's merchant fleet, have notified their objection to the amendments. As at 1 January 2010, one objection[1] had been received, and accordingly, the amendments entered into force on 1 July 2010.

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[1] The depositary received, on 23 December 2009, the following communication from the Embassy of Finland: "The Embassy hereby informs that, at this stage, the Government of Finland is not able to accept the amendments to the 1988 Load Lines Protocol."

(5) 2012 (Annex B) Amendments (MSC.329(90))

A. Adoption

The Maritime Safety Committee, at its ninetieth session (May 2012) adopted, by resolution MSC. 329(90), in accordance with paragraph 2(d) of article VI of the 1988 Load Lines Protocol, amendments to Annex B to the 1988 Load Lines Protocol.

B. Entry into force

In accordance with paragraph 2 (f)(ii)(bb) of article VI of the 1988 Load Lines Protocol, and as determined by the Maritime Safety Committee, the amendments shall enter into force on 1 January 2014, unless, prior to 1 July 2013, more than one-third of the Parties to the 1988 Load Lines Protocol or Parties, the combined merchant fleets of which constitute more than fifty per cent of the gross tonnage of the world's merchant fleet, have notified their objection to the amendments. As at 1 July 2013, no objection had been received, and the amendments accordingly entered into force on 1 January 2014.

(6) 2012 (Annex B) Amendments (MSC.345(91))

A. Adoption

The Maritime Safety Committee, at its ninety-first session (November 2012) adopted, by resolution MSC.345(91), in accordance with article with paragraph 2(d) of article VI of the 1988 Load Lines Protocol, amendments to Annex B of the 1988 Load Lines Protocol.

B. Entry into force

In accordance with paragraph 2(f)(ii)(bb) of article VI of the 1988 Load Lines Protocol, and as determined by the Maritime Safety Committee, the amendments shall be deemed to have been accepted on 1 January 2014 and shall enter into force on 1 July 2014 unless, prior to 1 January 2014, more than one third of the Parties to the 1988 Load Lines Protocol or Parties the combined merchant fleets of which constitute not less than 50% of the gross tonnage of the world's merchant fleet, have notified their objections to the amendments. As at 1 January 2014, no objection had been received, and the amendments accordingly entered into force on 1 July 2014.

(7) 2013 (Annex B) Amendments (MSC.356(92))

A. Adoption

The Maritime Safety Committee, at its ninety-second session (June 2013) adopted, by resolution MSC.356(92), in accordance with article with paragraph 2(d) of article VI of the 1988 Load Lines Protocol, amendments to Annex B of the 1988 Load Lines Protocol.

B. Entry into force

In accordance with paragraph 2(f)(ii)(bb) of article VI of the 1988 Load Lines Protocol, and as determined by the Maritime Safety Committee, the amendments shall be deemed to have been accepted on 1 July 2014 and shall enter into force on 1 January 2015 unless, prior to 1 July 2014, more than one third of the Parties to the 1988 Load Lines Protocol or Parties the combined merchant fleets of which constitute not less than 50% of the gross tonnage of the world's merchant fleet, have notified their objections to the amendments. As at 1 July 2014, one objection[2] had been received, and the amendments accordingly entered into force on 1 January 2015.

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[2] The depositary received, on 20 June 2014, the following communication from the Embassy of Finland:
"… due to European Commission conformity checking procedure, Finland is obliged to object to the amendments (MSC.356(92)).
The depositary received, on 31 December 2015, a further communication from the Embassy of Finland:
"... the Government of Finland has fulfilled the national procedural requirements for entering into force of the amendments (MSC.356(92)) on 1 January 2015 and can thus withdraw its objection."

(8) 2014 (Annex B) Amendments (to make the use of the III Code mandatory) (MSC.375(93))

A. Adoption

The Maritime Safety Committee, at its ninety-third session (May 2014) adopted, by resolution MSC.378(93), in accordance with article with paragraph 2(d) of article VI of the 1988 Load Lines Protocol, amendments to Annex B of the 1988 Load Lines Protocol.

B. Entry into force

In accordance with paragraph 2(f)(ii)(bb) of article VI of the 1988 Load Lines Protocol, and as determined by the Maritime Safety Committee, the amendments shall be deemed to have been accepted on 1 July 2015 and shall enter into force on 1 January 2016 unless, prior to 1 July 2015, more than one third of the Parties to the 1988 Load Lines Protocol or Parties the combined merchant fleets of which constitute not less than 50% of the gross tonnage of the world's merchant fleet, have notified their objections to the amendments. As at 1 July 2015, one objection[1] had been received and accordingly the amendments entered into force on 1 January 2016.

_____

[1] The depositary received, on 26 May 2015, a communication from the Embassy of Finland that due to national procedural requirements, Finland is obliged to object to these amendments.
The depositary received, on 29 December 2017, a further communication from the Embassy of Finland as follows: “The Embassy has the honour hereby to inform the Secretary-General that the Government of Finland has fulfilled the national procedural requirements for the entry into force of the aforementioned amendments and can thus withdraw its objection.”

(9) 2016 (2008 IS Code) amendments (MSC.414(97))

A. Adoption

The Maritime Safety Committee at its ninety-seventh session (November 2016) adopted, by resolution (MSC.414(97)), in accordance with article with paragraph 2(d) of article VI of the 1988 Load Lines Protocol, amendments to the introduction and Part A of the International Code on Intact Stability, 2008.

B. Entry into force

In accordance with paragraph 2(f)(ii)(bb) of article VI of the 1988 Load Lines Protocol, and as determined by the Maritime Safety Committee, the amendments shall be deemed to have been accepted on 1 July 2019 and shall enter into force on 1 January 2020 unless, prior to 1 July 2019, more than one third of the Parties to the 1988 Load Lines Protocol or Parties the combined merchant fleets of which constitute not less than 50% of the gross tonnage of the world's merchant fleet, have notified their objections to the amendments. As at 1 July 2019, no objection had been received and the amendments accordingly entered into force on 1 January 2020.

(10) 2018 (2008 IS Code) amendments (MSC.444(99))

A. Adoption

The Maritime Safety Committee at its ninety-seventh session (May 2018) adopted, by resolution (MSC.444(99)), in accordance with article with paragraph 2(d) of article VI of the 1988 Load Lines Protocol, amendments to Part A of the International Code on Intact Stability, 2008.

B. Entry into force

In accordance with paragraph 2(f)(ii)(bb) of article VI of the 1988 Load Lines Protocol, and as determined by the Maritime Safety Committee, the amendments shall be deemed to have been accepted on 1 July 2019 and shall enter into force on 1 January 2020 unless, prior to 1 July 2019, more than one third of the Parties to the 1988 Load Lines Protocol or Parties the combined merchant fleets of which constitute not less than 50% of the gross tonnage of the

world's merchant fleet, have notified their objections to the amendments. As at 1 July 2019, no objection had been received and the amendments accordingly entered into force on 1 January 2020.

(11) 2021 (Annex B) amendments (MSC.491(104))

A. Adoption

The Maritime Safety Committee at its 104th session (October 2021) adopted, by resolution MSC.491(104), in accordance with article with paragraph 2(d) of article VI of the 1988 Load Lines Protocol, amendments to Annex B.

B. Entry into force

In accordance with paragraph 2(f)(ii)(bb) of article VI of the 1988 Load Lines Protocol, and as determined by the Maritime Safety Committee, the amendments shall be deemed to have been accepted on 1 July 2023 and shall enter into force on 1 January 2024 unless, prior to 1 July 2023, more than one third of the Parties to the 1988 Load Lines Protocol or Parties the combined merchant fleets of which constitute not less than 50% of the gross tonnage of the world's merchant fleet, have notified their objections to the amendments. No such notification was received and the amendments accordingly entered into force on 1 January 2024.

(12) 2026 (Annex B) amendments (MSC.591(111))

A. Adoption

The Maritime Safety Committee at its 111th session (May 2026) adopted, by resolution (MSC.591(111), in accordance with article with paragraph 2(d) of article VI of the 1988 Load Lines Protocol, amendments to Annex B.

B. Entry into force

In accordance with paragraph 2(f)(ii)(bb) of article VI of the 1988 Load Lines Protocol, and as determined by the Maritime Safety Committee, the amendments shall be deemed to have been accepted on 1 July 2027 and shall enter into force on 1 January 2028 unless, prior to 1 July 2027, more than one third of the Parties to the 1988 Load Lines Protocol or Parties the combined merchant fleets of which constitute not less than 50% of the gross tonnage of the world's merchant fleet, have notified their objections to the amendments.

INTERNATIONAL CONVENTION ON TONNAGE MEASUREMENT OF SHIPS, 1969 (TONNAGE 1969)

Done at London, 23 June l969

Entry into force: 18 July l982

Signature, acceptance and accession

Article 16

(1) The present Convention shall remain open for signature for six months from 23 June l969, and shall thereafter remain open for accession. Governments of States Members of the United Nations, or of any of the Specialized Agencies, or of the International Atomic Energy Agency, or parties to the Statute of the International Court of Justice may become parties to the Convention by:

(a) signature without reservation as to acceptance;

(b) signature subject to acceptance followed by acceptance; or

(c) accession.

(2) Acceptance or accession shall be effected by the deposit of an instrument of acceptance or accession with the Organization ...

Entry into force

Article l7

(1) The present Convention shall come into force twenty-four months after the date on which not less than twenty-five Governments of States the combined merchant fleets of which constitute not less than sixty-five per cent of the gross tonnage of the world's merchant shipping have signed without reservation as to acceptance or deposited instruments of acceptance or accession in accordance with article 16....

(2) For Governments which have deposited an instrument of acceptance of or accession to the present Convention during the twenty-four months mentioned in paragraph (1) of this article, the acceptance or accession shall take effect on the coming into force of the present Convention or three months after the date of deposit of the instrument of acceptance or accession, whichever is the later date.

(3) For Governments which have deposited an instrument of acceptance of or accession to the present Convention after the date on which it comes into force, the Convention shall come into force three months after the date of the deposit of such instrument.

I. Signatories

II. Contracting States

III. Declarations, Reservations and Statements

IV. Amendments

I. Signatories

Argentina	*[Translation]* Subject to acceptance
Belgium	Sous réserve d'approbation Subject to acceptance
Bulgaria	Subject to ratification
Canada	Subject to acceptance
Denmark	Subject to acceptance
Egypt	Subject to ratification (acceptance) with declaration: "The Government of the UAR register the following reservation: The signing of this Convention does not prejudice in any way the full application of the Suez Tonnage Rules for the ships using the Suez Canal."
Finland	Subject to acceptance
France	Sous réserve d'approbation ultérieure
Germany, Federal Republic of	Subject to acceptance
Ghana	Subject to acceptance
Greece	Subject to acceptance
Iceland	Subject to acceptance
Indonesia	Subject to acceptance
Ireland	Subject to acceptance
Israel	Subject to acceptance
Italy	Sous réserve d'acceptation
Japan	Subject to acceptance
Kuwait	Subject to acceptance
Liberia	Subject to acceptance
Madagascar	Sous réserve d'acceptation
Mexico	Ad referendum
Netherlands	Subject to acceptance
Norway	Subject to acceptance
Pakistan	Subject to acceptance
Philippines	Subject to acceptance
Poland	Subject to acceptance
Portugal	Subject to acceptance
Republic of Korea	Subject to acceptance
Spain	Subject to acceptance
Sweden	Subject to acceptance
Switzerland	Sous réserve de ratification (d'approbation)
USSR	*[Translation]* Subject to acceptance
United Kingdom	Subject to acceptance
United States	Subject to acceptance
Venezuela (Bolivarian Republic of)	Subject to acceptance
Yugoslavia	Sous réserve d'approbation

I. Contracting States

	Date of deposit of instrument or succession	Date of entry into force
Albania (accession)	3 April 2003	3 July 2003
Algeria (accession)	4 October l976	18 July l982
Angola (accession)	4 October 2001	4 January 2002
Antigua and Barbuda (accession)	3 March 1987	3 June 1987
Argentina (acceptance)	24 January l979	18 July l982
Australia (accession)	21 May l982	21 August l982
Austria (accession)	7 October l975	18 July l982
Azerbaijan (accession)	1 July 1997	1 October 1997
Bahamas (accession)	22 July l976	18 July l982
Bahrain (accession)	21 October 1985	21 January 1986
Bangladesh (accession)	6 November l981	18 July l982
Barbados (accession)	1 September l982	1 December l982
Belarus (accession)	4 October 2019	4 January 2020
Belgium (acceptance)	2 June l975	18 July l982
Belize (accession)	9 April 1991	9 July 1991
Benin (accession)	1 November 1985	1 February 1986
Bolivia (Plurinational State of) (accession)	4 June 1999	4 September 1999
Bosnia and Herzegovina	8 May 2018	8 August 2018
Brazil (acceptance)	30 November l970	18 July l982
Brunei Darussalam (accession)	23 October 1986	23 January 1987
Bulgaria (acceptance)[1]	14 October l982	14 January l983
Cambodia (accession)	28 November 1994	28 February 1995
Canada (acceptance)	18 July 1994	18 October 1994
Cabo Verde (accession)	4 July 2003	4 October 2003
Chile (accession)[1]	22 November l982	22 February l983
China (accession)[1, 3]	8 April l980	18 July 1982
Colombia (accession)	16 June l976	18 July 1982
Congo (accession)	7 August 2002	7 November 2002
Comoros (accession)	22 November 2000	22 February 2001
Cook Islands (accession)	21 December 2001	21 March 2002
Costa Rica (accession)	27 May 2009	27 August 2009
Côte d'Ivoire (accession)	5 October 1987	5 January 1988
Croatia (succession)	-	8 October 1991
Cuba (accession)[1]	9 November l982	9 February l983
Cyprus (accession)	9 May 1986	9 August 1986
Czechia (succession)[1]	-	1 January 1993
Democratic People's Republic of Korea (accession)	18 October 1989	18 January 1990
Denmark (acceptance)[1]	22 June l982	22 September l982
Djibouti (accession)	12 October 2015	12 January 2016
Dominica (accession)	21 June 2000	21 September 2000
Ecuador (accession)	21 September 1995	21 December 1995
El Salvador (accession)	25 April 1997	25 July 1997
Equatorial Guinea (accession)	24 April 1996	24 July 1996
Eritrea (accession)	22 April 1996	22 July 1996
Estonia (accession)	16 December 1991	16 March 1992
Ethiopia (accession)	18 July 1985	18 October 1985
Fiji (accession)	29 November l972	18 July l982
Finland (acceptance)	6 February l973	18 July 1982
France (acceptance)[1]	31 October l980	18 July 1982
Gabon (accession)	12 April 2005	12 July 2005
Gambia (accession)	1 November 1991	1 February 1992
Georgia (accession)	19 April 1994	19 July 1994
Germany (acceptance)[1, 4]	7 May l975	18 July 1982
Ghana (acceptance)	13 December l973	18 July 1982
Greece (acceptance)	19 August l983	19 November l983
Grenada (accession)	28 June 2004	28 September 2004
Guatemala (accession)	20 February 2008	20 May 2008
Guinea (accession)	19 January l98l	18 July l982
Guinea-Bissau (accession)	12 May 2022	12 August 2022
Guyana (accession)	10 December 1997	10 March 1998
Haiti (accession)	6 April 1989	6 July 1989

Honduras (accession)	2 December 1998	2 March 1999
Hungary (accession)[1]	23 May l975	18 July 1982
Iceland (acceptance)	17 June l970	18 July 1982
India (accession)	26 May l977	18 July 1982
Indonesia (acceptance)	14 March 1989	14 June 1989
Iran (Islamic Republic of) (accession)	28 December l973	18 July 1982
Iraq (accession)	29 August l972	18 July 1982
Ireland (acceptance)	11 April 1985	11 July 1985
Israel (acceptance)	13 February l975	18 July 1982
Italy (acceptance)	10 September l974	18 July 1982
Jamaica (accession)	8 September 2000	8 December 2000
Japan (acceptance)	17 July l980	18 July 1982
Jordan (accession)	3 October 1995	3 January 1996
Kazakhstan (accession)	7 March 1994	7 June 1994
Kenya (accession)	15 December 1992	15 March 1993
Kiribati (accession)	5 February 2007	5 May 2007
Kuwait (acceptance)	2 March l983	2 June l983
Latvia (accession)	11 May 1998	11 August 1998
Lebanon (accession)	16 December 1994	16 March 1995
Liberia (acceptance)	25 September l972	18 July l982
Libya (accession)	28 April 2005	28 July 2005
Lithuania (accession)	4 December 1991	4 March 1992
Luxembourg (accession)	14 February 1991	14 May 1991
Madagascar (acceptance)	27 July 2017	27 October 2017
Malaysia (acceptance)	24 April l984	24 July l984
Maldives (accession)	2 June l983	2 September l983
Malta (accession)	20 March 1989	20 June 1989
Marshall Islands (accession)	25 April 1989	25 July 1989
Mauritania (accession)	24 November 1997	24 February 1998
Mauritius (accession)	11 October 1988	11 January 1989
Mexico (acceptance)	14 July 1972	18 July 1982
Moldova (accession)	11 October 2005	11 January 2006
Monaco (accession)	19 January l97l	18 July 1982
Mongolia (accession)	26 June 2002	26 September 2002
Montenegro (succession)[8, 9]	-	3 June 2006
Morocco (accession)	28 June 1990	28 September 1990
Mozambique (accession)	30 October 1991	30 January 1992
Myanmar (accession)	4 May 1988	4 August 1988
Namibia (accession)	27 November 2000	27 February 2001
Nauru (accession)	18 June 2018	18 September 2018
Netherlands (acceptance)[2]	16 June l981	18 July 1982
New Zealand (accession)[5]	6 January l978	18 July 1982
Nicaragua (accession)	2 February 1994	2 May 1994
Nigeria (accession)	13 November l984	13 February l985
Niue (accession)	18 May 2012	18 August 2012
Norway (acceptance)	26 August l97l	18 July l982
Oman (accession)	24 September 1990	24 December 1990
Pakistan (acceptance)	17 October 1994	17 January 1995
Palau (accession)	29 September 2011	29 December 2011
Panama (accession)	9 March l978	18 July 1982
Papua New Guinea (accession)	25 October 1993	25 January 1994
Peru (accession)	16 July l982	16 October l982
Philippines (acceptance)	6 September l978	18 July l982
Poland (acceptance)	27 July l976	18 July 1982
Portugal (acceptance)[3]	1 June 1987	1 September 1987
Qatar (accession)	3 February 1986	3 May 1986
Republic of Korea (acceptance)	18 January l980	18 July 1982
Romania (accession)[1]	21 May l976	18 July 1982
Russian Federation (acceptance)[1, 6]	20 November l969	18 July 1982
Saint Kitts and Nevis (accession)	11 June 2004	11 September 2004
Saint Lucia (accession)	20 May 2004	20 August 2004
Saint Vincent and the Grenadines (accession)	28 October l983	28 January l984
Samoa (accession)	18 May 2004	18 August 2004
San Marino (accession)	19 April 2021	19 July 2021
São Tomé and Principe (accession)	29 October 1998	29 January 1999
Saudi Arabia (accession)	20 January l975	18 July l982

	Date of deposit of instrument or succession	Date of entry into force
Senegal (accession)	16 January 1997	16 April 1997
Serbia (succession)[8, 9]	-	3 June 2006
Seychelles (accession)	17 July 2017	17 October 2017
Sierra Leone (accession)	26 July 2001	26 October 2001
Singapore (accession)	6 June 1985	6 September 1985
Slovakia (succession)	-	1 January 1993
Slovenia (succession)	-	25 June 1991
Solomon Islands (accession)	30 June 2004	30 September 2004
Somalia (accession)	26 June 2026	26 September 2026
South Africa (accession)	24 November l982	24 February l983
Spain (acceptance)	6 November l972	18 July l982
Sri Lanka (accession)	11 March 1992	11 June 1992
Sudan (accession)	21 May 2002	21 August 2002
Sweden (acceptance)	11 May l979	18 July 1982
Switzerland (acceptance)	21 June l977	18 July 1982
Syrian Arab Republic (accession)[1]	6 February l975	18 July 1982
Thailand (accession)	11 June 1996	11 September 1996
Togo (accession)	19 July 1989	19 October 1989
Tonga (accession)	12 April l977	18 July 1982
Trinidad and Tobago (accession)	15 February l979	18 July 1982
Tunisia (accession)	13 January 1999	13 April 1999
Türkiye (accession)	16 May l980	18 July 1982
Turkmenistan (accession)	4 February 2009	4 May 2009
Tuvalu (accession)	22 August 1985	22 November 1985
Ukraine (accession)	25 October 1993	25 January 1994
United Arab Emirates (accession)	15 December l983	15 March l984
United Kingdom (acceptance)[7]	8 January l97l	18 July l982
United Republic of Tanzania (accession)	28 March 2001	28 June 2001
United States (acceptance)[1]	10 November l982	10 February l983
Uruguay (accession)	3 February 1989	3 May 1989
Vanuatu (accession)	13 January 1989	13 April 1989
Venezuela (Bolivarian Republic of) (acceptance)	6 July l983	6 October l983
Viet Nam (accession)	18 December 1990	18 March 1991
Yemen (accession)	6 March l979	18 July l982

Number of Contracting States: 161

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[1] For the text of a declaration, reservation, statement or understanding, see section III.

[2] The Convention was extended by the Netherlands to:

Netherlands Antilles♣	16 June l98l	18 July 1982
Aruba (with effect from 1 January 1986)	-	-

♣ The Netherlands Antilles has ceased to exist as an autonomous country within the Kingdom of the Netherlands with effect from 10 October 2010. Since that date, the Kingdom of the Netherlands consists of four autonomous countries: The Netherlands (European part and Caribbean part), Aruba, Curaçao and Sint Maarten. For more details see footnote 4, in section II of SOLAS 1974.. The Protocol applies as follows:

		Effective from
The Netherlands (European part)	)	18 July 1982
Caribbean part of the Netherlands	)	10 October 2010
Aruba	)	1 January 1986
Curaçao	)	10 October 2010
Sint Maarten	)	10 October 2010

[3] Applies to the Hong Kong Special Administrative Region with effect from 1 July 1997, and to the Macao Special Administrative Region with effect from 18 July 2005.

[Footnotes continued]

[5] Accession by New Zealand was declared not to extend to the Cook Islands, Niue and Tokelau.

[6] As from 26 December 1991 the membership of the USSR in the Convention is continued by the Russian Federation.

[7] The Convention has been extended by the United Kingdom to:

Hong Kong*	16 January l981	18 July l982
Bermuda	11 November l982	6 December l982
British Virgin Islands	15 September 2009	15 September 2009
Isle of Man	11 October l984	19 October l984
Cayman Islands	9 May 1988	23 June 1988
Gibraltar	7 December 1988	1 December 1988
Guernsey	30 December 1988	1 January 1989
Jersey	24 October 2005	24 October 2005
Falkland Islands**	16 June 1995	16 June 1995
Macau***	19 November 1999	19 November 1999

* Ceased to apply to Hong Kong with effect from 1 July 1997.

** The depositary received, on 11 August 1995, the following communication from His Excellency the Ambassador Extraordinary and Plenipotentiary, Embassy of the Argentine Republic, London:

[Translation]

> "The Argentine Republic rejects the statement by the United Kingdom of Great Britain and Northern Ireland in connection with the International Convention on Tonnage Measurement of Ships, 1969, to the effect that the provisions of the Convention shall apply to the Malvinas Islands, South Georgia Islands and South Sandwich Islands "with immediate effect". The Argentine Republic reaffirms its sovereignty over these islands and the surrounding maritime spaces, which constitute an integral part of its national territory.
>
> The Argentine Republic recalls the adoption, by the General Assembly of the United Nations, of resolutions 2065(XX), 3160(XXVIII), 31/49, 37/9, 38/12, 39/6, 40/21, 42/19 and 43/25, acknowledging the existence of a dispute concerning sovereignty and urging the Governments of the Argentine Republic and of the United Kingdom of Great Britain and Northern Ireland to enter into negotiations with a view to identifying means of pacific and final settlement of the outstanding problems between the two countries, including all matters concerning the future of the Malvinas Islands, in accordance with the Charter of the United Nations."

The depositary received the following communication, dated 17 January 1996, from the Foreign and Commonwealth Office, London:

> "The Government of the United Kingdom of Great Britain and Northern Ireland have noted the declaration of the Government of Argentina regarding the extension by the United Kingdom of the application of the Convention to the Falkland Islands and to South Georgia and the South Sandwich Islands.
>
> The British Government have no doubt about the sovereignty of the United Kingdom over the Falkland Islands and over South Georgia and the South Sandwich Islands and their consequential right to defend the said Convention to these Territories. The British Government reject as unfounded the claims by the Government of Argentina."

*** Ceased to apply to Macau with effect from 20 December 1999.

[8] As from 4 February 2003, the name of the State of the Federal Republic of Yugoslavia was changed to Serbia and Montenegro. The date of succession by Serbia and Montenegro to the Convention is the date on which the Federal Republic of Yugoslavia assumed responsibility for its international relations.

[9] Following the dissolution of the State Union of Serbia and Montenegro on 3 June 2006, all Treaty actions undertaken by Serbia and Montenegro continue to be in force with respect to Republic of Serbia. Montenegro has informed that it wished to succeed to this treaty with effect from the same date, ie. 3 June 2006.

III. Declarations, Reservations and Statements

BULGARIA

The instrument of acceptance of the People's Republic of Bulgaria contained the following declarations:

[Translation]

"(a) The People's Republic of Bulgaria declares that the provisions of article 16 of the Convention are in contradiction with the principle of sovereign equality of States and are not in line with the internationally adopted practice of concluding international treaties of universal significance;

"(b) The People's Republic of Bulgaria declares that the provisions of article 20 of the Convention concerning its application by the States Parties on the territories of the international relations of which they are responsible, do not correspond to the Declaration of the United Nations General Assembly
on Granting Independence to Colonial Countries and People's (resolution 1514(XV)) of December 14, 1960."

CHILE

The instrument of accession of the Republic of Chile contained the following reservation (in the Spanish language):

[Translation]

"… amendments referred to in article 18 of the Convention shall not be binding on Chile until such time as it has brought into operation the internal procedure established by the Political Constitution of the Republic for the approval of international treaties".

CHINA

The instrument of accession of the People's Republic of China contains the following declaration:

[Translation]

"[The Government of the People's Republic of China] wish to declare illegal and null and void the signing of the Convention by the Authorities in Taiwan in the name of China."

CUBA

The instrument of accession of the Republic of Cuba contained the following declarations (in the Spanish language):

[Translation]

"The Government of the Republic of Cuba considers that the provisions contained in article 2(3), article 3(1)(b) and article 20 of the Convention, to the extent that they accept that the international relations of any territory may be the responsibility of another Government, are not applicable in that respect because they are contrary to the Declaration on the Granting of Independence to Colonial Countries and Peoples (resolution 1514 adopted by the General Assembly of the United Nations on 14 December l960), which proclaims the necessity of bringing to a speedy and unconditional end colonialism in all its forms and manifestations.

"The Government of the Republic of Cuba considers that article 16(1) of the Convention, despite the fact that its provisions deal with questions of interest for all States, is of a discriminatory nature in that it withholds from a number of States the right of signature and accession, which is contrary to the principle of universality."

CZECHIA

The instrument of accession of the Czechoslovak Socialist Republic was accompanied by the following declaration (in the English language):

> "Acceding to the International Convention on Tonnage Measurement of Ships, the Government of the Czechoslovak Socialist Republic wished to declare that article 16 of the Convention is at variance with the generally recognized principle of sovereign equality of States, and article 20 with the Declaration on the Granting of Independence to Colonial Countries and Peoples, adopted at the XVth session of the United Nations General Assembly on 14 December l960."

Czechia and Slovakia, as successor States to the Czech and Slovak Federal Republic, consider themselves bound by the multilateral international treaties to which the Czech and Slovak Federal Republic was a party, as of 1 January 1993, including reservations and declarations made earlier by the Czech and Slovak Federal Republic.

By a communication dated 13 June 1995 the depositary was notified that Czechia, which is a Party to the above-mentioned Convention by virtue of its succession to the former Czechoslovakia, considers henceforth the declaration pertaining to articles 16 and 20 which accompanied the instrument of accession of the Czechoslovak Socialist Republic as obsolete and having lost any relevance.

DENMARK

The instrument of acceptance of the Kingdom of Denmark was accompanied by the following declaration:

> "Even though the Convention has not yet entered into force for Denmark the Danish Government will apply the provisions of the Convention already as of July l8, l982, insofar as regards both Danish ships and ships of States for which the Convention will enter into force on July 18, l982 or at any date between the said date and the date of the formal entry into force of the Convention for Denmark."

FRANCE

The instrument of acceptance of the French Republic contained the following reservation (in the French language):

[Translation]

> "the French Government will not accept any invocation against it of a decision taken under the provisions of article 18(3)(d)."

GERMAN DEMOCRATIC REPUBLIC

The instrument of accession of the German Democratic Republic was accompanied by the following declarations (in the German language):

[Translation]

> "The Government of the German Democratic Republic considers that the provisions of article 16 of the Convention are inconsistent with the principle that all States pursuing their policies in accordance with the purpose and principles of the Charter of the United Nations shall have the right to become parties to conventions affecting the interests of all States."

> "The position of the Government of the German Democratic Republic on article 20 of the Convention, as far as the application of the Convention to colonial and other dependent territories is concerned, is governed by the provisions of the United Nations Declaration on the Granting of Independence to Colonial Countries and Peoples (resolution 1514(XV) of 14 December l960) proclaiming the necessity of bringing to a speedy and unconditional end colonialism in all its forms and manifestations."

FEDERAL REPUBLIC OF GERMANY

The instrument of acceptance of the Federal Republic of Germany was accompanied by a declaration (in the English language) that:

"with effect from the day on which the Convention enters into force for the Federal Republic of Germany, it shall also apply to Berlin (West)."

HUNGARY

The instrument of accession of the Hungarian People's Republic included the following statement:

[Translation]

"The Presidential Council of the Hungarian People's Republic declares that the terms contained in article 2, paragraph (3) and article 20 of the Convention concerning the extension of the validity of the Convention to territories for the international relations of which the Contracting Governments are responsible, are incompatible with the Declaration of the United Nations General Assembly of December 14, l960 on the Granting of Independence to Colonial Countries and Peoples."

ROMANIA

The instrument of accession of the Socialist Republic of Romania was accompanied by the following statement (in the French language):

[Translation]

"(a) The Socialist Republic of Romania considers that the provisions of article 16 of the International Convention on Tonnage Measurement of Ships are not in accord with the principle whereby multilateral international treaties, the purposes of which are of concern to the international community as a whole, should be open to universal participation.

"(b) The Socialist Republic of Romania considers that the maintenance in a state of dependency of certain territories, to which the provisions of article 2(3) and article 20 of the International Convention on Tonnage Measurement of Ships refer, is inconsistent with the Charter of the United Nations and with the texts adopted by the United Nations regarding the granting of independence to colonial countries and peoples, including the Declaration relative to the principles of international law concerning friendly relations and co-operation between States in accordance with the Charter of the United Nations unanimously adopted in l970 by the General Assembly of the United Nations by resolution 2625(XXV), which solemnly proclaims the duties of States to encourage the achievement of the principle of the equality of the rights of peoples and their right to self-determination with a view to bringing colonialism to a speedy end."

SYRIAN ARAB REPUBLIC[1]

The instrument of accession of the Syrian Arab Republic contains the following sentence (in the Arabic language):

[Translation]

"… this accession … to this Convention … in no way implies recognition of Israel and does not involve the establishment of any relations with Israel arising from the provisions of this Convention."

USSR

The instrument of acceptance of the Union of Soviet Socialist Republics contains the following statement (in the Russian language):

[Translation]

"The Government of the Union of Soviet Socialist Republics states that paragraph (1) of article 16 of the International Convention on Tonnage Measurement, l969, under which Governments of a number of States are deprived of the opportunity to become Parties to this Convention, is of a discriminatory nature and

believes that, in accordance with the principle of sovereign equality of States, the Convention should be open for participation to all the interested Parties without any discrimination or restrictions.

"The Government of the Soviet Union considers it necessary to state also that the provisions of article 2 (paragraph (3)) and article 20 of the Convention on the extension by the Contracting Parties of its application to the territories, for whose international relations they are responsible are incompatible with the Declaration of the General Assembly of the United Nations Organization on the granting of independence to colonial countries and peoples (resolution 1514(XV) of 14 December l960)."

UNITED STATES

"The instrument of acceptance of the United States of America contained the following understanding:

"That in the assessment of tolls for transit of the Panama Canal, the United States will continue to have the right to apply the present Panama Canal tonnage system or to adopt any other basis, in computing tonnages derived from volumes or other measures developed in connection with the said Convention."

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[1] The depositary received a communication dated 11 February l976 from the Chargé d'affaires ad interim, Embassy of Israel, London. The communication, the full text of which was circulated by the depositary, includes the following:

"This statement by the Government of the Syrian Arab Republic is a political one and it is the view of the Government of Israel that the [International Maritime Organization] and its Conventions are not the proper place for making such pronouncements. These pronouncements are, moreover in flagrant contradiction to the principles, objects and purposes of the Convention in question.

"The Government of Israel rejects the said statement as being devoid of any legal validity whatsoever and will proceed on the assumption that it cannot in any way affect the obligations incumbent on the Syrian Arab Republic under the above-mentioned Convention.

"The Government of Israel will, in so far as concerns the substance of the matter, towards the Government of the Syrian Arab Republic an attitude of complete reciprocity."

IV. Amendments

(1) 2013 Amendments (A.1084(28))

A. Adoption

On 4 December 2013 the Assembly adopted amendments to the Convention by resolution A.1084(28).

B. Entry into force[1]

The Assembly decided, in accordance with article 18(2)(b) of the Convention, that the amendments shall enter into force on 28 February 2017 after their acceptance by all Contracting Governments to the Convention by 28 February 2016. A Contracting Government which does not communicate its acceptance or rejection of the amendment to the Organization by 28 February 2016 shall be deemed to have accepted the amendments. As at 28 February 2016 no communication was received and, accordingly, the amendments entered into force on 28 February 2017.

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[1] For the determination of the date of entry force under unanimous acceptance please refer to circular TM.7/Circ.1. Should the amendments enter into force under unanimous acceptance, then the explicit acceptance becomes invalid.

INTERNATIONAL CONVENTION RELATING TO INTERVENTION ON THE HIGH SEAS IN CASES OF OIL POLLUTION CASUALTIES, 1969 (INTERVENTION 1969)

Done at Brussels, 29 November l969

Entry into force: 6 May l975

Signature, ratification, acceptance, approval, accession

Article IX

1. The present Convention shall remain open for signature until 31 December l970 and shall thereafter remain open for accession.

2. States Members of the United Nations or any of the Specialized Agencies or of the International Atomic Energy Agency or Parties to the Statute of the International Court of Justice may become Parties to this Convention by:

(a) signature without reservation as to ratification, acceptance or approval;

(b) signature subject to ratification, acceptance or approval followed by ratification, acceptance or approval; or

(c) accession.

Article X

1. Ratification, acceptance, approval or accession shall be effected by the deposit of a formal instrument to that effect with the Secretary-General of the Organization.

Entry into force

Article XI

1. The present Convention shall enter into force on the ninetieth day following the date on which Governments of fifteen States have either signed it without reservation as to ratification, acceptance or approval or have deposited instruments of ratification, acceptance, approval or accession with the Secretary-General of the Organization.

2. For each State which subsequently ratifies, accepts, approves or accedes to it the present Convention shall come into force on the ninetieth day after deposit by such State of the appropriate instrument.

I. Signatories

II. Contracting States

III. Declarations, Reservations and Statements

I. Signatories

Australia	Subject to ratification 17 December l970
Belgium	Sous réserve de ratification
Brazil	Subject to ratification
Cameroon	Sous réserve de ratification
Côte d'Ivoire	Sous réserve de ratification
Denmark	18 December l970
Dominican Republic	Subject to ratification
Finland	Subject to ratification 30 December l970
France	Sous réserve de ratification ou d'approbation ultérieure
Germany, Federal Republic of	Subject to ratification
Ghana	Subject to ratification
Greece	Subject to ratification
Guatemala	*[Translation]* Subject to acceptance approval and ratification
Iceland	Subject to ratification
Ireland	Subject to acceptance and ratification
Italy	Sous réserve de ratification
Japan	Subject to acceptance
Madagascar	Sous réserve de ratification
Monaco	Sous réserve de ratification
Netherlands	Subject to ratification
Panama	Subject to ratification
Poland	Subject to ratification
Portugal	Subject to ratification
Republic of Korea	Subject to acceptance
Romania	Subject to ratification 30 December l970
Spain	Subject to ratification
Sweden	Subject to acceptance
Switzerland	Sous réserve de ratification
United Kingdom	Subject to ratification
United States	Subject to ratification
Yugoslavia	Sous réserve de ratification

II. Contracting States

	Date of signature or deposit of instrument	Date of entry into force or succession
Algeria (accession)	21 November 2011	19 February 2012
Angola (accession)	4 October 2001	2 January 2002
Argentina (accession)[1]	21 April 1987	20 July 1987
Australia (ratification)[1]	7 November 1983	5 February 1984
Bahamas (accession)	22 July 1976	20 October 1976
Bangladesh (accession)	6 November 1981	4 February 1982
Barbados (accession)	6 May 1994	4 August 1994
Belgium (ratification)	21 October 1971	6 May 1975
Benin (accession)	1 November 1985	30 January 1986
Brazil (ratification)	18 January 2008	17 April 2008
Bulgaria (accession)[1]	2 November 1983	31 January 1984
Cameroon (ratification)	14 May 1984	12 August 1984
Chile (accession)	28 February 1995	29 May 1995
China (accession)[5]	23 February 1990	24 May 1990
Congo (accession)	19 May 2014	17 August 2014
Côte d'Ivoire (ratification)	8 January 1988	7 April 1988
Croatia (succession)	-	8 October 1991
Cuba (accession)[1]	5 May 1976	3 August 1976
Denmark (signature)	18 December 1970	6 May 1975
Djibouti (accession)	1 March 1990	30 May 1990
Dominican Republic (ratification)	5 February 1975	6 May 1975
Ecuador (accession)	23 December 1976	23 March 1977
Egypt (accession)	3 February 1989	4 May 1989
Equatorial Guinea (accession)	24 April 1996	23 July 1996
Estonia (accession)	16 May 2008	14 August 2008
Fiji (accession)	15 August 1972	6 May 1975
Finland (ratification)	6 September 1976	5 December 1976
France (ratification)	10 May 1972	6 May 1975
Gabon (accession)	21 January 1982	21 April 1982
Georgia (accession)	25 August 1995	23 November 1995
Germany (ratification)[1,6]	7 May 1975	5 August 1975
Ghana (ratification)	20 April 1978	19 July 1978
Guyana (accession)	10 December 1997	10 March 1998
Iceland (ratification)	17 July 1980	15 October 1980
India (accession)	16 June 2000	14 September 2000
Iran (Islamic Republic of) (accession)	25 July 1997	23 October 1997
Iraq (accession)	5 August 2024	3 November 2024
Ireland (ratification)	21 August 1980	19 November 1980
Italy (ratification)	27 February 1979	28 May 1979
Jamaica (accession)	13 March 1991	11 June 1991
Japan (acceptance)	6 April 1971	6 May 1975
Kuwait (accession)	2 April 1981	1 July 1981
Latvia (accession)	9 August 2001	7 November 2001
Lebanon (accession)	5 June 1975	3 September 1975
Liberia (accession)	25 September 1972	6 May 1975
Marshall Islands (accession)	16 October 1995	14 January 1996
Mauritania (accession)	24 November 1997	22 February 1998
Mauritius (accession)	17 December 2002	17 March 2003
Mexico (accession)	8 April 1976	7 July 1976
Monaco (ratification)	24 February 1975	6 May 1975
Montenegro (succession)[8,9]	-	3 June 2006
Morocco (accession)	11 April 1974	6 May 1975
Namibia (accession)	12 March 2004	10 June 2004
Netherlands (ratification)[4]	19 September 1975	18 December 1975
New Zealand (accession)	26 March 1975	6 May 1975
Nicaragua (accession)	15 November 1994	13 February 1995
Nigeria (accession)	24 February 2004	24 May 2004
Norway (accession)	12 July 1972	6 May 1975
Oman (accession)	24 January 1985	24 April 1985
Pakistan (accession)	13 January 1995	13 April 1995

Panama (ratification)	7 January 1976	6 April 1976
Papua New Guinea (accession)	12 March 1980	10 June 1980
Poland (ratification)	1 June 1976	30 August 1976
Portugal (ratification)	15 February 1980	15 May 1980
Qatar (accession)	2 June 1988	31 August 1988
Russian Federation (accession)[1,7]	30 December 1974	6 May 1975
Saint Kitts and Nevis (accession)	7 October 2004	5 January 2005
Saint Lucia (accession)	20 May 2004	18 August 2004
Saint Vincent and the Grenadines (accession)	12 May 1999	10 August 1999
San Marino (accession)	19 April 2021	18 July 2021
Senegal (accession)	27 March 1972	6 May 1975
Serbia (succession)[8,9]	-	3 June 2006
Slovenia (succession)	-	25 June 1991
Solomon Islands (accession)	30 September 2024	29 December 2024
South Africa (accession)	1 July 1986	29 September 1986
Spain (ratification)	8 November 1973	6 May 1975
Sri Lanka (accession)	12 April 1983	11 July 1983
Suriname (succession)	-	25 November 1975
Sweden (acceptance)	8 February 1973	6 May 1975
Switzerland (ratification)	15 December 1987	14 March 1988
Syrian Arab Republic (accession)[1]	6 February 1975	6 May 1975
Togo (accession)	10 October 2016	8 January 2017
Tonga (accession)	1 February 1996	1 May 1996
Trinidad and Tobago (accession)	6 March 2000	4 June 2000
Tunisia (accession)	4 May 1976	2 August 1976
Ukraine (succession)	-	17 December 1993
United Arab Emirates (accession)	15 December 1983	14 March 1984
United Kingdom (ratification)[2]	12 January 1971	6 May 1975
United Republic of Tanzania (accession)	16 May 2006	14 August 2006
United States (ratification)[3]	21 February 1974	6 May 1975
Vanuatu (accession)	14 September 1992	13 December 1992
Yemen (accession)	6 March 1979	4 June 1979

Number of Contracting States: 92

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[1] For the text of a declaration, reservation or statement see section III.

[2] The United Kingdom notified the depositary that it extended the Convention to the following territories:

Hong Kong*	12 November 1974	6 May 1975
Bermuda	19 September 1980	1 December 1980
Anguilla British Antarctic Territory** British Virgin Islands Cayman Islands Falkland Islands and Dependencies** Montserrat Pitcairn, Henderson, Ducie and Oeno Islands St. Helena, Ascension and Tristan da Cunha *** Turks and Caicos Islands United Kingdom Sovereign Base Areas of Akrotiri and Dhekelia on the Island of Cyprus	8 September 1982	8 September 1982
Isle of Man	27 June 1995	27 June 1995

[Footnotes continued]

[Footnotes continued]

*** The depositary received a communication, dated 2 March 2010, from the Foreign and Commonwealth Office in London, informing that the name of the British overseas territory formerly called "St. Helena and Dependencies" has been changed to "St. Helena, Ascension and Tristan da Cunha". The status of the territory as a British overseas territory remains unchanged.

[3] The United States notified the depositary that it extended the Convention to the following territories:

Puerto Rico, Guam, the Panama Canal Zone, Virgin Islands, American Samoa, Trust Territory of the Pacific Islands	)))	9 September 1975	6 May 1975

With regard to the extension by the United States to the Panama Canal Zone and the Trust Territory of the Pacific Islands, the United States informed the Depositary as follows:

The Panama Canal Zone reverted to Panama on 1 October 1978. On that date, the United States Panama Canal Zone ended.

The Trust Territory of the Pacific Islands was terminated by the UN Security Council, acting on the recommendation of the Trusteeship Council. The Trust Agreement, with regard to the three territories that entered into Compacts of Free Association with the United States was terminated, as follows:

The Marshall Islands on 21 October 1986. and by United Nations Security Council resolution 683(1990), of 22 December 1990; Micronesia on 3 November 1986, and by United Nations Security Council resolution 683(1990), of 22 December 1990; an Palau, on 1 October 1984, and by United Nations Security Council resolution 156(1994), of 10 November 1994.

The fourth territory, the Commonwealth of the Northern Mariana Islands, came under full United States sovereignty on 4 November 1986.

[4] The Netherlands notified the depositary that it extended the Convention to the following territories:

Suriname***, Netherlands Antilles♣	19 September 1975	18 December 1975

♣ The Netherlands Antilles has ceased to exist as an autonomous country within the Kingdom of the Netherlands with effect from 10 October 2010. Since that date, the Kingdom of the Netherlands consists of four autonomous countries: The Netherlands (European part and Caribbean part), Aruba, Curaçao and Sint Maarten. For more details see footnote 4, in section II of SOLAS 1974.. The Convention applies as follows:

		Effective from
The Netherlands (European part)	)	18 December l975
Caribbean part of the Netherlands	)	10 October 2010
Aruba	)	1 January 1986
Curaçao	)	10 October 2010
Sint Maarten	)	10 October 2010

* Ceased to apply to Hong Kong with effect from 1 July 1997.

** The depositary received the following communication dated 12 August 1986 from the Argentine delegation to the International Maritime Organization:

[Translation]

> "… the Argentine Government rejects the extension made by the United Kingdom of Great Britain and Northern Ireland of the application to the Malvinas Islands, South Georgia Islands and South Sandwich Islands of the … International Convention relating to Intervention on the High Seas in Cases of Oil Pollution Casualties … and reaffirms the rights of sovereignty of the Argentine Republic over those archipelagos which form part of its national territory.
>
> "The General Assembly of the United Nations has adopted resolutions 2065(XX), 3160(XXVIII), 31/49, 37/9, 38/12 and 39/6 which recognize the existence of a sovereignty dispute relating to the question of the Malvinas Islands, urging the Argentine Republic and the United Kingdom to resume negotiations in order to find, as soon as possible, a peaceful and definitive solution to the dispute through the good offices of the Secretary-General of the United Nations who is requested to inform the General Assembly on the progress made. Similarly, the General Assembly of the United Nations at its fortieth session adopted resolution 40/21 of 27 November 1985 which again urges both parties to resume the said negotiations.

[Footnotes continued]

> "… the Argentine Government also rejects the extension of its application to the so-called "British Antarctic Territory" made by the United Kingdom of Great Britain and Northern Ireland and, with respect to such extension and to any other declaration that may be made, reaffirms the rights of the Republic over the Argentine Antarctic Sector between longitude 25° and 74° west and latitude 60° south, including those rights relating to its sovereignty or corresponding maritime jurisdiction. It also recalls the safeguards concerning claims to territorial sovereignty in Antarctica provided in article IV of the Antarctic Treaty signed at Washington on 1 December 1959 to which the Argentine Republic and the United Kingdom of Great Britain and Northern Ireland are Parties."

The depositary received the following communication dated 3 February 1987 from the United Kingdom Foreign and Commonwealth Office:

> "The Government of the United Kingdom of Great Britain and Northern Ireland cannot accept the statement made by the Argentine Republic as regards the Falkland Islands and South Georgia and the South Sandwich Islands. The Government of the United Kingdom of Great Britain and Northern Ireland have no doubt as to the United Kingdom sovereignty over the Falkland Islands and South Georgia and the South Sandwich Islands and, accordingly, their right to extend the application of the Treaties to the Falkland Islands and South Georgia and the South Sandwich Islands.
>
> "Equally, while noting the Argentine reference to the provisions of Article IV of the Antarctic Treaty signed at Washington on 1 December 1959, the Government of the United Kingdom of Great Britain and Northern Ireland have no doubt as to the sovereignty of the United Kingdom over the British Antarctic Territory, and to the right to extend the application of the Treaties in question to that Territory."

*** Has since become the independent State of Suriname and a Contracting State to the Convention.

[5] Applies to the Hong Kong Special Administrative Region with effect from 1 July 1997, and to the Macao Special Administrative Region with effect from 24 June 2005.

[6] On 3 October 1990 the German Democratic Republic acceded to the Federal Republic of Germany. The German Democratic Republic had acceded[1] to the Convention on 21 December 1978.

[7] As from 26 December 1991, the membership of the USSR in the Convention is continued by the Russian Federation.

[8] As from 4 February 2003, the name of the State of the Federal Republic of Yugoslavia was changed to Serbia and Montenegro. The date of succession by Serbia and Montenegro to the Convention is the date on which the Federal Republic of Yugoslavia assumed responsibility for its international relations.

[9] Following the dissolution of the State Union of Serbia and Montenegro on 3 June 2006, all Treaty actions undertaken by Serbia and Montenegro continue to be in force with respect to Republic of Serbia. Montenegro has informed that it wished to succeed to this treaty with effect from the same date, ie. 3 June 2006.

III. Declarations, Reservations and Statements

ARGENTINA[1]

The instrument of accession of the Argentine Republic contained the following reservation (in the Spanish language):

[Translation]

"The Argentine Republic rejects the extension of the application of the International Convention relating to Intervention on the High Seas in Cases of Oil Pollution Casualties, 1969, done at Brussels on 29 November 1969, to the Malvinas Islands, South Georgia and South Sandwich Islands, notified by the United Kingdom of Great Britain and Northern Ireland to the Secretary-General of the International Maritime Organization (IMO) on 9 September 1982, and reaffirms its sovereign rights over the Malvinas Islands, South Georgia and South Sandwich Islands which form an integral part of its national territory. The General Assembly of the United Nations has adopted resolutions 2065(XX), 3160(XXVIII), 31/49, 37/9, 38/12, 39/6, 40/21 and 41/40, which recognize the existence of a dispute over sovereignty relating to the archipelago, urging the Argentine Republic and the United Kingdom of Great Britain and Northern Ireland to negotiate in order to find, as soon as possible, a peaceful and definitive solution to the dispute through the good offices of the Secretary-General of the United Nations who is to report to the General Assembly on the progress made.

"The Argentine Republic also rejects the extension of the Convention to the so-called "British Antarctic Territory" and reaffirms the rights of the Republic over the Argentine Antarctic Sector, including those rights relating to its sovereignty or corresponding maritime jurisdiction. It also recalls the safeguards concerning claims to territorial sovereignty in Antarctica provided in article IV of the Antarctic Treaty signed at Washington on 1 December 1959 to which the Argentine Republic and the United Kingdom of Great Britain and Northern Ireland are Parties.

"Similarly, the Argentine Republic reserves the right to take measures in the maritime areas under its sovereignty and to submit to its jurisdiction and courts any incidents occurring in the said zone."

AUSTRALIA

The instrument of ratification of the Commonwealth of Australia was accompanied by the following declaration:

"Australia recalls the statement made by the Australian Delegation to the International Conference on Marine Pollution, l973 which was in the following terms:

'… Australia believes that no coastal State would refrain from taking whatever action was necessary to protect areas under its jurisdiction from serious environmental damage and it believes that this right of a coastal State to intervene on the high seas to protect areas under its jurisdiction is recognized under customary international law'.

In becoming a party to the Convention, Australia declares that it believes that it may still take action to protect areas and resources under its jurisdiction which is permitted under customary international law and which is consistent with the Convention."

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[1] The depositary received the following communication dated 4 August 1987 from the United Kingdom Foreign and Commonwealth Office:

"The Government of the United Kingdom of Great Britain and Northern Ireland cannot accept the reservation made by the Argentine Republic regarding the Falkland Islands and South Georgia and the South Sandwich Islands. The Government of the United Kingdom of Great Britain and Northern Ireland have no doubt as to United Kingdom sovereignty over the Falkland Islands and, accordingly, their right to extend the application of the Convention to the Falkland Islands.

"While noting the Argentine reference to the provisions of Article IV of the Antarctic Treaty signed at Washington on 1 December 1959, the Government of the United Kingdom of Great Britain and Northern Ireland have no doubt as to the sovereignty of the United Kingdom over the British Antarctic Territory, and to the right to extend the application of the Convention in question to that Territory."

BULGARIA[2]

The instrument of accession of the People's Republic of Bulgaria contained the following declaration (in the Bulgarian language):

[Translation]

"The People's Republic of Bulgaria considers that:

a) The provisions of article 9, paragraph 2 of the Convention which restrict the opportunity for certain States to become party to the Convention have discriminatory character and they are contrary to the generally recognized principle of the Sovereign equality of States.

b) The provisions of article 13 of the Convention are not in accordance with the UN Declaration on the Granting of Independence to Colonial Countries and Peoples (resolution 1514/XV/December 14, l960) which proclaims the necessity of bringing to a speedy and unconditional end colonialism in all its forms and manifestations."

CUBA[1]

The instrument of accession of the Republic of Cuba contained the following declarations (in the Spanish language):

[Translation]

"In connection with the provision of article 1, paragraph 2, the Republic of Cuba wished to record that, in deciding to become a Party to the present Convention, it has done so with the desire of reconciling in this exceptional case, within the framework of this Convention, the principle, consistently maintained by our Government, of 'Sovereign Immunity of Ships owned or operated by a State' with the interest of protecting the marine environment and connected interests of coastal States.

"Also we reaffirm the position that our merchant ships enjoy the right of sovereign immunity.

"The provisions of article IX, paragraph 2, establishing which States will have the right to become Parties to the Convention are of a discriminatory nature and are contrary to the principle of universality, based on the sovereignty and equality of all States.

"We consider the provisions of article XIII, according to which the Contracting Parties may extend the Convention to those territories for whose international relations they are responsible, as obsolete and in contradiction with the Declaration of the United Nations on the granting of independence and sovereignty to colonial peoples (resolution 1514(XV) of 14 December l960 of the United Nations)."

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[1] On 16 October l978 the depositary received communications from the Government of France (in the French language) and the Government of the Federal Republic of Germany (in the English language), deposited concurrently and stating the following:

"The Government of [the Federal Republic of Germany][France] has taken note of the declaration made by the Government of Cuba in connection with its accession to the Convention of l969 relating to Intervention on the High Seas in Cases of Oil Pollution Casualties.

"It takes this opportunity to reaffirm once more that according to international law and the Brussels Convention of 10 April l926, ships operated by a State but used on commercial service do not enjoy the immunities granted to State ships."

The depositary received the following communication (in the English language) dated 9 March l979 from the Chargé d'affaires, a.i., Embassy of Japan, London:

"It is the understanding of the Government of Japan that the aforementioned Declaration is not intended to have the effect that the Republic of Cuba may claim sovereign immunity with respect to its ships used for commercial purposes, when measures are to be taken against such ships in accordance with the provisions of the Convention."

[2] The depositary received a communication on 22 November 2006 from the Minister of Foreign Affairs of the Republic of Bulgaria informing of the withdrawal of declarations made in respect of article 9 and article 13.

GERMAN DEMOCRATIC REPUBLIC

The instrument of accession of the German Democratic Republic was accompanied by the following declarations (in the German language):

[Translation]

"The German Democratic Republic takes note of the statement made by the Federal Republic of Germany on the application of the provisions of the Convention to Berlin (West) and proceeds on the understanding that the application of the provisions of the Convention to Berlin (West) shall be in conformity with the Quadripartite Agreement of 3 September l971 according to which Berlin (West) is not a constituent part of the Federal Republic of Germany and is not to be governed by it."

"The German Democratic Republic considers that the provision of article IX, paragraph 2, of the Convention is inconsistent with the principle that all States pursuing their policies in accordance with the purposes and principles of the Charter of the United Nations shall have the right to become parties to conventions affecting the interests of all States."

"The position of the German Democratic Republic on article XIII of the Convention, as far as the application of the Convention to colonial and other dependent territories is concerned, is governed by the provisions of the United Nations Declaration on the Granting of Independence to Colonial Countries and Peoples (resolution 1514(XV) of 14 December l960) proclaiming the necessity of bringing to a speedy and unconditional end colonialism in all its forms and manifestations."

FEDERAL REPUBLIC OF GERMANY

The instrument of ratification of the Federal Republic of Germany was accompanied by a declaration (in the English language) that

"with effect from the day on which the Convention enters into force for the Federal Republic of Germany it shall also apply to Berlin (West)."

SYRIAN ARAB REPUBLIC

The instrument of accession of the Syrian Arab Republic contains the following sentence (in the Arabic language):

[Translation]

"… this accession to the Convention] in no way implies recognition of Israel and does not involve the establishment of any relations with Israel arising from the provisions of the this Convention."

USSR

The instrument of accession of the Union of Soviet Socialist Republics was accompanied by the following declaration (in the Russian language):

[Translation]

"In acceding to the Convention Relating to Intervention on the High Seas in Cases of Oil Pollution Casualties, the Union of Soviet Socialist Republics considers it necessary to declare that:

"(a) the provision of paragraph 2 of article IX of the Convention, according to which certain States may not become Party to the latter is of a discriminatory nature and conflicts with the universally recognized principle of the sovereign equality of States, and

"(b) the provision of article XIII of the Convention laying down that the Contracting Parties may extend it to territories for whose international relations they are responsible are obsolete and conflict with the Declaration of the United Nations Organization on the granting of independence to colonial countries and peoples (resolution 1514(XV) of 14 December l960)."

PROTOCOL RELATING TO INTERVENTION ON THE HIGH SEAS IN CASES OF POLLUTION BY SUBSTANCES OTHER THAN OIL, 1973, AS AMENDED (INTERVENTION PROT 1973)

Done at London, 2 November 1973

Entry into force: 30 March 1983

Signature, ratification, acceptance, approval and accession

Article IV

(1) The present Protocol shall be open for signature by the States which have signed the Convention referred to in article II or acceded thereto[1], and by any State invited to be represented at the International Conference on Marine Pollution l973. The Protocol shall remain open for signature from 15 January l974 until 31 December l974 at the Headquarters of the Organization.

(2) Subject to paragraph 4, the present Protocol shall be subject to ratification, acceptance or approval by the States which have signed it.

(3) Subject to paragraph 4, this Protocol shall be open for accession by States which did not sign it.

(4) The present Protocol may be ratified, accepted, approved or acceded to only by States which have ratified, accepted, approved or acceded to the Convention referred to in article II.[1]

Article V

(1) Ratification, acceptance, approval or accession shall be effected by the deposit of a formal instrument to that effect with the Secretary-General of the Organization.

…

Entry into force

Article VI

(1) The present Protocol shall enter into force on the ninetieth day following the date on which fifteen States have deposited instruments of ratification, acceptance, approval or accession with the Secretary-General of the Organization, provided however that the present Protocol shall not enter into force before the Convention referred to in article II[1], has entered into force.

(2) For each State which subsequently ratifies, accepts, approves or accedes to it, the present Protocol shall enter into force on the ninetieth day after the deposit by such State of the appropriate instrument.

Revision of the list of substances

Article III

1. The list referred to in paragraph 2(a) of Article I shall be maintained by the appropriate body designated by the Organization.

2. Any amendment to the list proposed by a Party to the present Protocol shall be submitted to the Organization and circulated by it to all Members of the Organization and all Parties to the present Protocol at least three months prior to its consideration by the appropriate body.

3. Parties to the present Protocol whether or not Members of the Organization shall be entitled to participate in the proceedings of the appropriate body.

4. Amendments shall be adopted by a two-thirds majority of only the Parties to the present Protocol present and voting.

5. If adopted in accordance with paragraph 4 above, the amendment shall be communicated by the Organization to all Parties to the present Protocol for acceptance.

6. The amendment shall be deemed to have been accepted at the end of a period of six months after it has been communicated, unless within that period an objection to the amendment has been communicated to the Organization by not less than one-third of the Parties to the present Protocol.

7. An amendment deemed to have been accepted in accordance with paragraph 6 above shall enter into force three months after its acceptance for all Parties to the present Protocol, with the exception of those which before that date have made a declaration of non-acceptance of the said amendment.

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[1] The International Convention Relating to Intervention on the High Seas in Cases of Oil Pollution Casualties, l969.

I. Signatories

II. Contracting States

III. Declarations, Reservations and Statements

IV. Amendments

I. Signatories

Denmark	Subject to ratification
Germany, Federal Republic of	Subject to ratification
Italy	Subject to ratification
Netherlands	Subject to ratification
New Zealand[1]	Subject to ratification
Poland	Subject to ratification
Sweden	Subject to ratification
USSR	
United Kingdom	
United States	Subject to ratification

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[1] For the text of a declaration see section III.

II. Contracting States

	Date of deposit of instrument or succession	Date of entry into force
Algeria (accession)	21 November 2011	19 February 2012
Australia (accession)[1]	7 November l983	5 February l984
Bahamas (accession)	5 March 1981	30 March 1983
Barbados (accession)	6 May 1994	4 August 1994
Belgium (accession)	9 September 1982	30 March 1983
Brazil (accession)	18 January 2008	17 April 2008
Bulgaria (accession)	21 November 2006	19 February 2007
Chile (accession)	28 February 1995	29 May 1995
China (accession)[4]	23 February 1990	24 May 1990
Congo (accession)	19 May 2014	17 August 2014
Croatia (succession)	-	8 October 1991
Denmark (ratification)	9 May l983	7 August l983
Egypt (accession)	3 February 1989	4 May 1989
Estonia (accession)	16 May 2008	14 August 2008
Finland (accession)	4 August 1986	2 November 1986
France (accession)[1]	31 December 1985	31 March 1986
Georgia (accession)	25 August 1995	23 November 1995
Germany (ratification)[1]	21 August 1985	19 November 1985
Iran (Islamic Republic of) (accession)	25 July 1997	23 October 1997
Iraq (accession)	5 August 2024	3 November 2024
Ireland (accession)	6 January 1995	6 April 1995
Italy (ratification)	1 October l982	30 March l983
Jamaica (accession)	13 March 1991	11 June 1991
Latvia (accession)	9 August 2001	7 November 2001
Liberia (accession)	17 February l98l	30 March 1983
Marshall Islands (accession)	16 October 1995	14 January 1996
Mauritania (accession)	24 November 1997	22 February 1998
Mauritius (accession)	6 November 2003	4 February 2003
Mexico (accession)	11 April l980	30 March 1983
Monaco (accession)	31 March 2005	29 June 2005
Montenegro (succession)[6, 7]	-	3 June 2006
Morocco (accession)	30 January 2001	30 April 2001
Namibia (accession)	12 March 2004	10 June 2004
Netherlands (ratification)[3]	10 September l980	30 March 1983
New Zealand (ratification)[1]	4 July 2014	3 July 2014
Nicaragua (accession)	15 November 1994	13 February 1995
Nigeria (accession)	19 November 2024	17 February 2025
Norway (accession)	15 July l980	30 March 1983
Oman (accession)	24 January 1985	24 April 1985
Pakistan (accession)	13 January 1995	13 April 1995
Poland (ratification)	10 July l98l	30 March 1983
Portugal (accession)	8 July 1987	6 October 1987
Russian Federation (acceptance)[5]	30 December l982	30 March 1983
Saint Lucia (accession)	20 May 2004	18 August 2004
Saint Vincent and the Grenadines (accession)	12 May 1999	10 August 1999
San Marino (accession)	19 April 2021	18 July 2021
Serbia (succession)[6, 7]	-	3 June 2006
Slovenia (succession)	-	25 June 1991
Solomon Islands (accession)	30 September 2024	29 December 2024
South Africa (accession)	25 September 1997	24 December 1997
Spain (accession)	14 March 1994	12 June 1994
Sweden (ratification)	28 June l976	30 March 1983
Switzerland (accession)	15 December 1987	14 March 1988
Togo (accession)	10 October 2016	8 January 2017
Tonga (accession)	1 February 1996	1 May 1996
Tunisia (accession)	4 May l976	30 March 1983
United Kingdom (ratification)[1, 2]	5 November l979	30 March 1983
United Republic of Tanzania (accession)	23 November 2006	21 February 2007
United States (ratification)	7 September l978	30 March 1983
Vanuatu (accession)	14 September 1992	13 December 1992
Yemen (accession)	6 March l979	30 March 1983

Number of Contracting States: 61

[1] For the text of a declaration or reservation, see section III.

[Footnotes continued]

[2]The United Kingdom declared ratification to be effective also in respect of:

Anguilla	)	
Bermuda	)	
British Antarctic Territory*	)	
British Virgin Islands	)	
Cayman Islands	)	
Falkland Islands and Dependencies*	)	
Hong Kong**	)	
Montserrat	)	30 March l983
Pitcairn, Henderson, Ducie and Oeno Islands	)	
St. Helena, Ascension and Tristan da Cunha ***	)	
Turks and Caicos Islands	)	
United Kingdom Sovereign Base Areas of Akrotiri and Dhekelia on the Island of Cyprus	)	
Isle of Man		27 June 1995

[3]The Netherlands declared ratification to be effective also in respect of:

Netherlands Antilles♣ (with effect 30 March 1983) and Aruba (with effect from 1 January 1986))

♣ The Netherlands Antilles has ceased to exist as an autonomous country within the Kingdom of the Netherlands with effect from 10 October 2010. Since that date, the Kingdom of the Netherlands consists of four autonomous countries: The Netherlands (European part and Caribbean part), Aruba, Curaçao and Sint Maarten. For more details see footnote 4, in section II of SOLAS 1974.. The Protocol applies as follows:

		Effective from
The Netherlands (European part)	)	30 March 1983
Caribbean part of the Netherlands	)	10 October 2010
Aruba	)	1 January 1986
Curaçao	)	10 October 2010
Sint Maarten	)	10 October 2010

* For the text of communications received from the Governments of Argentina and the United Kingdom, see footnote ** of section II of INTERVENTION 1969.

** Ceased to apply to Hong Kong with effect from 1 July 1997.

*** The depositary received a communication, dated 2 March 2010, from the Foreign and Commonwealth Office in London, informing that the name of the British overseas territory formerly called “St. Helena and Dependencies” has been changed to “St. Helena, Ascension and Tristan da Cunha”. The status of the territory as a British overseas territory remains unchanged.

[4] Applies to the Hong Kong Special Administrative Region with effect from 1 July 1997, and to the Macao Special Administrative Region with effect from 24 June 2005.

[5] As from 26 December 1991 the membership of the USSR in the Protocol is continued by the Russian Federation.

[6] As from 4 February 2003, the name of the State of the Federal Republic of Yugoslavia was changed to Serbia and Montenegro. The date of succession by Serbia and Montenegro to the Protocol is the date on which the Federal Republic of Yugoslavia assumed responsibility for its international relations.

[7] Following the dissolution of the State Union of Serbia and Montenegro on 3 June 2006, all Treaty actions undertaken by Serbia and Montenegro continue to be in force with respect to Republic of Serbia. Montenegro has informed that it wished to succeed to this treaty with effect from the same date, ie. 3 June 2006.

III. Declarations, Reservations and Statements

AUSTRALIA

The instrument of accession of the Commonwealth of Australia was accompanied by the following declaration:

> "Australia recalls the statement made by the Australian Delegation to the International Conference on Marine Pollution l973 which was in the following terms:
>
> '… Australia believes that no coastal State would refrain from taking whatever action was necessary to protect areas under its jurisdiction from serious environmental damage and it believes that this right of a coastal State to intervene on the high seas to protect areas under its jurisdiction is recognized under customary international law'.
>
> "In becoming a party to the Protocol, Australia declares that it believes that it may still take action to protect areas and resources under its jurisdiction which is permitted under customary international law and which is consistent with the Protocol."

FRANCE

The instrument of accession of the French Republic contained the following reservation (in the French language):

[Translation]

> "According to article 1 of the Protocol relating to Intervention on the High Seas in Cases of Pollution by Substances Other than Oil, done at London on 2 November 1973, States Parties may take measures on the high seas following upon a maritime casualty only in the case of grave and imminent danger of pollution or threat of pollution which may reasonably be expected to result in major harmful consequences.
>
> "On the basis of the definition of type A packages, the French Government considers that radioactive substances that may be stored or carried as substances in type A packages cannot give rise to such a danger.
>
> "Accordingly, the French Government does not accept the application of the provisions of the Protocol to such packages."

FEDERAL REPUBLIC OF GERMANY

The instrument of ratification of the Federal Republic of Germany was accompanied by the following declaration (in the German language):

[Translation]

> "that the said Protocol shall also apply to Berlin (West) with effect from the date on which it enters into force for the Federal Republic of Germany."

NEW ZEALAND

The following declaration was made at the time of signature of the Protocol:

> "The Government of New Zealand hereby declares that its signature of the Protocol Relating to Intervention on the High Seas in Cases of Marine Pollution by Substances Other than Oil does not extend to the Cook Islands, Niue and the Tokelau Islands."

The instrument of ratification of New Zealand was accompanied by the following declaration:

"..consistent with the constitutional status of Tokelau and taking into account the commitment of the Government of New Zealand to the development of self-government for Tokelau through an act of self-determination under the charter of the United Nations, this ratification shall not extend to Tokelau unless and until a Declaration to this effect is lodged by the Government of New Zealand with the depositary on the basis of appropriate consultation with that territory"

UNITED KINGDOM

The instrument of ratification of the United Kingdom of Great Britain and Northern Ireland contains the following declaration:

> "… reserving the right to extend the Protocol at a later date to any territory for whose international relations the Government of the United Kingdom is responsible and to which the International Convention relating to Intervention on the High Seas in Cases of Oil Pollution Casualties has been extended in accordance with the provisions of article XIII, paragraph 1, thereof".

IV. Amendments

(1) 1991 Amendments (MEPC.49(31))

A. Adoption

The Marine Environment Protection Committee at its thirty-first session (July 1991) adopted by resolution MEPC.49(31), in accordance with article III of the Protocol, an amended list of substances to be annexed to the Protocol.

B. Entry into force

On 24 October 1991, by Note Verbale A1/0/3.02 (NV.12) the Secretary-General communicated the amended list to all Parties to the 1973 Protocol in accordance with article III, paragraph 5, for acceptance, and informed them that the amended list shall be deemed to have been accepted at the end of the period of six months after it has been communicated, i.e. 24 April 1992, unless within that period an objection to these amendments has been communicated to the Organization by not less than one-third of the Parties. No such objection was received and the amended list accordingly entered into force on 24 July 1992, three months after it had been deemed to have been accepted.

(2) 1996 Amendments (MEPC.72(38))

A. Adoption

The Marine Environment Protection Committee at its thirty-eighth session (July 1996) adopted by resolution MEPC.72(38), in accordance with article III of the Protocol, an amended list of substances to be annexed to the Protocol.

B. Entry into force

On 12 March 1997, by Note Verbale A1/0/3.02 (NV.14) the Secretary-General communicated the amended list to all Parties to the 1973 Protocol in accordance with article III, paragraph 5, for acceptance, and informed them that the amended list shall be deemed to have been accepted at the end of the period of six months after it has been communicated, i.e. 19 September 1997, unless within that period an objection to these amendments has been communicated to the Organization by not less than one-third of the Parties. No such objection was received and the amended list accordingly entered into force on 19 December 1997, three months after it had been deemed to have been accepted.

(3) 2002 Amendments (MEPC.100(48))

A. Adoption

The Marine Environment Protection Committee at its forty-eighth session (October 2002) adopted by resolution MEPC.100(48), in accordance with article III of the Protocol, an amended list of substances to be annexed to the Protocol.

B. Entry into force

The Secretary-General communicated the amended list to all Parties to the 1973 Protocol, in accordance with article III, paragraph 5, for acceptance, and informed them that the amended list shall be deemed to have been accepted at the end of the period of six months after it has been communicated, unless within that period, an objection to these amendments has been communicated to the Organization by not less than one-third of the Parties. No such objection was received and the amended list accordingly entered into force on 22 June 2004, three months after it had been deemed to be accepted.

(4) 2007 Amendments (MEPC.165(56))

A. Adoption

The Marine Environment Protection Committee at its fifth-sixth session (July 2007) adopted by resolution MEPC.165(56), in accordance with article III of the Protocol, an amended list of substances to be annexed to the Protocol.

B. Entry into force

The Secretary-General will communicate the amended list to all Parties to the 1973 Protocol, in accordance with article III, paragraph 5, for acceptance, and will inform them of the date on which the amended list shall be deemed to have been accepted at the end of the period of six months after it has been communicated, unless within that period, an objection to these amendments has been communicated to the Organization by not less than one-third of the Parties. No such objection was received and the amended list accordingly entered into force on 23 November 2009, three months after it had been deemed to be accepted.

INTERNATIONAL CONVENTION ON CIVIL LIABILITY FOR OIL POLLUTION DAMAGE, 1969 (CLC 1969)

Done at Brussels, 29 November l969

Entry into force: 19 June l975

Signature, ratification, acceptance, approval, accession

Article XIII

1. The present Convention shall remain open for signature until 31 December l970 and shall thereafter remain open for accession.

2. States Members of the United Nations or any of the Specialized Agencies or of the International Atomic Energy Agency or Parties to the Statute of the International Court of Justice may become Parties to this Convention by:

(a) signature without reservation as to ratification, acceptance or approval;

(b) signature, subject to ratification, acceptance or approval followed by ratification, acceptance or approval; or

(c) accession.

Article XIV

1. Ratification, acceptance, approval or accession shall be effected by the deposit of a formal instrument to that effect with the Secretary-General of the Organization.

Entry into force

Article XV

1. The present Convention shall enter into force on the ninetieth day following the date on which Governments of eight States including five States each with not less than 1,000,000 gross tons of tanker tonnage have either signed it without reservation as to ratification, acceptance or approval or have deposited instruments of ratification, acceptance, approval or accession with the Secretary-General of the Organization.

2. For each State which subsequently ratifies, accepts, approves or accedes to it the present Convention shall come into force on the ninetieth day after deposit by such State of the appropriate instrument.

Article XVI

1 The present Convention may be denounced by any Contracting State at any time after the date on which the Convention comes into force for that State.

2 Denunciation shall be effected by the deposit of an instrument with the Secretary-General of the Organization.

3 A denunciation shall take effect one year, or such longer period as may be specified in the instrument of denunciation, after its deposit with the Secretary-General of the Organization.

I. Signatories

II. Contracting States

III. States which have denounced the Convention

IV. Declarations, Reservations and Statements

I. Signatories

Australia	Subject to ratification 17 December l970
Belgium	Sous réserve de ratification
Brazil	Subject to ratification
Cameroon	Sous réserve de ratification
Côte d'Ivoire	Sous réserve de ratification
Dominican Republic	Subject to ratification
Finland	Subject to ratification 30 December l970
France	Sous réserve de ratification ou d'approbation ultérieure
Germany, Federal Republic of	Subject to ratification
Ghana	Subject to ratification
Guatemala	*[Translation]* Subject to approval, acceptance and ratification
Iceland	Subject to ratification
Indonesia	Subject to ratification
Ireland	Subject to acceptance and ratification
Italy	Sous réserve de ratification
Madagascar	Sous réserve de ratification
Monaco	Sous réserve de ratification
Netherlands	Subject to ratification
Panama	Subject to ratification
Poland	Subject to ratification
Portugal	Subject to ratification
Romania	Subject to ratification 30 December l970
Spain	Subject to ratification
Sweden	Subject to ratification
Switzerland	Sous réserve de ratification
United Kingdom	Subject to ratification
United States	Subject to ratification
Yugoslavia	Sous réserve de ratification

II. Contracting States

	Date of deposit of instrument or succession	Date of entry into force	Effective date of denunciation
Albania (accession)	6 April 1994	5 July 1994	30 June 2006
Algeria (accession)	14 June l974	19 June l975	3 August 1999
Antigua and Barbuda (accession)	23 June 1997	21 September 1997	14 June 2001
Australia (ratification)[1]	7 November l983	5 February l984	15 May 1998
Azerbaijan (accession)	16 July 2004	14 October 2004	
Bahamas (accession)	22 July l976	20 October l976	15 May 1998
Bahrain (accession)	3 May 1996	1 August 1996	15 May 1998
Barbados (accession)	6 May 1994	4 August 1994	7 July 1999
Belgium (ratification)[1]	12 January l977	12 April l977	6 October 1999
Belize (accession)	2 April 1991	1 July 1991	27 November 1999
Benin (accession)	1 November 1985	30 January 1986	
Brazil (ratification)	17 December l976	17 March l977	
Brunei Darussalam (accession)	29 September 1992	28 December 1992	31 January 2003
Cambodia (accession)	28 November 1994	26 February 1995	
Cameroon (ratification)	14 May l984	12 August l984	15 October 2002
Canada (accession)	24 January 1989	24 April 1989	29 May 1999
Chile (accession)	2 August l977	31 October l977	
China (accession)[1, 2]	30 January l980	29 April l980	5 January 2000
Colombia (accession)	26 March 1990	24 June 1990	25 January 2006
Costa Rica (accession)	8 December 1997	8 March 1998	
Côte d'Ivoire (ratification)	21 June 1973	19 June 1975	

	Date of deposit of instrument or succession	Date of entry into force	Effective date of denunciation
Croatia (succession)	-	8 October 1991	30 July 1999
Cyprus (accession)	19 June 1989	17 September 1989	15 May 1998
Denmark (accession)	2 April l975	19 June l975	15 May 1998
Djibouti (accession)	1 March 1990	30 May 1990	17 May 2002
Dominican Republic (ratification)	2 April l975	19 June l975	
Ecuador (accession)	23 December l976	23 March l977	
Egypt (accession)	3 February 1989	4 May 1989	
El Salvador (accession)	2 January 2002	2 April 2002	
Equatorial Guinea (accession)	24 April 1996	23 July 1996	
Estonia (accession)	1 December 1992	1 March 1993	6 August 2005
Fiji (accession)	15 August l972	19 June l975	30 November 2000
Finland (ratification)	10 October l980	8 January l98l	15 May 1998
France (ratification)	17 March l975	19 June l975	15 May 1998
Gabon (accession)	21 January l982	21 April l982	31 May 2003
Gambia (accession)	1 November 1991	30 January 1992	
Georgia (accession)	19 April 1994	18 July 1994	
Germany (ratification)[1, 3, 4]	20 May l975	18 August 19754	15 May 1998
Ghana (ratification)	20 April l978	19 July l978	
Greece (accession)	29 June l976	27 September l976	15 May 1998
Guatemala (acceptance)[1]	20 October l982	18 January l983	17 May 2025
Guyana (accession)	10 December 1997	10 March 1998	
Honduras (accession)	2 December 1998	2 March 1999	
Iceland (ratification)	17 July l980	15 October l980	10 February 2001
India (accession)	1 May 1987	30 July 1987	21 June 2001
Indonesia (ratification)	1 September l978	30 November l978	
Ireland (ratification)	19 November 1992	17 February 1993	15 May 1998
Italy (ratification)[1]	27 February l979	28 May l979	8 October 2000
Japan (accession)	3 June l976	1 September l976	15 May 1998
Jordan (accession)	14 October 2003	12 January 2004	8 January 2020
Kazakhstan (accession)	7 March 1994	5 June 1994	
Kenya (accession)	15 December 1992	15 March 1993	7 July 2001
Kuwait (accession)	2 April l98l	1 July l98l	
Latvia (accession)	10 July 1992	8 October 1992	19 July 2011
Lebanon (accession)	9 April l974	19 June l975	
Liberia (accession)	25 September l972	19 June l975	15 May 1998
Libya (accession)	28 April 2005	26 July 2005	
Luxembourg (accession)	14 February 1991	15 May 1991	21 November 2006
Malaysia (accession)	6 January 1995	6 April 1995	9 June 2005
Maldives (accession)	16 March l98l	14 June l98l	
Malta (accession)	27 September 1991	26 December 1991	6 January 2001
Marshall Islands (accession)	24 January 1994	24 April 1994	15 May 1998
Mauritania (accession)	17 November 1995	15 February 1996	4 May 2013
Mauritius (accession)	6 April 1995	5 July 1995	6 December 2000
Mexico (accession)	13 May 1994	11 August 1994	15 May 1998
Monaco (ratification)	21 August l975	19 November l975	15 May 1998
Mongolia (accession)	3 March 2003	1 June 2003	
Montenegro (succession)[6,7]	-	6 June 2006	23 February 2008
Morocco (accession)	11 April 1974	19 June l975	25 October 2001
Mozambique (accession)	23 December 1996	23 March 1997	26 April 2003
Netherlands (ratification)	9 September l975	8 December l975	15 May 1998
New Zealand (accession)	27 April l976	26 July l976	25 June 1999
Nicaragua (accession)	4 June 1996	2 September 1996	4 April 2015
Nigeria (accession)	7 May l98l	5 August l98l	24 May 2003
Norway (accession)	21 March l975	19 June l975	15 May 1998
Oman (accession)	24 January 1985	24 April 1985	15 May 1998
Panama (ratification)	7 January l976	6 April l976	11 May 2000
Papua New Guinea (accession)	12 March l980	10 June l980	23 January 2002
Peru (accession)[1]	24 February 1987	25 May 1987	

	Date of deposit of instrument or succession	Date of entry into force	Effective date of denunciation
Poland (ratification)	18 March 1976	16 June 1976	21 December 2000
Portugal (ratification)	26 November 1976	24 February 1977	1 December 2005
Qatar (accession)	2 June 1988	31 August 1988	20 November 2002
Republic of Korea (accession)	18 December 1978	18 March 1979	15 May 1998
Russian Federation (accession)[1, 5]	24 June 1975	22 September 1975	20 March 2001
Saint Kitts and Nevis (accession)[1]	14 September 1994	13 December 1994	
Saint Vincent and the Grenadines (accession)	19 April 1989	18 July 1989	9 October 2002
São Tomé and Principe (accession)	29 October 1998	27 January 1999	
Saudi Arabia (accession)[1]	15 April 1993	14 July 1993	
Senegal (accession)	27 March 1972	19 June 1975	
Serbia (succession)[6, 7]	-	3 June 2006	25 May 2012
Seychelles (accession)	12 April 1988	11 July 1988	23 July 2000
Sierra Leone (accession)	13 August 1993	11 November 1993	4 June 2002
Singapore (accession)	16 September 1981	15 December 1981	31 December 1998
Slovenia (succession)	-	25 June 1991	19 July 2001
South Africa (accession)	17 March 1976	15 June 1976	1 October 2005
Spain (ratification)	8 December 1975	7 March 1976	15 May 1998
Sri Lanka (accession)	12 April 1983	11 July 1983	22 January 2000
Sweden (ratification)	17 March 1975	19 June 1975	15 May 1998
Switzerland (ratification)	15 December 1987	14 March 1988	15 May 1998
Syrian Arab Republic (accession)[1]	6 February 1975	19 June 1975	
Tonga (accession)	1 February 1996	1 May 1996	10 December 2000
Tunisia (accession)	4 May 1976	2 August 1976	15 May 1998
Turkmenistan (accession)	21 September 2009	20 December 2009	
Tuvalu (succession)	-	1 October 1978	30 June 2005
United Arab Emirates (accession)	15 December 1983	14 March 1984	
United Kingdom (ratification)[8]	17 March 1975	19 June 1975	15 May 1998
Vanuatu (accession)	2 February 1983	3 May 1983	18 February 2000
Venezuela (Bolivarian Republic of) (accession)	21 January 1992	20 April 1992	22 July 1999
Yemen (accession)	6 March 1979	4 June 1979	31 July 2008

Number of Contracting States: 31

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[1] For the text of a declaration, reservation or statement see section IV.

[2] Applied to the Hong Kong Special Administrative Region with effect from 1 July 1997. Ceased to apply to Hong Kong

[3] On 3 October 1990 the German Democratic Republic acceded to the Federal Republic of Germany. The German Democratic Republic had acceded[1] to the Convention on 13 March 1978.

[4] In accordance with the intention expressed by the Government of the Federal Republic of Germany and based on its interpretation of article XV of the Convention.

[5] As from 26 December 1991 the membership of the USSR in the Convention is continued by the Russian Federation.

[6] As from 4 February 2003, the name of the State of the Federal Republic of Yugoslavia was changed to Serbia and Montenegro. The date of succession by Serbia and Montenegro to the Convention is the date on which the Federal Republic of Yugoslavia assumed responsibility for its international relations.

[7] Following the dissolution of the State Union of Serbia and Montenegro on 3 June 2006, all Treaty actions undertaken by Serbia and Montenegro continue to be in force with respect to Republic of Serbia. Montenegro has informed that it wished to succeed to this treaty with effect from the same date, ie. 3 June 2006.

[Footnotes continued]

[Footnotes continued]

[8] The United Kingdom declared ratification to be effective also in respect of:

Anguilla	8 May l984	1 September l984
Bailiwick of Jersey)		
Bailiwick of Guernsey)	1 March 1976	1 February 1976
Isle of Man)		
Bermuda	1 March l976	3 February l976
Belize[I])		
British Indian Ocean Territory)		
British Virgin Islands)		
Cayman Islands)		
Falkland Islands and Dependencies[II])		
Gibraltar)		
Gilbert Islands[III])		
Hong Kong[IV])		
Montserrat)	1 April l976	1 April l976
Pitcairn)		
St. Helena, Ascension and Tristan da Cunha[V])		
Seychelles[VI])		
Solomon Islands[VII])		
Turks and Caicos Islands)		
Tuvalu[I])		
United Kingdom Sovereign Base Areas of Akrotiri and Dhekelia in the Island of Cyprus)		

I Has since become an independent State and Contracting State to the Convention.

II The depositary received a communication dated 16 August l976 from the Embassy of the Argentine Republic in London. The communication, the full text of which was circulated by the depositary, includes the following:

> "The extension of the convention to the Islas Malvinas, Georgias del Sur and Sandwich del Sur notified by the Government of the United Kingdom of Great Britain and Northern Ireland to the Secretary-General, on 1 April l976 … under the erroneous denomination of "Falkland Islands and Dependencies" - [does] not in any way affect the rights of the Argentine Republic over those islands which are part of its territory and come under the administrative jurisdiction of the Territorio Nacional de Tierra del Fuego, Antártida e Islas del Atlántico Sur.
>
> "The aforementioned islands were occupied by force by a foreign power. The situation has been considered by the United Nations Assembly which adopted resolutions 2065(XX) and 3160(XXVIII). In both resolutions the existence of a dispute regarding the sovereignty over the archipelago was confirmed and the Argentine Republic and the occupying power were urged to negotiate with a view to finding a definitive solution to the dispute."

The depositary received the following communication dated 20 September 1976 from the Government of the United Kingdom.

> "…With reference to the statement of the Embassy of the Argentine Republic … Her Majesty's Government is bound to state that they have no doubt as to United Kingdom sovereignty over the Falkland Islands and the Falkland Islands dependencies."

III Has since become the independent State of Kiribati to which the Convention applies provisionally.

IV Ceased to apply to Hong Kong with effect from 1 July 1997.

V The depositary received a communication, dated 2 March 2010, from the Foreign and Commonwealth Office in London, informing that the name of the British overseas territory formerly called "St. Helena and Dependencies" has been changed to "St. Helena, Ascension and Tristan da Cunha". The status of the territory as a British overseas territory remains unchanged.

VI Has since become the independent State of Seychelles.

VII Has since become an independent State to which the Convention applies provisionally.

III. States which have denounced the Convention

	Date of receipt of denunciation	Effective date of denunciation
Albania	30 June 2005	30 June 2006
Algeria	3 August 1998	3 August 1999
Antigua and Barbuda	14 June 2000	14 June 2001
Australia	7 April 1997	15 May 1998
Bahamas	1 April 1997	15 May 1998
Bahrain	12 May 1997	15 May 1998
Barbados	7 July 1998	7 July 1999
Belgium	6 October 1998	6 October 1999
Belize	27 November 1998	27 November 1999
Brunei Darussalam	31 January 2002	31 January 2003
Cameroon	15 October 2001	15 October 2002
Canada	29 May 1998	29 May 1999
China[1]	5 January 1999	5 January 2000
Colombia	25 January 2005	25 January 2006
Croatia	30 July 1998	30 July 1999
Cyprus	12 May 1997	15 May 1998
Denmark	20 March 1997	15 May 1998
Djibouti	17 May 2001	17 May 2002
Estonia	6 August 2004	6 August 2005
Fiji	30 November 1999	30 November 2000
Finland	29 April 1997	15 May 1998
France	11 March 1997	15 May 1998
Gabon	31 May 2002	31 May 2003
Gambia	30 October 2019	30 October 2020
Germany	25 April 1997	15 May 1998
Greece	2 May 1997	15 May 1998
Guatemala	17 May 2024	17 May 2025
Iceland	10 February 2000	10 February 2001
India	21 June 2000	21 June 2001
Ireland	15 May 1997	15 May 1998
Italy	8 October 1999	8 October 2000
Japan	9 May 1997	15 May 1998
Jordan	8 January 2019	8 January 2020
Kenya	7 July 2000	7 July 2001
Latvia	19 July 2010	19 July 2011
Liberia	21 April 1997	15 May 1998
Luxembourg	21 November 2005	21 November 2006
Malaysia	9 June 2004	9 June 2005
Malta	6 January 2000	6 January 2001
Marshall Islands	18 March 1997	15 May 1998
Mauritania	4 May 2012	4 May 2013
Mauritius	6 December 1999	6 December 2000
Mexico	13 May 1997	15 May 1998
Monaco	28 April 1997	15 May 1998
Montenegro	23 February 2007	23 February 2008
Morocco	25 October 2000	25 October 2001
Mozambique	26 April 2002	26 April 2003
Netherlands	20 January 1997	15 May 1998
New Zealand	25 June 1998	25 June 1999
Nicaragua	4 April 2014	4 April 2015
Nigeria	24 May 2002	24 May 2003
Norway	16 April 1997	15 May 1998
Oman	28 April 1997	15 May 1998
Panama	11 May 1999	11 May 2000
Papua New Guinea	23 January 2001	23 January 2002
Poland	21 December 1999	21 December 2000
Portugal	1 December 2004	1 December 2005
Qatar	20 November 2001	20 November 2002
Republic of Korea	7 March 1997	15 May 1998
Russian Federation	20 March 2000	20 March 2001
Saint Vincent and the Grenadines	9 October 2001	9 October 2002
Serbia	25 May 2011	25 May 2012
Seychelles	23 July 1999	23 July 2000
Sierra Leone	4 June 2001	4 June 2002
Singapore	31 December 1997	31 December 1998

Slovenia	19 July 2000	19 July 2001
South Africa	1 October 2004	1 October 2005
Spain	13 May 1997	15 May 1998
Sri Lanka	22 January 1999	22 January 2000
Sweden	18 February 1997	15 May 1998
Switzerland	9 May 1997	15 May 1998
Tonga	10 December 1999	10 December 2000
Tunisia	12 May 1997	15 May 1998
Tuvalu	30 June 2004	30 June 2005
United Kingdom[2]	12 May 1997	15 May 1998
Vanuatu	18 February 1999	18 February 2000
Venezuela (Bolivarian Republic of)	22 July 1998	22 July 1999
Yemen	31 July 2008	31 July 2009

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[1] Also applicable to the Hong Kong Special Administrative Region.

[2] The United Kingdom declared denunciation to be effective also in respect of:

Anguilla	Gibraltar
Bailiwick of Guernsey	Isle of Man
Bailiwick of Jersey	Montserrat
Bermuda	Pitcairn, Henderson, Ducie and Oeno Islands
British Indian Ocean Territory	South Georgia and South Sandwich Islands
British Virgin Islands	St. Helena, Ascension and Tristan da Cunha[*]
Cayman Islands	Sovereign Base Areas of Akrotiri and Dhakelia on Cyprus
Falkland Islands[**]	Turks and Caicos Islands

[*] The depositary received a communication, dated 2 March 2010, from the Foreign and Commonwealth Office in London, informing that the name of the British overseas territory formerly called “St. Helena and Dependencies” has been changed to “St. Helena, Ascension and Tristan da Cunha”. The status of the territory as a British overseas territory remains unchanged.

[**] A dispute exists between the Governments of Argentina and the United Kingdom of Great Britain and Northern Ireland concerning sovereignty over the Falkland Islands (Malvinas).

IV. Declarations, Reservations and Statements

AUSTRALIA

The instrument of ratification of the Commonwealth of Australia was accompanied by the following declarations:

"Australia has taken note of the reservation made by the Union of Soviet Socialist Republics on its accession on 24 June l975 to the Convention, concerning article XI(2) of the Convention. Australia wished to advise that it is unable to accept the reservation. Australia considers that international law does not grant a State the right to immunity from the jurisdiction of the courts of another State in proceedings concerning civil liability in respect of a State-owned ship used for commercial purposes. It is also Australia's understanding that the above-mentioned reservation is not intended to have the effect that the Union of Soviet Socialist Republics may claim judicial immunity of a foreign State with respect to ships owned by it, used for commercial purposes and operated by a company which in the Union of Soviet Socialist Republics is registered as the ship's operator, when actions for compensation are brought against the company in accordance with the provisions of the Convention. Australia also declares that, while being unable to accept the Soviet reservation, it does not regard that fact as precluding the entry into force of the Convention as between the Union of Soviet Socialist Republics and Australia."

"Australia has taken note of the declaration made by the German Democratic Republic on its accession on 13 March l978 to the Convention, concerning article XI(2) of the Convention. Australia wished to declare that it cannot accept the German Democratic Republic's position on sovereign immunity. Australia considers that international law does not grant a State the right to immunity from the jurisdiction of the courts of another State in proceedings concerning civil liability in respect of a State-owned ship used for commercial purposes. Australia also declares that, while being unable to accept the declaration by the German Democratic Republic, it does not regard that fact as precluding the entry into force of the Convention as between the German Democratic Republic and Australia."

BELGIUM

The instrument of ratification of the Kingdom of Belgium was accompanied by a Note Verbale (in the French language) the text of which reads as follows:

[Translation]

"…The Government of the Kingdom of Belgium regrets that it is unable to accept the reservation of the Union of Soviet Socialist Republics, dated 24 June l975, in respect of article XI, paragraph 2 of the Convention.

"The Belgian Government considers that international law does not authorize States to claim judicial immunity in respect of vessels belonging to them and used by them for commercial purposes.

"Belgian legislation concerning the immunity of State-owned vessels is in concordance with the provisions of the International Convention for the Unification of Certain Rules concerning the Immunity of State-owned Ships, done at Brussels on 10 April 1926, to which Belgium is a Party.

"The Belgian Government assumes that the reservation of the USSR does not in any way affect the provisions of article 16 of the Maritime Agreement between the Belgian-Luxembourg Economic Union and the Union of Soviet Socialist Republics, of the Protocol and the Exchange of Letters, signed at Brussels on 17 November l972.

"The Belgian Government also assumes that this reservation in no way affects the competence of a Belgian court which, in accordance with article IX of the aforementioned International Convention, is seized of an action for compensation for damage brought against a company registered in the USSR in its capacity of operator of a vessel owned by that State, because the said company, by virtue of article I, paragraph 3 of the same Convention, is considered to be the 'owner of the ship‘ in the terms of this Convention.

"The Belgian Government considers, however, that the Soviet reservation does not impede the entry into force of the Convention as between the Union of Soviet Socialist Republics and the Kingdom of Belgium."

CHINA

At the time of depositing its instrument of accession the Representative of the People's Republic of China declared "that the signature to the Convention by Taiwan authorities is illegal and null and void".

GERMAN DEMOCRATIC REPUBLIC

The instrument of accession of the German Democratic Republic was accompanied by the following statement and declarations (in the German language):

[Translation]

"In connexion with the declaration made by the Government of the Federal Republic of Germany on 20 May l975 concerning the application of the International Convention on Civil Liability for Oil Pollution Damage of 29 November l969 to Berlin (West), it is the understanding of the German Democratic Republic that the provisions of the Convention may be applied to Berlin (West) only inasmuch as this is consistent with the Quadripartite Agreement of 3 September l97l, under which Berlin (West) is no constituent part of the Federal Republic of Germany and must not be governed by it."

"The Government of the German Democratic Republic considers that the provisions of article XI, paragraph 2, of the Convention are inconsistent with the principle of immunity of States."[1]

"The Government of the German Democratic Republic considers that the provisions of article XIII, paragraph 2, of the Convention are inconsistent with the principle that all States pursuing their policies in accordance with the purposes and principles of the Charter of the United Nations shall have the right to become parties to conventions affecting the interests of all States."

"The position of the Government of the German Democratic Republic on article XVII of the Convention, as far as the application of the Convention to colonial and other dependent territories is concerned, is governed by the provisions of the United Nations Declaration on the Granting of Independence to Colonial Countries and Peoples (resolution 1514(XV) of 14 December l960) proclaiming the necessity of bringing a speedy and unconditional end to colonialism in all its forms and manifestations."

FEDERAL REPUBLIC OF GERMANY

The instrument of ratification of the Federal Republic of Germany was accompanied by a declaration (in the English language) that "with effect from the day on which the Convention enters into force for the Federal Republic of Germany it shall also apply to Berlin (West)".

GUATEMALA

The instrument of acceptance of the Republic of Guatemala contained the following declaration (in the Spanish language):

[Translation]

"It is declared that relations that may arise with Belize by virtue of this accession can in no sense be interpreted as recognition by the State of Guatemala of the independence and sovereignty unilaterally decreed by Belize."

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[1] The following Governments do not accept the reservation contained in the instrument of accession of the Government of the German Democratic Republic, and the texts of their Notes to this effect were circulated by the depositary: Denmark, France, the Federal Republic of Germany, Japan, Norway, Sweden and the United Kingdom.

ITALY

The instrument of ratification of the Italian Republic was accompanied by the following statement (in the Italian language):

[Translation]

"The Italian Government wished to state that it has taken note of the reservation put forward by the Government of the Soviet Union (on the occasion of the deposit of the instrument of accession on 24 June l975) to article XI(2) of the International Convention on civil liability for oil pollution damage, adopted in Brussels on 29 November l969.

"The Italian Government declares that it cannot accept the aforementioned reservation and, with regard to the matter, observes that, under international law, the States have no right to jurisdictional immunity in cases where vessels of theirs are utilized for commercial purposes.

"The Italian Government therefore considers its juridical bodies competent - as foreseen by article IX and XI(2) of the Convention - in actions for the recovery of losses incurred in cases involving vessels belonging to States employing them for commercial purposes, as indeed in cases where, on the basis of article I(3), it is a company, running vessels on behalf of a State, that is considered the owner of the vessel.

"The reservation and its non-acceptance by the Italian Government do not, however, preclude the coming into force of the Convention between the Soviet Union and Italy, and its full implementation, including that of article XI(2)."

PERU[1]

The instrument of accession of the Republic of Peru contained the following reservation (in the Spanish language):

[Translation]

"With respect to article II, because it considers that the said Convention will be understood as applicable to pollution damage caused in the sea area under the sovereignty and jurisdiction of the Peruvian State, up to the limit of 200 nautical miles, measured from the base lines of the Peruvian coast".

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[1] The depositary received the following communication dated 14 July 1987 from the Embassy of the Federal Republic of Germany in London (in the English language):

"… the Government of the Federal Republic of Germany has the honour to reiterate its well-known position as to the sea area up to the limit of 200 nautical miles, measured from the base lines of the Peruvian coast, claimed by Peru to be under the sovereignty and jurisdiction of the Peruvian State. In this respect the Federal Government points again to the fact that according to international law no coastal State can claim unrestricted sovereignty and jurisdiction beyond its territorial sea, and that the maximum breadth of the territorial sea according to international law is 12 nautical miles."

The depositary received the following communication dated 4 November 1987 from the Permanent Mission of the Union of Soviet Socialist Republics to the International Maritime Organization (in the Russian language):

[Translation]

"… the Soviet Side has the honour to confirm its position in accordance with which a coastal State has no right to claim an extension of its sovereignty to sea areas beyond the outer limit of its territorial waters the maximum breadth of which in accordance with international law cannot exceed 12 nautical miles."

SAINT KITTS AND NEVIS

The instrument of accession of Saint Kitts and Nevis contained the following declaration:

"The Government of Saint Kitts and Nevis considers that international law does not authorize States to claim judicial immunity in respect of vessels belonging to them and used by them for commercial purposes."

SAUDI ARABIA

The instrument of accession of the Kingdom of Saudi Arabia contained the following reservation (in the Arabic language):

[Translation]

"However, this accession does not in any way mean or entail the recognition of Israel, and does not lead to entering into any dealings with Israel; which may be arranged by the above-mentioned Convention and the said Protocol."

SYRIAN ARAB REPUBLIC

The instrument of accession of the Syrian Arab Republic contains the following sentence (in the Arabic language):

[Translation]

"… this accession [to the Convention] in no way implies recognition of Israel and does not involve the establishment of any relations with Israel arising from the provisions of this Convention."

USSR

The instrument of accession of the Union of Soviet Socialist Republics contains the following reservation (in the Russian language):

[Translation]

"The Union of Soviet Socialist Republics does not consider itself bound by the provisions of article XI, paragraph 2 of the Convention, as they contradict the principle of the judicial immunity of a foreign State."[1]

Furthermore, the instrument of accession contains the following statement (in the Russian language):

[Translation]

"On its accession to the International Convention on Civil Liability for Oil Pollution Damage, l969, the Union of Soviet Socialist Republics considers it necessary to state that

"(a) the provision of article XIII, paragraph 2 of the Convention which deny participation in the Convention to a number of States, are of a discriminatory nature and contradict the generally recognized principle of the sovereign equality of States, and

"(b) the provision of article XVII of the Convention envisaging the possibility of its extension by the Contracting States to the territories for the international relations of which they are responsible are outdated and contradict the United Nations Declaration on Granting Independence to Colonial Countries and Peoples (resolution 1514(XV) of 14 December l960)."

The depositary received on 17 July 1979 from the Embassy of the Union of Soviet Socialist Republics in London a communication stating that:

> "… the Soviet side confirms the reservation to paragraph 2 of article XI of the International Convention of 1969 on the Civil Liability for Oil Pollution Damage, made by the Union of Soviet Socialist Republics at adhering to the Convention. This reservation reflects the unchanged and well-known position of the USSR regarding the impermissibility of submitting a state without its express consent to the courts jurisdiction of another state. This principle of the judicial immunity of a foreign state is consistently upheld by the USSR at concluding and applying multilateral international agreements on various matters, including those of merchant shipping and the Law of the sea."
>
> "In accordance with article III and other provisions of the l969 Convention, the liability for the oil pollution damage, established by the Convention is attached to "the owner" of the "ship", which caused such damage, while paragraph 3 of article 1 of the Convention stipulates that "in the case of a ship owned by a state and operated by a company which in that state is registered as the ship's operator, "owner" shall mean such company". Since in the USSR state ships used for commercial purposes are under the operational management of state organizations who have an independent liability on their obligations, it is only against these organizations and not against the Soviet state that actions for compensation of the oil pollution damage in accordance with the l969 Convention could be brought. Thus the said reservation does not prevent the consideration in foreign courts in accordance with the jurisdiction established by the Convention, of such suits for the compensation of the damage by the merchant ships owned by the Soviet state."

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[1] The following Governments do not accept the reservation contained in the instrument of accession of the Government of the Union of Soviet Socialist Republics, and the texts of the their Notes to this effect were circulated by the depositary: Denmark, France, the Federal Republic of Germany, Japan, the Netherlands, New Zealand, Norway, Sweden, the United Kingdom.

PROTOCOL OF 1976 TO THE INTERNATIONAL CONVENTION ON CIVIL LIABILITY FOR OIL POLLUTION DAMAGE, 1969 (CLC PROT 1976)

Done at London, 19 November l976

Entry into force: 8 April 1981

Signature, ratification, acceptance, approval, accession

Article III

1. The present Protocol shall be open for signature by any State which has signed the Convention[1] or acceded thereto and by any State invited to attend the Conference to revise the Unit of Account Provisions of the Convention on Civil Liability for Oil Pollution Damage, l969, held in London from 17 to 19 November 1976. The Protocol shall be open for signature from 1 February l977 to 31 December 1977 at the Headquarters of the Organization.

2. Subject to paragraph 4 of this article, the present Protocol shall be subject to ratification, acceptance or approval by the States which have signed it.

3. Subject to paragraph 4 of this article, this Protocol shall be open for accession by States which did not sign it.

4. The present Protocol may be ratified, accepted, approved or acceded to by States Parties to the Convention.[1]

Article IV

1. Ratification, acceptance, approval or accession shall be effected by the deposit of a formal instrument to that effect with the Secretary-General.

Entry into force

Article V

1. The present Protocol shall enter into force for the States which have ratified, accepted, approved or acceded to it on the ninetieth day following the date on which eight States including five States each with not less than 1,000,000 gross tons of tanker tonnage have deposited instruments of ratification, acceptance, approval or accession with the Secretary-General.

2. For each State which subsequently ratifies, accepts, approves or accedes to it, the present Protocol shall enter into force on the ninetieth day after the deposit by such State of the appropriate instrument.

Article VI

1. The present Protocol may be denounced by any Party at any time after the date on which the Protocol enters into force for that Party.

2. Denunciation shall be effected by the deposit of an instrument to that effect with the Secretary-General.

3. Denunciation shall take effect one year, or such longer period as may be specified in the instrument of denunciation, after its deposit with the Secretary-General.

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[1] International Convention on Civil Liability for Oil Pollution Damage, l969.

I. Signatories

II. Contracting States

III. States which have denounced the Protocol

IV. Declarations, Reservations and Statements

V. Notifications

I. Signatories

France	Sous reserve d'approbation
Germany, Federal Republic of	
Sweden	
United Kingdom	Subject to ratification

II. Contracting States

	Date of deposit of instrument	Date of entry into force	Effective date of denunciation
Albania (accession)	6 April 1994	5 July 1994	
Antigua and Barbuda (accession)	23 June 1997	21 September 1997	
Australia (accession)	7 November l983	5 February l984	
Azerbaijan (accession)	16 July 2004	14 October 2004	
Bahamas (acceptance)	3 March l980	8 April l98l	
Bahrain (accession)	3 May 1996	1 August 1996	
Barbados (accession)	6 May 1994	4 August 1994	
Belgium (accession)	15 June 1989	13 September 1989	
Belize (accession)	2 April 1991	1 July 1991	
Brunei Darussalam (accession)	29 September 1992	28 December 1992	
Cambodia (accession)	8 June 2001	6 September 2001	
Cameroon (accession)	14 May l984	12 August l984	
Canada (accession)	24 January 1989	24 April 1989	
China (accession)[1, 2]	29 September 1986	28 December 1986	22 August 2003
Colombia (accession)	26 March 1990	24 June 1990	25 January 2006
Costa Rica (accession)	8 December 1997	8 March 1998	
Cyprus (accession)	19 June 1989	17 September 1989	
Denmark (accession)	3 June l98l	1 September l98l	
Egypt (accession)	3 February 1989	4 May 1989	
El Salvador (accession)	2 January 2002	2 April 2002	
Finland (accession)	8 January l98l	8 April l98l	
France (approval)	7 November l980	8 April l98l	
Georgia (accession)	25 August 1995	23 November 1995	
Germany (ratification)[3]	28 August l980	8 April l98l	
Greece (accession)	10 May 1989	8 August 1989	
Iceland (accession)	24 March 1994	22 June 1994	
India (accession)	1 May 1987	30 July 1987	
Ireland (accession)	19 November 1992	17 February 1993	15 May 1998
Italy (accession)	3 June l983	1 September l983	
Japan (accession)	24 August 1994	22 November 1994	
Kuwait (accession)	1 July l98l	29 September l98l	
Liberia (accession)	17 February l98l	8 April l98l	
Luxembourg (accession)	14 February 1991	15 May 1991	
Maldives (accession)	14 June l98l	12 September l98l	
Malta (accession)	27 September 1991	26 December 1991	6 January 2001

	Date of deposit of instrument	Date of entry into force	Effective date of denunciation
Marshall Islands (accession)	24 January 1994	24 April 1994	
Mauritania (accession)	17 November 1995	15 February 1996	
Mauritius (accession)	6 April 1995	5 July 1995	
Mexico (accession)	13 May 1994	11 August 1994	
Netherlands (accession)	3 August l982	1 November l982	
Nicaragua (accession)	4 June 1996	2 September 1996	
Norway (accession)	17 July l978	8 April l981	
Oman (accession)	24 January 1985	24 April 1985	
Peru (accession)	24 February 1987	25 May 1987	
Poland (accession)[1]	30 October 1985	28 January 1986	
Portugal (accession)	2 January 1986	2 April 1986	
Qatar (accession)	2 June 1988	31 August 1988	20 November 2002
Republic of Korea (accession)	8 December 1992	8 March 1993	
Russian Federation[4] (accession)[1]	2 December 1988	2 March 1989	
Saudi Arabia (accession)[3]	15 April 1993	14 July 1993	
Singapore (accession)	15 December l98l	15 March l982	
Spain (accession)	22 October l98l	20 January l982	
Sweden (ratification)	7 July l978	8 April l98l	
Switzerland (accession)[1]	15 December 1987	14 March 1988	
United Arab Emirates (accession)	14 March l984	12 June l984	
United Kingdom (ratification)[1, 5,]	31 January l980	8 April l98l	15 May 1998
Vanuatu (accession)	13 January 1989	13 April 1989	
Venezuela (Bolivarian Republic of) (accession)	21 January 1992	20 April 1992	
Yemen (accession)	4 June l979	8 April l98l	

Number of Contracting States: 53

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[1] With a notification under article V(9)(c) of the Convention, as amended by the Protocol, see section V.

[2] Applies to the Hong Kong Special Administrative Region with effect from 1 July 1997. Ceased to apply to the Hong Kong Special Administrative Region with effect from 22 August 2003.

[3] For the text of a declaration, see section IV.

[4] As from 26 December 1991 the membership of the USSR in the Protocol is continued by the Russian Federation.

[5] The United Kingdom declared ratification to be effective also in respect of:

Anguilla
Bailiwick of Guernsey
Bailiwick of Jersey
Belize*
Bermuda
British Indian Ocean Territory
British Virgin Islands
Cayman Islands
Falkland Islands**
Gibraltar
Hong Kong***
Montserrat
Isle of Man
Pitcairn
St. Helena, Ascension and Tristan da Cunha ****
Turks and Caicos Islands
United Kingdom Sovereign Base Areas of Akrotiri and Dhekelia in the Island of Cyprus

* Has since become an independent State and Contracting State to the Protocol.

** For the texts of communications received from the Governments of Argentina and the United Kingdom, see footnote *** of section II of COLREG 1972.

*** Ceased to apply to Hong Kong with effect from 1 July 1997.

**** The depositary received a communication, dated 2 March 2010, from the Foreign and Commonwealth Office in London, informing that the name of the British overseas territory formerly called “St. Helena and Dependencies” has been changed to “St. Helena, Ascension and Tristan da Cunha”. The status of the territory as a British overseas territory remains unchanged.

III. States which have denounced the Protocol

	Date of receipt of denunciation	Effective date of denunciation
Australia	22 June 1988	[date of entry into force of 1984 CLC Protocol]
China	22 August 2002	22 August 2003
Colombia		25 January 2006
Ireland	15 May 1997	15 May 1998
Malta	6 January 2000	6 January 2001
Qatar	20 November 2001	20 November 2002
United Kingdom[1]	12 May 1997	15 May 1998

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[1] The United Kingdom declared denunciation to be effective also in respect of:

Anguilla
Bailiwick of Guernsey
Bailiwick of Jersey
Bermuda
British Indian Ocean Territory
British Virgin Islands
Cayman Islands
Falkland Islands*
Gibraltar
Montserrat
Isle of Man
Pitcairn, Henderson, Ducie and Oeno Islands
St. Helena, Ascension and Tristan da Cunha**
South Georgia and South Sandwich Islands
Turks and Caicos Islands
United Kingdom Sovereign Base Areas of Akrotiri and Dhekelia in the Island of Cyprus

* A dispute exists between the Governments of Argentina and the United Kingdom of Great Britain and Northern Ireland concerning sovereignty over the Falkland Islands (Malvinas).

** The depositary received a communication, dated 2 March 2010, from the Foreign and Commonwealth Office in London, informing that the name of the British overseas territory formerly called "St. Helena and Dependencies" has been changed to "St. Helena, Ascension and Tristan da Cunha". The status of the territory as a British overseas territory remains unchanged.

IV. Declarations, Reservations and Statements

FEDERAL REPUBLIC OF GERMANY

The instrument of ratification of the Federal Republic of Germany contains the following declaration (in the English language):

> "… with effect from the date on which the Protocol enters into force for the Federal Republic of Germany, it shall also apply to Berlin (West)."

SAUDI ARABIA

The instrument of accession of the Kingdom of Saudi Arabia contained the following reservation (in the Arabic language):

[Translation]

> "However, this accession does not in any way mean or entail the recognition of Israel, and does not lead to entering into any dealings with Israel; which may be arranged by the above-mentioned Convention and the said Protocol."

V. Notifications

Article V(9)(c) of the Convention, as amended by the Protocol

China:

"… the value of the national currency, in terms of SDR, of the People's Republic of China is calculated in accordance with the method of valuation applied by the International Monetary Fund."

Poland:

"Poland will now calculate financial liabilities in cases of limitation of the liability of owners of sea-going ships and liability under the International Oil Pollution Compensation Fund in terms of the Special Drawing Right, as defined by the International Monetary Fund.

"However, those SDR's will be converted according to the method instigated by Poland, which is derived from the fact that Poland is not a member of the International Monetary Fund.

"The method of conversion is that the Polish National Bank will fix a rate of exchange of the SDR to the Polish zloty through the conversion of the SDR to the United States dollar, according to the current rates of exchange quoted by Reuter. The US Dollars will then be converted into Polish zloties at the rate of exchange quoted by the Polish National Bank from their current table of rates of foreign currencies.

"The above method of calculation is in accordance with the provisions of article II paragraph 9 item "a" (in fine) of the Protocol to the International Convention on Civil Liability for Oil Pollution Damage and article II of the Protocol to the International Convention on the Establishment of an International Fund for Compensation for Oil Pollution Damage."

Switzerland:

[Translation]

"The Swiss Federal Council declares, with reference to article V, paragraph 9(a) and (c) of the Convention, introduced by article II of the Protocol of l9 November l976, that Switzerland calculates the value of its national currency in special drawing rights (SDR) in the following way:

"The Swiss National Bank (SNB) notifies the International Monetary Fund (IMF) daily of the mean rate of the dollar of the United States of America on the Zurich currency market. The exchange value of one SDR in Swiss francs is determined from that dollar rate and the rate of the SDR in dollars calculated by IMF. On the basis of these values, SNB calculates a mean SDR rate which it will publish in its Monthly Gazette."

USSR:

[Translation]

"In accordance with article V, paragraph 9 "c" of the International Convention on Civil Liability for Oil Pollution Damage, 1969 in the wording of article II of the Protocol of 1976 to this Convention it is declared that the value of the unit of "The Special Drawing Right" expressed in Soviet roubles is calculated on the basis of the US dollar rate in effect at the date of the calculation in relation to the unit of "The Special Drawing Right", determined by the International Monetary Fund, and the US dollar rate in effect at the same date in relation to the Soviet rouble, determined by the State Bank of the USSR".

United Kingdom:

"…in accordance with article V(9)(c) of the Convention, as amended by article II(2) of the Protocol, the manner of calculation employed by the United Kingdom pursuant to article V(9)(a) of the Convention, as amended, shall be the method of valuation applied by the International Monetary Fund."

PROTOCOL OF 1992 TO AMEND THE INTERNATIONAL CONVENTION ON CIVIL LIABILITY FOR OIL POLLUTION DAMAGE, 1969 (CLC PROT 1992)

Done at London, 27 November l992

Entry into force: 30 May 1996

Signature, ratification, acceptance, approval and accession

Article 12

1. This Protocol shall be open for signature at London from 15 January 1993 to 14 January 1994 by all States.

2. Subject to paragraph 4, any State may become a Party to this Protocol by:

   (a) signature subject to ratification, acceptance or approval followed by ratification, acceptance or approval; or

   (b) accession.

3. Ratification, acceptance, approval or accession shall be effected by the deposit of a formal instrument to that effect with the Secretary-General of the Organization.

4. Any Contracting State to the International Convention on the Establishment of an International Fund for Compensation for Oil Pollution Damage, l97l, hereinafter referred to as the l97l Fund Convention, may ratify, accept, approve or accede to this Protocol only if it ratifies, accepts, approves or accedes to the Protocol of l992 to amend that Convention at the same time, unless it denounces the l97l Fund Convention to take effect on the date when this Protocol enters into force for that State.

5. A State which is a Party to this Protocol but not a Party to the l969 Liability Convention shall be bound by the provisions of the l969 Liability Convention as amended by this Protocol in relation to other States Parties hereto, but shall not be bound by the provisions of the l969 Liability Convention in relation to States Parties thereto.

6. Any instrument of ratification, acceptance, approval or accession deposited after the entry into force of an amendment to the l969 Liability Convention as amended by this Protocol shall be deemed to apply to the Convention so amended, as modified by such amendment.

Entry into force

Article 13

1. This Protocol shall enter into force twelve months following the date on which ten States including four States each with not less than one million units of gross tanker tonnage have deposited instruments of ratification, acceptance, approval or accession with the Secretary-General of the Organization.

2. However, any Contracting State to the l97l Fund Convention may, at the time of the deposit of its instrument of ratification, acceptance, approval or accession in respect of this Protocol, declare that such instrument shall be deemed not to be effective for the purposes of this article until the end of the six-month period in Article 31 of the Protocol of l992 to amend the l97l Fund Convention. A State which is not a Contracting State to the l97l Fund Convention but which deposits an instrument of ratification, acceptance, approval or accession in respect of the Protocol of l992 to amend the l97l Fund Convention may also make a declaration in accordance with this paragraph at the same time.

3. Any State which has made a declaration in accordance with the preceding paragraph may withdraw it at any time by means of notification addressed to the Secretary-General of the Organization. Any such withdrawal shall take effect on the date the notification is received, provided that such State shall be deemed to have deposited its instrument of ratification, acceptance, approval or accession in respect of this Protocol on that date.

4. For any State which ratifies, accepts, approves or accedes to it after the conditions in paragraph 1 for entry into force have been met, this Protocol shall enter into force twelve months following the date of deposit by such State of the appropriate instrument.

I. Signatories

II. Contracting States

III. Declarations, Reservations and Statements

IV. Amendments

I. Signatories

Denmark	Subject to ratification
Finland	
France	Sous réserve d'approbation
Germany, Federal Republic of	
Greece	Sous réserve de ratification
Monaco	Subject to ratification
Morocco	
Norway	Subject to ratification
Poland	Subject to ratification
Sweden	Subject to ratification

II. Contracting States

	Date of deposit of instrument	Date of entry into force
Albania (accession)	30 June 2005	30 June 2006
Algeria (accession)	11 June 1998	11 June 1999
Angola (accession)	4 October 2001	4 October 2002
Antigua and Barbuda (accession)	14 June 2000	14 June 2001
Argentina (accession)[2]	13 October 2000	13 October 2001
Australia (accession)	9 October 1995	9 October 1996
Azerbaijan (accession)	16 July 2004	16 July 2005
Bahamas (accession)	1 April 1997	1 April 1998
Bahrain (accession)	3 May 1996	3 May 1997
Bangladesh (accession)	6 July 2026	6 July 2027
Barbados (accession)	7 July 1998	7 July 1999
Belgium (accession)	6 October 1998	6 October 1999
Belize (accession)	27 November 1998	27 November 1999
Benin (accession)	5 February 2010	5 February 2011
Brunei Darussalam (accession)	3 January 2002	3 January 2003
Bulgaria (accession)	28 November 2003	28 November 2004
Cambodia (accession)	8 June 2001	8 June 2002
Cameroon (accession)	15 October 2001	15 October 2002
Canada (accession)	29 May 1998	29 May 1999
Cabo Verde (accession)	4 July 2003	4 July 2004
Chile (accession)	29 May 2002	29 May 2003
China (accession)[2]	5 January 1999	5 January 2000
Colombia (accession)	19 November 2001	19 November 2002
Comoros (accession)	15 January 2000	15 January 2001
Congo (accession)	7 August 2002	7 August 2003
Cook Islands (accession)	12 March 2007	12 March 2008
Costa Rica (accession)	19 May 2021	19 May 2022
Côte d'Ivoire (accession)	8 July 2013	8 July 2014
Croatia (accession)	12 January 1998	12 January 1999
Cyprus (accession)	12 May 1997	12 May 1998
Democratic People's Republic of Korea (accession)	13 July 2021	13 July 2022
Denmark (ratification)	30 May 1995	30 May 1996

Djibouti(accession)	8 January 2001	8 January 2002
Dominica (accession)	31 August 2001	31 August 2002
Dominican Republic (accession)	24 June 1999	24 June 2000
Ecuador (accession)	11 December 2007	11 December 2008
Egypt (accession)	21 April 1995	30 May 1996
El Salvador (accession)	2 January 2002	2 January 2003
Estonia (accession)	6 August 2004	6 August 2005
Fiji (accession)	30 November 1999	30 November 2000
Finland (acceptance)	24 November 1995	24 November 1996
France (approval)	29 September 1994	30 May 1996
Gabon (accession)	31 May 2002	31 May 2003
Gambia (accession)	30 October 2019	30 October 2020
Georgia (accession)	18 April 2000	18 April 2001
Germany (ratification)[1]	29 September 1994	30 May 1996
Ghana (accession)	3 February 2003	3 February 2004
Greece (ratification)	9 October 1995	9 October 1996
Grenada (accession)	7 January 1998	7 January 1999
Guatemala (accession)	2 August 2016	2 August 2017
Guinea (accession)	2 October 2002	2 October 2003
Guinea-Bissau (accession)	12 May 2022	12 May 2023
Guyana (accession)	20 February 2019	20 February 2020
Honduras (accession)	26 June 2019	26 June 2020
Hungary (accession)	30 March 2007	30 March 2008
Iceland (accession)	13 November 1998	13 November 1999
India (accession)	15 November 1999	15 November 2000
Indonesia (accession)	6 July 1999	6 July 2000
Iraq (accession)	30 September 2021	30 September 2022
Iran, (Islamic Republic of) (accession)	24 October 2007	24 October 2008
Ireland (accession)[1]	15 May 1997	16 May 1998
Israel (accession)[4]	21 October 2004	21 October 2005
Italy (accession)	16 September 1999	16 September 2000
Jamaica (accession)	6 June 1997	6 June 1998
Japan (accession)	24 August 1994	30 May 1996
Jordan (accession)	27 May 2015	27 May 2016
Kenya (accession)	2 February 2000	2 February 2001
Kiribati (accession)	5 February 2007	5 February 2008
Kuwait (accession)	16 April 2004	16 April 2005
Latvia (accession)	9 March 1998	9 March 1999
Lebanon (accession)	30 March 2005	30 March 2006
Liberia (accession)	5 October 1995	5 October 1996
Lithuania (accession)	27 June 2000	27 June 2001
Luxembourg (accession)	21 November 2005	21 November 2006
Madagascar (accession)	21 May 2002	21 May 2003
Malaysia (accession)	9 June 2004	9 June 2005
Maldives (accession)	20 May 2005	20 May 2006
Malta (accession)	6 January 2000	6 January 2001
Marshall Islands (accession)	16 October 1995	16 October 1996
Mauritania (accession)	4 May 2012	4 May 2013
Mauritius (accession)	6 December 1999	6 December 2000
Mexico (accession)	13 May 1994	30 May 1996
Moldova (accession)	11 October 2005	11 October 2006
Monaco (ratification)	8 November 1996	8 November 1997
Mongolia (accession)	8 August 2008	8 August 2009
Montenegro (accession)	29 November 2011	29 November 2012
Morocco (ratification)	22 August 2000	22 August 2001
Mozambique (accession)	26 April 2002	26 April 2003
Myanmar (accession)	12 July 2016	12 July 2017
Namibia (accession)	18 December 2002	18 December 2003
Nauru (accession)	23 March 2020	23 March 2021
Netherlands (accession)[3]	15 November 1996	15 November 1997
New Zealand (accession)[1]	25 June 1998	25 June 1999
Nicaragua (accession)	4 April 2014	4 April 2015
Nigeria (accession)	24 May 2002	24 May 2003
Niue (accession)	27 June 2012	27 June 2013
Norway (ratification)	3 April 1995	30 May 1996

Oman (accession)	8 July 1994	30 May 1996
Pakistan (accession)	2 March 2005	2 March 2006
Palau (accession)	29 September 2011	29 September 2012
Panama (accession)	18 March 1999	18 March 2000
Papua New Guinea (accession)	23 January 2001	23 January 2002
Peru (accession)	1 September 2005	1 September 2006
Philippines (accession)	7 July 1997	7 July 1998
Poland (accession)	21 December 1999	21 December 2000
Portugal (accession)	13 November 2001	13 November 2002
Qatar (accession)	20 November 2001	20 November 2002
Republic of Korea (accession)[1]	7 March 1997	16 May 1998
Romania (accession)	27 November 2000	27 November 2001
Russian Federation (accession)	20 March 2000	20 March 2001
Saint Kitts and Nevis (accession)	7 October 2004	7 October 2005
Saint Lucia (accession)	20 May 2004	20 May 2005
Saint Vincent and the Grenadines (accession)	9 October 2001	9 October 2002
Samoa (accession)	1 February 2002	1 February 2003
San Marino (accession)	19 April 2021	19 April 2022
Saudi Arabia (accession)	23 May 2005	23 May 2006
Senegal (accession)	2 August 2011	2 August 2012
Serbia (accession)	25 May 2011	25 May 2012
Seychelles (accession)	23 July 1999	23 July 2000
Sierra Leone (accession)	4 June 2001	4 June 2002
Singapore (accession)	18 September 1997	18 September 1998
Slovakia (accession)	8 July 2013	8 July 2014
Slovenia (accession)	19 July 2000	19 July 2001
Solomon Islands (accession)	30 June 2004	30 June 2005
Somalia (accession)	26 June 2026	26 June 2027
South Africa (accession)	1 October 2004	1 October 2005
Spain (accession)	6 July 1995	6 July 1996
Sri Lanka (accession)	22 January 1999	22 January 2000
Sweden (ratification)	25 May 1995	30 May 1996
Switzerland (accession)	4 July 1996	4 July 1997
Syrian Arab Republic (accession)[1]	22 February 2005	22 February 2006
Thailand (accession)	7 July 2017	7 July 2018
Togo (accession)	23 April 2012	23 April 2013
Tonga (accession)	10 December 1999	10 December 2000
Trinidad and Tobago	6 March 2000	6 March 2001
Tunisia (accession)	29 January 1997	29 January 1998
Türkiye (accession)[1]	17 August 2001	17 August 2002
Turkmenistan (accession)	21 September 2009	21 September 2010
Tuvalu (accession)	30 June 2004	30 June 2005
Ukraine (accession)	29 November 2007	29 November 2008
United Arab Emirates (accession)	19 November 1997	19 November 1998
United Kingdom (accession)[5]	29 September 1994	30 May 1996
United Republic of Tanzania (accession)	19 November 2002	19 November 2003
Uruguay (accession)	9 July 1997	9 July 1998
Vanuatu (accession)	18 February 1999	18 February 2000
Venezuela (Bolivarian Republic of) (accession)	22 July 1998	22 July 1999
Viet Nam (accession)	17 June 2003	17 June 2004
Yemen (accession)	20 September 2006	20 September 2007

Number of Contracting States: 148

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[1] For the text of a declaration, see section III.

[2] China declared that the Protocol will also be applicable to the Hong Kong Special Administrative Region and to the Macao Special Administrative Region with effect from 24 June 2005.

[3] Applies to the Netherlands Antilles* with effect from 21 December 2005, and to Aruba from 12 April 2006.
* The Netherlands Antilles has ceased to exist as an autonomous country within the Kingdom of the Netherlands with effect from 10 October 2010. Since that date, the Kingdom of the Netherlands consists of four autonomous

countries: The Netherlands (European part and Caribbean part), Aruba, Curaçao and Sint Maarten. For more details see footnote 4, in section II of SOLAS 1974.. The Protocol applies as follows:

		Effective from
The Netherlands (European part)	)	15 November 1997
Caribbean part of the Netherlands	)	10 October 2010
Aruba	)	12 April 2006
Curaçao	)	10 October 2010
Sint Maarten	)	10 October 2010

[4] The depositary received, on 21 July 2005, the following statement from the Embassy of Israel:

[Footnotes continued]

"The Government of the State of Israel has noted that the instrument of accession of the Syrian Arab Republic at the above-mentioned Convention contains a declaration with respect to the State of Israel.

> The Government of the State of Israel considers that such declaration, which is explicitly of a political nature, is incompatible with the purposes and objectives of the Convention.

The Government of the State of Israel therefore objects to the aforesaid declaration made by the Syrian Arab Republic."

[5] The United Kingdom declared its accession to be effective in respect of:

Bailiwick of Jersey	)
Falkland Islands*	)
Isle of Man	) with effect from 30.5.96
Montserrat	)
South Georgia and the South Sandwich Islands	)
Anguilla	)
Bailiwick of Guernsey	)
Bermuda	)
British Antarctic Territory	)
British Indian Ocean Territory	) with effect from 20.2.98
Pitcairn, Henderson, Ducie and Oeno Islands	)
Sovereign Base Areas of Akrotiri and Dhakelia on the Island of Cyprus	)
Turks and Caicos Islands	)
Virgin Islands	)
Cayman Islands	)
Gibraltar	) with effect from 15.5.98
St. Helena and its Dependencies**	)

* A dispute exists between the Governments of Argentina and the United Kingdom of Great Britain and Northern Ireland concerning sovereignty over the Falkland Islands (Malvinas).

** The depositary received a communication, dated 2 March 2010, from the Foreign and Commonwealth Office in London, informing that the name of the British overseas territory formerly called “St. Helena and Dependencies” has been changed to “St. Helena, Ascension and Tristan da Cunha”. The status of the territory as a British overseas territory remains unchanged.

III. Declarations, Reservations and Statements

ARGENTINA

The instrument of accession of the Argentine Republic contained the following declaration (in the Spanish language):

[Translation]

> "…. The Argentine Republic rejects the statement made by the United Kingdom of Great Britain and Northern Ireland on acceding to the Protocol of 1992 to amend the International Convention on Civil Liability for Oil Pollution Damage, 1969 and the Protocol of 1992 to amend the International Convention on the Establishment of an International Fund for Compensation for Oil Pollution Damage, 1971. In that statement, accession was declared to be effective in respect of the Malvinas Islands, South Georgia and South Sandwich Islands. The Argentine Republic reaffirms its sovereignty over these islands and their surrounding maritime spaces, which constitute an integral part of its national territory. The Argentine Republic recalls the adoption, by the General Assembly of the United Nations, of resolutions 2065(XX), 3160(VVVII), 31/49, 37/9, 38/12, 39/6, 40/21, 41/40, 42/19 and 43/25, acknowledging the existence of a dispute concerning sovereignty and urging the Government of the Argentine Republic and the United Kingdom of Great Britain and Northern Ireland to enter into negotiations with a view to identifying means of pacific and final settlement of the outstanding problems between the two countries, including all matters concerning the future of the Malvinas Islands, in accordance with the Charter of the United Nations."

COSTA RICA

The instrument of accession included the following reservation:

“The Republic of Costa Rica makes a reservation to articles 14 and 15 of the final clauses of the International Convention on Civil Liability for Oil Pollution Damage, 1992, in the sense that the amendments to the said Convention shall come into force in the country once they have been approved in accordance with the procedures established in the Political Constitution of the Republic of Costa Rica.”

GERMANY

The instrument of ratification of Germany was accompanied by the following declaration:

> "The Federal Republic of Germany hereby declares that, having deposited the instruments of ratification of the protocols of 27 November 1992 amending the International Convention on Civil Liability for Oil Pollution Damage of 1969 and amending the International Convention on the Establishment of an International Fund for Compensation for Oil Pollution Damage of 1971, it regards its ratification of the Protocols of 25 May 1984, as documented on 18 October 1988 by the deposit of its instruments of ratification, as null and void as from the entry into force of the Protocols of 27 November 1992."

IRELAND

The instrument of accession of Ireland contained the following declaration:

> "Declare that this instrument of accession shall not take effect until the end of the six-month period in article 31 of the 1992 Protocol to amend the International Convention on the Establishment of an International Fund for Compensation for Oil Pollution Damage of 1971."

MAURITIUS

The instrument of accession of the Republic of Mauritius contained the following declaration:

> "REJECTS as unfounded the claim by the United Kingdom of Great Britain and Northern Ireland of any sovereignty or sovereign rights over the so-called British Indian Ocean Territory (Chagos Archipelago) and reaffirms its sovereignty and sovereign rights over the Chagos Archipelago which forms an integral part of the national territory of the Republic of Mauritius, and over their surrounding maritime zones."

NEW ZEALAND

The instrument of accession of New Zealand contained the following declaration:

"AND DECLARES that this accession shall not extend to Tokelau unless and until a declaration to this effect is lodged by the Government of New Zealand with the Depositary."

REPUBLIC OF KOREA

The instrument of accession of the Republic of Korea contained the following declaration:

[Translation]

"… that this instrument of accession shall not take effect until the end of the six-month period in article 31 of the Protocol of 1992 to amend the 1991 Fund Convention."

SYRIAN ARAB REPUBLIC

The instrument of accession of the Syrian Arab Republic contained the following declaration:

[Translation]

"Ratification of this Protocol by the Syrian Arab Republic in no way implies recognition of Israel and will not result in Syria's entering into any relations whatsoever with that country under the rules of this Protocol."

TÜRKIYE

The instrument of accession of Türkiye contained the following declaration:

"In relation to Article II/a(ii) of this Convention, the Republic of Türkiye considers that this Article is not in conformity with international law and it defines those maritime areas as high seas whereby no country has jurisdiction and sovereign rights according to international law. The Republic of Türkiye, however, taking into consideration the objectives of this Convention, reserves its rights deriving from the Convention. Within this context, the Republic of Türkiye hereby declares that in maritime areas where there has been no delimitation agreement between opposite or adjacent coastal States, the exercise of authority or any claim thereof under this Convention by any coastal State Party to this Convention, creates no rights or obligations with regard to delimitation of maritime areas, nor does it create a precedent for the future agreements between those States concerning the delimitation of maritime areas under national jurisdiction."

The instrument was also accompanied by the following objection to a reservation made by the then Union of Soviet Socialist Republics on its accession to the International Convention on Civil Liability for Oil Pollution Damage, 1969:

"The Republic of Türkiye has taken note of the reservation made by the then Union of Soviet Socialist Republics on its accession on 24 June 1975 to the Convention, concerning article XI(2) of the Convention.

The Republic of Türkiye hereby declares that it cannot accept the aforementioned reservation. The Republic of Türkiye considers that international law does not grant a State right to immunity from jurisdiction of the courts of another State in proceedings concerning civil liability in respect of a State-owned ship used for commercial purposes."

The depositary received a communication dated 8 April 2002 from the Government of the Hellenic Republic regarding the declaration by Türkiye:

"The Government of the Hellenic Republic hereby declares that it does not accept such Declaration, as it considers that Article IIa(ii) of the amended 1969 Convention, to which the Declaration refers, is not contrary to International Laws."

IV. Amendments

(1) 2000 (limitation amounts) Amendments (LEG.1(82))

A. Adoption

The Legal Committee at its eighty-second session (October 2000) adopted by resolution LEG.1(82), in accordance with article 15(1) and (2) of the 1992 CLC Protocol, amendments to the limitation amounts set out in article 6(1) of the 1992 CLC Protocol.

B. Entry into force

In accordance with article 15(7) of the Protocol, and as determined by the Legal Committee, the amendments shall enter into force on 1 November 2003 unless, prior to 1 May 2002 not less than one quarter of the States that were Contracting States on the date of adoption of the amendments (18 October 2000) have communicated to the Organization that they do not accept the amendments. No such objection was received and the amendments accordingly entered into force on 1 November 2003.

SPECIAL TRADE PASSENGER SHIPS AGREEMENT, 1971 (STP 1971)

Done at London, 6 October l971

Entry into force: 2 January l974

Signature, acceptance and accession

Article V

(a) The present Agreement shall remain open for signature for three months from this day's date and shall thereafter remain open for accession. Contracting Governments to the Convention[1] may become parties to the Agreement by:

(i) signature without reservation as to acceptance;

(ii) signature subject to acceptance followed by acceptance; or

(iii) accession.

(b) Acceptance or accession shall be effected by the deposit of an instrument of acceptance or accession with the Organization which shall inform all other Governments that have signed the present Agreement or acceded to it and Contracting Governments to the Convention of each acceptance or accession deposited and the date of its deposit.

Entry into force

Article VI

(a) The present Agreement shall enter into force six months after the date on which three Contracting Governments to the Convention have signed the present Agreement without reservation as to acceptance or deposited instruments of acceptance or accession with the Organization in accordance with article V hereof; provided that at least two of such Governments shall be Governments of States in whose territory are registered ships engaged in the special trades or whose nationals are carried in ships engaged in these trades.

(b) …

(c) For Governments which have deposited an instrument of acceptance or accession during the six months mentioned in paragraph (a) of this article or after the date on which the present Agreement enters into force the acceptance or accession shall take effect on the entry into force of the Agreement or three months after the date of deposit whichever is the later date.

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[1] International Convention for the Safety of Life at Sea, l960.

I. Signatories

II. Contracting States

I. Signatories

Cameroon	Subject to acceptance
France	Sous réserve d'approbation
Greece	Subject to ratification
India	Subject to ratification and acceptance
Indonesia	Subject to acceptance
Norway	Subject to acceptance and ratification
Pakistan	Subject to acceptance
United Kingdom	Subject to acceptance

II. Contracting States

	Date of deposit of instrument	Date of entry into force
Bangladesh (accession)	10 August 1978	10 November 1978
Congo (accession)	28 May 2015	28 August 2015
China[1]	-	1 July 1997
Cyprus (accession)	24 August 1989	24 November 1989
Egypt (accession)	28 January 1976	28 April 1976
France (acceptance)	27 September 1974	27 December 1974
Greece (ratification)	17 September 1979	17 December 1979
India (acceptance)	1 September 1976	1 December 1976
Indonesia (acceptance)	13 April 1973	2 January 1974
Norway (acceptance)	2 March 1973	2 January 1974
Philippines (accession)	2 July 1973	2 January 1974
Saint Vincent and the Grenadines (accession)	31 May 1989	31 August 1989
São Tomé and Principe (accession)	29 October 1998	29 January 1999
Saudi Arabia (accession)	5 September 1975	5 December 1975
Sri Lanka (accession)	10 December 1981	10 March 1982
Sweden (accession)	28 February 1978	28 May 1978
United Kingdom (acceptance) *	16 August 1979	16 November 1979
Yemen (accession)	6 June 1979	6 September 1979

Number of Contracting States: 18

The Agreement by the United Kingdom has been extended to:

Hong Kong*	27 October 1981	27 October 1981

* Ceased to apply to Hong Kong with effect from 1 July 1997, when Hong Kong reverted to China

[1] Applies only to the Hong Kong Special Administrative Region.

PROTOCOL ON SPACE REQUIREMENTS FOR SPECIAL TRADE PASSENGER SHIPS, 1973 (SPACE STP 1973)

Done at London, 13 July 1973

Entry into force: 2 June l977

Signature, acceptance and accession

Article IV

(a) The present Protocol shall remain open for signature for three months from this day's date and shall thereafter remain open for accession. Governments parties to the l97l Agreement[1] may become parties to the present Protocol by:

(i) signature without reservation as to acceptance;

(ii) signature subject to acceptance followed by acceptance; or

(iii) accession.

(b) Acceptance or accession shall be effected by the deposit of an instrument of acceptance or accession with the Organization …

Entry into force

Article V

(a) The present Protocol shall enter into force six months after the date on which three Governments parties to the l97l Agreement[1] have signed the present Protocol without reservation as to acceptance or deposited instruments of acceptance or accession with the Organization in accordance with article IV hereof; provided that at least two of such Governments shall be Governments of States in whose territory are registered ships engaged in the special trades or whose nationals are carried in ships engaged in these trades.

(b) For Governments which have deposited an instrument of acceptance or accession during the six months mentioned in paragraph (a) of this article or after the date on which the present Protocol enters into force the acceptance or accession shall take effect on the entry into force of the present Protocol or three months after the date of deposit whichever is the later date.

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[1] Special Trade Passenger Ships Agreement, l97l.

I. Signatories

II. Contracting States

I. Signatories

France	Sous reserve d'approbation ultéreure
United Kingdom	Subject to acceptance

II. Contracting States

	Date of deposit of instrument	Date of entry into force
Bangladesh (accession)	10 November l978	10 February l979
Congo (accession)	28 May 2015	28 August 2015
China[1]	-	1 July 1997
Cyprus (accession)	24 November 1989	24 February 1990
Egypt (accession)	15 October 1987	15 January 1988
France (acceptance)	27 December l974	2 June l977
Greece (accession)	17 December l979	17 March l980
India (accession)	1 December l976	2 June l977
Indonesia (accession)	10 October l979	10 January l980
Norway (accession)	11 April l975	2 June l977
Saint Vincent and the Grenadines (accession)	31 August 1989	1 December 1989
São Tomé and Principe (accession)	29 October 1998	29 January 1999
Saudi Arabia (accession)	5 December l975	2 June l977
Sri Lanka (accession)	10 March l982	10 June l982
Sweden (accession)	28 May l978	28 August l978
United Kingdom (acceptance)	16 November l979	16 February l980
Yemen (accession)	6 September l979	6 December l979

Number of Contracting States: 17

The Protocol has been extended to:

Hong Kong*	27 October l98l	27 October l98l

* Ceased to apply to Hong Kong with effect from 1 July 1997.

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[1] Applies only to the Hong Kong Special Administrative Region.

CONVENTION RELATING TO CIVIL LIABILITY IN THE FIELD OF MARITIME CARRIAGE OF NUCLEAR MATERIAL, 1971 (NUCLEAR 1971)

Done at Brussels, 17 December l97l

Entry into Force: 15 July l975

Signature, ratification, acceptance, approval, accession

Article 5

1. The present Convention shall be opened for signature in Brussels and shall remain open for signature in London at the Headquarters of the [International Maritime Organization] … until 31 December l972 and shall thereafter remain open for accession.

2. States Members of the United Nations or any of the Specialized Agencies or of the International Atomic Energy Agency or Parties to the Statute of the International Court of Justice may become Parties to the present Convention by:

(a) signature without reservation as to ratification, acceptance or approval;

(b) signature subject to ratification, acceptance or approval followed by ratification, acceptance or approval; or

(c) accession.

3. Ratification, acceptance, approval or accession shall be effected by the deposit of a formal instrument to that effect with the Secretary-General of the Organization.

Entry into force

Article 6

1. The present Convention shall enter into force on the ninetieth day following the date on which five States have either signed it without reservation as to ratification, acceptance or approval or have deposited instruments of ratification, acceptance, approval or accession with the Secretary-General of the Organization.

2. For any State which subsequently signs the present Convention without reservation as to ratification, acceptance or approval, or deposits its instrument of ratification, acceptance, approval or accession, the Convention shall come into force on the ninetieth day after the date of such signature or deposit.

I. Signatories

II. Contracting States

III. Declarations, Reservations and Statements

I. Signatories

Belgium	Sous réserve de ratification parlementaire
Brazil	Subject to ratification
Denmark	Subject to ratification
Finland	With reservation as to ratification
France	Sous réserve d'approbaion
Germany Federal Republic of	Subject to ratification and the reservation made at the time of signature of the present convention[1]
Italy	Sous réserve de ratification
Norway	Subject to ratification
Portugal	Sous réserve de ratification
Sweden	Subject to ratification
United Kingdom	Subject to ratification
Yugoslavia	Sous réserve de ratification

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[1] See section III.

II. Contracting States

	Date of deposit of instrument	Date of entry into force
Argentina (accession)	18 May l981	16 August l98l
Barbados (accession)	8 March 2023	6 June 2023
Belgium (ratification)	15 June 1989	13 September 1989
Bulgaria (accession)	3 December 2004	3 March 2005
Denmark (ratification)[1]	4 September l974	15 July l975
Dominica (accession)	31 August 2001	29 November 2001
Finland (acceptance)	6 June 1991	4 September 1991
France (ratification)	2 February l973	15 July l975
Gabon (accession)	21 January l982	21 April l982
Germany (ratification)[1]	1 October l975	30 December l975
Italy (ratification)[1]	21 July l980	19 October l980
Latvia (accession)	25 January 2002	25 April 2002
Liberia (accession)	17 February l98l	18 May l98l
Netherlands (accession)[2]	1 August 1991	30 October 1991
Norway (ratification)	16 April l975	15 July l975
Spain (accession)	21 May l974	15 July l975
Sweden (ratification)	22 November l974	15 July l975
Yemen (accession)	6 March l979	4 June l979

Number of Contracting States: 18

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[1] For the text of a declaration, reservation or statement, see section III.

[2] Extended to Bonaire, Sint Eustatius and Saba (the Caribbean part of the Netherlands) with effect from 10 October 2010. Since that date, the Kingdom of the Netherlands consists of four autonomous countries: The Netherlands (European part and Caribbean part), Aruba, Curaçao and Sint Maarten. For more details see footnote 4, in section II of SOLAS 1974. The Convention applies as follows:

		Effective from
The Netherlands (European part)	)	30 October 1991
Caribbean part of the Netherlands	)	10 October 2010
Arub, Curaçao and Sint Maarten	)	no

III. Declarations, Reservations and Statements

DENMARK

The instrument of ratification of the Kingdom of Denmark contains the reservation that the Convention shall not apply to the Faroes.

FEDERAL REPUBLIC OF GERMANY

The following reservation accompanies the signature of the Convention by the Representative of the Federal Republic of Germany (in the English language):

> "Pursuant to article 10 of the Convention relating to Civil Liability in the Field of Maritime Carriage of Nuclear Material, the Federal Republic of Germany reserves the right to provide by national law, that the persons liable under an international convention or national law applicable in the field of maritime transport may continue to be liable in addition to the operator of a nuclear installation on condition that these persons are fully covered in respect of their liability, including defence against unjustified actions, by insurance or other financial security obtained by the operator."

This reservation was withdrawn at the time of deposit of the instrument of ratification of the Convention.

The instrument of ratification of the Government of the Federal Republic of Germany was accompanied by the following declaration (in the German language):

[Translation]

> "that the said Convention shall also apply to Berlin (West) with effect from the date on which it enters into force for the Federal Republic of Germany."

ITALY

The instrument of ratification of the Italian Republic was accompanied by the following statement (in the English language):

> "It is understood that the ratification of the said Convention will not be interpreted in such a way as to deprive the Italian State of any right or recourse made according to the international law for the damages caused to the State itself or its citizens by a nuclear accident".

INTERNATIONAL CONVENTION ON THE ESTABLISHMENT OF AN INTERNATIONAL FUND FOR COMPENSATION FOR OIL POLLUTION DAMAGE, 1971 (FUND 1971)

Done at Brussels, 18 December 1971

Entry into force: 16 October 1978
Cessation of the Convention: 24 May 2002*

Signature, ratification, acceptance, approval, accession

Article 37

1. This Convention shall be open for signature by the States which have signed or which accede to the Liability Convention,[1] and by any State represented at the Conference on the Establishment of an International Fund for Compensation for Oil Pollution Damage, 1971. The Convention shall remain open for signature until 31 December 1972.

2. Subject to paragraph 4, this Convention shall be ratified, accepted or approved by the States which have signed it.

3. Subject to paragraph 4, this Convention is open for accession by States which did not sign it.

4. This Convention may be ratified, accepted, approved or acceded to, only by States which have ratified, accepted, approved or acceded to the Liability Convention.[1]

Article 38

1. Ratification, acceptance, approval or accession shall be effected by the deposit of a formal instrument to that effect with the Secretary-General of the Organization.

Notification in respect of Article 10

Article 39

Before this Convention comes into force a State shall, when depositing an instrument referred to in article 38, paragraph 1, and annually thereafter at a date to be determined by the Secretary-General of the Organization, communicate to him the name and address of any person who in respect of that State would be liable to contribute to the Fund pursuant to article 10 as well as data on the relevant quantities of contributing oil received by any such person in the territory of that State during the preceding calendar year.

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* In accordance with article 2 of the Protocol of 2000 to the International Convention on the Establishment of an International Fund for Compensation for Oil Pollution Damage, 1971, the 1971 Fund Convention ceased to be in force on 24 May 2002, when the number of Contracting States to the Convention fell to 24. The Convention therefore ceased to be in force for all States Parties thereto on that date and will not apply to incidents occurring after that date.

[1] International Convention on Civil Liability for Oil Pollution Damage, 1969.

Entry into force

Article 40

1. This Convention shall enter into force on the ninetieth day following the date on which the following requirements are fulfilled:

(a) at least eight States have deposited instruments of ratification, acceptance, approval or accession with the Secretary-General of the Organization, and

(b) the Secretary-General of the Organization has received information in accordance with article 39 that those persons in such States who would be liable to contribute pursuant to article 10 have received during the preceding calendar year a total quantity of at least 750 million tons of contributing oil.

2. However, this Convention shall not enter into force before the Liability Convention[1] has entered into force.

3. For each State which subsequently ratifies, accepts, approves or accedes to it, this Convention shall enter into force on the ninetieth day after deposit by such State of the appropriate instrument.

Article 41

1. This Convention may be denounced by any Contracting State at any time after the date on which the Convention comes into force for that State.

2. Denunciation shall be effected by the deposit of an instrument with the Secretary-General of the Organization.

3. A denunciation shall take effect one year, or such longer period as may be specified in the instrument of denunciation, after its deposit with the Secretary-General of the Organization.

4. Denunciation of the Liability Convention shall be deemed to be a denunciation of this Convention. Such denunciation shall take effect on the same date as the denunciation of the Liability Convention takes effect according to paragraph 3 of Article XVI of that Convention.

5. Notwithstanding a denunciation by a Contracting State pursuant to this Article, any provisions of this Convention relating to the obligations to make contributions under Article 10 with respect to an incident referred to in Article 12, paragraph 2(b), and occurring before the denunciation takes effect shall continue to apply.

I. Signatories

II. Contracting States

III. States which have denounced the Convention

IV. Declarations, Reservations and Statements

I. Signatories

Algeria	Sous réserve de ratification
Belgium	
Brazil	
Finland	Subject to ratification 28 November 1972
Germany, Federal Republic of	Subject to ratification
Ghana	Subject to ratification
Ireland	Subject to ratification 21 December 1972
Japan	Subject to ratification 28 December 1972
Netherlands	
Norway	
Poland	Subject to ratification
Portugal	Sous réserve de ratification
Sweden	Subject to ratification
Switzerland	Sous réserve de ratification
United Kingdom	Subject to ratification
United States	Subject to ratification
Yugoslavia	Sous réserve de ratification

II. Contracting States

	Date of deposit of instrument or succession	Date of entry into force	Effective date of denunciation
Albania (accession)	6 April 1994	5 July 1994	
Algeria (ratification)	2 June 1975	16 October 1978	3 August 1999
Antigua and Barbuda (accession)	23 June 1997	21 September 1997	14 June 2001
Australia (accession)	10 October 1994	8 January 1995	15 May 1998
Bahamas (accession)	22 July 1976	16 October 1978	15 May 1998
Bahrain (accession)	3 May 1996	1 August 1996	15 May 1998
Barbados (accession)	6 May 1994	4 August 1994	7 July 1999
Belgium (ratification)	1 December 1994	1 March 1995	6 October 1999
Benin (accession)	1 November 1985	30 January 1986	
Brunei Darussalam (accession)	29 September 1992	28 December 1992	31 January 2003
Cameroon (accession)	14 May 1984	12 August 1984	15 October 2002
Canada (accession)[1]	24 January 1989	24 April 1989	29 May 1999
China[3]	-	1 July 1997	5 January 2000
Colombia (accession)	13 March 1997	11 June 1997	25 January 2006
Côte d'Ivoire (accession)	5 October 1987	3 January 1988	
Croatia (succession)	-	8 October 1991	30 July 1999
Cyprus (accession)	26 July 1989	24 October 1989	15 May 1998
Denmark (accession)	2 April 1975	16 October 1978	15 May 1998
Djibouti (accession)	1 March 1990	30 May 1990	17 May 2002
Estonia (accession)	1 December 1992	1 March 1993	
Fiji (accession)	4 March 1983	2 June 1983	30 November 2000
Finland (ratification)	10 October 1980	8 January 1981	15 May 1998
France (accession)	11 May 1978	16 October 1978	15 May 1998
Gabon (accession)	21 January 1982	21 April 1982	31 May 2003
Gambia (accession)	1 November 1991	30 January 1992	
Germany (ratification)[1]	30 December 1976	16 October 1978	15 May 1998
Ghana (ratification)	20 April 1978	16 October 1978	
Greece (accession)	16 December 1986	16 March 1987	15 May 1998
Guyana (accession)	10 December 1997	10 March 1998	
Iceland (accession)	17 July 1980	15 October 1980	10 February 2001
India (accession)	10 July 1990	8 October 1990	21 June 2001
Indonesia (accession)	1 September 1978	30 November 1978	26 June 1999

	Date of deposit of instrument or succession	Date of entry into force	Effective date of denunciation
Ireland (ratification)	19 November 1992	17 February 1993	15 May 1998
Italy (accession)	27 February 1979	28 May 1979	8 October 2000
Japan (ratification)	7 July 1976	16 October 1978	15 May 1998
Kenya (accession)	15 December 1992	15 March 1993	7 July 2001
Kuwait (accession)	2 April 1981	1 July 1981	
Liberia (accession)	25 September 1972	16 October 1978	15 May 1998
Malaysia (accession)	6 January 1995	6 April 1995	
Maldives (accession)	16 March 1981	14 June 1981	
Malta (accession)	27 September 1991	26 December 1991	6 January 2001
Marshall Islands (accession)	30 November 1994	28 February 1995	15 May 1998
Mauritania (accession)	17 November 1995	15 February 1996	
Mauritius (accession)	6 April 1995	5 July 1995	6 December 2000
Mexico (accession)	13 May 1994	11 August 1994	15 May 1998
Monaco (accession)	23 August 1979	21 November 1979	15 May 1998
Morocco (accession)	31 December 1992	31 March 1993	25 October 2001
Mozambique (accession)	23 December 1996	23 March 1997	26 April 2003
Netherlands (approval)	3 August 1982	1 November 1982	15 May 1998
New Zealand (accession)[4]	22 November 1996	20 February 1997	25 June 1999
Nigeria (accession)	11 September 1987	10 December 1987	24 May 2003
Norway (ratification)	21 March 1975	16 October 1978	15 May 1998
Oman (accession)	10 May 1985	8 August 1985	15 May 1998
Panama (accession)	18 March 1999	16 June 1999	11 May 2000
Papua New Guinea (accession)	12 March 1980	10 June 1980	23 January 2002
Poland (ratification)	16 September 1985	15 December 1985	21 December 2000
Portugal (ratification)	11 September 1985	10 December 1985	
Qatar (accession)	2 June 1988	31 August 1988	20 November 2002
Republic of Korea (accession)	8 December 1992	8 March 1993	15 May 1998
Russian Federation (accession)[5]	17 June 1987	15 September 1987	20 March 2001
Saint Kitts and Nevis (accession)	14 September 1994	13 December 1994	
Seychelles (accession)	12 April 1988	11 July 1988	23 July 2000
Sierra Leone (accession)	13 August 1993	11 November 1993	4 June 2002
Slovenia (succession)	-	25 June 1991	19 July 2001
Spain (accession)	8 October 1981	6 January 1982	15 May 1998
Sri Lanka (accession)	12 April 1983	11 July 1983	22 January 2000
Sweden (ratification)	17 March 1975	16 October 1978	15 May 1998
Switzerland (ratification)	4 July 1996	2 October 1996	15 May 1998
Syrian Arab Republic (accession)[1]	6 February 1975	16 October 1978	24 April 2009
Tonga (accession)	1 February 1996	1 May 1996	10 December 2000
Tunisia (accession)	4 May 1976	16 October 1978	15 May 1998
Tuvalu (succession)	-	16 October 1978	
United Arab Emirates (accession)	15 December 1983	14 March 1984	24 May 2002
United Kingdom (ratification)[2]	2 April 1976	16 October 1978	15 May 1998
Vanuatu (accession)	13 January 1989	13 April 1989	18 February 2000
Venezuela (Bolivarian Republic of) (accession)	21 January 1992	20 April 1992	22 July 1999
Yugoslavia (ratification)	16 March 1978	16 October 1978	

Number of Contracting States: 14

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[1] For the text of a declaration, reservation or statement, see section IV.

[Footnotes continued]

[Footnotes continued]

[2] The United Kingdom declared ratification to be effective also in respect of:

Anguilla		1 September 1984
Bailiwick of Guernsey	)	
Bailiwick of Jersey	)	
Belize[I]	)	
Bermuda	)	
British Indian Ocean Territory	)	
British Virgin Islands	)	
Cayman Islands	)	
Falkland Islands and Dependencies[II]	)	16 October 1978
Gibraltar	)	
Gilbert Islands[III]	)	
Hong Kong[IV]	)	
Isle of Man	)	
Montserrat	)	
Pitcairn Group	)	
St. Helena, Ascension and Tristan da Cunha[V]	)	
Seychelles[VI]	)	
Solomon Islands[VII]	)	
Turks and Caicos Islands	)	
Tuvalu[VIII]	)	
United Kingdom Sovereign Base Areas of Akrotiri and Dhekelia in the Island of Cyprus	)	

I Has since become the independent State of Belize.

II The depositary received a communication dated 16 August 1976 from the Embassy of the Argentine Republic in London. The communication, the full text of which was circulated by the depositary, includes the following:

> "… the mentioning of the [Islas Malvinas, Georgias del Sur and Sandwich de Sur] in the instrument of ratification … deposited on 2 April, 1976 … under the erroneous denomination of 'Falkland Islands and Dependencies' - [does] not in any way affect the rights of the Argentine Republic over those islands which are part of its territory and come under the administrative jurisdiction of the territorio Nacional de Tierra del Fuego, Antártida e Islas del Atlántico Sur.
>
> "The aforementioned islands were occupied by force by a foreign power. The situation has been considered by the United Nations Assembly which adopted resolutions 2065(XX) and 3160(XXVIII). In both resolutions, the existence of a dispute regarding the sovereignty over the archipelago was confirmed and the Argentine Republic and the occupying power were urged to negotiate with a view to finding a definitive solution to the dispute."

The depositary received the following communication dated 21 September 1976 from the Government of the United Kingdom:

> "With reference to the statement of the Embassy of the Argentine Republic. Her Majesty's Government is bound to state that they have no doubt as to United Kingdom sovereignty over the Falkland Islands and the Falkland Islands dependencies."

III Has since become the independent State of Kiribati.

IV Ceased to apply to Hong Kong with effect from 1 July 1997.

V The depositary received a communication, dated 2 March 2010, from the Foreign and Commonwealth Office in London, informing that the name of the British overseas territory formerly called “St. Helena and Dependencies” has been changed to “St. Helena, Ascension and Tristan da Cunha”. The status of the territory as a British overseas territory remains unchanged.

VI Has since become the independent State of Seychelles.

VII Has since become the independent State of Solomon Islands.

VIII Has since become an independent State and a Contracting State to the Convention.

[3] Applies only to the Hong Kong Special Administrative Region.

[4] Accession by New Zealand was declared not to extend to Tokelau.

[5] As from 26 December 1991 the membership of the USSR in the Convention is continued by the Russian Federation.

III. States which have denounced the Convention

	Date of receipt of denunciation	Effective date of denunciation
Algeria	3 August 1998	3 August 1999
Antigua and Barbuda	14 June 2000	14 June 2001
Australia	7 April 1997	15 May 1998
Bahamas	1 April 1997	15 May 1998
Bahrain	12 May 1997	15 May 1998
Barbados	7 July 1998	7 July 1999
Belgium	6 October 1998	6 October 1999
Brunei Darussalam	31 January 2002	31 January 2003
Cameroon	15 October 2001	15 October 2002
Canada	29 May 1998	29 May 1999
China[1]	5 January 1999	5 January 2000
Colombia	25 January 2005	25 January 2006
Croatia	30 July 1998	30 July 1999
Cyprus	12 May 1997	15 May 1998
Denmark	20 March 1997	15 May 1998
Djibouti	17 May 2001	17 May 2002
Fiji	30 November 1999	30 November 2000
Finland	29 April 1997	15 May 1998
France	11 March 1997	15 May 1998
Gabon	31 May 2002	31 May 2003
Germany	25 April 1997	15 May 1998
Greece	2 May 1997	15 May 1998
Iceland	10 February 2000	10 February 2001
India	21 June 2000	21 June 2001
Indonesia	26 June 1998	26 June 1999
Ireland	15 May 1997	15 May 1998
Italy	8 October 1999	8 October 2000
Japan	9 May 1997	15 May 1998
Kenya	7 July 2000	7 July 2001
Liberia	21 April 1997	15 May 1998
Malta	6 January 2000	6 January 2001
Marshall Islands	18 March 1997	15 May 1998
Mauritius	6 December 1999	6 December 2000
Mexico	13 May 1997	15 May 1998
Monaco	28 April 1997	15 May 1998
Morocco	25 October 2000	25 October 2001
Mozambique	26 April 2002	26 April 2003
Netherlands	20 January 1997	15 May 1998
New Zealand	25 June 1998	25 June 1999
Nigeria	24 May 2002	24 May 2003
Norway	16 April 1997	15 May 1998
Oman	28 April 1997	15 May 1998
Panama	11 May 1999	11 May 2000
Papua New Guinea	23 January 2001	23 January 2002
Poland	21 December 1999	21 December 2000
Qatar	20 November 2001	20 November 2002
Republic of Korea	7 March 1997	15 May 1998
Russian Federation	20 March 2000	20 March 2001
Seychelles	23 July 1999	23 July 2000
Sierra Leone	4 June 2001	4 June 2002
Slovenia	19 July 2000	19 July 2001
Spain	13 May 1997	15 May 1998
Sri Lanka	22 January 1999	22 January 2000
Sweden	18 February 1997	15 May 1998
Switzerland	9 May 1997	15 May 1998
Tonga	10 December 1999	10 December 2000
Tunisia	12 May 1997	15 May 1998
United Arab Emirates	24 May 2001	24 May 2002
United Kingdom[2]	12 May 1997	15 May 1998
Vanuatu	18 February 1999	18 February 2000
Venezuela (Bolivarian Republic of)	22 July 1998	22 July 1999

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[1] China declared that the Convention will no longer be applicable to the Hong Kong Special Administrative Region.

[2] The United Kingdom declared denunciation to be effective also in respect of:

Anguilla
Bailiwick of Guernsey
Bailiwick of Jersey
Bermuda
British Indian Ocean Territory
British Virgin Islands
Cayman Islands
Falkland Islands*
Gibraltar
Montserrat
Isle of Man
Pitcairn, Henderson, Ducie and Oeno Islands
St. Helena, Ascension and Tristan da Cunha **
South Georgia and South Sandwich Islands
Turks and Caicos Islands
United Kingdom Sovereign Base Areas of Akrotiri and Dhekelia in the Island of Cyprus

* A dispute exists between the Governments of Argentina and the United Kingdom of Great Britain and Northern Ireland concerning sovereignty over the Falkland Islands (Malvinas).

** The depositary received a communication, dated 2 March 2010, from the Foreign and Commonwealth Office in London, informing that the name of the British overseas territory formerly called “St. Helena and Dependencies” has been changed to “St. Helena, Ascension and Tristan da Cunha”. The status of the territory as a British overseas territory remains unchanged.

IV. Declarations, Reservations and Statements

CANADA

The instrument of accession of Canada was accompanied by the following declaration (in the English and French languages):

> "The Government of Canada assumes responsibility for the payment of the obligations contained in articles 10, 11 and 12 of the Fund Convention. Such payments to be made in accordance with section 774 of the Canada Shipping Act as amended by Chapter 7 of the Statutes of Canada 1987".

FEDERAL REPUBLIC OF GERMANY

The instrument of ratification of the Federal Republic of Germany was accompanied by the following declaration (in the English language):

> "that the said Convention shall also apply to Berlin (West) with effect from the date on which it enters into force for the Federal Republic of Germany."

SYRIAN ARAB REPUBLIC

The instrument of accession of the Syrian Arab Republic contains the following sentence (in the Arabic language):

[Translation]

> "… the accession of the Syrian Arab Republic to this Convention … in no way implies recognition of Israel and does not involve the establishment of any relations with Israel arising from the provisions of this Convention."

PROTOCOL OF 1976 TO THE INTERNATIONAL CONVENTION ON THE ESTABLISHMENT OF AN INTERNATIONAL FUND FOR COMPENSATION FOR OIL POLLUTION DAMAGE, 1971 (FUND PROT 1976)*

Done at London, 19 November 1976

Entry into force: 22 November 1994

Signature, ratification, acceptance, approval, accession

Article IV

1. The present Protocol shall be open for signature by any State which has signed the Convention[1] or acceded thereto and by any State invited to attend the Conference to Revise the Unit of Account Provisions in the International Convention on the Establishment of an International Fund for Compensation for Oil Pollution Damage, 1971, held in London from 17 to 19 November 1976. The Protocol shall be open for signature from 1 February 1977 to 31 December 1977 at the Headquarters of the Organization.

2. Subject to paragraph 4 of this article, the present Protocol shall be subject to ratification, acceptance or approval by the States which have signed it.

3. Subject to paragraph 4 of this article, this Protocol shall be open for accession by States which did not sign it.

4. The present Protocol may be ratified, accepted, approved or acceded to by States Parties to the Convention.[1]

Article V

1. Ratification, acceptance, approval or accession shall be effected by the deposit of a formal instrument to that effect with the Secretary-General.

Entry into force

Article VI

1. The present Protocol shall enter into force for the States which have ratified, accepted, approved or acceded to it on the ninetieth day following the date on which the following requirements are fulfilled:

   (a) at least eight States have deposited instruments of ratification, acceptance, approval or accession with the Secretary-General, and

   (b) the Secretary-General has received information in accordance with article 39 of the Convention[1] that those persons in such States who would be liable to contribute pursuant to article 10 of the Convention[1] have received during the preceding calendar year a total quantity of at least 750 million tons of contributing oil.

2. However, the present Protocol shall not enter into force before the Convention[1] has entered into force.

3. For each State which subsequently ratifies, accepts, approves or accedes to it, the present Protocol shall enter into force on the ninetieth day after deposit by such State of the appropriate instrument.

Article VII

1. The present Protocol may be denounced by any Party at any time after the date on which the Protocol enters into force for that Party.

2. Denunciation shall be effected by the deposit of an instrument with the Secretary-General.

3. Denunciation shall take effect one year, or such longer period as may be specified in the instrument of denunciation, after its deposit with the Secretary-General.

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[1] International Convention on the Establishment of an International Fund for Compensation for Oil Pollution Damage, 1971.

[Footnotes continued]

[Footnotes continued]

*** Note by the Depositary**

Consequent on the cessation of the 1971 Fund Convention on 24 May 2002, this Protocol is considered having ceased with effect from the same date.

I. Signatories

II. Contracting States

III. States which have denounced the Protocol

IV. Declarations, Reservations and Statements.

I. Signatories

Germany, Federal Republic of	
Sweden	
United Kingdom	Subject to ratification

II. Contracting States

	Date of deposit of instrument	Date of entry into force	Effective date of denunciation
Albania (accession)	6 April 1994	22 November 1994	
Australia (accession)	10 October 1994	8 January 1995	
Bahamas (acceptance)	3 March 1980	22 November 1994	
Bahrain (accession)	3 May 1996	1 August 1996	
Barbados (accession)	6 May 1994	22 November 1994	
Belgium (accession)	1 December 1994	1 March 1995	
Canada (accession)	21 February 1995	22 May 1995	
China[3]	-	1 July 1997	22 August 2003
Colombia (accession)	13 March 1997	11 June 1997	25 January 2006
Cyprus (accession)	26 July 1989	22 November 1994	
Denmark (accession)	3 June 1981	22 November 1994	
Finland (accession)	8 January 1981	22 November 1994	
France (accession)	7 November 1980	22 November 1994	
Germany (ratification)[1]	28 August 1980	22 November 1994	
Greece (accession)	9 October 1995	7 January 1996	
Iceland (accession)	24 March 1994	22 November 1994	
India (accession)	10 July 1990	22 November 1994	
Ireland (accession)	19 November 1992	22 November 1994	15 May 1998
Italy (accession)	21 September 1983	22 November 1994	
Japan (accession)	24 August 1994	22 November 1994	
Liberia (accession)	17 February 1981	22 November 1994	
Malta (accession)	27 September 1991	22 November 1994	6 January 2001
Marshall Islands (accession)	16 October 1995	14 January 1996	
Mauritius (accession)	6 April 1995	5 July 1995	
Mexico (accession)	13 May 1994	22 November 1994	
Morocco (accession)	31 December 1992	22 November 1994	
Netherlands (accession)	1 November 1982	22 November 1994	
Norway (accession)	17 July 1978	22 November 1994	
Poland (accession)[1]	30 October 1985	22 November 1994	
Portugal (accession)	11 September 1985	22 November 1994	
Russian Federation (accession)[4]	30 January 1989	22 November 1994	
Spain (accession)	5 April 1982	22 November 1994	
Sweden (ratification)	7 July 1978	22 November 1994	
United Kingdom (ratification)[2]	31 January 1980	22 November 1994	15 May 1998
Vanuatu (accession)	13 January 1989	22 November 1994	
Venezuela (Bolivarian Republic of) (accession)	21 January 1992	22 November 1994	

Number of Contracting States: 31

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[1] For the text of a declaration, reservation or statement, see section IV.

[Footnotes continued]

[Footnotes continued]

[2] The United Kingdom declared ratification to be effective also in respect of:

Anguilla
Bailiwick of Jersey
Bailiwick of Guernsey
Belize*
Bermuda
British Indian Ocean Territory
British Virgin Islands
Cayman Islands
Falkland Islands**
Gibraltar
Hong Kong***
Isle of Man
Montserrat
Pitcairn
St. Helena, Ascension and Tristan da Cunha ****
Turks and Caicos Islands
United Kingdom Sovereign Base Areas of Akrotiri and
Dhekelia in the Island of Cyprus

* Has since become the independent State of Belize.

** For the text of communications received from the Argentine Government and the United Kingdom Foreign and Commonwealth Office, see footnote *** of section II of COLREG 1972.

*** Ceased to apply to Hong Kong with effect from 1 July 1997.

**** The depositary received a communication, dated 2 March 2010, from the Foreign and Commonwealth Office in London, informing that the name of the British overseas territory formerly called "St. Helena and Dependencies" has been changed to "St. Helena, Ascension and Tristan da Cunha". The status of the territory as a British overseas territory remains unchanged.

[3] Applies only to the Hong Kong Special Administrative Region.

[4] As from 26 December 1991 the membership of the USSR in the Protocol is continued by the Russian Federation.

III. States which have denounced the Protocol

	Date of receipt of denunciation	Effective date of denunciation
China	22 August 2002	22 August 2003
Colombia	25 January 2005	25 January 2006
Ireland	15 May 1997	15 May 1998
Malta	6 January 2001	6 January 2001
United Kingdom[1]	9 May 1997	15 May 1998

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[1] The United Kingdom declared denunciation to be effective also in respect of:

Anguilla
Bailiwick of Guernsey
Bailiwick of Jersey
Bermuda
British Indian Ocean Territory
British Virgin Islands
Cayman Islands
Falkland Islands*
Gibraltar
Montserrat
Isle of Man
Pitcairn, Henderson, Ducie and Oeno Islands
St. Helena, Ascension and Tristan da Cunha **
South Georgia and South Sandwich Islands
Turks and Caicos Islands
United Kingdom Sovereign Base Areas of Akrotiri and Dhekelia in the Island of Cyprus

* A dispute exists between the Governments of Argentina and the United Kingdom of Great Britain and Northern Ireland concerning sovereignty over the Falkland Islands (Malvinas).

** The depositary received a communication, dated 2 March 2010, from the Foreign and Commonwealth Office in London, informing that the name of the British overseas territory formerly called “St. Helena and Dependencies” has been changed to “St. Helena, Ascension and Tristan da Cunha”. The status of the territory as a British overseas territory remains unchanged.

IV. Declarations, Reservations and Statements

FEDERAL REPUBLIC OF GERMANY

The instrument of ratification of the Federal Republic of Germany contains the following declaration in the English language:

> "… with effect from the date on which the Protocol enters into force for the Federal Republic of Germany, it shall also apply to Berlin (West)."

POLAND

(For the text of a notification, see section V of CLC PROT 1976).

PROTOCOL OF 1992 TO AMEND THE INTERNATIONAL CONVENTION ON THE ESTABLISHMENT OF AN INTERNATIONAL FUND FOR COMPENSATION FOR OIL POLLUTION DAMAGE, 1971 (FUND PROT 1992)

Done at London, 27 November 1992

Entry into force: 30 May 1996

Signature, ratification, acceptance, approval and accession

Article 28

1. This Protocol shall be open for signature at London from 15 January 1993 to 14 January 1994 by any State which has signed the 1992 Liability Convention.

2. Subject to paragraph 4, this Protocol shall be ratified, accepted or approved by States which have signed it.

3. Subject to paragraph 4, this Protocol is open for accession by States which did not sign it.

4. This Protocol may be ratified, accepted, approved or acceded to only by States which have ratified, accepted, approved or acceded to the 1992 Liability Convention.

5. Ratification, acceptance, approval or accession shall be effected by the deposit of a formal instrument to that effect with the Secretary-General of the Organization.

6. A State which is a Party to this Protocol but is not a Party to the 1971 Fund Convention shall be bound by the provisions of the 1971 Fund Convention as amended by this Protocol in relation to other Parties hereto, but shall not be bound by the provisions of the 1971 Fund Convention in relation to Parties thereto.

7. Any instrument of ratification, acceptance, approval or accession deposited after the entry into force of an amendment to the 1971 Fund Convention as amended by this Protocol shall be deemed to apply to the Convention so amended, as modified by such amendment.

Information on contributing oil

Article 29

1. Before this Protocol comes into force for a State, that State shall, when depositing an instrument referred to in Article 28, paragraph 5, and annually thereafter at a date to be determined by the Secretary-General of the Organization, communicate to him the name and address of any person who in respect of that State would be liable to contribute to the Fund pursuant to Article 10 of the 1971 Fund Convention as amended by this Protocol as well as data on the relevant quantities of contributing oil received by any such person in the territory of that State during the preceding calendar year.

2. During the transitional period, the Director shall, for Parties, communicate annually to the Secretary-General of the Organization data on quantities of contributing oil received by persons liable to contribute to the Fund pursuant to Article 10 of the 1971 Fund Convention as amended by this Protocol.

Entry into force

Article 30

1. This Protocol shall enter into force twelve months following the date on which the following requirements are fulfilled:

   (a) at least eight States have deposited instruments of ratification, acceptance, approval or accession with the Secretary-General of the Organization; and

(b) the Secretary-General of the Organization has received information in accordance with article 29 that those persons who would be liable to contribute pursuant to article 10 of the 1971 Fund Convention as amended by this Protocol have received during the preceding calendar year a total quantity of at least 450 million tons of contributing oil.

2. However, this Protocol shall not enter into force before the 1992 Liability Convention has entered into force.

3. For each State which ratifies, accepts, approves or accedes to this Protocol after the conditions in paragraph 1 for entry into force have been met, the Protocol shall enter into force twelve months following the date of the deposit by such State of the appropriate instrument.

4. Any State may, at the time of the deposit of its instrument of ratification, acceptance, approval or accession in respect of this Protocol declare that such instrument shall not take effect for the purpose of this Article until the end of the six-month period in Article 31.

5. Any State which has made a declaration in accordance with the preceding paragraph may withdraw it at any time by means of a notification addressed to the Secretary-General of the Organization. Any such withdrawal shall take effect on the date the notification is received, and any State making such a withdrawal shall be deemed to have deposited its instrument of ratification, acceptance, approval or accession in respect of this Protocol on that date.

6. Any State which has made a declaration under Article 13, paragraph 2, of the Protocol of 1992 to amend the 1969 Liability Convention shall be deemed to have also made a declaration under paragraph 4 of this Article. Withdrawal of a declaration under the said Article 13, paragraph 2, shall be deemed to constitute withdrawal also under paragraph 5 of this Article.

Denunciation of the 1969 and 1971 Conventions

Article 31

Subject to Article 30, within six months following the date on which the following requirements are fulfilled:

(a) at least eight States have become Parties to this Protocol or have deposited instruments of ratification, acceptance, approval or accession with the Secretary-General of the Organization, whether or not subject to Article 30, paragraph 4, and

(b) the Secretary-General of the Organization has received information in accordance with Article 29 that those persons who are or would be liable to contribute pursuant to Article 10 of the 1971 Fund Convention as amended by this Protocol have received during the preceding calendar year a total quantity of at least 750 million tons of contributing oil;

each Party to this Protocol and each State which has deposited an instrument of ratification, acceptance, approval or accession, whether or not subject to Article 30, paragraph 4, shall, if party thereto, denounce the 1971 Fund Convention and the 1969 Liability Convention with effect twelve months after the expiry of the above-mentioned six-month period.

I. Signatories

II. Contracting States

III. Declarations, Reservations and Statements

IV. Amendments

I. Signatories

Denmark	Subject to ratification
Finland	Subject to acceptance
France	Subject to approval
Germany, Federal Republic of	
Greece	Subject to ratification
Monaco	Subject to ratification
Morocco	
Norway	Subject to ratification
Poland	Subject to ratification
Sweden	Subject to ratification

II. Contracting States

	Date of deposit of instrument	Date of entry into force
Albania (accession)	30 June 2005	30 June 2006
Algeria (accession)	11 June 1998	11 June 1999
Angola (accession)	4 October 2001	4 October 2002
Antigua and Barbuda (accession)	14 June 2000	14 June 2001
Argentina (accession)[1]	13 October 2000	13 October 2001
Australia (accession)	9 October 1995	9 October 1996
Bahamas (accession)	1 April 1997	1 April 1998
Bahrain (accession)	3 May 1996	3 May 1997
Barbados (accession)	7 July 1998	7 July 1999
Belgium (accession)	6 October 1998	6 October 1999
Belize (accession)	27 November 1998	27 November 1999
Benin (accession)	5 February 2010	5 February 2011
Brunei Darussalam (accession)	31 January 2002	31 January 2003
Bulgaria (accession)	18 November 2005	18 November 2006
Cambodia (accession)	8 June 2001	8 June 2002
Cameroon (accession)	15 October 2001	15 October 2002
Canada (accession)[1]	29 May 1998	29 May 1999
Cabo Verde (accession)	4 July 2003	4 July 2004
China, Hong, Kong (accession)[3]	5 January 1999	5 January 2000
Colombia (accession)	19 November 2001	19 November 2002
Comoros (accession)	5 January 2000	5 January 2001
Congo (accession)	7 August 2002	7 August 2003
Cook Islands (accession)	12 March 2007	12 March 2008
Costa Rica (accession)	19 May 2021	19 May 2022
Côte d'Ivoire (accession)	8 July 2013	8 July 2014
Croatia (accession)	12 January 1998	12 January 1999
Cyprus (accession)	12 May 1997	12 May 1998
Denmark (ratification)	30 May 1995	30 May 1996
Djibouti (accession)	8 January 2001	8 January 2002
Dominica (accession)	31 August 2001	31 August 2002
Dominican Republic (accession)	24 June 1999	24 June 2000
Ecuador (accession)	11 December 2007	11 December 2008
Estonia (accession)	6 August 2004	6 August 2005
Fiji (accession)	30 November 1999	30 November 2000
Finland (acceptance)	24 November 1995	24 November 1996
France (approval)	29 September 1994	30 May 1996
Gabon (accession)	31 May 2002	31 May 2003
Gambia (accession)	30 October 2019	30 October 2020
Georgia (accession)	18 April 2000	18 April 2001
Germany (ratification)[1]	29 September 1994	30 May 1996
Ghana (accession)	3 February 2003	3 February 2004
Greece (ratification)	9 October 1995	9 October 1996
Grenada (accession)	7 January 1998	7 January 1999

Guinea (accession)	2 October 2002	2 October 2003
Guinea-Bissau (accession)	12 May 2022	12 May 2023
Guyana (accession)	20 February 2019	20 February 2020
Hungary (accession)	30 March 2007	30 March 2008
Iceland (accession)	13 November 1998	13 November 1999
India (accession)	21 June 2000	21 June 2001
Iran, (Islamic Republic of) (accession)	5 November 2008	5 November 2009
Iraq (accession)	5 August 2024	5 August 2025
Ireland (accession)[1]	15 May 1997	16 May 1998
Israel (accession)[1]	21 October 2004	21 October 2005
Italy (accession)	16 September 1999	16 September 2000
Jamaica (accession)	24 June 1997	24 June 1998
Japan (accession)	24 August 1994	30 May 1996
Kenya (accession)	2 February 2000	2 February 2001
Kiribati (accession)	5 February 2007	5 February 2008
Latvia (accession)	6 April 1998	6 April 1999
Liberia (accession)	5 October 1995	5 October 1996
Lithuania (accession)	27 June 2000	27 June 2001
Luxembourg (accession)	21 November 2005	21 November 2006
Madagascar (accession)	21 May 2002	21 May 2003
Malaysia (accession)	9 June 2004	9 June 2005
Maldives (accession)	20 May 2005	20 May 2006
Malta (accession)	6 January 2000	6 January 2001
Marshall Islands (accession)	16 October 1995	16 October 1996
Mauritania (accession)	4 May 2012	4 May 2013
Mauritius (accession)	6 December 1999	6 December 2000
Mexico (accession)	13 May 1994	30 May 1996
Monaco (ratification)	8 November 1996	8 November 1997
Montenegro (accession)	29 November 2011	29 November 2012
Morocco (ratification)	22 August 2000	22 August 2001
Mozambique (accession)	26 April 2002	26 April 2003
Namibia (accession)	18 December 2002	18 December 2003
Nauru (accession)	23 March 2020	23 March 2021
Netherlands (accession)[6]	15 November 1996	15 November 1997
New Zealand (accession)[1]	25 June 1998	25 June 1999
Nicaragua (accession)	4 April 2014	4 April 2015
Nigeria (accession)	24 May 2002	24 May 2003
Niue (accession)	27 June 2012	27 June 2013
Norway (ratification)	3 April 1995	30 May 1996
Oman (accession)	8 July 1994	30 May 1996
Palau (accession)	29 September 2011	29 September 2012
Panama (accession)	18 March 1999	18 March 2000
Papua New Guinea (accession)	23 January 2001	23 January 2002
Philippines (accession)	7 July 1997	7 July 1998
Poland (accession)	21 December 1999	21 December 2000
Portugal (accession)	13 November 2001	13 November 2002
Qatar (accession)	20 November 2001	20 November 2002
Republic of Korea (accession)[1]	7 March 1997	16 May 1998
Russian Federation (accession)	20 March 2000	20 March 2001
Saint Kitts and Nevis (accession)	2 March 2005	2 March 2006
Saint Lucia (accession)	20 May 2004	20 May 2005
Saint Vincent and the Grenadines (accession)	9 October 2001	9 October 2002
Samoa (accession)	1 February 2002	1 February 2003
San Marino (accession)	19 April 2021	19 April 2022
Senegal (accession)	2 August 2011	2 August 2012
Serbia (accession)[1]	25 May 2011	25 May 2012
Seychelles (accession)	23 July 1999	23 July 2000
Sierra Leone (accession)	4 June 2001	4 June 2002
Singapore (accession)	31 December 1997	31 December 1998
Slovakia (accession)	8 July 2013	8 July 2014
Slovenia (accession)	19 July 2000	19 July 2001
Somalia (accession)	26 June 2026	26 June 2027
Solomon Islands (accession)	27 November 2025	27 November 2026
South Africa (accession)	1 October 2004	1 October 2005

Spain (accession)[1]	6 July 1995	16 May 1998
Sri Lanka (accession)	22 January 1999	22 January 2000
Sweden (ratification)	25 May 1995	30 May 1996
Syrian Arab Republic (accession)[1]	24 April 2009	24 April 2010
Switzerland (accession)[4,5]	10 October 2005	10 October 2006[3, 4]
Thailand (accession)	7 July 2017	7 July 2018
Tonga (accession)	10 December 1999	10 December 2000
Trinidad and Tobago (accession)	6 March 2000	6 March 2001
Tunisia (accession)	29 January 1997	29 January 1998
Türkiye (accession)[1]	17 August 2001	17 August 2002
Tuvalu (accession)	30 June 2004	30 June 2005
United Arab Emirates (accession)	19 November 1997	19 November 1998
United Kingdom (accession)[2]	29 September 1994	30 May 1996
United Republic of Tanzania (accession)	19 November 2002	19 November 2003
Uruguay (accession)	9 July 1997	9 July 1998
Vanuatu (accession)	18 February 1999	18 February 2000
Venezuela (Bolivarian Republic of) (accession)	22 July 1998	22 July 1999

Number of Contracting States: 124

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[1] For the text of a declaration, see section III.

[2] The United Kingdom declared its accession to be effective in respect of:

Bailiwick of Jersey
Falkland Islands*
Isle of Man
Montserrat
South Georgia and the South Sandwich Islands*

Anguilla	)
Bailiwick of Guernsey	)
Bermuda	)
British Antarctic Territory	)
British Indian Ocean Territory	) with effect from 20.2.98
Pitcairn, Henderson, Ducie and Oeno Islands	)
Sovereign Base Areas of Akrotiri and Dhakelia on the Island of Cyprus	)
Turks & Caicos Islands	)
British Virgin Islands	)

Cayman Islands	)
Gibraltar	) with effect from 15.5.98
St. Helena, Ascension and Tristan da Cunha**	)

* The depositary received a communication dated 21 February 1995 from the Embassy of the Argentine Republic, London.

[Translation]

"… the Argentine government rejects the statement made by the United Kingdom of Great Britain and Northern Ireland on acceding to the Protocol of 1992 to amend the International Convention on the Establishment of an International Fund for Compensation for Oil Pollution Damage, 1971. In that statement, accession was declared to be effective in respect of the Malvinas Islands, South Georgia Islands and South Sandwich Islands. The Argentine Republic reaffirms its sovereignty over these islands and the surrounding maritime spaces, which constitute an integral part of its national territory.

"The Argentine Republic recalls the adoption, by the General Assembly of the United Nations, of resolutions 2065(XX), 3160(XXVII), 31/49, 37/9, 38/12, 39/6, 40/21, 41/41, 42/19 and 43/25, acknowledging the existence of a dispute concerning sovereignty and urging the Governments of the Argentine Republic and of the United Kingdom of Great Britain and Northern Ireland to enter into negotiations with a view to identifying means of pacific and final settlement of the outstanding problems between the two countries, including all matters concerning the future of the Malvinas Islands, in accordance with the Charter of the United Nations."

[Footnotes continued]

[Footnotes continued]

The depositary received a communication dated 22 May 1995 from the Foreign and Commonwealth Office, London:

> "The Government of the United Kingdom of Great Britain and Northern Ireland have noted the declaration of the Government of Argentina regarding the extension by the United Kingdom of the application of the Convention to the Falkland Islands and to South Georgia and the South Sandwich Islands.
>
> "The British Government have no doubt about the sovereignty of the United Kingdom over the Falkland Islands and over South Georgia and the South Sandwich Islands and their consequential right to extend the said Convention to these Territories. The British Government reject as unfounded the claims by the Government of Argentina."

[**] The depositary received a communication, dated 2 March 2010, from the Foreign and Commonwealth Office in London, informing that the name of the British overseas territory formerly called "St. Helena and Dependencies" has been changed to "St. Helena, Ascension and Tristan da Cunha". The status of the territory as a British overseas territory remains unchanged.

[3] China declared that the Protocol will be applicable to the Hong Kong Special Administrative Region only.

[4] The depositary received the following communication, dated 9 May 1997, from His Excellency the Ambassador Extraordinary and Plenipotentiary, Embassy of Switzerland, London:

[Translation]

> "… On 11 December 1995, the Federal Assembly approved the 1971 Fund Convention on condition that all the coastal States through which contributing oil passes on its way to Switzerland, were members of the 1971 International Fund for Compensation for Oil Pollution Damage. On the same day the Federal Assembly implicitly approved the 1992 Protocol to the 1971 Fund Convention on the same conditions. On 4 July 1996 Switzerland deposited an instrument of ratification of the Protocol with the Secretary-General of the International Maritime Organization.
>
> Since the requirements placed by the Federal Assembly upon Swiss ratification of the 1992 Protocol to the 1971 Fund Convention are now no longer fulfilled, Switzerland has to withdraw its instrument of ratification of the 1992 Protocol to the 1971 Fund Convention.
>
> On behalf of the Swiss Federal Council and with its authorization, I have the honour to inform you that as of today Switzerland is withdrawing its instrument of ratification of the 1992 Protocol to the 1971 Fund Convention."

[5] On 10 October 2005, the instrument of accession by Switzerland was re-deposited. The treaty will therefore enter into force for Switzerland on 10 October 2006.

[6] Applies to the Netherlands Antilles* with effect from 21 December 2005 and to Aruba with effect from 12 April 2006.

* The Netherlands Antilles has ceased to exist as an autonomous country within the Kingdom of the Netherlands with effect from 10 October 2010. Since that date, the Kingdom of the Netherlands consists of four autonomous countries: The Netherlands (European part and Caribbean part), Aruba, Curaçao and Sint Maarten. For more details see footnote 4, in section II of SOLAS 1974.. The Protocol applies as follows:

		Effective from
The Netherlands (European part)	)	15 November 1997
Caribbean part of the Netherlands	)	10 October 2010
Aruba	)	12 April 2006
Curaçao	)	10 October 2010
Sint Maarten	)	10 October 2010

III. Declarations, Reservations and Statements

ARGENTINA

The instrument of accession of the Argentine Republic contained the following declaration (in the Spanish language):

[Translation]

"… The Argentine Republic rejects the statement made by the United Kingdom of Great Britain and Northern Ireland on acceding to the Protocol of 1992 to amend the International Convention on Civil Liability for Oil Pollution Damage, 1969 and the Protocol of 1992 to amend the International Convention on the Establishment of an International Fund for Compensation for Oil Pollution Damage, 1971. In that statement, accession was declared to be effective in respect of the Malvinas Islands, South Georgia and South Sandwich Islands. The Argentine Republic reaffirms its sovereignty over these islands and their surrounding maritime spaces, which constitute an integral part of its national territory. The Argentine Republic recalls the adoption, by the General Assembly of the United Nations, of resolutions 2065(XX), 3160(VVVII), 31/49, 37/9, 38/12, 39/6, 40/21, 41/40, 42/19 and 43/25, acknowledging the existence of a dispute concerning sovereignty and urging the Government of the Argentine Republic and the United Kingdom of Great Britain and Northern Ireland to enter into negotiations with a view to identifying means of pacific and final settlement of the outstanding problems between the two countries, including all matters concerning the future of the Malvinas Islands, in accordance with the Charter of the United Nations."

CANADA

The instrument of accession of Canada was accompanied by the following declaration:

"By virtue of Article 14 of the International Convention on the Establishment of an International Fund for Compensation for Oil Pollution Damage, 1992, the Government of Canada assumes responsibility for the payment of the obligations contained in Article 10, paragraph 1."

COSTA RICA

The instrument of accession included the following reservation:

“The Republic of Costa Rica makes a reservation to articles 32 and 33 of the final clauses of the International Convention on the Establishment of an International Fund for Compensation for Oil Pollution Damage, 1992, in the sense that the amendments to the said Convention shall come into force in the country once they have been approved in accordance with the procedures established in the Political Constitution of the Republic of Costa Rica.”

GERMANY

The instrument of ratification by Germany was accompanied by the following declaration:

"The Federal Republic of Germany hereby declares that, having deposited the instruments of ratification of the protocols of 27 November 1992 amending the International Convention on Civil Liability for Oil Pollution Damage of 1969 and amending the International Convention on the Establishment of an International Fund for Compensation for Oil Pollution Damage of 1971, it regards its ratification of the Protocols of 25 May 1984, as documented on 18 October 1988 by the deposit of its instruments of ratification, as null and void as from the entry into force of the Protocols of 27 November 1992."

IRELAND

The instrument of accession of Ireland contained the following declaration:

"Declare that this instrument of accession shall not take effect until the end of the six-month period in article 31 of the 1992 Protocol to amend the International Convention on the Establishment of an International Fund for Compensation for Oil Pollution Damage of 1971."

ISRAEL

The depositary received the following declaration, on 19 September 2006, from the Government of the State of Israel:

On behalf of the Government of the State of Israel, by virtue of article 14 of the International Convention on the Establishment of an International Fund for Compensation for Oil Pollution Damage, 1992, the Government of the State of Israel assumes itself responsibility for the payment of the obligations contained in article 10, paragraph 1 of the Convention, in respect of oil received within the territory of Israel.

MAURITIUS

The instrument of accession of the Republic of Mauritius contained the following declaration:

"REJECTS as unfounded the claim by the United Kingdom of Great Britain and Northern Ireland of any sovereignty or sovereign rights over the so-called British Indian Ocean Territory (Chagos Archipelago) and reaffirms its sovereignty and sovereign rights over the Chagos Archipelago which forms an integral part of the national territory of the Republic of Mauritius, and over their surrounding maritime zones."

NEW ZEALAND

The instrument of accession of New Zealand contained the following declaration:

"AND DECLARES that this accession shall not extend to Tokelau unless and until a declaration to this effect is lodged by the Government of New Zealand with the Depositary."

REPUBLIC OF KOREA

The instrument of accession of the Republic of Korea contained the following declaration:

[Translation]

"…. that this instrument of accession shall not take effect until the end of the six-month period in article 31 of the above[-mentioned] Protocol and denouncing the 1971 Fund Convention and the 1969 Liability Convention with effect twelve months after the expiry of the above-mentioned six-month period."

SPAIN

The instrument of accession of Spain contained the following declaration:

[Translation]

"In accordance with the provisions of article 30, paragraph 4 of the above-mentioned Protocol, Spain declares that the deposit of its instrument of accession shall not take effect for the purpose of this article until the end of the six-month period stipulated in article 31 of the said Protocol".

SYRIAN ARAB REPUBLIC

The instrument contained the following declaration:

“The Syrian Arab Republic by joining this Protocol does not in any way recognise Israel and will not enter into any dealings with it as prescribed by the Protocol.”

TÜRKIYE

The instrument of accession of Türkiye contained the following declaration:

"In relation to Article 3/a (ii) of this Convention, the Republic of Türkiye considers that this Article is not in conformity with international law and it defines those maritime areas as high seas whereby no country has jurisdiction and sovereign rights according to international law. The Republic of Türkiye, however, taking into consideration the objectives of this Convention, reserves its rights deriving from the Convention. Within this context, the Republic of Türkiye hereby declares that in maritime areas where there has been no delimitation agreement between opposite or adjacent coastal States, the exercise of authority or any claim thereof under this Convention by any coastal State Party to this Convention, creates no rights or obligations with regard to delimitation of maritime areas, nor does it create a precedent for the future agreements between those States concerning the delimitation of maritime areas under national jurisdiction."

The depositary received a communication dated 8 April 2002 from the Government of the Hellenic Republic regarding the declaration by Türkiye:

“The Government of the Hellenic Republic hereby declares that it does not accept such Declaration, as it considers that Article 3a(ii) of the amended 1971 Convention, to which the Declaration refers, is not contrary to International Law”.

The depositary received a communication dated 30 April 2002 from the Government of the Republic of Cyprus regarding the declaration by Türkiye:

"The Government of the Republic of Cyprus hereby declares that it does not accept the declaration of the Republic of Türkiye, contained in its instrument of accession to the Protocol of 1992 to amend the International Convention on the Establishment of an International Fund for Compensation for Oil Pollution Damage, 1971, as it considers that Article 3(a)(ii) of the 1992 Fund Convention (as defined in Article 27(2) of the Protocol), to which the declaration refers, is not contrary to international law."

IV. Amendments

(1) 2000 (Limits of compensation) Amendments (LEG.2(82))

A. Adoption

The Legal Committee at its eighty-second session (October 2000) adopted by resolution LEG.2(82), in accordance with article 33(4) of the 1992 Fund Protocol, amendments to the limits of compensation set out in article 6(3) of the 1992 Fund Protocol.

B. Entry into force

In accordance with article 33(7) of the Protocol, and as determined by the Legal Committee, the amendments shall enter into force on 1 November 2003, unless, prior to 1 May 2002 not less than one quarter of the States that were Contracting States on the date of the adoption of the amendments (18 October 2000) have communicated to the Organization that they do not accept the amendments. No such objection was received and the amendments accordingly entered into force on 1 November 2003.

PROTOCOL OF 2000 TO THE INTERNATIONAL CONVENTION ON THE ESTABLISHMENT OF AN INTERNATIONAL FUND FOR COMPENSATION FOR OIL POLLUTION DAMAGE, 1971 (FUND PROT 2000)

Done at London, 27 September 2000

Entry into force: 27 June 2001

Article 2

1 Article 43, paragraph 1 of the Convention is replaced by the following text:

"This Convention[1] shall cease to be in force:

(a) on the date when the number of Contracting States falls below twenty-five; or

(b) twelve months following the date on which the Assembly or any other body acting on its behalf notes that, according to the information provided by the Director on the basis of the latest available oil reports submitted by Contracting States in accordance with article 15, the total quantity of contributing oil received in the remaining Contracting States by those persons who would be liable to contribute pursuant to article 10 of the Convention falls below 100 million tonnes,

whichever is the earlier."

Article 3

1 The Protocol shall be subject to acceptance by Contracting States in accordance with this article.

2 This Protocol shall be deemed to have been accepted six months from the date of its adoption, unless, prior to that date, objections to its acceptance have been communicated to the Secretary-General by not less than one-third of the States which are Contracting States on that date.

3 An objection to acceptance under paragraph 2 may be withdrawn at any time prior to the date of deemed acceptance in accordance with that paragraph.

4 Contracting States may also indicate their consent to be bound by this Protocol by signing it without reservation, acceptance or approval, or by depositing the appropriate instrument with the Secretary-General at any time prior to the expiry of the six-month period specified in paragraph 2.

Article 4

1 This Protocol shall enter into force three months after the date on which it is deemed to have been accepted in accordance with paragraph 2 of article 3.

2 Upon its entry into force this Protocol shall apply to all Contracting States with the exception of those Contracting States which, at least three months before the date of entry into force have declared that they do not wish to be bound by it.

3 A declaration made under paragraph 2 may be withdrawn at any time prior to the entry into force of this Protocol.

4 A Contracting State which has made a declaration under paragraph 2 and which does not withdraw the declaration prior to the date of entry into force of this Protocol shall be deemed to have denounced the Convention. Such denunciation shall take effect on the date of entry into force of this Protocol, or such earlier date as may be specified by the Contracting State in a communication to the Secretary-General.

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[1] International Convention on the Establishment of an International Fund for Compensation for Oil Pollution Damage, 1971.

I. Signatories

Fiji
Italy
Malta
Slovenia
Tonga
Yugoslavia

PROTOCOL OF 2003 TO THE INTERNATIONAL CONVENTION ON THE ESTABLISHMENT OF AN INTERNATIONAL FUND FOR COMPENSATION FOR OIL POLLUTION DAMAGE, 1992 (FUND PROT 2003)

Done at London, 16 May 2003

Entry into force: 3 March 2005

Signature, ratification, acceptance, approval and accession

Article 19

1 This Protocol shall be open for signature at the Headquarters of the Organization from 31 July 2003 to 30 July 2004.

2 States may express their consent to be bound by the Protocol by:

(a) signature without reservation as to ratification, acceptance or approval;

(b) signature subject to ratification, acceptance or approval followed by ratification, acceptance or approval; or

(c) accession.

3 Only Contracting States to the 1992 Fund Convention may become Contracting States to this Protocol.

4 Ratification, acceptance, approval or accession shall be effected by the deposit of a formal instrument to that effect with the Secretary-General.

Entry into force

Article 21

1 This Protocol shall enter into force three months following the date on which the following requirements are fulfilled:

(a) at least eight States have signed the Protocol without reservation as to ratification, acceptance or approval, or have deposited instruments of ratification, acceptance, approval or accession with the Secretary-General; and

(b) the Secretary-General has received information from the Director of the 1992 Fund that those persons who would be liable to contribute pursuant to article 10 have received, during the preceding calendar year a total quantity of at least 450 million tons of contributing oil, including the quantities referred to in article 14, paragraph 1.

2 For each State which signs this Protocol without reservation as to ratification, acceptance or approval, or which ratifies, accepts, approves or accedes to this Protocol, after the conditions for entry into force have been met, the Protocol shall enter into force three months following the date of deposit by such State of the appropriate instrument.

3 Notwithstanding paragraphs 1 and 2, this Protocol shall not enter into force in respect of any State until the 1992 Fund Convention enters into force for that State.

First session of the Assembly

Article 22

1 The Secretary-General shall convene the first session of the Assembly. This session shall take place as soon as possible after the entry into force of this Protocol and, in any case, not more than thirty days after such entry into force.

Revision and amendment

Article 23

1 A conference for the purpose of revising or amending this Protocol may be convened by the Organization.

2 The Organization shall convene a Conference of Contracting States for the purpose of revising or amending this Protocol at the request of not less than one-third of the Contracting States.

I. Signatories

II. Contracting States

III. Declarations, Reservations and Statements

IV. Amendments

1. Signatories

Denmark	
Ireland	
France	sous réserve d'approbation
Slovenia	subject to ratification
Spain	a reserva de ratification

II. Contracting States

	Date of signature or deposit of instrument	Date of entry into force
Australia (accession)	13 July 2009	13 October 2009
Barbados (accession)	6 December 2005	6 March 2006
Belgium (accession)	4 November 2005	4 February 2006
Canada (accession)	2 October 2009	2 January 2010
Congo (accession)	19 May 2014	19 August 2014
Croatia (accession)	17 February 2006	17 May 2006
Denmark (signature)[1, 2]	24 February 2004	3 March 2005
Estonia (accession)	14 October 2008	14 January 2009
Finland (accession)[1]	27 May 2004	3 March 2005
France (acceptance)	29 June 2004	3 March 2005
Germany (accession)[1]	24 November 2004	3 March 2005
Greece (accession)	23 October 2006-	23 January 2007
Hungary (accession)	30 March 2007	30 June 2007
Ireland (signature)	5 July 2004	3 March 2005
Italy (accession)	20 October 2005	20 January 2006
Japan (accession)	13 July 2004	3 March 2005
Latvia (accession)	18 April 2006	18 July 2006
Lithuania (accession)	22 November 2005	22 February 2006
Mauritius (accession)	9 April 2024	9 July 2024
Montenegro (accession)	29 November 2011	29 November 2012
Morocco (accession)	4 November 2009	4 February 2010
Netherlands (accession)[4]	16 June 2005	16 September 2005
New Zealand (accession)[1]	29 June 2018	29 September 2018
Norway (accession)	31 March 2004	3 March 2005
Poland (accession)	9 December 2008	9 March 2009
Portugal (accession)	15 February 2005	15 May 2005
Republic of Korea ((accession)	6 May 2010	6 August 2010
Slovakia (accession) [1]	8 July 2013	8 July 2013
Solomon Islands (accession)	27 November 2025	27 November 2026
Slovenia (accession)	3 March 2006	3 June 2006
Spain (ratification)	3 December 2004	3 March 2005
Sweden (accession)[1]	5 May 2005	5 August 2005
Türkiye (accession)	5 March 2013	5 June 2013
United Kingdom (accession)[3]	8 June 2006	8 September 2006

Number of Contracting States: 34

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[1] For the text of a declaration, reservation or statement, see section III.

[2] Extended to Greenland with effect from 3 March 2005 and to the Faroes with effect from 19 June 2006.

[3] Extended to the Isle of Man with effect from 15 September 2008, to the Bailiwick of Guernsey with effect from 26 February 2013 and to the Bailiwick of Jersey from 22 April 2016. Extended to Falkland Islands (Malvinas) with effect from 2 November 2023. * Extended to the Cayman Islands with effect from 22 July 2026.

* A dispute exists between the Governments of Argentina and the United Kingdom of Great Britain and Northern Ireland concerning sovereignty over the Falkland Islands (Malvinas). The Secretary-General received a communication from the Embassy of the Argentine Republic, on 16 November 2023, the full text of which is contained in Circular Letter No.4812.

[4] Extended to Bonaire, Sint Eustatius and Saba (the Caribbean part of the Netherlands) with effect from 22 June 2011.

III. Declarations, Reservations and Statements

DENMARK

The following statement was made at the time of the signature of the Protocol:

"… until further notice, the Protocol shall not apply to the territories of the Faroes and Greenland."

The depositary received on 22 December 2004, a communication from the Ministry of Foreign Affairs of Denmark withdrawing the above statement with regard to Greenland.

The depositary received on 19 June 2006, a communication from the Ministry of Foreign Affairs of Denmark withdrawing the statement with regard to the Faroes.

FINLAND

The following statement accompanied the instrument of accession by Finland:

"With reference to the Instrument of Accession of Finland the International Convention on the Establishment of an International Fund for Compensation for Oil Pollution Damage I have the honour to inform you that the Accession takes place in accordance with the Decision of the Council of the European Union authorising the Member States to sign, ratify or accede, in the interest of the European Community, the Protocol of 2003 to the International Convention on the Establishment of an International Fund for Compensation for Oil Pollution damage, 1992, and authorising Austria and Luxembourg, in the interest of the European Community, to accede to the underlying instruments, (2004/246/EC; OJ L 78/22, 16.3.2004)."

GERMANY

The instrument of accession by Germany contained the following declaration:

"The Accession takes place in accordance with the European Union Council Decision of 2 March 2004 (2004/246/EC, 'Council Decision authorizing the Member States to sign, ratify or accede, in the interest of the European Community, to the Protocol of 2003 to the International Convention on the Establishment of an International Fund for Compensation for Oil Pollution Damage, 1992, and authorizing Austria and Luxembourg, in the interest of the European Community, to accede to the underlying instruments, Official Journal of the European Union L 78/22; 16 March 2004)."

NEW ZEALAND

The instrument of accession by Germany contained the following declaration:

> " consistent with the constitutional status of Tokelau and taking into account the commitment of the Government of New Zealand to the development of self-government for Tokelau through an act of self-determination under the Charter of the United Nations, and having undertaken appropriate consultation with that territory, this Accession shall not extend to Tokelau".

SLOVAKIA

The instrument of accession by Slovakia contained the following declaration:

"The Accession takes place in accordance with the European Union Council Decision of 2 March 2004, and in accordance with the European Union Council Decision 2004/664/ES of 24 September 2004, authorizing the Member States to sign, ratify or accede, in the interests of the European Community, to the Protocol of 2003 to the International Convention on the Establishment of an International Fund for Compensation for Oil Pollution Damage, 1992 (FUND PROT 2003), and authorizing Austria and Luxembourg, in the interest of the European Community, to accede to the underlying instruments, Official Journal of the European Union (L 78/22; 16 March 2004)."

SWEDEN

The following statement accompanied the instrument of accession by Sweden:

"The Accession takes place in accordance with the European Union Council Decision of 2 March 2004 authorising the Member States to sign, ratify or accede to, in the interest of the European Community, the Protocol of 2003 to the International Convention on the Establishment of an International Fund for Compensation for Oil Pollution Damage, 1992, and authorising Austria and Luxembourg, in the interest of the European Community, to accede to the underlying instruments (2004/246/EC) (Official Journal of the European Union, L 78/22; 16 March 2004)."

INTERNATIONAL CONVENTION FOR SAFE CONTAINERS (CSC), 1972 (CSC 1972)

Done at Geneva, 2 December 1972

Entry into force: 6 September 1977

Signature, ratification, acceptance, approval and accession

Article VII

1. The present Convention shall be open for signature until 15 January 1973 at the Office of the United Nations at Geneva and subsequently from 1 February 1973 until 31 December 1973 inclusive at the Headquarters of the [International Maritime Organization] ... by all States Members of the United Nations or Members of any of the Specialized Agencies or of the International Atomic Energy Agency or Parties to the Statute of the International Court of Justice, and by any other State invited by the General Assembly of the United Nations to become a Party to the Convention.

2. The present Convention is subject to ratification, acceptance or approval by States which have signed it.

3. The present Convention shall remain open for accession by any State referred to in paragraph 1.

4. Instruments of ratification, acceptance, approval or accession shall be deposited with the Secretary-General of the ... Organization ...

Entry into force

Article VIII

1. The present Convention shall enter into force twelve months from the date of the deposit of the tenth instrument of ratification, acceptance, approval or accession.

2. For each State ratifying, accepting, approving or acceding to the present Convention after the deposit of the tenth instrument of ratification, acceptance, approval or accession, the present Convention shall enter into force twelve months after the date of the deposit by such State of its instrument of ratification, acceptance, approval or accession.

Procedure for amending any part or parts of the present Convention

Article IX

1 The present Convention may be amended upon the proposal of a Contracting Party by any of the procedures specified in this article.

2 Amendment after consideration in the Organization:

(a) Upon the request of a Contracting Party, any amendment proposed by it to the present Convention shall be considered in the Organization. If adopted by a majority of two-thirds of those present and voting in the Maritime Safety Committee of the Organization, to which all Contracting Parties shall have been invited to participate and vote, such amendment shall be communicated to all Members of the Organization and all Contracting Parties at least six months prior to its consideration by the Assembly of the Organization. Any Contracting Party which is not a Member of the Organization shall be entitled to participate and vote when the amendment is considered by the Assembly.

(b) If adopted by a two-thirds majority of those present and voting in the Assembly, and if such majority includes a two-thirds majority of the Contracting Parties present and voting, the amendment shall be communicated by the Secretary-General to all Contracting Parties for their acceptance.

(c) Such amendment shall come into force twelve months after the date on which it is accepted by two-thirds of the Contracting Parties. The amendment shall come into force with respect to all Contracting Parties except those which, before it comes into force, make a declaration that they do not accept the amendment.

3 Amendment by a conference:

Upon the request of a Contracting Party, concurred in by at least one-third of the Contracting Parties, a conference to which the States referred to in article VII shall be invited will be convened by the Secretary-General.

Special procedure for amending the Annexes

Article X

1. Any amendment to the Annexes proposed by a Contracting Party shall be considered in the Organization at the request of that Party.

2. If adopted by a two-thirds majority of those present and voting in the Maritime Safety Committee of the Organization to which all Contracting Parties shall have been invited to participate and to vote, and if such majority includes a two-thirds majority of the Contracting Parties present and voting, such amendment shall be communicated by the Secretary-General to all Contracting Parties for their acceptance.

3. Such an amendment shall enter into force on a date to be determined by the Maritime Safety Committee at the time of its adoption unless, by a prior date determined by the Maritime Safety Committee at the same time, one fifth or five of the Contracting Parties, whichever number is less, notify the Secretary-General of their objection to the amendment. Determination by the Maritime Safety Committee of the dates referred to in this paragraph shall be by a two-thirds majority of those present and voting, which majority shall include a two-thirds majority of the Contracting Parties present and voting.

4. On entry into force any amendment shall, for all Contracting Parties which have not objected to the amendment, replace and supersede any previous provision to which the amendment refers; an objection made by a Contracting Party shall not be binding on other Contracting Parties as to acceptance of containers to which the present Convention applies.

I. Signatories

II. Contracting States

III. Declarations, Reservations and Statements

IV. Amendments:

I. Signatories

Austria	
Bulgaria	
Byelorussian SSR	With reservations[1]
Canada	Subject to ratification
Czechia[2]	
Finland	
France	Sous réserve d'approbation ultérieure Le Gouvernement français, conformément aux dispositions de l'article XIV, émet une réserve à l'encontre du 4ème paragraphe de l'article X rédigé comme suit: "une objection élevée contre cet amendement par une partie contractante n'aura pas force obligatoire à l'égard des autres parties contractantes pour ce qui est de l'agrément des conteneurs auxquels la présente Convention s'applique". Lorsqu'une objection aura été élevée contre un amendement par une partie contractante, les dispositions de cet amendement ne lui seront pas opposables
Germany, Federal Republic of	Sous réserve de ratification
Hungary	10.1.73
Poland	
Republic of Korea	Subject to ratification
Romania	Sous réserve de ratification; avec déclaration à disposition de l'article VII[1]
Switzerland	
Türkiye	Avec une réserve sur la partie ci-dessous reproduite du 4ème paragraphe de l'article X: "une objection élevée contre cet amendement par une partie contractante n'aura pas force obligatoire à l'égard des autres parties contractantes pour ce qui est de l'agrément des conteneurs auxquels la présente Convention s'applique"
Ukrainian SSR	With reservations[1]
USSR	With reservations[1]
United Kingdom	
United States	Subject to ratification
Yugoslavia	Subject to approval

[1] See section III

[2] For the text of declaration, see section III

II. Contracting States

	Date of deposit of instrument	Date of entry into force or succession
Afghanistan (accession)	24 June 1987	24 June 1988
Algeria (accession) [1]	8 December 2023	8 December 2024
Angola (accession)	4 October 2001	4 October 2002
Argentina (accession)	11 September 1979	11 September 1980
Australia (accession)	22 February 1980	22 February 1981
Austria (ratification)	28 August 1986	28 August 1987
Bahamas (accession)	16 February 1979	16 February 1980
Bahrain (accession)	15 December 2015	15 December 2016
Barbados (accession)	1 September 1982	1 September 1983
Belarus (ratification)[1]	6 September 1976	6 September 1977
Belgium (accession)	16 September 1981	16 September 1982
Benin (accession)	1 November 1985	1 November 1986
Bolivia (Plurinational State of) (accession)	4 June 1999	4 June 2000
Brazil (accession)	3 April 1992	3 April 1993
Bulgaria (ratification)[1]	17 November 1976	17 November 1977
Canada (ratification)[1]	19 February 1981	19 February 1982
Cabo Verde (accession)	4 July 2003	4 July 2004
Chile (accession)[1]	28 March 1980	28 March 1981
China (accession)[3]	23 September 1980	23 September 1981
Congo (accession)	19 May 2014	19 May 2015
Croatia (succession)	-	8 October 1991
Cuba (accession)[1]	11 November 1983	11 November 1984
Cyprus (accession)	18 November 1996	18 November 1997
Czechia (succession)[1]	-	1 January 1993
Democratic People's Republic of Korea (accession)	18 October 1989	18 October 1990
Denmark (accession)[1]	2 March 1979	2 March 1980
Estonia (accession)	18 August 1992	18 August 1993
Finland (acceptance)	10 November 1998	10 November 1999
France (approval)[1]	21 October 1974	6 September 1977
Georgia (accession)	25 August 1995	25 August 1996
Germany (ratification)[1, 4]	27 July 1976	6 September 1977
Greece (accession)	28 June 1988	28 June 1989
Guinea (accession)	19 January 1981	19 January 1982
Guyana (accession)	10 December 1997	10 December 1998
Honduras (accession)	24 September 1985	24 September 1986
Hungary (ratification)	9 January 1974	6 September 1977
Iceland (accession)	25 October 1994	25 October 1995
India (accession)	27 January 1978	27 January 1979
Indonesia (accession)	25 September 1989	25 September 1990
Iran (Islamic Republic of)(accession)	11 October 2001	11 October 2002
Iraq (accession)	8 August 2023	8 August 2024
Israel (accession)	21 August 1981	21 August 1982
Italy (accession)	31 October 1979	31 October 1980
Japan (accession)	12 June 1978	12 June 1979
Jordan (accession)	31 July 2001	31 July 2002
Kazakhstan (accession)	7 March 1994	7 March 1995
Kenya (accession)	2 February 2000	2 February 2001
Latvia (accession)	19 January 2001	19 January 2002
Lebanon (accession)	17 July 2001	17 July 2002
Liberia (accession)	14 February 1978	14 February 1979
Lithuania (accession)	4 December 1991	4 December 1992
Luxembourg (accession)	13 November 1980	13 November l981
Marshall Islands (accession)	29 November 1994	29 November 1995
Mexico (accession)	4 April 1989	4 April 1990
Montenegro (succession)[7, 8]	-	3 June 2006
Morocco (accession)	5 July 1990	5 July 1991
Netherlands (accession)	27 September 1984	27 September 1985
New Zealand (accession)[5]	23 December 1974	6 September 1977

Nigeria (accession)	24 February 2004	24 February 2005
Norway (accession)	13 September 1983	13 September 1984
Pakistan (accession)	10 April 1985	10 April 1986
Peru (accession)	6 January 1988	6 January 1989
Poland (ratification)	14 January 1980	14 January 1981
Portugal (accession)	22 October 1985	22 October 1986
Republic of Korea (ratification)	18 December 1978	18 December l979
Romania (ratification)[1]	26 November 1975	6 September 1977
Russian Federation (ratification)[1, 6]	24 August 1976	6 September 1977
Saudi Arabia (accession)	6 October 1978	6 October 1979
Serbia (succession)[7, 8]	-	3 June 2006
Slovakia (succession)	-	1 January 1993
Slovenia (succession)	-	25 June 1991
South Africa (accession)	25 June 1982	25 June 1983
Spain (accession)	13 May 1974	6 September 1977
Sweden (accession)	9 June 1980	9 June 1981
Syrian Arab Republic (accession)[1]	2 September 2003	2 September 2004
Tonga (accession)	18 September 2003	18 September 2004
Tunisia (accession)	3 February 2005	3 February 2006
Türkiye (ratification)	6 August 2013	6 August 2014
Ukraine (ratification)[1]	6 September 1976	6 September 1977
United Arab Emirates (accession)	27 September 2017	27 September 2018
United Kingdom (ratification)[1, 2]	8 March 1978	8 March 1979
United States (ratification)	3 January 1978	3 January 1979
Uruguay (accession)	25 November 2013	25 November 2014
Vanuatu (accession)	13 January 1989	13 January 1990
Vietnam (accession)	30 September 2013	30 September 2014
Yemen (accession)	6 March 1979	6 March 1980

Number of Contracting States: 86

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[1] For the text of a declaration, reservation or statement, see section III.

[2] Ratification by the United Kingdom was declared to be effective in respect of:

Bermuda as from 27 March 1987
Isle of Man as from 19 June 1982
Guernsey as from 1 May 1992
Jersey as from 1 June 1994
Hong Kong* as from 30 May 1997

* Ceased to apply to Hong Kong with effect from 1 July 1997.

[3] Applies to the Hong Kong Special Administrative Region with effect from 1 July 1997, and to the Macao Special Administrative Region with effect from 24 June 2005.

[4] On 3 October 1990 the German Democratic Republic acceded to the Federal Republic of Germany. The German Democratic Republic had acceded[1] to the Convention on 27 September 1974.

[5] Accession by New Zealand was declared not to extend to the Cook Islands, Niue and the Tokelau Islands.

[6] As from 26 December 1991 the membership of the USSR in the Convention is continued by the Russian Federation.

[7] As from 4 February 2003, the name of the State of the Federal Republic of Yugoslavia changed to Serbia and Montenegro. The date of succession by Serbia and Montenegro to the Convention is the date on which the Federal Republic of Yugoslavia assumed responsibility for its international relations.

[8] Following the dissolution of the State Union of Serbia and Montenegro on 3 June 2006, all Treaty actions undertaken by Serbia and Montenegro continue to be in force with respect to Republic of Serbia. Montenegro has informed that it wished to succeed to this treaty with effect from the same date, ie. 3 June 2006.

III. Declarations, Reservations and Statements

ALGERIA

The instrument of accession by Algeria contained the following reservations:
[Translation]

“ Article 4 et 5 :
<< Le Gouvernernent algerien considere que l’adhesion de la Republique algerienne democratique et populaire a la presente convention n’implique pas de changement dans sa position relative a la non reconnaissance dautres parties signataires, ni d' obligation de collaboration dans quelque domaine que ce soit avec lesdites parties. »

Article 9 et 10 :
<< Le Gouvcmement de la Republique algerienne democratique et populaire declare que les amendements qui pourraient etre apportes a la Convention ou a ses annexes, après son adhesion, ne peuvent entrer en vigueur pour notre pays qu’apres l’accomplissement des procedures internes requises a cet effet. >>

Article 13 :
<< Le Gouvernement de la Republique algerienne democrutique et populaire declare qu'un differend ne peut etre soumis a l’arbitrage qu'avec I'accord prealable de toutes les parties au differend dans chaque cas.>>.

BULGARIA[1]

The instrument of ratification of the People's Republic of Bulgaria contained the following declarations:

[Translation]

"The People's Republic of Bulgaria considers that article 7, which restricts the participation of a number of States in the Convention, is contrary to the generally accepted principle of the sovereign equality of States.

"The People's Republic of Bulgaria considers that the acceptance on its part of article 13 is not to be understood as a change in its position and that a given dispute may be referred to an arbitral tribunal only with the consent of all the parties to the particular dispute."[2]

BYELORUSSIAN SR[1]

The following statement was made at the time of signature of the Convention:

[Translation]

"It is the view of the Government of the Byelorussian Soviet Socialist Republic that the provisions of article VII of the International Convention for Safe Containers restricting participation of some States in the Convention contradict the generally recognized principle of the sovereign equality of States.

"As to the provisions of article XIII concerning the settlement of disputes on the interpretation and application of the present Convention through arbitration the Government of the BSSR puts it on record that the acceptance of these provisions must not be interpreted as modifying the view of the BSSR Government that a dispute can be referred to an arbitration tribunal only with the agreement of all parties to a dispute in each particular case."

This statement was also contained in the instrument of ratification of the Byelorussian SSR.

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[1] The depositary received a communication dated 29 March 1977 from the Government of the United Kingdom.
The communication, the full text of which was circulated by the depositary, includes the following:

"The Government of the United Kingdom of Great Britain and Northern Ireland note that article XIV of the Convention prohibits the making of reservations to article XIII. Accordingly, they do not regard the statement(s) ... as in any way affecting or modifying the provisions of the Convention or the rights and obligations of the Governments of the German Democratic Republic, the Union of Soviet Socialist Republic, the Ukrainian Soviet Socialist Republic, the Byelorussian Soviet Socialist Republic, the People's Republic of Bulgaria or of any other Contracting Party under the Convention."

[2] The depositary received a communication on 19 April 1994 from the Minister for Foreign Affairs of the Republic of Bulgaria informing of the withdrawal of Bulgaria's reservation in respect of article 13.

[3] The depositary received a communication, on 12 April 2006, from the Minister of Foreign Affairs of the Republic of Bulgaria informing of the withdrawal of Bulgaria's declaration in respect of article 7, the full text of which includes the following:

"The People's Republic of Bulgaria consider that article 7, which restricts the participation of a number of States in the Convention is contrary to the generally accepted principle of the sovereign equality of States."

CANADA

The depositary received the following communication dated 4 February 1982 from the Canadian High Commissioner in London:

"I have the honour to refer to the Canadian instrument of ratification of the International Convention for Safe Containers which was deposited in London on 19 February 1981. The Convention will therefore enter into force for Canada on 19 February 1982 in accordance with article VIII, paragraph 2.

"Amendments to Annex I of the Convention were adopted by the Maritime Safety Committee on 01 August 1981 and came into force for contracting parties on 01 December 1981. The Government of Canada supports these amendments but must obtain Parliamentary approval in accordance with Section 8 of the Safe Containers Act, Statutes of Canada 1981-92, Chapter 9 before effect can be given to the amendments in Canadian Law.

"Accordingly I have been instructed to inform you that the Government of Canada, on becoming a contracting party to the International Convention for Safe Containers, and pursuant to the provisions of article X, paragraph 4, enters an objection to the Amendments to Annex I adopted by the Maritime Safety Committee on 01 August 1981, pending the completion of its domestic legislative procedures. This objection will be withdrawn when Canadian legislative procedures necessary to give effect to these amendments in domestic law have been completed."

By a communication dated 13 December 1982 this objection was withdrawn.

CHILE

The instrument of accession of the Republic of Chile contained the following reservation:

[Translation]

"... that any amendments which may be made either to the Convention or to its Annexes will not be in force for our country until they have been approved and ratified in accordance with the provisions of our internal legislation".

CUBA

The instrument of accession of the Republic of Cuba contained the following declarations (in the Spanish language):

[Translation]

"The Government of the Republic of Cuba considers that the provision of article VII of the International Convention for Safe Containers is discriminatory in nature in that it withholds from a number of States the right of signature and accession, which is contrary to the principle of universality."

"The Government of the Republic of Cuba considers, with reference to the rules contained in article XIII of the Convention, that differences arising between Parties should be resolved by direct negotiation through diplomatic channels."

CZECHIA

The following declaration was made at the time of signature of the Convention by the Representative of the Czechoslovak Socialist Republic:

"The Government of the Czechoslovak Socialist Republic considers that the provisions of article VII of the International Convention for Safe Containers, done at Geneva on 2 December 1972, which bar certain States from participation in it, are contrary to the universally recognized principle of the sovereign equality of States."

.../(cont'd)

CZECHIA (cont'd)

The instrument of approval of the Czechoslovak Socialist Republic was accompanied by the following declaration (in the English language):

"Article VII, paragraph 1 of the said Convention is inconsistent with the generally recognized principle of the sovereign equality of States."

Czechia and Slovakia, as successor States to the Czech and Slovak Federal Republic, consider themselves bound by the multilateral international treaties to which the Czech and Slovak Federal Republic was a party, as of 1 January 1993, including reservations and declarations made earlier by the Czech and Slovak Federal Republic.

DENMARK

The instrument of accession of the Kingdom of Denmark contains a declaration that the Convention does not apply to Greenland and the Faroe.

FRANCE

The instrument of approval of the French Republic was accompanied by the following:

[Translation]

"The French Government, in accordance with the provisions of article XIV, enters a reservation against [that part of] the fourth paragraph of article X which reads as follows: 'an objection made by a Contracting Party shall not be binding on other Contracting Parties as to acceptance of containers to which the present Convention applies'.

When an object on to an amendment is raised by a Contracting Party, the provisions of that amendment shall not be invoked against the said Party."

GERMAN DEMOCRATIC REPUBLIC[1]

The instrument of accession of the German Democratic Republic was accompanied by the following statements:

"The German Democratic Republic considers it necessary to point out that article VII deprives some States of the possibility to become parties to this Convention."

"The Convention regulates questions affecting the interests of all States; therefore it must be open for all States which are guided in their policies by the principles and purposes of the United Nations Charter to become parties to it."

"With regard to the provisions of article XIII of the Convention dealing with the settlement of disputes concerning the interpretation or application of the Convention by arbitration the German Democratic Republic declares that the acceptance of this provision should not be interpreted in such a way as if the view of the German Democratic Republic changed that a dispute may only be referred to an arbitration tribunal for consideration with the consent of all parties to the dispute."

The instrument of accession was also accompanied by the following declaration:

"The abbreviated state designation on the registration plates required by the Convention corresponds with the distinguishing sign used to indicate the state of registration of motor vehicles and reads "DDR". The competent authority in the German Democratic Republic for all questions in connection with this Convention is the DDR-Schiffs-Revision und-Klassification (DSRK)."

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[1] For the text of a communication received from the Government of the United Kingdom in respect of these statements see footnote 1 at the start of this section III.

FEDERAL REPUBLIC OF GERMANY[1]

The instrument of ratification of the Federal Republic of Germany was accompanied by a declaration (in the English language) that "the said Convention shall also apply to Berlin (West) with effect from the date on which it enters into force for the Federal Republic of Germany".

ROMANIA

The following declaration (in the French language) was made at the time of signature of the Convention by the Representative of the Socialist Republic of Romania:

[Translation]

> "The Government of the Socialist Republic of Romania considers that the provisions of article VII of the International Convention for Safe Containers, done at Geneva on 2 December 1972, are not consistent with the principle that multilateral international treaties, whose aim and object affect the international community as a whole, should be open to universal participation."

The instrument of ratification of the Government of the Socialist Republic of Romania was accompanied by the same declaration that was made at the time of signature.

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[1] The depositary received a communication dated 18 October 1976 from the Government of the German Democratic Republic. The communication, the full text of which was circulated by the depositary, includes the following:

> "The German Democratic Republic takes note of the declaration of the Federal Republic of Germany on the application to Berlin (West) of the provisions of the Convention for Safe Containers of 2 December 1972 and considers that the application to Berlin (West) of the provisions of the Convention is consistent with the Quadripartite Agreement of 3 September 1971 according to which Berlin (West) is no constituent part of the Federal Republic of Germany and must not be governed by it."

The following communication dated 31 March 1977 was received from the Government of the United Kingdom on behalf of the Governments of the United Kingdom of Great Britain and Northern Ireland, of the French Republic and of the United States of America. The communication, the full text of which was circulated by the depositary, includes the following:

> "The German Democratic Republic is not a party to the Quadripartite Agreement of 3 September 1971 which was concluded in Berlin by the Governments of the French Republic, the Union of Soviet Socialist Republics, and United Kingdom of Great Britain and Northern Ireland and of the United States of America, and is not therefore competent to comment authoritatively on its provisions.
>
> "The Quadripartite Agreement does not impose any requirement regarding terminology to be used by the Federal Republic of Germany, when extending to the Western Sectors of Berlin Treaties or Agreements to which it has become a party, nor of course, does the Agreement affect terminology used in the past. In any case the use by the Federal Republic of Germany of the terminology mentioned in the Notes under reference can in no way affect quadripartite agreements or decisions relating to Berlin.
>
> "Consequently the validity of the Berlin Declaration made by the Federal Republic of Germany is unaffected by the use of this terminology."

A further communication dated 11 July 1977 was received from the Ambassador of the Federal Republic of Germany in London:

> "By letter of 31 March 1977 addressed on behalf of Her Britannic Majesty's Principal Secretary of State for Foreign and Commonwealth Affairs to the Secretary-General the Government of the United Kingdom, also on behalf of the Government of France and of the United States of America, answered the assertions made in the communications referred to above. The Government of the Federal Republic of Germany, on the basis of the legal situation set out in that letter, wished to confirm that the application in Berlin (West) of the above mentioned instrument extended by it under the establishment procedures continues in full force and effect."

SYRIAN ARAB REPUBLIC

The instrument of accession by the Syrian Arab Republic contained the following declaration:

[Translation]

"Under no circumstances shall the accession of the Syrian Arab republic to this Convention, as amended, imply recognition of Israel or occasion its entry with the latter into any of the transactions regulated by the provisions of the same, as amended."

UKRAINIAN SSR[1]

The following statement was made at the time of signature of the Convention:

[Translation]

"It is the view of the Government of the Ukrainian Soviet Socialist Republic that the provisions of article VII of the International Convention for Safe Containers restricting participation of some States in the Convention contradict the generally recognized principle of the sovereign equality of States.

"As to the provisions of article XIII concerning the settlement of disputes on the interpretation and application of the present Convention through arbitration the Government of the Ukrainian SSR puts it on record that the acceptance of these provisions must not be interpreted as modifying the view of the Ukrainian SSR Government that a dispute can be referred to an arbitration tribunal only with the agreement of all parties to a dispute in each particular case."

This Statement was also contained in the instrument of ratification of the Government of the Ukrainian SSR.

USSR[1]

The following statement was made at the time of signature of the Convention:

[Translation]

"It is the view of the Government of the Union of Soviet Socialist Republics that the provisions of article VII of the International Convention for Safe Containers restricting participation of some States in the Convention contradict the generally recognized principle of the sovereign equality of States.

"As to the provisions of article XIII concerning the settlement of disputes on the interpretation and application of the present Convention through arbitration the USSR Government puts it on record that the acceptance of those provisions must not be interpreted as modifying the view of the USSR Government that a dispute can be referred to an arbitration tribunal only with the agreement of all parties to a dispute in each particular case."

This statement was also contained in the instrument of ratification of the USSR.

UNITED KINGDOM

The instrument of ratification of the United Kingdom of Great Britain and Northern Ireland contains the following:

"... reserving the right not to apply the said Convention in respect of any territory for whose international relations the Government of the United Kingdom is responsible until twelve months after the date on which the Government of the United Kingdom notify the Secretary-General of the Inter-Governmental Maritime Consultative Organization that the said Convention shall apply in respect of any such territory."

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[1] For the text of a communication received from the Government of the United Kingdom in respect of this statement, see footnote l at the start of this section III.

IV. Amendments

1981 Amendments to Annex I

A. Adoption

On 2 April 1981, the Maritime Safety Committee, at its forty-fourth session, adopted, in accordance with article X(2) of the Convention, amendments to Annex I to the Convention. The Secretary-General transmitted the texts of the amendments to the Parties to the Convention for acceptance by Note Verbale T3/2.05 (NV.2) of 3 June 1981.

B. Entry into force

In accordance with the terms of article X(3) of the Convention the amendments entered into force on 1 December 1981 for all Contracting Parties.[1]

1983 Amendments to Annexes I and II

A. Adoption

On 13 June 1983, the Maritime Safety Committee, at its forty-eighth session, adopted, in accordance with article X(2) of the Convention, amendments to Annexes I and II to the Convention. The Secretary-General transmitted the texts of the amendments to the Parties to the Convention for acceptance by Note Verbale A1/N/1.06 (NV.2) of 8 August 1983.

B. Entry into force

In accordance with the terms of article X(3) of the Convention the amendments entered into force on 1 January 1984.

C. Contracting Party which notified an objection to the amendments

Canada[2]

1991 Amendments to Annexes I and II

A. Adoption

The Maritime Safety Committee at its fifty-ninth session (May 1991) adopted by resolution MSC.20(59), in accordance with article X of the Convention, amendments to Annexes I and II to the Convention.

B. Entry into force

The Maritime Safety Committee determined, in accordance with article X, paragraph 3, of the Convention that the said amendments to the Convention shall enter into force on 1 January 1993, unless, prior to 1 January 1992, five Contracting Parties have notified the Secretary-General of their objection to the amendments. No such notification was received and the amendments accordingly entered into force on 1 January 1993.

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[1] A communication received from the Canadian High Commissioner in London is reproduced in section III.

[2] With a note explaining that the objection was entered pending the completion of domestic legislative procedures. This objection was withdrawn by a communication dated 3 April 1984 from the Canadian High Commission in London.

1993 Amendments to the Convention and Annexes I and II

A. Adoption

On 4 November 1993 the Assembly adopted amendments to the Convention and its Annexes by resolution A.737(18). The Secretary-General communicated the texts of the amendments to Contracting Parties for acceptance by Note Verbale A1/N/1.06 (NV.7) dated 24 January 1994.

B. Entry into force

The 1993 amendments are not yet in force.

Number of acceptances necessary for entry into force: 52

Number of acceptances deposited: 12

C. Accepting Governments

	Date of deposit of acceptance
Australia	14 August 1995
Brazil	June 2019
Bulgaria	12 April 2006
Congo	28 May 2015
Estonia	7 April 1994
Latvia	19 January 2001
Marshall Islands	16 October 1995
Netherlands	22 December 1994
Romania	8 April 2002
Saudi Arabia	9 January 2015
Tonga	18 September 2003
Vanuatu	18 February 1999

2010 Amendments to the Convention MSC.310(88)

A. Adoption

The Maritime Safety Committee at its eighty-eight session (December 2010) adopted by resolution MSC.310(88), amendments to the Annexes.

B. Entry into force

The Maritime Safety Committee determined, in accordance with paragraph 3 of article X of the Convention that the amendments shall enter into force on 1 January 2012 unless, prior to 1 July 2011, five or more of the Contracting Parties notify the Secretary-General of their objection to the amendments. As at 1 July 2011 one objection[1] had been communicated to the Secretary-General and the amendments accordingly entered into force on 1 January 2012.

2013 amendments (MSC. 355(92)

A. Adoption

The Maritime Safety Committee at its ninety-second session (June 2013) adopted by resolution MSC.355(92), amendments to the Annexes.

B. Entry into force

The Maritime Safety Committee determined, in accordance with paragraph 3 of article X of the Convention that the amendments shall enter into force on 1 July 2014 unless, prior to 1 January 2014, five or more of the Contracting Parties notify the Secretary-General of their objection to the amendments. As at 1 January 2014 no objection had been communicated to the Secretary-General and the amendments accordingly entered into force on 1 July 2014.

[1] The depositary received, on 27 June 2011, the following communication from the Embassy of Finland:

"... the Embassy hereby informs, with reference to paragraph 3 and 4 of article X of the Convention that, due to national procedural requirements, Finland is obliged to object to the above-mentioned amendments. The Embassy has the honour to inform the Secretary-General that the Government of Finland intends to accept the amendments as soon as the legislative amendments necessary to such acceptance have been carried out. The Government of Finland will not fail to inform the Secretary-General of any developments in this respect."

A communication was subsequently received from the Embassy of Finland on 23 December 2014 as follows: "…the Government of Finland has fulfilled the national procedural requirements for entering into force of the aforementioned amendments and can thus withdraw its objection."

ATHENS CONVENTION RELATING TO THE CARRIAGE OF PASSENGERS AND THEIR LUGGAGE BY SEA, 1974 (PAL 1974)

Done at Athens, 13 December 1974

Entry into force: 28 April 1987

Signature, ratification, acceptance, approval, accession

Article 23

1. This Convention shall be open for signature at the Headquarters of the Organization until 31 December 1975 and shall thereafter remain open for accession.

2. States may become Parties to this Convention by:

(a) signature without reservation as to ratification, acceptance or approval;

(b) signature subject to ratification, acceptance or approval followed by ratification, acceptance or approval; or

(c) accession.

3. Ratification, acceptance, approval or accession shall be effected by the deposit of a formal instrument to that effect with the Secretary-General of the Organization.

Entry into force

Article 24

1. This Convention shall enter into force on the ninetieth day following the date on which ten States have either signed it without reservation as to ratification, acceptance, or approval or have deposited the requisite instruments of ratification, acceptance, approval or accession.

2. For any State which subsequently signs this Convention without reservation as to ratification, acceptance or approval, or deposits its instrument of ratification, acceptance, approval or accession, the Convention shall come into force on the ninetieth day after the date of such signature or deposit.

I. Signatories

II. Contracting States

III. Denunciations

IV. Declarations, Reservations and Statements

I. Signatories

Germany, Federal Republic of	Subject to ratification
Greece	Subject to accept this
Poland	Subject to ratification
Switzerland	Sous réserve de ratification
United Kingdom	Subject to ratification
Yugoslavia	Sous réserve quant à la ratification

II. Contracting States

	Date of deposit of instrument	Date of entry into force	Effective date of denunciation
Albania (accession)	16 March 2005	14 June 2005	23 April 2014
Argentina (accession)[1]	26 May 1983	28 April 1987	
Bahamas (accession)	7 June 1983	28 April 1987	
Barbados (accession)	6 May 1994	4 August 1994	8 June 2023
Belgium (accession)	15 June 1989	13 September 1989	23 April 2014
Belize (accession)	22 August 2011[1]	20 November 2011	23 April 2014
China (accession)[3]	1 June 1994	30 August 1994	
Congo (accession)	19 May 2014	17 August 2014	
Croatia (accession)	12 January 1998	12 April 1998	23 April 2014
Dominica (accession)	31 August 2001	29 November 2001	
Egypt (accession)	18 October 1991	16 January 1992	
Equatorial Guinea (accession)	24 April 1996	23 July 1996	
Estonia (accession)	8 October 2002	6 January 2003	
Georgia (accession)	25 August 1995	23 November 1995	22 August 2019
Greece (acceptance)	3 July 1991	1 October 1991	23 April 2014
Guyana (accession)	10 December 1997	10 March 1998	
Ireland (accession)	24 February 1998	25 May 1998	
Jordan (accession)	3 October 1995	1 January 1996	
Latvia (accession)	6 December 2001	6 March 2002	23 April 2014
Liberia (accession)	17 February 1981	28 April 1987	
Libya (accession)	8 November 2012	6 February 2013	
Luxembourg (accession)	14 February 1991	15 May 1991	
Malawi (accession)	9 March 1993	7 June 1993	
Marshall Islands (accession)	29 November 1994	27 February 1995	27 January 2015
Nigeria (accession)	24 February 2004	24 May 2004	
Poland (ratification)	28 January 1987	28 April 1987	
Russian Federation (accession)[1, 4]	27 April 1983	28 April 1987	16 April 2019
Saint Kitts and Nevis (accession)	30 August 2005	28 November 2005	
Saudi Arabia (accession)	25 January 2019	25 April 2019	
Serbia (accession)	25 May 2011	23 August 2011	23 April 2014
Spain (accession)	8 October 1981	28 April 1987	11 September 2015
Switzerland (ratification)	15 December 1987	14 March 1988	
Tonga (accession)	15 February 1977	28 April 1987	
Ukraine (accession)	11 November 1994	9 February 1995	
United Kingdom (ratification)[2]	31 January 1980	28 April 1987	23 April 2014
Vanuatu (accession)	13 January 1989	13 April 1989	
Yemen (accession)	6 March 1979	28 April 1987	

Number of Contracting States: 25

[1] For the text of a declaration, reservation or statement, see section IV.

[2] The United Kingdom declared ratification to be effective also in respect of:

Bailiwick of Guernsey	Gibraltar**
Bailiwick of Jersey	Hong Kong***
Bermuda	Isle of Man
British Virgin Islands	Montserrat
Cayman Islands	Pitcairn
Falkland Islands*	St. Helena, Ascension and Tristan da Cunha ****

* For the text of a reservation made by the Argentine Republic and a communication received from the United Kingdom, see section III.

The Depositary received a communication, on 19 December 2024, from the Foreign and Commonwealth Office in London, informing that the denunciation of the Convention was extended to the Falkland Islands (Malvinas). The extension of denunciation to the Falkland Islands took effect on 19 December 2024, the date on which the notification from the United Kingdom was received by the Secretary-General.

† A dispute exists between the Governments of Argentina and the United Kingdom of Great Britain and Northern Ireland concerning sovereignty over the Falkland Islands (Malvinas). The Secretary-General received a communication from the Embassy of the Argentine Republic, on 29 April 2025, the full text of which is contained in Circular Letter No.5010.

** The depositary received a communication, dated 8 May 2014, from the Foreign and Commonwealth Office in London, informing that the denunciation of the Convention was extended to Gibraltar on 8 May 2014.

*** Ceased to apply to Hong Kong with effect from 1 July 1997.

**** The depositary received a communication, dated 2 March 2010, from the Foreign and Commonwealth Office in London, informing that the name of the British overseas territory formerly called “St. Helena and Dependencies” has been changed to “St. Helena, Ascension and Tristan da Cunha”. The status of the territory as a British overseas territory remains unchanged.

[3] Applies to the Hong Kong Special Administrative Region with effect from 1 July 1997 and to the Macao Special Administrative Region with effect from 24 June 2005.

[4] As from 26 December 1991 the membership of the USSR in the Convention is continued by the Russian Federation.

III. States which have denounced the Convention

		Date of receipt of denunciation	Effective date of denunciation
1.	Albania	16 March 2005	23 April 2014
2.	Belgium	23 April 2013	23 April 2014
3.	Barbados	8 March 2023	8 June 2023
4.	Belize	27 March 2014	23 April 2014
5.	Croatia	25 September 2013	23 April 2014
6.	Georgia	22 May 2019	22 August 2019
7.	Greece	6 December 2013	23 April 2014
8.	Ireland	7 August 2014	7 November 2014
9.	Latvia	15 February 2005	23 April 2014
10.	Marshall Islands	27 October 2014	27 January 2015
11.	Spain	11 June 2015	11 September 2015
12.	Serbia	25 May 2011	23 April 2014
13.	Russian Federation	16 January 2019	16 April 2019
14.	United Kingdom	21 January 2014	23 April 2014

IV. Declarations, Reservations and Statements

ARGENTINA[1]

The instrument of accession of the Argentine Republic contained a declaration of non-application of the Convention under article 22, paragraph 1, as follows (in the Spanish language):

[Translation]

> "The Argentine Republic will not apply the Convention when both the passengers and the carrier are Argentine nationals."

The instrument also contained the following reservations:

[Translation]

> "The Argentine Republic rejects the extension of the application of the Athens Convention relating to the Carriage of Passengers and Their Luggage by Sea, 1974, adopted in Athens, Greece, on 13 December 1974, and of the Protocol to the Athens Convention relating to the Carriage of Passengers and Their Luggage by Sea, 1974, approved in London on 19 December 1976, to the Malvinas Islands as notified by the United Kingdom of Great Britain and Northern Ireland to the Secretary-General of the International Maritime Organization (IMO) in ratifying the said instrument on 31 January 1980 under the incorrect designation of "Falkland Islands", and reaffirms is sovereign rights over the said Islands which form an integral part of its national territory."

GERMAN DEMOCRATIC REPUBLIC

The instrument of accession of the German Democratic Republic was accompanied by the following reservation (in the German language):

[Translation]

> "The German Democratic Republic declares that the provisions of this Convention shall have no effect when the passenger is a national of the German Democratic Republic and when the performing carrier is a permanent resident of the German Democratic Republic or has its seat there."

USSR

The instrument of accession of the Union of Soviet Socialist Republics contained a declaration of non-application of the Convention under article 22, paragraph 1.

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[1] A communication dated 19 October 1983 from the Government of the United Kingdom, the full text of which was circulated by the depositary, includes the following:

...

> "The Government of the United Kingdom of Great Britain and Northern Ireland reject each and every one of these statements and assertions. The United Kingdom has no doubt as to its sovereignty over the Falkland Islands and thus its right to include them within the scope of application of international agreements of which it is a party. The United Kingdom cannot accept that the Government of the Argentine Republic has any rights in this regard. Nor can the United Kingdom accept that the Falkland Islands are incorrectly designated."

PROTOCOL TO THE ATHENS CONVENTION RELATING TO THE CARRIAGE OF PASSENGERS AND THEIR LUGGAGE BY SEA, 1974 (PAL PROT 1976)

Done at London, 19 November 1976

Entry into force: 30 April 1989

Signature, ratification, acceptance, approval, accession

Article III

1. The present Protocol shall be open for signature by any State which has signed the Convention[1] or acceded thereto and by any State invited to attend the Conference to Revise the Unit of Account Provisions in the Athens Convention Relating to the Carriage of Passengers and their Luggage by Sea, 1974, held in London from 17 to 19 November 1976. This Protocol shall be open for signature from 1 February 1977 to 31 December 1977 at the Headquarters of the Organization.

2. Subject to paragraph 4 of this article, the present Protocol shall be subject to ratification, acceptance or approval by the States which have signed it.

3. Subject to paragraph 4 of this article, this Protocol shall be open for accession by States which did not sign it.

4. The present Protocol may be ratified, accepted, approved or acceded to by States Parties to the Convention.[1]

5. Ratification, acceptance, approval or accession shall be effected by the deposit of a formal instrument to that effect with the Secretary-General.

Entry into force

Article IV

1. The present Protocol shall enter into force for the States which have ratified, accepted, approved or acceded to it on the ninetieth day following the date on which ten States have either signed it without reservation as to ratification, acceptance or approval or have deposited the requisite instruments of ratification, acceptance, approval or accession.

2. However, the present Protocol shall not enter into force before the Convention[1] has entered into force.

3. For any State which subsequently signs this Protocol without reservation as to ratification, acceptance or approval, or deposits its instrument of ratification, acceptance, approval or accession, the present Protocol shall come into force on the ninetieth day after the date of such signature or deposit.

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[1] Athens Convention relating to the Carriage of Passengers and their Luggage by Sea, 1974.

I. Signatories
II. Contracting States
III. Denunciations
IV. Declarations, Reservations and Statements
V. Notifications

I. Signatories

Germany, Federal Republic of	
United Kingdom	Subject to ratification

II. Contracting States

	Date of deposit of instrument	Date of entry into force	Effective date of denunciation
Albania (accession)	16 March 2005	14 June 2005	23 April 2014
Argentina (accession)[1]	28 April 1987	30 April 1989	
Bahamas (accession)	28 April 1987	30 April 1989	
Barbados (accession)	6 May 1994	4 August 1994	8 June 2023
Belgium (accession)	15 June 1989	13 September 1989	23 April 2014
China (accession)[3]	1 June 1994	30 August 1994	
Croatia (accession)	12 January 1998	12 April 1998	23 April 2014
Dominica (accession)	31 August 2001	29 November 2001	
Estonia (accession)	8 October 2002	6 January 2003	
Georgia (accession)	25 August 1995	23 November 1995	22 August 2019
Greece (accession)	3 July 1991	1 October 1991	23 April 2014
Ireland (accession)	24 February 1998	25 May 1998	7 November 2014
Latvia (accession)	6 December 2001	6 March 2002	23 April 2014
Liberia (accession)	28 April 1987	30 April 1989	
Libya (accession)	8 November 2012	6 February 2013	
Luxembourg (accession)	14 February 1991	15 May 1991	
Marshall Islands (accession)	29 November 1994	27 February 1995	27 January 2015
Poland (accession)	28 April 1987	30 April 1989	
Russian Federation (accession)[4, 5]	30 January 1989	30 April 1989	16 April 2019
Saudi Arabia (accession)	25January 2019	25 April 2019	
Spain (accession)	28 April 1987	30 April 1989	11 September 2015
Switzerland (accession)[5]	15 December 1987	30 April 1989	
Tonga (accession)	18 September 2003	17 December 2003	
Ukraine (accession)	11 November 1994	9 February 1995	
United Kingdom (ratification)[2, 5]	28 April 1987	30 April 1989	23 April 2014
Vanuatu (accession)	13 January 1989	30 April 1989	
Yemen (accession)	28 April 1987	30 April 1989	

Number of Contracting States: 16

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[1] For the text of a reservation, see section III.

[Footnotes continued]

[Footnotes continued]

[2] The United Kingdom declared ratification to be effective also in respect of:

Bailiwick of Guernsey	Gibraltar**
Bailiwick of Jersey	Hong Kong***
Bermuda	Isle of Man
British Virgin Islands	Montserrat
Cayman Islands	Pitcairn
Falkland Islands*	St. Helena, Ascension and Tristan da Cunha ****

* For the text of a reservation made by the Argentine Republic and a communication received from the United Kingdom, see section III.

The Depositary received a communication, on 19 December 2024, from the Foreign and Commonwealth Office in London, informing that the denunciation of the Convention was extended to the Falkland Islands (Malvinas). The extension of denunciation to the Falkland Islands took effect on 19 December 2024, the date on which the notification from the United Kingdom was received by the Secretary-General.

† A dispute exists between the Governments of Argentina and the United Kingdom of Great Britain and Northern Ireland concerning sovereignty over the Falkland Islands (Malvinas). The Secretary-General received a communication from the Embassy of the Argentine Republic, on 29 April 2025, the full text of which is contained in Circular Letter No.5010.

** The depositary received a communication, dated 8 May 2014, from the Foreign and Commonwealth Office in London, informing that the denunciation of the Protocol was extended to Gibraltar on 8 May 2014.

*** Ceased to apply to Hong Kong with effect from 1 July 1997.

**** The depositary received a communication, dated 2 March 2010, from the Foreign and Commonwealth Office in London, informing that the name of the British overseas territory formerly called “St. Helena and Dependencies” has been changed to “St. Helena, Ascension and Tristan da Cunha”. The status of the territory as a British overseas territory remains unchanged.

[3] Applies to the Hong Kong Special Administrative Region with effect from 1 July 1997 and to the Macao Special Administrative Region with effect from 24 June 2005.

[4] As from 26 December 1991 the membership of the USSR in the Protocol is continued by the Russian Federation.

[5] With a notification under article II(3), see section IV.

III. States which have denounced the Protocol

	Date of receipt of denunciation	**Effective date of denunciation**
Albania	16 March 2005	23 April 2014*
Barbados	8 March 2023 8 June 2023	
Croatia	25 September 2013	23 April 2014
Belgium	23 April 2013	23 April 2014
Georgia	22 May 2019	22 August 2019
Greece	6 December 2013	23 April 2014
Ireland	8 August 2014	7 November 2014
Latvia	15 February 2005	23 April 2014
Marshall Islands	27 October 2014	27 January 2015
Spain	11 June 2015	11 September 2015
Russian Federation	16 January 2019	16 April 2019
United Kingdom	21 January 2014	23 April 2014

*Date of entry into force of PAL PROT 2002

IV. Declarations, Reservations and Statements

ARGENTINA[1]

The instrument of accession of the Argentine Republic contained the following reservation (in the Spanish language):

[Translation]

> "The Argentine Republic rejects the extension of the application of the Athens Convention relating to the Carriage of Passengers and their Luggage by Sea, 1974, adopted in Athens, Greece, on 13 December 1974, and of the Protocol to the Athens Convention relating to the Carriage of Passengers and their Luggage by Sea, 1974, approved in London on 19 December 1976, to the Malvinas Islands as notified by the United Kingdom of Great Britain and Northern Ireland to the Secretary-General of the International Maritime Organization (IMO) in ratifying the said instrument on 31 January 1980 under the incorrect designation of Falkland Islands", and reaffirms its sovereign rights over the said Islands which form an integral part of its national territory."

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[1] The depositary received the following communication dated 4 August 1987 from the United Kingdom Foreign and Commonwealth Office:

> "The Government of the United Kingdom of Great Britain and Northern Ireland cannot accept the reservation made by the Argentine Republic as regards the Falkland Islands.
>
> "The Government of the United Kingdom of Great Britain and Northern Ireland have no doubt as to the United Kingdom sovereignty over the Falkland Islands and, accordingly, their right to extend the application of the Convention to the Falkland Islands."

V. Notifications

Article II(3) of the Protocol

Switzerland:

[Translation]

"The Federal Council declares, with reference to article 9, paragraphs 1 and 3 of the Convention introduced by article II of the Protocol of 19 November 1976, that Switzerland calculates the value of its national currency in special drawing rights (SDR) in the following way:

"The Swiss National Bank (SNB) notifies the International Monetary Fund (IMF) daily of the mean rate of the dollar of the United States of America on the Zurich currency market. The exchange value of one SDR in Swiss francs is determined from that dollar rate and the rate of the SDR in dollars calculated by IMF. On the basis of these values, SNB calculates a mean SDR rate which it will publish in its Monthly Gazette."

USSR:

[Translation]

"In accordance with the provisions of paragraph 3 of article 9 of the Athens Convention relating to the Carriage of Passengers and their Luggage by Sea, 1974 in the reading of article II of the Protocol of 1976 to the Convention, this is to notify that the value of the unit of "special drawing right" expressed in Soviet roubles, is calculated on the basis of the US dollar exchange rate employed at the moment of the calculation in relation to the unit of "special drawing right" established by the International Monetary Fund, and the US dollar exchange rate in relation to the Soviet rouble, employed at the same moment, established by the State Bank of the USSR."

United Kingdom

"... in accordance with article 9.3 of the Convention, as amended by article II(3) of the Protocol, the manner of calculation employed by the United Kingdom pursuant to article 9.1 of the Convention, as amended, shall be the method of valuation applied by the International Monetary Fund."

PROTOCOL OF 1990 TO AMEND THE ATHENS CONVENTION RELATING TO THE CARRIAGE OF PASSENGERS AND THEIR LUGGAGE BY SEA, 1974 (PAL PROT 1990) *

Done at London, 29 March 1990

Entry into force: Not yet in force

Signature, ratification, acceptance, approval, accession

Article IV

1 This Protocol shall be open for signature at the Headquarters of the Organization from 1 June 1990 to 31 May 1991 by all States.

2 Any State may express its consent to be bound by this Protocol by:

(a) signature without reservation as to ratification, acceptance or approval;

(b) signature subject to ratification, acceptance or approval followed by ratification, acceptance or approval; or

(c) accession.

3 Ratification, acceptance, approval or accession shall be effected by the deposit of an instrument to that effect with the Secretary-General.

4 Any instrument of ratification, acceptance, approval or accession deposited after the entry into force of an amendment to the Convention as amended by this Protocol shall be deemed to apply to the Convention so amended, as modified by such amendment.

Entry into force

Article V

1 This Protocol shall enter into force 90 days following the date on which 10 States have expressed their consent to be bound by it.

2 For any State which expresses its consent to be bound by this Protocol after the conditions in paragraph 1 for entry into force have been met, this Protocol shall enter into force 90 days following the date of expression of such consent.

I. Signatories

II. Contracting States

∗ Effectively superseded by the 2002 PAL Protocol.

I. Signatories

Germany, Federal Republic of	Subject to ratification
Switzerland	Sous réserve de ratification

II. Contracting States

	Date of deposit of instrument	Effective date of denunciation
Albania (accession)	16 March 2005	23 April 2014
Croatia (accession)	12 January 1998	23 April 2014
Egypt (accession)	18 October 1991	
Luxembourg (accession)	21 November 2005	
Spain (accession)	24 February 1993	11 September 2015
Tonga (accession)	18 September 2003	

Number of Contracting States: 3

III. States which have denounced the Protocol

	Date of receipt of denunciation	Effective date of denunciation
1. Albania	16 March 2005	23 April 2014*
2. Croatia	25 September 2013	23 April 2014*
3. Spain	11 June 2015	11 September 2015

*Date of entry into force of PAL PROT 2002

PROTOCOL OF 2002 TO THE ATHENS CONVENTION RELATING TO THE CARRIAGE OF PASSENGERS AND THEIR LUGGAGE BY SEA, 1974 (PAL PROT 2002)

Done at London, 1 November 2002

Entry into force: 23 April 2014

Signature, ratification, acceptance, approval, accession

Article 17

1 This Protocol shall be open for signature at the Headquarters of the Organization from 1 May 2003 until 30 April 2004 and shall thereafter remain open for accession.

2 States may express their consent to be bound by this Protocol by:

(a) signature without reservation as to ratification, acceptance or approval;

(b) signature subject to ratification, acceptance or approval; or

(c) accession.

3 Ratification, acceptance, approval or accession shall be effected by the deposit of an instrument to that effect with the Secretary-General.

4 Any instrument of ratification, acceptance, approval or accession deposited after the entry into force of an amendment to this Protocol with respect to all existing States Parties, or after the completion of all measures required for the entry into force of the amendment with respect to those States Parties shall be deemed to apply to this Protocol as modified by the amendment.

5 A State shall not express its consent to be bound by this Protocol unless, if Party thereto, it denounces:

(a) the Athens Convention relating to the Carriage of Passengers and their Luggage by Sea, done at Athens on 13 December 1974;

(b) the Protocol to the Athens Convention relating to the Carriage of Passengers and their Luggage by Sea, done at London on 19 November 1976; and

(c) the Protocol of 1990 to amend the Athens Convention relating to the Carriage of Passengers and their Luggage by Sea, done at London on 29 March 1990,

with effect from the time that this Protocol will enter into force for that State in accordance with Article 20.

Entry into force

Article 20

1 This Protocol shall enter into force twelve months following the date on which 10 States have either signed it without reservation as to ratification, acceptance or approval or have deposited instruments of ratification, acceptance, approval or accession with the Secretary-General.

2 For any State which ratifies, accepts, approves or accedes to this Protocol after the conditions in paragraph 1 for entry into force have been met, this Protocol shall enter into force three months after the date of deposit by such State of the appropriate instrument, but not before this Protocol has entered into force in agreement with paragraph 1.

Denunciation

Article 21

1 This Protocol may be denounced by any State Party at any time after the date on which this Protocol comes into force for that State.

2 Denunciation shall be effected by the deposit of an instrument to that effect with the Secretary-General.

3 A denunciation shall take effect twelve months, or such longer period as may be specified in the instrument of denunciation, after its deposit with the Secretary-General.

4 As between the States Parties to this Protocol, denunciation by any of them of the Convention in accordance with Article 25 thereof shall not be construed in any way as a denunciation of the Convention as revised by this Protocol

Revision and amendment

Article 22

1 A Conference for the purpose of revising or amending this Protocol may be convened by the Organization.

2 The Organization shall convene a Conference of States Parties to this Protocol for revising or amending this Protocol at the request of not less than one-third of the States Parties.

I. Signatories

II. Contracting States

III. Denunciations

IV. Declarations, Reservations and Statements

V. Amendments

I. Signatories

Finland	Subject to acceptance
Germany, Federal Republic of	Subject to ratification
Norway	Subject to ratification
Spain	Subject to ratification
Sweden	Subject to ratification
United Kingdom	Subject to ratification

II. Contracting States

	Date of deposit of instrument	Date of entry into force
Albania (accession) [1]	16 March 2005	23 April 2014
Barbados (accession)	8 March 2023	8 June 2023
Belgium (accession) [1]	23 April 2013	23 April 2014
Belize (accession)	22 August 2011	23 April 2014
Bulgaria (accession)[1]	10 December 2013	23 April 2014
Croatia (accession)[1]	25 September 2013	23 April 2014
Denmark (accession)[1, 4]	23 May 2012	23 April 2014
European Union [1, 2]	15 December 2011	23 April 2014
Finland (acceptance)[1]	5 June 2017	5 September 2017
France (accession)[1]	19 September 2016	19 December 2016
Georgia (accession)[1]	22 May 2019	22 August 2019
Greece (accession)[1]	6 December 2013	23 April 2014
Ireland (accession) [1]	7 August 2014	7 November 2014
Latvia (accession) [1]	17 February 2005	23 April 2014
Lithuania (accession) [1]	10 March 2015	10 June 2015
Madagascar (accession)	26 July 2019	26 October 2019
Malta (accession)[1]	7 August 2013	23 April 2014
Marshall Islands (accession)[1]	27 October 2014	27 January 2015
Montenegro (accession)	9 September 2015	9 December 2015
Netherlands (accession)[1]	26 September 2012	23 April 2014
Norway (ratification)[1]	26 November 2013	23 April 2014
Palau (accession)	29 September 2011	23 April 2014
Panama (accession) [1]	23 January 2014	23 April 2014
Portugal (accession)[1]	1 September 2015	1 December 2015
Republic of Moldova (accession)	13 August 2026	13 November 2026
Romania (accession)	21 October 2014	21 January 2015
Russian Federation (accession)	16 January 2019	16 April 2019
Saint Kitts and Nevis (accession)	30 August 2005	23 April 2014
San Marino (accession)[1]	27 January 2022	27 April 2022
Serbia (accession)[1]	25 May 2011	23 April 2014
Slovak Republic (accession)[1]	13 April 2015	13 July 2015
Slovenia (accession)	9 January 2017	9 April 2017
Spain (ratification)[1]	11 June 2015	11 September 2015
Sweden (ratification)[1]	2 June 2015	2 September 2015
Syrian Arab Republic (accession)[1]	10 March 2005	23 April 2014
Türkiye	16 June 2022	16 September 2022
United Kingdom (ratification)[1, 3]	21 January 2014	23 April 2014

Number of Contracting States: 35

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[1] For the text of a declaration, reservation or statement, see section III.

[2] Article 19(3) of the Protocol provides that: "Where the number of States Parties is relevant in this Protocol, including but not limited to Articles 20 and 23 of this Protocol, the Regional Economic Integration Organization shall not count as a State Party in addition to its Member States which are States Parties." Accordingly, the number of Contracting States remains unaltered with this accession.

[3] The depositary received a communication, dated 8 May 2014, from the Foreign and Commonwealth Office in London, informing that the protocol was extended to Gibraltar on 8 May 2014.

The Depositary received a communication, on 19 December 2024, from the Foreign and Commonwealth Office in London, informing that the Protocol was extended to the Falkland Islands (Malvinas). The extension to the Falkland Islands took effect on 19 December 2024, the date on which the notification from the United Kingdom was received by the Secretary-General.

[4] The Depositary received, on 11 November 2025, a notification of the withdrawal of the territorial declaration of Denmark with regard to the Faroe Islands.

* A dispute exists between the Governments of Argentina and the United Kingdom of Great Britain and Northern Ireland concerning sovereignty over the Falkland Islands (Malvinas). The Secretary-General received a communication from the Embassy of the Argentine Republic, on 29 April 2025, the full text of which is contained in Circular Letter No.5010.

III. States which have denounced the Convention

		Date of receipt of denunciation	Effective date of denunciation
1.	Saint Kitts and Nevis	24 April 2014	24 April 2015

IV. Declarations, Reservations and Statements

BELGIUM

The instrument of accession by the Kingdom of Belgium was accompanied a reservation, for its content please refer to the reservation of Denmark below, *mutatis mutandi* or refer to PAL.4/Circ.8.

BULGARIA

The instrument of accession by Bulgaria was accompanied by a reservation, for its content please refer to the reservation of Denmark above, *mutatis mutandi* or refer to circular PAL.4/Circ.12.

CROATIA

For the text of the reservation, please refer to the text of the reservation by the EU, *mutatis mutandis* (see below) or refer to PAL.4/Circ.10.

DENMARK

The instrument of accession by the Kingdom of Denmark was accompanied by the following reservation:

Limitation of liability of carriers, etc.

1. The Government of Denmark reserves the right to and undertakes to limit liability under paragraph 1 or 2 of article 3 of the Convention, if any, in respect of death of or personal injury to a passenger caused by any of the risks referred to in paragraph 2.2 of the IMO Guidelines for Implementation of the Athens Convention to the lower of the following amounts:
   - 250,000 units of account in respect of each passenger on each distinct occasion,

   or
   - 340 million units of account overall per ship on each distinct occasion.

2. Furthermore, the Government of Denmark reserves the right to and undertakes to apply the IMO Guidelines for Implementation of the Athens Convention, paragraphs 2.1.1 and 2.2.2 *mutatis mutandis*, to such liabilities.
3. The liability of the performing carrier pursuant to article 4 of the Convention, the liability of the servants and agents of the carrier or the performing carrier pursuant to article 11 of the Convention and the limit of the aggregate of the amounts recoverable pursuant to article 12 of the Convention shall be limited in the same way.
4. The reservation and undertaking in paragraph 1.2 will apply regardless of the basis of liability under paragraph 1 or 2 of article 3 and notwithstanding anything to the contrary in article 4 or 7 of the Convention; but this reservation and undertaking do not affect the operation of articles 10 and 13.

Compulsory insurance and limitation of liability of insurers

5. The Government of Denmark reserves the right to and undertakes to limit the requirement under paragraph 1 of article 4bis to maintain insurance or other financial security for death or personal injury to a passenger caused by any of the risks referred to in paragraph 2.2 of the IMO Guidelines for Implementation of the Athens Convention to the lower of the following amounts:

- 250,000 units of account in respect of each passenger on each distinct occasion,

or

- 340 million units of account overall per ship on each distinct occasion.

6. The Government of Denmark reserves the right to and undertakes to limit the liability of the insurer or other person providing financial security under paragraph 10 of article 4bis, for death or personal injury to a passenger caused by any of the risks referred to in paragraph 2.2 of the IMO Guidelines for Implementation of the Athens Convention, to a maximum limit of the amount of insurance or other financial security which the carrier is required to maintain under paragraph 1.6 of this reservation.

7. The Government of Denmark also reserves the right to and undertakes to apply the IMO Guidelines for Implementation of the Athens Convention including the application of the clauses referred to in paragraphs 2.1 and 2.2 in the Guidelines in all compulsory insurance under the Convention.

8. The Government of Denmark reserves the right to and undertakes to exempt the provider of insurance or other financial security under paragraph 1 of article 4bis from any liability for which he has not undertaken to be liable.

Certification

9. The Government of Denmark reserves the right to and undertakes to issue insurance certificates under paragraph 2 of article 4bis of the Convention so as:

- to reflect the limitations of liability and the requirements for insurance cover referred to in paragraphs 1.2, 1.6, 1.7 and 1.9; and
- to include such other limitations, requirements and exemptions as it finds that the insurance market conditions at the time of the issue of the certificate necessitate.

10. The Government of Denmark reserves the right to and undertakes to accept insurance certificates issued by other States Parties issued pursuant to a similar reservation.

11. All such limitations, requirements and exemptions will be clearly reflected in the Certificate issued or certified under paragraph 2 of article 4bis of the Convention.

Relationship between this Reservation and the IMO Guidelines for Implementation of the Athens Convention

12. The rights retained by this reservation will be exercised with due regard to the IMO Guidelines for Implementation of the Athens Convention, or to any amendments thereto, with an aim to ensure uniformity. If a proposal to amend the IMO Guidelines for Implementation of the Athens Convention, including the limits, has been approved by the Legal Committee of the International Maritime Organisation, those amendments will apply as from the time determined by the Committee. This is without prejudice to the rules of international law regarding the right of a state to withdraw or amend its reservation.

The Government of Denmark declares that judgments on matters covered by the Athens Convention relating to the Carriage of Passengers and their Luggage by Sea, 2002 (the Convention) shall, when given by a court of a European Union Member State other than Denmark, be recognized and enforced in Denmark according to the relevant internal Union rules on the subject based on the Agreement between the European Community and the Kingdom of Denmark on jurisdiction and the recognition and enforcement of judgments in civil and commercial matters.

EUROPEAN UNION

EUROPEAN UNION DECLARATION OF COMPETENCE

As regards matters covered by articles 10 and 11 of the Athens Protocol of 2002 to the Athens Convention relating to the Carriage of Passengers and their Luggage by Sea, 1974, which come under article 81 of the Treaty on the Functioning of the European Union, the Member States of the European Union, with the exception of the Kingdom of Denmark, in accordance with articles 1 and 2 of Protocol (No 22) on the position of Denmark, annexed to the Treaty on European Union and to the Treaty on the Functioning of the European Union, have conferred competences to the Union. The Union exercised this competence by adopting Council Regulation (EC) No 44/2001 of 22 December 2000 on jurisdiction and the recognition and enforcement of judgments in civil and commercial matters.

EUROPEAN UNION DECLARATION ON ARTICLE 17bis(3) OF THE ATHENS CONVENTION, AS AMENDED BY ARTICLE 11 OF THE ATHENS PROTOCOL

1. Judgments on matters covered by the Athens Protocol of 2002 to the Athens Convention relating to the

Carriage of Passengers and their Luggage by Sea, 1974, when given by a court of the Kingdom of Belgium, the Republic of Bulgaria, Czechia, the Federal Republic of Germany, the Republic of Estonia, Ireland, the Hellenic Republic, the Kingdom of Spain, the French Republic, the Italian Republic, the Republic of Cyprus, the Republic of Latvia, the Republic of Lithuania, the Grand Duchy of Luxembourg, the Republic of Hungary, Malta, the Kingdom of the Netherlands, the Republic of Austria, the Republic of Poland, the Portuguese Republic, Romania, the Republic of Slovenia, the Slovak Republic, the Republic of Finland, the Kingdom of Sweden or the United Kingdom of Great Britain and Northern Ireland, shall be recognised and enforced in a Member State of the European Union in accordance with the relevant rules of the European Union on the subject.

2. Judgments on matters covered by the Athens Protocol, when given by a court of the Kingdom of Denmark, shall be recognised and enforced in a Member State of the European Union in accordance with the Agreement between the European Community and the Kingdom of Denmark on jurisdiction and the recognition and enforcement of judgments in civil and commercial matters.

3. Judgments on matters covered by the Athens Protocol, when given by a court of a third State:

(a) bound by the Lugano Convention on jurisdiction and the recognition and enforcement of judgments in civil and commercial matters of 30 October 2007 shall be recognised and enforced in the Member States of the European Union in accordance with that Convention;

(b) bound by the Lugano Convention on jurisdiction and the enforcement of judgments in civil and commercial matters of 16 September 1988 shall be recognised and enforced in the Member States of the European Union in accordance with that Convention.".

***

EUROPEAN UNION DECLARATION OF COMPETENCE

1. Article 19 of the Athens Protocol of 2002 to the Athens Convention relating to the Carriage of Passengers and their Luggage by Sea, 1974 provides that Regional Economic Integration Organisations which are constituted by sovereign States that have transferred competence over certain matters governed by that Protocol to them may sign it, on condition that they make the declaration referred to in that article. The Union has decided to accede to the Athens Protocol and is accordingly making that declaration.

2. The current Members of the European Union are the Kingdom of Belgium, the Republic of Bulgaria, Czechia, the Kingdom of Denmark, the Federal Republic of Germany, the Republic of Estonia, Ireland, the Hellenic Republic, the Kingdom of Spain, the French Republic, the Italian Republic, the Republic of Cyprus, the Republic of Latvia, the Republic of Lithuania, the Grand Duchy of Luxembourg, the Republic of Hungary, Malta, the Kingdom of the Netherlands, the Republic of Austria, the Republic of Poland, the Portuguese Republic, Romania, the Republic of Slovenia, the Slovak Republic, the Republic of Finland, the Kingdom of Sweden and the United Kingdom of Great Britain and Northern Ireland.

3. This declaration is not applicable to the territories of the Member States of the European Union in which the Treaty on the Functioning of the European Union (TFEU) does not apply and is without prejudice to such acts or positions as may be adopted under the Protocol by the Member States concerned on behalf of, and in the interests of, those territories.

4. The Member States of the European Union have conferred exclusive competence to the Union as regards measures adopted on the basis of article 100 of the TFEU. Such measures have been adopted as regards articles 1 and 1 bis, article 2(2), articles 3 to 16 and articles 18, 20 and 21 of the Athens Convention as amended by the Athens Protocol and the provisions of the IMO Guidelines, by means of Regulation (EC) No 392/2009 of the European Parliament and of the Council of 23 April 2009 on the liability of carriers of passengers by sea in the event of accidents.

5. The exercise of competence which the Member States have transferred to the European Union pursuant to the TFEU is, by its nature, liable to continuous development. In the framework of the TFEU, the competent institutions may take decisions which determine the extent of the competence of the European Union. The European Union therefore reserves the right to amend this declaration accordingly, without this constituting a prerequisite for the exercise of its competence with regard to matters governed by the Athens Protocol. The European Union will notify the amended declaration to the Secretary-General of the International Maritime Organization.

EUROPEAN UNION RESERVATION

Reservation in connection with the ratification by the European Union of the Athens Convention relating to the Carriage of Passengers and their Luggage by Sea, 2002 (the Convention).

Limitation of liability of carriers, etc.

1. The European Union reserves the right to and undertakes to limit liability under paragraph 1 or 2 of article 3

of the Convention, if any, in respect of death of or personal injury to a passenger caused by any of the risks referred to in paragraph 2.2 of the IMO Guidelines for Implementation of the Athens Convention to the lower of the following amounts:

- 250,000 units of account in respect of each passenger on each distinct occasion, or
- 340 million units of account overall per ship on each distinct occasion.

2. Furthermore, the European Union reserves the right to and undertakes to apply the IMO Guidelines for Implementation of the Athens Convention, paragraphs 2.1.1 and 2.2.2 mutatis mutandis, to such liabilities.

3. The liability of the performing carrier pursuant to article 4 of the Convention, the liability of the servants and agents of the carrier or the performing carrier pursuant to article 11 of the Convention and the limit of the aggregate of the amounts recoverable pursuant to article 12 of the Convention shall be limited in the same way.

4. The reservation and undertaking in paragraph 1.2 will apply regardless of the basis of liability under paragraph 1 or 2 of article 3 and notwithstanding anything to the contrary in article 4 or 7 of the Convention; but this reservation and undertaking do not affect the operation of articles 10 and 13.

Compulsory insurance and limitation of liability of insurers

5. The European Union reserves the right to and undertakes to limit the requirement under paragraph 1 of article 4bis to maintain insurance or other financial security for death or personal injury to a passenger caused by any of the risks referred to in paragraph 2.2 of the IMO Guidelines for Implementation of the Athens Convention to the lower of the following amounts:

- 250,000 units of account in respect of each passenger on each distinct occasion, or
- 340 million units of account overall per ship on each distinct occasion.

6. The European Union reserves the right to and undertakes to limit the liability of the insurer or other person providing financial security under paragraph 10 of article 4bis, for death or personal injury to a passenger caused by any of the risks referred to in paragraph 2.2 of the IMO Guidelines for Implementation of the Athens Convention, to a maximum limit of the amount of insurance or other financial security which the carrier is required to maintain under paragraph 1.6 of this reservation.

7. The European Union also reserves the right to and undertakes to apply the IMO Guidelines for Implementation of the Athens Convention including the application of the clauses referred to in paragraphs 2.1 and 2.2 in the Guidelines in all compulsory insurance under the Convention.

8. The European Union reserves the right to and undertakes to exempt the provider of insurance or other financial security under paragraph 1 of article 4bis from any liability for which he has not undertaken to be liable.

Certification

9. The European Union reserves the right to and undertakes to issue insurance certificates under paragraph 2 of article 4bis of the Convention so as:

- to reflect the limitations of liability and the requirements for insurance cover referred to in paragraphs 1.2, 1.6, 1.7 and 1.9; and

- to include such other limitations, requirements and exemptions as it finds that the insurance market conditions at the time of the issue of the certificate necessitate.

10. The European Union reserves the right to and undertakes to accept insurance certificates issued by other States Parties issued pursuant to a similar reservation.

11. All such limitations, requirements and exemptions will be clearly reflected in the Certificate issued or certified under paragraph 2 of article 4bis of the Convention.

Relationship between this Reservation and the IMO Guidelines for Implementation of the Athens Convention

12. The rights retained by this reservation will be exercised with due regard to the IMO Guidelines for Implementation of the Athens Convention, or to any amendments thereto, with an aim to ensure uniformity. If a proposal to amend the IMO Guidelines for Implementation of the Athens Convention, including the limits, has been approved by the Legal Committee of the International Maritime Organisation, those amendments will apply as from

the time determined by the Committee. This is without prejudice to the rules of international law regarding the right of a state to withdraw or amend its reservation.

FINLAND

For the text of the reservation, please refer to the text of the reservation by the EU, *mutatis mutandis* (see above) or refer to circular PAL.4/Circ.30.

FRANCE

For the text of the reservation, please refer to the text of the reservation by the EU, *mutatis mutandis* (see above) or refer to circular PAL.4/Circ.28.

GEORGIA

For the text of the reservation, please refer to the text of the reservation by the EU, mutatis mutandis (see above) or refer to circular PAL.4/Circ.32.

GREECE

For the text of the reservation, please refer to the text of the reservation by the EU, *mutatis mutandis* (see above) or refer to circular PAL.4/Circ.16.

IRELAND

For the text of the reservation, please refer to the text of the reservation by the EU, *mutatis mutandis* (see above) or refer to circular PAL.4/Circ.19.

LATVIA

The instrument of accession by the Republic of Latvia was accompanied by the following declaration:

"In accordance with article 17, paragraph 5 and article 20 of the Protocol of 2002 to the Athens Convention relating to the Carriage of Passengers and their Luggage by Sea, done in London on 1 November 2002, the Republic of Latvia communicates that the withdrawal of the Athens Convention relating to the Carriage of Passengers and their Luggage by Sea, done at Athens on 13 December 1974 and the Protocol to the Athens Convention relating to the Carriage of Passengers and their Luggage by Sea, done at London 19 November 1976, deposited by the Republic of Latvia at the International Maritime Organization on 15 February 2005, will take effect upon the entry into force of the Protocol of 2002 to the Athens Convention relating to the Carriage of Passengers and their Luggage by Sea."

On 29 January 2014, the Secretary-General received a declaration by the Ministry of Foreign Affairs of the Republic of Latvia. For the text of the reservation, please refer to the text of the reservation by the EU, mutatis mutandis (see above) or refer to circular PAL.4/Circ.15.

LITHUANIA

For the text of the reservation, please refer to the text of the reservation by the EU, *mutatis mutandis* (see above) or refer to circular PAL.4/Circ.21.

MALTA

For the text of the reservation, please refer to the text of the reservation by the EU, *mutatis mutandis* (see above) or refer to circular PAL.4/Circ.9.

MARSHALL ISLANDS

For the text of the reservation, please refer to the text of the reservation by the EU, mutatis mutandis (see above) or refer to circular PAL.4/Circ.20.

NETHERLANDS

For the text of the reservation, please refer to the text of the reservation by the EU, *mutatis mutandis* (see above) or refer to circular PAL.4/Circ.7. The reservation by the Netherlands only applies to its European part.

NORWAY

For the text of the reservation, please refer to the text of the reservation by the EU, *mutatis mutandis* (see above) or refer to circular PAL.4/Circ.11.

PANAMA

The instrument of accession by Panama was accompanied by a reservation, for its content please refer to the reservation of Denmark above, *mutatis mutandi* or refer to circular PAL.4/Circ.14.

PORTUGAL

The instrument of accession by Portugal was accompanied by a reservation, for its content please refer to the reservation of Denmark above, *mutatis mutandi* or refer to circular PAL.4/Circ.25.

SAN MARINO

For the text of the reservation, please refer to the text of the reservation by the EU, mutatis mutandis (see above) or refer to PAL.4/Circ.33.

SERBIA

"On the day of the entry into force of the Protocol of 2002 to the Athens Convention relating to the Carriage of Passengers and their Luggage by Sea, 1974, adopted in London on 1 November 2002, on international level, the Republic of Serbia shall terminate the Athens Convention relating to the Carriage of Passengers and their Luggage by Sea, adopted in Athens on 13 December 1974."

SLOVAKIA

The instrument of accession by Slovakia was accompanied by the following declaration and reservation:

"The declaration and reservation of the Slovak Republic to the Protocol of 2002 to the Athens Convention relating to the Carriage of Passengers and their Luggage by Sea, 1974 (PAL PROT 2002) are applied in accordance with declarations and reservations made by the European Union, mutatis mutandis."

SLOVENIA

For the text of the reservation, please refer to the text of the reservation by the EU, *mutatis mutandis* (see above) or refer to circular PAL.4/Circ.29.

SPAIN

The instrument of ratification by Spain was accompanied by a reservation and declaration. For the text of the reservation, please refer to the text of the reservation by the EU, mutatis mutandis (see above) or refer to circular PAL.4/Circ.24. The text of the declaration is as follows:

"Considering that the United Kingdom has decided to extend the application of this Protocol to the territory of Gibraltar, Spain wishes to make the following declaration:

.1 Gibraltar is a non-autonomous territory whose international relations come under the responsibility of the United Kingdom and which is subject to a decolonization process in accordance with the relevant decisions and resolutions of the General Assembly of the United Nations.

.2 The authorities of Gibraltar have a local character and exercise exclusively internal competences which have their origin and their foundation in a distribution and attribution of competences performed by the United Kingdom in compliance with its internal legislation, in its capacity as sovereign State on which the mentioned non-autonomous territory depends.

.3 As a result, the eventual participation of the Gibraltarian authorities in the application of this Protocol will be understood as carried out exclusively as part of the internal competences of Gibraltar and cannot be considered to modify in any way what was established in the two previous paragraphs.

.4 The procedure established by the regime relating to Gibraltar authorities in the context of certain international treaties agreed upon by Spain and the United Kingdom on 19 December 2007 (together with "Agreed Arrangements relating to Gibraltar Authorities in the context of EU and EC Instruments and related Treaties, 19 April 2000") is applicable to this Protocol.

.5 The application to Gibraltar of this Protocol cannot be interpreted as recognition of any rights or situations involving matters not included in article 10 of the Treaty of Utrecht of 13 July 1713, signed by the Crowns of Spain and Great Britain."

SWEDEN

For the text of the reservation, please refer to the text of the reservation by the EU, *mutatis mutandis* (see above) or refer to PAL.4/Circ.23.

SYRIAN ARAB REPUBLIC

"… Ratification of this Protocol by the Syrian Arab Republic in no way implies recognition of Israel and will not result in Syria's entering into any relations with it whatsoever under the rules of this Protocol."

UNITED KINGDOM

The instrument of accession by the United Kingdom was accompanied by a reservation, for its content please refer to the reservation of Denmark above, *mutatis mutandi* or refer to PAL.4/Circ.13.

CONVENTION ON THE INTERNATIONAL MOBILE SATELLITE ORGANIZATION, AS AMENDED (IMSO C 1976)

Done at London, 3 September 1976

Entry into force: 16 July 1979

Signature, ratification, acceptance, approval, accession

Article 32

1. This Convention shall remain open for signature in London until entry into force and shall thereafter remain open for accession. All States may become Parties to the Convention by:

(a) signature not subject to ratification, acceptance or approval; or

(b) signature subject to ratification, acceptance or approval, followed by ratification, acceptance or approval; or

(c) accession.

2. Ratification, acceptance, approval or accession shall be effected by the deposit of the appropriate instrument with the Depositary.

...

4. No State shall become a Party to this Convention until it has signed, or the entity it has designated, has signed the Operating Agreement.

5. Reservations cannot be made to this Convention or the Operating Agreement.[1]

Entry into force

Article 33

1. This Convention shall enter into force sixty days after the date on which States representing 95 per cent of the initial investment shares have become Parties to the Convention.

2. Notwithstanding paragraph 1, if the Convention has not entered into force within thirty-six months after the date it was opened for signature, it shall not enter into force.

3. For a State which deposits an instrument of ratification, acceptance, approval or accession after the date on which the Convention has entered into force, the ratification, acceptance, approval or accession shall take effect on the date of deposit.

Amendments

Article 34

(1) Amendments to this Convention may be proposed by any Party. Proposed amendments shall be submitted to the Directorate, which shall inform the other Parties and Signatories. Three months' notice is required before consideration of an amendment by the Council, which shall submit its views to the Assembly within a period of six months from the date of circulation of the amendment. The Assembly shall consider the amendment not earlier than six months thereafter, taking into account any views expressed by the Council. This period may, in any particular case, be reduced by the Assembly by a substantive decision.

(2) If adopted by the Assembly, the amendment shall enter into force one hundred and twenty days after the Depositary has received notices of acceptance from two-thirds of those States which at the time of adoption by the Assembly were Parties and represented at least two-thirds of the total investment shares. Upon entry into force, the amendment shall become binding upon all Parties and Signatories, including those which have not accepted it.

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[1] INMARSAT Operating Agreement.

I. Signatories

II. Parties to the Convention

III. Declarations and Statements

IV. Amendments:

I. Signatories

Algeria	
Australia	Subject to ratification
Belgium	Sous réserve de ratification
Brazil[1]	
Bulgaria	*[Translation]* Subject to acceptance
Byelorussian SSR	*[Translation]* Subject to acceptance
Cameroon	Subject to ratification
Canada	
Chile	*[Translation]* Subject to ratification
China	
Denmark	
Finland	Subject to ratification
France	Sous réserve de ratification
Germany, Federal Republic of	Subject to ratification
Greece	Subject to ratification
India	Subject to ratification
Iraq	Subject to ratification
Italy	Sujet à ratification[2]
Japan	Subject to acceptance
Kuwait	Subject to ratification
Liberia	Subject to ratification
Netherlands	Subject to approval
New Zealand	
Norway	Subject to ratification
Poland	Subject to ratification
Portugal	
Singapore	
Spain	Subject to ratification
Sweden	
Türkiye	Subject to ratification
Ukrainian SSR	*[Translation]* Subject to acceptance
USSR	*[Translation]* Subject to acceptance
United Kingdom	Subject to ratification
United States	

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[1] By letter dated 10 January 1979 the Government of Brazil informed the Secretary-General that the signature affixed to the Convention on behalf of Brazil was intended to be subject to ratification.

[2] For the text of a declaration, reservation or statement, see section III.

II. Parties to the Convention

	Date of signature or deposit of instrument	Date of entry into force or succession
Algeria (signature)	15 July 1979	16 July 1979
Angola (accession)	7 February 2022	7 February 2022
Antigua and Barbuda (accession)	12 Oct. 2009	12 Oct. 2009
Argentina (accession)	2 October 1979	2 October 1979
Australia (ratification)	16 March 1979	16 July 1979
Bahamas (accession)	12 May 1994	12 May 1994
Bahrain (accession)	8 January 1986[1]	8 January 1986
Bangladesh (accession)	17 September 1993	17 September 1993
Barbados (accession)	8 March 2023	8 March 2023
Belarus (acceptance)	29 March 1979	16 July 1979
Belgium (ratification)	14 July 1979	16 July 1979
Bolivia (Plurinational State of) (accession)	9 March 2018	9 March 2018
Bosnia and Herzegovina (accession)	17 April 1998[1]	17 April 1998
Brazil (ratification)	10 July 1979	16 July 1979
Brunei Darussalam (accession)	4 October 1993	4 October 1993
Bulgaria (approval)	15 June 1979	16 July 1979
Cameroon (ratification)	23 October 1990	23 October 1990
Canada (signature)	17 May 1979[1]	16 July 1979
Chile (ratification)	26 February 1981	26 February 1981
China[2] (signature)	13 July 1979	16 July 1979
Colombia (accession)	28 October 1987	28 October 1987
Comoros (accession)	22 November 2000	22 November 2000
Costa Rica (accession)	5 June 1995	5 June 1995
Cook Islands (accession)	31 October 2007	31 October 2007
Croatia (accession)	24 November 1992	24 November 1992
Cuba (accession)[3]	25 July 1989	25 July 1989
Cyprus (accession)	8 June 1992	8 June 1992
Czechia (succession)	-	1 January 1993
Denmark (signature)	10 May 1979	16 July 1979
Democratic People's Republic of Korea	15 October 2013	15 October 2013
Ecuador (accession)	11 November 2015	11 November 2015
Egypt (accession)[3]	29 November 1977	16 July 1979
Finland (ratification)	12 July 1979	16 July 1979
Fiji (accession)	8 March 2016	8 March 2016
France (ratification)	18 October 1979	18 October 1979
Gabon (accession)	28 December 1984	28 December 1984
Georgia (accession)[4]	12 January 2015	12 January 2015
Germany[5] (ratification)[3]	23 October 1979	23 October 1979
Ghana (accession)	11 July 1995	11 July 1995
Greece (ratification)	13 July 1979	16 July 1979
Haiti (accession)	28 November 2025	28 November 2025
Honduras (accession)	16 November 2016	16 November 2016
Hungary (accession)	24 July 1997[1]	24 July 1997
Iceland (accession)	26 March 1991	26 March 1991
India (ratification)	6 June 1978	16 July 1979
Indonesia (accession)[3]	9 October 1986[1]	9 October 1986
Iran (Islamic Republic of) (accession)	12 October 1984[1]	12 October 1984
Iraq (ratification)	21 July 1980[1]	21 July 1980
Israel (accession)	13 October 1987	13 October 1987
Italy (ratification)[3]	10 July 1979	16 July 1979
Japan (acceptance)	25 November 1977	16 July 1979
Jordan (accession)	18 November 2014	18 November 2014
Kenya (accession)	21 July 1998[1]	21 July 1998
Kuwait (ratification)[3]	25 February 1977	16 July 1979
Latvia (accession)	22 March 1995[1]	22 March 1995
Lebanon (accession)	29 December 1994	29 December 1994
Liberia (ratification)	14 November 1980[1]	14 November 1980
Libya (accession)	29 January 1999	29 January 1999
Malaysia (accession)	12 June 1986	12 June 1986

Maldives (accession)	20 July 2023	20 July 2023
Malta (accession)	11 January 1991	11 January 1991
Marshall Islands (accession)	12 May 1997[1]	12 May 1997
Mauritius (accession)	7 December 1992	7 December 1992
Mexico (accession)	10 January 1994	10 January 1994
Monaco (accession)	1 October 1990	1 October 1990
Mongolia	28 September 2011	28 September 2011
Montenegro (succession)[9,10]	-	3 June 2006
Morocco (accession)	4 August 1999	4 August 1999
Mozambique (accession)	18 April 1990	18 April 1990
Netherlands (approval)[6]	15 June 1979	16 July 1979
New Zealand (signature)	17 August 1977	16 July 1979
Nigeria (accession)	23 February 1988	23 February 1988
Norway (ratification)	10 October 1978	16 July 1979
Oman (accession)	30 December 1980	30 December 1980
Pakistan (accession)	6 February 1985[1]	6 February 1985
Palau (accession)	29 September 2011	29 September 2011
Panama (accession)	26 October 1987	26 October 1987
Peru (accession)	30 October 1987	30 October 1987
Philippines (accession)	30 March 1981	30 March 1981
Poland (ratification)	3 July 1979	16 July 1979
Portugal (signature)	13 July 1979	16 July 1979
Qatar (accession)	28 September 1987	28 September 1987
Republic of Korea (accession)	16 September 1985[1]	16 September 1985
Romania (accession)	27 September 1990	27 September 1990
Russian Federation[7] (acceptance)	13 March 1979	16 July 1979
Saudi Arabia (accession)	5 October 1983[1]	5 October 1983
Senegal (accession)	16 June 1994[1]	16 June 1994
Serbia (succession)[9,10]	-	3 June 2006
Singapore (signature)	29 June 1979	16 July 1979
Slovakia (accession)	20 July 1993	20 July 1993
Solomon Islands (accession)	20 November 2020	20 November 2020
Somalia (accession)	27 November 2025	27 November 2025
South Africa (accession)	3 March 1994	3 March 1994
Spain (ratification)	5 September 1978	16 July 1979
Sri Lanka (accession)	15 December 1981[1]	15 December 1981
Sweden (signature)	19 June 1979	16 July 1979
Switzerland (accession)	17 May 1989	17 May 1989
Thailand (accession)	14 December 1994	14 December 1994
Tonga (accession)	18 September 2003	17 November 2003
Tunisia (accession)	9 May 1983	9 May 1983
Türkiye (ratification)	16 November 1989	16 November 1989
Tuvalu (accession)	8 August 2023	8 August 2023
Ukraine (acceptance)	29 March 1979	16 July 1979
United Arab Emirates (accession)[3]	13 January 1983	13 January 1983
United Kingdom (ratification)[8]	30 April 1979	16 July 1979
United Republic of Tanzania (accession)	21 December 1998[1]	21 December 1998
United States (signature)	15 February 1979	16 July 1979
Uruguay (accession)	16 September 2022	16 September 2022
Venezuela (Bolivarian Republic of) (accession)	27 April 2005	27 April 2005
Viet Nam (accession)	15 April 1998[1]	15 April 1998
Vanuatu (accession)	20 August 2008	20 August 2008
Yemen (accession)	24 January 2011	24 January 2011

Number of Contracting States: 112

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[1] Date of signature of the Operating Agreement.

[2] Applies to the Hong Kong Special Administrative Region with effect from 1 July 1997* and to the Macao Special Administrative Region with effect from 24 June 2005.

[*] Ceased to apply to Hong Kong with effect from 1 July 1997.
[3] For the text of a declaration or statement, see section III.

[Footnotes continued]

[Footnotes continued]

[4] "Re-accession by Georgia. Georgia acceded to the Convention on 27 July 1993 and the Convention came into force for Georgia on the same date. However, as a consequence of non-payment by the Signatory of Georgia of its initial capital contributions payable under article III(1) of the Operating Agreement, and in accordance with article 30(3) of the Convention and the decision of the Inmarsat Council at its fiftieth session (28 July -2 August 1994), the Operating Agreement ceased to be in force for the Signatory as from 2 October 1994. The Party of Georgia, after due notice, failed to take any of the actions required under article 30(6) of the Convention within three months of the date of termination of the Signatory's membership, i.e. by 2 January 1995. Accordingly, the Party was considered to have withdrawn, and the Convention ceased to be in force for the Party as from 2 October 1994."

[5] On 3 October 1990 the German Democratic Republic acceded to the Federal Republic of Germany. The German Democratic Republic had acceded to the Convention on 24 September 1986.

[6] Approval by the Netherlands was declared to be effective in respect of the Netherlands Antilles* and, with effect from 1 January 1986, in respect of Aruba.

* The Netherlands Antilles has ceased to exist as an autonomous country within the Kingdom of the Netherlands with effect from 10 October 2010. Since that date, the Kingdom of the Netherlands consists of four autonomous countries: The Netherlands (European part and Caribbean part), Aruba, Curaçao and Sint Maarten. For more details see footnote 4, in section II of SOLAS 1974.. The Convention applies as follows:

		Effective from
The Netherlands (European part)	)	16 July 1979
Caribbean part of the Netherlands	)	10 October 2010
Aruba	)	1 January 1986
Curaçao	)	10 October 2010
Sint Maarten	)	10 October 2010

[7] As from 26 December 1991 the membership of the USSR in the Convention is continued by the Russian Federation.

[8] The United Kingdom declared that the Convention "shall apply to the Registers of British Ships registered in ports of register in the United Kingdom, in Hong Kong* and in Bermuda".

* Ceased to apply to Hong Kong with effect from 1 July 1997.

[9] As from 4 February 2003, the name of the State of the Federal Republic of Yugoslavia was changed to Serbia and Montenegro. The date of succession by Serbia and Montenegro to the Convention is the date on which the Federal Republic of Yugoslavia assumed responsibility for its international relations.

[10] Following the dissolution of the State Union of Serbia and Montenegro on 3 June 2006, all Treaty actions undertaken by Serbia and Montenegro continue to be in force with respect to Republic of Serbia. Montenegro has informed that it wished to succeed to this treaty with effect from the same date, ie. 3 June 2006.

III. Declarations and Statements

CUBA

The depositary received the following communication, on 12 September 2003, from the Republic of Cuba:

[Translation]

"In the name of the Government of the Republic of Cuba, at the time of ratification of the Amended Convention on the International Mobile Satellite Organization (INMARSAT),

In conformity with the provisions of Article 15 and the Annex to the afore-mentioned Convention, the Cuban State declares:

That disputes between the Parties concerning the interpretation and application of this International Legal Instrument must be settled through diplomatic negotiations. Cuba does not accept the compulsory jurisdiction of the International Court of Justice and thus, does not recognize its decisions, nor the arbitration envisaged in the Annex concerning settlement of disputes.

Of which this Declaration shall be the formal expression."

EGYPT [1]

The instrument of accession of the Arab Republic of Egypt contained the following statement (in the Arabic language):

[Translation]

"... this endorsement shall not entail the recognition of Israel or entering with her into relations regulated by the terms of this Agreement and its appendices."

The depositary was informed by a communication dated 14 January 1980 that the Government of Egypt "has decided to withdraw its reservation" with effect from 25 January 1980.

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[1] The depositary received a communication dated 13 January 1978 in the English language from the Embassy of Israel in London. The communication, the full text of which was circulated by the depositary, includes the following:

"The Instrument deposited by the Government of the Arab Republic of Egypt contains a statement of a political character in respect of Israel. In the view of the Government of Israel, this is not the proper place for making such political pronouncements, which are, moreover, in flagrant contradiction to the principles, objects and purposes of the Organization. That pronouncement by the Government of Egypt cannot in any way affect whatever obligations are binding upon it under general international law or under particular treaties.

"The Government of Israel, will, insofar as concerns the substance of the matter, adopt towards the Government of Egypt an attitude of complete reciprocity."

FEDERAL REPUBLIC OF GERMANY [1]

The instrument of ratification of the Federal Republic of Germany was accompanied by the following declaration:

> "... that the said Convention and the operating agreement on the International Maritime Satellite Organization (INMARSAT) shall also apply to Berlin (West) with effect from the date on which they enter into force for the Federal Republic of Germany."

INDONESIA

The instrument of accession of the Republic of Indonesia contained the following declaration (in the English language):

> "Notwithstanding to the provision of the article 31 of this Convention, the Government of the Republic of Indonesia declares that any disputes arising between the Republic of Indonesia and one or more Parties, or between the Republic of Indonesia and the Organization, will be settled by negotiation among the parties concerned."

ITALY

The instrument of ratification of the Italian Republic was accompanied by the following statement (in the English language):

> "... it is not the Italian Government's intention to confirm the declaration on initial investment shares which was deposited at the moment of the signature of the INMARSAT Convention".[2]

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[1] The depositary received the following communication, dated 3 October 1990, from His Excellency the Ambassador of the Federal Republic of Germany in London:

> "I have the honour to inform you that, through the accession of the German Democratic Republic to the Federal Republic of Germany with effect from 3 October 1990, the two German States have united to form one sovereign State, which as a single Member of the International Maritime Satellite Organization (INMARSAT) remains bound by the provisions of the Convention on the International Maritime Satellite Organization (INMARSAT) of 3 September 1976 as from the date of unification. The Federal Republic of Germany will act in the International Maritime Satellite Organization (INMARSAT) under the designation of 'Germany'."

[2] The declaration deposited at the time of signature read as follows:

> "The Italian Government, at the moment of signing the INMARSAT Convention, wished to reaffirm Italy's intention to become a party of the Organization within the terms of ratification set by the Convention, and to participate with an initial investment share equal to that established in part (A) of the Annex to the operating Agreement.
>
> The Italian Government, well aware of the fact that part (B) of the Annex was intended to secure the entry into force of the INMARSAT agreements within the terms set by Art.33 of the Convention, is none the less convinced that said part (B) of the Annex cannot be interpreted in such a way as to become prejudicial to the right acquired by one State by virtue of part (A) of the Annex. In fact, the operating Agreement is not entitled to modify the right deriving from the Convention.
>
> Therefore the Italian Government, pending the deposit of the instruments of ratification of the INMARSAT Convention, within the terms set by Art.33 of the same, wished to state that any acquisition of the Italian Signatory's initial investment share, which should take place before the said terms, would be considered illegal and would be claimed back by the Italian State."

KUWAIT

The instrument of ratification of the State of Kuwait was accompanied by the following statement (in the English language):

"It is understood that the Ratification of the State of Kuwait to the Convention on the International Maritime Satellite Organization (INMARSAT) 1976, does not mean in any way recognition of Israel by the State of Kuwait. Furthermore, no treaty relations will arise between the State of Kuwait and Israel."

UNITED ARAB EMIRATES

The instrument of accession of the United Arab Emirates was accompanied by the following statement (in the English language):

"On accepting the said Convention and Annexes, the Government of the United Arab Emirates takes the view that its acceptance of the said Convention and Annexes does not, in any way, imply its recognition of Israel, nor does it oblige to apply the provisions of the Convention and its Annexes in respect of the said country.

The Government of the United Arab Emirates wishes further to indicate that its understanding described above in conformity with general practice existing in the United Arab Emirates regarding signature, ratification, accession or acceptance to a Convention of which a country not recognized by the United Arab Emirates is a party."

IV. Amendments

(1) 1985 Amendments

A. Adoption

On 16 October 1985 the Assembly of INMARSAT adopted amendments to the Convention in conformity with article 34 of the Convention. The texts of the amendments were transmitted by the Secretary-General for acceptance by circular letter No.1086 of 9 December 1985.

B. Entry into force

The 1985 amendments entered into force on 13 October 1989.

C Accepting Governments[1]

	Date of deposit of acceptance
Australia	24 March 1987
Belgium	15 June 1989
Bulgaria	3 June 1987
Byelorussian SSR	22 December 1986
Canada	14 March 1988
Chile	24 February 1988
China	15 May 1986
Denmark	12 January 1987
Egypt	13 September 1988
Finland	6 January 1987
Gabon	15 March 1989
Germany[2]	7 October 1988
Greece	29 July 1988
Kuwait	25 January 1988
Netherlands	13 May 1987
New Zealand[3]	28 April 1989
Norway	1 July 1986
Oman	28 November 1988
Philippines	17 August 1987
Poland	2 December 1987
Portugal	1 June 1987
Saudi Arabia	9 December 1986
Singapore	6 October 1988
Spain	27 July 1988
Sri Lanka	10 June 1986
Sweden	15 December 1986
Ukrainian SSR	15 October 1986
USSR	25 November 1986
United Kingdom	12 May 1986
United States	6 April 1988

[1] Only the acceptances which brought the amendments into force are listed.

[2] The notification of acceptance of the Federal Republic of Germany was accompanied by the following declaration:

"that the said Amendments shall also apply to Berlin (West) with effect from the date on which they enter into force for the Federal Republic of Germany".

[3] The notification of acceptance of New Zealand contained a declaration "that this acceptance shall extend to Niue".

(2) 1989 Amendments

A. Adoption

On 19 January 1989 the Assembly of INMARSAT adopted amendments to the Convention in conformity with article 34 of the Convention.

B. Entry into force

The 1989 amendments entered into force on 26 June 1997.

C. Accepting Governments[1]

	Date of deposit of acceptance or succession
Australia	21 March 1990
Bahrain	10 June 1996
Belarus	17 July 1990
Belgium	9 September 1992
Canada	13 June 1990
China	26 February 1997
Czechia (succession)	1 January 1993
Denmark	6 December 1989
Egypt	8 January 1997
Finland	26 June 1990
France	27 April 1990
Germany	10 November 1992
Greece	30 September 1992
India	10 September 1993
Indonesia[2]	10 January 1991
Italy	21 September 1993
Japan	22 December 1995
Kuwait	19 November 1993
Netherlands[3]	7 December 1989
New Zealand[4]	12 August 1991
Norway	20 July 1989
Oman	29 March 1990
Peru	12 June 1996
Poland	21 January 1997
Qatar	31 May 1996
Republic of Korea	2 February 1996
Russian Federation[5]	18 April 1990
Saudi Arabia[6]	14 August 1991
Singapore	4 March 1996
Spain	27 January 1992
Sweden	26 September 1991
Tunisia	5 July 1996
Ukraine	4 September 1990
United Arab Emirates	17 July 1990
United Kingdom	3 November 1989
United States	7 September 1990

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[1] Only the acceptances which brought the amendments into force are listed.

[2] The notification of acceptance of Indonesia contained the following declaration:

[Footnotes continued]

[Footnotes continued]

"Notwithstanding the availability of the land mobile communication service in the INMARSAT system as stipulated in the Amendments to the Convention, the Government of the Republic of Indonesia declares that it shall implement the INMARSAT land mobile communication system only whenever it considers necessary, taking into account all the relevant national laws and regulations, and the existing national telecommunications system."

The Secretary-General received on 6 May 1994 the following communication from Indonesia:

"With reference to the declaration made by the Government of the Republic of Indonesia in conjunction with its acceptance, dated 17 December 1990, of the amendments to the Convention on the International Maritime Satellite Organization (INMARSAT) as adopted by the INMARSAT Assembly at its Sixth (Extraordinary) Session in London on 19 January 1989, I have the honour to notify herewith that the Government of the Republic of Indonesia is now in a position to begin with the land mobile-satellite communications services in Indonesia."

[3] The notification of acceptance of the Netherlands was declared to be effective also in respect of the Netherlands Antilles* and Aruba.

*The Netherlands Antilles has ceased to exist as an autonomous country within the Kingdom of the Netherlands with effect from 10 October 2010.

[4] The notification of acceptance of New Zealand contained a declaration "that this acceptance shall extend to Niue".

[5] As from 26 December 1991 the membership of the USSR in the Convention is continued by the Russian Federation.

[6] The notification of acceptance of Saudi Arabia contained the following statement:

"Possession and/or use of LMES's within the territories of the Kingdom of Saudi Arabia by any transit traveller is prohibited unless otherwise permitted on a bilateral basis. Importing, marketing, and using the LMES's within the Kingdom of Saudi Arabia is also prohibited unless it is permitted by the concerned authorities."

(3) 1994 Amendments*

A. Adoption

On 9 December 1994 the Assembly of INMARSAT adopted amendments to the Convention in conformity with article 34 of the Convention.

B. Entry into force

The 1994 amendments are not yet in force

Requirement for entry into force: Two-thirds of Parties representing at least two-thirds of total investment shares at time of adoption.

Number of acceptances deposited: 40 (34 in respect of change of name and article 13; 4 in respect of change of name only; 2 in respect of article 13 only).

C. Accepting Governments

	Date of deposit of acceptance
Argentina	13 January 1998
Australia	8 February 1996
Bahrain	10 June 1996
Belgium	24 July 1995
Brazil	27 May 1998
Bulgaria	10 August 2000
Canada (in respect of change of name only)[2]	20 July 1999
Chile	15 October 1997
Cyprus	19 December 1995
Denmark	31 May 1995
Finland	21 December 1995
France (in respect of article 13 only)	29 September 1995
Gabon	9 February 1999
Germany (in respect of change of name only)	2 June 1997
India	14 May 1999
Indonesia	28 June 1999
Israel (in respect of article 13 only)	24 December 1996
Japan	31 August 1999
Kuwait	4 July 1996
Mexico	27 February 1996
Monaco	22 October 1996
Netherlands[1]	19 April 1996
Norway (in respect of change of name)	1 March 1995
(in respect of article 13)	10 June 1996
Oman	24 March 1997
Peru	8 January 1998
Portugal	1 December 1997
Qatar (in respect of change of name only)	31 May 1996
Republic of Korea	2 February 1996
Saudi Arabia	9 April 1997
Singapore (in respect of change of name only) [2]	4 March 1996
Slovakia	27 August 1996
South Africa	15 November 1996
Sweden	17 April 1998
Switzerland	8 July 1999
Tonga	18 September 2003
Türkiye	31 March 2000
Ukraine	22 May 1995
United Arab Emirates	28 October 1999
United Kingdom	5 June 1996
United States	16 April 1996

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* With the entry into force of the 1998 amendments, on 31 July 2001, the 1994 amendments were effectively superseded.

(4) 1998 Amendments

A. Adoption

On 24 April 1998 the Assembly of INMARSAT adopted amendments to the Convention in conformity with article 34 of the Convention.

B. Entry into force

The 1998 amendments entered into force on 31 July 2001.

Requirement for entry into force: Two-thirds of Parties representing at least two-thirds of total investment shares at time of adoption.

Number of acceptances deposited: 56

C. Accepting Governments

(Only the acceptances which brought the amendments into force are listed below)

	Date of deposit of acceptance
Australia	19 April 2000
Bahamas	13 January 1999
Bahrain	23 March 1999
Belgium	12 August 1998
Brunei Darussalam	10 October 1999
Bulgaria	10 August 2000
Canada	20 July 1999
China[1]	28 June 1999
Croatia	14 June 1999
Cyprus	28 June 1999
Czechia	28 April 1999
Denmark	15 February 1999
Egypt	30 March 2001
Finland	14 May 1999
France	13 January 2000
Gabon	9 February 1999
Germany	30 May 2000
Greece	1 March 2001
India	5 January 2000
Indonesia	28 June 1999
Iran (Islamic Republic of)	20 December 1999
Italy	16 May 2000
Japan	31 August 1999
Latvia	30 November 1998
Lebanon	6 November 2000
Liberia	21 March 2001
Malta	24 July 2000
Marshall Islands	3 December 1998
Mexico	2 April 2001
Monaco	18 February 1999
Mozambique	5 March 2001
Netherlands	2 December 1999
New Zealand	1 December 2000
Nigeria	13 January 1999
Norway	31 March 1999

	Date of deposit of acceptance
Oman	28 March 2001
Pakistan	15 September 2000
Panama	13 July 2000
Peru	27 July 1999
Poland	2 June 2000
Portugal	11 January 2000
Republic of Korea	20 December 1999
Saudi Arabia	21 July 1999
Senegal	8 November 1999
Singapore	17 December 1998
Slovakia	5 April 2000
South Africa	16 October 2000
Spain	30 September 1999
Sri Lanka	4 February 2000
Sweden	9 October 1998
Switzerland	8 July 1999
Türkiye	27 February 2001
United Arab Emirates	28 October 1999
United Kingdom	17 September 1998
United States	13 February 2001
Viet Nam	5 January 2001

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[1] Also applicable to the Hong Kong Special Administrative Region of the People's Republic of China.

(5) 2006 Amendments*

A. Adoption

On 29 September 2006, the Assembly of the International Mobile Satellite Organization (IMSO) adopted amendments to the Convention in conformity with article 19(2)(d) of the Convention.

B. Entry into force

The amendments shall enter into force one hundred and twenty days after the Secretary-General of IMO, as Depositary, has received notices of acceptance from two-thirds of those States which, at the time of adoption by the Assembly, were Parties to the Convention.

C. Provisional application of the Amendments

At its nineteenth (extraordinary) session, the IMSO Assembly decided to apply the amendments provisionally, with effect from 7 March 2007, pending their formal entry into force.

D. Accepting Governments

	Date of deposit of acceptance
Slovakia	18 January 2008**

* These amendments have been effectively superseded by the 2008 amendments
**The acceptance has been withdrawn with effect from 2 August 2010

(6) 2008 Amendments

A. Adoption

On 2 October 2008, the Assembly of the International Mobile Satellite Organization (IMSO), at its twentieth session, adopted amendments to the Convention, in conformity with article 19(2)(d) of the Convention.

B. Entry into force

The amendments shall enter into force one hundred and twenty days after the Secretary-General of IMO, as Depositary, has received notices of acceptance from two-thirds of those States which, at the time of adoption by the Assembly, were Parties to the Convention.

The number of Parties to the Convention at the time of adoption of the amendments was 92. The number of acceptances necessary for entry into force is, therefore, 61.

See section D. below: **33** States have explicitly accepted the amendments, **20** of which were received by those Member States that were Parties at the time of the adoption of the amendments.

C. Provisional application of the Amendments

At its twentieth session, the IMSO Assembly decided to apply the amendments provisionally, with effect from 6 October 2008, pending their formal entry into force.

[Translation]
At the time the amendments were adopted, Switzerland made the following statement:

"The Party of Switzerland supports the improvement in the safety of life at sea which could result from the increase in the number of providers of GMDSS services.

Switzerland also supports the system for the Long Range Identification and Tracking of Ships (LRIT) and is fully aware of the ambitious timetable decided for the implementation of this system.

The Party of Switzerland agrees, in principle, with the new amendments to the IMSO Convention, which have been adopted by the twentieth session of the IMSO Assembly, which are necessary to enable IMSO to continue to perform the function of LRIT Coordinator. Switzerland cannot, however, associate with the decision that the amendments should be provisionally applied.

The Party of Switzerland is concerned about the potential financial consequences for IMSO arising from its new role as LRIT Coordinator, and notes from document Assembly 20/7/2 that "the decisions that the MSC would not endorse barring and payment in advance" (MSC.84/24. paragraph 6.106) leave IMSO with significant business risks, with consequential potential financial liabilities for IMSO Member States.

Consequently, the Party of Switzerland cannot associate with the provisional application of the amendments to the IMSO Convention adopted by the twentieth session of the Assembly of Parties, and declares that it is not bound by the commitments entered into by IMSO within the framework of the provisional application of these amendments.

Moreover, the Party of Switzerland requires that this position be officially transmitted by the IMSO Director General to the International Maritime Organization, and communicated by the Depositary of the Convention to all IMSO Member States, when it proceeds with the notification of the decision taken by the twentieth session of the IMSO Assembly of Parties relating to the adoption and the provisional application of the above-mentioned amendments."

D. Accepting Governments*

		Date of deposit of acceptance
1.	Argentina	4 May 2017
	Antigua and Barbuda	14 March 2023
2.	Australia	6 October 2011
	Bolivia (Plurinational State of)	9 March 2018
3.	Bulgaria	26 November 2020
4.	Canada	1 June 2010
5.	Cyprus	20 November 2024
6.	Czechia	29 August 2012
	Democratic People's Republic of Korea	15 October 2013
7.	Denmark	14 October 2011
	Ecuador	11 November 2015
8.	Finland	20 July 2016
	Fiji	8 March 2016

	Georgia	12 January 2015
9.	Germany	3 March 2011
	Honduras	16 November 2016
10.	Hungary	11 November 2019
	Jordan	12 August 2020
11.	Latvia	17 April 2013
12.	Libya	14 December 2020
	Maldives	20 July 2023
	Mongolia	26 May 2023
13.	Montenegro	19 July 2010
14.	Netherlands[1]	12 February 2013
	Palau	29 September 2011
15.	Portugal	8 March 2019
16.	Russian Federation	3 February 2022
17.	Serbia	19 December 2011
18.	Slovakia	2 August 2010
19.	Spain	5 May 2010
20.	Sweden	30 September 2010
	Yemen	24 January 2011
	Uruguay	16 September 2022

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*Only acceptances by those Member States that were Parties at the time of the adoption of the amendments are numbered (see paragraph B. above)

[1] Netherlands accepts for the European and Caribbean (islands of Bonaire, Saint Eustatious and Saba) parts, as well as for Aruba, Curaçao and Sint Marteen

OPERATING AGREEMENT ON THE INTERNATIONAL MOBILE SATELLITE ORGANIZATION (Inmarsat), AS AMENDED (INMARSAT OA) *

Done at London, 3 September 1976

Entry into force: 16 July 1979

Signature

Article 2
(of the INMARSAT Convention)

...
2. The Operating Agreement shall be concluded in conformity with the provisions of this Convention and shall be opened for signature at the same time as this Convention.

3. Each Party shall sign the Operating Agreement or shall designate a competent entity, public or private, subject to the jurisdiction of that Party, which shall sign the Operating Agreement.

Entry into force

Article XVII

1. This Agreement shall enter into force for a Signatory on the date on which the Convention[1] enters into force for the respective Party in accordance with article 33 of the Convention.[1]

...
Amendments

Article XVIII

(1) Amendments to this Agreement may be proposed by any Party or Signatory. Proposed amendments shall be submitted to the Directorate, which shall inform the other Parties and Signatories. Three months' notice is required before consideration of an amendment by the Council. During this period the Directorate shall solicit and circulate the views of all Signatories. The Council shall consider amendments within six months from circulation. The Assembly shall consider the amendment not earlier than six months after the approval by the Council. This period may in any particular case be reduced by the Assembly by a substantive decision.

(2) If confirmed by the Assembly after approval by the Council, the amendment shall enter into force one hundred and twenty days after the Depositary has received notice of its approval by two-thirds of those Signatories which at the time of confirmation by the Assembly were Signatories and then held at least two-thirds of the total investment shares. Notification of approval of an amendment shall be transmitted to the Depositary only by the Party concerned and the transmission shall signify the acceptance by the Party of the amendment. Upon entry into force, the amendment shall become binding upon all Signatories, including those which have not accepted it.

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[1] I Convention.

* With the entry into force of the 1998 amendments on 31 July 2001, which transformed the Organization's business into a privatised corporate structure, the Operating Agreement ceased to exist, with effect from the same date.

I. Signatories

II. Statements

III. Amendments:

I. Signatories

Algeria	Ministère des Postes et Télécommunications
Argentina	Secretaría de Comunicaciones
Australia	Telstra Corporation Limited
Bahamas	Bahamas Telecommunications Corporation (BATELCO)
Bahrain	Ministry of Transportation
Bangladesh	Telegraph and Telephone Board (T and T Board)
Belarus	V/O "Morsvyazsputnik" (transliteration)
Belgium	BELGACOM
Bosnia and Hertzegovina	Public Enterprise PTT Bosnia and Hertzegovina
Brazil	Empresa Brasileira de Telecommunicações S.A. (EMBRATEL)
Brunei Darussalam	Datastream Technology Sendirian Berhad
Bulgaria	State Shipping Company, Varna
Cameroon	International Telecommunications Organisation of Cameroon (INTELCAM)
Canada	Stratos Wireless Inc.
Chile	Empresa Nacional de Telecomunicaciones, S.A. (ENTEL)
China	Beijing Marine Communication and Navigation Company
Colombia	Empresa Nacional de Telecomunicaciones, TELECOM
Costa Rica	Instituto Costarricense de Electricidad (ICE)
Croatia	Ministry of Maritime Affairs, Transport and Communications
Cuba	Empresa de Radiocomunicaciones y Difusión de Cuba (Radiocuba)
Cyprus	Cyprus Telecommunications Authority
Czechia	Ministry of Economy
Denmark	Tele Danmark A/S
Egypt	
Finland	Telecom Finland Ltd.
France	FRANCE TELECOM
Gabon	Office des Postes et Télécommunications (OPT)
Georgia	[Ministry of Communications][2]
Germany	Deutsche Telekom AG
Ghana	Ghana Telecommunications Company Limited (Ghana Telecom)
Greece	Hellenic Telecommunications Organisation S.A. (OTE)
Hungary	Hungarian Satellite Communications Association (HUNSAT)
Iceland	Iceland Telecom Ltd.
India	Videsh Sanchar Nigam Limited
Indonesia	P.T. INDOSAT
Islamic Republic of Iran[1]	Telecommunication Company of Iran
Iraq	
Israel	
Italy	Telecom Italia S.p.A.
Japan	KDD Corporation
Kenya	Kenya Posts and Telecommunications Corporation
Kuwait	Ministry of Communications
Latvia	Latvian Shipping Company
Lebanon	
Liberia	
Libya	General Post and Telecom Co.
Malaysia	Syarikat Telekom Malaysia Berhad
Malta	MALTACOM plc

Marshall Islands	The Trust Company of the Marshall Islands, Inc.
Mauritius	Mauritius Telecom Limited
Mexico	Telecomunicaciones de México
Monaco	MONACO TELECOM
Mozambique	Empresa Nacional de Telecomunicações de Moçambique, E.E.
Netherlands	
New Zealand	Telecom Corporation of New Zealand Limited
Nigeria	Nigerian Telecommunications Ltd. (NITEL)
Norway	Telenor Satellite Services AS
Oman	General Telecommunications Organization
Pakistan	Pakistan Telegraph and Telephone Department
Panama	Cable and Wireless Panama, S.A.
Peru	Telefónica del Perú, S.A.A.
Philippines	Philippine Communications Satellite Corporation (PHILCOMSAT)
Poland	Telekomunikacja Polska S.A.
Portugal	Companhia Portuguesa Rádio Marconi (CPRM)
Qatar	Qatar Public Telecommunication Corporation (Q-TEL)
Republic of Korea	Korea Telecom
Romania	Ministry of Communications
Russian Federation[3]	V/O "Morsvyazsputnik" (transliteration)
Saudi Arabia	Saudi Telecom Company
Senegal	Société Nationale des Télécommunications du Sénégal (SONATEL)
Singapore	Singapore Telecommunications Private Limited
Slovakia	Slovenské Telekomunikácie, s.p. Bratislava
South Africa	TELKOM SA LTD
Spain	Telefónica de España, S.A.
Sri Lanka	Overseas Telecommunication Service of the Department of Telecommunications
Sweden	Telia AB
Switzerland	Swisscom Ltd.
Thailand	Communications Authority of Thailand
Tunisia	
Türkiye	Türk Telekomünikasyon A.S.
Ukraine	State Enterprise "Ukrspace"
United Arab Emirates	Ministry of Communications
United Kingdom	British Telecommunications plc
United Republic of Tanzania	Tanzania Telecommunications Company Limited (TTCL)
United States	COMSAT Corporation
Yugoslavia	Community of Yugoslav Posts, Telegraphs and Telephones
Venezuela (Bolivarian Republic of)	Comisión Nacional de Telecommunicaciones (CONATEL)
Viet Nam	Vietnam Maritime Communications and Electronics Company (VISHIPEL)

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[1] For the text of a statement, see section II.

[2] The Operating Agreement ceased to be in force for the Signatory of Georgia as from 2 October 1994 (see footnote 4 of section II of INMARSAT C).

[3] As from 26 December 1991 the membership of the USSR in the Convention is continued by the Russian Federation.

II. Statements

ISLAMIC REPUBLIC OF IRAN

The following statement was inscribed on the Operating Agreement at the time of signature:[1]

"In the Name of God, the Compassionate, the Merciful, Ratification of the Convention and signing of the Operating Agreement by the Islamic Republic of Iran shall not be interpreted as recognition of the State "so-called" Israel if she becomes a Member in the future."

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[1] In connection with this signature the depositary received on 7 March 1985 a statement from the Minister of Foreign Affairs of the Islamic Republic of Iran dated 14 January 1985. The Statement read as follows:

"The undersigned, Ali Akbar VELAYATI, Minister for Foreign Affairs hereby declares that the statement enscribed by Mr. Mahmoud VAEZI, Chairman of the Board and Managing Director of Telecommunication Company of Iran on the occasion of signing the Operating Agreement relating to the International Maritime Satellite Organization (INMARSAT) - 1976, to the effect that the accession of the Islamic Republic of Iran to the aforesaid Convention and the signing of the Operating Agreement shall in no way imply recognition of the so-called Israel in case she becomes a contracting party to the same in future, is fully endorsed by the Government of the Islamic Republic of Iran."

III. Amendments

(1) 1985 Amendments

A. Adoption

On 16 October 1985 the Assembly of INMARSAT confirmed the adoption of amendments to the Operating Agreement which were approved by the Council of INMARSAT at its twentieth session in conformity with article XVIII of the Operating Agreement. The texts of the amendments were transmitted by the Secretary-General for approval by circular letter No.1086 of 9 December 1985.

B. Entry into force

The 1985 amendments entered into force on 13 October 1989.

C. Approving Signatories[1]

	Date of deposit of approval
Australia	10 July 1987
Belgium	15 June 1989
Bulgaria	3 June 1987
Byelorussian SSR	22 December 1986
Canada	14 March 1988
Chile	24 February 1988
China	15 May 1986
Denmark	12 January 1987
Egypt	7 June 1989
Finland	6 January 1987
Gabon	15 March 1989
Germany[2]	7 October 1988
Greece	29 July 1988
Kuwait	25 January 1988
Netherlands	13 May 1987
New Zealand[3]	28 April 1989
Norway	1 July 1986
Oman	28 November 1988
Philippines	17 August 1987
Poland	2 December 1987
Portugal	1 June 1987
Saudi Arabia	9 December 1986
Singapore	6 October 1988
Spain	27 July 1988
Sri Lanka	10 June 1986
Sweden	15 December 1986
Ukrainian SSR	28 November 1986
USSR	25 November 1986
United Kingdom	12 May 1986
United States	6 April 1988

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[1] Only the approvals which brought the amendments into force are listed.

[2] The notification of approval of the Federal Republic of Germany was accompanied by the following declaration:

"that the said Amendments shall also apply to Berlin (West) with effect from the date on which they enter into force for the Federal Republic of Germany".

[3] The notification of approval of New Zealand contained a declaration "that this acceptance shall extend to Niue".

(2) 1989 Amendments

A. Adoption

On 19 January 1989 the Assembly of INMARSAT confirmed the adoption of amendments to the Operating Agreement which were approved by the Council of INMARSAT at its thirtieth session in conformity with article XVIII of the Operating Agreement.

B. Entry into force

The 1989 amendments entered into force on 26 June 1997.

C. Approving Signatories[1]

	Date of deposit of approval or succession
Australia	21 March 1990
Bahrain	10 June 1996
Belarus	17 July 1990
Belgium	9 September 1992
Canada	13 June 1990
China	26 February 1997
Czechia (succession)	1 January 1993
Denmark	6 December 1989
Egypt	8 January 1997
Finland	26 June 1990
France	27 April 1990
Germany	10 November 1992
Greece	30 September 1992
India	10 September 1993
Indonesia	4 June 1991
Italy	21 September 1993
Japan	22 December 1995
Kuwait	19 November 1993
Netherlands[2]	7 December 1989
New Zealand[3]	12 August 1991
Norway	20 July 1989
Oman	29 March 1990
Peru	12 June 1996
Poland	21 January 1997
Qatar	31 May 1996
Republic of Korea	2 February 1996
Russian Federation[4]	18 April 1990
Saudi Arabia[5]	14 August 1991
Singapore	4 March 1996
Spain	27 January 1992
Sweden	26 September 1991
Tunisia	5 July 1996
Ukraine	4 September 1990
United Arab Emirates	17 July 1990
United Kingdom	3 November 1989
United States	7 September 1990

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[1] Only the acceptances which brought the amendments into force are listed.

[2] The notification of approval of the Netherlands was declared to be effective also in respect of the Netherlands Antilles* and Aruba.

* The Netherlands Antilles has ceased to exist as an autonomous country within the Kingdom of the Netherlands with effect from 10 October 2010.

[3] The notification of approval of New Zealand contained a declaration "that this acceptance shall extend to Niue".

[4] As from 26 December 1991 the membership of the USSR in the Convention is continued by the Russian Federation.

[5] The notification of approval of Saudi Arabia contained the following statement:

"Possession and/or use of LMES'S within the territories of the Kingdom of Saudi Arabia by any transit traveller is prohibited unless otherwise permitted on bilateral basis.

Importing, marketing, and using the LMES'S within the Kingdom of Saudi Arabia is also prohibited unless it is permitted by the concerned authorities."

(3) 1994 Amendments*

A. Adoption

On 9 December 1994 the Assembly of INMARSAT confirmed the adoption of amendments to the Operating Agreement which were approved by the Council of INMARSAT at its forty-seventh session in conformity with article XVIII of the Operating Agreement.

B. Entry into force

The 1994 amendments are not yet in force

Requirement for entry into force: Two-thirds of Signatories holding at least two-thirds of total investment shares at time of adoption.

Number of acceptances deposited: 38

C. Approving Signatories

	Date of deposit of approval
Argentina	13 January 1998
Australia	8 February 1996
Bahrain	10 June 1996
Belgium	24 July 1995
Brazil	27 May 1998
Bulgaria	10 August 2000
Canada	20 July 1999
Chile	15 October 1997
Cyprus	19 December 1995
Denmark	31 May 1995
Finland	21 December 1995
Gabon	9 February 1999
Germany	2 June 1997
India	14 May 1999
Indonesia	28 June 1999
Japan	31 August 1999
Kuwait	4 July 1996
Mexico	27 February 1996
Monaco	22 October 1996
Netherlands	19 April 1996
Norway	1 March 1995
Oman	24 March 1997
Peru	8 January 1998
Portugal	1 December 1997
Qatar	31 May 1996
Republic of Korea	2 February 1996
Saudi Arabia	9 April 1997
Singapore	4 March 1996
Slovakia	27 August 1996
South Africa	15 November 1996
Sweden	17 April 1998
Switzerland	8 July 1999
Tonga	18 September 2003
Türkiye	31 March 2000
Ukraine	22 May 1995
United Arab Emirates	28 October 1999
United Kingdom	5 June 1996
United States	16 April 1996

* With the entry into force of the 1998 amendments, on 31 July 2001, the 1994 amendments were effectively superseded.

(4) 1998 Amendments

A. Adoption

On 24 April 1998 the Assembly of INMARSAT confirmed the adoption of amendments to the Operating Agreement which were approved by the Council of INMARSAT at its seventy-first session in conformity with article XVIII of the Operating Agreement.

B. Entry into force

The 1998 amendments entered into force on 31 July 2001.

Requirement for entry into force: Two-thirds of Signatories holding at least two-thirds of total investment shares at time of adoption.

Number of acceptances deposited: 56

C. Approving Signatories[1]

	Date of deposit of approval
Australia	19 April 2000
Bahamas	13 January 1999
Bahrain	23 March 1999
Belgium	12 August 1998
Brunei Darussalam	10 October 1999
Bulgaria	10 August 2000
Canada	20 July 1999
China[2]	28 June 1999
Croatia	14 June 1999
Cyprus	28 June 1999
Czechia	28 April 1999
Denmark	15 February 1999
Egypt	30 March 2001
Finland	14 May 1999
France	13 January 2000
Gabon	9 February 1999
Germany	30 May 2000
Greece	1 March 2001
India	5 January 2000
Indonesia	28 June 1999
Iran (Islamic Republic of)	20 December 1999
Italy	16 May 2000
Japan	31 August 1999
Latvia	30 November 1998
Lebanon	6 November 2000
Liberia	21 March 2001
Malta	24 July 2000
Marshall Islands	3 December 1998
Mexico	2 April 2001
Monaco	18 February 1999
Mozambique	5 March 2001
Netherlands	2 December 1999
New Zealand	1 December 2000
Nigeria	13 January 1999
Norway	31 March 1999

	Date of deposit of approval
Oman	28 March 2001
Pakistan	15 September 2000
Panama	13 July 2000
Peru	27 July 1999
Poland	2 June 2000
Portugal	11 January 2000
Republic of Korea	20 December 1999
Saudi Arabia	21 July 1999
Senegal	8 November 1999
Singapore	17 December 1998
Slovakia	5 April 2000
South Africa	16 October 2000
Spain	30 September 1999
Sri Lanka	4 February 2000
Sweden	9 October 1998
Switzerland	8 July 1999
Türkiye	27 February 2001
United Arab Emirates	28 October 1999
United Kingdom	17 September 1998
United States	13 February 2001
Viet Nam	5 January 2001

[1] Only the acceptances which brought the amendments into force are listed.

[2] Also applicable to the Hong Kong Special Administrative Region of the People's Republic of China.

CONVENTION ON LIMITATION OF LIABILITY FOR MARITIME CLAIMS, 1976 (LLMC 1976)

Done at London, 19 November 1976

Entry into force: 1 December 1986

Signature, ratification, acceptance, approval, accession

Article 16

1. This Convention shall be open for signature by all States at the Headquarters of the [International Maritime Organization] (hereinafter referred to as "the Organization") from 1 February 1977 until 31 December 1977 and shall thereafter remain open for accession.

2. All States may become parties to this Convention by:

(a) signature without reservation as to ratification, acceptance or approval; or

(b) signature subject to ratification, acceptance or approval followed by ratification, acceptance or approval; or

(c) accession.

3. Ratification, acceptance, approval or accession shall be effected by the deposit of a formal instrument to that effect with the Secretary-General.

Entry into force

Article 17

1. This Convention shall enter into force on the first day of the month following one year after the date on which twelve States have either signed it without reservation as to ratification, acceptance or approval or have deposited the requisite instruments of ratification, acceptance, approval or accession.

2. For a State which deposits an instrument of ratification, acceptance, approval or accession, or signs without reservation as to ratification, acceptance or approval, in respect of this Convention after the requirements for entry into force have been met but prior to the date of entry into force, the ratification, acceptance, approval or accession or the signature without reservation as to ratification, acceptance or approval, shall take effect on the date of entry into force of the Convention or on the first day of the month following the ninetieth day after the date of the signature or the deposit of the instrument, whichever is the later date.

3. For any State which subsequently becomes a Party to this convention, the Convention shall enter into force on the first day of the month following the expiration of ninety days after the date when such State deposited its instrument.

Denunciation

Article 19

1. This Convention may be denounced by a State Party at any time after one year from the date on which the Convention entered into force for that Party.

2. Denunciation shall be effected by the deposit of an instrument with the Secretary-General.

3. Denunciation shall take effect on the first day of the month following the expiration of one year after the date of deposit of the instrument, or after such longer period as may be specified in the instrument.

I. Signatories

II. Contracting States

III. Denunciations

IV. Declarations, Reservations and Statements

V. Notifications

VI. Amendments

I. Signatories

Denmark	Subject to ratification
Finland	Subject to ratification
France	Sous réserve d'approbation
Germany, Federal Republic of	Subject to ratification
Norway	Subject to ratification
Spain	Subject to ratification
Sweden	Subject to ratification
United Kingdom	Subject to ratification

II. Contracting States

	Date of deposit of instrument	Date of entry into force	Effective date of denunciation
Albania (accession)	7 June 2004	1 October 2004	
Algeria (accession)	4 August 2004	1 December 2004	
Antigua and Barbuda (accession)	12 October 2009	1 February 2010	
Australia (accession)	20 February 1991	1 June 1991	1 June 2014
Azerbaijan (accession)	16 July 2004	1 November 2004	
Bahamas (accession)	7 June 1983	1 December 1986	
Barbados (accession)	6 May 1994	1 September 1994	1 August 2025
Bahrain (accession)	21 June 2019	1 October 2019	
Belgium (accession)[1, 2]	15 June 1989	1 October 1989	
Benin (accession)	1 November 1985	1 December 1986	
Bulgaria (accession)	4 July 2005	1 November 2005	
China[1, 2, 4]	-	1 July 1997	
Congo (accession)	7 September 2004	1 January 2005	
Cook Islands (accession)	12 March 2007	1 July 2007	
Croatia (accession)	2 March 1993	1 June 1993	
Cyprus (accession)[1]	23 December 2005	1 April 2006	
Denmark (ratification)	30 May 1984	1 December 1986	1 April 2005
Dominica (accession)	31 August 2001	1 December 2001	
Egypt (accession)	30 March 1988	1 July 1988	
Equatorial Guinea (accession)	24 April 1996	1 August 1996	
Estonia (accession)[1]	23 October 2002	1 February 2003	
Finland (ratification)	8 May 1984	1 December 1986	13 May 2004
France (approval)[1, 2]	1 July 1981	1 December 1986	
Georgia (accession)	20 February 1996	1 June 1996	
Germany (ratification)[1, 2, 5]	12 May 1987	1 September 1987	13 May 2004
Greece (accession)	3 July 1991	1 November 1991	
Guyana (accession)	10 December 1997	1 April 1998	
Hungary (accession)	4 July 2008	1 November 2008	
India (accession)	20 August 2002	1 December 2002	
Iran (Islamic Republic of) (accession)	1 September 2015	1 December 2015	
Ireland (accession)[1]	24 February 1998	1 June 1998	
Jamaica (accession)	17 August 2005	1 December 2005	
Japan (accession)[1]	4 June 1982	1 December 1986	1 August 2006

Kiribati (accession)	5 February 2007	1 June 2007	
Latvia (accession)	13 July 1999	1 November 1999	
Liberia (accession)	17 February 1981	1 December 1986	
Lithuania (accession)	3 March 2004	1 July 2004	
Luxembourg (accession)	21 November 2005	1 March 2006	
Marshall Islands (accession)	29 November 1994	1 March 1995	
Mauritius (accession)	17 December 2002	1 April 2003	
Mexico (accession)	13 May 1994	1 September 1994	
Mongolia (accession)	28 September 2011	1 January 2012	
Montenegro (accession)	10 August 2026	1 December 2026	
Myanmar (accession)	4 February 2020	1 June 2020	
Netherlands (accession)[1, 2, 3,]	15 May 1990	1 September 1990	1 January 2012
New Zealand (accession)[6]	14 February 1994	1 June 1994	1 October 2017
Nigeria (accession)	24 February 2004	1 June 2004	
Niue (accession)	27 June 2012	1 October 2012	
Norway (ratification)[2]	30 March 1984	1 December 1986	1 November 2006
Poland (accession)[2]	28 April 1986	1 December 1986	
Romania (accession)	12 March 2007	1 July 2007	
Saint Lucia (accession)	20 May 2004	1 September 2004	
Samoa (accession)	18 May 2004	1 September 2004	
Saudi Arabia (accession)	6 April 2018	1 August 2018	
Serbia (accession)	19 March 2013	1 July 2013	
Sierra Leone (accession)	26 July 2001	1 November 2001	
Singapore (accession)[1]	24 January 2005	1 May 2005	1 October 2020
Spain (ratification)	13 November 1981	1 December 1986	1 November 2007
Sweden (ratification)[2]	30 March 1984	1 December 1986	1 August 2005
Switzerland (accession)[2]	15 December 1987	1 April 1988	
Syrian Arab Republic (accession)	2 September 2005	1 January 2006	
Tonga (accession)	18 September 2003	1 January 2004	
Trinidad and Tobago	6 March 2000	1 July 2000	
Türkiye (accession)	6 March 1998	1 July 1998	
Tuvalu (accession)	12 January 2009	1 May 2009	
United Arab Emirates (accession)	19 November 1997	1 March 1998	
United Kingdom (ratification)[1, 2, 3bis]	31 January 1980	1 December 1986	13 May 2004*
Vanuatu (accession)	14 September 1992	1 January 1993	
Yemen (accession)	6 March 1979	1 December 1986	

Number of Contracting States: 55

* Denunciation of the Convention extended to the following UK territories:

Name of territory	**with effect from**
- Island of Jersey	14 December 2009
- Cayman Islands	31 January 2011
- Isle of Man	1 May 2012
- Bailiwick of Guernsey	11 June 2013
- Gibraltar	25 February 2014

The Convention applies provisionally in respect of Belize

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[1] For the text of a declaration, reservation or statement, see section IV.

[2] With a notification, see section V.

[3] Extended to Bonaire, Sint Eustatius and Saba (the Caribbean part of the Netherlands) with effect from 10 October 2010.

The denunciation of the Convention by the Netherlands applies to the European and Caribbean parts of the Netherlands, with effect from 1 January 2012.

[Footnotes continued]

[Footnotes continued]

[3bis] The United Kingdom declared its ratification to be effective also in respect of:

Bailiwick of Jersey
Bailiwick of Guernsey
Belize*
Bermuda
British Virgin Islands
Cayman Islands
Falkland Islands**
Gibraltar
Hong Kong***
Isle of Man
Montserrat
Pitcairn
St. Helena, Ascension and Tristan da Cunha ****
Turks and Caicos Islands
United Kingdom Sovereign Base Areas of Akrotiri and Dhekelia in the Island of Cyprus

Anguilla	)	extended
British Antarctic Territory	)	from
British Indian Ocean Territory	)	4 February 1999
South Georgia and the South Sandwich Islands**	)	

* Has since become the independent State of Belize to which the Convention applies provisionally.

** For the text of communications received from the Governments of Argentina and the United Kingdom, see footnote *** of section II of COLREG 1972.

The Depositary received a communication, on 19 December 2024, from the Foreign and Commonwealth Office in London, informing that the denunciation of the Convention was extended to the Falkland Islands (Malvinas). The extension of denunciation to the Falkland Islands took effect on 19 December 2024, the date on which the notification from the United Kingdom was received by the Secretary-General.

† A dispute exists between the Governments of Argentina and the United Kingdom of Great Britain and Northern Ireland concerning sovereignty over the Falkland Islands (Malvinas). The Secretary-General received a communication from the Embassy of the Argentine Republic, on 29 April 2025, the full text of which is contained in Circular Letter No.5010.

*** Ceased to apply to Hong Kong with effect from 1 July 1997.

**** The Depositary received a communication, dated 2 March 2010, from the Foreign and Commonwealth Office in London, informing that the name of the British overseas territory formerly called “St. Helena and Dependencies” has been changed to “St. Helena, Ascension and Tristan da Cunha”. The status of the territory as a British overseas territory remains unchanged.

[4] Applies only to the Hong Kong Special Administrative Region.

[5] On 3 October 1990 the German Democratic Republic acceded to the Federal Republic of Germany. The German Democratic Republic had acceded[1, 8] to the Convention on 17 February 1989.

[6] The instrument of accession contained the following statement:

"AND WHEREAS it is not intended that the accession by the Government of New Zealand to the Convention should extend to Tokelau;".

III. States which have denounced the Convention

	Date of receipt of denunciation	Effective date of denunciation
Australia	31 May 2013	1 June 2014
Belgium	9 October 2009	1 November 2010
Denmark	25 March 2004	1 April 2005
Finland	15 September 2000	13 May 2004
Germany	18 October 2000	13 May 2004
Japan	29 July 2005	1 August 2006
Netherlands *	23 December 2011	1 January 2012
New Zealand	12 September 2016	1 October 2017
Norway	31 October 2005	1 November 2006
Singapore	30 September 2019	1 October 2020
Spain	27 November 2006	1 November 2007
Sweden	22 July 2004	1 August 2005
United Kingdom	17 July 1998	13 May 2004

* The denunciation of the Convention by the Netherlands applies to the European and Caribbean parts of the Netherlands, with effect from 1 January 2012.

IV. Declarations, Reservations and Statements

AUSTRALIA

The instrument of accession of Australia was accompanied by the following reservation:

"... pursuant to article 18, paragraph 1, of the said Convention, Australia will not be bound by article 2, paragraph 1(d) and (e)."

BELGIUM

The instrument of accession of the Kingdom of Belgium was accompanied by the following reservation (in the French language):

[Translation]

"In accordance with the provisions of article 18, paragraph 1, Belgium expresses a reservation on article 2, paragraph 1(d) and (e).

CHINA

By notification dated 5 June 1997 from the People's Republic of China:

[Translation]

"1. with respect to the Hong Kong Special Administrative Region, it reserves the right in accordance with Article 18(1), to exclude the application of the Article 2(1)(d);"

CYPRUS

The instrument of accession of the Republic of Cyprus contained the following reservation:

"Pursuant to paragraph 1 of Article 18 of the Convention on Limitation of Liability for Maritime Claims, 1976 as amended by the Protocol of 1996, the Republic of Cyprus hereby excludes:

(a) the application of Article 2, paragraphs 1(d) and (e);

(b) claims for damage within the meaning of the International Convention on Liability and Compensation for Damage in Connection with the Carriage of Hazardous and Noxious Substances by Sea, 1996, or any amendment or protocol related thereto."

ESTONIA

The instrument of accession by Estonia contained the following declaration and reservation:

"Pursuant to Article 15(2)(b) of the Convention, the Republic of Estonia, declares that the limit of liability set to ships weighting up to 250 tons forms half of the limit of liability set to ships weighting up to 500 tons."

"The Republic of Estonia reserves the right, in accordance with article 18, paragraph 1, of the Convention, to exclude the application of article 2, paragraph 1(d) and (e) of the Convention."

FRANCE

The instrument of approval of the French Republic contained the following reservation (in the French language):

[Translation]

"In accordance with article 18, paragraph 1, the Government of the French Republic reserves the right to exclude the application of article 2, paragraphs 1(d) and (e)."

GERMAN DEMOCRATIC REPUBLIC

The instrument of accession of the German Democratic Republic was accompanied by the following reservation and declaration (in the German language):

[Translation]

Article 2, paragraph 1(d) and (e)

"The German Democratic Republic notes that for the purpose of this Convention there is no limitation of liability within its territorial sea and internal waters in respect of the removal of a wrecked ship, the raising, removal or destruction of a ship which is sunk, stranded or abandoned (including anything that is or has been on board such ship). Claims, including liability, derive from the laws and regulations of the German Democratic Republic".

Article 8, paragraph 1

"The German Democratic Republic accepts the use of the Special Drawing Rights merely as a technical unit of account. This does not imply any change in its position toward the International Monetary Fund".

FEDERAL REPUBLIC OF GERMANY

The instrument of ratification of the Federal Republic of Germany was accompanied by the following declaration and reservation (in the German language):

[Translation]

... that the said Convention shall also apply to Berlin (West) with effect from the date on which it enters into force for the Federal Republic of Germany."

"In accordance with art. 18, par. 1 of the Convention, the Federal Republic of Germany reserves the right to exclude the application of art. 2, par. 1 (d) and (e) of the Convention."

IRAN (ISLAMIC REPUBLIC OF)

The instrument of accession by the Islamic Republic of Iran was accompanied by the following reservation:

"The Government of the Islamic Republic of Iran reserves its right to exclude the application of the provisions of Article 2, paragraphs (d) and (e), according to Article 18(1) of the Convention."

IRELAND

The instrument of accession of Ireland was accompanied by the following reservation:

"In accordance with Article 18 of the Convention on Limitation of Liability for Marine Claims, done at London on the 19th of November, 1976, Ireland's accession to the said Convention is subject to the exclusion of the application of Article 2, paragraph 1(d) and (e) thereof to Ireland."

JAPAN

The instrument of accession of Japan was accompanied by the following statement (in the English language):

"... the Government of Japan, in accordance with the provision of paragraph 1 of article 18 of the Convention, reserves the right to exclude the application of paragraph 1(d) and (e) of article 2 of the Convention."

NETHERLANDS

The instrument of accession of the Kingdom of the Netherlands contained the following reservation:

"In accordance with Article 18, paragraph 1, of the Convention on Limitation of Liability for Maritime

Claims, 1976, done at London on 19 November 1976, the Kingdom of the Netherlands reserves the right to exclude the application of Article 2, paragraph 1(d) and (e) of the Convention."

NORWAY

The following declaration was received from the Government of Norway:

“In accordance with Article 18.1(a) of the Convention on Limitation of Liability for Maritime Claims, 1976, as amended by the Protocol of 1996, Norway hereby declares that it reserves the right to exclude the application of Article 2, paragraph 1(d) and (e).”

SINGAPORE

The instrument of accession of the Republic of Singapore contained the following reservation:

"The Republic of Singapore reserves the right, in accordance with article 18, paragraph 1, of the Convention, to exclude the application of article 2, paragraph 1(d) and (e) of the Convention."

UNITED KINGDOM

The instrument of ratification of the United Kingdom of Great Britain and Northern Ireland contained a reservation which states that the United Kingdom was "reserving the right, in accordance with article 18, paragraph 1, of the Convention, on its own behalf and on behalf of the above-mentioned territories, to exclude the application of article 2, paragraph 1(d); and to exclude the application of article 2, paragraph 1(e) with regard to Gibraltar only".

V. Notifications

Article 8(4)

China:

[Translation]

"The manner of calculation employed with respect to article 8(1) of the Convention concerning the unit of account shall be the method of valuation applied by the International Monetary Fund;"

German Democratic Republic:

[Translation]

"The amounts expressed in Special Drawing Rights will be converted into marks of the German Democratic Republic at the exchange rate fixed by the Staatsbank of the German Democratic Republic on the basis of the current rate of the US dollar or of any other freely convertible currency".

Poland:

"Poland will now calculate financial liabilities mentioned in the Convention in the terms of the Special Drawing Right, according to the following method.

"The Polish National Bank will fix a rate of exchange of the SDR to the United States dollar according to the current rates of exchange quoted by Reuter. Next, the US dollar will be converted into Polish zloties at the rate of exchange quoted by the Polish National Bank from their current table of rates of foreign currencies."

Switzerland:

[Translation]

"The Federal Council declares, with reference to article 8, paragraphs 1 and 4 of the Convention that Switzerland calculates the value of its national currency in special drawing rights (SDR) in the following way:

"The Swiss National Bank (SNB) notifies the International Monetary Fund (IMF) daily of the mean rate of the dollar of the United States of America on the Zurich currency market. The exchange value of one SDR in Swiss francs is determined from that dollar rate and the rate of the SDR in dollars calculated by IMF. On the basis of these values, SNB calculates a mean SDR rate which it will publish in its Monthly Gazette."

United Kingdom:

"... the manner of calculation employed by the United Kingdom pursuant to article 8(1) of the Convention shall be the method of valuation applied by the International Monetary Fund."

Article 15(2)

Belgium:

[Translation]

"In accordance with the provisions of article 15, paragraph 2, Belgium will apply the provisions of the Convention to inland navigation."

China:

[Translation]

"with regard to Article 15(2)(b) of the Convention, the limits of liability which will be applied to ships under 300 tons are 166,667 units of account in respect of claims for loss of life or personal injury and 83,333 units of account in respect to any other claims."

France:

[Translation]

" - that no limit of liability is provided for vessels navigating on French internal waterways;

" - that, as far as ships with a tonnage of less than 300 tons are concerned, the general limits of liability are equal to half those established in article 6 of the Convention .... for ships with a tonnage not exceeding 500 tons."

Federal Republic of Germany:

[Translation]

"In accordance with art. 15, par. 2, first sentence, sub-par. (a) of the Convention, the system of limitation of liability to be applied to vessels which are, according to the law of the Federal Republic of Germany, ships intended for navigation on inland waterways, is regulated by the provisions relating to the private law aspects of inland navigation.

"In accordance with art. 15, par. 2, first sentence, sub-par. (b) of the Convention, the system of limitation of liability to be applied to ships up to a tonnage of 250 tons is regulated by specific provisions of the law of the Federal Republic of Germany to the effect that, with respect to such a ship, the limit of liability to be calculated in accordance with art. 6, par. 1 (b) of the Convention is half of the limitation amount to be applied with respect to a ship with a tonnage of 500 tons."

Netherlands:

Paragraph 2(a)

"The Act of June 14th 1989 (Staatsblad 239) relating to the limitation of liability of owners of inland navigation vessels provides that the limits of liability shall be calculated in accordance with an Order in Council.

"The Order in Council of February 19th 1990 (Staatsblad 96) adopts the following limits of liability in respect of ships intended for navigation on inland waterways.

I Limits of liability for claims in respect of loss of life or personal injury other than those in respect of passengers of a ship, arising on any distinct occasion:

1. for a ship not intended for the carriage of cargo, in particular a passenger ship, 200 Units of Account per cubic metre of displacement at maximum permitted draught, plus, for ships equipped with mechanical means of propulsion, 700 Units of Account for each kW of the motorpower of the means of propulsion;

2. for a ship intended for the carriage of cargo, 200 Units of Account per ton of the ship's maximum deadweight, plus, for ships equipped with mechanical means of propulsion, 700 Units of Account for each kW of the motorpower of the means of propulsion;

3. for a tug or a pusher, 700 Units of Account for each kW of the motorpower of the means of propulsion;

4. for a pusher which at the time the damage was caused was coupled to barges in a pushed convoy, the amount calculated in accordance with 3 shall be increased by 100 Units of Account per ton of the maximum deadweight of the pushed barges; such increase shall not apply if it is proved that the pusher has rendered salvage services to one or more of such barges;

5. for a ship equipped with mechanical means of propulsion which at the time the damage was caused was moving other ships coupled to this ship, the amount calculated in accordance with 1, 2, or 3 shall be increased by 100 Units of Account per ton of the maximum deadweight or per cubic metre of displacement of the other ships; such increase shall not apply if it is proved that this ship has rendered salvage services to one or more of the coupled ships;

6. for hydrofoils, dredgers, floating cranes, elevators and all other floating appliances, pontoons or plant of a similar nature, treated as inland navigation ships in accordance with Article 951a, paragraph 4 of the Commercial Code, their value at the time of the incident;

7. where in cases mentioned under 4 and 5 the limitation fund of the pusher or the mechanically propelled ship is increased by 100 Units of Account per ton of the maximum deadweight of the pushed barges or by 100 Units of Account per ton of the maximum deadweight or per cubic metre of displacement of the other coupled ships, the limitation fund of each barge or of each of the other coupled ships shall be reduced by 100 Units of Account per ton of the maximum deadweight of the barge or by 100 Units of Account per ton of the maximum deadweight or per cubic metre of displacement of the other vessel with respect to claims arising out of the same incident;

however, in no case shall the limitation amount be less than 200,000 Units of Account.

II The limits of liability for claims in respect of any damage caused by water pollution, other than claims for loss of life or personal injury, are equal to the limits mentioned under I.

III The limits of liability for all other claims are equal to half the amount of the limits mentioned under I.

IV In respect of claims arising on any distinct occasion for loss of life or personal injury to passengers of an inland navigation ship, the limit of liability of the owner thereof shall be an amount equal to 60,000 Units of Account multiplied by the number of passengers the ship is authorized to carry according to its legally established capacity or, in the event that the maximum number of passengers the ship is authorized to carry has not been established by law, an amount equal to 60,000 Units of Account multiplied by the number of passengers actually carried on board at the time of the incident. However, the limitation of liability shall in no case be less than 720,000 Units of Account and shall not exceed the following amounts:

(i) 3 million Units of Account for a vessel with an authorized maximum capacity of 100 passengers;

(ii) 6 million Units of Account for a vessel with an authorized maximum capacity of 180 passengers;

(iii) 12 million Units of Account for a vessel with an authorized maximum capacity of more than 180 passengers;

"Claims for loss of life or personal injury to passengers" have been defined in the same way as in Article 7, paragraph 2 of the Convention on Limitation of Liability for Maritime Claims, 1976.

"The Unit of Account mentioned under I-IV is the Special Drawing Right as defined in Article 8 of the Convention on Limitation of Liability for Maritime Claims, 1976".

Paragraph 2(b)

"The Act of 14 June 1989 (Staatsblad 241) relating to the limitation of liability for maritime claims provides that with respect to ships which are according to their construction intended exclusively or mainly for the carriage of persons and have a tonnage of less than 300, the limit of liability for claims other than for loss of life or personal injury may be established by Order in Council at a lower level than under the Convention.

"The Order in Council of February 19th 1990 (Staatsblad 97) provides that the limit shall be 100,000 Units of Account.

"The Unit of Account is the Special Drawing Right as defined in Article 8 of the Convention on Limitation of Liability for Maritime Claims, 1976".

Singapore:

"The Republic of Singapore, pursuant to article 6, paragraph 3, of the Convention, notifies that it has provided in its national law that claims in respect of damage to harbour works, basins and waterways and aids to navigation shall have priority over other claims under article 6, paragraph 1(b), of the Convention.

The Republic of Singapore further notifies that, with respect to article 15, paragraph 2(b) of the Convention, the limits of liability which Singapore intends to apply are as follows:

(a) to a ship licensed as a harbour craft under the Maritime and Port Authority of Singapore Act (Cap. 170A), Article 6 of the Convention has effect as if the aggregate of the amounts in paragraph 1(a)(i) and (b)(i) referred to the sum insured under the policy of insurance for the time being required by the Port Master under that Act to be in force in relation to that harbour craft in respect of third party risks; and

(b) to any other ship with a tonnage less than 300 tons, article 6 of the Convention has effect as if:

(i) paragraph 1(a)(i) referred to 166,667 Units of Account; and

(ii) paragraph 1(b)(i) referred to 83,333 Units of Account."

Switzerland:

[Translation]

"In accordance with article 15, paragraph 2, of the Convention on Limitation of Liability for Maritime Claims, 1976, we have the honour to inform you that Switzerland has availed itself of the option provided in paragraph 2(a) of the above-mentioned article.

Since the entry into force of article 44a of the Maritime Navigation Order of 20 November 1956, the limitation of the liability of the owner of an inland waterways ship has been determined in Switzerland in accordance with the provisions of that article, a copy of which is [reproduced below]:

II. Limitation of liability of the owner of an inland waterways vessel

Article 44a

1 In compliance with article 5, subparagraph 3c, of the law on maritime navigation, the liability of the owner of an inland waterways vessel, provided in article 126, subparagraph 2c, of the law, shall be limited as follows:

a. in respect of claims for loss of life or personal injury, to an amount of 200 units of account per deadweight tonne of a vessel used for the carriage of goods and per cubic metre of water displaced for any other vessel, increased by 700 units of account per kilowatt of power in the case of mechanical means of propulsion, and to an amount of 700 units of account per kilowatt of power for uncoupled tugs and pusher craft; for all such vessels, however, the limit of liability is fixed at a minimum of 200,000 units of account;

b. in respect of claims for passengers, to the amounts provided by the Convention on Limitation of Liability for Maritime Claims, 1976, to which article 49, subparagraph 1, of the federal law on maritime navigation refers;

c. in respect of any other claims, half of the amounts provided under subparagraph a.

2. The unit of account shall be the special drawing right defined by the International Monetary Fund.

3. Where, at the time when damage was caused, a pusher craft was securely coupled to a pushed barge train, or where a vessel with mechanical means of propulsion was providing propulsion for other vessels coupled to it, the maximum amount of liability, for the entire coupled train, shall be determined on the basis of the amount of the liability of the pusher craft or of the vessel with mechanical means of propulsion and also on the basis of the amount calculated for the deadweight tonnage or the water displacement of the vessels to which such pusher craft or vessel is coupled, in so far as it is not proved that such pusher craft or such vessel has rendered salvage services to the coupled vessels."

United Kingdom:

"... with regard to article 15, paragraph 2(b), the limits of liability which the United Kingdom intend to apply to ships of under 300 tons are 166,677 units of account in respect of claims for loss of life or personal injury, and 83,333 units of account in respect of any other claims."

Article 15(4)

Norway:

"Because a higher liability is established for Norwegian drilling vessels according to the Act of 27 May 1983 (No. 30) on changes in the Maritime Act of 20 July 1893, paragraph 324, such drilling vessels are exempted from the regulations of this Convention as specified in article 15 No. 4."

Sweden:

"... in accordance with paragraph 4 of article 15 of the Convention, Sweden has established under its national legislation a higher limit of liability for ships constructed for or adapted to and engaged in drilling than that otherwise provided for in article 6 of the Convention."

PROTOCOL OF 1996 TO AMEND THE CONVENTION ON LIMITATION OF LIABILITY FOR MARITIME CLAIMS, 1976 (LLMC PROT 1996)

Done at London, 2 May 1996

Entry into force: 13 May 2004

Signature, ratification, acceptance, approval and accession

Article 10

1. This Protocol shall be open for signature at the Headquarters of the Organization from 1 October 1996 to 30 September 1997 by all States.

2. Any State may express its consent to be bound by this Protocol by:

(a) signature without reservation as to ratification, acceptance or approval; or

(b) signature subject to ratification, acceptance or approval followed by ratification, acceptance or approval; or

(c) accession.

3. Ratification, acceptance, approval or accession shall be effected by the deposit of an instrument to that effect with the Secretary-General.

4. Any instrument of ratification, acceptance, approval or accession deposited after the entry into force of an amendment to the Convention as amended by this Protocol shall be deemed to apply to the Convention so amended, as modified by such amendment.

Entry into force

Article 11

1. This Protocol shall enter into force ninety days following the date on which ten States have expressed their consent to be bound by it.

2. For any State which expresses its consent to be bound by this Protocol after the conditions in paragraph 1 for entry into force have been met, this Protocol shall enter into force ninety days following the date of expression of such consent.

I. Signatories

II. Contracting States

III. Declarations, Reservations and Statements

IV Amendments

I. Signatories

Canada	subject to ratification
Denmark	subject to ratification and with reservation for application to the Faroes and Greenland
Finland	subject to acceptance
France	sous réserve de ratification
Germany, Federal Republic of	subject to ratification
Netherlands	subject to acceptance
Norway	subject to ratification
Sweden	subject to ratification
United Kingdom	subject to ratification

II. Contracting States

	Date of signature or deposit of instrument	Date of entry into force
Albania (accession)	7 June 2004	5 September 2004
Antigua and Barbuda (accession)	12 October 2009	10 January 2010
Australia (accession)	8 October 2002	13 May 2004
Bahrain (accession)	21 June 2019	19 September 2019
Barbados (accession)[1]	23 July 2024	21 October 2024
Belgium (accession)	9 October 2009	7 January 2010
Bulgaria (accession)	4 July 2005	2 October 2005
Canada (ratification)[1]	9 May 2008	7 August 2008
China[4] (accession)	2 February 2015	3 May 2015
Comoros (accession)	1 February 2018	2 May 2018
Congo (accession)	19 May 2014	17 August 2014
Cook Islands (accession)	12 March 2007	10 June 2007
Croatia (accession) [1]	15 May 2006	13 August 2006
Cyprus (accession)	23 December 2005	23 March 2006
Denmark (ratification) [1,3]	12 April 2002	13 May 2004
Estonia (accession)	16 March 2011	14 June 2011
Finland (acceptance)	15 September 2000	13 May 2004
France (ratification)[1]	24 April 2007	23 July 2007
Germany (ratification)[1]	3 September 2001	13 May 2004
Greece (accession)	6 July 2009	4 October 2009
Guyana (accession)	20 February 2019	21 May 2019
Hungary (accession)	4 July 2008	2 October 2008
Iceland (accession) [1]	17 November 2008	15 February 2009
India (accession)	23 March 2011	21 June 2011
Iraq (accession) [1]	11 September 2023	10 December 2023
Ireland (accession)	25 January 2012	24 April 2012
Jamaica (accession)	19 August 2005	17 November 2005
Kenya (accession)[1]	7 July 2015	5 October 2015
Japan (accession)	3 May 2006	1 August 2006
Latvia (accession)	18 April 2007	17 July 2007
Liberia (accession)	18 September 2008	17 December 2008
Lithuania (accession)[1]	14 September 2007	13December 2007
Luxembourg (accession)	21 November 2005	19 February 2006
Madagascar (accession)	27 July 2017	25 October 2017
Malaysia (accession)	12 November 2008	10 February 2009
Malta (accession)[1]	13 February 2004	13 May 2004
Marshall Islands (accession)	30 January 2006	30 April 2006
Mongolia (accession)	28 September 2011	27 December 2011
Montenegro (accession)	10 August 2026	8 November 2026
Myanmar (accession)	4 February 2020	4 May 2020
Nauru (accession)	23 March 2020	21 June 2020
Netherlands (acceptance) [5]	23 December 2010	23 March 2011
New Zealand (accession)[1]	4 April 2014	3 July 2014
Niue (accession)	27 June 2012	25 September 2012

Norway (ratification)[1]	17 October 2000	13 May 2004
Palau (accession)	29 September 2011	28 December 2011
Poland (accession)[1]	17 November 2011	15 February 2012
Portugal (accession)	19 October 2017	17 January 2018
Republic of Moldova (accession)	18 June 2026	16 September 2026
Romania (accession)	12 March 2007	10 June 2007
Russian Federation (accession)[1]	25 May 1999	13 May 2004
Saint Lucia (accession)	20 May 2004	18 August 2004
Samoa (accession)	18 May 2004	16 August 2004
San Marino (accession)	19 April 2021	18 July 2021
Saudi Arabia (accession)	6 April 2018	5 July 2018
Serbia (accession)	19 March 2013	17 June 2013
Sierra Leone (accession)	1 November 2001	13 May 2004
Singapore (accession)	30 September 2019	29 December 2019
Slovenia (accession)	6 July 2015	4 October 2015
Solomon Islands (accession)	30 September 2024	29 December 2024
Spain (accession)[1]	10 January 2005	10 April 2005
Sweden (accession)[1]	22 July 2004	20 October 2004
Syrian Arab Republic (accession)	2 September 2005	1 December 2005
Tonga (accession)	18 September 2003	13 May 2004
Türkiye (accession)[1]	19 July 2010	17 October 2010
Tuvalu (accession)	12 January 2009	12 April 2009
United Arab Emirates (accession)	22 February 2021	23 May 2021
United Kingdom (ratification)[1, 2]	11 June 1999	13 May 2004

Number of Contracting States: 68

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[1] For the text of a declaration, reservation or statement, see section III.

[2] The Protocol was extended by the United Kingdom to the Isle of Man with effect from 13 May 2004.
On 25 May 2012, the Secretary-General received a notification from the Foreign and Commonwealth Office, informing him that the reservation and declaration made by the United Kingdom (see section III) are now applicable to the Isle of Man.

The Protocol was further extended by the United Kingdom to the following UK territories:
- the Island of Jersey from 14 December 2009;
- the Cayman Islands from 31 January 2011;
- Isle of Man from 25 May 2012;
- the Bailiwick of Guernsey from 11 June 2013;
- Gibraltar from 25 February 2014; and
- Falkland Islands (Malvinas) from 19 December 2024.

declaring that the reservations made by the Government of the United Kingdom of Great Britain and Northern Ireland upon ratification with respect to articles 18(1)(a) and (b), 2(1)(d) and (e), 15(2)(b), 6(1)(a)(i) and (1)(b)(i), and 15(3*bis*) of the 1976 Convention as amended by the Protocol of 1996 will apply in respect of the above-listed UK territories.

* A dispute exists between the Governments of Argentina and the United Kingdom of Great Britain and Northern Ireland concerning sovereignty over the Falkland Islands (Malvinas). The Secretary-General received a communication from the Embassy of the Argentine Republic, on 29 April 2025, the full text of which is contained in Circular Letter No.5010.

[3] Denmark extended the Protocol to Greenland with effect from 13 May 2004 and to the Faroe with effect from 9 January 2019.

[4] Applies only to the Hong Kong Special Administrative Region, i.e. China acceded to LLMC PROT 1996 only for the Hong Kong territory.

[5] Extended to Bonaire, Sint Eustatius and Saba (the Caribbean part of the Netherlands) with effect from 24 March 2022 (See related reservation in Section III below).

III. Declarations, Reservations and Statements

The Secretary-General received, on 31 May 2013, a communication from the Minister for Foreign Affairs of Australia, containing the texts of two reservations as follows:

> "Pursuant to Article 7 of the Protocol, the Government of Australia:
> "(a) Reiterates its reservation, made on depositing its instrument of accession to the Convention on Limitation of Liability for Maritime Claims, 1976, to exclude the application of Article 2, paragraphs 1(d) and (e); and
> (b) reserves the right to exclude claims for damage within the meaning of the International Convention on Liability and Compensation for Damage in Connection with the Carriage of Hazardous and Noxious Substances by Sea, 1996 or any amendment or protocol related thereto.

BARBADOS

The instrument of accession of Barbados was accompanied by the following declaration and reservation:

Declaration

i. Barbados, pursuant to Article 6, paragraph 3, of the Convention, notifies that it has provided in its national law that claims in respect of damage to harbour works, basins and waterways and aids to navigation shall have priority over other claims under Article 6, paragraph 1(b), of the Convention.

ii. Barbados notifies that for the purposes of paragraph 3 of Article 6 of the Convention, it is hereby provided that a claim in respect of damage to harbour works, basins, waterways or aids of navigation has priority over any other claim under paragraph 1(b) of that Article.

iii. Barbados notifies that it intends to make use of the option provided for in Article 15 (2) (b) of the 1976 LLMC as amended by the 1996 Protocol to regulate by specific provisions of national law the system of limitation of liability to be applied to ships less than 300 tons. National law in Barbados will apply the provisions of the 1976 Convention as amended by the 1996 Protocol to such ships. However, in respect of such ships, the limit of liability calculated in accordance with paragraph 1(a) and (b) of Article 6 of the Convention, shall be half of the limit of liability applicable to a ship not exceeding 2,000 gross tonnage.

vi. Barbados notifies that it intends to make use of the option provided for in Article 15 (3) bis of the 1976 Convention as amended by the 1996 Protocol to regulate by specific provisions of national law the system of liability to be applied to claims for loss of life or personal injury to passengers of a ship."

Reservation

> "Pursuant to Article 18 (1)(a) and (b) of the Convention on Limitation of Liability for Maritime Claims, 1976, as amended by the Protocol of 1996, Barbados hereby excludes the application of Article 2, paragraphs 1(d) and (e), and excludes claims for damage within the meaning of the International Convention on Liability and Compensation for Damage in connection with the Carriage of Hazardous and Noxious Substances by Sea, 1996 which arise from occurrences which take place after the coming into force of that Convention as part of the Law of Barbados."

BELGIUM

The instrument of accession of Belgium contained the following reservation:

Translation

> "In accordance with article 18, paragraph 1(a) of the Convention on Limitation of Liability for Maritime Claims, 1976, as amended by the Protocol of 1996, the Kingdom of Belgium reserves the right to exclude application of article 2, paragraph 1(d) and (e) of the 1976 Convention, as amended by the 1996 Protocol."

CANADA

The instrument of ratification of Canada contained the following reservation:

> "Canada reserves the right to exclude the application of article 2, paragraph 1(d):
>
> (d) claims in respect of the raising, removal, destruction or the rendering harmless of a ship which is

sunk, wrecked, stranded or abandoned, including anything that is or has been on board such a ship."

CHINA

The instrument of accession by the People's Republic of China was accompanied by the following declaration:

"The Protocol at present only applies to the Hong Kong Special Administrative Region of the PRC and the Hong Kong Special Administrative Region shall not be bound by article 2, paragraph 1(d) of the Convention on Limitation of Liability for Maritime Claims, 1976, as amended by the Protocol."

CROATIA

The instrument of accession of the Republic of Croatia was accompanied by the following reservation:

"Pursuant to Article 18 paragraph 1 of the Convention on Limitation of Liability for Maritime Claims, 1976, as amended by the Protocol of 1996, the Republic of Croatia reserves the right:

(a) to exclude the application of article 2 paragraphs 1(d) and (e);

(b) to exclude claims for damage within the meaning of the International Convention o Liability and Compensation for Damage in Connection with the Carriage of Hazardous and Noxious Substances by Sea, 1996 or of any amendment or protocol thereto."

CYPRUS

The instrument of accession of the Republic of Cyprus contained the following reservation:

"Pursuant to paragraph 1 of Article 18 of the Convention on Limitation of Liability for Maritime Claims, 1976 as amended by the Protocol of 1996, the Republic of Cyprus hereby excludes:

(a) the application of Article 2, paragraphs 1(d) and (e);

(b) claims for damage within the meaning of the International Convention on Liability and Compensation for Damage in Connection with the Carriage of Hazardous and Noxious Substances by Sea, 1996, or any amendment or protocol related thereto."

DENMARK

The instrument of ratification of Denmark was accompanied by the following declaration:

"1. "In Act No. 228 of 21 April 1999, implementing the Protocol of 1996 to amend the Convention on Limitation of Liability for Maritime Claims, 1976, Denmark has made use of the provision in Article 15, paragraph 1, of the said Convention, on the application of the Convention. Consequently, if a person, who has his habitual residence or principal place of business in a State Party to the Convention of 1976, but not to the Protocol of 1996, seeks to limit his liability before a Court in Denmark during the period where Denmark is both a State Party to the Convention of 1976 and the Protocol of 1996, Denmark will accept limitation of liability according to the Convention of 1976. For other persons seeking to limit liability, Denmark will apply the limitation of the Protocol of 1996."

2. "Denmark intends to make use of the provision in the Convention on Limitation of Liability for Maritime Claims, 1976, Article 15, paragraph 2(b). According to this provision a State Party may regulate by specific provisions of national law the system of limitation of liability to be applied to ships of less than 300 tons. Denmark will inform the Secretary-General of the International Maritime Organization of the limits of liability upon adoption of the specific provisions in the Danish Legislation."

As stated in the Instrument, the Protocol shall, however, not apply to the Faroes and Greenland."

On 25 March 2004, Denmark declared that the Protocol shall extend to Greenland with effect from 13 May 2004, i.e. the date of entry into force of the Protocol.

Denmark also declared that:

"the declaration made by Denmark upon deposit of its instrument of ratification of the Protocol of 1996, in which it was stated under point 2 that Denmark intended to make use of the provision in Article 15,

paragraph 2(b), of the Convention according to which a State Party may regulate by specific provisions of national law the system of limitation of liability to be applied to ships of less than 300 tons. In this connection, I have the honour to inform you that with effect from the date of entry into force of the Protocol of 1996, the Danish limits of liability for ships of less than 300 tons will be 500.000 Units of Account as compared with the 1 million Units of Account stipulated in Article 6, paragraph 1(b)(i), of the Convention as amended by the Protocol."

On 23 May 2012 the Secretary-General received the following declaration by the Government of Denmark:

"The Government of Denmark would like to make use of the option in article 15(3bis) of the 1976 Convention as amended by the 1996 Protocol to regulate, by specific provisions of national law, the system of limitation of liability to be applied to passengers. National law in Denmark will thus provide for a higher limit of liability in respect of claims arising from the loss of life or personal injury to passengers of a ship."

On 6 March 2018, the Secretary-General received the following reservation by the Government of Denmark:

"The Kingdom of Denmark has ratified the Protocol of 1996 to amend the Convention on Limitation of Liability for Maritime Claims, 1976.
In accordance with article 7 of the Protocol, it is hereby notified that with effect from 6 March 2018, Denmark will not limit liability for maritime claims in respect of the raising, removal, destruction or the rendering harmless of a ship which is sunk, wrecked, stranded or abandoned, including anything that is or has been on board such ship."

On 9 January 2019, the depositary received a communication from the Kingdom of Denmark informing of the withdrawal of the reservation made in respect of the Faroes.

ESTONIA

The instrument of accession of the Republic of Estonia contained the following reservation:

"Pursuant to paragraph 1(b) of article 18 of the Protocol of 1996 to amend the Convention on Limitation of Liability for Maritime Claims, 1976, the Republic of Estonia reserves the right to exclude claims for damage within the meaning of the International Convention on Liability and Compensation for Damage in Connection with the Carriage of Hazardous and Noxious Substances by Sea, 1996, or any amendments or protocol related thereto."

FINLAND

The Secretary-General received, on 19 June 2017, the following notification by the Government of Finland:

"The Government of Finland is making use of the option in Article 15(3bis) of the 1976 Convention on Limitation of Liability for Maritime Claims as amended by the 1996 Protocol to regulate, by specific provisions of national law, the system of liability to be applied to claims for loss of life or personal injury to passengers of a ship.

National law in Finland will as of 5 September 2017 provide a higher limit of liability in respect of claims arising from the loss of life or personal injury to passengers of a ship, namely 250 000 Units of Account multiplied by the number of passengers which the ship is authorized to carry according to the ship's certificate."

FRANCE

The instrument of ratification of France contained the following declaration:

[Translation]

"Pursuant to the provisions of article 7 of this Protocol amending paragraph 1(a), article 18 of the Convention on Limitation of Liability for Maritime Claims, 1976, the Government of the Republic of France reiterates its decision, declared on depositing its instrument of approval of the above-mentioned Convention, to exclude all entitlement to limitation of liability for claims relating to paragraphs 1(d) and 1(e), article 2 of the Convention".

GERMANY

The instrument of ratification of the Federal Republic of Germany contained the following declaration:

"In accordance with Article 15 paragraph 2 first sentence (a) of the Convention as amended by the Protocol, the limitation of liability to be applied to vessels which are, according to the law of the Federal Republic of Germany, ships intended for navigation on inland waterways, is regulated by the provisions of the Act Relating to the Private Law Aspects of Inland Navigation. Sections 5e to 5l of this Act provide as follows:

"Section 5e

(1) The limit of liability for the total of all claims in respect of personal injury arising on any distinct occasion shall be calculated as follows, so far as these are not claims within the meaning of sections 5h and 5k:

1. For a passenger ship or other ship not intended for the carriage of cargo, to the extent that a different amount does not arise under nos. 3 and 4, 200 Units of Account per cubic metre of displacement at maximum permitted draught shall be fixed, and, for ships equipped with mechanical means of propulsion, increased by 700 Units of Account for each kW of the motorpower of the means of propulsion.

2. For a ship intended for the carriage of cargo, 200 Units of Account per ton of the ship's maximum dead weight shall be fixed, and, for ships equipped with mechanical means of propulsion, increased by 700 Units of Account for each kW of the motorpower of the means of propulsion.

3. For a tug or pusher, 700 Units of Account for each kW of the motorpower of the means of propulsion shall be fixed.

4. For a dredger, crane, elevator and any other floating moveable plant or appliance of a similar nature, the value which the plant or appliance had at the time of the occasion giving rise to liability shall be fixed.

(2) Where, at the time of the occasion giving rise to liability, a pusher was rigidly coupled with one or more pushed barges to form a pushed convoy, the amount to be fixed for the pusher in accordance with subsection 1 no. 3 shall be increased by 100 Units of Account per ton of the maximum dead weight of the push boat, to the extent that the pusher had not rendered salvage services or assistance services to one or more of these pushed barges. If the limit of liability is increased for the pusher pursuant to the first sentence, claims arising from the same occasion shall be reduced by the same amount for each pushed barge which was rigidly coupled with the pusher. However, the second sentence shall not apply to a claim of the party liable for the pusher against the party liable for one of the pushed barges rigidly coupled with the pusher for internal indemnification.

(3) Subsection 2 shall apply analogously to a mechanically propelled ship which, at the time of the occasion giving rise to liability, was securely coupled with one or more vessels, which do not constitute plants or appliances within the meaning of sub-section 1 no. 4, as well as to coupled ships; subject, however, to the proviso that the amount to be fixed for the moving ship in accordance with subsection 1 be increased by 1000 Units of Account per cubic metre of displacement or per ton of the maximum deadweight of the other ships.

(4) In any case, the limit of liability shall be not less that 200,000 Units of Account, to the extent that the vessel in question is not a barge which is only used for the purpose of transferring cargo in harbours.

Section 5f

(1) The limit of liability for claims in respect of material damage arising on any distinct occasion shall be one half of the relevant limits of liability mentioned in section 5e to the extent that these are not claims within the meaning of section 5h.

(2) On payment in respect of the maximum amount of liability referred to in sub-section 1, claims in respect of damage to harbour works, basins, waterways, locks, bridges and aids to navigation shall have priority over other claims.

Section 5g

Where the limit of liability for claims in respect of personal injury mentioned in section 5e is insufficient to pay these claims in full, the amount calculated in accordance with subsection 1 shall be available for payment of the unpaid balance of claims under section 5e. The balance of claims in respect of personal injury shall rank rateably with claims in respect of material damage in this context; section 5f sub-section 2 is, in this respect, not to be applied.

Section 5h

(1) For the total of all claims in respect of damage caused by third parties arising on any distinct occasion as a result of dangerous substances transported on the ship of the party liable, a separate limit of liability shall apply where the claims are not claims under section 22 of the Water Resources Management Act. The limit of liability shall be available solely for payment of the claims referred to in the first sentence. Dangerous substances within the meaning of the first sentence are listed in Annex A to the Regulations for the Carriage of Dangerous Substances on the Rhine (ADNR) (Annex 1 to the Ordinance on the Entry into Force of the Regulations for the Carriage of Dangerous Substances on the Rhine and the Regulations for the Carriage of Dangerous Substances on the Mosel of 21 December 1994, Federal Law Gazette II pp. 3830, 3831) in the respective version enacted in the Federal Republic of Germany.

(2) The limit of liability applicable pursuant to subsection 1 shall be,

1. for the total of all claims in respect of personal injury arising on any distinct occasion, three times the limits of liability applicable pursuant to section 5e; subject, however, to minimum of 5 million Units of Account;

2. for the total of all claims in respect of material damage arising on any distinct occasion, three times the limits of liability applicable pursuant to section 5f; subject, however, to a minimum of 5 million Units of Account.

(3) On payment in respect of the maximum amount of liability referred to in sub-section 2 no. 2, claims in respect of damage to harbour works, basins, waterways, locks, bridges and aids to navigation shall have priority over other claims.

(4) Where the limit of liability for claims in respect of personal injury applicable pursuant to subsection 2 no. 1 is insufficient to pay these claims in full, the amount calculated in accordance with subsection 2 no. 2 shall be available for payment of the unpaid balance of claims under subsection 2 no. 1. The balance of claims in respect of personal injury shall rank rateably with claims in respect of material damage in this context; subsection 3 is, in this respect, not to be applied.

Section 5i

Notwithstanding sections 5e, 5f subsection 1 and section 5h, a salvor within the meaning of section 5c subsection 1 no. 2 or a pilot working on board can limit his liability for the total of all claims in respect of personal injury arising on any distinct occasion to an amount of 200,000 Units of Account, and, for claims in respect of material damage, to an amount of 100,000 Units of Account. Section 5f subsection 2 and section 5g shall apply analogously.

Section 5j

For the total of all claims arising from wreck removal, a separate limit of liability shall apply. This limit shall be one half of the limits of liability mentioned in section 5e. The limit of liability shall be available solely for payment of the claims arising from wreck removal.

Section 5k

(1) In respect of the total of all claims arising on any distinct occasion for loss of life or personal injury to persons carried by that ship (passengers):

1. under a contract of passenger carriage, or

2. who, with the consent of the carrier, are accompanying a vehicle or live animals which are covered by a contract for the carriage of goods,

a separate limit of liability shall apply. This limit of liability shall be available solely for payment of claims made by those passengers.

(2) The limit of liability for claims in respect of personal injury to passengers pursuant to subsection 1 shall be 60,000 Units of Account multiplied by the number of passengers which the ship is authorized to carry according to the ship's certificate. If the number of passengers who may be carried is not specified, the limit of liability shall be determined on the basis of the number of passengers actually carried by the ship at the time of the occasion giving rise to liability. However, the limit of liability shall be no less than 720,000 Units of Account and shall not exceed 12 million Units of Account.

(3) Notwithstanding subsection 2, the limit of liability for a salvor with the meaning of section 5c subsection 1 no. 2 or a pilot working on board shall be 720,000 Units of Account.

Section 5l

The Unit of Account referred to in this chapter shall be the Special Drawing Right as defined by the International Monetary Fund. The limits of liability mentioned in sections 5e to 5k shall be converted into German Marks according to the value of the German Mark at the date the limitation fund shall have been constituted or at the date of the provision of security permitted by a court. If the limit of liability is asserted by way of defence pursuant to section 5d subsection 3, the date of the court decision shall be decisive for the date of conversion. The value of the German Mark in terms of the Special Drawing Right shall be calculated in accordance with the method of valuation applied by the International Monetary Fund in effect at the date in question for its operations and transactions."

In accordance with Article 15 paragraph 2 first sentence (b) of the Convention as amended by the Protocol, the limit of liability for ships with a tonnage of up to 250 tons is regulated by specific provisions of the domestic law of the Federal Republic of Germany to the effect that, with respect to such a ship, the limit of liability to be calculated in accordance with Article 6 paragraph 1 (b) of the Convention is one half of the limit of liability applicable to a ship with a tonnage of 2,000 tons.

Moreover, the Federal Republic of Germany reserves the right, in accordance with Article 18 paragraph 1 of the Convention as amended by the Protocol, to exclude the application of Article 2 paragraph 1 (d) and (e) of the Convention as amended by the Protocol of 1996."

ICELAND

The instrument of accession of Iceland contained the following reservation:

“In accordance with Article 18, paragraph 1, of the Convention on Limitation of Liability for Maritime Claims of 19 November 1976, as amended by Article 7 of the Protocol, Iceland excludes the application of Article 2, paragraphs 1(d) and (e).

In accordance with Article 18, paragraph 1, of the Convention on Limitation of Liability for Maritime Claims of 19 November 1976, as amended by Article 7 of the Protocol, Iceland excludes claims for damage within the meaning of the International Convention on Liability and Compensation for Damage in Connection with the Carriage of Hazardous and Noxious Substances by Sea, 1996 or of any amendment of protocol thereto.

The other provisions of the Convention shall be inviolably observed.”

IRAQ

The instrument of accession of Iraq was accompanied by the following reservation:

“The Republic of Iraq asserts that acceding to the convention does not, under any circumstances, imply recognition of Israel or entering into any relations with it.”

KENYA

The instrument of accession of Kenya contained the following reservation:

“The Government of the Republic of Kenya pursuant to article 7(1)(b) of the Protocol of 1996 to the Convention on Limitation of Liability for Maritime Claims, 1976, reserves the right to exclude claims for damage within the meaning of the International Convention on Liability and Compensation for Damage in Connection with the Carriage of Hazardous and Noxious Substances by Sea, 1996.

LITHUANIA

The instrument of accession of Lithuania contained the following reservation:

“… pursuant to paragraph 1 of Article 18 of the Convention on Limitation of Liability for Maritime Claims, 1976, as amended by the Protocol of 1996, the Republic of Lithuania hereby excludes:

(1) the application of subparagraphs d) and e) of paragraph 1 of Article 2 of the Convention on Limitation of Liability for Maritime Claims, 1976;

(2) claims for damage within the meaning of the International Convention on Liability and

Compensation for Damage in Connection with the Carriage of Hazardous and Noxious Substances by Sea, 1996, or any amendment or protocol related thereto."

MALTA

The instrument of accession by Malta contained the following reservations and declarations:

"(a) Pursuant to Article 18(1)(a) and (b) of the 1976 Convention as amended by the 1996 Protocol, Malta reserves the right to exclude the application of Article 2, paragraphs 1(d) and (e), and to exclude claims for damage within the meaning of the International Convention on Liability and Compensation for Damage in connection with the Carriage of Hazardous and Noxious Substances by Sea, 1996, which arise from occurrences which take place after the coming into force of that Convention as part of the Law of Malta.

(b) Malta intends to make use of the option provided for in Article 15(2)(b) of the 1976 Convention as amended by the 1996 Protocol to regulate by specific provisions of national law the system of limitation of liability to be applied to ships less than 300 tons. National law in Malta will apply the provisions of the 1976 Convention as amended by the 1996 Protocol to such ships. However, for such ships, Article 6 will have effect as if Article 6(1)(a)(i) refers to 1,000,000 Units of Account and Article 6(1)(b)(i) refers to 500,000 Units of Account.

(c) Malta intends to make use of the option provided for in article 15*(3bis)* of the 1976 Convention as amended by the 1996 Protocol to regulate by specific provisions of national law the system of limitation of liability to be applied to passengers. To this effect, national law in Malta implementing the 1976 Convention as amended by the 1996 Protocol will not apply to claims covered by the Athens Convention relating to the Carriage of Passengers and their Luggage by Sea, 1974, which arise from occurrences which take place after the coming into force of that Convention as part of the Law of Malta."

NETHERLANDS

The instrument of acceptance by the Netherlands was accompanied by the following reservation:

"The Kingdom of the Netherlands reserves the right, pursuant to paragraph 1 of article 18 of the Convention on Limitation of Liability for Maritime Claims, 1976, amended by article 7 of the Protocol of 1996, to exclude:

(a) the application of article 2, paragraphs 1(d) and (e);
(b) claims for damage within the meaning of the International Convention on Liability and Compensation for Damage in Connection with the Carriage of Hazardous and Noxious Substances by Sea, 1996, or of any amendment or protocol related thereto."

The Secretary-General received, on 24 March , the following reservation by the Kingdom the Netherlands with regard to the acceptance of the Protocol for the Caribbean part of the Netherlands:

"The Kingdom of the Netherlands reserves the right, having regard to article 18, paragraph 1(a) and (b) of the Convention on Limitation of Liability for Maritime Claims, 1976, as amended by the Protocol of 1996:

(a) to exclude the application of article 2, paragraphs 1(d) and (e);

(b) to exclude claims for damage within the meaning of the International Convention on Liability and Compensation for Damage in Connection with the Carriage of Hazardous and Noxious Substances by Sea, 1996, concluded in London on 3 May 1996, as amended by the Protocol of 2010 to the International Convention on Liability and Compensation for Damage In Connection With The Carriage Of Hazardous And Noxious Substances By Sea, 1996, concluded in London on 30 April 2010, or of any further amendment or protocol thereto." ."

The Depositary received, on 24 March 2022, a declaration for the European part of the Netherlands, as contained in circular LLMC.3/Circ.61.

NEW ZEALAND

The instrument of accession of New Zealand was accompanied by the following declaration:

> "..consistent with the constitutional status of Tokelau and taking into account the commitment of the Government of New Zealand to the development of self-government for Tokelau through an act of self-determination under the charter of the United Nations, this accession shall not extend to Tokelau unless and until a declaration to this effect is lodged by the Government of New Zealand with the depositary on the basis of appropriate consultation with that territory."

The depositary received, on 15 October 2018, the following reservation by the Government of New Zealand:

> "…the Government of New Zealand HEREBY EXCLUDES the application of Article 2, paragraphs 1(d) and (e); and claims for damage within the meaning of the International Convention on Liability and Compensation for Damage in Connection with the Carriage of Hazardous and Noxious Substances by Sea, 1996, or any amendment or protocol related thereto." The reservation became effective on 15 October 2018.

NORWAY

The instrument of ratification of the Kingdom of Norway contained the following reservation:

"In accordance with article 18 paragraph 1 of the Convention on Limitation of Liability for Maritime Claims, 1976 as amended by article 7 of the Protocol of 1996, Norway reserves its right to exclude claims for damage within the meaning of the International Convention on Liability and Compensation for Damage in Connection with the Carriage of Hazardous and Noxious Substances by Sea, 1996, or of any amendment or protocol thereto."

POLAND

The instrument of accession by Poland contained the following reservation and declaration:

"(a) Pursuant to Article 18(1)(a) and (b) of the 1976 Convention as amended by the 1996 Protocol, the Republic of Poland hereby excludes the application of Article 2, paragraphs 1(d) and (e), and claims for damage within the meaning of the International Convention on Liability and Compensation for Damage in connection with the Carriage of Hazardous and Noxious Substances by Sea, 1996, or of any amendment or protocol related thereto, which arise from occurrences which take place after the entry into force of that Convention with regard to the Republic of Poland.

(b) The Republic of Poland intends to make use of the option provided for in article 15(2)(b) of the 1976 Convention as amended by the 1996 Protocol to regulate by specific provisions of national law the system of limitation of liability to be applied to ships less than 300 tons. The Republic of Poland will inform the Secretary-General of IMO of the limits of liability upon adoption of the specific provisions in the Polish legislation."

Further to the above declaration, the Depositary received, on 5 November 2012, the following notification from Poland:

> "In accordance with article 15, paragraph 2(b) of the Convention on Limitation of Liability for Maritime Claims, 1976, as amended by the Protocol of 1996, the Republic of Poland hereby informs that the following limits of liability to ships of less than 300 tons are applied in Poland as from 27 October 2012:
>
> 1) 200 000 Units of Account – in respect of claims for loss of life or personal injury,
> and
> 2) 100 000 Units of Account – in respect of any other claims."

RUSSIAN FEDERATION

The instrument of accession of the Russian Federation contained the following reservation and statement (in the Russian language):

[Translation] "The Russian Federation reserves the right, pursuant to paragraph 1 of article 18 of the Convention on Limitation of Liability for Maritime Claims, 1976, amended by the Protocol of 1996, to exclude:

(a) the provisions of subparagraphs (d) and (e) of paragraph 1 of article 2;
(b) claims related to damage in the meaning of the International Convention on Liability and Compensation for Damage in Connection with the Carriage of Hazardous and Noxious Substances by Sea, 1996, or any amendment or protocol related thereto."

Statement

"The Russian Federation pursuant to subparagraph (e) of article 3 of the Convention on Limitation of Liability for Maritime Claims, 1976, amended by the Protocol of 1996, will apply the legislation of the Russian Federation on compensation for injury to persons or property, in full, to claims for personal injury or property caused to employees of shipowners or rescuers, arising from liabilities related to the vessel or rescue operations, as well as to claims by their heirs, dependants or persons entitled to be maintained by them, if the contract of employment between the shipowner or rescuer and those employees is subject to the law of the Russian Federation.

The Russian Federation makes use of the possibility, provided in paragraph 3 of article 15 of the Convention on Limitation of Liability for Maritime Claims, 1976, amended by the Protocol of 1996, and will apply the law of the Russian Federation on compensation for damage to persons or personal property, in full, to claims for compensation for damage to persons or personal property, directly connected with the operation of the ship or with rescue operations, if the shipowner and the person concerned or rescuer and the person concerned are organizations or citizens of the Russian Federation.

The Russian Federation makes use of the possibility, provided in paragraph 3 of article 15 of the Convention on Limitation of Liability for Maritime Claims, 1976, amended by the Protocol of 1996, and will apply the law of the Russian Federation on compensation for damage to the life or health of citizens, in full, to claims for compensation for damage caused to the life or health of passengers on a ship if the shipowner and passenger are organizations or citizens of the Russian Federation."

_____

The Secretary-General received on 1 September 2022 a letter from the Russian Federation informing of the withdrawal by the Russian Federation of the reservation to the sub-paragraphs “d” and “e” of the paragraph 1 of the article 2 of the Convention on Limitation of Liability for Maritime Claims, 1976 made at the accession of the Russian Federation to the Protocol of 1996 to amend the Convention on Limitation of Liability for Maritime Claims of 1976.

SPAIN

The instrument of accession by Spain contained the following reservation:

"1. In accordance with paragraph 2(b), article 15 of the Convention on Limitation of Liability for Maritime Claims, 1976, as amended by the Protocol of 1996, the limit of liability for ships not exceeding 300 gross tonnage shall be regulated by specific provisions of the national law of the Kingdom of Spain, such that, in respect of those ships, the limit of liability, calculated in accordance with paragraph 1(a) and (b), article 6 of the Convention, shall be half of the liability limit applicable to a ship not exceeding 2,000 gross tonnage.

2. The Kingdom of Spain, in accordance with paragraph 1, article 18 of the Convention on Limitation of Liability for Maritime Claims, 1976, as amended by the Protocol of 1996, reserves the right not to apply paragraph 1(d) and (e), article 2 of the Convention.

Claims relating to paragraph 1(d) and (e), article 2 of the Convention shall not have entitlement to limitation of liability and shall be subject to the provisions of national law, specifically article 107 of the State Ports and Merchant Marine Act No.27/1992 of 24 November 1992."

SWEDEN

The Secretary-General received, on 3 July 2015, the following notification by the Government of Sweden:

“The Government of Sweden is making use of the option in article 15(3bis) of the 1976 Convention on Limitation of Liability for Maritime Claims as amended by the 1996 Protocol to regulate, by specific provisions of national law, the system of limitation of liability to be applied to passengers.

National law in Sweden will as of 2 September 2015 provide a higher limit of liability in respect of claims arising from the loss of life or personal injury to passengers of a ship, namely 250 000 Units of Account.”

The Secretary-General received, on 13 May 2026, the following reservation by the Government of Sweden:

“I have the honour to inform, that the Government of Sweden on 26 March 2026, decided, in accordance with article 18 paragraph 1(b) of the Convention on Limitation of Liability for Maritime claims, 1976, as amended by the Protocol of 1996, to reserve the right to exclude claims for damage within the meaning of

the International Convention on Liability and Compensation in Connection with the Carriage of Hazardous and Noxious Substances by Sea, 1996, or of any amendment or Protocol thereto."

TÜRKIYE

The instrument of ratification of Türkiye was accompanied by the following reservation:

"The republic of Türkiye reserves the right, pursuant to paragraph 1 of article 18 of the Convention on Limitation of Liability for Maritime Claims, 1976, amended by article 7 of the Protocol of 1996, to exclude:

(a) the application of article 2, paragraphs 1(d) and (e);
(b) claims for damage within the meaning of the International Convention on Liability and Compensation for Damage in Connection with the Carriage of Hazardous and Noxious Substances by Sea, 1996, or of any amendment or protocol related thereto."

UNITED KINGDOM

The instrument of ratification of the United Kingdom was accompanied by the following reservations and declarations:

"(a) Pursuant to article 18(1)(a) and (b) of the 1976 Convention as amended by the 1996 Protocol, the United Kingdom reserves the right to exclude the application of article 2, paragraphs 1(d) and (e), and to exclude claims for damage within the meaning of the International Convention on Liability and Compensation for Damage in connection with the Carriage of Hazardous and Noxious Substances by Sea, 1996.

(b) The United Kingdom intends to make use of the option provided for in article 15(2)(b) of the 1976 Convention as amended by the 1996 Protocol to regulate by specific provisions of national law the system of limitation of liability to be applied to ships less than 300 tons. National law in the United Kingdom will apply the provisions of the 1976 Convention as amended by the 1996 Protocol to such ships. However, for such ships, article 6 will have effect as if article 6(1)(a)(i) referred to 1,000,000 Units of Account and article 6(1)(b)(i) referred to 500,000 Units of Account.

(c) The United Kingdom intends to make use of the option provided for in article 15*(3bis)* of the 1976 Convention as amended by the 1996 Protocol to regulate by specific provisions of national law the system of limitation of liability to be applied to passengers. National law in the United Kingdom implementing the 1976 Convention as amended by the 1996 Protocol will provide for no limit of liability in respect of claims arising from the loss of life or personal injury to passengers of a ship. However, separate limits may continue to apply to a liability for such claims under national law based on the provisions of the Convention relating to the Carriage of Passengers and their Luggage by Sea.

The United Kingdom's ratification of the Protocol of 1996 will not be extended to the Overseas Territories of the United Kingdom until such time as the United Kingdom's denunciation of the 1976 Convention is extended to them."

VI. Amendments

(1) 2012 (limitation amounts set out in article 3 of the 1996 LLMC Protocol) Amendments (LEG.5(99))

A. Adoption

The Legal Committee at its ninety-ninth session (April 2012) adopted by resolution LEG.5(99), in accordance with article 8(4) of 1996 LLMC Protocol, amendments to the limitation amounts set out in article 3 of the 1996 LLMC Protocol.

B. Entry into force

(a) In accordance with article 8(7) of the 1996 LLMC Protocol, and as determined by the Legal Committee, the amendments shall be deemed to have been accepted at the end of a period of 18 months after the date of notification, i.e. 8 December 2013, unless, prior to that date, not less than one-fourth of the States that were Contracting States on the date of the adoption of these amendments have communicated to the Secretary-General that they do not accept these amendments.
(b) In accordance with article 8(8) of the 1996 LLMC Protocol, these amendments deemed to have been accepted in accordance with paragraph (a) above shall enter into force 18 months after their acceptance, i.e. 8 June 2015. No communication of non-acceptance was received and, accordingly, the amendments, accordingly, entered into force on 8 June 2015 (NV1 B1/F/3.03 dated 8 June 2012 refers).

INTERNATIONAL CONVENTION ON STANDARDS OF TRAINING, CERTIFICATION AND WATCHKEEPING FOR SEAFARERS, 1978, AS AMENDED (STCW 1978)

Done at London, 7 July 1978

Entry into force: 28 April 1984

Signature, ratification, acceptance, approval and accession

Article XIII

(1) The Convention shall remain open for signature at the Headquarters of the Organization from 1 December 1978 until 30 November 1979 and shall thereafter remain open for accession. Any State may become a Party by:

(a) signature without reservation as to ratification, acceptance or approval; or

(b) signature subject to ratification, acceptance or approval, followed by ratification, acceptance or approval; or

(c) accession.

(2) Ratification, acceptance, approval or accession shall be effected by the deposit of an instrument to that effect with the Secretary-General.

...

Entry into force

Article XIV

(1) The Convention shall enter into force twelve months after the date on which not less than twenty-five States, the combined merchant fleets of which constitute not less than fifty per cent of the gross tonnage of the world's merchant shipping of ships of 100 gross register tons or more, have either signed it without reservation as to ratification, acceptance or approval or deposited the requisite instruments of ratification, acceptance, approval or accession in accordance with article XIII.

...

(3) Any instrument of ratification, acceptance, approval or accession deposited during the twelve months referred to in paragraph (1) shall take effect on the coming into force of the Convention or three months after the deposit of such instrument, whichever is the later date.

(4) Any instrument of ratification, acceptance, approval or accession deposited after the date on which the Convention enters into force shall take effect three months after the date of deposit.

(5) After the date on which an amendment is deemed to have been accepted under article XII, any instrument of ratification, acceptance, approval or accession deposited shall apply to the Convention as amended.

Amendments

Article XII

(1) The Convention may be amended by either of the following procedures:

(a) amendments after consideration within the Organization:

(i) any amendment proposed by a Party shall be submitted to the Secretary-General, who shall then circulate it to all Members of the Organization, all Parties and the Director-General of the International Labour Office at least six months prior to its consideration;

(ii) any amendment so proposed and circulated shall be referred to the Maritime Safety Committee of the Organization for consideration;

(iii) Parties, whether or not Members of the Organization, shall be entitled to participate in the proceedings of the Maritime Safety Committee for consideration and adoption of amendments;

(iv) amendments shall be adopted by a two-thirds majority of the Parties present and voting in the Maritime Safety Committee expanded as provided for in sub-paragraph (a)(iii) (hereinafter referred to as the "expanded Maritime Safety Committee") on condition that at least one-third of the Parties shall be present at the time of voting;

(v) amendments so adopted shall be communicated by the Secretary-General to all Parties for acceptance;

(vi) an amendment to an article shall be deemed to have been accepted on the date on which it is accepted by two-thirds of the Parties;

(vii) an amendment to the Annex shall be deemed to have been accepted:

1. at the end of two years from the date on which it is communicated to Parties for acceptance; or

2. at the end of a different period, which shall be not less than one year, if so determined at the time of its adoption by a two-thirds majority of the Parties present and voting in the expanded Maritime Safety Committee;

however, the amendments shall be deemed not to have been accepted if within the specified period either more than one-third of Parties, or Parties the combined merchant fleets of which constitute not less than fifty per cent of the gross tonnage of the world's merchant shipping of ships of 100 gross register tons or more, notify the Secretary-General that they object to the amendment;

(viii) an amendment to an article shall enter into force with respect to those Parties which have accepted it, six months after the date on which it is deemed to have been accepted, and with respect to each Party which accepts it after that date, six months after the date of that Party's acceptance;

(ix) an amendment to the Annex shall enter into force with respect to all Parties, except those which have objected to the amendment under sub-paragraph (a)(vii) and which have not withdrawn such objections, six months after the date on which it is deemed to have been accepted. Before the date determined for entry into force, any Party may give notice to the Secretary-General that it exempts itself from giving effect to that amendment for a period not longer than one year from the date of its entry into force, or for such longer period as may be determined by a two-thirds majority of the Parties present and voting in the expanded Maritime Safety Committee at the time of the adoption of the amendment; or

(b) amendment by a conference:

(i) upon the request of a Party concurred in by at least one-third of the Parties, the Organization shall convene, in association or consultation with the Director-General of the International Labour Office, a conference of Parties to consider amendments to the Convention;

(ii) every amendment adopted by such a conference by a two-thirds majority of the Parties present and voting shall be communicated by the Secretary-General to all Parties for acceptance;

(iii) unless the conference decides otherwise, the amendment shall be deemed to have been accepted and shall enter into force in accordance with the procedures specified in sub-paragraphs (a)(vi) and (a)(viii) or sub-paragraphs (a)(vii) and (a)(ix) respectively, provided that references in these sub-paragraphs to the expanded Maritime Safety Committee shall be taken to mean references to the conference.

(2) Any declaration of acceptance of, or objection to, an amendment or any notice given under paragraph (1)(a)(ix) shall be submitted in writing to the Secretary-General, who shall inform all Parties of any such submission and the date of its receipt.

(3) The Secretary-General shall inform all Parties of any amendments which enter into force, together with the date on which each such amendment enters into force.

I. Signatories

II. Contracting States

III. Declarations, Reservations and Statements

IV. Amendments

I. Signatories

Australia	Subject to ratification
Belgium	Sous réserve de ratification
China	*[Translation]* Subject to approval
Denmark	Subject to ratification and with reservation as to the application to the Faroes and Greenland
Finland	Subject to ratification
France	Sous réserve d'approbation ultérieure
German Democratic Republic	Subject to ratification
Germany, Federal Republic of	Subject to ratification
Greece	Subject to ratification
Ireland	Subject to ratification
Liberia	Subject to ratification
Norway	Subject to ratification
Poland	Subject to ratification
Sweden	Subject to ratification
Switzerland	Sous réservation de la ratification
USSR	
United Kingdom	Subject to ratification
United States	Subject to ratification
Yugoslavia	Subject to approval

II. Contracting States

	Date of signature or deposit of instrument	**Date of entry into force or succession**
Albania (accession)	20 March 2002	20 June 2002
Algeria (accession)	28 October 1988	28 January 1989
Angola (accession)	3 October 1991	3 January 1992
Antigua and Barbuda (accession)	5 February 1997	5 May 1997
Argentina (accession)	6 October 1982	28 April 1984
Australia (ratification)[1]	7 November 1983	28 April 1984
Austria (accession)	29 January 1997	29 April 1997
Azerbaijan (accession)	1 July 1997	1 October 1997
Bahamas (accession)	7 June 1983	28 April 1984
Bahrain (accession)	13 June 1996	13 September 1996
Bangladesh (accession)	6 November 1981	28 April 1984
Barbados (accession)	6 May 1994	6 August 1994
Belarus (accession)	13 October 1993	13 January 1994
Belgium (ratification)	14 September 1982	28 April 1984
Belize (accession)	24 January 1997	24 April 1997
Benin (accession)	1 November 1985	1 February 1986
Bolivia (Plurinational State of) (accession)	11 April 1988	11 July 1988
Brazil (accession)	17 January 1984	28 April 1984
Brunei Darussalam (accession)	23 October 1986	23 January 1987
Bulgaria (accession)	31 March 1982	28 April 1984
Cambodia (accession)	8 June 2001	8 September 2001
Cameroon (accession)	6 June 1989	6 September 1989
Canada (accession)[1]	6 November 1987	6 February 1988
Cabo Verde (accession)	18 September 1989	18 December 1989
Chile (accession)[1]	9 June 1987	9 September 1987
China (approval)[3]	8 June 1981	28 April 1984
Colombia (accession)	27 July 1981	28 April 1984
Comoros (accession	22 November 2000	22 February 2001
Congo (accession)	7 August 2002	7 November 2002
Cook Islands (accession)	17 February 2010	17 May 2010
Costa Rica (accession)	6 June 2018	6 September 2018
Côte d'Ivoire (accession)	5 October 1987	5 January 1988

Croatia (succession)	-	8 October 1991
Cuba (accession)	5 December 1989	5 March 1990
Cyprus (accession)	28 March 1985	28 June 1985
Czechia (succession)	-	1 January 1993
Democratic People's Republic of Korea (accession)	1 May 1985	1 August 1985
Democratic Republic of the Congo (accession)[4]	4 April 1995	4 July 1995
Denmark (ratification)[1]	20 January 1981	28 April 1984
Djibouti (accession)	12 October 2015	12 January 2016
Dominica (accession)	21 June 2000	21 September 2000
Dominican Republic (accession)	9 June 2016	9 September 2016
Ecuador (accession)	17 May 1988	17 August 1988
Egypt (accession)	22 September 1980	28 April 1984
El Salvador (accession)	29 November 2012	1 March 2013
Equatorial Guinea (accession)	24 April 1996	24 July 1996
Eritrea (accession)	22 April 1996	22 July 1996
Estonia (accession)	29 August 1995	29 November 1995
Ethiopia (accession)	18 July 1985	18 October 1985
Fiji (accession)	27 March 1991	27 June 1991
Finland (ratification)	27 January 1984	28 April 1984
France (approval)	11 July 1980	28 April 1984
Gabon (accession)	21 January 1982	28 April 1984
Gambia (accession)	1 November 1991	1 February 1992
Georgia (accession)	19 April 1994	19 July 1994
Germany (ratification)[1, 5]	28 May 1982	28 April 1984
Ghana (accession)	26 January 1989	26 April 1989
Greece (ratification)	22 March 1983	28 April 1984
Grenada (accession)	28 June 2004	28 September 2004
Guatemala (accession)	17 September 2002	17 December 2002
Guinea (accession)	5 August 1994	5 November 1994
Guinea-Bissau (accession)	24 October 2016	24 January 2017
Guyana (accession)	26 November 1997	26 February 1998
Haiti (accession)	6 April 1989	6 July 1989
Honduras (accession)	24 September 1985	24 December 1985
Hungary (accession)	15 October 1985	15 January 1986
Iceland (accession)	21 March 1995	21 June 1995
India (accession)	16 November 1984	16 February 1985
Indonesia (accession)	27 January 1987	27 April 1987
Iran (Islamic Republic of) (accession)	1 August 1996	1 November 1996
Iraq (accession)	10 December 2001	10 March 2002
Ireland (ratification)	11 September 1984	11 December 1984
Israel (accession)	16 January 1986	16 April 1986
Italy (accession)	26 August 1987	26 November 1987
Jamaica (accession)	19 February 1987	19 May 1987
Japan (accession)	27 May 1982	28 April 1984
Jordan (accession)	17 May 2000	17 August 2000
Kazakhstan (accession)	7 March 1994	7 June 1994
Kenya (accession)	15 December 1992	15 March 1993
Kiribati (accession)	5 August 1987	5 November 1987
Kuwait (accession)	22 May 1998	22 August 1998
Latvia (accession)	20 May 1992	20 August 1992
Lebanon (accession)	5 December 1994	5 March 1995
Liberia (ratification)	28 October 1980	28 April 1984
Libya (accession)	10 August 1983	28 April 1984
Lithuania (accession)	4 December 1991	4 March 1992
Luxembourg (accession)	14 February 1991	14 May 1991
Madagascar (accession)	7 March 1996	7 June 1996
Malawi (accession)	9 March 1993	9 June 1993
Malaysia (accession)	30 January 1992	30 April 1992
Maldives (accession)	22 January 1987	22 April 1987
Malta (accession)	21 June 1991	21 September 1991
Marshall Islands (accession)	25 April 1989	25 July 1989
Mauritania (accession)	17 November 1995	17 February 1996
Mauritius (accession)	4 July 1991	4 October 1991
Mexico (accession)	2 February 1982	28 April 1984
Micronesia (Federated States of) (accession)	14 July 1998	14 October 1998
Moldova (accession)	11 October 2005	11 January 2006

Mongolia (accession)	26 June 2002	26 September 2002
Montenegro (succession)[9, 10]	-	3 June 2006
Morocco (accession)	22 July 1997	22 October 1997
Mozambique (accession)	15 November 1985	15 February 1986
Myanmar (accession)	4 May 1988	4 August 1988
Namibia (accession)	24 January 2005	24 April 2005
Nauru (accession)	18 June 2018	18 September 2018
Netherlands (accession)[6]	26 July 1985	26 October 1985
New Zealand (accession)[7]	30 July 1986	30 October 1986
Nicaragua (accession)	9 March 2009	9 June 2009
Nigeria (accession)	13 November 1984	13 February 1985
Niue (accession)	18 May 2012	18 August 2012
Norway (ratification)	18 January 1982	28 April 1984
Oman (accession)	24 September 1990	24 December 1990
Pakistan (accession)	10 April 1985	10 July 1985
Palau (accession)	29 September 2011	29 December 2011
Panama (accession)	29 June 1992	29 September 1992
Papua New Guinea (accession)	28 October 1991	28 January 1992
Peru (accession)	16 July 1982	28 April 1984
Philippines (accession)	22 February 1984	22 May 1984
Poland (ratification)	27 April 1983	28 April 1984
Portugal (accession)	30 October 1985	30 January 1986
Qatar (accession)	29 May 2002	29 August 2002
Republic of Korea (accession)	4 April 1985	4 July 1985
Romania (accession)	11 January 1993	11 April 1993
Russian Federation (signature)[8]	9 October 1979	28 April 1984
Saint Kitts and Nevis (accession)	11 June 2004	11 September 2004
Saint Lucia (accession)	20 May 2004	20 August 2004
Saint Vincent and the Grenadines (accession)	28 June 1995	28 September 1995
Samoa (accession)	24 May 1993	24 August 1993
San Marino (accession)	19 April 2021	19 July 2021
São Tomé and Principe (accession)	29 October 1998	29 January 1999
Saudi Arabia (accession)	29 November 1990	1 March 1991
Senegal (accession)	16 January 1997	16 April 1997
Serbia (succession)[9, 10]	-	3 June 2006
Seychelles (accession)	22 August 1988	22 November 1988
Sierra Leone (accession)	13 August 1993	13 November 1993
Singapore (accession)	1 May 1988	1 August 1988
Slovakia (succession)	-	1 January 1993
Slovenia (succession)	-	25 June 1991
Solomon Islands (accession)	1 June 1994	1 September 1994
Somalia (accession)	26 June 2026	26 September 2026
South Africa (accession)	27 July 1983	28 April 1984
Spain (accession)	21 October 1980	28 April 1984
Sri Lanka (accession)	22 January 1987	22 April 1987
Sudan (accession)	26 February 1997	26 May 1997
Suriname (accession)	10 December 2013	10 March 2014
Sweden (ratification)	8 January 1981	28 April 1984
Switzerland (ratification)	15 December 1987	15 March 1988
Syrian Arab Republic (accession)	20 July 2001	20 October 2001
Thailand (accession)	19 June 1997	19 September 1997
Timor-Leste (accession)	12 October 2022	12 January 2023
Togo (accession)	19 July 1989	19 October 1989
Tonga (accession)	7 February 1995	7 May 1995
Trinidad and Tobago (accession)	3 February 1989	3 May 1989
Tunisia (accession)	8 February 1995	8 May 1995
Türkiye (accession)	28 July 1992	28 October 1992
Turkmenistan (accession)	4 February 2009	4 May 2009
Tuvalu (accession)	22 August 1985	22 November 1985
Uganda (accession)	3 April 2019	3 July 2019
Ukraine (accession)	7 January 1997	7 April 1997
United Arab Emirates (accession)	15 December 1983	28 April 1984
United Kingdom (ratification)[1, 2]	28 November 1980	28 April 1984
United Republic of Tanzania (accession)	27 October 1982	28 April 1984
United States (ratification)	1 July 1991	1 October 1991
Uruguay (accession)	3 August 1993	3 November 1993

Vanuatu (accession)	22 April 1991	22 July 1991
Venezuela (Bolivarian Republic of) (accession)	13 October 1987	13 January 1988
Viet Nam (accession)	18 December 1990	18 March 1991
Yemen (accession)	14 February 2005	14 May 2005

Number of Contracting States: 168

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[1] For the text of a reservation, declaration or statement, see section III.

[2] Ratification by the United Kingdom was declared to be effective also in respect of:

Hong Kong* - as from 3 November 1984
Isle of Man - as from 1 July 1985
Bermuda - as from 1 January 1989
Cayman Islands - as from 1 April 1991
Gibraltar - as from 27 September 1995

Extended to the British Virgin Islands with effect from 19 June 2006.

* Ceased to apply to Hong Kong with effect from 1 July 1997.

[3] Applies to the Hong Kong Special Administrative Region with effect from 1 July 1997, and to the Macao Special Administrative Region with effect from 18 July 2005.

[4] Formerly Zaire.

[5] On 3 October 1990 the German Democratic Republic acceded to the Federal Republic of Germany. The German Democratic Republic had ratified the Convention on 5 November 1979.

[6] Accession by the Netherlands was declared to be effective also in respect of the Netherlands Antilles* and, with effect from 1 January 1986, in respect of Aruba.

* The Netherlands Antilles has ceased to exist as an autonomous country within the Kingdom of the Netherlands with effect from 10 October 2010. Since that date, the Kingdom of the Netherlands consists of four autonomous countries: The Netherlands (European part and Caribbean part), Aruba, Curaçao and Sint Maarten. For more details see footnote 4, in section II of SOLAS 1974.. The Convention applies as follows:

		Effective from
The Netherlands (European part)	)	26 October 1985
Caribbean part of the Netherlands	)	10 October 2010
Aruba	)	1 January 1986
Curaçao	)	10 October 2010
Sint Maarten	)	10 October 2010

[7] Accession by New Zealand was declared to apply also to the Cook Islands and Niue but not to extend to Tokelau.

On 17 February May 2010, the Cook Islands acceded to the Convention. Accordingly, from 17 May 2010, date of its entry into force, the Government of New Zealand will cease to have State responsibility for the observance of the obligations under this Convention in respect of the Cook Islands.

[8] As from 26 December 1991 the membership of the USSR in the Convention is continued by the Russian Federation.

[9] As from 4 February 2003, the name of the State of the Federal Republic of Yugoslavia was changed to Serbia and Montenegro. The date of succession by Serbia and Montenegro to the Convention is the date on which the Federal Republic of Yugoslavia assumed responsibility for its international relations.

[10] Following the dissolution of the State Union of Serbia and Montenegro on 3 June 2006, all Treaty actions undertaken by Serbia and Montenegro continue to be in force with respect to Republic of Serbia. Montenegro has informed that it wished to succeed to this treaty with effect from the same date, ie. 3 June 2006.

III. Declarations, Reservations and Statements

AUSTRALIA

The instrument of ratification of the Commonwealth of Australia was accompanied by the following statement:

"Australia has a federal constitutional system in which legislative, executive and judicial powers are shared or distributed between the Commonwealth and the constituent States.

"The implementation of the Treaty throughout Australia will be effected by the Commonwealth, State and Territory authorities having regard to their respective constitutional powers and arrangements concerning their exercise."

CANADA[1]

The instrument of accession of Canada was accompanied by the following reservation:

"The Government of Canada reserves its position with regard to the provisions of paragraph 6(d) of the appendix to regulation II/2 and paragraph 16 of the appendix to regulation II/4 in the Annex to the International Convention on Standards of Training, Certification and Watchkeeping for Seafarers, 1978 in respect of the compulsory knowledge of an ability to use the English language. The position of the Government of Canada is that the provisions of those paragraphs which refer to the ability to use navigational publications in English, and the need to have an adequate knowledge of the English language, are not applicable to Canada as there are two official languages in Canada: English and French. Both languages have equal status, consequently candidates for certificates may choose to be examined in either language."

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[1] The depositary received the following communication dated 3 November 1988 from the Permanent Representative of the USSR to IMO:

[Translation]

"In connection with the reservation made by the Government of Canada when acceding to the International Convention on Standards of Training, Certification and Watchkeeping for Seafarers, 1978 (IMO document STCW/Circ.61 of 26 November 1987) the Soviet side considers it necessary to make the following statement.

"Requirements on knowledge of the English language, contained in paragraph 6(d) of the appendix to regulation II/2 and paragraph 16 of the appendix to regulation II/4 in the Annex to the Convention are mandatory minimum requirements for certification of masters, chief and watchkeeping officers and their observance represents a significant condition of ensuring high qualifications of officers of the crew. Non-observance of those requirements could result in negative consequences for the safety of international maritime navigation. In this connection the reservation of the Government of Canada, in the opinion of the Soviet side, is incompatible with the purposes of the Convention.

"The reference made by the Government of Canada to the two state languages does not seem to be well-founded in so far as internal status of this or that language cannot serve as an excuse for non-observance of the obligations assumed by States under the international law.

"Taking into account the above-stated, the Soviet side cannot recognize this reservation of the Government of Canada as valid."

CHILE

The instrument of accession of the Republic of Chile contained the following reservation (in the Spanish language):

[Translation]

"... formulating an express reservation concerning the provisions of subparagraphs (vii) and (ix) of paragraph 1(a) of article XII to the effect that amendments to the Annex shall not be binding on Chile until such time as it has complied with the internal procedure established by the Political Constitution of the Republic for the approval of treaties."

DENMARK

The instrument of ratification of the Kingdom of Denmark was accompanied by the following reservation:

"... a decision as to the applicability of the provisions of the Convention to Greenland and the Faroes is pending the completion of the internal procedures prescribed in this respect. The ratification of Denmark is therefore, until further notice, subject to reservation with regard to the obligations of Greenland and the Faroes under the Convention."

and a statement that:

"... the decision on Denmark's ratification was taken in accordance with the recommendation of December 21, 1978, of the Council of the European Communities concerning the ratification of the Convention."

The following communication dated 18 September 1990 was received from the Royal Danish Embassy:

"... that the reservation made with regard to the obligations of the Faroes in connection with Denmark's ratification has been lifted in accordance with a recommendation submitted by the local government of the Faroe.

This notice does not affect the reservation made with respect to Greenland".

FEDERAL REPUBLIC OF GERMANY[1]

The instrument of ratification of the Federal Republic of Germany was accompanied by the following declaration (in the German language):

[Translation]

"... that with effect from the day on which the Convention enters into force for the Federal Republic of Germany it shall also apply to Berlin (West)."

The Instrument was also accompanied by a Note informing the Secretary-General that:

"... the ratification of the Convention by the Federal Republic of Germany is done in view of the recommendation by the Council of the European Communities dated 21 December 1978."

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[1] The depositary received a communication dated 20 December 1982 from the Embassy of the Union of Soviet Socialist Republics in London. The communication, the full text of which was circulated by the depositary, includes the following:

[Translation]

"The Soviet Side can take note of the statement of the Government of the Federal Republic of Germany concerning the extension to Berlin (West) of the International Convention on Standards of Training, Certification and Watchkeeping for Seafarers of 1978 only with the understanding that such an extension is made in accordance with the Quadripartite Agreement of 3 September 1971 and under the observance of the established procedures."

The following communication dated 23 March 1983 was received from the Government of the German Democratic Republic:

[Translation]

> "It is the understanding of the German Democratic Republic with respect to the application of the International Convention on Standards of Training, Certification and Watchkeeping for Seafarers, 1978, that the provisions of the Convention shall be applied to Berlin (West) in conformity with the Quadripartite Agreement of 3 September 1971 and subject to observance of established procedures".

The following communication dated 30 August 1983 was received from the Government of the United Kingdom:

> "... the Secretary of State for Foreign and Commonwealth Affairs would like to reaffirm, on behalf of the Governments of the United Kingdom of Great Britain and Northern Ireland, of France and of the United States of America, that States which are not parties to the Quadripartite Agreement are not competent to comment authoritatively on its provisions.

The following communication dated 9 September 1983 was received from the Embassy of the Federal Republic of Germany in London:

> "In this connection the Embassy has the honour to refer to the note of 30 August 1983 sent by the Secretary of State for Foreign and Commonwealth Affairs on behalf of the Governments of France, the United Kingdom of Great Britain and Northern Ireland, and the United States of America and to state that the Government of the Federal Republic of Germany supports the position set forth in that note.
>
> The Government of the Federal Republic of Germany wished to point out that the absence of a response to further communications of a similar nature should not be taken to imply any change of its position in this matter".

UNITED KINGDOM

The instrument of ratification of the United Kingdom of Great Britain and Northern Ireland contained the following reservation:

> "... reserving the right not to apply the said Convention in respect of any territory for whose international relations the Government of the United Kingdom is responsible until three months after the date on which the Government of the United Kingdom notify the Secretary-General of the [International Maritime Organization] that the said Convention shall apply in respect of any such territory."

IV. Amendments

(1) 1991 (Chapters I, II, IV and VI) Amendments (MSC.21(59))

A. Adoption

The Maritime Safety Committee at its fifty-ninth session (May 1991) adopted by resolution MSC.21(59), in accordance with article XII of the Convention, amendments to chapters I, II, IV and VI of the Convention.

B. Entry into force

In accordance with article XII(1)(a)(viii) of the Convention, and as determined by the Maritime Safety Committee, the amendments shall enter into force on 1 December 1992 unless, prior to 1 June 1992, more than one-third of Parties or Parties the combined merchant fleets of which constitute not less than fifty per cent of the gross tonnage of the world's merchant shipping of ships of 100 gross register tons or more, have notified their objections to the amendments. No such notification was received and the amendments accordingly entered into force on 1 December 1992.

(2) 1994 (Chapter V) Amendments (MSC.33(63))

A. Adoption

The Maritime Safety Committee at its sixty-third session (May 1994) adopted by resolution MSC.33(63), in accordance with article XII of the Convention, amendments to chapter V of the Convention.

B. Entry into force

In accordance with article XII(1)(a)(ix) of the Convention, and as determined by the Maritime Safety Committee, the amendments shall enter into force on 1 January 1996 unless, prior to 1 July 1995, more than one-third of Parties or Parties the combined merchant fleets of which constitute not less than fifty per cent of the gross tonnage of the world's merchant shipping of ships of 100 gross register tons or more, have notified their objections to the amendments. No such notification was received and the amendments accordingly entered into force on 1 January 1996.

(3) 1995 (Chapters I to VIII and STCW Code) Amendments (CONF)

A. Adoption

A Conference of Parties to the Convention adopted on 7 July 1995, in accordance with article XII(1)(b)(ii) of the Convention, amendments to chapters I-VIII of the Convention and the STCW Code.

B. Entry into force

In accordance with article XII(1)(a)(ix) of the Convention, and as determined by the Conference, the amendments shall enter into force on 1 February 1997 unless, prior to 1 August 1996, more than one-third of Parties or Parties the combined merchant fleets of which constitute not less than fifty per cent of the gross tonnage of the world's merchant shipping of ships of 100 gross register tons or more, have notified their objections to the amendments. As at 1 August 1996 one objection[1] had been communicated to the Secretary-General and the amendments accordingly entered into force on 1 February 1997.

[1] The depositary received, on 12 July 1996, the following communication from the Ministry of Foreign Affairs of Finland:

"... the Ministry for Foreign Affairs of the Republic of Finland hereby inform that the Government of Finland is not able to accept the aforementioned amendments due to the fact that the amendments contradict, to some extent, with national laws and regulations in force and therefore Parliamentary procedure is required.

The Ministry for Foreign Affairs have, however, the honour to inform the Secretary-General that the Government of Finland intends to accept the amendments as soon as the legislative amendments necessary to such acceptance have been carried out. The preparation of a legislative proposal including the necessary amendments shall be initiated during autumn 1996 and they are expected to be carried out in the beginning of 1997. The Government of Finland will not fail to inform the Secretary-General of any developments in this respect."

Acceptance by Finland of the above-mentioned amendments was effected by the deposit of an instrument on 14 December 1998.

(4) 1997 (Chapter V) Amendments (MSC.66(68))

A. Adoption

The Maritime Safety Committee at its sixty-eighth session (June 1997) adopted by resolution MSC.66(68), in accordance with article XII of the Convention, amendments to chapter V of the Convention.

B. Entry into force

In accordance with article XII(1)(a)(ix) of the Convention, and as determined by the Maritime Safety Committee, the amendments shall enter into force on 1 January 1999 unless, prior to 1 July 1998, more than one-third of Parties or Parties the combined merchant fleets of which constitute not less than fifty per cent of the gross tonnage of the world's merchant shipping of ships of 100 gross register tons or more, have notified their objections to the amendments. No such notification was received and the amendments accordingly entered into force on 1 January 1999.

(5) 1997 (STCW Code) Amendments (MSC.67(68))

A. Adoption

The Maritime Safety Committee at its sixty-eighth session (June 1997) adopted, by resolution MSC.67(68), in accordance with article XII(1)(a)(iv) of the Convention, amendments to the STCW Code.

B. Entry into force

In accordance with article XII(1)(a)(ix) of the Convention, and as determined by the Maritime Safety Committee, the amendments shall enter into force on 1 January 1999 unless, prior to 1 July 1998, more than one-third of Parties to the Convention or Parties the combined merchant fleets of which constitute not less than fifty per cent of the gross tonnage of the world's merchant shipping of ships of 100 gross register tons or more, have notified their objections to the amendments. No such notification was received and the amendments accordingly entered into force on 1 January 1999.

(6) 1998 (STCW Code) Amendments (MSC.78(70))

A. Adoption

The Maritime Safety Committee at its seventieth session (December 1998) adopted, by resolution MSC.78(70), in accordance with article XII(1)(a)(iv) of the Convention, amendments to the STCW Code.

B. Entry into force

In accordance with article XII(1)(a)(ix) of the Convention, and as determined by the Maritime Safety Committee, the amendments shall enter into force on 1 January 2003 unless, prior to 1 July 2002, more than one-third of Parties to the Convention or Parties the combined merchant fleets of which constitute not less than fifty per cent of the gross tonnage of the world's merchant shipping of ships of 100 gross register tons or more, have notified their objections to the amendments. No such notification was received and the amendments accordingly entered into force on 1 January 2003.

(7) 2004 (STCW Code) Amendments (MSC.156(78))

A. Adoption

The Maritime Safety Committee at its seventy-eighth session (May 2004) adopted, by resolution MSC.156(78), in accordance with article XII(1)(a)(iv) of the Convention, amendments to the STCW Code.

B. Entry into force

In accordance with article XII(1)(a)(ix) of the Convention, and as determined by the Maritime Safety Committee, the amendments shall enter into force on 1 July 2006 unless, prior to 1 January 2006, more than one-third of Parties to the Convention or Parties the combined merchant fleets of which constitute not less than fifty per cent of the gross tonnage of the world's merchant shipping of ships of 100 gross tonnage or more, have notified their objections to the amendments. As at 1 January 2006, no such notification of objection was received and the amendments accordingly entered into force on 1 July 2006.

(8) 2004 (STCW Code) Amendments (MSC.180(79))

A. Adoption

The Maritime Safety Committee at its seventy-ninth session (December 2004) adopted, by resolution MSC.180(79), in accordance with article XII(1)(a)(iv) of the Convention, amendments to the STCW Code.

B. Entry into force

In accordance with article XII(1)(a)(ix) of the Convention, the amendments shall enter into force on 1 July 2006 unless, prior to 1 January 2006, more than one-third of Parties to the Convention or Parties the combined merchant fleets of which constitute not less than fifty per cent of the gross tonnage of the world's merchant shipping of ships of 100 gross tonnage or more, have notified their objections to the amendments. As at 1 January 2006, no such notification of objection was received and the amendments accordingly entered into force on 1 July 2006.

(9) 2006 (Chapters I and VI) Amendments (MSC.203(81))

A. Adoption

The Maritime Safety Committee at its eighty-first session (May 2006) adopted, by resolution MSC.203(81), in accordance with article XII(1)(a)(iv) of the Convention, amendments to Chapters I and VI of the Convention.

B. Entry into force

In accordance with article XII(1)(a)(ix) of the Convention, the amendments shall enter into force on 1 January 2008 unless, prior to 1 July 2007, more than one-third of Parties to the Convention or Parties the combined merchant fleets of which constitute not less than fifty per cent of the gross tonnage of the world's merchant shipping of ships of 100 gross tonnage or more, have notified their objections to the amendments. As at 1 July 2007 one objection[1] had been received and the amendments accordingly entered into force on 1 January 2008.

(10) 2006 (STCW Code) Amendments (MSC.209(81))

A. Adoption

The Maritime Safety Committee at its eighty-first session (May 2006) adopted, by resolution MSC.209(81), in accordance with article XII(1)(a)(iv) of the Convention, amendments to the STCW Code.

B. Entry into force

In accordance with article XII(1)(a)(ix) of the Convention, the amendments shall enter into force on 1 January 2008 unless, prior to 1 July 2007, more than one-third of Parties to the Convention or Parties the combined merchant fleets of which constitute not less than fifty per cent of the gross tonnage of the world's merchant shipping of ships of 100 gross tonnage or more, have notified their objections to the amendments. As at 1 July 2007, one objection[2] had been received and the amendments accordingly entered into force on 1 January 2008.

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[1] The depositary received, on 20 June 2007, the following communication from the Embassy of Finland:

"the Embassy hereby informs that the Government of Finland is not able, at this stage, to accept the aforementioned amendments, due to national procedural requirements."

The depositary received, on 15 June 2009, a further communication from the Embassy of Finland:

"The Embassy has the honour hereby to inform the Secretary-General that the Government of Finland has fulfilled the national procedural requirements for the entry into force of the aforementioned amendments and can thus withdraw its objection. The amendments will enter into force for Finland on 15 June 2009".

[2] The depositary received, on 20 June 2007, the following communication from the Embassy of Finland:

" the Embassy hereby informs that the Government of Finland is not able, at this stage, to accept the aforementioned amendments, due to national procedural requirements."

The depositary received, on 29 June 2009, a further communication from the Embassy of Finland:

"The Embassy has the honour hereby to inform the Secretary-General that the Government of Finland has fulfilled the national procedural requirements for the entry into force of the aforementioned amendments and can thus withdraw its objection. The amendments will enter into force for Finland on 30 June 2009".

(11) 2010 Manila amendments (STCW Convention and STCW Code)

A. Adoption

A Conference of Parties to the International Convention on Standards of Training, Certification and Watchkeeping for Seafarers, 1978, held in Manila, the Philippines, (June 2010), adopted, by resolutions 1 and 2 respectively, amendments to the annex to the Convention and to the STCW Code (the Manila amendments).

B. Entry into force

In accordance with article XII(1)(a)(vii) of the Convention, both sets of amendments shall be deemed to have been accepted on 1 July 2011, unless, prior to that date, more than one-third of Parties to the Convention, or Parties, the combined merchant fleets of which constitute not less than 50 per cent of the gross tonnage of the world's merchant shipping of ships of 100 gross register tons or more, have notified their objection to the amendments. Following their deemed acceptance, the amendments will enter into force on 1 January 2012, in accordance with article XII(1)(a)(ix) of the Convention. As at 1 July 2011, one objection[1] had been received, and the amendments, accordingly, entered into force on 1 January 2012. Under article XII(1)(a)(ix) of the STCW Convention, before the date set for entry into force, any Party may give notice to the Secretary-General that it exempts itself from giving effect to an amendment adopted under the procedure laid down in article XII(2) of the same Convention, for a period not longer than one year. Such notice was given by Slovenia[2], Lithuania[2], Denmark[2], New Zealand[3], the United Kingdom[3], and Ireland[3], Portugal[3] and Latvia[4].

The amendments accordingly entered into force on 1 January 2012 for all Parties to the Convention, except Finland.

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[1] On 13 June 2011, the Depositary received a communication from the Embassy of Finland as follows:

"The Embassy hereby informs, with reference to article to article XII(1)(a)(vii) and XII(1)(a)(ix) that, due to national procedural requirements, Finland is obliged to object to the above-mentioned amendments. The Embassy has the honour to inform the Secretary-General that the Government of Finland intends to accept the amendments as soon as the legislative amendments necessary to such acceptance have been carried out and that it will not fail to inform the Secretary-General of any developments in this respect".

[2] Additionally, the Secretary-General received, on 12 December, 15 December 2011 and 19 December, respectively, communications from the Embassy of the Republic of Slovenia, the Ministry of Transport and Communications of the Republic of Lithuania and the Minister for Foreign Affairs of the Kingdom of Denmark, under article XII(1)(a)(ix) of the STCW Convention, informing him as follows (the wording of the three communications is identical):

"The amendments to the Annex to the Convention and to the Code will enter into force on 1 January 2012. However, under article XII(1)(a)(ix) of the STCW Convention, before the date set for entry into force, any Party may give notice to the Secretary-General that it exempts itself from giving effect to an amendment adopted under the procedure laid down in article XII(2) of the same Convention, for a period not longer than one year.

The Embassy/the Ministry of Transport and Communications/the Minister for Foreign Affairs hereby inform that, with reference to Regulation VIII/1 (Fitness for duty) of the Annex to the STCW Convention and Section A-VIII/1 of the STCW Code, due to national procedural requirements, the Republic of Slovenia/the Republic of Lithuania/the Kingdom of Denmark are not able to give effect to the Manila amendments before 1 January 2013.

The Embassy/the Ministry of Transport and Communications/the Minister for Foreign Affairs have, however, the honour to inform the Secretary-General that the Government of Republic of Slovenia/the Government of the Republic of Lithuania/the Government of Denmark will not fail to inform the Secretary-General of any developments in this respect."

[3] The Secretary-General received four further communications, as follows:

- on 19 December 2011, from the Minister of Foreign Affairs of New Zealand, informing him that: "In accordance with article XII(1)(a)(ix) of the Convention, the Government of New Zealand exempts itself from giving effect to the Manila Amendments for a period of one year from the date of their entry into force, namely 1 January 2012. Accordingly, the Government of New Zealand records its understanding that it will give effect to the Manila Amendments from 1 January 2013."

- on 22 December 2011, from the Maritime and Coastguard Agency of the United Kingdom of Great Britain and Northern Ireland, informing him, with regard to:

"1. Regulation VIII/1 (Fitness for duty) of the Annex to the STCW Convention and Section A-VIII/1 of the STCW Code);

2. Regulation I/9 (Medical Standards) of the Annex to the STCW Convention and Section A-I/9 of the STCW Code;

3. Regulation II/5 (Able Seafarer Deck) of the Annex to the STCW Convention and Section A-II/5 of the STCW Code; Regulation III/6 (Electro-Technical Officers) of the Annex to the STCW Convention and Section A-III/6 of the STCW Code;

4. Regulation VIII/1.1 (Exceptions from required Hours of Rest) of the Annex to the STCW Convention and Section A-III/1.9 of the STCW Code; and

5. Regulation VIII/1.2 (Prevention of Alcohol Abuse, Limits) of the Annex to the STCW Convention and Code and Section A-VIII/1.10 of the STCW Code;

that due to national procedural requirements the United Kingdom is not able to give effect to the Manila amendments before 1st January 2013. The Government of United Kingdom and Northern Ireland will inform the Secretary-General of any developments in this respect. ”

- and on 22 December 2011, from the Embassies of Ireland and Portugal, as follows:

“The Embassy of Ireland/Portugal hereby informs IMO that, due to national regulatory and administrative requirements, Ireland/Portugal are not in a position to be able to give effect to Regulation VIII/1 (Fitness for duty) of the Annex to the STCW Convention and Section A VIII/1 of the STCW Code before 1st January 2013. The Government of Northern Ireland/the Portuguese authorities will not fail to inform the Secretary-General of any developments in this respect.”

4 Before the 31 December 2011 deadline, the Secretary-General received a communication from the Embassy of Latvia, as follows:

“The Embassy hereby informs that, with reference to any amendments to Chapters I and VIII of the Annex to the STCW Convention that do not directly involve certification of seafarers, under regulation 1/15, due to national procedural requirements, Latvia is not able to give effect to the Manila amendments before 1 January 2013.

The Embassy has however, the honour to inform the Secretary-General that the Government of Latvia will not fail to inform the Secretary-General of any developments in this respect.”

The amendments accordingly entered into force on 1 January 2012 for all Parties to the Convention, except Denmark, Finland, Ireland, Latvia, Lithuania, New Zealand, Portugal, Slovenia and the United Kingdom.

(12) 2014 (Chapter I) Amendments (to make the use of the III Code mandatory) (MSC.373(93))

A. Adoption

The Maritime Safety Committee at its ninety-third session (May 2014) adopted, by resolution MSC.373(93), in accordance with article XII(1)(a)(iv) of the Convention, amendments to Chapter I.

B. Entry into force

In accordance with article XII(1)(a)(ix) of the Convention, the amendments shall enter into force on 1 January 2016 unless, prior to 1 July 2015, more than one-third of Parties to the Convention or Parties the combined merchant fleets of which constitute not less than fifty per cent of the gross tonnage of the world's merchant shipping of ships of 100 gross tonnage or more, have notified their objections to the amendments. As at 1 July 2015, one objection[1] had been received and accordingly the amendments entered into force on 1 January 2016.

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[1] The depositary received, on 26 May 2015, a communication from the Embassy of Finland that due to national procedural requirements, Finland is obliged to object to these amendments.

The depositary received, on 29 December 2017, a further communication from the Embassy of Finland as follows: “The Embassy has the honour hereby to inform the Secretary-General that the Government of Finland has fulfilled the national procedural requirements for the entry into force of the aforementioned amendments and can thus withdraw its objection.”

(13) 2014 (STCW Code, Chapter I) Amendments (MSC.374(93))

A. Adoption

The Maritime Safety Committee at its ninety-third session (May 2014) adopted, by resolution MSC.374(93), in accordance with article XII(1)(a)(iv) of the Convention, amendments to the STCW Code.

B. Entry into force

In accordance with article XII(1)(a)(ix) of the Convention, the amendments shall enter into force on 1 January 2016 unless, prior to 1 July 2015, more than one-third of Parties to the Convention or Parties the combined merchant fleets of which constitute not less than fifty per cent of the gross tonnage of the world's merchant shipping of ships of 100 gross tonnage or more, have notified their objections to the amendments. As at 1 July 2015, one objection[1] had been received and accordingly the amendments entered into force on 1 January 2016.

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[1] The depositary received, on 26 May 2015, a communication from the Embassy of Finland that due to national procedural requirements, Finland is obliged to object to these amendments.

The depositary received, on 29 December 2017, a further communication from the Embassy of Finland as follows: "The Embassy has the honour hereby to inform the Secretary-General that the Government of Finland has fulfilled the national procedural requirements for the entry into force of the aforementioned amendments and can thus withdraw its objection."

(14) 2015 (Chapters I and V) Amendments (MSC.396(95))

A. Adoption

The Maritime Safety Committee at its ninety-fifth session (June 2015) adopted, by resolution MSC.396(95), in accordance with article XII(1)(a)(iv) of the Convention, amendments to Chapters I and V.

B. Entry into force

In accordance with article XII(1)(a)(ix) of the Convention, the amendments shall enter into force on 1 January 2017 unless, prior to 1 July 2016, more than one-third of Parties to the Convention or Parties the combined merchant fleets of which constitute not less than fifty per cent of the gross tonnage of the world's merchant shipping of ships of 100 gross tonnage or more, have notified their objections to the amendments. As at 1 July 2016, one objection[3] was received and accordingly the amendments entered into force on 1 January 2017.

(15) 2015 (STCW Code, Chapter V) Amendments (MSC.397(95))

A. Adoption

The Maritime Safety Committee at its ninety-fifth session (June 2015) adopted, by resolution MSC.376(95), in accordance with article XII(1)(a)(iv) of the Convention, amendments to the STCW Code.

B. Entry into force

In accordance with article XII(1)(a)(ix) of the Convention, the amendments shall enter into force on 1 January 2017 unless, prior to 1 July 2016, more than one-third of Parties to the Convention or Parties the combined merchant fleets of which constitute not less than fifty per cent of the gross tonnage of the world's merchant shipping of ships of 100 gross tonnage or more, have notified their objections to the amendments. As at 1 July 2016, one objection[3] was received and accordingly the amendments entered into force on 1 January 2017.

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[3] The depositary received, on 24 May 2016, a communication from the Embassy of Finland that due to national procedural requirements, Finland is obliged to object to these amendments (MSC.396(95) and MSC.397(95)).

The Depositary further received, on 3 October 2017, a communication from the Embassy of Finland that its Government had fulfilled the national procedural requirements for the entering into force of the aforementioned amendments [(MSC.396(95) and MSC.397(95)] and could thus withdraw its objection. The said amendments entered into force with respect to Finland on 5 October 2017.

(16) 2016 (Chapters I and V) Amendments (MSC.416(97))

A. Adoption

The Maritime Safety Committee at its ninety-seventh session (November 2016) adopted, by resolution MSC.416(97), in accordance with article XII(1)(a)(iv) of the Convention, amendments to Chapters I and V.

B. Entry into force

In accordance with article XII(1)(a)(ix) of the Convention, the amendments shall enter into force on 1 July 2018 unless, prior to 1 January 2018, more than one-third of Parties to the Convention or Parties the combined merchant fleets of which constitute not less than fifty per cent of the gross tonnage of the world's merchant shipping of ships of 100 gross tonnage or more, have notified their objections to the amendments. As at 1 January 2018, no objection had been received, and the amendments accordingly entered into force on 1 July 2018.

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The depositary received, on 24 May 2016, a communication from the Embassy of Finland that due to national procedural requirements, Finland is obliged to object to these amendments (MSC.396(95) and MSC.397(95)).

(17) 2016 (STCW Code, Chapters I and V) Amendments (MSC.417(97))

A. Adoption

The Maritime Safety Committee at its ninety-seventh session (November 2016) adopted, by resolution MSC.417(97), in accordance with article XII(1)(a)(iv) of the Convention, amendments to the STCW Code.

B. Entry into force

In accordance with article XII(1)(a)(ix) of the Convention, the amendments shall enter into force on 1 July 2018 unless, prior to 1 January 2018, more than one-third of Parties to the Convention or Parties the combined merchant fleets of which constitute not less than fifty per cent of the gross tonnage of the world's merchant shipping of ships of 100 gross tonnage or more, have notified their objections to the amendments. As at 1 January 2018, no objection had been received, and the amendments accordingly entered into force on 1 July 2018.

(18) 2021 (Chapter I) Amendments (MSC.486(103))

A. Adoption

The Maritime Safety Committee at its at its 103rd session (May 2021) adopted, by resolution MSC.486(103), in accordance with article XII(1)(a)(iv) of the Convention, amendments to Chapter I.

B. Entry into force

In accordance with article XII(1)(a)(ix) of the Convention, the amendments shall enter into force on 1 January 2023 unless, prior to 1 July 2022, more than one-third of Parties to the Convention or Parties the combined merchant fleets of which constitute not less than fifty per cent of the gross tonnage of the world's merchant shipping of ships of 100 gross tonnage or more, have notified their objections to the amendments. As at 1 July 2022, no objection had been received, and the amendments accordingly entered into force on 1 January 2023.

(19) 2021 (STCW Code, Chapter I) Amendments (MSC.487(103))

A. Adoption

The Maritime Safety Committee at its at its 103rd session (May 2021) adopted, by resolution MSC.487(103), in accordance with article XII(1)(a)(iv) of the Convention, amendments to the STCW Code.

B. Entry into force

In accordance with article XII(1)(a)(ix) of the Convention, the amendments shall enter into force on 1 January 2023 unless, prior to 1 July 2022, more than one-third of Parties to the STCW Convention or Parties the combined merchant fleets of which constitute not less than 50% of the gross tonnage of the world's merchant shipping of ships of 100 gross tonnage or more, have notified their objections to the amendments. As at 1 July 2022, no objection had been received, and the amendments accordingly entered into force on 1 January 2023.

(20) 2023 Amendments (MSC.540(107))

A. Adoption

The Maritime Safety Committee at its at its 107th session (May-June 2023) adopted, by resolution MSC.540(107)), in accordance with article XII(1)(a)(iv) of the Convention, amendments to the STCW Convention.

B. Entry into force

In accordance with article XII(1)(a)(ix) of the Convention, the amendments shall enter into force on 1 January 2025 unless, prior to 1 July 2024, more than one-third of Parties to the Convention or Parties the combined merchant fleets of which constitute not less than 50% of the gross tonnage of the world's merchant shipping of ships of 100 gross tonnage or more, have notified their objections to the amendments. No such notifications were received and the amendments accordingly entered into force on 1 January 2025.

(21) 2023 Amendments (MSC.541(107))

A. Adoption

The Maritime Safety Committee at its at its 107th session (May-June 2023) adopted, by resolution MSC.541(107)), in accordance with article XII(1)(a)(iv) of the Convention, amendments to the STCW Code.

B. Entry into force

In accordance with article XII(1)(a)(ix) of the Convention, the amendments shall enter into force on 1 January 2025 unless, prior to 1 July 2024, more than one-third of Parties to the Convention or Parties the combined merchant fleets of which constitute not less than 50% of the gross tonnage of the world's merchant shipping of ships of 100 gross tonnage or more, have notified their objections to the amendments. No such notifications were received and the amendments accordingly entered into force on 1 January 2025.

(22) 2024 Amendments (MSC.560(108))

A. Adoption

The Maritime Safety Committee at its at its 108th session (May 2024) adopted, by resolution MSC.560(108)), in accordance with article XII(1)(a)(iv) of the Convention, amendments to the STCW Code.

B. Entry into force

In accordance with article XII(1)(a)(ix) of the Convention, the amendments shall enter into force on 1 January 2026 unless, prior to 1 July 2025, more than one-third of Parties to the Convention or Parties the combined merchant fleets of which constitute not less than 50% of the gross tonnage of the world's merchant shipping of ships of 100 gross tonnage or more, have notified their objections to the amendments. No such notification was received and therefore the amendments entered int force on 1 January 2026.

INTERNATIONAL CONVENTION ON STANDARDS OF TRAINING, CERTIFICATION AND WATCHKEEPING FOR FISHING VESSEL PERSONNEL, 1995 (STCW-F 1995)

Done at London, 7 July 1995

Entry into force: 29 September 2012

Signature, ratification, acceptance, approval and accession

Article 11

1 The Convention shall remain open for signature at the Headquarters of the Organization from 1 January 1996 until 30 September 1996 and shall thereafter remain open for accession. States may become Parties to the Convention by:

.1 signature without reservation as to ratification, acceptance or approval; or

.2 signature subject to ratification, acceptance or approval, followed by ratification, acceptance or approval; or

.3 accession.

2 Ratification, acceptance, approval or accession shall be effected by the deposit of an instrument to that effect with the Secretary-General.

Entry into force

Article 12

1 The Convention shall enter into force 12 months after the date on which not less than 15 States have either signed it without reservation as to ratification, acceptance, or approval, or have deposited the requisite instruments of ratification, acceptance, approval or accession in accordance with article 11.

2 For States which have deposited an instrument of ratification, acceptance, approval or accession in respect of the Convention after the requirements for entry into force thereof have been met but prior to the date of entry into force, the ratification, acceptance, approval or accession shall take effect on the date of entry into force of the Convention or three months after the date of deposit of the instrument, whichever is the later date.

3 For States which have deposited an instrument of ratification, acceptance, approval or accession after the date on which the Convention entered into force, the Convention shall become effective three months after the date of deposit of the instrument.

4 After the date on which an amendment to the Convention is deemed to have been accepted under article 10, any instrument of ratification, acceptance, approval or accession deposited shall apply to the Convention as amended.

I. Signatories

II. Contracting States

III. Declarations, Reservations and Statements

I. Signatories

China	26 September 1996 Subject to approval by the Government of the People's Republic of China
Russian Federation	26 September 1996

II. Contracting States

	Date of signature or deposit of instrument	Date of entry into force or succession
Belgium (accession)	10 May 2018	10 August 2018
Canada (accession)	8 April 2010	29 September 2012
Congo (accession)	19 May 201	19 August 2014
Denmark (accession)[1]	20 July 1998	29 September 2012
France (accession)	12 June 2019	12 September 2019
Gambia (accession)	30 July 2019	30 October 2019
Iceland (accession)	28 May 2002	29 September 2012
Indonesia (accession)	27 November 2019	27 February 2019
Japan (accession)[1]	14 November 2025	14 February 2026
Kenya (accession)	17 March 2022	17 June 2022
Kiribati (accession)	5 February 2007	29 September 2012
Latvia (accession)	2 February 2007	29 September 2012
Lithuania (accession)	6 December 2012	6 March 2013
Mauritania (accession)	30 June 2008	29 September 2012
Morocco (accession)	14 April 2009	29 September 2012
Namibia (accession)	18 December 2008	29 September 2012
Nauru (accession)	18 June 2018	18 September 2018
New Zealand (accession)	4 December 2017	4 March 2018
Netherlands (accession)[2]	24 December 2018	24 March 2019
Nigeria (accession)	19 November 2024	19 February 2025
Norway (accession)	19 July 2006	29 September 2012
Palau (accession)	29 September 2011	29 September 2012
Poland (accession)	28 July 2015	28 October 2015
Portugal (accession)	23 January 2017	23 April 2017
Romania (accession)	27 February 2018	27 May 2018
Russian Federation (signature)	30 September 1996	29 September 2012
Saint Lucia (accession)	26 May 2016	26 August 2016
San Marino (accession)	19 April 2021	19 July 2021
Sao Tome and Principe	15 August 2022	15 November 2022
Sierra Leone (accession)	10 March 2008	29 September 2012
Solomon Islands (accession)	27 November 2025	27 February 2026
South Africa (accession)	2 July 2018	2 October 2018
Spain (accession)	3 February 2009	29 September 2012
Syrian Arab Republic (accession)[1]	12 July 2005	29 September 2012
Tunisia (accession)	10 May 2019	10 August 2019
Uganda (accession)	3 April 2019	3 July 2019
United Republic of Tanzania (accession)	15 August 2025	15 November 2025
Uruguay (accession)	1 August 2019	1 November 2019
Ukraine (accession)	4 September 2002	29 September 2012
Vanuatu (accession)	16 October 2025	16 January 2026

Number of Contracting States: 40

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[1] For the text of a reservation, see section III.

[2] Accession for the European part of the Netherlands only.

III. Declarations, Reservations and Statements

DENMARK

The instrument of accession by Denmark was accompanied by the following reservation:

"It should be noted that a decision as to the applicability of the provisions of the Convention to Greenland and the Faroes is pending the completion of the international procedures prescribed in this respect. The ratification of Denmark is therefore, until further notice, subject to reservation with regard to the obligations of Greenland and the Faroes under the Convention".

The depositary received a communication dated 14 October 1998 from the Royal Danish Embassy stating:

"..... that the reservation made with regard to the obligations of the Faroes in connection with Denmark's ratification has been lifted in accordance with a recommendation submitted by the local government of the Faroe.

This notice does not affect the reservation made with respect to Greenland".

JAPAN

The Secretary-General received, on 9 February 2026, a communication from Japan, containing the following notification, in accordance with paragraph 1 of regulation I/2 of the Annex to the Convention:

"The Government of Japan defines Japan's exclusive economic zone, territorial sea and internal waters as its limited waters, according to Regulation I/1.1.17 of the Annex to the Convention, and determines not to apply the full requirements of regulations II/3, II/4, II/5-1-1, II/5-1-2 and II/5-2 of the Annex to the Convention as well as the requirement of the use of the English language to personnel serving on board a fishing vessel of less than 950 gross tonnage operating exclusively from its ports and fishing within its limited waters.

The Government of Japan has already established and implemented domestic regulations on training and certification of personnel serving on board such a vessel as stipulated in the Law for Ships' Officers and Boats' Operators, which are aligned with the actual circumstances of the operations of Japanese-flagged fishing vessels."

NEW ZEALAND

The instrument of accession of New Zealand contained the following reservation and declaration:

> "… consistent with article 19 of the Vienna Convention on the Law of Treaties: the Government of New Zealand reserves the right to continue to apply the Tran-Tasman Mutual Recognition Arrangement with respect to the recognition of Australian seafarer certificates until such time as Australia becomes party to the Convention."
>
> "… declares that, consistent with the constitutional status of Tokelau and taking into account the commitment of the Government of New Zealand to the development of self-government for Tokelau through an act of self-determination under the Charter of the United Nations, this accession shall not extend to Tokelau."

SYRIAN ARAB REPUBLIC

The instrument of accession of the Syrian Arab Republic contained the following declaration:

"Under no circumstances shall the accession of the Syrian Arab Republic to this Convention, as amended, imply recognition of Israel or occasion its entry with the latter into any of the transactions regulated by the provisions of the same, as amended."

IV. Amendments

(1) 2024 (Revised annex to the 1995 STCW-F Convention) amendments (MSC.561(108))

A. Adoption

The Maritime Safety Committee at its 108th session (May 2024) adopted, by resolution MSC.561(108)), in accordance with article 10.2.4 of the STCW-F 1995 Convention, amendments to the annex to the Convention.

B. Entry into force

In accordance with article 10.2.9 of the Convention, the amendments shall enter into force on 1 January 2026 unless, prior to 1 July 2025, more than one-third of Parties have notified their objections to the amendments. No such notification was received, the amendments entered int force on 1 January 2026.

(2) Standards of Training, Certification and Watchkeeping for Fishing Vessel Personnel Code (STCW-F Code) (MSC.562(108))

A. Adoption

The Maritime Safety Committee at its 108th session (May 2024) adopted, by resolution MSC.562(108), the STCW-F Code, which includes part A on Mandatory standards regarding provisions of the annex to the 1995 STCW-F Convention, and part B on Recommended guidance regarding provisions of the annex to the 1995 STCW-F Convention..

B. Entry into force

In accordance with article 10.2.9 of the Convention, the provisions of part A of the STCW-F Code shall enter into force on 1 January 2026 unless, prior to 1 July 2025, more than one-third of Parties have notified their objections to the amendments. No such notification was received, the amendments entered int force on 1 January 2026.

INTERNATIONAL CONVENTION ON MARITIME SEARCH AND RESCUE, 1979, AS AMENDED (SAR 1979)

Done at Hamburg, 27 April 1979

Entry into force: 22 June 1985

Signature, ratification, acceptance, approval and accession

Article IV

(1) The Convention shall remain open for signature at the Headquarters of the Organization from 1 November 1979 until 31 October 1980 and shall thereafter remain open for accession. States may become Parties to the Convention by:

(a) signature without reservation as to ratification, acceptance or approval; or

(b) signature subject to ratification, acceptance or approval, followed by ratification, acceptance or approval; or

(c) accession.

(2) Ratification, acceptance, approval or accession shall be effected by the deposit of an instrument to that effect with the Secretary-General.

...

Entry into force

Article V

(1) The Convention shall enter into force 12 months after the date on which 15 States have become Parties to it in accordance with article IV.

(2) Entry into force for States which ratify, accept, approve or accede to the Convention in accordance with article IV after the condition prescribed in paragraph (1) has been met and before the Convention enters into force, shall be on the date of entry into force of the Convention.

(3) Entry into force for States which ratify, accept, approve or accede to the Convention after the date on which the Convention enters into force shall be 30 days after the date of deposit of an instrument in accordance with article IV.

...

I. Signatories

II. Contracting States

III. Declarations, Reservations and Statements

IV. Amendments

I. Signatories

Chile	Ad referendum
China	Subject to approval
Denmark	Subject to ratification
France	Sans réserve quant à l'approbation
Germany, Federal Republic of	Subject to ratification
Greece	Subject to ratification[1]
Netherlands	Subject to acceptance
Norway	Subject to ratification
Poland	Subject to ratification
Switzerland	Sous réservation de la ratification
Türkiye	Subject to ratification
USSR	Subject to subsequent ratification
United Kingdom	With declaration[1]
United States	Subject to ratification

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[1] For the text of a reservation or declaration, see section III.

II. Contracting States

	Date of signature or deposit of instrument	Date of entry into force
Albania (accession)	19 June 2003	19 July 2003
Algeria (accession)	5 January 1983	22 June 1985
Angola (accession)	4 October 2001	3 November 2001
Antigua and Barbuda (accession)	20 August 2010	19 September 2010
Argentina (accession)	18 May 1981	22 June 1985
Australia (accession)[1]	7 November 1983	22 June 1985
Bahrain (accession)	2 March 2016	1 April 2016
Bangladesh (accession)	8 August 2011	7 September 2011
Barbados (accession)	25 July 1983	22 June 1985
Belgium (accession)	28 February 1985	22 June 1985
Benin (accession)	8 February 2017	10 March 2017
Brazil (accession)	22 September 1982	22 June 1985
Bulgaria (accession)	8 July 1999	7 August 1999
Cameroon (accession)	9 January 1987	8 February 1987
Canada (accession)	18 June 1982	22 June 1985
Cabo Verde (accession)	4 July 2003	3 August 2003
Chile[1] (ratification)	7 October 1981	22 June 1985
China (approval)[1, 3]	24 June 1985	24 July 1985
Colombia (accession)[1]	10 July 2001	9 August 2001
Congo (accession)	7 August 2002	6 September 2002
Cook Islands (accession)	14 July 2008	13 August 2008
Costa Rica (accession)	7 January 2019	6 February 2019
Côte d'Ivoire (accession)	5 October 1987	4 November 1987
Croatia (accession)	12 January 1998	11 February 1998
Cuba (accession)	16 July 1998	15 August 1998
Cyprus (accession)[1]	29 July 1994	28 August 1994
Denmark (ratification)	21 June 1984	22 June 1985
Djibouti (accession)	12 October 2015	11 November 2015
Dominica (accession)	31 August 2001	30 September 2001
Ecuador (accession)	17 May 1988	16 June 1988
Estonia (accession)	30 April 2001	30 May 2001
Finland (accession)	6 November 1986	6 December 1986
France (signature)	9 April 1980	22 June 1985
Gabon (accession)	9 May 2017	8 June 2017
Gambia (accession)	1 November 1991	1 December 1991
Georgia (accession)	25 August 1995	24 September 1995
Germany (ratification)[1, 4]	21 January 1982	22 June 1985
Ghana (accession)	13 January 2011	12 February 2011
Greece (ratification)[1]	4 September 1989	4 October 1989
Guatemala	14 July 2022	13 August 2022
Guinea-Bissau (accession)	24 October 2016	23 November 2016
Honduras (accession)	23 November 2012	23 December 2012

Hungary (accession)	27 January 2000	26 February 2000
Iceland (accession)	21 March 1995	20 April 1995
India (accession)	17 April 2001	17 May 2001
Indonesia (accession)	24 August 2012	23 September 2012
Iran (Islamic Republic of) (accession)	26 September 1995	26 October 1995
Iraq (accession)	6 March 2024	5 April 2024
Ireland (accession)	1 November 1993	1 December 1993
Italy (accession)	2 June 1989	2 July 1989
Jamaica (accession)	10 June 1988	10 July 1988
Japan (accession)	10 June 1985	22 June 1985
Jordan (accession)	2 June 2006	2 July 2006
Kenya (accession)	15 December 1992	14 January 1993
Kiribati (accession)	5 February 2007	7 March 2007
Latvia (accession)	30 November 1998	30 December 1998
Lebanon (accession)	15 April 2009	15 May 2009
Liberia (accession)	24 February 2009	26 March 2009
Libya (accession)	28 April 2005	28 May 2005
Lithuania (accession)	23 January 2001	22 February 2001
Luxembourg (accession)	14 February 1991	16 March 1991
Madagascar (accession)	27 July 2017	26 August 2017
Malta (accession)	24 September 2002	24 October 2002
Mauritius (accession)	4 May 1999	3 June 1999
Mexico (accession)	26 March 1986	25 April 1986
Monaco (accession)	19 November 1991	19 December 1991
Montenegro (succession)[7]	-	3 June 2006
Morocco (accession)	10 May 1999	9 June 1999
Mozambique (accession)	23 December 1996	22 January 1997
Namibia (accession)	12 March 2004	11 April 2004
Netherlands (acceptance)	8 July 1982	22 June 1985
New Zealand (accession)[5]	26 April 1985	22 June 1985
Nigeria (accession)	24 May 2002	23 June 2002
Niue (accession)	18 May 2012	17 June 2012
Norway (ratification)	9 December 1981	22 June 1985
Oman (accession)	17 May 1993	16 June 1993
Pakistan (accession)	11 November 1985	11 December 1985
Palau (accession)	29 September 2011	29 October 2011
Panama (accession)	20 June 2013	20 July 2013
Papua New Guinea (accession)	3 August 1992	2 September 1992
Peru (accession)	4 July 1988	3 August 1988
Poland (ratification)	26 February 1988	27 March 1988
Portugal (accession)	30 October 1985	29 November 1985
Qatar (accession)	20 October 2009	19 November 2009
Republic of Korea (accession)	4 September 1995	4 October 1995
Romania (accession)	19 March 1999	18 April 1999
Russian Federation (ratification)[1, 6]	25 March 1988	24 April 1988
Saint Kitts and Nevis (accession)	7 October 2004	6 November 2004
Saint Lucia (accession)	20 May 2004	19 June 2004
Samoa (accession)	18 May 2004	17 June 2004
Saudi Arabia (accession)	7 March 2006	6 April 2006
Senegal (accession)	24 March 1994	23 April 1994
Serbia (succession)[7]	-	3 June 2006
Seychelles (accession)	9 September 2010	9 October 2010
Singapore (accession)	20 January 1997	19 February 1997
Slovenia (accession)	31 May 2001	30 June 2001
Solomon Islands (accession)	27 November 2025	27 December 2025
Somalia (accession)	26 June 2026	26 July 2026
South Africa (accession)	25 August 1987	24 September 1987
Spain (accession)	11 February 1993	13 March 1993
Sweden (accession)	27 September 1982	22 June 1985
Syrian Arab Republic (accession)	18 June 2003	18 July 2003
Togo (accession)	23 April 2012	23 May 2012
Tonga (accession)	18 September 2003	18 October 2003
Trinidad and Tobago (accession)[1]	4 May 1989	3 June 1989
Tunisia (accession)	31 July 1998	30 August 1998
Türkiye (ratification)	21 November 1985	21 December 1985
Uganda (accession)	3 April 2019	3 May 2019
Ukraine (accession)	5 March 1993	4 April 1993
United Arab Emirates (accession)	4 October 1993	3 November 1993
United Kingdom (signature)[1, 2]	22 May 1980	22 June 1985
United Republic of Tanzania (accession)	16 May 2006	15 June 2006
United States (ratification)	12 August 1980	22 June 1985

Uruguay (accession)	15 December 1987	14 January 1988
Vanuatu (accession)	14 September 1992	14 October 1992
Venezuela (Bolivarian Republic of) (accession)	8 July 1986	7 August 1986
Viet Nam (accession)	16 March 2007	15 April 2007

Number of Contracting States: 117

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[1] For the text of a reservation, declaration or statement, see section III.

[Footnotes continued]

[Footnotes continued]

[2] The signature on behalf of the United Kingdom is in respect also of:

Anguilla
Bailiwick of Jersey
Bailiwick of Guernsey
Belize*
Bermuda
British Virgin Islands
Gibraltar
Hong Kong**
Isle of Man
St. Christopher-Nevis*

* Has since become an independent State to which the Convention applies provisionally.

** Ceased to apply to Hong Kong with effect from 1 July 1997.

[3] Applies to the ship Special Administrative Region with effect from 1 July 1997 and to the Macao Special Administrative Region with effect from 24 June 2005.

[4] On 3 October 1990 the German Democratic Republic acceded to the Federal Republic of Germany. The German Democratic Republic had acceded to the Convention on 22 April 1985.

[5] Accession by New Zealand was declared to apply also in the Cook Islands and Niue.

On 31 July, 2008, the depositary received the following communication from the New Zealand High Commission:

"The New Zealand High Commission ….. has the honour to refer to the Government of New Zealand's accession to the Convention, on 26 April 1985. On accession, New Zealand declared that its accession extended to the Cook Islands.

The Cook Islands is a self-governing State in a relationship of free association with New Zealand, and possesses in its own right the capacity to enter into treaties and other international agreements with governments and regional and international organisations. Accordingly, the Government of the Cook Islands has acceded to the Convention in its own right, with the effective date of accession of 13 August 2008.

The New Zealand High Commission therefore has the honour to present to the International Maritime Organization, as depositary for the Convention, New Zealand's declaration clarifying that, as of the effective date of the accession to the Convention by the Government of the Cook Islands, the Government of New Zealand regards the Government of the Cook Islands as having undertaken the obligations under the Convention in respect of the Cook Islands, and that the Government of New Zealand has ceased to have State responsibility for the observance of the obligations under the Convention in respect of the Cook Islands."

[6] As from 26 December 1991 the membership of the USSR in the Convention is continued by the Russian Federation.

[7] Following the dissolution of the State Union of Serbia and Montenegro on 3 June 2006, all Treaty actions undertaken by Serbia and Montenegro continue to be in force with respect to Republic of Serbia. Montenegro has informed that it wished to succeed to this treaty with effect from the same date, ie. 3 June 2006.

III. Declarations, Reservations and Statements

AUSTRALIA

The instrument of accession of the Commonwealth of Australia was accompanied by the following statement:

"Australia has a federal constitutional system in which legislative, executive and judicial powers are shared or distributed between the Commonwealth and the constituent States.

"The implementation of the Treaty throughout Australia will be effected by the Commonwealth, State and Territory authorities having regard to their respective constitutional powers and arrangements concerning their exercise."

CHILE

The depositary received the following communication dated 14 October 1983 from the Embassy of Chile in London outlining the position of the Government of Chile with regard to the services established in compliance with the International Convention on Maritime Search and Rescue, 1979:

[Translation]

"The Government of Chile states that the creation of the maritime search and rescue services and the delimitation of the corresponding regions must be carried out strictly in conformity with the standards set forth in paragraph 2.1.4 and 2.1.5 of chapter 2 of the Convention.

"The Government of Chile states further that, without prejudice to co-operation with the International Civil Aviation Organization to harmonize aeronautical and maritime search and rescue plans and procedures, as recommended in resolution 1 of the Conference, the Parties to the Convention have full and sovereign liberty to establish within their territory and the waters under their jurisdiction such maritime search and rescue regions as they consider best suited to their interests."

CHINA

The instrument of approval of the People's Republic of China contained the following declaration (in the English language):

"The delimitation of search and rescue regions, as stipulated in the Annex to the Convention 2.1.7, is not related to and shall not prejudice the delimitation of any boundary between States, either is not related to and shall not prejudice the delimitation of any exclusive economic zone and continental shelf between States."

COLOMBIA

The instrument of accession of the Republic of Colombia was accompanied by the following declaration:

[Translation]

"For the purposes of the said instrument, the Republic of Colombia will recognize as regions of search and rescue only those which are established in conformity with the standards established in paragraph 2.1.4 of SAR 79, that is by agreement between the interested Parties. Exceptionally, and for humanitarian reasons only, will the Republic of Colombia provisionally accept the application of other equivalent global means of search and rescue services, strictly subject to the standards established in paragraph 2.1.7 of SAR 79".

COSTA RICA

The instrument of accession of the Republic of Costa Rica contained the following declarations:

"1 The Government of the Republic of Costa Rica interprets, in relation to article III of the International Convention on Maritime Search and Rescue, 1979, that [future] amendments shall enter into

force for the country once they have been approved according to the procedures established in the Political Constitution of Costa Rica.

2 The Government of the Republic of Costa Rica interprets, in relation to chapter 3 “Co-operation” of the Annex to the International Convention on Maritime Search and Rescue, 1979, that such co-operation, in the case of warships in waters under the jurisdiction of Costa Rica, will take place subject to prior legislative authorization, as established in paragraph 5 of article 121 of the Political Constitution of Costa Rica.”

CYPRUS

The instrument of accession of the Republic of Cyprus contained the following reservation:

"As far as the Republic of Cyprus is concerned, the search and rescue region referred to in paragraphs 2.1.4 and 2.1.5 of the Annex to the present Convention, is the sea area which is included in the region of responsibility of the Republic of Cyprus, which has been delimited on the basis of the Convention on International Civil Aviation of 1944, including the Thirteen Protocols attached thereon from 1947 to 1984, and ratified by the subsequent law of the Republic of Cyprus No. 213 of 1988".

FEDERAL REPUBLIC OF GERMANY [1]

The instrument of ratification of the Federal Republic of Germany was accompanied by the following declaration (in the German language):

[Translation]

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[1] The depositary received a communication dated 20 December 1982 from the Embassy of the Union of Soviet Socialist Republics. The communication, the full text of which was circulated by the depositary, includes the following:

[Translation]

"In accordance with the Quadripartite Agreement of 3 September 1971 (Annex IV AB, paragraph 2(b)) the Federal Republic of Germany has no right to extend to West Berlin international agreements and arrangements entered into by the Federal Republic of Germany affecting matters of security and status. The SAR Convention ... relate[s], as is seen from [its] contents, to just that sort of agreement.

"The said Convention[s] regulate[s] matters relating to the activities of States Parties within the limits of their jurisdiction or control.

"The SAR Convention provides for States Parties to make necessary arrangements for the provision of search and rescue services for persons in distress at sea "round their coasts", including the establishment of "a national machinery". Each State Party also undertakes to co-operate for these purposes with other States Parties "[in] or over its territorial sea or territory"....

"It is quite obvious that the Federal Republic of Germany cannot assume such obligations in respect of West Berlin because, as is known, West Berlin is not a constituent part of the Federal Republic of Germany and is not governed by it.

"Bearing in mind the above, the USSR considers the statement[s] made by the Government of the Federal Republic of Germany in depositing [an] Instrument[s] of Ratification to the Convention[s] extending [its] application to West Berlin as unlawful and void of legal force."

The depositary received the following communication dated 19 May 1983 from the Government of the United Kingdom:

"In a communication to the Government of the Union of Soviet Socialist Republics, which is an integral part (Annex IVA) of the Quadripartite Agreement of 3 September 1971, the Governments of France, the United Kingdom and the United States, without prejudice to the maintenance of their rights and responsibilities relating to the representation abroad of the interests of the Western Sectors of Berlin, confirmed that, provided that matters of status and security are not affected and provided that the extension is specified in each case, international agreements and arrangements entered into by the Federal Republic of Germany may be extended to the Western Sectors of Berlin in accordance with established procedures. For its part, the Government of the Union of Soviet Socialist Republics, in a communication to the Governments of the Three Powers which is similarly an integral part (Annex IVB) of the Quadripartite Agreement, affirmed that it would raise no objections to such extension.

"The established procedures referred to above, which were endorsed in the Quadripartite Agreement, are designed *inter alia* to afford the authorities of the Three Powers the opportunity to ensure that international agreements and arrangements entered into by the Federal Republic of Germany which are to be extended to the Western Sectors of Berlin are extended in such a way that matters of status and security are not affected.

"When authorizing the extension of ... the International Convention on Maritime Search and Rescue, 1979, to the Western Sectors of Berlin, the authorities of the Three Powers took such steps as were necessary to ensure that matters of security and status were not affected. Accordingly, the validity of the Berlin declaration made by the Federal Republic of Germany in accordance with established procedures is unaffected and the application of ... the International Convention on Maritime Search and Rescue to the Western Sectors of Berlin continues in full force and effect."

The depositary received a communication dated 3 June 1983 from the Embassy of the Federal Republic of Germany stating:

"By its note of 19 May 1983 ... the Government of the United Kingdom answered the assertions made in the [communication dated 20 December 1982 from the Embassy of the Union of Soviet Socialist Republics in the United Kingdom].

"The Government of the Federal Republic of Germany, on the basis of the legal situation set out in the note of 19 May 1983 wished to confirm that the application to Berlin (West) of the ... [Convention] extended by it under the established procedures continues in full force and effect.

"The Government of the Federal Republic of Germany wished to point out that the absence of a response to further communications of a similar nature should not be taken to imply any change of its position in this matter."

"...that the said Convention shall also apply to Berlin (West) with effect from the date on which the Convention enters into force for the Federal Republic of Germany."

GREECE[2]

The following reservation was made at the time of signature of the Convention and was contained in the instrument of ratification:

"Region of responsibility: As far as Greece is concerned, the search and rescue region referred to in paragraph 2.1.4 and 2.1.5 of the Annex to the present Convention is the region within which Greece has already assumed the responsibility for search and rescue purposes, established in accordance with the relevant Chicago Convention on International Civil Aviation of 7 December 1944, the regional air navigation plans of the International Civil Aviation Organization (ICAO) and the regulation 15 of Chapter V of the International Convention for Safety of Life at Sea of 17 June 1960 (SOLAS 1960).

"Such region, which constitutes the most appropriate arrangement in the sense of paragraph 2.1.5 of the Annex to that Convention, was notified to the International Maritime Organization by document No.44/7.1.1975 of the Greek Ministry of Merchant Marine, and Greece has been continuously carrying out within it search and rescue operations."

TRINIDAD AND TOBAGO

The instrument of accession of the Republic of Trinidad and Tobago contained the following declaration:

"The Republic of Trinidad and Tobago declares that the delimitation of maritime search and rescue regions pursuant to the provisional Caribbean Maritime Search and Rescue Plan is not related to and does not prejudice in any way the delimitation of maritime boundaries between Trinidad and Tobago and other States."

USSR

The instrument of ratification of the Union of Soviet Socialist Republics contained the following statement (in the Russian language):

[Translation]

"Search and rescue operations in and over the territorial waters (the territorial sea), the inland waters, the land territory of the USSR are performed as a rule by the Soviet rescue units. In exceptional cases entry of the foreign rescue units into and over the Soviet territorial waters (territorial sea), the inland waters and the land territory of the USSR for the purpose of searching and rescuing of the survivors of maritime casualties is performed in accordance with the procedures provided under the laws and regulations of the USSR unless otherwise is provided for by the treaties of the USSR".

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[2] The depositary received the following communication, dated 13 November 1989, from the Turkish Embassy in London:

"With reference to the IMO document SAR/Circ.41, regarding the ratification of the International Convention on Maritime Search and Rescue, 1979, by the Government of Greece, I am writing to inform you that the Government of Türkiye would like to record its formal objection to the reservation made by the Government of Greece on 4 September 1989 at the time of the ratification of the International Convention on Maritime Search and Rescue, 1979.

"Paragraphs 2.1.4 and 2.1.5 of the Annex to the Convention clearly stipulate that regions shall be established by agreement and cannot be established unilaterally.

"On the other hand, Search and Rescue regions established in accordance with the Chicago Convention on International Civil Aviation of 7 December 1944, as referred by Greece, pertains exclusively to the SAR services regarding air navigation and as such remains outside the scope of and does not prejudice the Annex to the International Convention on Maritime Search and Rescue 1979.

"In view of the above, the Government of Türkiye considers that the Greek reservation is incompatible with the object and purpose of the Convention and cannot be construed as a reservation under the international law."

A similar communication dated 30 December 1980 from the Ambassador of Türkiye in London was received by the depositary recording "the formal objection" of the Government of Türkiye to the same reservation made by the Government of Greece at the time of the signature of the Convention.

UNITED KINGDOM

The following declaration was made at the time of signature of the Convention:

"... that the Convention will not enter into force for Gibraltar until 30 days after the date on which the Government of the United Kingdom notifies the Secretary-General of the Inter-Governmental Maritime Consultative Organization that the measures required to implement the provisions of the Convention in Gibraltar have been taken".

IV. Amendments

1998 (revised Annex) Amendments (MSC.70(69))

A. Adoption

The Maritime Safety Committee at its sixty-ninth session (May 1998) adopted by resolution MSC.70(69), in accordance with article III of the Convention, amendments to revise the Annex to the Convention.

B. Entry into force

In accordance with article III(2)(h) of the Convention, and as determined by the Maritime Safety Committee, the amendments shall enter into force on 1 January 2000 unless, prior to 1 July 1999, more than one-third of the Parties to the Convention have notified their objections to the amendments. As at 1 July 1999 one objection[1] had been communicated to the Secretary-General and the amendments accordingly entered into force on 1 January 2000.

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[1] The depositary received, on 7 June 1999 the following communication from the Embassy of Finland:

"… the Embassy of Finland hereby inform that the Government of Finland is not able to accept the aforementioned amendments due to the fact that the amendments contradict, to some extent, with national laws and regulations in force and therefore Parliamentary procedure is required.

The Embassy have, however, the honour to inform the Secretary-General that the Government of Finland intends to accept the amendments as soon as the legislative amendments necessary to such acceptance have been carried out. The Government of Finland intends, at this stage, to be able to withdraw its objection during the six-month period after the date on which the amendment is deemed to have been accepted, i.e. by 1 January 2000. "

On 14 December 2001, the depositary received a further communication from the Embassy of Finland, as follows:

"The Government of Finland has now the honour to inform that the necessary legislative procedure has been carried out and the aforementioned amendments have been accepted by the Government on 30 November 2001. The relevant legislation in Finland will enter into force on 1 February 2002. The Government of Finland is thus now in a position to withdraw its objection as of 1 February 2002".

2004 (Chapters II, III and IV) Amendments (MSC.155(78))

A. Adoption

The Maritime Safety Committee, at its seventy-eighth session (May 2004) adopted, by resolution MSC.155(78), in accordance with article III of the Convention, amendments to Chapters II, III and IV of the Convention.

B. Entry into force

In accordance with article III(2)(b) of the Convention, and as determined by the Maritime Safety Committee, the amendments shall enter into force on 1 July 2006 unless, prior to 1 January 2006, more than one-third of the Parties to the Convention have notified their objections to the amendments. As at 31 December 2005, two objections[1] had been communicated to the Secretary-General and the amendments accordingly entered into force on 1 July 2006.

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[2] The depositary received, on 22 December 2005, the following communication from the Ministry of Foreign Affairs of Malta:

"… the Ministry wished to inform that, after careful consideration of the said amendments, in accordance with article III(2)(f) of this Convention, the Government of Malta, as a Contracting Party to the said Convention, declares that it is not yet in a position to accept these amendments."

The depositary received, on 23 December 2005, the following communication from the Royal Norwegian Embassy:

> "… Acting under instructions from the Norwegian Government, the Embassy regrets having to inform the Secretary-General that Norway has not completed the internal procedures necessary for formal acceptance of the said amendments prior to the tacit acceptance deadline of 1 January 2006. The issue is now before the Parliament, and a final decision is expected towards the end of January 2006. The Secretary-General will immediately be informed of the decision of the Parliament."

The depositary received, on 5 July 2006, a communication from the Embassy of Norway withdrawing its objection to these amendments. The amendments therefore entered into force for Norway on 5 July 2006.

CONVENTION FOR THE SUPPRESSION OF UNLAWFUL ACTS AGAINST THE SAFETY OF MARITIME NAVIGATION (SUA [1988])

Done at Rome, 10 March 1988

Entry into force: 1 March 1992

Signature, ratification, acceptance, approval, accession

Article 17

1 This Convention shall be open for signature at Rome on 10 March 1988 by States participating in the International Conference on the Suppression of Unlawful Acts against the Safety of Maritime Navigation and at the Headquarters of the Organization by all States from 14 March 1988 to 9 March 1989. It shall thereafter remain open for accession.

2 States may express their consent to be bound by this Convention by:

(a) signature without reservation as to ratification, acceptance or approval; or

(b) signature subject to ratification, acceptance or approval, followed by ratification, acceptance or approval; or

(c) accession.

3 Ratification, acceptance, approval or accession shall be effected by the deposit of an instrument to that effect with the Secretary-General.

Entry into force

Article 18

1 This Convention shall enter into force ninety days following the date on which fifteen States have either signed it without reservation as to ratification, acceptance or approval, or have deposited an instrument of ratification, acceptance, approval or accession in respect thereof.

2 For a State which deposits an instrument of ratification, acceptance, approval or accession in respect of this Convention after the conditions for entry into force thereof have been met, the ratification, acceptance, approval or accession shall take effect ninety days after the date of such deposit.

I. Signatories

II. Contracting States

III. Declarations, Reservations and Statements

IV. Notifications

I. Signatories

Argentina	Bajo reserva de ratificación
Austria	Subject to ratification
Bahamas	Subject to ratification
Belgium	Sous réserve de ratification
Brazil	Subject to ratification
Brunei Darussalam	Subject to ratification
Bulgaria	Subject to ratification
Byelorussian SSR	[*Translation*] With the following reservation: In compliance with article 17, paragraph 2(b) of the Convention on the Suppression of Unlawful Acts against the Safety of Maritime Navigation of 10 March 1988, this Convention enters into force for the Byelorussian SSR after its ratification by the competent authorities of the Byelorussian Soviet Socialist Republic.
Canada	Subject to ratification
Chile	Sujeto a ratificación Sujeto a reserva[1]
China	Subject to ratification[1]
Costa Rica	Ad referendum
Czechia	Subject to ratification
Denmark	Subject to ratification or acceptance
Ecuador	Subject to ratification
Egypt	Subject to ratification
Finland	Subject to ratification
France	Sous réserve d'approbation
Greece	Subject to ratification
Hungary	Subject to ratification
Iraq	Subject to ratification[1]
Israel	Subject to ratification
Italy	Subject to ratification
Jordan	[*Translation*] Subject to ratification
Liberia	Subject to ratification
Morocco	Sous réserve de ratification
Netherlands	Subject to acceptance
New Zealand	Subject to ratification
Nigeria	Subject to ratification
Norway	Subject to ratification
Philippines	Subject to ratification by the Congress of the Philippines
Poland	Subject to ratification
Saudi Arabia	[*Translation*] Subject to ratification
Seychelles	Subject to ratification
Spain	A reserva de ratificación
Sweden	Subject to ratification
Switzerland	Sous réserve de ratification
Türkiye	The Government of the Republic of Türkiye signs the Convention subject to ratification and with reservation to the effect that it does not consider itself bound by all of the provisions of article 16 paragraph (1)
Ukrainian SSR	[*Translation*] With the following reservation: In compliance with article 17, paragraph 2(b) of the Convention on the Suppression of Unlawful Acts against the Safety of Maritime Navigation of 10 March 1988, this Convention enters into force for the Ukrainian SSR after its ratification by the competent authorities of the Ukrainian Soviet Socialist Republic
USSR	[*Translation*] With the following reservation: In compliance with article 17, paragraph 2(b) of the Convention on the Suppression of Unlawful Acts against the Safety of Maritime Navigation of 10 March 1988, this Convention enters into force for the USSR after its ratification by the competent authorities of the Union of Soviet Socialist Republics
United Kingdom	Subject to ratification
United States	Subject to ratification

[1] For the text of a reservation or statement, see section III.

II. Contracting States

	Date of deposit of instrument	Date of entry into force
Afghanistan (accession)	23 September 2003	22 December 2003
Albania (accession)	19 June 2002	17 September 2002
Algeria (accession)[1]	11 February 1998	12 May 1998
Andorra (accession)[1]	17 July 2006	15 October 2006
Antigua and Barbuda (accession)	12 October 2009	10 January 2010
Argentina (ratification)[1]	17 August 1993	15 November 1993
Armenia (accession)[1]	8 June 2005	6 September 2005
Australia (accession)	19 February 1993	20 May 1993
Austria (ratification)	28 December 1989	1 March 1992
Azerbaijan (accession)[1]	26 January 2004	25 April 2004
Bahamas (accession)	25 October 2005	23 January 2006
Bahrain (accession)	21 October 2005	19 January 2006
Bangladesh (accession)	9 June 2005	7 September 2005
Barbados (accession)	6 May 1994	4 August 1994
Belarus (accession)	4 December 2002	4 March 2003
Belgium (accession)	11 April 2005	10 July 2005
Benin (accession)	31 August 2006	29 November 2006
Bolivia (Plurinational State of) (accession)	13 February 2002	14 May 2002
Bosnia and Herzegovina (accession)	28 July 2003	26 October 2003
Botswana (accession)	14 September 2000	13 December 2000
Brazil (ratification)[1]	25 October 2005	23 January 2006
Brunei Darussalam (ratification)	4 December 2003	3 March 2004
Bulgaria (ratification)	8 July 1999	6 October 1999
Burkina Faso (accession)	15 January 2004	14 April 2004
Cambodia (accession)	18 August 2006	16 November 2006
Canada (ratification)[2]	18 June 1993	16 September 1993
Cabo Verde (accession)	3 January 2003	3 April 2003
Chile (ratification)	22 April 1994	21 July 1994
China (ratification)[1,6]	20 August 1991	1 March 1992
Comoros (accession)	6 March 2008	4 June 2008
Congo (accession)	28 May 2015	26 August 2015
Cook Islands (accession)	12 March 2007	10 June 2007
Costa Rica (ratification)	25 March 2003	23 June 2003
Côte d'Ivoire (accession)	23 March 2012	21 June 2012
Croatia (accession)	18 August 2005	16 November 2005
Cuba (accession)[1]	20 November 2001	18 February 2002
Cyprus (accession)	2 February 2000	2 May 2000
Czechia (accession)	10 December 2004	10 March 2005
Denmark (ratification)[1]	25 August 1995	23 November 1995
Djibouti (accession)	9 June 2004	7 September 2004
Dominica (accession)	31 August 2001	29 November 2001
Dominican Republic (accession)	3 July 2008-	1 October 2008
Ecuador (accession)	10 March 2003	8 June 2003
Egypt (ratification)[1]	8 January 1993	8 April 1993
El Salvador (accession)	7 December 2000	7 March 2001
Equatorial Guinea (accession)	15 January 2004	14 April 2004
Estonia (accession)	15 February 2002	16 May 2002
Eswatini* (accession)	17 April 2003	16 July 2003
Ethiopia (accession)	29 July 2013	27 October 2013
Fiji (accession)	21 May 2008	19 August 2008
Finland (ratification)	12 November 1998	10 February 1999
France (approval)[1]	2 December 1991	1 March 1992
Gambia (accession)	1 November 1991	1 March 1992
Georgia (accession)	11 August 2006	9 November 2006
Germany[3] (accession)	6 November 1990	1 March 1992
Ghana (accession)	1 November 2002	30 January 2003
Greece (ratification)	11 June 1993	9 September 1993
Grenada (accession)	9 January 2002	9 April 2002
Guatemala (accession)	26 August 2009	24 November 2009
Guinea (accession)	1 February 2005	2 May 2005
Guinea Bissau (accession)	14 October 2008	12 January 2009
Guyana (accession)	2 January 2003	2 April 2003

* former Swaziland (communication of change of name received in June 2018)

Honduras (accession)	17 May 2005	15 August 2005
Hungary (ratification)	9 November 1989	1 March 1992
Iceland (accession)	28 May 2002	26 August 2002
India (accession)[2]	15 October 1999	13 January 2000
Iran (Islamic Republic of)(accession) 1	30 October 2009	28 January 2010
Iraq (accession)	21 March 2014	19 June 2014
Ireland (accession)	10 September 2004	9 December 2004
Israel (ratification)[1]	6 January 2009	6 April 2009
Italy (ratification)	26 January 1990	1 March 1992
Jamaica (accession)[2]	17 August 2005	15 November 2005
Japan (accession)	24 April 1998	23 July 1998
Jordan (accession)	2 July 2004	30 September 2004
Kazakhstan (accession)	24 November 2003	22 February 2004
Kenya (accession)	21 January 2002	21 April 2002
Kiribati (accession)	17 November 2005	16 February 2006
Kuwait (accession)	30 June 2003	28 September 2003
Lao People's Democratic Republic (accession)	20 March 2012	18 June 2012
Latvia (accession)	4 December 2002	4 March 2003
Lebanon (accession)	16 December 1994	16 March 1995
Lesotho (accession)	7 November 2011	5 February 2012
Liberia (ratification)	5 October 1995	3 January 1996
Libya (accession)	8 August 2002	6 November 2002
Liechtenstein (accession)	8 November 2002	6 February 2003
Lithuania (accession)	30 January 2003	30 April 2003
Luxembourg (accession)	5 January 2011	5 April 2011
Madagascar (accession)	15 September 2006	14 December 2006
Malawi (accession)	10 January 2014	10 April 2014
Maldives (accession)	25 February 2014	26 May 2014
Mali (accession)	29 April 2002	28 July 2002
Malta (accession)	20 November 2001	18 February 2002
Marshall Islands (accession)	29 November 1994	27 February 1995
Mauritania (accession)	17 January 2008	16 April 2008
Mauritius (accession)	3 August 2004	1 November 2004
Mexico (accession)[1]	13 May 1994	11 August 1994
Micronesia (Federated States of) (accession)	10 February 2003	11 May 2003
Moldova (accession)[1]	11 October 2005	9 January 2006
Monaco (accession)	25 January 2002	25 April 2002
Mongolia (accession)	22 November 2005	20 February 2006
Montenegro (succession)[7]	-	3 June 2006
Morocco (ratification)	8 January 2002	8 April 2002
Mozambique (accession)[1]	8 January 2003	8 April 2003
Myanmar (accession)[1]	19 September 2003	18 December 2003
Namibia (accession)	10 July 2004	18 October 2004
Nauru (accession)	11 August 2005	9 November 2005
Netherlands (acceptance)[5]	5 March 1992	3 June 1992
New Zealand (ratification)	10 June 1999	8 September 1999
Nicaragua (accession)	4 July 2007	2 October 2007
Niger (accession)	30 August 2006	28 November 2006
Nigeria (ratification)	24 February 2004	24 May 2004
Niue (accession)	22 June 2009	20 September 2009
North Macedonia (accession)[8]	7 August 2007	5 November 2007
Norway (ratification)	18 April 1991	1 March 1992
Oman (accession)	24 September 1990	1 March 1992
Pakistan (accession)	20 September 2000	19 December 2000
Palau (accession)	4 December 2001	4 March 2002
Panama (accession)	3 July 2002	1 October 2002
Paraguay (accession)[2]	12 November 2004	10 February 2005
Peru (accession)	19 July 2001	17 October 2001
Philippines (ratification)	6 January 2004	5 April 2004
Poland (ratification)	25 June 1991	1 March 1992
Portugal (accession)[1]	5 January 1996	4 April 1996
Qatar (accession)	18 September 2003	17 December 2003
Republic of Korea (accession)	14 May 2003	12 August 2003
Romania (accession)	2 June 1993	31 August 1993
Russian Federation (ratification)[1]	4 May 2001	2 August 2001
Saint Kitts and Nevis (accession)	17 January 2002	17 April 2002
Saint Lucia (accession)	20 May 2004	18 August 2004
Saint Vincent and the Grenadines (accession)	9 October 2001	7 January 2002
Samoa (accession)	18 May 2004	16 August 2004
San Marino (accession)	15 December 2014	15 March 2015
Sao Tome and Principe (accession)	5 May 2006	3 August 2006

Saudi Arabia (accession)[1]	2 February 2006	3 May 2006
Senegal (accession)	9 August 2004	7 November 2004
Serbia (succession)[7]	-	3 June 2006
Seychelles (ratification)	24 January 1989	1 March 1992
Singapore (accession)	3 February 2004	3 May 2004
Slovakia (accession)	8 December 2000	8 March 2001
Slovenia (accession)	18 July 2003	16 October 2003
Somalia (accession)	26 June 2026	24 September 2026
South Africa (accession)	8 July 2005	6 October 2005
Spain (ratification)	7 July 1989	1 March 1992
Sri Lanka (accession)	4 September 2000	3 December 2000
Sudan (accession)	22 May 2000	20 August 2000
Sweden (ratification)	13 September 1990	1 March 1992
Switzerland (ratification)	12 March 1993	10 June 1993
Syrian Arab Republic (accession)	24 March 2003	22 June 2003
Tajikistan (accession)	12 August 2005	10 November 2005
Togo (accession)	10 March 2003	8 June 2003
Tonga (accession)	6 December 2002	6 March 2003
Trinidad and Tobago (accession)	27 July 1989	1 March 1992
Tunisia (accession)[1]	6 March 1998	4 June 1998
Türkiye (ratification)[1]	6 March 1998	4 June 1998
Turkmenistan (accession)	8 June 1999	6 September 1999
Tuvalu (accession)	2 December 2005	2 March 2006
Uganda (accession)	11 November 2003	9 February 2004
Ukraine (ratification)	21 April 1994	20 July 1994
United Arab Emirates (accession)[1]	15 September 2005	14 December 2005
United Kingdom (ratification)[1,4]	3 May 1991	1 March 1992
United Republic of Tanzania (accession)	11 May 2005	9 August 2005
United States (ratification)	6 December 1994	6 March 1995
Uruguay (accession)	10 August 2001	8 November 2001
Uzbekistan (accession)	25 September 2000	24 December 2000
Vanuatu (accession)	18 February 1999	19 May 1999
Viet Nam (accession)	12 July 2002	10 October 2002
Yemen (accession)	30 June 2000	28 September 2000

Number of Contracting States: 167

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[1] For the text of a reservation, declaration or statement, see section III.

[2] With a notification under article 6, see section IV.

[3] On 3 October 1990 the German Democratic Republic acceded to the Federal Republic of Germany. The German Democratic Republic had acceded* to the Convention on 14 April 1989.

* For the text of a reservation, see section III.

[4] The United Kingdom declared its ratification to be effective also in respect of the Isle of Man from 8 February 1999 and in respect of Jersey from 17 October 2014.

[5] Extended to Aruba by the Netherlands with effect from 15 December 2004. Also extended to Bonaire, Sint Eustatius and Saba (Caribbean part of the Netherlands) with effect from 10 October 2010. Since that date, the Kingdom of the Netherlands consists of four autonomous countries: The Netherlands (European part and Caribbean part), Aruba, Curaçao and Sint Maarten. For more details see footnote 4, in section II of SOLAS 1974.

[6] China extended the Convention to the Hong Kong Administrative Region from 20 February 2006, and to the Macau Special Administrative Region with effect from 2 April 2020.

[7] Following the dissolution of the State Union of Serbia and Montenegro on 3 June 2006, all Treaty actions undertaken by Serbia and Montenegro continue to be in force with respect to Republic of Serbia. Montenegro has informed that it wished to succeed to this treaty with effect from the same date, ie. 3 June 2006.

[8] Previous name “The former Yugoslav Republic of Macedonia” (as per communication received in February 2019).

III. Declarations, Reservations and Statements

ALGERIA

The instrument of accession of the People's Democratic Republic of Algeria was accompanied by the following reservation:

[Translation]

"The Government of the People's Democratic Republic of Algeria does not consider itself bound by the provisions of article 16, paragraph 1 of the Convention for the Suppression of Unlawful Acts Against the Safety of Maritime Navigation concluded in Rome on 10 March 1988. The Government of the People's Democratic Republic of Algeria declares that for a dispute to be submitted to arbitration or to the International Court of Justice, the agreement of all the parties involved shall be necessary in each case."

ANDORRA

The instrument of accession of Andorra contained the following declaration:

[Translation]

“Andorra is a landlocked State and, at the time of its accession to the Convention and the Protocol, has no official ships registered. However, in accordance with the Traffic Code of 10 June 1999, individuals of Andorran nationality and foreigners residing legally in the country may have their sports vessels entered in a register established by the Government of Andorra.

In this context, Andorra reserves the right recognized in the United Nations Convention on the Law of the Sea, in particular article 125, to request transit States (the Kingdom of Spain and the Republic of France) for right of access to and from the sea, and freedom of transit through their territories for that purpose.

We, the Co-princes, having read and considered the above-mentioned Convention and Protocol, hereby express the consent of the State to be bound by the provisions contained therein, and to that end we command issuance of this instrument of accession, signed by us and countersigned by the Head of the Government.”

ARGENTINA

The instrument of ratification of the Argentine Republic contained the following reservation:

[*Translation*]

"The Argentine Republic declares, in accordance with the provisions of article 16, paragraph 2, of the Convention, that it shall not be bound by any of the provisions of paragraph 1 of that article."

ARMENIA

The instrument of accession of the Republic of Armenia contained the following reservation:

"The Republic of Armenia declares that it does not consider itself bound by the 2nd sentence of Article 16, paragraph 1, of the Convention for the Suppression of Unlawful Acts against the Safety of Maritime Navigation."

AZERBAIJAN

The instrument of accession of the Republic of Azerbaijan contained the following reservation:

"In accordance with paragraph 2 of Article 16 of the Convention, the Republic of Azerbaijan declares that it does not consider itself bound by paragraph 1 of Article 16."

BRAZIL

The instrument of ratification of the Federative Republic of Brazil contained the following reservation:

"… with reservation to article 6, paragraph 2; article 8' and article 16, paragraph 1 of the Convention and to article 3, paragraph 2 of the Protocol."

CHILE

The following statement was made at the time of signature of the Convention:

[*Translation*]

"In connection with the provisions of article 4 of the present Convention, the Government of Chile shall not apply the provisions thereof to incidents that occur in its internal waters and in the waters of Magellan Strait."

CHINA

The following statement was made at the time of signature of the Convention:

[Translation]

"The People's Republic of China shall not be bound by paragraph 1 of article 16 of the said Convention."

This statement was reaffirmed in the instrument of ratification of the People's Republic of China.

CUBA

The instrument of accession by the Republic of Cuba contained the following reservation:

[Translation]

"The Republic of Cuba, in accordance with paragraph 2 of article 16, declares that it does not consider itself bound by the provisions of paragraph 1 of the aforesaid article, with respect to the settlement of disputes between States Parties, since it considers that such disputes should be settled by amicable agreement. Similarly, the Republic of Cuba reiterates that it does not recognize the compulsory jurisdiction of the International Court of Justice".

DENMARK

The instrument of ratification of the Kingdom of Denmark contained the following reservation:

[Translation]

"... with the qualification, however, that the Convention as well as the Protocol will not apply to the Faroes nor to Greenland, pending a further decision."

EGYPT

The instrument of ratification of the Arab Republic of Egypt was accompanied by the following reservations:

[Translation]

"1. A reservation is made to article 16 on the peaceful settlement of disputes because it provides for the binding jurisdiction of the International Court of Justice, and also with regard to the application of the Convention to seagoing ships in internal waters which are scheduled to navigate beyond territorial waters.

2. A reservation is made to article 6, paragraph 2, of the Convention and article 3, paragraph 2, of the Protocol because those articles permit the optional jurisdiction of blackmailed States (which are

asked by the perpetrator of an act of terrorism to do or abstain from doing any act).

This is in compliance with the provision of paragraph 4 of each of the two articles."

FRANCE

The instrument of approval of the French Republic contained the following declarations:

[Translation]

"1. As far as article 3, paragraph 2, is concerned the French Republic understands by "tentative", "incitation", "complicité" and "menace", la tenative, l'incitation, la complicité and la menace as defined in the conditions envisaged by French criminal law.

2. The French Republic does not consider itself bound by the provisions of article 16, paragraph 1, according to which: "Any dispute between two or more States Parties concerning the interpretation or application of this Convention which cannot be settled through negotiation within a reasonable time shall, at the request of one of them, be submitted to arbitration. If, within six months from the date of the request for arbitration, the parties are unable to agree on the organization of the arbitration any one of those parties may refer the dispute to the International Court of Justice by request in conformity with the Statute of the Court".

THE FEDERAL REPUBLIC OF GERMANY

The instrument of accession of the Federal Republic of Germany was accompanied by the following reservation in the German language:

[Translation]

"In accordance with article 16, paragraph 2, of the Convention the Federal Republic of Germany declares that it does not consider itself bound by article 16, paragraph 1, of the Convention."

INDIA

The instrument of accession of the Republic of India contained the following reservation:

"In accordance with article 16(2) of the Convention for the Suppression of Unlawful Acts Against the Safety of Maritime Navigation, 1988, the Government of the Republic of India hereby declares that it does not consider itself bound by the provisions of article 16(1)."

IRAN (ISLAMIC REPUBLIC OF)

The instrument of accession by the Islamic Republic of Iran contained the following reservations:

“Pursuant to Article 16, paragraph 2 of the Convention for the Suppression of Unlawful Acts against the Safety of Maritime Navigation, the Government of the Islamic Republic of Iran declares that it does not consider itself bound by the provisions of Article 16, paragraph 1 of the Convention. The Government of the Islamic Republic of Iran affirms that the consent of all parties to such a dispute is necessary in each individual case, for the submission of the dispute to arbitration or to the International Court of Justice. The Government of the Islamic Republic of Iran can, if it deems appropriate, agree with the submission of the dispute to arbitration in accordance with the Constitution of the Islamic Republic of Iran and related domestic Law.

With regard to Article 11, paragraph 4, the Islamic Republic of Iran considers that the extradition would be applicable only to the State Party within the territorial jurisdiction of which the crime has occurred. In the case where an extradition agreement exists between the requesting State and the State in which the crime has occurred, the agreement shall be applied.”

IRAQ

The following reservation was made at the time of signature of the convention:

[Translation]

"This signature does not in any way imply recognition of Israel or entry into any relationship with it."

The depositary received, on 11 February 2019, the following additional reservation[1]:

" Pursuant to Article 16, paragraph 2 of the Convention for the Suppression of Unlawful Acts against the Safety of Maritime Navigation (SUA 1988), the Government of the Republic of Iraq states that it does not consider itself bound by the provisions of Article 16, paragraph 1 of the Convention."

[1] The depositary received, on 6 January 2020, communications from the Republic of Austria and the Federal Republic of Germany containing objections to the reservation made by the Republic of Iraq (circular SUA.1/Circ.92). The depositary further received communications from the Republic of Finland, on 7 February 2020, from the Kingdom of the Netherlands, from the Portuguese Republic on 10 February 2020, and from Romania on 11 February 2020, containing objections to the reservation made by the Republic of Iraq (circular SUA.1/Circ.93). The Secretary-General, having received at least one validly submitted objection to the reservation made by the Republic of Iraq, has not accepted the reservation in deposit (circular SUA.1/Circ.94).

ISRAEL

The instrument of ratification by Israel contained the following reservation:

"Pursuant to Article 16, paragraph 2 of the Convention for the Suppression of Unlawful Acts against the Safety of Maritime Navigation, the Government of Israel declares that it does not consider itself bound by the provisions of Article 16, paragraph 1 of the Convention."

The instrument of ratification by Israel also contained the following statement:

"The Government of the State of Israel has noted that the reservation made upon the signature of Iraq of the aforementioned Convention contains a statement with respect to the State of Israel.

The Government of the State of Israel considers that such a statement, which is explicitly of a political nature, is incompatible with the purposes and objectives of the Convention.

The Government of the State of Israel, therefore, objects to the aforesaid statement made by Iraq."

MEXICO

The instrument of accession of the United Mexican States contained the following reservation:

[Translation]

"Mexico's accession to the Convention for the Suppression of Unlawful Acts against the Safety of Maritime Navigation, 1988, and to its Protocol for the Suppression of Unlawful Acts against the Safety of Fixed Platforms Located on the Continental Shelf, 1988, is on the understanding that in matters relating to extradition, both article 11 of the Convention and article 3 of the Protocol will be applied in the Republic of Mexico subject to the modalities and procedures laid down in the applicable provisions of national law."

MOLDOVA

The instrument of accession of the Republic of Moldova contained the following declaration:

"Until the full re-establishment of the territorial integrity of the Republic of Moldova, the provisions of the Convention shall be applied only on the territory controlled by the authorities of the Republic of Moldova.

The Republic of Moldova shall apply the provisions of article 8, paragraph 1 of the Convention as

far as it will not infringe its own national legislation.

The Republic of Moldova declares that it shall establish its own jurisdiction over the offences specified in article 3 of the Convention, in cases provided in article 6, paragraph 2 of this Convention.

According to article 16, paragraph 2 of the Convention, the Republic of Moldova does not consider itself bound by the provisions of article 16, paragraph 1 of the Convention."

MOZAMBIQUE

The instrument of accession by Mozambique contained the following declarations:

"The Republic of Mozambique does not consider itself bound by the provisions of article 16, paragraph 1, of the Convention.

In this connection, the Republic of Mozambique states that, in each individual case, the consent of all Parties to such a dispute is necessary for the submission of the dispute to arbitration or to International Court of Justice."

Furthermore, the Republic of Mozambique declares that:

"The Republic of Mozambique, in accordance with its Constitution and domestic laws, can not extradite Mozambique citizens.

Therefore, Mozambique citizens will be tried and sentenced in national courts."

MYANMAR

The instrument of accession by Myanmar was accompanied by the following reservation:

"The Government of the Union of Myanmar wished to express reservation of Article 16(1) relating to arbitration and does not consider itself bound by the same."

PORTUGAL

The instrument of accession of the Portuguese Republic contained the following declaration:

[Translation]

"In face of its internal law Portugal considers that the handing over of the suspect mentioned in article 8 of the Convention can only be based on strong suspicions that he committed any of the crimes mentioned in article 3, and will always depend on a court decision. Furthermore it will not be admitted in the event that the crime ascribed entails death sentence."

QATAR

The instrument of accession by Qatar contained the following:

"Subject to reservation in respect of article 16(a)."

RUSSIAN FEDERATION

The instrument of ratification of the Russian Federation contained the following reservation (in the Russian language):

[Translation]

"The Russian Federation applies the provisions of point 1 of article 8 of the Convention for the Suppression of Unlawful Acts Against the Safety of Maritime Navigation to the extent to which they do not conflict with

its own legislation".

SAUDI ARABIA

The instrument of accession of Saudi Arabia was accompanied by the following reservation:

This document announces the Kingdom of Saudi Arabia's accession to and approval of the Convention for the Suppression of Unlawful Acts Against the Safety of Maritime Navigation and the Protocol for the Suppression of Unlawful Acts Against the Safety of Fixed Platforms Located on the Continental Shelf, with full reservation as to Article 11 and Article 16, paragraph 1, of the Convention.

TUNISIA

The instrument of accession of the Republic of Tunisia was accompanied by the following declaration:

[Translation]

"The Republic of Tunisia, in agreeing to accede to the Convention for the Suppression of Unlawful Acts against the Safety of Maritime Navigation concluded in Rome on 10 March 1988, declares that it does not consider itself bound by the provisions of paragraph 1 of article 16 of the Convention and maintains that disputes concerning the interpretation or application of the Convention may be submitted to arbitration or to the International Court of Justice only with the prior agreement of all the parties involved."

TÜRKIYE

The instrument of ratification of the Republic of Türkiye was accompanied by the following reservation:

"In signing the Convention for the Suppression of Unlawful Acts against the Safety of Maritime Navigation and the Protocol for the Suppression of Unlawful Acts against the Safety of Fixed Platforms Located on the Continental Shelf, the Government of the Republic of Türkiye, under the article 16(2) of the said Convention declares that it does not consider itself bound by the provisions of paragraph (1) of the article 16 of the said Convention."

UNITED ARAB EMIRATES

The instrument of accession of the United Arab Emirates contained the following reservation:

[Translation]

"The Government of the United Arab Emirates has taken cognizance of the provisions of the aforementioned Convention and Protocol and accedes to them with full reservation in respect of the provisions of article 16, paragraph 1 of the Convention, concerning the settlement of a dispute between States Parties to the Convention by arbitration or, if they are unable to agree on the organization of arbitration, by referral of the dispute to the International Court of Justice. It also enters a full reservation with respect to the provisions of article 1 of the Protocol, insofar as they refer to article 16, paragraph 1 of the Convention for the Suppression of Unlawful Acts against the Safety of Maritime Navigation."

UNITED KINGDOM

The instrument of ratification of the United Kingdom of Great Britain and Northern Ireland was accompanied by the following declaration:

"... that until consultations with various territories under the territorial sovereignty of the United Kingdom are completed, the Convention and Protocol will apply in respect of the United Kingdom of Great Britain and Northern Ireland only. Consultations with the territories are in hand and are expected to be completed by the end of 1991."

VIET NAM

The instrument of accession by Viet Nam was accompanied by the following declaration:

"According to the Convention, the Socialist Republic of Viet Nam makes its reservation to paragraph 1 of article 16 thereof."

IV. Notifications

Article 6

CANADA

Pursuant to the provisions of Article 6, paragraph 3 of the Convention, the Secretary-General has been informed that Canada has established jurisdiction over offences in all of the cases cited in Article 6, paragraph 2 of the Convention.

Article 6

JAMAICA

Pursuant to the provisions of Article 6, paragraph 2(c) of the Convention, the Secretary-General has been informed that Jamaica has established jurisdiction over the offences set forth in Article 3.

Article 6

PARAGUAY

Pursuant to the provisions of Article 6 of the Convention, the Secretary-General has been informed that the Republic of Paraguay has established jurisdiction in accordance with Article 6, paragraph 2 of the Convention.

PROTOCOL OF 2005 TO THE CONVENTION FOR THE SUPPRESSION OF UNLAWFUL ACTS AGAINST THE SAFETY OF MARITIME NAVIGATION (SUA 2005)

Done at London, 14 October 2005

Entry into force: 28 July 2010

Signature, ratification, acceptance, approval and accession

Article 17

1 This Protocol shall be open for signature at the Headquarters of the Organization from 14 February 2006 to 13 February 2007 and shall thereafter remain open for accession.

2 States may express their consent to be bound by this Protocol by:

(a) signature without reservation as to ratification, acceptance or approval; or

(b) signature subject to ratification, acceptance or approval, followed by ratification, acceptance or approval; or

(c) accession.

3 Ratification, acceptance, approval or accession shall be effected by the deposit of an instrument to that effect with the Secretary-General.

4 Only a State which has signed the Convention without reservation as to ratification, acceptance or approval, or has ratified, accepted, approved or acceded to the Convention may become a Party to this Protocol.

Entry into force

Article 18

1 This Protocol shall enter into force ninety days following the date on which twelve States have either signed it without reservation as to ratification, acceptance or approval, or have deposited an instrument of ratification, acceptance, approval or accession with the Secretary-General.

2 For a State which deposits an instrument of ratification, acceptance, approval or accession in respect of this Protocol after the conditions in paragraph 1 for entry into force thereof have been met, the ratification, acceptance, approval or accession shall take effect ninety days after the date of such deposit.

Denunciation

Article 19

1 This Protocol may be denounced by any State Party at any time after the date on which this Protocol enters into force for that State.

2 Denunciation shall be effected by the deposit of an instrument of denunciation with the Secretary-General.

3 A denunciation shall take effect one year, or such longer period as may be specified in the instrument of denunciation, after the deposit of the instrument with the Secretary-General.

Revision and amendment

Article 20

1 A conference for the purpose of revising or amending this Protocol may be convened by the Organization.

2 The Secretary-General shall convene a conference of States Parties to this Protocol for revising or amending the Protocol, at the request of one third of the States Parties, or ten States Parties, whichever is the higher figure.

3 Any instrument of ratification, acceptance, approval or accession deposited after the date of entry into force of an amendment to this Protocol shall be deemed to apply to the Protocol as amended.

Declarations

Article 21

1 Upon depositing its instrument of ratification, acceptance, approval or accession, a State Party which is not a party to a treaty listed in the Annex may declare that, in the application of this Protocol to the State Party, the treaty shall be deemed not to be included in article 3*ter*. The declaration shall cease to have effect as soon as the treaty enters into force for the State Party, which shall notify the Secretary-General of this fact.

2 When a State Party ceases to be a party to a treaty listed in the Annex, it may make a declaration as provided for in this article, with respect to that treaty.

3 Upon depositing its instrument of ratification, acceptance, approval or accession, a State Party may declare that it will apply the provisions of article 3*ter* in accordance with the principles of its criminal law concerning family exemptions of liability.

Amendments to the Annex

Article 22

1 The Annex may be amended by the addition of relevant treaties that:

(a) are open to the participation of all States;

(b) have entered into force; and

(c) have been ratified, accepted, approved or acceded to by at least twelve States Parties to this Protocol.

2 After the entry into force of this Protocol, any State Party thereto may propose such an amendment to the Annex. Any proposal for an amendment shall be communicated to the Secretary-General in written form. The Secretary-General shall circulate any proposed amendment that meets the requirements of paragraph 1 to all members of the Organization and seek from States Parties to this Protocol their consent to the adoption of the proposed amendment.

3 The proposed amendment to the Annex shall be deemed adopted after more than twelve of the States Parties to this Protocol consent to it by written notification to the Secretary-General.

4 The adopted amendment to the Annex shall enter into force thirty days after the deposit with the Secretary-General of the twelfth instrument of ratification, acceptance or approval of such amendment for those States Parties to this Protocol that have deposited such an instrument. For each State Party to this Protocol ratifying, accepting or approving the amendment after the deposit of the twelfth instrument with the Secretary-General, the amendment shall enter into force on the thirtieth day after deposit by such State Party of its instrument of ratification, acceptance or approval.

I. Signatories

II. Contracting States

III. Declarations, Reservations and Statements

IV. Amendments

V. Notifications

I Signatories

Australia	"Subject to ratification"	7 March 2006
Austria	"Subject to ratification"	12 May 2006
Bulgaria	"Subject to ratification"	11 September 2006
Denmark	"Subject to ratification"	9 February 2007
Estonia	"Subject to ratification"	8 February 2007
Finland	"Subject to ratification"	27 February 2006
France	"Sous réserve de ratification, d'acceptation ou d'approbation"	14 February 2006
Greece	"Subject to ratification"	12 February 2007
Italy	"Subject to ratification"	1 February 2007
Netherlands	"Subject to acceptance"	31 January 2007
New Zealand	"Subject to ratification"	24 January 2007
Norway	"Subject to ratification"	14 February 2006
Portugal	"Subject to ratification"	14 June 2006
Spain	"a reserva de ratificación"	12 February 2007
Sweden	"Subject to ratification"	14 February 2006
Türkiye	"Subject to ratification"	15 August 2006
United Kingdom	"Subject to ratification"	23 January 2007
United States of America	"Subject to ratification"	17 February 2006

II. Contracting States

	Date of deposit of instrument	Date of entry into force
Algeria (accession)	25 January 2011	25 April 2011
Antigua and Barbuda (accession)	24 November 2015	22 February 2016
Austria (ratification)	18 June 2010	16 September 2010
Barbados (accession)	8 March 2023	8 June 2023
Benin (accession)	28 June 2018	26 September 2018
Belgium (accession)	2 July 2019	30 September 2019
Bulgaria (ratification)	7 October 2010	5 January 2011
Congo (accession)	28 May 2015	26 August 2015
Cook Islands (accession)	12 March 2007	28 July 2010
Côte d'Ivoire (accession)	23 March 2012	21 June 2012
Cuba (accession)	10 April 2014	9 July 2014
Cyprus (accession)	28 April 2025	27 July 2025
protDenmark (ratification)[1, 2]	14 September 2018	13 December 2018
Dominican Republic (accession)	9 March 2010	28 July 2010
Djibouti (accession)	23 April 2014	22 July 2014
Estonia (ratification)	16 May 2008	28 July 2010
Fiji (accession)	21 May 2008	28 July 2010
Finland (ratification)	26 May 2020	24 August 2020
France (approval)	9 May 2018	7 August 2018
Germany (accession)	29 January 2016	28 April 2016
Ghana (accession)	18 November 2019	16 February 2020
Greece (ratification)	11 September 2013	10 December 2013
Guyana (accession)	20 February 2019	21 May 2019
Iraq (accession)	19 July 2021	17 October 2021
Jamaica (accession)	28 November 2013	26 February 2014
Kazakhstan (accession)	3 May 2019	1 August 2019
Latvia (accession)	16 November 2009	28 July 2010
Liechtenstein (accession)	28 August 2009	28 July 2010

Marshall Islands (accession)	9 May 2008	28 July 2010
Mauritania (accession)	21 August 2013	19 November 2013
Montenegro (accession)	6 January 2020	5 April 2020
Nauru (accession)	29 April 2010	28 July 2010
Netherlands (acceptance)[2]	1 March 2011	30 May 2011
New Zealand (ratification)	26 February 2018	27 May 2018
Nigeria (accession)	18 June 2015	16 September 2015
Norway (ratification)	30 September 2013	29 December 2013
Palau (accession)	29 September 2011	28 December 2011
Panama (accession)	24 February 2011	25 May 2011
Portugal (ratification)	1 September 2015	30 November 2015
Qatar (accession)[1]	10 January 2014	10 April 2014
Saint Kitts and Nevis (accession)	29 March 2007	28 July 2010
Saint Lucia (accession)	8 November 2012	6 February 2013
Saint Vincent and the Grenadines (accession)	5 July 2010	3 October 2010
San Marino (accession)	15 December 2014	15 March 2015
Saudi Arabia (accession)	31 July 2013	29 October 2013
Serbia (accession)	8 July 2010	6 October 2010
Somalia (accession)	26 June 2026	24 September 2026
Spain (ratification)	16 April 2008	28 July 2010
Sweden (ratification)[1]	22 September 2014	21 December 2014
Switzerland (accession)[1]	15 October 2008	28 July 2010
Togo (accession)	6 February 2017	7 May 2017
Türkiye (ratification)	19 July 2010	17 October 2010
United States of America (ratification)	28 August 2015	26 November 2015
Uruguay (accession)	29 April 2015	28 July 2015
Vanuatu (accession)	20 August 2008	28 July 2010

Number of Contracting States: 55

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[1] For the text of a declaration, reservation or statement, see section III.
[2] Demark declares the Protocol will not apply to the Faroe Islands and Greenland until further notice.

III. Declaration, Reservations and Statements

DENMARK

The instrument of ratification by Denmark was accompanied by the following declaration:

> "Authorization granted by Danish authorities pursuant to article 8bis denotes only that Denmark will abstain from pleading infringement of Danish sovereignty in connection with the requesting State's boarding of a vessel or a platform. Danish authorities cannot authorize another State to take legal action on behalf of the Kingdom of Denmark."

FRANCE

The instrument of approval of France contained the following reservations and declarations:

“1. Concerning article 4, paragraph 4 of the Protocol replacing article 3, paragraph 2 of the Convention for the Suppression of Unlawful Acts against the Safety of Maritime Navigation, the French Republic understands "threatens"/"threat" to mean a threat [Fr. menace] such as it is defined in the conditions provided for by French criminal legislation.

2. Concerning article 4, paragraph 7 of the Protocol, which inserts an article 3quater in the Convention for the Suppression of Unlawful Acts against the Safety of Maritime Navigation, the French Republic understands "attempts to commit an offence", "participates as an accomplice in an offence" and "organizes [the commission of] an offence" to mean an attempt [Fr. tentative] and participation as an accomplice [Fr. complicité] such as they are defined in the conditions provided for by French criminal legislation.

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1 For the text of a declaration, reservation or statement, see section III
2 Acceptance for the European part of the Netherlands and Caribbean part of the Netherlands (the latter comprising Bonaire, Sint Eustatius and Saba) only

3. Concerning article 4, paragraph 6 of the Protocol, which inserts an article 3ter in the Convention for the Suppression of Unlawful Acts against the Safety of Maritime Navigation, the French Republic reserves the right not to establish as a criminal offence the fact of unlawfully and intentionally transporting another person on board a ship knowing that the person has committed an act that constitutes an offence set forth in article 3, 3bis or 3quater or an offence set forth in any treaty listed in the annex, and intending to assist that person in evading criminal prosecution, where the said person has committed an offence that constitutes a minor offence [Fr. contravention], a misdemeanour [Fr. délit] or an act of terrorism punishable by less than 10 years' imprisonment. In accordance with article 21, paragraph 3 of the Protocol, the French Republic will apply article 3ter of the Convention in accordance with the principles of French criminal law concerning family exemptions of liability.

4. The French Republic does not consider itself bound by the provisions of article 16, paragraph 1 of the Convention for the Suppression of Unlawful Acts against the Safety of Maritime Navigation, as revised by the present Protocol, according to which "Any dispute between two or more States Parties concerning the interpretation or application of this Convention which cannot be settled through negotiation within a reasonable time shall, at the request of one of them, be submitted to arbitration. If, within six months from the date of the request for arbitration, the parties are unable to agree on the organization of the arbitration any one of those parties may refer the dispute to the International Court of Justice by request in conformity with the Statute of the Court."

GERMANY

The instrument of accession was accompanied by the following declaration:

> “In accordance with Article 21, paragraph 3 of the Protocol, the Federal Republic of Germany declares that it will apply the provisions of Article 3ter in accordance with the principles of German criminal law concerning family exemptions of liability."

NETHERLANDS

The instrument of acceptance was accompanied by the following declaration:

> "The Kingdom of the Netherlands declares that it will apply the provisions of article 3*ter* of the Protocol of 2005 to the Convention for the Suppression of Unlawful Acts against the Safety of Maritime Navigation, in accordance with the principles of its criminal law concerning family exemptions of liability."

NEW ZEALAND

The instrument of ratification of New Zealand contained the following declaration:

"AND DECLARES that its ratification shall extend to Tokelau."

QATAR

The instrument of accession was accompanied by the following reservation:

> "The State of Qatar does not consider itself bound by the provisions of paragraph 1 of article 16 of this Convention with regards to referrals to the International Court of Justice”.

SWEDEN

The instrument of accession by Sweden contained the following declaration:

> “In accordance with article 21.3 of the Protocol of 2005 to the Convention for the Suppression of Unlawful Acts against the Safety of Maritime Navigation Sweden will apply article 3*ter* of the Convention in accordance with the principles of Swedish criminal law concerning family exemptions of liability.”

SWITZERLAND

The instrument of accession by Switzerland contained the following declaration:
[Translation]

"Declaration concerning article 2bis of the Convention:

Switzerland declares that article 2*bis* of the SUA Convention, as contained in the Protocol of 14 October 2005 must not be interpreted as excusing or rendering lawful any acts in other respects unlawful or as excluding the bringing of an action under other legislation."

V. Notifications

Article 8bis

FRANCE

Pursuant to Article 8bis, paragraph 15 of the Protocol, the designated authority to receive and respond to requests for assistance, for confirmation of nationality, and for authorization to take appropriate measures is as follows:

During Office hours (08h00 - 20h00 GTM+1):
Ministère de l'Europe et des Affaires Etrangères
Mission des Conventions et de l'entraide judiciaire
27, rue de la Convention
CS 91533 – 75732 Paris Cedex 15
Email : arraisonnements.fae-saj-cej@diplomatie.gouv.fr
Phones : +33 1 43.17.91.41
+33 1 43.17.91.87
+33 1 43.17.90.24
Fax : +33 1 43.17.89.13

Out of office hours (20h00 – 08h00 GTM+1 as well as weekends and bank holidays):
Ministère de l'Europe et des Affaires Etrangères
Centre de crise et de soutien
37, quai d'Orsay
75007 Paris 07SP
Email : alertes.cdc@diplomatie.gouv.fr
Phones : +33 1 53.59.11.00
+33 1 53.59.11.17./.

LATVIA

Pursuant to the provisions of Article 8bis, paragraph 15 of the Protocol, the Republic of Latvia notifies that the authority to receive and respond to requests for assistance is:

Naval Forces Coast Guard Service of the
National Armed Forces of the
Republic of Latvia
Meldru Str. 5a,
Rīga, LV-1015
Latvia
Phone: +371 67082052
Fax:+371 67320100
E-mail: info@mrcc.lv

Pursuant to the provisions of Article 8bis, paragraph 15 of the Protocol, the Republic of Latvia further notifies that the authorities to receive and respond to requests for confirmation of nationality and for authorization to take appropriate measures within the scope of their competence are as follows:

Security Police
Kr. Barona Str. 99a,
Rīga, LV-1012
Latvia
Phone: +371 67208964
Fax: +371 67273373
E-mail: dp@dp.gov.lv

Prosecutor General's Office
Kalpaka Blvd. 6
Rīga, LV-1801
Latvia
Phone: +371 67044400
Fax: +371 67044449
E-mail: webmaster@lrp.gov.lv

SAN MARINO

"In conformity with article 8bis, paragraph 15 of the Protocol of 2005 to the Convention for the Suppression of Unlawful Acts against the Safety of Maritime Navigation, done at London on 14 October 2005, the Republic of San Marino designates, as competent Authority, the Civil Aviation and Maritime Navigation Authority".

SWEDEN

Pursuant to the provisions of Article 8bis, paragraph 15 of the Protocol, Sweden notifies that the authority to receive and respond to requests for assistance is as follows:

National Bureau of Investigation
International Police Cooperation Division (IPO)
P.O. Box 12256
S.E. 102 26 Stockholm
Sweden

Phone: +46 10 563 70 00
Fax: +46 8 651 42 03
E-mail: ipo.rkp@polisen.se

Pursuant to the provisions of Article 8bis, paragraph 15 of the Protocol, the Republic of Sweden further notifies that the authority to receive and respond to requests for confirmation of a ship's nationality is as follows:

Swedish Coastguard Regional Command Northeast
NCC Sweden (H24)
Duty officer
P.O. Box 92028
S.E. 120 06 Stockholm

Sweden
Phone: +46 8 578 976 30
E-mail: lc.krn.rkp@kustbevakningen.se

Sweden further notifies that the authority to receive and respond to requests on measures against a Swedish ship is as follows:

Ministry of Justice
Division for Criminal Cases and International Judicial Co-operation
Central Authority
S.E. 103 33 Stockholm
Sweden

Phone: +46 8 405 10 00 (switchboard)
Phone: +46 8 405 45 00 (office)
Fax: +46 8 405 46 76 (office)
E-mail: ju.birs.rkp@gov.se

UNITED STATES OF AMERICA

Pursuant to the provisions of article 8bis, paragraph 15 of the Protocol, the United States notifies that the authority to receive and respond to requests for assistance, for confirmation of nationality, and for authorization to take appropriate measures, as follows:

Commander Gregory M. Tozzi
United States Coast Guard Liaison Officer to the United States Department of State's Bureau of International Narcotics and Law Enforcement Affairs

Phone:	+1 (202) 372-2100 (24-hour)
Mobile:	+1 (202) 445-8463
Email:	ncc@uscg.mil
Address:	Bureau of International Narcotics and Law Enforcement Affairs Department of State
ATTN:	U.S. Coast Guard Liaison Officer Washington, D.C. 20520 United States of America

PROTOCOL FOR THE SUPPRESSION OF UNLAWFUL ACTS AGAINST THE SAFETY OF FIXED PLATFORMS LOCATED ON THE CONTINENTAL SHELF (SUA PROT [1988])

Done at Rome, 10 March 1988

Entry into force: 1 March 1992

Signature, ratification, acceptance, approval, accession

Article 5

1 This Protocol shall be open for signature at Rome on 10 March 1988 and at the Headquarters of the International Maritime Organization (hereinafter referred to as "the Organization") from 14 March 1988 to 9 March 1989 by any State which has signed the Convention[1]. It shall thereafter remain open for accession.

2 States may express their consent to be bound by this Protocol by:

(a) signature without reservation as to ratification, acceptance or approval; or

(b) signature subject to ratification, acceptance or approval, followed by ratification, acceptance or approval; or

(c) accession.

3 Ratification, acceptance, approval or accession shall be effected by the deposit of an instrument to that effect with the Secretary-General.

4 Only a State which has signed the Convention[1] without reservation as to ratification, acceptance or approval, or has ratified, accepted, approved or acceded to the Convention[1] may become a Party to this Protocol.

Entry into force

Article 6

1 This Protocol shall enter into force ninety days following the date on which three States have either signed it without reservation as to ratification, acceptance or approval, or have deposited an instrument of ratification, acceptance, approval or accession in respect thereof. However, this Protocol shall not enter into force before the Convention[1] has entered into force.

2 For a State which deposits an instrument of ratification, acceptance, approval or accession in respect of this Protocol after the conditions for entry into force thereof have been met, the ratification, acceptance, approval or accession shall take effect ninety days after the date of such deposit.

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[1] Convention for the Suppression of Unlawful Acts against the Safety of Maritime Navigation.

I. Signatories

II. Contracting States

III. Declarations, Reservations and Statements

IV. Notifications

I. Signatories

Argentina	Bajo reserva de ratificación
Bahamas	Subject to ratification
Belgium	Sous réserve de ratification
Brazil	Subject to ratification
Brunei Darussalam	Subject to ratification
Bulgaria	Subject to ratification
Byelorussian SSR	[*Translation*] With the following reservation: In compliance with article 5, paragraph 2(b) of the Protocol for the Suppression of Unlawful Acts against the Safety of Fixed Platforms Located on the Continental Shelf of 10 March 1988, this Protocol enters into force for the Byelorussian SSR after its ratification by the competent authorities of the Byelorussian Soviet Socialist Republic
Canada	Subject to ratification
Chile	Sujeto a ratificación
China	Subject to ratification[1]
Costa Rica	Ad referendum
Czechia	Subject to ratification
Denmark	Subject to ratification or acceptance
Ecuador	Subject to ratification
Egypt	Subject to ratification
France	Sous réserve d'approbation
Greece	Subject to ratification
Hungary	Subject to ratification
Iraq	Subject to ratification[1]
Israel	Subject to ratification
Italy	Subject to ratification
Jordan	[*Translation*] Subject to ratification
Liberia	Subject to ratification
Morocco	Sous réserve de ratification
Netherlands	Subject to acceptance
New Zealand	Subject to ratification
Nigeria	Subject to ratification
Norway	Subject to ratification
Philippines	Subject to ratification by the Congress of the Philippines
Poland	Subject to ratification
Saudi Arabia	*[Translation]* Subject to ratification
Seychelles	Subject to ratification
Spain	A reserva de ratificación
Sweden	Subject to ratification
Switzerland	Sous réserve de ratification
Türkiye	The Government of Türkiye signs the Protocol subject to ratification and with reservation to the effect that it does not consider itself bound by all of the provisions of article 16 paragraph (1) of the Convention
Ukrainian SSR	*[Translation]* With the following reservation: In compliance with article 5, paragraph 2(b) of the Protocol for the Suppression of Unlawful Acts against the Safety of Fixed Platforms Located on the Continental Shelf of 10 March 1988, this Protocol enters into force for the Ukrainian SSR after its ratification by the competent authorities of the Ukrainian Soviet Socialist Republic
USSR	*[Translation]* With the following reservation: In compliance with article 5, paragraph 2(b) of the Protocol for the Suppression of Unlawful Acts against the Safety of Fixed Platforms Located on the Continental Shelf of 10 March 1988, this Protocol enters into force for the USSR after its ratification by the competent authorities of the Union of Soviet Socialist Republics
United Kingdom	Subject to ratification
United States	Subject to ratification

[1] For the text of a reservation or statement, see section III.

II. Contracting States

	Date of deposit of instrument	Date of entry into force
Afghanistan (accession)	23 September 2003	22 December 2003
Albania (accession)	19 June 2002	17 September 2002
Algeria (accession)	30 June 2006	28 September 2006
Antigua and Barbuda (accession)	12 October 2009	10 January 2010
Argentina (ratification)	26 November 2003	24 February 2004
Armenia (accession)	8 June 2005	6 September 2005
Andorra (accession) [1]	17 July 2006	15 October 2006
Australia (accession)	19 February 1993	20 May 1993
Austria (accession)	28 December 1989	1 March 1992
Azerbaijan (accession)	26 January 2004	25 April 2004
Bahamas (accession)	25 October 2005	23 January 2006
Bahrain (accession)	21 October 2005	19 January 2006
Bangladesh (accession)	9 June 2005	7 September 2005
Barbados (accession)	6 May 1994	4 August 1994
Belarus (accession)	4 December 2002	4 March 2003
Belgium (accession)	11 April 2005	10 July 2005
Benin (accession)	31 August 2006-	29 November 2006
Bolivia (Plurinational State of) (accession)	13 February 2002	14 May 2002
Bosnia and Herzegovina (accession)	28 July 2003	26 October 2003
Botswana (accession)	14 September 2000	13 December 2000
Brazil (ratification)[1]	25 October 2005	23 January 2006
Brunei Darussalam (ratification)	4 December 2003	3 March 2004
Bulgaria (ratification)	8 July 1999	6 October 1999
Burkina Faso (accession)	14 January 2004	13 April 2004
Cambodia (accession)	18 August 2006	16 November 2006
Canada (ratification)[2]	18 June 1993	16 September 1993
Cabo Verde(accession)	3 January 2003	3 April 2003
Chile (ratification)	22 April 1994	21 July 1994
China (ratification)[1, 6]	20 August 1991	1 March 1992
Comoros (accession)	6 March 2008	4 June 2008
Congo (accession)	28 May 2015	26 August 2015
Costa Rica (ratification)	25 March 2003	23 June 2003
Côte d'Ivoire (accession)	23 March 2012	21 June 2012
Croatia (accession)	18 August 2005	16 November 2005
Cuba (accession)[1]	20 November 2001	18 February 2002
Cyprus (accession)	2 February 2000	2 May 2000
Czechia (accession)	10 December 2004	10 March 2005
Denmark (ratification)[1]	25 August 1995	23 November 1995
Djibouti (accession)	9 June 2004	7 September 2004
Dominica (accession)	12 October 2004	10 January 2005
Dominican Republic (accession)	12 August 2009	10 November 2009
Ecuador (accession)	10 March 2003	8 June 2003
Egypt (ratification)[1]	8 January 1993	8 April 1993
El Salvador (accession)	7 December 2000	7 March 2001
Equatorial Guinea (accession)	15 January 2004	14 April 2004
Estonia (accession)	28 January 2004	27 April 2004
Eswatini* (accession)	17 April 2003	16 July 2003
Fiji (accession)	21 May 2008	19 August 2008
Finland (accession)	28 April 2000	27 July 2000
France (approval)[1]	2 December 1991	1 March 1992
Georgia (accession)	11 August 2006	9 November 2006
Germany (accession) [3]	6 November 1990	1 March 1992
Ghana (accession)	1 November 2002	30 January 2003
Greece (ratification)	11 June 1993	9 September 1993
Grenada (accession)	9 January 2002	9 April 2002
Guatemala (accession)	26 August 2009	24 November 2009

* former Swaziland (communication of change of name received in June 2018)

Guinea (accession)	1 February 2005	2 May 2005
Guinea Bissau (accession)	14 October 2008	12 January 2009
Guyana (accession)	30 January 2003	30 April 2003
Honduras (accession)	17 May 2005	15 August 2005
Hungary (ratification)	9 November 1989	1 March 1992
Iceland (accession)	28 May 2002	26 August 2002
India (accession)	15 October 1999	13 January 2000
Iran (Islamic Republic of)(accession)[1]	30 October 2009	28 January 2010
Iraq (ratification)	8 August 2023	6 November 2023
Ireland (accession)	10 September 2004	9 December 2004
Israel (ratification)[1]	6 January 2009	6 April 2009
Italy (ratification)	26 January 1990	1 March 1992
Jamaica (accession)[2]	19 August 2005	17 November 2005
Japan (accession)	24 April 1998	23 July 1998
Jordan (accession)	2 July 2004	30 September 2004
Kazakhstan (accession)	24 November 2003	22 February 2004
Kenya (accession)	21 January 2002	21 April 2002
Kiribati (accession)	17 November 2005	16 February 2006
Kuwait (accession)	30 June 2003	28 September 2003
Lao People's Democratic Republic (accession)	20 March 2012	18 June 2012
Latvia (accession)	4 December 2002	4 March 2003
Lebanon (accession)	16 December 1994	16 March 1995
Lesotho (accession)	25 June 2013	23 September 2013
Liberia (ratification)	5 October 1995	3 January 1996
Libya (accession)	8 August 2002	6 November 2002
Liechtenstein (accession)	8 November 2002	6 February 2003
Lithuania (accession)	30 January 2003	30 April 2003
Luxembourg (accession)	5 January 2011	5 April 2011
Madagascar (accession)	15 September 2006	14 December 2006
Malawi (accession)	10 January 2014	10 April 2014
Maldives (accession)	25 February 2014	26 May 2014
Mali (accession)	29 April 2002	28 July 2002
Malta (accession)	20 November 2001	18 February 2002
Marshall Islands (accession)	16 October 1995	14 January 1996
Mauritania (accession)	17 January 2008	16 April 2008
Mauritius (accession)	3 August 2004	1 November 2004
Mexico (accession)[2]	13 May 1994	11 August 1994
Moldova (accession)[1]	11 October 2005	9 January 2006
Monaco (accession)	25 January 2002	25 April 2002
Mongolia (accession)	22 November 2005	20 February 2006
Montenegro (succession)[7]	-	3 June 2006
Morocco (ratification)	8 January 2002	8 April 2002
Mozambique (accession)	8 January 2003	8 April 2003
Myanmar (accession)	19 September 2003	18 December 2003
Namibia (accession)	7 September 2005	6 December 2005
Nauru (accession)	11 August 2005	9 November 2005
Netherlands (acceptance)[1, 5]	5 March 1992	3 June 1992
New Zealand (ratification)	10 June 1999	8 September 1999
Nicaragua (accession)	4 July 2007	2 October 2007
Niger (accession)	30 August 2006-	28 November 2006
Nigeria (ratification)	18 June 2015	16 September 2015
Niue (accession)	22 June 2009	20 September 2009
North Macedonia (accession)	7 August 2007	5 November 2007
Norway (ratification)	18 April 1991	1 March 1992
Oman (accession)	24 September 1990	1 March 1992
Pakistan (accession)	20 September 2000	19 December 2000
Palau (accession)	4 December 2001	4 March 2002
Panama (accession)	3 July 2002	1 October 2002
Paraguay (accession)[2]	12 November 2004	10 February 2005
Peru (accession)	19 July 2001	17 October 2001
Philippines (ratification)	6 January 2004	5 April 2004
Poland (ratification)	25 June 1991	1 March 1992
Portugal (accession)	5 January 1996	4 April 1996
Qatar (accession)	18 September 2003	17 December 2003

Republic of Korea (accession)	10 June 2003	8 September 2003
Romania (accession)	2 June 1993	31 August 1993
Russian Federation (ratification)	4 May 2001	2 August 2001
Saint Lucia (accession)	20 May 2004	18 August 2004
Saint Vincent and the Grenadines (accession)	9 October 2001	7 January 2002
San Marino (accession)	15 December 2014	15 March 2015
Sao Tome and Principe (accession)	5 May 2006	3 August 2006
Saudi Arabia (accession)	2 February 2006	3 May 2006
Senegal (accession)	9 August 2004	7 November 2004
Serbia (succession)[7]	-	3 June 2006
Singapore (accession)	12 August 2015	10 November 2015
Seychelles (ratification)	24 January 1989	1 March 1992
Slovakia (accession)	8 December 2000	8 March 2001
Slovenia (accession)	18 July 2003	16 October 2003
South Africa (accession)	8 July 2005	6 October 2005
Spain (ratification)	7 July 1989	1 March 1992
Sudan (accession)	22 May 2000	20 August 2000
Sweden (ratification)	13 September 1990	1 March 1992
Switzerland (ratification)	12 March 1993	10 June 1993
Syrian Arab Republic (accession)	24 March 2003	22 June 2003
Tajikistan (accession)	12 August 2005	10 November 2005
Togo (accession)	10 March 2003	8 June 2003
Tonga (accession)	6 December 2002	6 March 2003
Trinidad and Tobago (accession)	27 July 1989	1 March 1992
Tunisia (accession)	6 March 1998	4 June 1998
Türkiye (ratification)[1]	6 March 1998	4 June 1998
Turkmenistan (accession)	8 June 1999	6 September 1999
Ukraine (ratification)	21 April 1994	20 July 1994
United Arab Emirates (accession)[1]	15 September 2005	14 December 2005
United Kingdom (ratification)[1, 4]	3 May 1991	1 March 1992
United Republic of Tanzania (accession)	8 December 2016	8 March 2017
United States (ratification)	6 December 1994	6 March 1995
Uruguay (accession)	10 August 2001	8 November 2001
Uzbekistan (accession)	25 September 2000	24 December 2000
Vanuatu (accession)	18 February 1999	19 May 1999
Viet Nam (accession)	12 July 2002	10 October 2002
Yemen (accession)	30 June 2000	28 September 2000

∗ former Swaziland (communication of change of name received in June 2018)

Number of Contracting States: 157

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[1] For the text of a reservation, declaration or statement, see section III.

[2] With a notification under article 3, see section IV.

[3] On 3 October 1990 the German Democratic Republic acceded to the Federal Republic of Germany. The German Democratic Republic had acceded* to the Convention on 14 April 1989.

* For the text of a reservation, see section III.

[4] The United Kingdom declared its ratification to be effective also in respect of the Isle of Man from 8 February 1999 and in respect of Jersey from 17 October 2014.

[5] Applies to Aruba with effect from 17 January 2006. Also extended to Bonaire, Sint Eustatius and Saba (the Caribbean part of the Netherlands) with effect from 10 October 2010. Since that date, the Kingdom of the Netherlands consists of four autonomous countries: The Netherlands (European part and Caribbean part), Aruba, Curaçao and Sint Maarten. For more details see footnote 4, in section II of SOLAS 1974.

[6] China extended the Protocol to the Hong Kong Special Administrative Region with effect from 20 February 2006, and to the Macau Special Administrative Region with effect from 2 April 2020.

[7] Following the dissolution of the State Union of Serbia and Montenegro on 3 June 2006, all Treaty actions undertaken by Serbia and Montenegro continue to be in force with respect to Republic of Serbia. Montenegro has informed that it wished to succeed to this treaty with effect from the same date, i.e. 3 June 2006.

III. Declarations, Reservations and Statements

BRAZIL

The instrument of accession of the Federative Republic of Brazil contained the following reservation:

"… with reservation to article 6, paragraph 2; article 8' and article 16, paragraph 1 of the Convention and to article 3, paragraph 2 of the Protocol."

CHINA

The following statement was made at the time of signature of the Protocol:

[Translation]

"The People's Republic of China shall not be bound by paragraph 1 of article 16 of the said Convention[1]."

This statement was reaffirmed in the instrument of ratification of the People's Republic of China.

CUBA

The instrument of accession of the Republic of Cuba contained the following reservation:

[Translation]

"The Republic of Cuba, in accordance with paragraph 2 of article 16 of the Convention for the Suppression of Unlawful Acts against the Safety of Maritime Navigation, applicable to the present Protocol, declares that it does not consider itself bound by the provisions of paragraph 1 of the aforesaid article, with respect to the settlement of disputes between States Parties, since it consider that such disputes should be settled by amicable agreement. Similarly, the Republic of Cuba reiterates that it does not recognize the compulsory jurisdiction of the International Court of Justice."

DENMARK

The instrument of ratification of the Kingdom of Denmark contained the following reservation:

[Translation]

".... with the qualification, however, that the Convention as well as the Protocol will not apply to the Faroes nor to Greenland, pending a further decision."

EGYPT

The instrument of ratification of the Arab Republic of Egypt was accompanied by the following reservations:

[Translation]

"1 A reservation is made to article 16 on the peaceful settlement of disputes because it provides for the binding jurisdiction of the International Court of Justice, and also with regard to the application of the Convention to seagoing ships in internal waters which are scheduled to navigate beyond territorial waters.

2 A reservation is made to article 6, paragraph 2, of the Convention and article 3, paragraph 2, of the Protocol because those articles permit the optional jurisdiction of blackmailed States (which are asked by the perpetrator of an act of terrorism to do or abstain from doing any act).

This is in compliance with the provision of paragraph 4 of each of the two articles."

FRANCE

The instrument of approval of the French Republic contained the following declarations:

[Translation]

"1. As far as article 2, paragraph 2, is concerned the French Republic understands by "tentative", "incitation", "complicité" and "menace", la tenative, l'incitation, la complicité and la menace as defined in the conditions envisaged by French criminal law.

2. The French Republic does not consider itself bound by the provisions of article 1, paragraph 1, to the extent that reference is made to the provisions of article 16, paragraph 1, according to which: "Any dispute between two or more States Parties concerning the interpretation or application of this Convention which cannot be settled through negotiation within a reasonable time shall, at the request of one of them, be submitted to arbitration. If, within six months from the date of the request for arbitration, the parties are unable to agree on the organization of the arbitration any one of those parties may refer the dispute to the International Court of Justice by request in conformity with the Statute of the Court"."

GERMAN DEMOCRATIC REPUBLIC

The instrument of accession of the German Democratic Republic was accompanied by the following reservation in the German language:

[Translation]

"In accordance with article 16, paragraph 2, of the Convention for the Suppression of Unlawful Acts against the Safety of Maritime Navigation, the provisions of which shall also apply *mutatis mutandis* to the Protocol according to article 1, paragraph 1, of the Protocol, the German Democratic Republic declares that it does not consider itself bound by article 16, paragraph 1 of the Convention as regards the Protocol."

IRAN (ISLAMIC REPUBLIC OF)

The instrument of accession by the Islamic Republic of Iran contained the following reservations:

“Pursuant to Article 16, paragraph 2 of the Convention for the Suppression of Unlawful Acts against the Safety of Maritime Navigation, the Government of the Islamic Republic of Iran declares that it does not consider itself bound by the provisions of Article 16, paragraph 1 of the Convention. The Government of the Islamic Republic of Iran affirms that the consent of all parties to such a dispute is necessary in each individual case, for the submission of the dispute to arbitration or to the International Court of Justice. The Government of the Islamic Republic of Iran can, if it deems appropriate, agree with the submission of the dispute to arbitration in accordance with the Constitution of the Islamic Republic of Iran and related domestic Law.

With regard to Article 11, paragraph 4, the Islamic Republic of Iran considers that the extradition would be applicable only to the State Party within the territorial jurisdiction of which the crime has occurred. In the case where an extradition agreement exists between the requesting State and the State in which the crime has occurred, the agreement shall be applied.”

IRAQ

The following reservation was made at the time of signature of the Protocol:

[Translation]

"This signature does not in any way imply recognition of Israel or entry into any relationship with it."

ISRAEL

The instrument of ratification by Israel contained the following reservation:

“Pursuant to Article 1, paragraph 1 of the Protocol for the Suppression of Unlawful Acts against the Safety of Fixed Platforms Located on the Continental Shelf, the provisions of article 16 of the Convention for the Suppression of Unlawful Acts against the Safety of Maritime Navigation shall apply, *mutatis mutandis,* to the Protocol. Accordingly, the Government of the State of Israel declares that it does not consider itself bound by the provisions of Article 16, paragraph 1 of the Convention with regard to the Protocol.”

The instrument of ratification by Israel also contained the following statement:

“The Government of the State of Israel has noted that the reservation made upon the signature of Iraq of the aforementioned Convention contains a statement with respect to the State of Israel.

The Government of the State of Israel considers that such a statement, which is explicitly of a political nature, is incompatible with the purposes and objectives of the Convention.

The Government of the State of Israel, therefore, objects to the aforesaid statement made by Iraq.”

MEXICO

The instrument of accession of the United Mexican States contained the following reservation:

[Translation]

"Mexico's accession to the Convention for the Suppression of Unlawful Acts against the Safety of Maritime Navigation, 1988, and to its Protocol for the Suppression of Unlawful Acts against the Safety of Fixed Platforms Located on the Continental Shelf, 1988, is on the understanding that in matters relating to extradition, both article 11 of the Convention and article 3 of the Protocol will be applied in the Republic of Mexico subject to the modalities and procedures laid down in the applicable provisions of national law."

MOLDOVA

The instrument of accession of the Republic of Moldova contained the following declaration:

"Until the full re-establishment of the territorial integrity of the Republic of Moldova, the provisions of the Protocol shall be applied only on the territory controlled by the authorities of the Republic of Moldova.

The Republic of Moldova declares that it shall establish its own jurisdiction over the offences specified in article 2 of the Protocol, in cases provided in article 3, paragraph 2 of this Protocol."

NETHERLANDS

The instrument of acceptance of the Kingdom of the Netherlands contained the following reservation:

"With regard to the obligation laid down in article 1 of the Protocol in conjunction with article 10 of the Convention for the Suppression of Unlawful Acts against the Safety of Maritime Navigation to exercise jurisdiction in cases where the judicial authorities of the Netherlands cannot exercise jurisdiction on any of the grounds referred to in article 3, paragraph 1, of the Protocol, the Government of the Kingdom of the Netherlands reserves the right to be bound to exercise such jurisdiction only after the Kingdom has received and rejected a request for extradition from a State Party".

The depositary received a communication on 29 September 2010 from the Government of the Kingdom of the Netherlands informing of the withdrawal of the above reservation as follows:

“With regard to the obligation laid down in article 1 of the Protocol in conjunction with article 10 of the Convention for the Suppression of Unlawful Acts against the Safety of Maritime Navigation to exercise jurisdiction in cases where the judicial authorities of the Netherlands cannot exercise jurisdiction on any of the grounds referred to in article 3, paragraph 1, of the Protocol, the Government of the Kingdom of the Netherlands reserves the right to be bound to exercise such jurisdiction only after the Kingdom has received and rejected a request for extradition from a State Party.”

SINGAPORE

The instrument of accession included the following reservation and declaration:

“Pursuant to article 1, paragraph 1 of the Protocol, the provisions of article 16 of the Convention for the Suppression of Unlawful Act against the Safety of Maritime Navigation (hereinafter referred to as the "Convention") shall apply, mutatis mutandis, to the Protocol. Accordingly, pursuant to article 16, paragraph 2, of the Convention, the Republic of Singapore declares that it does not consider itself bound by the provisions of article 16, paragraph 1, of the Convention in its application to the Protocol.”

“The Republic of Singapore understands article 10 of the Convention for the Suppression of Unlawful Act against the Safety of Maritime Navigation, whether as applied to the offences under the Protocol or otherwise, to include the right of competent authorities to decide not to submit any particular case for prosecution before the judicial authorities if the alleged offender is dealt with under the national security and preventive detention laws.”

TÜRKIYE

The instrument of ratification of the Republic of Türkiye was accompanied by the following reservation:

[Translation]

"In signing "the Convention for the Suppression of Unlawful Acts against the Safety of Maritime Navigation" and "the Protocol for the Suppression of Unlawful Acts against the Safety of Fixed Platforms located on the Continental Shelf", the Government of the Republic of Türkiye, under the article 16(2) of the said Convention declares that it does not consider itself bound by the provisions of paragraph (1) of the article 16 of the said Convention."

UNITED ARAB EMIRATES

The instrument of accession of the United Arab Emirates contained the following reservation:

[Translation]

"The Government of the United Arab Emirates has taken cognizance of the provisions of the aforementioned Convention and Protocol and accedes to them with full reservation in respect of the provisions of article 16, paragraph 1, of the Convention concerning the settlement of a dispute between States Parties to the Convention by arbitration or, if they are unable to agree on the organization of arbitration, by referral of the dispute to the International Court of Justice. It also enters a full reservation with respect to the provisions of article 1 of the Protocol insofar as they refer to article 16, paragraph 1, of the Convention for the Suppression of Unlawful Acts against the Safety of Maritime Navigation.

Attesting to this, I, Rashid Abdullah Al-Nuaimi, Foreign Minister of the United Arab Emirates, have signed this document on behalf of the Government of the United Arab Emirates and ordered that the official seal of the Foreign Ministry be affixed to it."

UNITED KINGDOM

The instrument of ratification of the United Kingdom of Great Britain and Northern Ireland was accompanied by the following declaration:

"... that until consultations with various territories under the territorial sovereignty of the United Kingdom are completed, the Convention and Protocol will apply in respect of the United Kingdom of Great Britain and Northern Ireland only. Consultations with the territories are in hand and are expected to be completed by the end of 1991."

IV. Notifications

Article 3

CANADA

Pursuant to the provisions of Article 3, paragraph 2 of the Protocol, the Secretary-General has been informed that Canada has established jurisdiction over offences in all of the cases cited in Article 3, paragraph 2 of the Protocol.

Article 3

JAMAICA

Pursuant to the provisions of Article 3, paragraph 2 of the Protocol, the Secretary-General has been informed that Jamaica has established its jurisdiction over the offences set forth in Article 2.

Article 3

PARAGUAY

Pursuant to the provisions of Article 3, paragraph 2 of the Protocol, the Secretary-General has been informed that the Republic of Paraguay has established its jurisdiction in accordance with Article 3, paragraph 2 of the Protocol.

PROTOCOL OF 2005 TO THE PROTOCOL FOR THE SUPPRESSION OF UNLAWFUL ACTS AGAINST THE SAFETY OF FIXED PLATFORMS LOCATED ON THE CONTINENTAL SHELF (SUA PROT 2005)

Done at London, 14 October 2005

Entry into force: 28 July 2010

Signature, ratification, acceptance, approval or accession

Article 8

1 This Protocol shall be open for signature at the Headquarters of the Organization from 14 February 2006 to 13 February 2007 and shall thereafter remain open for accession.

2 States may express their consent to be bound by this Protocol by:

(a) signature without reservation as to ratification, acceptance or approval; or

(b) signature subject to ratification, acceptance or approval, followed by ratification, acceptance or approval; or

(c) accession.

3 Ratification, acceptance, approval or accession shall be effected by the deposit of an instrument to that effect with the Secretary-General.

4 Only a State which has signed the 1988 Protocol without reservation as to ratification, acceptance or approval, or has ratified, accepted, approved or acceded to the 1988 Protocol may become a Party to this Protocol.

Entry into force

Article 9

1 This Protocol shall enter into force ninety days following the date on which three States have either signed it without reservation as to ratification, acceptance or approval, or have deposited an instrument of ratification, acceptance, approval or accession with the Secretary-General. However, this Protocol shall not enter into force before the Protocol of 2005 to the Convention for the Suppression of Unlawful Acts against the Safety of Maritime Navigation has entered into force.

2 For a State which deposits an instrument of ratification, acceptance, approval or accession in respect of this Protocol after the conditions in paragraph 1 for entry into force thereof have been met, the ratification, acceptance, approval or accession shall take effect ninety days after the date of such deposit.

Denunciation

Article 10

1 This Protocol may be denounced by any State Party at any time after the date on which this Protocol enters into force for that State.

2 Denunciation shall be effected by the deposit of an instrument of denunciation with the Secretary-General.

3 A denunciation shall take effect one year, or such longer period as may be specified in the instrument of denunciation, after the deposit of the instrument with the Secretary-General.

Revision and amendment

Article 11

1 A conference for the purpose of revising or amending this Protocol may be convened by the Organization.

2 The Secretary-General shall convene a conference of States Parties to this Protocol for revising or amending the Protocol, at the request of one third of the States Parties, or five States Parties, whichever is the higher figure.

3 Any instrument of ratification, acceptance, approval or accession deposited after the date of entry into force of an amendment to this Protocol shall be deemed to apply to the Protocol as amended.

I. Signatories

II. Contracting States

III. Declarations, Reservations and Statements

IV. Amendments

I. Signatories

Australia	"Subject to ratification"	7 March 2006
Austria	"Subject to ratification"	12 May 2006
Bulgaria	"Subject to ratification"	11 September 2006
Denmark	"Subject to ratification"	9 February 2007
Estonia	"Subject to ratification"	8 February 2007
Finland	"Subject to ratification"	27 February 2006
France	"Sous réserve de ratification, d'acceptation ou d'approbation"	14 February 2006
Greece	"Subject to ratification"	12 February 2007
Italy	"Subject to ratification"	1 February 2007
Netherlands	"Subject to acceptance"	31 January 2007
New Zealand	"Subject to ratification"	24 January 2007
Norway	"Subject to ratification"	14 February 2006
Portugal	"Subject to ratification"	14 June 2006
Spain	"a reserva de ratificación"	12 February 2007
Sweden	"Subject to ratification"	14 February 2006
Türkiye	"Subject to ratification"	15 August 2006
United Kingdom	"Subject to ratification"	23 January 2007
United States of America	"Subject to ratification"	17 February 2006

II. Contracting States

	Date of deposit of instrument	**Date of entry into force**
Algeria (accession)	25 January 2011	25 April 2011
Antigua and Barbuda (accession)	24 November 2015	22 February 2016
Austria (ratification)	18 June 2010	16 September 2010
Barbados (accession)	8 March 2023	6 June 2023
Belgium (accession)	2 July 2019	30 September 2019
Benin (accession)	28 June 2018	26 September 2018
Bulgaria (ratification)	7 October 2010	5 January 2011
Congo (accession)	28 May 2015	26 August 2015
Côte d'Ivoire (accession)	23 March 2012	21 June 2012
Cuba (accession)	10 April 2014	9 July 2014
Cyprus (accession)	28 April 2025	27 July 2025
Denmark (ratification)[1, 2]	14 September 2018	13 December 2018
Djibouti (accession)	23April 2014	22 July 2014
Dominican Republic (accession)	9 March 2010	28 July 2010
Estonia (ratification)	16 May 2008	28 July 2010
Fiji (accession)	21 May 2008	28 July 2010
Finland (ratification)	26 May 2020	24 August 2020
France (approval)	9 May 2018	7 August 2018
Germany (accession)	29 January 2016	28 April 2016
Ghana (accession)	18 November 2019	16 February 2020
Greece (ratification)	11 September 2013	10 December 2013
Iraq (accession)	6 March 2024	4 June 2024

Jamaica (accession)	28 November 2013	26 February 2014
Kazakhstan (accession)	3 May 2019	1 August 2019
Latvia (accession)	16 November 2009	28 July 2010
Liechtenstein (accession)	28 August 2009	28 July 2010
Marshall Islands (accession)	9 May 2008	28 July 2010
Mauritania (accession)	21 August 2013	19 November 2013
Montenegro (accession)	6 January 2020	5 April 2020
Nauru (accession)	29 April 2010	28 July 2010
Netherlands[3] (acceptance)	1 March 2011	30 May 2011
New Zealand[1] (ratification)	26 February 2018	27 May 2018
Nigeria (accession)	19 November 2024	17 February 2025
Norway (ratification)	30 September 2013	29 December 2013
Palau (accession)	29 September 2011	28 December 2011
Panama (accession)	24 February 2011	25 May 2011
Portugal (ratification)	1 September 2015	30 November 2015
Qatar (accession)	10 January 2014	10 April 2014
Saint Lucia (accession)	8 November 2012	6 February 2013
Saint Vincent and the Grenadines (accession)	5 July 2010	3 October 2010
San Marino (accession)	15 December 2014	15 March 2015
Saudi Arabia (accession)	31 July 2013	29 October 2013
Spain (ratification)	16 April 2008	28 July 2010
Sweden (ratification)	22 September 2014	21 December 2014
Switzerland (accession)	15 October 2008	28 July 2010
Türkiye (ratification)	21 June 2019	19 September 2019
United States of America (ratification)	28 August 2015	26 November 2015
Uruguay (accession)	29 April 2015	28 July 2015
Vanuatu (accession)	20 August 2008	28 July 2010

Number of Contracting States: 49

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[1] For the text of a reservation, declaration or statement, see section III.

[2] Demark declares the Protocol will not apply to the Faroe Islands and Greenland until further notice.

[3] Acceptance for the European part of the Netherlands and Caribbean part of the Netherlands (the latter comprising Bonaire, Sint Eustatius and Saba) only.

III. Declaration, Reservations and Statements

DENMARK

The instrument of ratification by Denmark was accompanied by the following declaration:

> "Authorization granted by Danish authorities pursuant to article 8bis denotes only that Denmark will abstain from pleading infringement of Danish sovereignty in connection with the requesting State's boarding of a vessel or a platform. Danish authorities cannot authorize another State to take legal action on behalf of the Kingdom of Denmark."

FRANCE

The instrument of approval of France contained the following reservations and declarations:

“1. Concerning article 3, paragraph 3 of the present Protocol replacing article 2, paragraph 2 of the Protocol for the Suppression of Unlawful Acts against the Safety of Fixed Platforms Located on the Continental Shelf, the French Republic understands "threatens"/"threat" to mean a threat [Fr. menace] such as it is defined in the conditions provided for by French criminal legislation.

2. Concerning article 4, paragraph 2 of the present Protocol, which inserts an article 2ter in the Protocol for the Suppression of Unlawful Acts against the Safety of Fixed Platforms Located on the Continental Shelf, the French

Republic understands "attempts to commit an offence", "participates as an accomplice in an offence" and "organizes [the commission of] an offence" to mean an attempt [Fr. tentative] and participation as an accomplice [Fr. complicité] such as they are defined in the conditions provided for by French criminal legislation.

3. The French Republic does not consider itself bound by the provisions of article 2 of the present Protocol, which replaces article 1, paragraph 1 of the Protocol for the Suppression of Unlawful Acts against the Safety of Fixed Platforms Located on the Continental Shelf, in that they refer to the provisions of article 16, paragraph 1 of the Convention for the Suppression of Unlawful Acts against the Safety of Maritime Navigation, as revised by the Protocol of 2005 to the Convention for the Suppression of Unlawful Acts against the Safety of Maritime Navigation, according to which "Any dispute between two or more States Parties concerning the interpretation or application of this Convention which cannot be settled through negotiation within a reasonable time shall, at the request of one of them, be submitted to arbitration. If, within six months from the date of the request for arbitration, the parties are unable to agree on the organization of the arbitration any one of those parties may refer the dispute to the International Court of Justice by request in conformity with the Statute of the Court."

NEW ZEALAND

The instrument of ratification of New Zealand contained the following declaration:

"AND DECLARES that its ratification shall extend to Tokelau."

THE INTERNATIONAL COSPAS-SARSAT PROGRAMME AGREEMENT (COS-SAR 1988)

Done at Paris, 1 July 1988

Entry into force: 30 August 1988

Entry into force and duration

Article 20

20.1 This Agreement shall be open for signature by Canada, the Republic of France, the United States of America and the Union of Soviet Socialist Republics. Signature may be made not subject to ratification, acceptance or approval, or may be accompanied by a declaration that it is subject to ratification, acceptance or approval.

20.2 This Agreement shall enter into force for Canada, the Republic of France, the United States of America and the Union of Soviet Socialist Republics on the sixtieth day following the date on which these four States have either signed the Agreement not subject to ratification, acceptance or approval, or have deposited instruments of ratification, acceptance or approval with the Depositary.

20.3 Upon entry into force of this Agreement, the Parties shall take the necessary measures in order to ensure that the Memorandum of Understanding, which was signed 5 October 1984 and came into effect 8 July 1985, among the Ministry of Merchant Marine of the Union of Soviet Socialist Republics, the National Oceanic and Atmospheric Administration of the United States of America, the Department of National Defence of Canada and the Centre National d'Etudes Spatiales of France concerning Co-operation in the COSPAS-SARSAT Search and Rescue Satellite System, ceases to be in effect.

20.4 This Agreement shall remain in force for a period of fifteen years from the date on which it enters into force and shall be extended automatically for successive periods of five years.

Accession

Article 16

16.1 This Agreement shall be open for accession by any State that agrees to contribute a minimum of one basic unit to the Space Segment, and is prepared to assume the responsibilities of a Party pursuant to this Agreement.

16.2 Where a State is to accede to this Agreement and assume responsibility for the contribution of a basic unit of the existing Space Segment, either as described in article 3.1 or as enhanced pursuant to article 3.2, it shall do so in agreement with the Party currently providing that basic unit and in consultation with the other Parties.

16.3 Where a State is to accede to this Agreement and assume responsibility for the contribution of an additional basic unit which itself constitutes an enhancement of the Space Segment, it shall do so with the agreement of all Parties following a decision of the Council pursuant to article 3.2 that such enhancement is required.

16.4 Where the requirements of article 16.2 or 16.3, as appropriate, have been satisfied and the State so notified, such State may accede by depositing its instrument of accession with the Depositary.

16.5 This Agreement shall enter into force for the acceding State on the date of deposit of the instrument of accession with the Depositary.

Ground Segment Providers

Article 11

11.1 Any State planning to establish and operate Ground Segment equipment shall advise the Council of its intention to do so and shall:

(a) adhere to the technical specifications and operating procedures set by the Council for the purpose of ensuring adequate system performance;

(b) endeavour to deliver, in accordance with procedures agreed with the Council, distress alert and location information received through the COSPAS-SARSAT Space Segment to appropriate search and rescue authorities;

(c) provide, as agreed with the Council, appropriate performance data in order to confirm compatibility of its Ground Segment equipment with the System;

(d) designate an organization to carry out its responsibilities pursuant to this article;

(e) participate in appropriate meetings of the Programme, convened by the Council, on terms and conditions determined by the Council, with a view to resolving relevant administrative, operational and technical issues;

(f) confirm that it will not make any claims or bring actions against the Parties for injury, damages or financial losses arising out of activities, or lack thereof, pursuant to this Agreement;

(g) adhere to the provisions of article 12 in relation to its use of the System; and

(h) fulfil any other requirement as may be agreed with the Council.

11.2 Any such State wishing to become a Ground Segment Provider shall notify formal acceptance of its obligations pursuant to article 11.1 to the Depositary which shall inform the Parties. Such notification shall be in the form of a standard letter and shall include the conditions of participation in the System previously agreed with the Council pursuant to article 11.1.

User States

Article 12

12.1 Any State may utilize the System both through the reception of COSPAS-SARSAT alert and location data and through the deployment of radiobeacons.

12.2 Any such State wishing to become a User State shall assume certain responsibilities including:

(a) to advise the Council or the competent international organization of its point or points of contact for distress alert purposes;

(b) to make use of radiobeacons for operation in the System, the characteristics of which comply with appropriate provisions of the International Telecommunication Union and COSPAS-SARSAT specifications;

(c) to maintain, as applicable, a radiobeacon register;

(d) to exchange COSPAS-SARSAT data in a timely and non-discriminatory manner, in accordance with procedures agreed with the Council;

(e) to confirm that it will not make any claims or bring actions against the Parties for injury, damages or financial losses arising out of activities, or lack thereof, pursuant to this Agreement;

(f) to participate as necessary in appropriate meetings of the Programme, convened by the Council, on terms and conditions determined by the Council, with a view to resolving relevant administrative, operational and technical issues; and

(g) to fulfil any other requirement as may be agreed with the Council.

12.3 User States shall notify formal acceptance of their obligations under article 12.2 to the Depositary which shall inform the Parties. Such notification shall be in the form of a standard letter and shall include the conditions of participation in the System previously agreed with the Council pursuant to article 12.2.

I. Parties

II. Notifications

III. Ground Segment Providers

IV. User States

I. Parties

	Date of signature or deposit of instrument	Date of entry into force
Canada (signature)	1 July 1988	30 August 1988
France (signature)	1 July 1988	30 August 1988
Russian Federation[1, 2] (signature)	1 July 1988	30 August 1988
United States (signature)	1 July 1988	30 August 1988

Number of Contracting States: 4

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[1] As from 26 December 1991 the membership of the USSR in the Agreement is continued by the Russian Federation.

1 With a notification under article 4 of the Agreement, see section II.

II. Notifications

Article 4 of the Agreement - Co-operating Agencies

USSR:[1]

[*Translation*]

> "In accordance with article 4/2 of the Agreement on the COSPAS-SARSAT International Programme, 1988, the Soviet side is notifying herewith that the All-Union Association "Morsvjaz-sputnik" has been designated as the co-operating organization responsible for the implementation of the programme."

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[1] This designation remains unchanged after the declaration of continuity of membership in the Programme by the Russian Federation.

III. Ground Segment Providers

	Date of receipt of Notification	Date of entry into force
Algeria	10 April 1996 (ICAO)	10 May 1996
Argentina	10 December 2001 (ICAO)	9 January 2002
Australia	23 May 1991 (IMO)	22 June 1991
Brazil	10 June 1992 (ICAO)	10 July 1992
Chile	23 January 1990 (ICAO)	23 February 1990
China	26 February 1997 (IMO)	28 March 1997
Cyprus	9 March 2017 (ICAO)	8 April 2017
Greece	13 April 2006 (IMO)	13 May 2006
India	23 April 1991 (ICAO)	23 May 1991
Indonesia	28 May 1992 (IMO)	27 June 1992
Italy	28 December 1990 (ICAO)	27 January 1991
Japan	10 June 1993 (IMO)	10 July 1993
Malaysia	28 November 2016	28 December 2016
New Zealand	15 April 1993 (ICAO)	15 May 1993
Nigeria	20 April 2004 (IMO)	20 May 2004
Norway	30 November 1990 (IMO)	30 December 1990
Pakistan	13 September 1991 (IMO)	13 October 1991
Peru	28 October 1996 (IMO)	27 November 1996
Republic of Korea	25 September 1995 (IMO)	25 October 1995
Saudi Arabia	20 July 2000 (ICAO)	19 August 2000
Singapore	23 September 1992 (IMO)	23 October 1992
South Africa	3 October 2000 (IMO)	2 November 2000
Spain	8 June 1992 (IMO)	8 July 1992
Thailand	20 October 1999 (ICAO)	19 November 1999
Togo	12 December 2018 (ICAO)	11 January 2019
Türkiye	12 May 2005 (ICAO)	11 June 2005
United Kingdom	7 February 1990 (IMO)	9 March 1990
Vietnam	27 May 2002 (IMO)	26 June 2002
United Arab Emirates	27 October 2009 (ICAO)	26 November 2009

IV. User States

	Date of receipt of Notification	Date of entry into force
China	19 October 1992 (IMO)	18 November 1992
[Cyprus[1]	6 September 2006 (IMO)	6 October 2006]
Denmark	6 February 1991 (ICAO)	8 March 1991
Finland	5 February 2010 (IMO)	7 March 2010
Germany[2]	17 November 1992 (ICAO)	17 December 1992
Madagascar	12 March 1996 (ICAO)	11 April 1996
Netherlands	1 February 1995 (IMO)	3 March 1995
Poland	17 August 2005 (ICAO)	16 September 2005
Serbia	17 June 2010 (ICAO)	17 July 2010
Sweden	24 September 1990 (ICAO)	24 October 1990
Switzerland	15 January 1991 (ICAO)	14 February 1991
Tunisia	6 July 1994 (ICAO)	5 August 1994

1 Cyprus status as User State ceased on 8 April 2017

[2] In the accompanying letter of 31 August 1992 from the Federal Ministry of Transport, it is indicated that the association of the Federal Republic of Germany is subject to the following reservation:

> "As regards the application of the liability clause according to paragraph 5.2 of the Notification, a reservation is made in so far as potential liability claims against the Federal Republic of Germany by third parties for injuries, damage or financial losses that might arise from their use of the System or from the association of the Federal Republic of Germany with the Programme remain unaffected under German national law".

INTERNATIONAL CONVENTION ON SALVAGE, 1989 (SALVAGE 1989)

Done at London, 28 April 1989

Entry into force: 14 July 1996

Signature, ratification, acceptance, approval, accession

Article 28

1 This Convention shall be open for signature at the Headquarters of the Organization from 1 July 1989 to 30 June 1990 and shall thereafter remain open for accession.

2 States may express their consent to be bound by this Convention by:

(a) signature without reservation as to ratification, acceptance or approval; or

(b) signature subject to ratification, acceptance or approval, followed by ratification, acceptance or approval; or

(c) accession.

3 Ratification, acceptance, approval or accession shall be effected by the deposit of an instrument to that effect with the Secretary-General.

Entry into force

Article 29

1 This Convention shall enter into force one year after the date on which 15 States have expressed their consent to be bound by it.

2 For a State which expresses its consent to be bound by this Convention after the conditions for entry into force thereof have been met, such consent shall take effect one year after the date of expression of such consent.

I. Signatories

II. Contracting States

III. Declarations, Reservations, Notifications and Statements.

I. Signatories

Canada	Subject to ratification
Denmark	Subject to ratification
Finland	Subject to approval
Germany, Federal Republic of	Subject to ratification
Ireland	Subject to ratification
Italy	Subject to ratification
Mexico	Ad referendum
Netherlands	Subject to acceptance
Nigeria	Subject to ratification
Norway	Subject to ratification
Poland	Subject to ratification
Spain	Ad referendum and with reservations[1]
Sweden	Subject to ratification
Switzerland	Sous réserve de ratification
USSR	[*Translation*] Subject to subsequent ratification
United Kingdom	Subject to ratification
United States	Subject to ratification

II. Contracting States

	Date of deposit of instrument	Date of entry into force
Albania (accession)	14 June 2006	14 June 2007
Algeria (accession)	26 March 2012	26 March 2013
Australia (accession)[1]	8 January 1997	8 January 1998
Azerbaijan (accession)	12 June 2006	12 June 2007
Barbados (accession)	8 March 2023	8 March 2024
Brazil (accession)	29 July 2009	29 July 2010
Belgium (accession)	30 June 2004	30 June 2005
Bulgaria (accession)[1]	14 March 2005	14 March 2006
Canada (ratification)[1]	14 November 1994	14 July 1996
China (accession)[1, 4]	30 March 1994	14 July 1996
Congo (accession)	7 September 2004	7 September 2005
Côte d'Ivoire (accession)	18 July 2023	18 July 2024
Croatia (accession)[1]	10 September 1998	10 September 1999
Denmark (ratification)	30 May 1995	14 July 1996
Djibouti (accession)	12 October 2015	12 October 2016
Dominica (accession)	31 August 2001	31 August 2002
Ecuador (accession)[1]	16 February 2005	16 February 2006
Egypt (accession)	14 March 1991	14 July 1996
Estonia (accession)	31 July 2001	31 July 2002
Finland (approval)[1]	12 January 2007	12 January 2008
Fiji (accession)	8 March 2016	8 March 2017
France (accession)[1]	21 December 2001	21 December 2002
Georgia (accession)	25 August 1995	25 August 1996
Germany (ratification)[1]	8 October 2001	8 October 2002
Greece (accession)	3 June 1996	3 June 1997
Guinea (accession)	2 October 2002	2 October 2003
Guyana (accession)	10 December 1997	10 December 1998
Iceland (accession)	21 March 2002	21 March 2003
India (accession)	18 October 1995	18 October 1996
Iran (Islamic Republic of) (accession)[1]	1 August 1994	14 July 1996
Iraq (accession)	1 March 2023	1 March 2024
Ireland (ratification)[1]	6 January 1995	14 July 1996
Italy (ratification)	14 July 1995	14 July 1996
Jamaica (accession)	28 November 2013	28 November 2014
Jordan (accession)	3 October 1995	3 October 1996
Kenya (accession)	21 July 1999	21 July 2000

Kiribati (accession)	5 February 2007	5 February 2008
Latvia (accession)	17 March 1999	17 March 2000
Liberia (accession)	18 September 2008	18 September 2009
Lithuania (accession)[1]	15 November 1999	15 November 2000
Madagascar (accession)	26 July 2019	26 July 2020
Marshall Islands (accession)	16 October 1995	16 October 1996
Mauritius (accession)	17 December 2002	17 December 2003
Mexico (ratification)[1]	10 October 1991	14 July 1996
Mongolia (accession)	2 September 2015	2 September 2016
Morocco (accession)	25 February 2016	25 February 2017
Montenegro (accession)	19 April 2012	19 April 2013
Netherlands (acceptance)[1,3]	10 December 1997	10 December 1998
New Zealand (accession)[1]	16 October 2002	16 October 2003
Nigeria (ratification)	11 October 1990	14 July 1996
Niue (accession)	27 June 2012	27 June 2013
Norway (ratification)[1]	3 December 1996	3 December 1997
Oman (accession)	14 October 1991	14 July 1996
Palau (accession)	29 September 2011	29 September 2012
Poland (ratification)	16 December 2005	16 December 2006
Romania (accession)	18 May 2001	18 May 2002
Russian Federation (ratification)[1]	25 May 1999	25 May 2000
Saint Kitts and Nevis (accession)	7 October 2004	7 October 2005
Jamaica (accession)	28 November 2013	28 November 2014
San Marino (accession)	19 April 2021	19 April 2022
Saudi Arabia (accession)[1]	16 December 1991	14 July 1996
Sierra Leone (accession)	26 July 2001	26 July 2002
Singapore (accession)	24 July 2020	24 July 2021
Slovenia (accession)	23 December 2005	23 December 2006
Solomon Islands (accession)	30 September 2024	30 September 2025
Spain (ratification)[1]	27January 2005	27 January 2006
Sweden (ratification)[1]	19 December 1995	19 December 1996
Switzerland (ratification)	12 March 1993	14 July 1996
Syrian Arab Republic (accession)	19 March 2002	19 March 2003
Thailand (accession)[1]	28 November 2019	28 November 2020
Tonga (accession)	18 September 2003	18 September 2004
Tunisia (accession)[1]	5 May 1999	5 May 2000
Türkiye (accession) [1]	27 June 2014	27 June 2015
Ukraine (accession)	15 June 2017	15 June 2018
United Arab Emirates (accession)	4 October 1993	14 July 1996
United Kingdom (ratification)[1, 2]	29 September 1994	14 July 1996
United States (ratification)	27 March 1992	14 July 1996
Uruguay (accession)	16 November 2018	16 November 2019
Vanuatu (accession)	18 February 1999	18 February 2000
Yemen (accession)	23 September 2008	23September 2009

Number of Contracting States: 79

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[1] For the text of a reservation or statement, see section III.

[2] The United Kingdom declared its ratification to be effective from 22 July 1998 in respect of:

Bailiwick of Jersey Falkland Islands* Hong Kong** Isle of Man Montserrat South Georgia and South Sandwich Islands*	With effect from 30 May 1997	Anguilla British Antarctic Territory British Indian Ocean Territory British Virgin Islands Cayman Islands Pitcairn, Henderson, Ducie and Oeno Islands St. Helena, Ascension and Tristan da Cunha*** Turks and Caicos Islands	With effect from 22 July 1998

Bailiwick of Guernsey with effect from 14 September 2001.

[3] Extended to Bonaire, Sint Eustatius and Saba (the Caribbean part of the Netherlands) with effect from 10 October 2010. For more details on the restructuring of the Netherlands see footnote 4, in section II of SOLAS 1974.

[Footnotes continued]

[*] The depositary received the following communication, dated 6 February 1995, from the Chargé d'affaires a.i., Embassy of the Argentine Republic, London:

[Translation]

"... the Argentine Government rejects the statement made by the United Kingdom of Great Britain and Northern Ireland on ratifying the International Convention on Salvage, 1989. In that statement, ratification was declared to be effective in respect of the Malvinas Islands, South Georgia Islands and South Sandwich Islands. The Argentine Republic reaffirms its sovereignty over these islands and their surrounding maritime areas, which constitute an integral part of its national territory.

The Argentine Republic recalls the adoption, by the General Assembly of the United Nations, of resolutions 2065(XX), 3160(XXVIII), 31/49, 37/9, 38/12, 39/6, 40/21, 41/41, 42/19 and 43/25, acknowledging the existence of a dispute concerning sovereignty and urging the Governments of the Argentine Republic and of the United Kingdom of Great Britain and Northern Ireland to enter into negotiations with a view to identifying means of pacific and final settlement of the outstanding problems between the two countries, including all matters concerning the future of the Malvinas Islands, in accordance with the Charter of the United Nations."

The depositary received the following communication, dated 9 May 1995, from the Foreign and Commonwealth Office, London:

"... The Government of the United Kingdom of Great Britain and Northern Ireland have noted the declaration of the Government of Argentina regarding the extension by the United Kingdom of the application of the Convention to the Falkland Islands and to South Georgia and the South Sandwich Islands.

The British Government have no doubt about the sovereignty of the United Kingdom over the Falkland Islands and over South Georgia and the South Sandwich Islands and their consequential right to extend the said Convention to these Territories. The British Government reject as unfounded the claims by the Government of Argentina."

[**] Ceased to apply to Hong Kong with effect from 1 July 1997.

[***] The depositary received a communication, dated 2 March 2010, from the Foreign and Commonwealth Office in London, informing that the name of the British overseas territory formerly called “St. Helena and Dependencies” has been changed to “St. Helena, Ascension and Tristan da Cunha”. The status of the territory as a British overseas territory remains unchanged.

[4] Applies to the Hong Kong Special Administrative Region with effect from 1 July 1997 and FSOLAS .

III. Declarations, Reservations, Notifications and Statements

AUSTRALIA

The instrument of accession of Australia contained the following reservation:

"... that Australia shall not be bound to apply the provisions of the Convention in the circumstances specified in Article 30, paragraph 1, subparagraphs (a), (b) and (d) of the Convention."

BULGARIA

The instrument of accession by Bulgaria contained the following notification and reservations:

"1. Pursuant to article 4, paragraph 2:

"The Republic of Bulgaria decides to apply the International Convention on Salvage, 1989, to the Bulgarian warships and ships owned by the State, used for non-commercial purposes."

2. Pursuant to article 30:

"The Republic of Bulgaria reserves the right not to apply the International Convention on Salvage, 1989:

a) when the salvage operation takes place in inland waters and all vessels involved are of inland navigation;

b) when the salvage operation takes place in inland waters and no vessel is involved;

c) when all interested parties are nationals of the Republic of Bulgaria;

d) when the property involved is maritime cultural property of prehistoric, archaeological or historic interest and is situated on the sea-bed."

CANADA

The instrument of ratification of Canada was accompanied by the following reservation:

"Pursuant to Article 30 of the *International Convention on Salvage, 1989,* the Government of Canada reserves the right not to apply the provisions of this Convention when the property involved is maritime cultural property of prehistoric, archaeological or historic interest and is situated on the sea-bed".

CHINA

The instrument of accession of the People's Republic of China contained the following statement:

[Translation]

"that in accordance with the provisions of article 30, paragraph 1 of the International Convention on Salvage, 1989, the Government of the People's Republic of China reserves the right not to apply the provisions of article 30, paragraphs 1(a), (b) and (d) of the said Convention."

By notification dated 5 June 1997 the Government of the People's Republic of China made the following declaration:

[Translation]

"It reserves the right for the Hong Kong Special Administrative Region, in accordance with paragraph 1(a), (b) and (d) of Article 30, not to apply the provisions of the Convention when:

(a) the salvage operation takes place in inland waters and all vessels involved are of inland navigation; or

(b) the salvage operations take place in inland waters and no vessel is involved; or

(c) the property involved is maritime cultural property of prehistoric, archaeological or historic interest and situated on the sea-bed."

CROATIA

The instrument of accession of the Republic of Croatia was accompanied by the following reservation:

"In accordance with paragraph 1(b) and (d) Article 30 of the International Convention on Salvage, 1989, the Republic of Croatia declares that it reserves the right not to apply the provisions of the International Convention on Salvage:

- when the salvage operations take place in inland waters and no vessel is involved;

- when the property involved is maritime cultural property of prehistoric, archaeological or historic interest and is situated on the sea-bed."

ECUADOR

The instrument of accession by Ecuador contained the following reservation:

"In accordance with article 30.1(d) of the International Convention on Salvage, 1989, adopted on 28 April 1989 in London, United Kingdom, at the headquarters of the International Maritime Organization (IMO), the Government of the Republic of Ecuador reserves the right not to apply the provisions of the Convention when the property involved is maritime cultural property of prehistoric, archaeological or historic interest and is situated on the sea-bed."

ESTONIA

The instrument of accession of the Republic of Estonia contained the following reservation:

[Translation]

"1) Pursuant to Article 4, paragraphs 1 and 2 of the Convention the Republic of Estonia shall apply this Convention to warships and other non-commercial vessels owned or operated by the State and entitled, at the time of salvage operations, to sovereign immunity under generally recognized principles of international law;

2) Pursuant to Article 30, paragraph 1(a), (b) and (d) of the Convention the Republic of Estonia reserves the right not to apply the provisions of the Convention:

a) when the salvage operation takes place in inland waters and all vessels involved are of inland navigation;

b) when the salvage operations take place in inland waters and no vessels is involved:

c) when the property involved is maritime cultural property of prehistoric, archaeological or historic interest and is situated on the sea-bed."

FINLAND

The instrument of approval by Finland contained the following reservation:

“Pursuant to article 30(1)(d) of the Convention, the Republic of Finland reserves the right not to apply the provisions of this Convention when the property involved is maritime cultural property of prehistoric, archaeological or historic interest and is situated on the sea-bed.”

FRANCE

The instrument of accession of France contained the following reservation:

"In ratifying the International Convention on Salvage, established in London on 28 April 1989, the Government of the French Republic reserves the right, under Article 30, paragraph 1(a) and (b) of the Convention, not to apply its provisions when salvage operations take place in inland waters and all vessels involved are of inland navigation and when assistance operations take place in inland waters and no vessel is involved.

In accordance with Article 30, paragraph 1(d) of the convention, the French Government also reserves the right not to apply the provisions of the said Convention when the property involved is maritime cultural property of prehistoric, archaeological or historic interest and is situated on the seabed."

GERMANY

The instrument of ratification of Germany contained the following reservation:

[Translation]

"By way of derogation from Article 4(1), the Federal Republic of Germany will also apply the provision of this Convention, with the exception of Article 21, to vessels owned or operated by a State which are serving non-commercial purposes and which are entitled, at the time of salvage operations, to sovereign immunity under generally recognized principles of international law.

In accordance with Article 30(1)(d), the Federal Republic of Germany reserves the right not to apply the provisions of this Convention when the property involved is maritime cultural property of prehistoric, archaeological or historic interest and is situated on the seabed."

ISLAMIC REPUBLIC OF IRAN

The instrument of accession of the Islamic Republic of Iran contained the following reservation:

"The Government of the Islamic Republic of Iran reserves the right not to apply the provisions of this Convention in the cases mentioned in article 30, paragraphs 1(a), (b), (c) and (d)."

IRELAND

The instrument of ratification of Ireland contained the following reservation:

"... reserve the right of Ireland not to apply the provisions of the Convention specified in article 30(1)(a) and (b) thereof."

JAMAICA

The instrument of accession Jamaica contained the following reservation:

“ .. the Government of Jamaica, in accordance with article 30(1)(d) reserves the right not to apply the provisions of this Convention when the property involved its maritime cultural property of prehistoric, archaeological or historic interest and is situated on the sea-bed.”

LITHUANIA

The instrument of accession of the Republic of Lithuania contained the following reservation:

"IN ACCORDANCE with the paragraph 1(a) and (b) of article 30 of the said Convention the Republic of Lithuania reserves the right not to apply the provisions of the Convention when:

1. the salvage operation takes place in inland waters and all vessels involved are of inland navigation,

2. the salvage operations take place in inland and no vessel is involved."

MEXICO

The instrument of ratification of Mexico contained the following reservation and declaration:

[Translation]

"The Government of Mexico reserves the right not to apply the provisions of this Convention in the cases mentioned in article 30, paragraphs 1(a), (b), (c) and (d), pointing out at the same time that it considers salvage as a voluntary act."

NETHERLANDS

The instrument of acceptance contained the following reservation:

"The Kingdom of the Netherlands reserves the right not to apply the provisions of this Convention when the property involved is maritime cultural property of prehistoric, archaeological or historic interest and is situated on the sea-bed."

The acceptance was accompanied by the following notification, made in accordance with article 4, paragraph 2 of the Convention:

"The Kingdom of the Netherlands has decided to apply the International Convention on Salvage, 1989 to its warships or other vessels described in paragraph 1 of article 4 of the Convention under the following terms and conditions: according to article 554 of Book 8, Means of Traffic and Transport, of the Netherlands Civil Code, as amended by Act of 2 July 1997 amending Book 8 of the Civil Code with regard to salvage and several other acts, section 2, Assistance, of Title 6 of said Book 8 also applies to salvage by or of a warship or other non-commercial vessel belonging to, operated or chartered by the State of the Netherlands or any other State that has declared the Convention applicable to those ships or vessels."

NEW ZEALAND

The instrument of accession of New Zealand contained the following reservation and declaration:

"The Government of New Zealand, in respect of Article 30(1)(d) of the Convention, reserves the right not to apply the provisions of the Convention when the property involved is maritime cultural property of prehistoric, archaeological or historic interest and is situated on the sea bed; and declares that this accession shall extend to Tokelau."

NORWAY

The instrument of ratification of the Kingdom of Norway contained the following reservation:

"In accordance with Article 30, subparagraph 1(d) of the Convention, the Kingdom of Norway reserves the right not to apply the provisions of this Convention when the property involved is maritime cultural property of prehistoric, archaeological or historic interest and is situated on the sea-bed."

POLAND

The instrument of ratification by Poland contained the following declaration and reservations:

"1) In accordance with Article 4, paragraphs 1 and 2 of the Convention the Republic of Poland shall apply this Convention to warships and other non-commercial vessels owned or operated by the Republic of Poland;

2) In accordance with Article 30, paragraph 1(a), (b) and (d) of the Convention the Republic of Poland reserves the right not to apply the provisions of the Convention:

(a) when the salvage operation takes place in inland waters and all vessels involved are of

inland navigation,

(b) when the salvage operations take place in inland waters and no vessels is involved,

(c) when the property involved is maritime cultural property of prehistoric, archaeological or historic interest and is situated on the sea-bed."

RUSSIAN FEDERATION

The instrument of ratification of the Russian Federation contained the following reservation (in the Russian language):

[Translation]

"The Russian Federation, pursuant to paragraph 1, subparagraph (d) of article 30 of the International Convention on Salvage, 1989, reserves the right not to apply that provision in the said Convention, when the property concerned is maritime property of a cultural character of prehistoric, archaeological or historical significance and is lying on the seabed."

SAUDI ARABIA

The instrument of accession of Saudi Arabia contained the following reservations:

[Translation]

"1. This instrument of accession does not in any way whatsoever mean the recognition of Israel; and

2. The Kingdom of Saudi Arabia reserves its right not to implement the rules of this instrument of accession to the situations indicated in paragraphs (a), (b), (c) and (d) of article 30 of this instrument."[1]

SPAIN

The following reservations were made at the time of signature of the Convention:

[Translation]

"In accordance with the provisions of article 30.1(a), 30.1(b) and 30.1(d) of the International Convention on Salvage, 1989, the Kingdom of Spain reserves the right not to apply the provisions of the said Convention:

- when the salvage operation takes place in inland waters and all vessels involved are of inland navigation;

- when the salvage operations take place in inland waters and no vessel is involved.

For the sole purposes of these reservations, the Kingdom of Spain understands by 'inland waters' not the waters envisaged and regulated under the name of 'internal waters' in the United Nations Convention on the Law of the Sea but continental waters that are not in communication with the waters of the sea and are not used by seagoing vessels. In particular, the waters of ports, rivers, estuaries, etc., which are frequented by seagoing vessels are not considered as 'inland waters':

- when the property involved is maritime cultural property of prehistoric, archaeological or historic

[1] The depositary received the following communication dated 27 February 1992 from the Embassy of Israel:

"The Government of the State of Israel has noted that the instrument of accession of Saudi Arabia to the above-mentioned Convention contains a declaration with respect to Israel.

In the view of the Government of the State of Israel such declaration, which is explicitly of a political character, is incompatible with the purposes and objectives of this Convention and cannot in any way affect whatever obligations are binding upon Saudi Arabia under general International Law or under particular Conventions.

The Government of the State of Israel will, in so far as concerns the substance of the matter, adopt towards Saudi Arabia an attitude of complete reciprocity."

interest and is situated on the sea-bed".

The instrument of ratification by Spain contained the following reservation:

[Translation]

"In accordance with article 30.1(a), (b) and (d) of the International Convention on Salvage, 1989, the Kingdom of Spain reserves the right not to apply the provisions of the Convention:

- when the salvage operation takes place in inland waters and all vessels involved are of inland origin;

- when the salvage operations take place in inland waters and no vessel is involved.

- For the purposes of these reservations, the Kingdom of Spain intends that "inland waters" shall mean exclusively those continental waters that are not in contact with the waters of the sea and are not used by maritime shipping;

- when the property involved is maritime cultural property of prehistoric, archaeological or historic interest and is situated on the sea-bed."

SWEDEN

The instrument of ratification of the Kingdom of Sweden contained the following reservation:

"Referring to Article 30 1(d) Sweden reserves the right not to apply the provisions of the Convention when the property involved is maritime cultural property of prehistoric, archaeological or historic interest and is situated on the sea-bed."

SYRIAN ARAB REPUBLIC

The instrument of accession of the Syrian Arab Republic contained the following statement (in the Arabic language):

[Translation]

"The accession to this Convention by the Syrian Arab Republic does not mean in any way the recognition of Israel nor does it entail any form of collaboration provided for in the Convention".

On 27 May 2003, the Depositary received the following communication from the Embassy of Israel:

"The Government of the State of Israel has noted that the instrument of accession of the Syrian Arab Republic to the above-mentioned convention contains declarations with respect to the State of Israel.

The Government of the State of Israel considers one of the declarations to be in fact a reservation incompatible with the object and purpose of the Convention, as expressed in articles 10 and 30 thereof.

The Government of the State of Israel recalls that according to Article 19(c) of the Vienna Convention on the Law of Treaties, a reservation incompatible with the object and purpose of the Convention shall not be permitted.

The Government of the State of Israel further considers declarations of a political character such as the Syrian declarations to be an abuse of the Convention.

The Government of the State of Israel therefore objects to the aforesaid declarations made by the Syrian Arab Republic to the International Convention on Salvage."

THAILAND

The instrument of accession of Thailand was accompanied by the following reservation:

"… pursuant to paragraph (1) (a) of article 30 of the aforesaid Convention, the Kingdom of Thailand reserves the right not to apply the provisions of this Convention when the salvage operation takes place in inland waters of Thailand and all vessels involved are of inland navigation."

TUNISIA

The instrument of accession of the Republic of Tunisia contained the following reservation (in the French language):

[Translation]

"Tunisia reserves the right not to apply the provisions of the International Convention on Salvage, 1989:

(a) When the salvage operations are carried out in internal waters and when all the ships involved are internal navigation ships;

(b) When the salvage operations are carried out in internal waters and no ship is involved;

(c) When all the parties concerned are Tunisian;

(d) When maritime cultural property of prehistoric, archaeological or historic interest lying on the seabed is involved."

TÜRKIYE

The instrument of accession of the Republic of Türkiye contained the following reservation:

“The Republic of Türkiye reserves the right not to apply the provisions of this Convention in the situations mentioned in Article 30 of the International Convention on Salvage, 1989.”

UKRAINE

The instrument of accession contained the following reservation:

"In accordance with article 30 of this Convention, Ukraine reserves the right not to apply the provisions of this Convention when:

(a) the salvage operation takes place in inland waters of Ukraine and all vessels involved are of inland navigation;

(b) the salvage operations take place in inland waters of Ukraine and no vessel is involved;

(c) all interested parties are nationals of Ukraine;

(d) the property involved is maritime cultural property of prehistoric, archaeological or historic interest and is situated on the sea-bed."

UNITED KINGDOM

The instrument of ratification of the United Kingdom of Great Britain and Northern Ireland contained the following reservation:

"In accordance with the provisions of article 30, paragraph 1(a), (b) and (d) of the Convention, the United Kingdom reserves the right not to apply the provisions of the Convention when:

(i) the salvage operation takes place in inland waters and all vessels involved are of inland navigation; or

(ii) the salvage operations take place in inland waters and no vessel is involved; or

(iii) the property involved is maritime cultural property of prehistoric, archaeological or historic interest and is situated on the sea-bed."

INTERNATIONAL CONVENTION ON OIL POLLUTION PREPAREDNESS, RESPONSE AND CO-OPERATION, 1990 (OPRC 1990)

Done at London, 30 November 1990

Entry into force: 13 May 1995

Signature, ratification, acceptance, approval, accession

Article 15

(1) This Convention shall remain open for signature at the Headquarters of the Organization from 30 November 1990 until 29 November 1991 and shall thereafter remain open for accession. Any State may become Party to this Convention by:

(a) signature without reservation as to ratification, acceptance or approval; or

(b) signature subject to ratification, acceptance or approval, followed by ratification, acceptance or approval; or

(c) accession.

(2) Ratification, acceptance, approval or accession shall be effected by the deposit of an instrument to that effect with the Secretary-General.

Entry into force

Article 16

(1) This Convention shall enter into force twelve months after the date on which not less than fifteen States have either signed it without reservation as to ratification, acceptance or approval or have deposited the requisite instruments of ratification, acceptance, approval or accession in accordance with article 15.

(2) For States which have deposited an instrument of ratification, acceptance, approval or accession in respect of this Convention after the requirements for entry into force thereof have been met but prior to the date of entry into force, the ratification, acceptance, approval or accession shall take effect on the date of entry into force of this Convention or three months after the date of deposit of the instrument, whichever is the later date.

(3) For States which have deposited an instrument of ratification, acceptance, approval or accession after the date on which this Convention entered into force, this Convention shall become effective three months after the date of deposit of the instrument.

(4) After the date on which an amendment to this Convention is deemed to have been accepted under article 14, any instrument of ratification, acceptance, approval or accession deposited shall apply to this Convention as amended.

I. Signatories

II. Contracting States

III. Declarations, Reservations and Statements

I. Signatories

Argentina	Sujeto a ratificación
Brazil	"Ad referendum" of the Senate and House of the Brazilian Congress
Côte d'Ivoire	Sous réserve de ratification
Denmark	Subject to ratification and with reservation for application to the Faroes and Greenland
Ecuador	Sujeto a ratificación
Egypt	*[Translation]* Subject to ratification
Finland	Subject to approval
France	Sous réserve d'approbation
Gambia	Subject to ratification
Germany, Federal Republic of	Subject to ratification
Ghana	Subject to acceptance
Greece	Subject to ratification
Guinea	Sous réserve de ratification
Iceland	Subject to ratification
Israel	Subject to ratification
Italy	Subject to ratification
Lebanon	Sous réserve de ratification
Malta	Subject to ratification
Morocco	Subject to ratification by the Moroccan Government
Netherlands	Subject to ratification
Norway	Subject to ratification
Philippines	Subject to ratification
Poland	Subject to ratification
Senegal	Subject to ratification
Spain	Con reserva de ratificación
Sweden	Subject to ratification
United States	Subject to ratification
Uruguay	Ad referendum
Venezuela (Bolivarian Republic of)	Subject to ratification

II. Contracting States

	Date of deposit of instrument	Date of entry into force
Albania (accession)	2 January 2008	2 April 2008
Algeria (accession)	8 March 2005	8 June 2005
Angola (accession)	4 October 2001	4 January 2002
Antigua and Barbuda (accession)	5 January 1999	5 April 1999
Argentina (ratification)[1]	13 July 1994	13 May 1995
Australia (accession)	6 July 1992	13 May 1995
Azerbaijan (accession)	16 July 2004	16 October 2004
Bahamas (accession)	4 October 2001	4 January 2002
Bahrain (accession)	9 March 2016	9 June 2016
Bangladesh (accession)	23 July 2004	23 October 2004
Barbados (accession)	8 March 2023	8 June 2023
Belgium (accession)	19 April 2017	19 July 2017
Benin (accession)	5 February 2010	5 May 2010
Brazil (ratification)	21 July 1998	21 October 1998
Bulgaria (accession)	5 April 2001	5 July 2001
Cameroon (accession)	18 September 2009	18 December 2009
Canada (accession)	7 March 1994	13 May 1995
Cabo Verde (accession)	4 July 2003	4 October 2003
Chile (accession)	15 October 1997	15 January 1998
China (accession)[2]	30 March 1998	30 June 1998
Colombia (accession)[1]	11 June 2008	11 September 2008
Comoros (accession)	5 January 2000	5 April 2000
Congo (accession)	7 September 2004	7 December 2004
Côte d'Ivoire (accession)	8 July 2013	8 October 2013

Croatia (accession)	12 January 1998	12 April 1998
Cuba (accession)	10 April 2008	10 July 2008
Denmark (ratification)[1]	22 October 1996	22 January 1997
Djibouti (accession)	19 January 1998	19 April 1998
Dominica (accession)	31 August 2001	30 November 2001
Ecuador (ratification)	29 January 2002	29 April 2003
Egypt (ratification)	29 June 1992	13 May 1995
El Salvador (accession)	9 October 1995	9 January 1996
Equatorial Guinea (accession)	3 December 2025	3 March 2026
Estonia (accession)	16 May 2008	16 August 2008
Finland (approval)	21 July 1993	13 May 1995
France (approval)	6 November 1992	13 May 1995
Gabon (accession)	12 April 2005	12 July 2005
Gambia (ratification)	30 October 2019	30 January 2020
Georgia (accession)	20 February 1996	20 May 1996
Germany (ratification)	15 February 1995	15 May 1995
Ghana (accession)	2 June 2010	2 September 2010
Greece (ratification)	7 March 1995	7 June 1995
Guinea (accession)	2 October 2002	2 January 2003
Guyana (accession)	10 December 1997	10 March 1998
Honduras (accession)	16 November 2016	16 February 2017
Iceland (ratification)	21 June 1993	13 May 1995
India (accession)	17 November 1997	17 February 1998
Iran (Islamic Republic of) (accession)	25 February 1998	25 May 1998
Iraq (accession)	19 July 2021	19 October 2021
Ireland (accession)	26 April 2001	26 July 2001
Indonesia	13 December 2022	13 March 2023
Israel (ratification)	24 March 1999	24 June 1999
Italy (ratification)	2 March 1999	2 June 1999
Jamaica (accession)	8 September 2000	8 December 2000
Japan (accession)	17 October 1995	17 January 1996
Jordan (accession)	14 April 2004	14 July 2004
Kenya (accession)	21 July 1999	21 October 1999
Latvia (accession)	30 November 2001	28 February 2002
Lebanon (accession)	30 March 2005	30 June 2005
Liberia (accession)	5 October 1995	5 January 1996
Libya (accession)	18 June 2004	18 September 2004
Lithuania (accession)	23 December 2002	23 March 2003
Madagascar (accession)	20 May 2002	20 August 2002
Malaysia (accession)	30 July 1997	30 October 1997
Malta (accession)	21 January 2003	21 April 2003
Marshall Islands (accession)	16 October 1995	16 January 1996
Mauritania (accession)	22 November 1999	22 February 2000
Mauritius (accession)	2 December 1999	2 March 2000
Mexico (accession)	13 May 1994	13 May 1995
Monaco (accession)	19 October 1999	19 January 2000
Montenegro (accession)	12 July 2021	12 October 2021
Morocco (ratification)	29 April 2003	29 July 2003
Montenegro (accession)	12 July 2021	12 October 2021
Mozambique (accession)	9 November 2005	10 February 2006
Myanmar (accession)	15 December 2016	15 March 2017
Namibia (accession)	18 June 2007	18 September 2007
Netherlands (ratification)[4,5]	1 December 1994	13 May 1995
New Zealand (accession)	2 July 1999	2 October 1999
Nigeria (accession)	25 May 1993	13 May 1995
Norway (ratification)	8 March 1994	13 May 1995
Oman (accession)	26 June 2008	26 September 2008
Pakistan (accession)	21 July 1993	13 May 1995
Palau (accession)	29 September 2011	29 December 2011
Peru (accession)	24 April 2002	24 July 2002
Philippines (accession)	6 February 2014	6 May 2014
Poland (ratification)	12 June 2003	12 September 2003
Portugal (accession)	27 February 2006	27 May 2006
Qatar (accession)	8 May 2007	8 August 2007
Republic of Korea (accession)	9 November 1999	9 February 2000
Romania (accession)	17 November 2000	17 February 2001
Russian Federation (accession)	18 September 2009	18 December 2009
Saint Kitts and Nevis (accession)	7 October 2004	7 January 2005

Saint Lucia (accession)	20 May 2004	20 August 2004
Samoa (accession)	18 May 2004	18 August 2004
Saudi Arabia (accession)	30 July 2009	30 October 2009
Senegal (ratification)	24 March 1994	13 May 1995
Seychelles (accession)	26 June 1992	13 May 1995
Sierra Leone (accession)	10 March 2008	10 June 2008
Singapore (accession)	10 March 1999	10 June 1999
Slovenia (accession)	31 May 2001	31 August 2001
Solomon Islands (accession)	30 September 2024	30 December 2024
Somalia (accession)	26 June 2026	26 September 2026
South Africa (accession)	4 July 2008	4 October 2008
Spain (ratification)	12 January 1994	13 May 1995
Sudan (accession)	21 January 2015	21 April 2015
Sweden (ratification)	30 March 1992	13 May 1995
Switzerland (accession)	4 July 1996	4 October 1996
Syrian Arab Republic (accession)	14 March 2003	14 June 2003
Thailand (accession)	20 April 2000	20 July 2000
Togo (accession)	23 April 2012	23 July 2012
Tonga (accession)	1 February 1996	1 May 1996
Trinidad and Tobago (accession)	6 March 2000	6 June 2000
Tunisia (accession)	23 October 1995	23 January 1996
Türkiye (accession)	1 July 2004	1 October 2004
United Arab Emirates (accession)	24 September 2025	24 December 2025
United Kingdom (accession)[3]	16 September 1997	16 December 1997
United Republic of Tanzania (accession)	16 May 2006	16 August 2006
United States (ratification)	27 March 1992	13 May 1995
Uruguay (signature by confirmation)	27 September 1994	13 May 1995
Vanuatu (accession)	18 February 1999	18 May 1999
Venezuela (Bolivarian Republic of) (ratification)	12 December 1994	13 May 1995
Yemen (accession)	10 May 2013	10 August 2013

Number of Contracting States: 121

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[1] For the text of a declaration, reservation or statement, see section III.

[2] Applies to the Hong Kong and Macao Special Administrative Regions with effect from 1 May 2001.

2 Accession by the United Kingdom was declared to be effective in respect of the Isle of Man with effect from 16 May 2003.

Extended to Bermuda with effect from 2 August 2023 and to the Falkland Islands (Malvinas) with effect from 2 November 2023.*

* A dispute exists between the Governments of Argentina and the United Kingdom of Great Britain and Northern Ireland concerning sovereignty over the Falkland Islands (Malvinas). The Secretary-General received a communication from the Embassy of the Argentine Republic, on 16 November 2023, the full text of which is contained in Circular Letter No.4812.

[4] Applies to Aruba with effect from 13 October 2006.
[5] Applies to the Netherlands Antilles** with effect from 18 October 2007.

** The Netherlands Antilles has ceased to exist as an autonomous country within the Kingdom of the Netherlands with effect from 10 October 2010. Since that date, the Kingdom of the Netherlands consists of four autonomous countries: The Netherlands (European part and Caribbean part), Aruba, Curaçao and Sint Maarten. For more details see footnote 4, in section II of SOLAS 1974. The Convention applies as follows:

		Effective from
The Netherlands (European part)	)	13 May 1995
Caribbean part of the Netherlands	)	10 October 2010
Aruba	)	13 October 2006
Curaçao	)	10 October 2010
Sint Maarten	)	10 October 2010

III. Declarations, Reservations and Statements

ARGENTINA [1]

The instrument of ratification of the Argentine Republic contained the following reservation:

[Translation]

"The Argentine Republic hereby expressly reserves its rights of sovereignty and of territorial and maritime jurisdiction over the Malvinas Islands, South Georgia and South Sandwich Islands, and the maritime areas corresponding thereto, as recognized and defined in Law No.23.968 of the Argentine Nation of 14 August 1991, and repudiates any extension of the scope of the International Convention on Oil Pollution Preparedness, Response and Co-operation, 1990, which may be made by any other State, community or entity to those Argentine island territories and/or maritime areas".

COLOMBIA

The instrument of accession by Colombia contained the following declaration:

[Translation]

“The amendments contained in article 14 of the Convention and in article 12 of the Protocol, and those which have entered into force at the time when Colombia becomes Party to the Convention, will only enter into force for Colombia once the internal approval and revision of the said amendments has been effected, in accordance with article 150, numbers 16 and 241 and 10 of the Political Constitution of Colombia.”

DENMARK

The instrument of ratification of the Kingdom of Denmark contained the following reservation:

[Translation]

"... that the Convention will not apply to the Faroes nor to Greenland, pending a further decision ."

By a communication dated 27 November 1996 the depositary was informed that Denmark withdraws the reservation with respect to the territory of Greenland.

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[1] The depositary received, on 22 February 1996, the following communication from the Foreign and Commonwealth Office of the United Kingdom:

> "The Government of the United Kingdom of Great Britain and Northern Ireland have noted the declaration of the Government of Argentina concerning rights of sovereignty and of territorial and maritime jurisdiction over the Falkland Islands and South Georgia and the South Sandwich Islands.
>
> The British Government have no doubt about the sovereignty of the United Kingdom over the Falkland Islands, as well as South Georgia and the South Sandwich Islands. The British Government can only reject as unfounded the claims by the Government of Argentina."

PROTOCOL ON PREPAREDNESS, RESPONSE AND CO-OPERATION TO POLLUTION INCIDENTS BY HAZARDOUS AND NOXIOUS SUBSTANCES, 2000 (OPRC-HNS 2000)

Done at London, 15 March 2000

Entry into force: 14 June 2007

Signature, ratification, acceptance, approval, accession

Article 13

(1) This Protocol shall remain open for signature at the Headquarters of the Organization from 15 March 2000 until 14 March 2001 and shall thereafter remain open for accession. Any State party to the OPRC Convention may become Party to this Protocol by:

(a) signature without reservation as to ratification, acceptance or approval; or

(b) signature subject to ratification acceptance or approval, followed by ratification, acceptance or approval; or

(c) accession.

(2) Ratification, acceptance, approval or accession shall be effected by the deposit of an instrument to that effect with the Secretary-General.

Entry into force

Article 15

(1) This Protocol shall enter into force twelve months after the date on which not less than fifteen States have either signed it without reservation as to ratification, acceptance or approval or have deposited the requisite instruments of ratification, acceptance, approval or accession in accordance with article 13.

(2) For States which have deposited an instrument of ratification, acceptance, approval or accession in respect of this Protocol after the entry into force requirements have been met but prior to the date of entry into force, the ratification, acceptance, approval or accession shall take effect on the date of entry into force of this Protocol or three months after the date of deposit of the instrument, whichever is the later date.

(3) For States which have deposited an instrument of ratification, acceptance, approval or accession after the date on which this Protocol entered into force, this Protocol shall become effective three months after the date of deposit of the instrument.

(4) After the date on which an amendment to this Protocol is deemed to have been accepted under article 12, any instrument of ratification, acceptance, approval or accession deposited shall apply to this Protocol, as amended.

I. Signatories

II. Contracting States

I. Signatories

Brazil	Subject to ratification
Denmark	Subject to ratification and with reservation for application to the Faroes and Greenland
Finland	Subject to acceptance
France	Sous réserve de l'accomplissement des procédures constitutionelles internes
Germany, Federal Republic of	Subject to ratification
Greece	Subject to ratification
Netherlands	Subject to acceptance

II. Contracting States

	Date of deposit of instrument	Date of entry into force
Albania (accession)	19 January 2015	19 April 2015
Australia (accession)	16 March 2005	14 June 2007
Barbados (accession)	8 March 2023	8 June 2023
Belgium (accession)	19 April 2017	19 July 2017
Chile (accession)	16 October 2006	14 June 2007
China (accession) [1]	19 November 2009	19 February 2010
Colombia (accession)	11 June 2008	11 September 2008
Congo (accession)	28 May 2015	28 August 2015
Côte d'Ivoire (accession)	8 July 2013	8 July 2014
Denmark (ratification)	30 September 2008	30 December 2008
Djibouti (accession)	12 October 2015	12 January 2016
Ecuador (accession)	29 January 2002	14 June 2007
Egypt (accession)	26 May 2004	14 June 2007
Estonia (accession)	16 May 2008	16 August 2008
Finland (acceptance)	26 June 2015	26 September 2015
France (accession)	24 April 2007	24 July 2007
Germany (ratification)	2 June 2009	2 September 2009
Greece (ratification)	28 May 2003	14 June 2007
Guyana (accession)	20 February 2019	20 May 2019
Iraq (accession)	8 August 2023	8 November 2023
Iran (Islamic Republic of)(accession)	19 April 2011	19 July 2011
Japan (accession)	9 March 2007	14 June 2007
Liberia (accession)	18 September 2008	18 December 2008
Madagascar (accession)	11 July 2017	11 October 2017
Malaysia (accession)	28 November 2013	28 February 2014
Malta (accession)	21 January 2003	14 June 2007
Mauritius (accession)	17 July 2013	17 October 2013
Netherlands (acceptance)	22 October 2002	14 June 2007
Norway (accession)	16 February 2012	16 May 2012
Palau (accession)	29 September 2011	29 December 2011
Poland (accession)	12 June 2003	14 June 2007
Portugal (accession)	14 June 2006	14 June 2007
Republic of Korea (accession)	11 January 2008	11 April 2008
Saint Lucia (accession)	2 December 2020	2 March 2021
Singapore (accession)	16 October 2003	14 June 2007
Slovenia (accession)	5 April 2006	14 June 2007
Spain (accession)	27 January 2005	14 June 2007
Sweden (accession)	8 January 2003	14 June 2007
Syrian Arab Republic (accession)	10 February 2005	14 June 2007
Türkiye (accession)	3 September 2013	3 December 2013
Uruguay (accession)	31 July 2003	14 June 2007
Vanuatu (accession)	15 March 2004	14 June 2007
Yemen (accession)	10 May 2013	10 August 2013

Number of Contracting States: 43

[1] Applies to Macao Special Administrative Region; also applies to Hong Kong Special Administrative Region with

effect from 6 December 2012.

TORREMOLINOS PROTOCOL OF 1993 RELATING TO THE TORREMOLINOS INTERNATIONAL CONVENTION FOR THE SAFETY OF FISHING VESSELS, 1977 (SFV PROT 1993)

Done at Torremolinos, 2 April 1993

Entry into force: Not yet in force

Signature, ratification, acceptance, approval, accession

Article 9

(1) The present Protocol shall remain open for signature at the Headquarters of the Organization from 1 July 1993 until 30 June 1994 and shall thereafter remain open for accession. All States may become Parties to the present Protocol by:

(a) signature without reservation as to ratification, acceptance or approval; or

(b) signature subject to ratification, acceptance or approval, followed by ratification, acceptance or approval; or

(c) accession.

(2) Ratification, acceptance, approval or accession shall be effected by the deposit of an instrument to that effect with the Secretary-General.

(3) Each State which has either signed the present Protocol without reservation as to ratification, acceptance or approval or has deposited the requisite instruments of ratification, acceptance, approval or accession in accordance with this article shall transmit to the Secretary-General, at the time of deposit of the above instrument and by the end of each year, information on the aggregate number of fishing vessels of 24 metres in length and over entitled to fly the flag of that State.

Entry into force

Article 10

(1) The present Protocol shall enter into force twelve months after the date on which not less than fifteen States have either signed it without reservation as to ratification, acceptance, or approval or have deposited the requisite instruments of ratification, acceptance, approval or accession in accordance with article 9, the aggregate number of whose fishing vessels of 24 metres in length and over is not less than 14,000.

I. Signatories

II. Contracting States

III. Declarations, Reservations and Statements

I. Signatories

Germany, Federal Republic of	Subject to ratification
Morocco	Sous réserve de ratification

II. Contracting States

	Date of deposit of instrument
Bulgaria (accession)	27 July 2005
Croatia (accession)	8 February 2008
Cuba (accession)	6 February 1997
Denmark (accession)[1]	20 July 1998
France (accession)	6 November 2007
Germany (ratification)	4 February 2004
Iceland (accession)	11 February 1998
Ireland (accession)	30 January 2001
Italy (accession)	18 February 2000
Kiribati (accession)	5 February 2007
Liberia (accession)	18 September 2008
Lithuania (accession)	26 February 2009
Netherlands (accession)[2]	8 April 2002
Norway (accession)	14 October 1996
Saint Kitts and Nevis (accession)	30 August 2005
Spain (accession)	8 June 2001
Sweden (accession)	2 July 1998

Number of Contracting States: 17

The aggregate number of fishing vessels of 24 metres in length and over owned by these States is approximately: 3, 237, according to information provided by the States and by Lloyd's Register/Fairplay.

[2] The Netherlands Antilles has ceased to exist as an autonomous country within the Kingdom of the Netherlands with effect from 10 October 2010. Since that date, the Kingdom of the Netherlands consists of four autonomous countries: The Netherlands (European part and Caribbean part), Aruba, Curaçao and Sint Maarten. For more details see footnote 4, in section II of SOLAS 1974.. The Protocol applies as follows:

		Effective from
The Netherlands (European part)	)	8 April 2002
Caribbean part of the Netherlands	)	10 October 2010
Aruba	)	8 April 2002
Curaçao	)	10 October 2010
Sint Maarten	)	10 October 2010

III. Declarations, Reservations and Statements

DENMARK

The instrument of accession of the Kingdom of Denmark was accompanied by the following reservation:

"It should be noted that a decision as to the applicability of the provisions of the Protocol to Greenland and Faroes is pending the completion of the international procedures prescribed in this respect. The ratification of Denmark is therefore, until further notice, subject to reservation with regard to the obligations of Greenland and the Faroes under the Protocol."

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[1] For the text of a declaration, reservation or statement, see section III.

CAPE TOWN AGREEMENT OF 2012 ON THE IMPLEMENTATION OF THE PROVISIONS OF THE TORREMOLINOS PROTOCOL OF 1993 RELATING TO THE TORREMOLINOS INTERNATIONAL CONVENTION FOR THE SAFETY OF FISHING VESSELS, 1977

Adopted in Cape town on 11 October 2012

Entry into force: 24 February 2027

Article 3

Signature, ratification, acceptance, approval and accession

(1) This Agreement shall remain open for signature at the Headquarters of the Organization from 11 February 2013 to 10 February 2014 and shall thereafter remain open for accession.

(2) All States may become Parties to this Agreement by expressing their consent to be bound by the Agreement by:

(a) signature without reservation as to ratification, acceptance or approval; or

(b) signature subject to ratification, acceptance or approval followed by ratification, acceptance or approval; or

(c) signature subject to the procedure set out in paragraph (4) of this article; or

(d) accession.

(3) Ratification, acceptance, approval or accession shall be effected by the deposit of an instrument to that effect with the Secretary-General.

(4) A State which has deposited before the date of the adoption of this Agreement an instrument of ratification, acceptance, approval of or accession to the 1993 Torremolinos Protocol and which has signed this Agreement in accordance with paragraph (2)(c) of this article shall be deemed to have expressed its consent to be bound by this Agreement 12 months after the date of the adoption of this Agreement unless that State notifies the depositary in writing before that date that it is not availing itself of the simplified procedure set out in this paragraph.

Article 4

Entry into force

(1) This Agreement shall enter into force 12 months after the date on which not less than 22 States the aggregate number of whose fishing vessels of 24 m in length and over operating on the high seas is not less than 3,600 have expressed their consent to be bound by it.

(2) For a State which deposits an instrument of ratification, acceptance, approval or accession in respect of this Agreement after the requirements for entry into force thereof have been met but prior to the date of entry into force, the ratification, acceptance, approval or accession shall take effect on the date of entry into force of this Agreement or three months after the date of deposit of the instrument, whichever is the later date.

(3) For a State which deposits an instrument of ratification, acceptance, approval or accession in respect of this Agreement after the date on which it enters into force, this Agreement shall take effect three months after the date of deposit of the instrument.

(4) After the date on which an amendment to this Agreement is deemed to have been accepted under article 11 of the 1993 Torremolinos Protocol, as applied to this Agreement pursuant to article 2, any instrument of ratification, acceptance, approval or accession deposited shall apply to this Agreement as amended.

I. Signatories

II. Contracting States

III. Declarations, Reservations and Statements

I. Signatories

Iceland	Subject to the procedure set out in article 3(4)
Norway	Subject to the procedure set out in article 3(4)
South Africa	Subject to ratification

II. Contracting States

	Date of deposit instrument	No of fishing vessels of 24 m	Date of entry into force
Argentina (accession)	24 February 2026	467	24 February 2027
Belgium (accession)[3]	10 May 2018	33	24 February 2027
Belize (accession)	29 March 2023	48	24 February 2027
Congo (accession)	28 May 2015	23*	24 February 2027
Cook Islands (accession)	21 October 2019	8	24 February 2027
Croatia (accession)	16 February 2021	0	24 February 2027
Denmark (accession)[1]	6 August 2015	183	24 February 2027
Finland (accession)	18 February 2020	12	24 February 2027
France (accession) [1]	23 February 2018	103	24 February 2027
Germany (accession)	5 July 2016	39	24 February 2027
Ghana (accession)	16 October 2025	79	24 February 2027
Iceland (signature)	15 July 2013	175	24 February 2027
Italy (accession)	16 July 2026		24 February 2027
Japan (accession)	27 March 2023	554	24 February 2027
Kenya (accession)	17 March 2022	18	24 February 2027
Namibia (accession)	5 December 2024	214	24 February 2027
Netherlands (accession)[2, 3]	7 May 2014	153	24 February 2027
New Zealand (accession)	30 May 2023	35	24 February 2027
Nicaragua (accession)	19 October 2023	33	24 February 2027
Norway (signature)	26 November 2013	242	24 February 2027
Peru (accession)	26 February 2021	474	24 February 2027
Portugal (accession)	28 March 2023	41	24 February 2027
Republic of Korea (accession)	23 December 2025	189	24 February 2027
Saint Kitts and Nevis (accession)	1 December 2017	0	24 February 2027
Sao Tome and Principe (accession)	21 October 2019	3	24 February 2027
Solomon Islands (accession)	27 November 2025	3	24 February 2027
South Africa (ratification)	19 August 2016	151	24 February 2027
Spain (accession)	7 February 2019	393	24 February 2027
United Kingdom United Kingdom of Great Britain and Northern Ireland (accession)	25 March 2026		24 February 2027
Vanuatu (accession)	16 October 2025	81	24 February 2027

*As provided by FAO

Number of Contracting States: **30**

[1] The Agreement does not apply Greenland. The depositary received a notification by Denmark on 12 April 2024 that the Agreement was extended to the Faroes. The Extension took effect from 12 April 2024.

[2] Accession for the European part of the Netherlands only

[3] For the text of a declaration, reservation or statement, see section III.

III. Declarations, Reservations and Statements

BELGIUM

The instrument of accession of France contained the following declaration:

"As part of a regional arrangement authorized under article 3, paragraph 5, of the 1993 Protocol, Belgium is bound by the relevant European Union legislation, namely Council Directive 97/70/EC of 11 December 1997 setting up a harmonized safety regime for fishing vessels of 24 metres in length and over. Consequently, Belgium will apply the provisions of the 1993 Protocol regarding safety standards to third country fishing vessels of 24 metres in length and over which operate in its internal or territorial waters or which land catch in one of its ports, subject to the terms laid down in the above-mentioned Directive. Under that regional arrangement, the exemptions provided for in regulation 1/6 of chapter I of the annex to the Cape Town Agreement in relation to annual surveys and in regulation 3/3 of chapter I of the annex thereto concerning a common fishing zone or exclusive economic zone shall not apply to the fishing vessels of Belgium, or to third country fishing vessels of 24 metres in length and over while operating in the common fishing zone or the exclusive economic zone of Belgium, or while landing catch at its ports. Exemptions issued under regulation 3/3 of chapter I of the annex to the Cape Town Agreement, concerning a common fishing zone or an exclusive economic zone, to fishing vessels falling within the scope of application of regulation 1 of chapter I of the annex to the Cape Town Agreement, shall not be accepted."

CROATIA

The instrument of accession was accompanied by the following declaration:

"Under the regional arrangement authorised pursuant Article 3(5) of the Torremolinos Protocol, the Republic of Croatia is bound by relevant European Union legislation, namely Council Directive 97/70EC of 11 December 1997 setting up a harmonised safety regime for fishing vessels of 24 metres in length and over. Consequently, the Republic of Croatia will apply the provisions of the Torremolinos Protocol regarding safety standards to third country fishing vessels of 24 metres in length and over which operate in its internal sea waters or territorial sea or which land catch in one of its ports, subject to the terms laid down in the above-mentioned Directive.

Under that regional arrangement, the exemptions provided for in Regulation 1(6) of Chapter I of the Annex to the Cape Town Agreement in relation to annual surveys and in Regulation 3(3) of Chapter I of the Annex of that Agreement concerning a common fishing zone or exclusive economic zone shall not apply to the fishing vessels of the Member State depositing declaration, and to third country fishing vessels of 24 meters in length and over while operating in the depositing declaration Member State's common fishing zone or exclusive economic zone, or landing catch at its ports. Exemptions issued pursuant to Regulation 3(3) of Chapter I of the Annex to the Cape Town Agreement, concerning a common fishing zone or an exclusive economic zone, to fishing vessels falling within the scope of application of Regulation 1 of Chapter I of the Annex to the Cape Town Agreement, shall not be accepted."

DENMARK

The instrument of accession of Denmark contained the following declaration: "Until further decision, the Convention will not apply to the Faroes and Greenland" and was accompanied by the following declaration:

> "As part of a regional arrangement authorised under Article 3(5) of the Torremolinos Protocol, Denmark is bound by relevant European Union legislation, namely Council Directive 97/70 /EC of 11 December 1997 setting up a harmonised safety regime for fishing vessels of 24 metres in length and over. Consequently Denmark will apply the provisions of the Torremolinos Protocol regarding safety standards to third country fishing vessels of 24 metres in length and over which operate in its internal or territorial waters or which land catch in one of its ports, subject to the terms laid down in the above-mentioned Directive.
> Under that regional arrangement, the exemptions provided for in Regulation 1(6) of Chapter I of the Annex to the Cape Town Agreement in relation to annual surveys and in Regulation 3(3) of Chapter I of the Annex thereto concerning a common fishing zone or exclusive economic zone shall not apply to the fishing vessels of the Member State, and to third country fishing vessels of 24 meters in length and over while operating in the depositing Member State's common fishing zone, exclusive economic zone, or landing catch at its ports. Exemptions issued under Regulation 3(3) of Chapter I of the Annex to the Cape Town Agreement, concerning a common fishing zone or an exclusive economic zone, to fishing vessels falling within the scope of application of Regulation 1 of Chapter I of the Annex to the Cape Town Agreement, shall not be accepted."

FINLAND

The instrument of accession by Finland was accompanied by the following declaration:

> "As part of a regional arrangement authorised under Article 3(5) of the Torremolinos Protocol, the Republic of Finland is bound by relevant European Union legislation, namely Council Directive 97/70EC of 11 December 1997 setting up a harmonised safety regime for fishing vessels of 24 metres in length and over ([1]). Consequently, the Republic of Finland will apply the provisions of the Torremolinos Protocol regarding safety standards to third country fishing vessels of 24 metres in length and over which operate in its internal or territorial waters or which land catch in one of its ports, subject to the terms laid down in the abovementioned Directive.
>
> Under that regional arrangement, the exemptions provided for in Regulation 1(6) of Chapter I of the Annex to the Cape Town Agreement in relation to annual surveys and in Regulation 3(3) of Chapter I of the Annex thereto concerning a common fishing zone or exclusive economic zone shall not apply to the fishing vessels of the Member State, and to third country fishing vessels of 24 meters in length and over while operating in the depositing Member State's common fishing zone, exclusive economic zone, or landing catch at its ports. Exemptions issued under Regulation 3(3) of Chapter I of the Annex to the Cape Town Agreement, concerning a common fishing zone or an exclusive economic zone, to fishing vessels falling within the scope of application of Regulation 1 of Chapter I of the Annex to the Cape Town Agreement, shall not be accepted.
>
> ([1]) OJ L 34, 9.2.1988, p.1."

FRANCE

The instrument of accession of France contained the following declaration:

> "As part of a regional arrangement authorized under article 3, paragraph 5, of the Torremolinos Protocol, France is bound by the relevant European Union legislation, namely Council Directive 97/70/EC of 11 December 1997 setting up a harmonized safety regime for fishing vessels of 24 metres in length and over. Consequently, France will apply the provisions of the Torremolinos Protocol regarding safety standards to third country fishing vessels of 24 metres in length and over which operate in its internal or territorial waters or which land catch in one of its ports, subject to the terms laid down in the above-mentioned Directive. Under that regional arrangement, the exemptions provided for in regulation 1/6 of chapter I of the annex to the Cape Town Agreement in relation to annual surveys and in regulation 3/3 of chapter I of the annex thereto concerning a common fishing zone or exclusive economic zone shall not apply to the fishing vessels of the depositing Member State, or to third country fishing vessels of 24 metres in length and over while operating in the common fishing zone or the exclusive economic zone of the depositing Member State, or while landing catch at its ports. Exemptions issued under regulation 3/3 of chapter I of the annex to the Cape Town Agreement, concerning a common fishing zone or an exclusive economic zone, to fishing vessels falling within the scope of application of regulation 1 of chapter I of the annex to the Cape Town Agreement, shall not be accepted."

NETHERLANDS

On 29 January 2015, the Depositary received a declaration in respect of the European part of the Netherlands (circular CT/AGR2012.1/Circ.4), as follows:

> “As part of a regional arrangement authorized under Article 3(5) of the Torremolinos Protocol, the European part of the Netherlands is bound by relevant European Union legislation, namely Council Directive 97/70/EC of 11 December 1997 setting up a harmonized safety regime for fishing vessels of 24 metres in length and over. Consequently the European part of the Netherlands will apply the provisions of the Torremolinos Protocol regarding safety standards to third country fishing vessels of 24 metres in length and over which operate in its internal or territorial waters or which land catch in one of its ports, subject to the terms laid down in the above-mentioned Directive. Under that regional arrangement, the exemptions provided for in Regulation 1(6) of Chapter I of the Annex to the Cape Town Agreement in relation to annual surveys and in Regulation 3(3) of Chapter I of the Annex thereto concerning a common fishing zone or exclusive economic zone shall not apply to the fishing vessels of the European part of the Netherlands, and to third country fishing vessels of 24 metres in length and over while operating in the common fishing zone of the European part of the Netherlands, its exclusive economic zone, or landing catch at its ports. Exemptions issued under Regulation 3(3) of Chapter I of the Annex to the Cape Town Agreement, concerning a common fishing zone or an exclusive economic zone, to fishing vessels falling within the scope of application of Regulation 1 of Chapter I of the Annex to the Cape Town Agreement, shall not be accepted.”

PORTUGAL

The instrument of accession by Portugal was accompanied by the following declaration:

"As part of a regional arrangement authorized under Article 3(5) of the Torremolinos Protocol, Portugal is bound by relevant European Union legislation, namely Council Directive 97/70/EC of 11 December 1997 setting up a harmonized safety regime for fishing vessels of 24 metres in length and over. Consequently, Portugal will apply the provisions of the Torremolinos Protocol regarding safety standards to third country fishing vessels of 24 metres in length and over which operate in its internal or territorial waters or which land catch in one of its ports, subject to the terms laid down in the above-mentioned Directive.

Under that regional arrangement, the exemptions provided for in regulation 1(6) of Chapter I of the annex to the Cape Town Agreement in relation to annual surveys and in Regulation 3(3) of Chapter I of the annex thereto concerning a common fishing zone or exclusive economic zone shall not apply to the fishing vessels of the Member State, and to third country fishing vessels of 24 metres in length and over while operating in the depositing Member State's common fishing zone or exclusive economic zone, or landing catch at its ports. Exemptions issued under Regulation 3(3) of Chapter I of the annex to the Cape Town Agreement, concerning a common fishing zone or an exclusive economic zone, to fishing vessels falling within the scope of application of Regulation 1 of Chapter 1 of the annex to the Cape Town Agreement, shall not be accepted."

SPAIN

The instrument of accession of Spain contained the following declaration:

"As part of a regional arrangement authorized under article 3, paragraph 5, of the 1993 Torremolinos Protocol , Spain is bound by the relevant European Union legislation, namely Council Directive 97/70/EC of 11 December 1997 setting up a harmonized safety regime for fishing vessels of 24 metres in length and over. Consequently, Spain will apply the provisions of the 1993 Protocol regarding safety standards to third country fishing vessels of 24 metres in length and over which operate in its internal or territorial waters or which land catch in one of its ports, subject to the terms laid down in the above-mentioned Directive.

Under that regional arrangement, the exemptions provided for in regulation 1(6) of chapter I of the annex to the Cape Town Agreement in relation to annual surveys and in regulation 3(3) of chapter I of the annex thereto concerning a common fishing zone or exclusive economic zone shall not apply to the fishing vessels of the depositing Member State , or to third country fishing vessels of 24 metres in length and over while operating in the depositing Member State’s common fishing zone, exclusive economic zone of Spain, or landing catch at its ports. Exemptions issued under regulation 3(3) of chapter I of the annex to the Cape Town Agreement, concerning a common fishing zone or an exclusive economic zone, to fishing vessels falling within the scope of application of regulation 1 of chapter I of the annex to the Cape Town Agreement, shall not be accepted."

INTERNATIONAL CONVENTION ON LIABILITY AND COMPENSATION FOR DAMAGE IN CONNECTION WITH THE CARRIAGE OF HAZARDOUS AND NOXIOUS SUBSTANCES BY SEA, 1996 (HNS 1996)

Done at London, 3 May 1996

Entry into force: Not yet in force

Signature, ratification, acceptance, approval and accession

Article 45

1. This Convention shall be open for signature at the Headquarters of the Organization from 1 October 1996 to 30 September 1997 and shall thereafter remain open for accession.

2. States may express their consent to be bound by this Convention by:

(a) signature without reservation as to ratification, acceptance or approval; or

(b) signature subject to ratification, acceptance or approval, followed by ratification, acceptance or approval; or

(c) accession.

3. Ratification, acceptance, approval or accession shall be effected by the deposit of an instrument to that effect with the Secretary-General.

Entry into force

Article 46

1. This Convention shall enter into force eighteen months after the date on which the following conditions are fulfilled:

(a) at least twelve States, including four States each with not less than 2 million units of gross tonnage, have expressed their consent to be bound by it, and

(b) the Secretary-General has received information in accordance with article 43 that those persons in such States who would be liable to contribute pursuant to article 18, paragraphs 1(a) and (c) have received during the preceding calendar year a total quantity of at least 40 million tonnes of cargo contributing to the general account.

2. For a State which expresses its consent to be bound by this Convention after the conditions for entry into force have been met, such consent shall take effect three months after the date of expression of such consent, or on the date on which this Convention enters into force in accordance with paragraph 1, whichever is the later.

I. Signatories

II. Contracting States

III. Declarations, Reservations and Statements

IV. Amendments

I. Signatories

Canada	Subject to ratification
Denmark	Subject to ratification and with reservation for application to the Faroes and Greenland
Finland	Subject to ratification
Germany, Federal Republic of	Subject to ratification
Netherlands	Subject to acceptance
Norway	Subject to ratification
Sweden	Subject to ratification
United Kingdom	Subject to ratification

II. Contracting States

	Date of deposit of instrument
Angola (accession)	4 October 2001
Cyprus (accession)[1, 2, 3]	10 January 2005
Ethiopia (accession)	14 July 2009
Hungary (accession)	4 July 2008
Liberia (accession) [2]	18 September 2008
Lithuania (accession) [1]	14 September 2007
Morocco (accession)	19 March 2003
Russian Federation (accession)[1, 2, 3]	20 March 2000
Saint Kitts and Nevis (accession)	7 October 2004
Samoa (accession)	18 May 2004
Sierra Leone (accession)	21 November 2007
Slovenia (accession)[3]	21 July 2004
Syrian Arab Republic (accession)	27 June 2006
Tonga (accession)	18 September 2003

Number of Contracting States: 14

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[1] For the text of a reservation, declaration or statement, see section III.

[2] States each with not less than 2 million units of gross tonnage.

[3] Cyprus submitted a report on contributing cargo on 27 November 2006; Slovenia submitted a report on contributing cargo at the time of acceding to the Convention

III. Declarations, Reservations and Statements

CYPRUS

The depositary received, on 15 June 2005, the following declaration:

“Judgements on matters covered by the Convention shall, when given by a court in Austria, Belgium, Czechia, Estonia, Finland, France, Germany, Greece, Hungary, Ireland, Italy, Latvia, Lithuania, Luxembourg, Malta, the Netherlands, Poland, Portugal, Slovakia, Slovenia, Spain, Sweden or the United Kingdom, be recognised and enforced in the Republic of Cyprus according to the relevant internal Community rules on the subject (at present, these rules are laid down in Regulation (EC) No 44/2001).”

LITHUANIA

The instrument of accession of Lithuania contained the following declaration:

“ …..the Seimas of the Republic of Lithuania ….. declares that judgments on matters covered by the Convention shall, when given by a court of Austria, Belgium, Bulgaria, Cyprus, Czechia, Estonia, Finland, France, Germany, Greece, Hungary, Ireland, Italy, Latvia, Luxembourg, Malta, the Netherlands, Poland, Portugal, Romania, Slovakia, Slovenia, Spain, Sweden or the United Kingdom, be recognized and enforced in the Republic of Lithuania according to the relevant internal Community rules on the subject.”

RUSSIAN FEDERATION

The instrument of accession of the Russian Federation contained the following declaration (in the Russian language):

[Translation]

"The Russian Federation, in accordance with paragraph 1 of Article 5 of the International Convention on Liability and Compensation for Damage in Connection with the Carriage of Hazardous and Noxious Substances by Sea, 1996, declares that this Convention does not apply to ships:

which do not exceed 200 gross tonnage; and

which carry hazardous and noxious substances in packaged forms only; and

whilst engaged on voyages between ports or facilities of the Russian Federation."

PROTOCOL OF 2010 TO THE INTERNATIONAL CONVENTION ON LIABILITY AND COMPENSATION FOR DAMAGE IN CONNECTION WITH THE CARRIAGE OF HAZARDOUS AND NOXIOUS SUBSTANCES BY SEA, 1996 (HNS PROT 2010)

Done at London, 30 April 2010

Entry into force: 29 November 2027

Signature, ratification, acceptance, approval and accession

Article 20

1 This Protocol shall be open for signature at the Headquarters of the Organization from 1 November 2010 to 31 October 2011 and shall thereafter remain open for accession.

2 Subject to the provisions in paragraphs 4 and 5, States may express their consent to be bound by this Protocol by:

(a) signature without reservation as to ratification, acceptance or approval; or

(b) signature subject to ratification, acceptance or approval followed by ratification, acceptance or approval; or

(c) accession.

3 Ratification, acceptance, approval or accession shall be effected by the deposit of an instrument to that effect with the Secretary-General.

4 An expression of consent to be bound by this Protocol shall be accompanied by the submission to the Secretary-General of data on the total quantities of contributing cargo liable for contributions received in that State during the preceding calendar year in respect of the general account and each separate account.

5 An expression of consent which is not accompanied by the data referred to in paragraph 4 shall not be accepted by the Secretary-General.

6 Each State which has expressed its consent to be bound by this Protocol shall annually thereafter on or before 31 May until this Protocol enters into force for that State, submit to the Secretary-General data on the total quantities of contributing cargo liable for contributions received in that State during the preceding calendar year in respect of the general account and each separate account.

7 A State which has expressed its consent to be bound by this Protocol and which has not submitted the data on contributing cargo required under paragraph 6 for any relevant years shall, before the entry into force of the Protocol for that State, be temporarily suspended from being a Contracting State until it has submitted the required data.

8 A State which has expressed its consent to be bound by the International Convention on Liability and Compensation for Damage in Connection with the Carriage of Hazardous and Noxious Substances by Sea, 1996 shall be deemed to have withdrawn this consent on the date on which it has signed this Protocol or deposited an instrument of ratification, acceptance, approval or accession in accordance with paragraph 2.

Entry into force

Article 21

1 This Protocol shall enter into force eighteen months after the date on which the following conditions are fulfilled:

(a) at least twelve States, including four States each with not less than 2 million units of gross tonnage, have expressed their consent to be bound by it; and

(b) the Secretary-General has received information in accordance with article 20, paragraphs 4 and 6, that those persons in such States who would be liable to contribute pursuant to article 18, paragraphs 1(a) and (c), of the Convention, as amended by this Protocol, have received during the preceding calendar year a total quantity of at least 40 million tonnes of cargo contributing to the general

account.

2 For a State which expresses its consent to be bound by this Protocol after the conditions for entry into force have been met, such consent shall take effect three months after the date of expression of such consent, or on the date on which this Protocol enters into force in accordance with paragraph 1, whichever is the later.

Revision and amendment

Article 22

1 A conference for the purpose of revising or amending the Convention, as amended by this Protocol, may be convened by the Organization.

2 The Secretary-General shall convene a conference of the States Parties to this Protocol, for revising or amending the Convention, as amended by this Protocol, at the request of six States Parties or one third of the States Parties, whichever is the higher figure.

3 Any instrument of ratification, acceptance, approval or accession deposited after the date of entry into force of an amendment to the Convention, as amended by this Protocol, shall be deemed to apply to the Convention as amended.

Denunciation

Article 24

1 This Protocol may be denounced by any State Party at any time after the expiry of one year following the date on which this Protocol comes into force for that State.

2 Denunciation shall be effected by the deposit of an instrument to that effect with the Secretary-General.

3 A denunciation shall take effect twelve months, or such longer period as may be specified in the instrument of denunciation, following its receipt by the Secretary-General.

4 Notwithstanding a denunciation by a State Party pursuant to this article, any provisions of this Protocol relating to obligations to make contributions under articles 18, 19 or article 21, paragraph 5, of the Convention, as amended by this Protocol, in respect of such payments of compensation as the Assembly may decide relating to an incident which occurs before the denunciation takes effect shall continue to apply.

I. Signatories

II. Contracting States

III. Declarations, Reservations and Statements

IV. Amendments

I. Signatories

Canada	“Subject to ratification”	25 October 2011
Denmark	“Subject to ratification”	14 April 2011
France	“Subject to ratification”	25 October 2011
Germany	“Subject to ratification”	25 October 2011
Greece	“Subject to ratification”	25 October 2011
Netherlands	“Subject to acceptance”	25 October 2011
Norway	“Subject to ratification”	25 October 2011
Türkiye	“Subject to ratification”	25 October 2011

II. Contracting States

	with not less than 2 million units of gross tonnage	Date of signature or deposit of instrument	Date of entry into force or succession
Canada (ratification)[1]	√	23 April 2018	29 November 2027
Belgium (accession)[1]	√	14 April 2026	29 November 2027
Denmark (ratification) [1,2,3]	√	28 June 2018	29 November 2027
Estonia (accession)[1]		10 January 2022	29 November 2027
France (ratification)	√	23 October 2023	29 November 2027
Germany (ratification)[1]	√	14 April 2026	29 November 2027
Netherlands (the Kingdom of) (acceptance)	√	14 April 2026	29 November 2027
Norway (ratification)	√	21 April 2017	29 November 2027
Slovakia (accession)		21 November 2023	29 November 2027
South Africa (accession)		15 July 2019	29 November 2027
Sweden (accession)[1]	√	14 April 2026	29 November 2027
Türkiye (ratification)[1]	√	23 April 2018	29 November 2027

Number of Contracting States: **12**
Nine of these Contracting States has more than 2 million units of gross tonnage. (*The total quantity of cargo contributing to the general account for the 12 Contracting States is 49,484,117 tonnes)*

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[1] For the text of a reservation, declaration or statement, see section III below.
[2] The Depositary received, on 11 November 2025, a notification of the withdrawal of the territorial declaration of Denmark with regard to the Faroe Islands.

III. Declarations, Reservations and Statements

BELGIUM

"Judgments on matters covered by the Convention, as modified by the Protocol of 2010, when given by a court of the Member States of the European Union, with the exception of the courts of Denmark, shall be recognized and enforced in Belgium according to the relevant rules of the European Union on the subject.

Judgments on matters covered by the Convention, as modified by the Protocol of 2010, when given by a court of the Kingdom of Denmark, shall be recognized and enforced in Belgium in accordance with the 2005 Agreement between the European Community and the Kingdom of Denmark on jurisdiction and the recognition and enforcement of judgments in civil and commercial matters.

Judgments on matters covered by the Convention, as modified by the Protocol of 2010, when given by a court of a third State bound by the Lugano Convention on jurisdiction and the recognition and enforcement of judgments in civil and commercial matters of 30 October 2007, shall be recognized and enforced in Belgium in accordance with the said Convention."

CANADA

The Secretariat received by Canada, on 16 October 2018, the following declaration:

"in accordance with paragraph 1 of article 5 of the *International Convention on Liability and Compensation for Damage in Connection with the Carriage of Hazardous and Noxious Substances by Sea, 2010*, the Convention does not apply to ships which do not exceed 200 gross tonnage, which carry hazardous and noxious substances only in packaged from and while they are engaged in voyages between ports or facilities of Canada."

DENMARK

The instrument of ratification by Denmark was accompanied by the following declaration: “Until further notice the Protocol shall not apply to the Faroe islands and Greenland.” The Depositary subsequently received a further notification. See footnote above.

ESTONIA

The Instrument of accession by Estonia included various declarations which are reflected in Circular HNS.2/Circ.8.

GERMANY

"The Federal Republic of Germany hereby ratifies the Protocol of 30 April 2010 to the International Convention of 3 May 1996 on Liability and Compensation for Damage in Connection with the Carriage of Hazardous and Noxious Substances by Sea in accordance with:

- Council Decision (EU) 2017/769 of 25 April 2017 on the ratification and accession by Member States, in the interest of the European Union, to the Protocol of 2010 to the International Convention on Liability and Compensation for Damage in Connection with the Carriage of Hazardous and Noxious Substances by Sea, with the exception of the aspects related to judicial cooperation in civil matters (OJ L 115/15, 4.5.2017); and

- Council Decision (EU) 2017/770 of 25 April 2017 on the ratification and accession by Member States, in the interest of the European Un-ion, to the Protocol of 2010 to the International Convention on Liability and Compensation for Damage in Connection with the Carriage of Hazardous and Noxious Substances by Sea, with regard to the aspects related to judicial cooperation in civil matters (OJ L 115/18, 4.5.2017).

Judgments on matters covered by the Convention as amended by the Protocol of 2010, when given by a court of the Republic of Austria, the Kingdom of Belgium, the Republic of Bulgaria, the Republic of Croatia, the Republic of Cyprus, the Czech Republic, the Republic of Estonia, the Republic of Finland, the French Republic, the Hellenic Republic, Hungary, Ireland, the Italian Republic, the Republic of Latvia, the Republic of Lithuania, the Grand Duchy of Luxembourg, the Republic of Malta, the Kingdom of the Netherlands, the Republic of Poland, the Portuguese Republic, Romania, the Slovak Republic, the Republic of Slovenia, the Kingdom of Spain or the Kingdom of Sweden, shall be recognised and enforced in the Federal Republic of Germany in accordance with the relevant European Union rules on the subject.

Judgments on matters covered by the Convention as amended by the Protocol of 2010, when given by a court of the Kingdom of Denmark, shall be recognised and enforced in the Federal Republic of Germany in accordance with the 2005 Agreement between the European Community and the Kingdom of Denmark on jurisdiction and the recognition and enforcement of judgments in civil and commercial matters.

Judgments on matters covered by the Convention as amended by the Protocol of 2010, when given by a court of a third State bound by the Lugano Convention on jurisdiction and the recognition and enforcement of judgments in civil and commercial matters of 30 October 2007, shall be recognised and enforced in the Federal Republic of Germany in accordance with that Convention.

The amounts listed in Article 9, paragraph 1, of the 2010 HNS Convention are to be calculated pursuant to Article 9, paragraph 9 (a) of the 2010 HNS Convention (Special Drawing Right as defined by the International Monetary Fund)."

SWEDEN

"In accordance with Article 5 paragraph 1 of the Convention that this Convention does not apply to ships: (a) which do not exceed 200 gross tonnage; and (b) which carry hazardous and noxious substances only in packaged form; and (c) while they are engaged on voyages between ports or facilities of Sweden.

Judgments on matters covered by the Convention as amended by the Protocol of 2010, when given by a court of another Member State of the European Union, with the exception of Denmark, shall be recognised and enforced in the Kingdom of Sweden in accordance with the relevant European Union rules on the subject.

Judgments on matters covered by the Convention as amended by the Protocol of 2010, when given by a court of the Kingdom of Denmark, shall be recognised and enforced in the Kingdom of Sweden in accordance with the 2005 Agreement between the European Community and the Kingdom of Denmark on jurisdiction and the recognition and enforcement of judgments in civil and commercial matters.

Judgments on matters covered by the Convention as amended by the Protocol of 2010, when given by a court of a third State bound by the Lugano Convention on jurisdiction and the recognition and enforcement of judgments in civil

and commercial matters of 30 October 2007, shall be recognised and enforced in the Kingdom of Sweden in accordance with that Convention."

TÜRKIYE

The instrument of ratification by Türkiye was accompanied by the following declaration:

> “"The Government of the Republic of Türkiye declares that it will implement article 40 of the International Convention on Liability and Compensation for Damage in connection with the Carriage of Hazardous and Noxious Substances by Sea, 1996, modified by the present Protocol, only for the States Parties which it recognizes and has diplomatic relations with."

INTERNATIONAL CONVENTION ON CIVIL LIABILITY FOR BUNKER OIL POLLUTION DAMAGE, 2001(BUNKERS 2001)

Done at London, 23 March 2001

Entry into force: 21 November 2008

Signature, ratification, acceptance, approval and accession

Article 12

1 This Convention shall be open for signature at the Headquarters of the Organization from 1 October 2001 until 30 September 2002 and shall thereafter remain open for accession.

2 States may express their consent to be bound by this Convention by:

(a) signature without reservation as to ratification, acceptance or approval;

(b) signature subject to ratification, acceptance or approval followed by ratification, acceptance or approval; or

(c) accession

3 Ratification, acceptance, approval or accession shall be effected by deposit of an instrument to that effect with the Secretary-General.

4 Any instrument of ratification, acceptance, approval or accession deposited after the entry into force of an amendment to this Convention with respect to all existing State Parties, or after the completion of all measures required for the entry into force of the amendment with respect to those State Parties shall be deemed to apply to this Convention as modified by the amendment.

Entry into force

Article 14

1 This Convention shall enter into force one year following the date on which eighteen States, including five States each with ships whose combined gross tonnage is not less than 1 million, have either signed it without reservation as to ratification, acceptance or approval or have deposited instruments of ratification, acceptance, approval or accession with the Secretary-General.

2 For any State which ratifies, accepts, approves or accedes to it after the conditions in paragraph 1 for entry into force have been met, this Convention shall enter into force three months after the date of deposit by such State of the appropriate instrument.

Revision or amendment

Article 16

1 A conference for the purpose of revising or amending this Convention may be convened by the Organization.

2 The Organization shall convene a conference of the States Parties for revising or amending this Convention at the request of not less than one-third of the States Parties.

I. Signatories

II. Contracting States

III. Declarations, Reservations and Statements

IV. Amendments

I. Signatories

Australia	Subject to ratification
Brazil	Subject to ratification
Canada	Subject to ratification
Denmark	Subject to ratification
Finland	Subject to acceptance
Germany, Federal Republic of	Subject to ratification
Italy	Subject to ratification
Norway	Subject to ratification
Spain	
Sweden	Subject to ratification
United Kingdom	Subject to ratification

II. Contracting States

	Date of deposit of instrument	Date of entry into force
Albania (accession)	30 April 2010	30 July 2010
Antigua and Barbuda (accession)	19 December 2008	19 March 2009
Austria (accession)	30 January 2013	30 April 2013
Australia (ratification)	16 March 2009	16 June 2009
Azerbaijan (accession)	22 June 2010	22 September 2010
Bahamas (accession) [1]	30 January 2008	21 November 2008
Bahrain (accession)	14 August 2017	14 November 2017
Bangladesh (accession)	6 July 2026	6 October 2026
Barbados (accession)	15 October 2009	15 January 2010
Belarus (accession)	5 September 2019	5 December 2019
Belgium (accession) [1]	11 August 2009	11 November 2009
Belize (accession)	22 August 2011	22 November 2011
Bulgaria (accession)[1]	6 July 2007	21 November 2008
Canada (accession)	2 October 2009	2 January 2010
Czechia (accession)	20 December 2012	20 March 2013
China (accession)[1,4]	9 December 2008	9 March 2009
Congo (accession)	19 May 2014	19 August 2014
Côte d'Ivoire (accession)	8 July 2013	8 October 2013
Comoros (accession)	1 February 2018	1 May 2018
Cook Islands (accession)	21 August 2008	21 November 2008
Croatia (accession) [1]	15 December 2006	21 November 2008
Cyprus (accession) [1]	10 January 2005	21 November 2008
Denmark (ratification) [1,4]	23 July 2008	21 November 2008
Democratic People's Republic of Korea (accession)	17 July 2009	17 October 2009
Djibouti (accession)	12 October 2015	12 January 2016
Egypt (accession)[1]	15 February 2010	15 May 2010
Estonia (accession)[1]	5 October 2006	21 November 2008
Ethiopia (accession)	17 February 2009	17 May 2009
Equatorial Guinea (accession)	3 December 2025	3 March 2026
Finland (acceptance)[1]	18 November 2008	18 February 2009
Fiji (accession)	8 March 2016	8 June 2016
France (accession) [1]	19 October 2010	19 January 2011
Gabon (accession)	17 April 2019	17 July 2019
Georgia (accession)	13 September 2018	13 December 2018
Germany (ratification)[1]	24 April 2007	21 November 2008
Greece (accession)	22 December 2005	21 November 2008

Grenada (accession)	26 July 2018	26 October 2018
Guinea-Bissau (accession)	12 May 2022	12 August 2022
Guyana (accession)	20 February 2019	20 May 2019
Honduras (accession)	15 February 2022	15 May 2022
Hungary (accession)	30 January 2008	21 November 2008
Indonesia (accession)	11 September 2014	11 December 2014
Iran (Islamic Republic of Iran) (accession)	21 November 2011	21 February 2012
Iraq (accession)	8 August 2023	8 November 2023
Ireland (accession)[1]	23 December 2008	23 March 2009
Italy (ratification)	18 November 2010	18 February 2011
Jamaica (accession)	2 May 2003	21 November 2008
Japan (accession)	1 July 2020	1 October 2020
Jordan (accession)	24 March 2010	24 June 2010
Kenya (accession)	7 July 2015	7 October 2015
Kiribati (accession)	29 July 2009	29 October 2009
Latvia (accession)	19 April 2005	21 November 2008
Lebanon (accession)	5 April 2017	5 July 2017
Liberia (accession)	21 August 2008	21 November 2008
Lithuania (accession	14 September 2007	21 November 2008
Luxembourg (accession)[1]	21 November 2005	21 November 2008
Madagascar (accession)	11 July 2017	11 October 2017
Malaysia (accession)	12 November 2008	12 February 2009
Malta (accession)[1]	12 November 2008	12 February 2009
Marshall Islands (accession)	9 May 2008	21 November 2008
Mauritius (accession)	17 July 2013	17 October 2013
Mongolia (accession)	28 September 2011	28 December 2011
Montenegro (accession)	29 November 2011	29 February 2012
Morocco (ratification)	14 April 2010	14 July 2010
Myanmar (accession)	19 January 2018	19 April 2018
Namibia (accession)	15 July 2020	15 October 2020
Nauru (accession)	23 March 2020	23 June 2020
Netherlands (accession)	23 December 2010	23 March 2011
New Zealand (accession) [1]	4 April 2014	4 July 2014
Nicaragua (accession)	3 April 2014	3 July 2014
Nigeria (accession)	1 October 2010	1 January 2011
Niue (accession)	18 May 2012	18 August 2012
Norway (ratification)[1]	25 March 2008	21 November 2008
Oman (accession)	30 April 2020	30 July 2020
Palau (accession)	28 September 2011	28 December 2011
Panama (accession)	17 February 2009	17 May 2009
Poland (accession)[1]	15 December 2006	21 November 2008
Portugal (accession)[1]	21 July 2015	21 October 2015
Republic of Korea (accession)	28 August 2009	28 November 2009
Romania (accession)	15 June 2009	15 September 2009
Russian Federation (accession)	24 February 2009	24 May 2009
Saint Kitts and Nevis (accession)	21 October 2009	21 January 2010
Saint Lucia (accession)	26 May 2016	26 August 2016
Saint Vincent and the Grenadines (accession)	26 November 2008	26 February 2009
Samoa (accession)	18 May 2004	21 November 2008
San Marino (accession)	19 April 2021	19 July 2021
Sao Tome and Principe	15 August 2022	15 November 2022
Saudi Arabia (accession)	29 October 2018	29 January 2019
Serbia (accession)	8 July 2010	8 October 2010
Seychelles (accession)	23 August 2019	23 November 2019
Sierra Leone (accession)	21 November 2007	21 November 2008
Singapore (accession)[1]	31 March 2006	21 November 2008
Slovakia (accession) [1]	1 May 2013	1 August 2013
Slovenia (accession)	20 May 2004	21 November 2008
Solomon Islands (accession)	15 October 2020	15 January 2021
South Africa (accession)	11 March 2026	11 June 2026
Spain (ratification)[1]	10 December 2003	21 November 2008
Sweden (ratification)[1]	3 June 2013	3 September 2013
Switzerland (accession)	24 September 2013	24 December 2013
Syrian Arab Republic (accession)[1]	24 April 2009	24 July 2009

Togo (accession)	23 April 2012	23 July 2012
Tonga (accession)	18 September 2003	21 November 2008
Tunisia (accession)[1]	5 September 2011	5 December 2011
Türkiye (accession)	12 September 2013	12 December 2013
Turkmenistan (accession)	23 January 2024	23 April 2024
Tuvalu (accession)	12 January 2009	12 April 2009
United Arab Emirates	23 March 2021	23 June 2021
United Kingdom (ratification)[1, 2]	29 June 2006	21 November 2008
Vanuatu (accession)	20 August 2008	21 November 2008
Vietnam (accession)	18 June 2010	18 September 2010

Number of Contracting States: 111

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[1] For the text of a declaration, reservation or statement, see section III.

[2] Extended to the Isle of man with effect from 21 November 2008.
Extended to Gibraltar with effect from 28 November 2009.
Extended to Bermuda with effect from 16 January 2009.
Extended to the Cayman Islands with effect from 12 January 2011.
Extended to the British Virgin Islands with effect from 9 September 2013.
Extended to the Bailiwick of Guernsey with effect from 12 January 2023.
Extended to Falkland Islands (Malvinas) with effect from 2 August 2023.*

[3] Applies to the Macau Special Administrative Region with effect from 9 March 2009.
Applies to the Hong Kong Special Administrative Region with effect from 22 January 2010.

3 Applies to the Faroes with effect from 9 January 2019.

* A dispute exists between the Governments of Argentina and the United Kingdom of Great Britain and Northern Ireland concerning sovereignty over the Falkland Islands (Malvinas). The Secretary-General received a communication from the Embassy of the Argentine Republic, on 13 October 2023, the full text of which is contained in Circular Letter No.4796.

III. Declarations, Reservations and Statements

BELGIUM

The instrument of accession by Belgium contained the following declaration:

"Judgements on matters covered by the Convention, when given by a court of another member state of the European Union, with the exception of Denmark, shall be recognized and enforced in Belgium according to the relevant Community rules on the subject."

BULGARIA

The instrument of accession by Bulgaria contained the following declaration:

"Judgements on matters covered by the Convention shall, when given by a court in Belgium, France, Germany, Italy, Luxembourg, the Netherlands, Ireland, the United Kingdom of Great Britain and Northern Ireland, Greece, Portugal, Spain, Austria, Finland, Sweden, Cyprus, Czechia, Estonia, Hungary, Latvia, Lithuania, Malta, Poland, Slovakia, Slovenia and Romania, be recognized and enforced in Bulgaria according to the relevant internal Community rules on the subject."

CHINA

The instrument of accession by China contained the following declarations:

[Translation]

"1. Article 7 of the Convention shall not apply to the ships operating exclusively within the inland waterways of the People's Republic of China.

2. In accordance with the *Basic Law of the Hong Kong Special Administrative Region of the People's Republic of China* and the *Basic Law of the Macao Special Administrative Region of the People's Republic of China,* the Government of the People's Republic of China decides that the Convention applies to the Macao Special Administrative Region of the People's Republic of China, and unless otherwise notified by the Government, shall not apply to the Hong Kong Special Administrative Region of the People's Republic of China."

Subsequently, however, a further communication was received that the Convention applies to the Hong Kong Special Administrative Region with effect from 22 January 2010.

CYPRUS

The instrument of accession by Cyprus was accompanied by the following declaration:

"Judgements on matters covered by the Convention shall, when given by a court in Austria, Belgium, Czechia, Estonia, Finland, France, Germany, Greece, Hungary, Ireland, Italy, Latvia, Lithuania, Luxembourg, Malta, the Netherlands, Poland, Portugal, Slovakia, Slovenia, Spain, Sweden or the United Kingdom, be recognised and enforced in the Republic of Cyprus according to the relevant internal Community rules on the subject (at present, these rules are laid down in Regulation (EC) No. 44/2001)."

DENMARK

The instrument of ratification by Denmark was accompanied by the following declaration:

"In connection with Denmark's signature of the International Convention on Civil Liability for Bunker Oil Pollution Damage, 2001, Denmark declares that it reserves the right at a later stage to make a declaration indicating the relevant internal Community rules which will apply in the relation between Denmark and the other Member States of the European Community on the rules on jurisdiction and the recognition and enforcement of judgements covered by the Convention."

The instrument of ratification by Denmark was accompanied by the following declaration:

"The Government of Denmark declares that, due to its obligations towards the European Community, it shall until further notice not be bound by the provisions of Article 9 of the Convention regarding jurisdiction and Article 10 of the Convention regarding recognition and enforcement."

The instrument of ratification by Denmark also contained the declaration that “The Convention shall not apply to the Faroes and Greenland until further notice.”

The Depositary received, on 18 March 2011, a communication of the withdrawal of the above declaration and submission of a new declaration as follows:

> “Judgements on matters covered by the Convention shall, when given by a court of a European Union Member State other than Denmark, be recognized and enforced in Denmark, according to the relevant internal Union rules on the subject based on the Agreement between the European Community and the Kingdom of Denmark on jurisdiction and the recognition and enforcement of judgements in civil and commercial matters.”

The Depositary received, on 9 January 2019, a communication of the withdrawal of the of the territorial declaration with regard to the Faroes (as contained in the instrument of ratification).

EGYPT

The instrument of accession by Egypt contained the following declaration:

[Translation]

> “The Arab Republic of Egypt hereby declares that the International Convention on Civil Liability for Bunker Oil Pollution Damage, 2001, is not applicable to ships passing through the Suez Maritime Canal, in order to ensure the freedom of use of the Suez Canal and its ports”.

ESTONIA

The instrument of accession by Estonia contained the following declaration:

> “1. Judgements on matters covered by the Convention shall, when given by a court of the Member State of the European Union, except the court of Denmark, be recognized and enforced in the Republic of Estonia according to the relevant European Community rules on the subject.
>
> 2. Based on the Article 7 paragraph 15 of the Convention, the Article 7 does not apply to ships operating exclusively within the waters of the Republic of Estonia.”

FINLAND

The signature for Finland was accompanied by the following declaration:

> "Judgements on matters covered by the Convention shall, when given by a Court of Austria, Belgium, France, Germany, Greece, Italy, Ireland, Luxembourg, Netherlands, Portugal, Spain, Sweden and United Kingdom, be recognised and enforced in Finland according to the relevant internal Community rules on the subject."

FRANCE

The instrument of accession by France contained the following declaration:

[Translation]

> "France declares that judgements on matters covered by the Convention, when given by a court of a Member State of the European Community except for France and Denmark, shall be recognized and enforced in France according to the relevant Community rules on the subject."

GERMANY

The signature for Germany was accompanied by the following declaration:

[Translation]

> "Judgements on matters within the scope of this Convention, when given by a court in Austria, Belgium, Finland, France, Greece, Ireland, Italy, Luxembourg, the Netherlands, Portugal, Spain, Sweden or the United Kingdom, shall be recognized and enforced in the Federal Republic of Germany in accordance with the relevant internal Community rules (these rules are currently laid down in Council Regulation (EC) No.

44/2001 of 22 December 2000 on jurisdiction and the recognition and enforcement of judgements in civil and commercial matters (Official Journal of the European Communities L 12 of 16 January 2001, page 1ff)).

"The Federal Republic of Germany informs the Secretary-General of the International Maritime Organization of the following:

"Signature is in accordance with the Council Decision authorizing the Member States to sign, ratify or accede, in the interest of the European Community, to the International Convention on Civil Liability for Bunker Oil Pollution Damage, 2002 (the Bunkers Convention)."

IRELAND

The instrument of accession by Ireland contained the following declaration:

"Judgements on matters covered by the Convention shall, when given by a court of another Member State of the European Community other than Denmark, be recognized and enforced in Ireland according to the relevant internal Community rules on the subject."

LITHUANIA

The instrument of accession by Lithuania contained the following declaration:

"… the Seimas of the Republic of Lithuania … declares that judgments on matters covered by the Convention shall, when given by a court of Austria, Belgium, Bulgaria, Cyprus, Czechia, Estonia, Finland, France, Germany, Greece, Hungary, Ireland, Italy, Latvia, Luxembourg, Malta, the Netherlands, Poland, Portugal, Romania, Slovakia, Slovenia, Spain, Sweden or the United Kingdom, be recognized and enforced in the Republic of Lithuania according to the relevant internal Community rules on the subject.

LUXEMBOURG

The instrument of accession by Luxembourg was accompanied by the following declaration:

[Translation]

"Luxembourg, being subject to Community regulations on these matters in its mutual relations with the Member States of the European Community, will apply the Community regulations concerning jurisdiction to the extent that the pollution damage occurs in a geographical zone as specified in article 2 of the Convention, belonging to a Member State of the European Community, and that the defendant is domiciled in a Member State of the European Community.

Judgements as specified in article 10, paragraph 1 of the Convention, when given by a court of a Member State of the European Community, will be recognized and enforced in the Grand Duchy of Luxembourg in accordance with the Community regulations."

MALTA

The instrument of accession by Malta contained the following declaration:

"Judgements covered by the International Convention on Civil Liability for Bunker Oil Pollution Damage, 2001, shall, when given by a court of the Republic of Austria, the Kingdom of Belgium, the Republic of Cyprus, Czechia, the Republic of Estonia, the Republic of Finland, the French Republic, the Federal Republic of Germany, the Hellenic Republic, the Republic of Hungary, the Republic of Ireland, the Italian Republic, the Republic of Latvia, the Republic of Lithuania, the Grand Duchy of Luxembourg, the Kingdom of the Netherlands, the Republic of Poland, the Portuguese Republic, the Slovak Republic, the Kingdom of Spain, the Kingdom of Sweden and the United Kingdom of Great Britain and Northern Ireland, be recognized and enforced in Malta according to the relevant internal Community rules on the subject."

NETHERLANDS

The instrument of accession by the Netherlands contained the following declaration:

"The Kingdom of the Netherlands declares that judgments on matters covered by the Convention shall, when given by a court of Austria, Belgium, Bulgaria, Cyprus, Czechia, Estonia, Finland, France, Germany, Greece, Hungary, Ireland, Italy, Latvia, Lithuania, Luxembourg, Malta, Poland, Portugal, Romania, Slovakia, Slovenia, Spain, Sweden or the United Kingdom, be recognized and enforced in the European part of the Netherlands according to the relevant internal Community rules on the subject."

NEW ZEALAND

The instrument of accession of New Zealand was accompanied by the following declaration:

"..consistent with the constitutional status of Tokelau and taking into account the commitment of the Government of New Zealand to the development of self-government for Tokelau through an act of self-determination under the charter of the United Nations, this accession shall not extend to Tokelau unless and until a declaration to this effect is lodged by the Government of New Zealand with the depositary on the basis of appropriate consultation with that territory."

NORWAY

The instrument of ratification by Norway contained the following declaration:

"In accordance with article 4, paragraph 3 of the Convention, Norway will apply the Convention to warships, naval auxiliary ships or other ships owned or operated by the Norwegian State and used, for the time being, only on Government non-commercial service. The rules of the Convention will apply generally to such ships.

For such ships owned by the Norwegian State, it follows by Section 186, third paragraph of the Norwegian Maritime Act of June 24, 1994, No. 39, that if insurance or other financial security is not maintained in respect of such a ship, the ship may instead carry a certificate issued by the appropriate authority of the State, stating that the ship is owned by the State and that the ship's liability is covered within the limit prescribed in accordance with article 7, paragraph 1."

POLAND

The Depositary received, on 7 January 2007, the following declaration from the Republic of Poland:

"Judgements on matters covered by the International Convention on Civil Liability for Bunker Oil Pollution Damage, when given by a court of the Kingdom of Belgium, the Federal Republic of Germany, the Hellenic Republic, the Kingdom of Spain, the French Republic, Ireland, the Italian Republic, the Grand Duchy of Luxembourg, the Kingdom of the Netherlands, the Republic of Austria, the Portuguese Republic, the Republic of Finland, the Kingdom of Sweden, the United Kingdom of Great Britain and Northern Ireland, Czechia, the Republic of Estonia, the Republic of Cyprus, the Republic of Latvia, the Republic of Lithuania, the Republic of Hungary, the Republic of Malta, the Republic of Slovenia, the Slovak Republic, be recognised and enforced in the Republic of Poland according to the relevant international Community rules on the subject."

PORTUGAL

The Depositary received, on 14 December 2015, the following declaration from the Portuguese Republic:

"Judgements on matters covered by the Convention shall, when given by a court of another Member State of the European Union other than Denmark, be recognised and enforced in Portugal according to the relevant internal Community rules on the subject."

ROMANIA

The instrument of acceptance by Romania was accompanied by the following declaration:

"1. Judgements concerning issues provided for by the BUNKERS Convention of 2001, when delivered by courts from the Republic of Austria, the Kingdom of Belgium, the Republic of Bulgaria, the Czech Republic, the Republic of Cyprus, the Hellenic Republic, the Republic of Estonia, the Republic of Finland, the French Republic, the Federal Republic of Germany, the Republic of Ireland, the Italian Republic, the Republic of Latvia, the Republic of Lithuania, the Grand Duchy of Luxembourg, the Republic of Malta, the United

Kingdom of Great Britain and Northern Ireland, the Republic of Poland, the Republic of Portugal, the Republic of Slovakia, the Republic of Slovenia, the Kingdom of Spain, the Kingdom of Sweden, the Kingdom of the Netherlands, or the Republic of Hungary, are recognized and enforced in Romania, in accordance with the relevant European Union Regulations;

2. Romania accedes to the BUNKERS Convention of 2001 in accordance with the Decision of the European Union Council no.2002/762/CE of 19 September 2002 to authorize the Member States in the interest of European Community to sign, to ratify or to accede to this international Convention."

SLOVAKIA

The instrument of accession by Slovakia was accompanied by the following declaration:

"Judgements on matters within the scope of this Convention, when given by a court in the Kingdom of Belgium, the Republic of Bulgaria, the Czech Republic, the Federal Republic of Germany, the Republic of Estonia, Ireland, the Hellenic Republic, Spain, the French Republic, the Italian Republic, the Republic of Cyprus, the Republic of Latvia, the Republic of Lithuania, the Grand Duchy of Luxembourg, Hungary, Malta, the Kingdom of the Netherlands, the Republic of Austria, the Republic of Poland, the Portuguese Republic, Romania, the Republic of Slovenia, the Republic of Finland, the Kingdom of Sweden, the United Kingdom of Great Britain and Northern Ireland, be recognized and enforced in the Slovak Republic of Germany in accordance with the relevant internal Community rules on the subject (Regulation (EC) No. 44/2001)".

SPAIN

The instrument of ratification by Spain was accompanied by the following declaration:

[Translation]

"Spain declares that judicial rulings on the matters addressed by the Convention, whether pronounced by a Court in Austria, Belgium, Finland, France, Germany, Greece, Ireland, Italy, Luxembourg, the Netherlands, Portugal, Sweden or the United Kingdom of Great Britain and Northern Ireland, shall be recognized and acted upon in Spain, pursuant to the provisions in the relevant internal regulations of the European Union."

SWEDEN

The signature by Sweden was accompanied by the following declaration (from the Minister for Foreign Affairs of Sweden):
"I further declare that Judgements on matters covered by the Convention shall, when given by a court of Austria, Belgium, Finland, France, Germany, Greece, Italy, Ireland, Luxembourg, the Netherlands, the United Kingdom of Great Britain and Northern Ireland, Portugal or Spain, be recognised and enforced in Sweden according to the relevant internal Community rules on the subject."

The instrument of ratification by Sweden contained the following declaration:

"In accordance with article 4, paragraph 3 of the Convention, Sweden will apply the Convention to warships, naval auxiliary ships and other ships owned or operated by a State and used for the time being only on Government non-commercial service. The rules of liability in the Convention will apply generally when such ships cause pollution damage in the territory, including the territorial sea of Sweden, or in the exclusive economic zone of Sweden or preventive measures have been taken to prevent or minimize pollution damage in the territory of Sweden or in the exclusive economic zone of Sweden. Such ships will not be required to maintain insurance or other financial security according to article 7 in the Convention and will not be required to hold a certificate according to article 7, paragraph 2 or 14 of the Convention."

"Judgements on matters covered by the Convention, when given by a court of another Member State of the European Union, with the exception of Denmark, shall be recognized and enforced in Sweden according to the relevant internal Union rules on the subject."

SYRIAN ARAB REPUBLIC

The instrument contained the following declaration:

"The Syrian Arab Republic by joining this Agreement does not in any way recognise Israel and will not enter into any dealings with it as prescribed by the Agreement."

TUNISIA

The instrument of accession by Tunisia was accompanied by the following declaration:

[Translation]

"The accession by the Republic of Tunisia to this Convention shall not be binding upon it in respect of any future amendment to the Convention on Limitation of Liability for Maritime Claims, 1976."

TÜRKIYE

The instrument of accession by Türkiye was accompanied by the following declaration:

“In acceding to the International Convention on Civil Liability for Bunker Oil Pollution Damage, 2001, the Republic of Türkiye dissociates itself from the references made in this Convention to the international instruments that it is not party to, including the United Nations Convention of the Law of the Sea, 1982. The accession of Türkiye to the 2001 Bunker Convention cannot be interpreted as a change in the legal position of Türkiye with regard to the said instruments.

In relation to article 2(a)(ii) of this Convention, the Republic of Türkiye considers that this article is not in conformity with international law and defines those maritime areas as high seas whereby no country has jurisdiction and sovereign rights according to international law. The Republic of Türkiye however, taking into consideration the objectives of this Convention, reserves its rights deriving from the Convention. Within this context, the Republic of Türkiye hereby declares that in maritime areas where there has been no delimitation agreement between opposite of adjacent coastal States, the exercise of authority or any claim thereof under this Convention by any Coastal States Party to this Convention, creates no rights or obligations with regard to delimitation of maritime areas, nor does it create a precedent for the future agreements between those States concerning the delimitations of maritime areas under national jurisdiction.

Finally, in relation to the implementation of article 9 of this Convention, the Republic of Türkiye hereby declares that it would only take into account the jurisdiction of the courts of the States Parties that have diplomatic relations with Türkiye.”

UNITED KINGDOM

The signature of the United Kingdom of Great Britain and Northern Ireland was accompanied by the following declaration:

> "Judgements on matters covered by the Convention shall, when given by a court of Austria, Belgium, Finland, France, Germany, Greece, Ireland, Italy, Luxembourg, Netherlands, Portugal Spain or Sweden, be recognised and enforced in the United Kingdom according to the relevant internal Community rules on the subject."

The depositary received a communication on 29 June 2006 from the Government of the United Kingdom informing of the withdrawal of the declaration made upon signing the Convention and replacing it with the following declaration, as follows:

> “Judgements on matters covered by the Convention shall, when given by a court of Austria, Belgium, Czechia, Cyprus, Estonia, Finland, France, Germany, Greece, Hungary, Ireland, Italy, Latvia, Lithuania, Luxembourg, Malta, Netherlands, Poland, Portugal, Slovak Republic, Slovenia, Spain or Sweden, be recognized and enforced in the United Kingdom according to the relevant internal Community rules on the subject.”

INTERNATIONAL CONVENTION ON THE CONTROL OF HARMFUL ANTI-FOULING SYSTEMS ON SHIPS, 2001 (AFS 2001)

Done at London, 5 October 2001

Entry into force: 17 September 2008

Signature, ratification, acceptance, approval or accession

Article 17

(1) This Convention shall be open for signature by any State at the Headquarters of the Organization from 1 February 2002 to 31 December 2002 and shall thereafter remain open for accession by any State.

(2) States may become Parties to this Convention by:

(a) signature not subject to ratification, acceptance or approval;

(b) signature subject to ratification, acceptance or approval, followed by ratification, acceptance or approval; or

(c) accession

(3) Ratification, acceptance, approval or accession shall be effected by the deposit of an instrument to that effect with the Secretary-General.

(4) If a State comprises two or more territorial units in which different systems of law are applicable in relation to matters dealt with in this Convention, it may at the time of signature, ratification, acceptance, approval or accession, declare that this Convention shall extend to all its territorial units or only to one or more of them and may modify this declaration by submitting another declaration at any time.

(5) Any such declaration shall be notified to the Secretary-General and shall state expressly the territorial units to which this Convention applies.

Entry into force

Article 18

(1) This Convention shall enter into force twelve months after the date on which not less than twenty-five States, the combined merchant fleets of which constitute not less than twenty-five percent of the world's merchant shipping, have either signed it without reservation as to ratification, acceptance or approval, or have deposited the requisite instrument of ratification, acceptance, approval or accession in accordance with article 17.

(2) For States which have deposited an instrument of ratification, acceptance, approval or accession in respect of this Convention after the requirements for entry into force have been met, but prior to the date of entry in force, the ratification, acceptance, approval or accession shall take effect on the date of entry into force of the Convention or three months after the date of deposit of the instrument, whichever is the later date.

(3) Any instrument of ratification, acceptance, approval or accession deposited after the date on which this Convention enters into force shall take effect three months after the date of deposit.

(4) After the date on which an amendment to this Convention is deemed to have been accepted under article 16, any instrument of ratification, acceptance, approval or accession deposited shall apply to the Convention as amended.

Amendments

Article 16

(1) This Convention may be amended by either of the procedures specified in the following paragraphs:

(2) Amendments for consideration within the Organization:

(a) Any Party may propose an amendment to this Convention. A proposed amendment shall be submitted to the Secretary-General, who shall then circulate it to the Parties and Members of the Organization at least six months prior to its consideration. In the case of a proposal to amend Annex 1, it shall be processed in accordance with article 6, prior to its consideration under this article.

(b) An amendment proposed and circulated as above shall be referred to the Committee for consideration. Parties, whether or not Members of the Organization, shall be entitled to participate in the proceedings of the Committee for consideration and adoption of the amendment.

(c) Amendments shall be adopted by a two-thirds majority of the Parties present and voting in the Committee, on condition that at least one-third of the Parties shall be present at the time of voting.

(d) Amendments adopted in accordance with subparagraph (c) shall be communicated by the Secretary-General to the Parties for acceptance.

(e) An amendment shall be deemed to have been accepted in the following circumstances:

(i) An amendment to an article of this Convention shall be deemed to have been accepted on the date on which two-thirds of the Parties have notified the Secretary-General of their acceptance of it.

(ii) An amendment to an Annex shall be deemed to have been accepted at the end of twelve months after the date of adoption of such other date as determined by the Committee. However, if by that date more than one-third of the Parties notify the Secretary-General that they object to the amendment, it shall be deemed not to have been accepted.

(f) An amendment shall enter into force under the following conditions:

(i) An amendment to an article to this Convention shall enter into force for those Parties that have declared that they have accepted it six months after the date on which it is deemed to have been accepted in accordance with subparagraph (e)(i).

(ii) An amendment to Annex I shall enter into force with respect to all Parties six months after the date on which it is deemed to have been accepted except for any Party that has:

(1) notified its objection to the amendment in accordance with subparagraph (e)(ii) and has not withdrawn such objection;

(2) notified the Secretary-General, prior to the entry into force of such amendment, that the amendment shall enter into force for it only after a subsequent notification of its acceptance; or

(3) made a declaration at the time it deposits its instrument of ratification, acceptance or approval of, or accession to, this Convention that amendments to Annex I shall enter into force for it only after the notification to the Secretary-General of its acceptance with respect to such amendments.

(iii) An amendment to an Annex, other than Annex I shall enter into force with respect to all Parties six months after the date on which it is deemed to have been accepted , except for those Parties that have notified their objection to the amendment in accordance with subparagraph (e)(ii) and that have not withdrawn such objection.

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[1] The Marine Environment Protection Committee of the Organization.

(g) (i) A Party that has notified an objection under subparagraph (f)(ii)(1) or (iii) may subsequently notify the Secretary-General that it accepts the amendment. Such amendment shall enter into force for such Party six months after the date of its notification of acceptance, or the date on which the amendment enters into force, whichever is the latter date.

(ii) If a Party that has made a notification or declaration referred to in subparagraph (f)(ii)(2) or (3), respectively, notifies the Secretary-General of its acceptance with respect to an amendment, such amendment shall enter into force for such Party six months after the date of its notification of acceptance, or the date on which the amendment enters into force, whichever is the later date.

(3) Amendment by a Conference:

(a) Upon the request of a Party concurred by at least one-third of the Parties, the Organization shall convene a Conference of Parties to consider amendments to this Convention.

(b) An amendment adopted by such a Conference by a two-thirds majority of the Parties present and voting shall be communicated by the Secretary-General to all parties for acceptance;

(c) Unless the Conference decides otherwise, the amendment shall be deemed to have been accepted and shall enter into force in accordance with the procedures specified in paragraphs (2)(e) and (f) respectively of this article.

(4) Any Party that has declined to accept an amendment to an Annex shall be treated as a non-Party only for the purpose of application of that amendment.

(5) An addition of a new Annex shall be proposed and adopted and shall enter into force in accordance with the procedure applicable to an amendment to an article of this Convention.

(6) Any notification or declaration under this article shall be made in writing to the Secretary-General.

(7) The Secretary-General shall inform the Parties and Members of the Organization of:

(a) any amendment that enters into force and the date of its entry into force generally and for each Party; and

(b) any notification or declaration made under this article.

I. Signatories

II. Contracting States

III. Declarations, Reservations and Statements

IV. Amendments

I. Signatories

Australia	Subject to ratification
Belgium[1]	Subject to ratification
Brazil	Subject to ratification
Denmark[1]	
Finland	Subject to ratification
Morocco	Subject to ratification
Sweden	Subject to ratification
United States	Subject to ratification

II. Contracting States

	Date of deposit of instrument	Date of entry into force
Albania (accession)	9 July 2024	9 October 2024
Antigua and Barbuda (accession)	6 January 2003	17 September 2008
Australia (ratification)	9 January 2007	17 September 2008
Azerbaijan (accession)	24 August 2026	24 November 2026
Bahamas (accession)	30 January 2008	17 September 2008
Bangladesh (accession)	7 June 2018	7 September 2018
Barbados (accession)	30 January 2012	30 April 2012
Belarus (accession)	25 July 2019	25 October 2019
Belgium (ratification)[1]	15 April 2009	15 July 2009
Brazil (ratification)	20 February 2012	20 May 2012
Bulgaria (accession)	3 December 2004	17 September 2008
Canada(accession)	8 April 2010	8 July 2010
Chile (accession)	6 October 2016	6 January 2017
China (accession)[3]	7 March 2011	7 June 2011
Congo (accession)	19 May 2019	19 August 2014
Cook Islands (accession)	12 March 2007	17 September 2008
Cote d'Ivoire (accession)	17 March 2023	17 June 2023
Croatia (accession)	15 December 2006	17 September 2008
Cyprus (accession)	23 December 2005	17 September 2008
Democratic People's Republic of Korea (accession)	21 August 2020	21 November 2020
Denmark (signature)[1]	19 December 2002	17 September 2008
Egypt (accession)[1]	26 September 2012	26 December 2012
Equatorial Guinea (accession)	3 December 2025	3 March 2026
Estonia (accession)	23 January 2009	23 April 2009
Ethiopia (accession)	14 July 2009	14 October 2009
Finland (acceptance)	9 July 2010	9 October 2010
Fiji (accession)	8 March 2016	8 June 2016
France (accession)	12 March 2007	17 September 2008
Gabon (accession)	17 April 2019	17 July 2019
Georgia (accession)	13 September 2018	13 December 2018
Germany (accession)	20 August 2008	20 November 2008
Greece (accession)	22 December 2005	17 September 2008
Grenada (accession)	26 July 2018	26 October 2018
Guinea-Bissau (accession)	12 May 2022	12 August 2022
Guyana (accession)	20 February 2019	20 May 2019
Hungary (accession)	30 January 2008	17 September 2008
India (accession)	24 April 2015	24 July 2015
Indonesia (accession)	11 September 2014	11 December 2014
Iran (accession) [1]	6 April 2011	6 July 2011
Iraq (accession)	8 August 2023	8 November 2023
Ireland (accession)	20 October 2011	20 January 2012
Italy (accession)	21 January 2013	21 April 2013
Japan (accession)	8 July 2003	17 September 2008
Jordan (accession)	24 March 2010	24 June 2010
Kenya (accession)	7 July 2015	7 October 2015
Kiribati (accession)	5 February 2007	17 September 2008
Latvia (accession)	9 December 2003	17 September 2008
Lebanon (accession)	2 December 2010	2 March 2011
Liberia (accession)	17 September 2008	17 December 2008
Lithuania (accession)	29 January 2007	17 September 2008
Luxembourg (accession)	21 November 2005	17 September 2008
Madagascar (accession)	26 July 2019	26 October 2019
Malaysia (accession)	27 September 2010	27 December 2010
Malta (accession)	27 March 2009	27 June 2009
Marshall Islands (accession)	9 May 2008	17 September 2008
Mexico (accession)	7 July 2006	17 September 2008
Mongolia (accession)	28 September 2011	28 December 2011
Montenegro (accession)	29 November 2011	29 February 2012
Morocco (ratification)	14 April 2010	14 July 2010
Myanmar (accession)	17 August 2022	17 November 2022

Netherlands (accession)[1,2]	16 April 2008	17 September 2008
Nigeria (accession)	5 March 2003	17 September 2008
Niue (accession)	18 May 2012	18 August 2012
Norway (accession)	5 September 2003	17 September 2008
Oman (accession)	6 March 2019	6 June 2019
Palau (accession)	28 September 2011	28 December 2011
Panama (accession)	17 September 2007	17 September 2008
Peru (accession)	2 July 2019	2 October 2019
Philippines (accession)	6 June 2018	6 September 2018
Poland (accession)	9 August 2004	17 September 2008
Portugal (accession)	8 January 2019	8 April 2019
Republic of Korea (accession)	24 July 2008	24 October 2008
Romania (accession)	16 February 2005	17 September 2008
Russian Federation (accession)	19 October 2012	19 January 2013
Saint Kitts and Nevis (accession)	30 August 2005	17 September 2008
Saint Lucia (accession)	2 December 2020	2 March 2021
Saudi Arabia (accession)	25 April 2018	25 July 2018
Sao Tome and Principe (accession)	15 August 2022	15 November 2022
Serbia (accession)	8 July 2010	8 October 2010
Seychelles (accession)	28 November 2023	28 February 2024
Sierra Leone (accession)	21 November 2007	17 September/2008
Singapore (accession)	31 December 2009	31 March 2010
Slovenia (accession)	18 May 2007	17 September 2008
Solomon Islands (accession)	30 September 2024	30 December 2024
South Africa (accession)	2 July 2008	2 October 2008
Spain (accession)	16 February 2004	17 September 2008
Sweden (ratification)	10 December 2003	17 September 2008
Switzerland (accession)	24 September 2013	24 December 2013
Syrian Arab Republic (accession)[1]	24 April 2009	24 July 2009
Togo (accession)	6 February 2017	6 May 2017
Tonga (accession)	16 April 2014	16 July 2014
Trinidad and Tobago (accession)	3 January 2012	3 April 2012
Tunisia (accession)	5 September 2011	5 December 2011
Türkiye (accession)[1]	30 November 2018	28 February 2019
Tuvalu (accession)	2 December 2005	17 September 2008
Ukraine (accession)[1]	15 June 2017	15 September 2017
United Kingdom (accession)[4]	7 June 2010	7 September 2010
United States of America (ratification)[1]	21 August 2012	21 November 2012
Uruguay (accession)	26 March 2013	26 June 2013
Vanuatu (accession)	20 August 2008	20 November 2008
Viet Nam (accession)	27 November 2015	27 February 2016

Number of Contracting States: 101

[1]For the text of a declaration, reservation, see section III.
[2] Extended to Bonaire, Sint Eustatius and Saba (the Caribbean part of the Netherlands) with effect from 10 October 2010. For details on the restructuring of the Netherlands see footnote 4, in section II of SOLAS 1974.
[3] Extended to Macau Special Administrative Region from 7 June 2011. Also extended to the Hong Kong Special Administrative Region with effect from 15 February 2016.

[4] Extended to Gibraltar on 2 January 2013, to the British Virgin Islands on 9 September 2013 and to the Isle of Man on 21 may 2014.

III. Declarations, Reservations and Statements

BELGIUM

The signature for Belgium was accompanied by the following declaration:

"Cette signature engage également la Région Wallonne, la Région Flamande et la Région de Bruxelles-Capitale."

DENMARK

The signature for Denmark was accompanied by the following declaration:
"... with reservation for application to the Faroes and Greenland."

On 4 June 2010, the depositary received a further communication from the Royal Danish Embassy, as follows:
"… Denmark withdraws its declaration in respect of the Faroes with regards to the International Convention on the Control of Harmful Anti Fouling Systems on Ships, 2001."

EGYPT

The instrument contained the following declaration:

> "In accordance with the Regulations for Navigation and Traffic in the Suez Canal, and in order to ensure the freedom to use the canal, the Arab Republic of Egypt declares the non-application of the Convention to the Suez Canal maritime facility and to ships entering or departing its ports when using the Suez Canal."

IRAN

The instrument of accession contained the following declaration:

> "..the implementation of the provisions of article 14 of the Convention, relating to Settlement of Disputes is subject to fulfilment of the requirements of the relevant domestic rules and regulations"

NETHERLANDS

The instrument contained the following declaration:

> "The Embassy has the honour to inform the Secretary-General that, in accordance with article 9, paragraph 1, under a, of the Convention, the Kingdom of the Netherlands declares that the institutions which are competent to make decisions in the administration of matters relating to the control of anti-fouling systems are:
>
> a. American Bureau of Shipping (ABS) Houston Ltd;
> b. Bureau Veritas (BV);
> c. Det Norske Veritas (DNV);
> d. Germanischer Lloyd (GL) AG;
> e. Lloyd's Register of Shipping (LR);
> f. Nippon Kaiji Kyokai (NKK);
> g. Registro Italiano Navale (RINA).
>
> The surveys by Lloyd's Register of Shipping (LR) shall be carried out by Lloyd's Register Emea."

SYRIAN ARAB REPUBLIC

The instrument contained the following declaration:

> "The Syrian Arab Republic by joining this Treaty does not in any way recognise Israel and will not enter into any dealings with it as prescribed by the Treaty."

TÜRKIYE

The instrument was accompanied by the following declaration:

> "Türkiye is not a party and has objected to UNCLOS from the outset due to a number of serious shortcomings. Türkiye believes that the said Convention does not reflect the customary international law of the sea as a whole. Accordingly, Türkiye dissociates itself from the references made in the 'International Convention on the Control of Harmful Anti-fouling Systems on Ships, 2001' to the international instruments that it is not party to. These references therefore should not be interpreted as a change in the legal position of Türkiye with regard to the said instruments."

UKRAINE

The instrument contained the following declaration:

> "In accordance with article 16(2)(f)(ii)(2) of this Convention, an amendment to annex 1 shall enter into force for Ukraine only after the Secretary-General, prior to the entry into force of such amendment, is given a subsequent notification of such an acceptance."

UNITED STATES OF AMERICA

The instrument contained the following declaration:

> "...pursuant to article 16(2)(f)(ii)(3) of the Convention, amendments to Annex 1 of the Convention shall enter into force for the United States of America only after notification to the Secretary-General of its acceptance with respect to such amendments."

IV. Amendments

(1) 2021 (Amendments to Annexes 1 and 4 - Controls on cybutryne and form of the International Anti-fouling System Certificate) (MEPC. 331(76))

A. Adoption

The Marine Environment Protection Committee at its seventy-sixth session (June 2021) adopted, by resolution MEPC.331(76), in accordance with article 16(2)(c) of the AFS Convention, amendments to annexes 1 and 4.

B. Entry into force

The Marine Environment Protection Committee determined, in accordance with article 16(2)(e)(ii) of the AFS Convention, that the amendments shall be deemed to have been accepted on 1 July 2022 and shall enter into force on 1 January 2023 unless, prior to the former date, not less than one third of the Parties have notified their objections to the amendments. As at 1 July 2022, no objections were received and the amendments accordingly entered into force on 1 January 2023.

INTERNATIONAL CONVENTION FOR THE CONTROL AND MANAGEMENT OF SHIPS' BALLAST WATER AND SEDIMENTS, 2004 (BWM 2004)

Done at London, 13 February 2004

Entry into force: 8 September 2017

Signature, ratification, acceptance, approval or accession

Article 17

1 This Convention shall be open for signature by any State at the Headquarters of the Organization from 1 June 2004 to 31 May 2005 and shall thereafter remain open for accession by any State.

2 States may become Parties to this Convention by:
Annex III

(a) signature not subject to ratification, acceptance or approval; or

(b) signature subject to ratification, acceptance, or approval, followed by ratification, acceptance or approval; or

(c) accession.

3 Ratification, acceptance, approval or accession shall be effected by the deposit of an instrument to that effect with the Secretary-General.

4 If a State comprises two or more territorial units in which different systems of law are applicable in relation to matters dealt with in this Convention, it may at the time of signature, ratification, acceptance , approval or accession declare that this Convention shall extend to all its territorial units or only to one or more of them and may modify this declaration by submitting another declaration at any time.

5 Any such declaration shall be notified to the Depositary in writing and shall state expressly the territorial unit or units to which this Convention applies.

Entry into force

Article 18

1 This Convention shall enter into force twelve months after the date on which not less than thirty States, the combined merchant fleets of which constitute not less than thirty-five percent of the gross tonnage of the world's merchant shipping, have either signed it without reservation as to ratification, acceptance or approval, or have deposited the requisite instrument of ratification, acceptance, approval or accession in accordance with Article 17.

2 For States which have deposited an instrument of ratification, acceptance, approval or accession in respect of this Convention after the requirements for entry into force thereof have been met, but prior to the date of entry into force, the ratification, acceptance, approval or accession shall take effect on the date of entry into force of this Convention, or three months after the date of deposit of the instrument, whichever is the later date.

3 Any instrument of ratification, acceptance, approval or accession deposited after the date on which this Convention enters into force shall take effect three months after the date of deposit.

4 After the date on which an amendment to this Convention is deemed to have been accepted under article 19, any instrument of ratification, acceptance, approval or accession deposited shall apply to this Convention, as amended.

Amendments

Article 19

1 This Convention may be amended by either of the procedures specified in the following paragraphs.

2 Amendments after consideration within the Organization:

(a) Any Party may propose an amendment to this Convention. A proposed amendment shall be submitted to the Secretary-General, who shall then circulate it to the Parties and Members of the Organization at least six months prior to its consideration.

(b) An amendment proposed and circulated as above shall be referred to the Committee for consideration. Parties, whether or not Members of the Organization, shall be entitled to participate in the proceedings of the Committee for consideration and adoption of the amendment.

(c) Amendments shall be adopted by a two-thirds majority of the Parties present and voting in the Committee, on condition that at least one-third of the Parties shall be present at the time of voting.

(d) Amendments adopted in accordance with subparagraph (c) shall be communicated by the Secretary-General to the Parties for acceptance.

(e) An amendment shall be deemed to have been accepted in the following circumstances:

(i) An amendment to an article of this Convention shall be deemed to have been accepted on the date on which two-thirds of the Parties have notified the Secretary-General of their acceptance of it.

(ii) An amendment to the Annex shall be deemed to have been accepted at the end of twelve months after the date of adoption or such other date as determined by the Committee. However, if by that date more than one-third of the Parties notify the Secretary-General that they object to the amendment, it shall be deemed not to have been accepted.

(f) An amendment shall enter into force under the following conditions:

(i) An amendment to an article of this Convention shall enter into force for those Parties that have declared that they have accepted it six months after the date on which it is deemed to have been accepted in accordance with subparagraph (e)(i).

(ii) An amendment to the Annex shall enter into force with respect to all Parties six months after the date on which it is deemed to have been accepted, except for any Party that has:

(1) notified its objection to the amendment in accordance with subparagraph (e)(ii) and that has not withdrawn such objection; or

(2) notified the Secretary-General, prior to the entry into force of such amendment, that the amendment shall enter into force for it only after a subsequent notification of its acceptance.

(g) (i) A Party that has notified an objection under subparagraph (f)(ii)(1) may subsequently notify the Secretary-General that it accepts the amendment. Such amendment shall enter into force for such Party six months after the date of its notification of acceptance, or the date on which the amendment enters into force, whichever is the later date.

(ii) If a Party that has made a notification referred to in subparagraph (f)(ii)(2) notifies the Secretary-General of its acceptance with respect to an amendment, such amendment shall enter into force for such Party six months after the date of its notification of acceptance, or the date on which the amendment enters into force, whichever is the later date.

3 Amendment by a Conference:

(a) Upon the request of a Party concurred in by at least one-third of the Parties, the Organization shall convene a Conference of Parties to consider amendments to this Convention.

(b) An amendment adopted by such a Conference by a two-thirds majority of the Parties present and voting shall be communicated by the Secretary-General to all Parties for acceptance.

(c) Unless the Conference decides otherwise, the amendment shall be deemed to have been accepted and shall enter into force in accordance with the procedures specified in paragraphs 2(e) and (f) respectively.

4 Any Party that has declined to accept an amendment to the Annex shall be treated as a non-Party only for the purpose of application of that amendment.

5 Any notification under this Article shall be made in writing to the Secretary-General.

6 The Secretary-General shall inform the Parties and Members of the Organization of:

(a) any amendment that enters into force and the date of its entry into force generally and for each Party; and

(b) any notification made under this Article.

Denunciation

Article 20

1 This Convention may be denounced by any Party at any time after the expiry of two years from the date on which this Convention enters into force for that Party.

2 Denunciation shall be effected by written notification to the Depositary, to take effect one year after receipt or such longer period as may be specified in that notification.

I. Signatories

II Contracting States

III. Declarations, Reservations and Statements

IV. Amendments

I. Signatories

Argentina	Subject to ratification
Australia	Subject to ratification
Brazil	Subject to ratification
Finland	Subject to acceptance
Maldives	Subject to ratification
Netherlands	Subject to approval
Spain	Subject to ratification
Syrian Arab Republic	Subject to ratification

II. Contracting States

	Date of deposit of instrument	Date of entry into force
Albania (accession)	15 January 2009	8 September 2017
Antigua and Barbuda (accession)	19 December 2008	8 September 2017
Argentina (ratification)	2 August 2017	2 November 2017
Australia (ratification)	7 June 2017	8 September 2017
Bahamas (accession)	8 June 2017	8 September 2017
Bangladesh (accession)	7 June 2018	7 September 2018
Barbados (accession)	11 May 2007	8 September 2017
Belarus (accession)	23 March 2020	23 June 2020
Belgium (accession)	7 March 2016	8 September 2017
Brazil (ratification)	14 April 2010	8 September 2017
Bulgaria (accession)	30 April 2018	30 July 2018
Cameroon (accession)	29 June 2022	29 September 2022
Canada (accession)	8 April 2010	8 September 2017
China (accession)[4]	22 October 2018	22 January 2019
Congo (accession)	19 May 2014	8 September 2017
Cook Islands (accession)	2 February 2010	8 September 2017
Cote d'Ivoire (accession)	17 March 2023	17 June 2023
Croatia (accession)[1]	29 June 2010	8 September 2017
Cyprus (accession)	8 August 2018	8 November 2018
Denmark (accession)[1,3]	11 September 2012	8 September 2017
Dominican Republic (accession)	12 October 2021	12 January 2022
Egypt (accession)	18 May 2007	8 September 2017
Equatorial Guinea (accession)	3 December 2025	3 March 2026
Estonia (accession)	17 April 2018	17 July 2018
Fiji (accession)	8 March 2016	8 September 2017
Finland (acceptance)[1]	8 September 2016	8 September 2017
France (accession)[1]	24 September 2008	8 September 2017
Gabon (accession)	17 April 2019	17 July 2019
Georgia (accession)	12 January 2015	8 September 2017
Germany (accession)	20 June 2013	8 September 2017
Ghana (accession)	26 November 2015	8 September 2017
Greece (accession)	26 June 2017	26 September 2017
Grenada (accession)	26 July 2018	26 October 2018
Guinea-Bissau (accession)	12 May 2022	12 August 2022
Guyana (accession)	20 February 2019	20 May 2019
Honduras (accession)	10 July 2017	10 October 2017
Indonesia (accession)	24 November 2015	8 September 2017
Iraq (accession)	30 September 2021	30 December 2021
Iran (accession)[1]	6 April 2011	8 September 2017
Ireland (accession)	30 November 2023	29 February 2024
Jamaica (accession)	11 September 2017	11 December 2017
Japan (accession)[1]	10 October 2014	8 September 2017
Jordan (accession)	9 September 2014	8 September 2017
Kenya (accession)	14 January 2008	8 September 2017
Kiribati (accession)	5 February 2007	8 September 2017
Latvia (accession)	11 October 2018	11 January 2019
Lebanon (accession)	15 December 2011	8 September 2017
Liberia (accession)	18 September 2008	8 September 2017

Lithuania (accession)	9 February 2018	9 May 2018
Madagascar (accession)	27 July 2017	27 October 2017
Malaysia (accession)	27 September 2010	8 September 2017
Maldives (ratification)	22 June 2005	8 September 2017
Malta (accession)	7 September 2017	7 December 2017
Marshall Islands (accession)	26 November 2009	8 September 2017
Myanmar	17 August 2022	17 November 2022
Mexico (accession)	18 March 2008	8 September 2017
Mongolia (accession)	28 September 2011	8 September 2017
Montenegro (accession)	29 November 2011	8 September 2017
Morocco (accession)	23 November 2015	8 September 2017
Mozambique (accession)	23 October 2025	23 January 2026
Namibia (accession)	15 July 2020	15 October 2020
Nauru (accession)	23 March 2020	23 June 2020
Netherlands (approval)[2]	10 May 2010	8 September 2017
New Zealand (accession)	9 January 2017	8 September 2017
Nigeria (accession)	13 October 2005	8 September 2017
Niue (accession)	18 May 2012	8 September 2017
Norway (accession)	29 March 2007	8 September 2017
Oman (accession)	1 February 2022	1 May 2022
Palau (accession)	28 September 2011	8 September 2017
Panama (accession)[1]	19 October 2016	8 September 2017
Peru (accession)	10 June 2016	8 September 2017
Philippines (accession)	6 June 2018	6 September 2018
Poland (accession)	26 August 2020	26 November 2020
Portugal (accession)	19 October 2017	19 January 2018
Qatar (accession)	8 February 2018	8 May 2018
Republic of Korea (accession)	10 December 2009	8 September 2017
Russian Federation (accession)	24 May 2012	8 September 2017
Saint Kitts and Nevis (accession)	30 August 2005	8 September 2017
Saint Lucia (accession)	26 May 2016	8 September 2017
Saint Vincent and the Grenadines (accession)	2 July 2020	2 October 2020
Sao Tome and Principe	15 August 2022	15 November 2022
Saudi Arabia (accession)	27 April 2017	8 September 2017
Serbia (accession)	26 July 2018	26 October 2018
Seychelles (accession)	27 November 2017	27 February 2018
Sierra Leone (accession)	21 November 2007	8 September 2017
Singapore (accession)	8 June 2017	8 September 2017
Slovenia (accession)	7 April 2026	7 July 2026
Solomon Islands (accession)	27 November 2025	27 February 2026
South Africa (accession)	15 April 2008	8 September 2017
Spain (ratification)	14 September 2005	8 September 2017
Sweden (accession)[1]	24 November 2009	8 September 2017
Switzerland (accession)	24 September 2013	8 September 2017
Syrian Arab Republic (ratification)	2 September 2005	8 September 2017
Togo (accession)	17 September	17 December 2018
Tonga (accession)	16 April 2014	8 September 2017
Türkiye (accession)	14 October 2014	8 September 2017
Tuvalu (accession)	2 December 2005	8 September 2017
Trinidad and Tobago (accession)	3 January 2012	8 September 2017
United Arab Emirates (accession)	6 June 2017	8 September 2017
United Kingdom [5] (accession)	26 May 2022	26 August 2022
Vanuatu (accession)	16 October 2025	16 January 2026
Viet Nam (accession)	24 January 2024	24 April 2024

Number of Contracting States: 102

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[1] For the text of a declaration, reservations and statement, see section III.

[2] Extended to Bonaire, Sint Eustatius and Saba (the Caribbean part of the Netherlands) with effect from 20 February 2014

[3] The Convention applies to the Faroes: on 28 August 2015 the Depositary received a notification of the withdrawal of the territorial declaration with regard to the Faroes.
The Convention also applies to Greenland: on 16 December 2020 the Depositary received a notification of the withdrawal of the territorial declaration with regard to Greenland.

[4] Extended to the Macau Special Administrative Region from 22 January 2019, and to the Hong Kong Special Administrative Region from 13 August 2020.
[5] Extended to Bermuda from 8 May 2024

III. Declarations, Reservations and Statements

CHINA

The instrument of accession was accompanied by a notification that BWM 2004 shall apply to the Macao Special Administrative Region of the People's Republic of China and shall not apply to the Hong Kong Special Administrative Region of the People's Republic of China until otherwise notified by the Government of the People's Republic of China.

CROATIA

The instrument of accession of Croatia contained the following declaration:

"In accordance with IMO Assembly resolution A.1005(25) of 29 November 2007, the Republic of Croatia declares that the ships subject to regulation B-3.3 built in 2009 will not be required to comply with regulation D-2 until their second annual survey, but not later than 31 December 2011."

DENMARK

The instrument of accession of Denmark contained the following declaration: "La Convention ne s'appliquera pas aux îles Féroé et au Groenland" and was accompanied by the following declaration:

"In the period between the entry into force of the Convention and 30 June 2015, Denmark will allow ships to choose between complying with the Ballast Water Exchange Standard in Regulation D-1 or the Ballast Water Performance Standard in Regulation D-2, except when discharging ballast water to a reception facility.

After 30 June 2015 Denmark will apply the Ballast Water Performance Standard in Regulation D-2, in accordance with the requirement of the Convention.

The reservation only affects the application of the Ballast Water Performance Standard in Regulation D-2 to ships discharging Ballast Water directly into the aquatic environment. All other mandatory requirements under the Convention, including those governing Ballast Water Reception facilities, will be applied fully.

If the Convention enters into force after 30 June 2015, this reservation will be of no effect.

This reservation in no way limits the rights of other Parties to regulate ships and /or waters under their jurisdiction. "

FINLAND

The instrument of acceptance of Finland contained the following declaration:

"Notwithstanding the schedule set forth in regulation B-3 of the Convention, the Republic of Finland declares, concerning the application of the International Convention for the Control and Management of Ships' Ballast Water and Sediments, 2004, that it will enforce the standards in regulations D-1 and D-2 of the Convention in accordance with Assembly resolution A.1088(28), adopted on 4 December 2013, and with the understanding that the intentions of resolution A.1088(28) apply also to ships operating in sea areas where ballast water exchange in accordance with regulations B-4.1 and D-1 of the Convention is not possible."

FRANCE

The instrument of accession of France contained the following declaration:

"In accordance with IMO Assembly resolution A.1005(25) of 29 November 2007, France declares that a ship subject to regulation B-3.3 constructed in 2009 will not be required to comply with regulation D-2 until its second annual survey, but will have to comply with it not later than 31 December 2011.

France also declares that, until such time as regulation D-2 is enforced, it will ensure that ships to which the preceding declaration refers comply with regulation D-1 for as long as they do not comply with regulation D-2.

France declares, in accordance with article 17.4 of the International Convention for the Control and Management of Ships' Ballast Water and Sediments (including one annex and two appendices), signed in London on 13 February 2004, that the convention shall be applicable in Mayotte, New Caledonia, French Polynesia, Saint Barthélemy, Saint Martin, Saint Pierre and Miquelon, Wallis and Futuna, and the French Southern and Antarctic Lands."

GREECE

The instrument of accession of Greece was accompanied by the following declaration:

"The Hellenic Republic declares that the recommendations contained in the operative paragraph 2 of Resolution A.1088(28), adopted by the Assembly of the International Maritime Organization on 4 December 2013, will be applied in respect of the implementation of regulations D-1 and D-2 of the Annex to the International Convention for the Control and Management of Ships' Ballast Water and Sediment, 2004."

IRAN

The instrument of accession of the Islamic Republic of Iran contained the following declaration:
"The Islamic Republic of Iran declares that it does not consider itself bound by the provisions of Article 15. The submission of any dispute to conciliation or arbitration is subject to the consent of all parties to such a dispute and to fulfilment of the relevant domestic rules and regulations."

The Islamic Republic of Iran further declared that according to paragraph 2 of IMO Assembly resolution A.1005(25) of 29 November 2007, the Government of the Islamic Republic of Iran intends to apply the Convention on the basis of the following understanding:

"A ship subject to regulation B-3.3 constructed in 2009 will not be required to comply with regulation D-2 until its second annual survey, but no later than 31 December 2011."

JAPAN

The instrument of accession of Japan was accompanied by the following declaration:
" …the Government of Japan reserves the right to perform its obligations on the ballast water management for ships under the provisions of regulation B-3 of the Annex to the Convention in accordance with the recommendations in Resolution A.1088(28) adopted by the Assembly of the International Maritime Organization."

NEW ZEALAND

The instrument of accession by New Zealand was accompanied by the following reservation and declaration:

"New Zealand reserves the right to apply the Convention in accordance with the recommendations contained in operative paragraph 2 of Resolution A.1088(28) adopted by the Assembly of the International Maritime Organization on 4 December 2013; and declares that, consistent with the constitutional status of Tokelau and taking into account the commitment of the Government of New Zealand to the development of self-government for Tokelau through an act of self-determination under the Charter of the United Nations, this accession shall not extend to Tokelau unless and until a declaration to this effect is lodged by the Government of New Zealand with the depository on the basis of appropriate consultation with that territory."

PANAMA

The instrument of accession of Panama was accompanied by the following declaration:
"The Government of the Republic of Panama declares that regulations D-1 and D-2 of the Annex to the International Convention for the Control and Management of Ships' Ballast Water and Sediments, 2004, will apply to ships in accordance with the recommendation contained in Resolution A.1088(28), adopted by the Assembly of the International Maritime Organization on 4 December 2013."

SWEDEN

The instrument of accession of Sweden contained the following reservation:
"Due to geographical, hydrographical and hydrological conditions, Sweden cannot fully comply with the requirements regarding Ballast Water exchange, and will therefore not fully comply with the requirements of the said Convention until the year 2017. In addition, regulation B-3.3 will not be applied until the second yearly survey of ships, but at the latest by the end of December 2011."

TÜRKIYE

The instrument of accession of Türkiye was accompanied by the following declaration:
"The Republic of Türkiye dissociates itself from the references made in paragraph 1 of the Preamble of the International Convention for the Control and Management of Ships' Ballast Water and Sediments, 2004, to the international instruments that it is not party to, including the United Nations Convention of the Law of the Sea, 1982. Accession to the said Convention by Türkiye cannot be construed as a change in the legal position of Türkiye with regards to the said instruments."

IV. Amendments

(1) 2018 (regulations A-1 and D-3 ─ Code for Approval of Ballast Water Management Systems (BWMS Code) Amendments (MEPC.296(72))

A. Adoption

The Marine Environment Protection Committee at its seventy-second session (April 2018) adopted, by resolution MEPC.296(72), in accordance with article 19(2)(c) of the BWM Convention, amendments to regulations A-1 and D-3.

B. Entry into force

The Marine Environment Protection Committee determined, in accordance with article 19(2)(e)(ii) of the BWM Convention, that the amendments shall be deemed to have been accepted on 13 April 2019 and will enter into force on 13 October 2019 unless, prior to the former date, more than one-third of the Parties have notified the Secretary-General that they object to the amendments. As at 13 April 2019 no objection was received, and the amendments accordingly entered into force on 13 October 2019.

(2) 2018 (regulation B-3 ─ Implementation schedule of ballast water management for ships) Amendments (MEPC.297(72))

A. Adoption

The Marine Environment Protection Committee at its seventy-second session (April 2018) adopted, by resolution MEPC.297(72), in accordance with article 19(2)(c) of the BWM Convention, amendments to regulations B-3.

B. Entry into force

The Marine Environment Protection Committee determined, in accordance with article 19(2)(e)(ii) of the BWM Convention, that the amendments shall be deemed to have been accepted on 13 April 2019 and will enter into force on 13 October 2019 unless, prior to the former date, more than one-third of the Parties have notified the Secretary-General that they object to the amendments. As at 13 April 2019 no objection was received, and the amendments accordingly entered into force on 13 October 2019.

(3) 2018 (regulations E-1 and E-5 ─ Endorsements of additional surveys on the International Ballast Water Management Certificate) Amendments (MEPC.299(72))

A. Adoption

The Marine Environment Protection Committee at its seventy-second session (April 2018) adopted, by resolution MEPC.299(72), in accordance with article 19(2)(c) of the BWM Convention, amendments to regulations E-1 and E-5.

B. Entry into force

The Marine Environment Protection Committee determined, in accordance with article 19(2)(e)(ii) of the BWM Convention, that the amendments shall be deemed to have been accepted on 13 April 2019 and will enter into force on 13 October 2019 unless, prior to the former date, more than one-third of the Parties have notified the Secretary-General that they object to the amendments. As at 13 April 2019 no objection was received, and the amendments accordingly entered into force on 13 October 2019.

(4) 2020 (Commissioning testing of ballast water management systems and form of the International Ballast Water Management Certificate) Amendments MEPC.325(75)

A. Adoption

The Marine Environment Protection Committee at its seventy-fifth session (November 2020) adopted, by resolution MEPC.325(75), in accordance with article 19(2)(c) of the BWM Convention, amendments to regulation E-1 and Appendix I.

B. Entry into force

The Marine Environment Protection Committee determined, in accordance with article 19(2)(e)(ii) of the BWM Convention, that the amendments shall be deemed to have been accepted on 1 December 2021 and will enter into force on 1 June 2022 unless, prior to the former date, more than one-third of the Parties have notified the Secretary-General that they object to the amendments. As at 1 December 2021 no objection was received, and the amendments accordingly entered into force on 1 June 2022.

(5) 2023 (Appendix II - Form of Ballast Water Record Book) Amendments MEPC.369(80))

A. Adoption

The Marine Environment Protection Committee at its eightieth session (July 2023) adopted, by resolution MEPC.369(80), in accordance with article 19(2)(c) of the BWM Convention, amendments to II.

B. Entry into force

The Marine Environment Protection Committee determined, in accordance with article 19(2)(e)(ii) of the BWM Convention, that the amendments shall be deemed to have been accepted on 1 August 2024 and will enter into force on 1 February 2025 unless, prior to the former date, more than one-third of the Parties have notified the Secretary-General that they object to the amendments. As at 1 August 2024 no objection was received, and the amendments accordingly entered into force on 1 February 2025.

(6) 2024 (Regulations A-1 and B-2) Amendments MEPC.383(81))

A. Adoption

The Marine Environment Protection Committee at its eighty-first session (March 2024) adopted, by resolution MEPC.383(81), in accordance with article 19(2)(c) of the BWM Convention, amendments to regulations A-1 and B-2.

B. Entry into force

The Marine Environment Protection Committee determined, in accordance with article 19(2)(e)(ii) of the BWM Convention, that the amendments shall be deemed to have been accepted on 1 April 2025 and will enter into force on 1 October 2025 unless, prior to the former date, more than one-third of the Parties have notified the Secretary-General that they object to the amendments. As at 21 March 2025, one objection[1] had been received.

[1] The depositary received, on 21 March 2025, the following communication from the Embassy of Finland informing that "Finland is obliged to object to these amendments due to national procedural requirements, and that it intends to approve and accept them as soon as the legislative amendments necessary for such acceptance have been carried out."
On 25 September 2025, the Secretary-General received a further communication from the Embassy of Finland that the Government of Finland has fulfilled the national procedural requirements for the approval of the amendments (MEPC.383(81)), thereby withdrawing an earlier objection.

NAIROBI INTERNATIONAL CONVENTION ON THE REMOVAL OF WRECKS, 2007 (NAIROBI WRC 2007)

Done at Nairobi, 18 May 2007

Entry into force: 14 April 2015

Signature, ratification, acceptance, approval and accession

Article 17

1 This Convention shall be open for signature at the Headquarters of the Organization from 19 November 2007 until 18 November 2008 and shall thereafter remain open for accession.

(a) States may express their consent to be bound by this Convention by:

(i) signature without reservation as to ratification, acceptance or approval; or

(ii) signature subject to ratification, acceptance or approval, followed by ratification, acceptance or approval; or

(iii) accession.

(b) Ratification, acceptance, approval or accession shall be effected by the deposit of an instrument to that effect with the Secretary-General.

Article 18

Entry into force

1 This Convention shall enter into force twelve months following the date on which ten States have either signed it without reservation as to ratification, acceptance or approval or have deposited instruments of ratification, acceptance, approval or accession with the Secretary-General.

2 For any State which ratifies, accepts, approves or accedes to this Convention after the conditions in paragraph 1 for entry into force have been met, this Convention shall enter into force three months following the date of deposit by such State of the appropriate instrument, but not before this Convention has entered into force in accordance with paragraph 1.

Denunciation

Article 19

1 This Convention may be denounced by a State Party at any time after the expiry of one year following the date on which this Convention comes into force for that State.

2 Denunciation shall be effected by the deposit of an instrument to that effect with the Secretary-General.

3 A denunciation shall take effect one year, or such longer period as may be specified in the instrument of denunciation, following its receipt by the Secretary-General.

Amendment provisions

Article 14

1 At the request of not less than one-third of States Parties, a conference shall be convened by the Organization for the purpose of revising or amending this Convention.

2 Any consent to be bound by this Convention, expressed after the date of entry into force of an amendment to this Convention, shall be deemed to apply to this Convention, as amended.

I. Signatories

II. Contracting States

III. Declarations, Reservations and Statements

IV. Amendments

I. Signatories

Denmark	"Subject to ratification"	12 November 2008
Estonia	"Subject to ratification"	28 March 2008
France	"Sous réserve de ratification"	24 September 2008
Germany	"Subject to ratification"	17 November 2008
Italy	"Subject to ratification"	23 September 2008
Netherlands	"Subject to approval"	27 October 2008

II. Contracting States

	Date of deposit of instrument	**Date of entry into force**
Albania (accession) [1]	27 April 2015	27 July 2015
Antigua and Barbuda[1]	9 January 2015	14 April 2015
Bahamas (accession)[1]	5 June 2015	5 September 2015
Bangladesh (accession)	6 July 2026	6 October 2026
Barbados (accession)[1]	23 July 2024	23 October 2024
Belarus (accession)	5 September 2019	5 December 2019
Belgium (accession)	17 January 2017	17 April 2017
Belize (accession)[1]	17 January 2018	17 April 2018
Brazil (accession)	9 July 2026	9 October 2026
Bulgaria (accession)[1]	8 February 2012	14 April 2015
Canada (accession)	30 April 2019	30 July 2019
China (accession) [1,4]	11 November 2016	11 February 2017
Comoros (accession)	1 February 2018	1 May 2018
Congo (accession)	19 May 2014	14 April 2015
Cook Islands (accession)	22 December 2014	14 April 2015
Cote d'Ivoire (accession)	17 March 2023	17 June 2023
Croatia (accession) [1]	11 July 2017	11 October 2017
Cyprus (accession) [1]	22 July 2015	22 October 2015
Democratic People's Republic of Korea (accession)	8 May 2017	8 August 2017
Denmark (ratification)[1,5,6]	14 April 2014	14 April 2015
Equatorial Guinea (accession)[1]	3 December 2025	3 March 2026
Estonia (ratification)	29 Jun 2020	29 September 2020

[1] For the text of a declaration, reservations and statement, see section III.

[2] The Convention was extended by the United Kingdom to the Isle of Man (excluding its territory and territorial sea) with effect from 14 April 2015, to Gibraltar with effect from 16 April 2015, to the Cayman Islands with effect from 7 February 2017, to Bermuda with effect from 31 March 2021 and to Falkland Islands (Malvinas) from 19 December 2024. Gibraltar, the Cayman Islands, Bermuda and Falkland Islands (Malvinas) declared that they will apply this Convention to wrecks located within their territories, including their territorial seas.

* A dispute exists between the Governments of Argentina and the United Kingdom of Great Britain and Northern Ireland concerning sovereignty over the Falkland Islands (Malvinas). The Secretary-General received a communication from the Embassy of the Argentine Republic, on 29 April 2025, the full text of which is contained in Circular Letter No.5010.

[3] Approval for the European part of the Netherlands only. Also approval for the Caribbean part of the Netherlands (the islands of Bonaire, Sint Eustatius and Saba) with effect from 20 December 2017.

[4] The Convention shall not apply to the Hong Kong Special Administrative Region and the Macao Special Administrative Region of the PRC until otherwise notified by the Government of the People Republic of China

[5] The Convention shall not apply to the Faroes and Greenland until further notice.

[6] The Depositary received, on 11 November 2025, a notification of the withdrawal of the territorial declaration of Denmark with regard to the Faroe Islands.

Finland (accession)[1]	27 October 2016	27 January 2017
France (ratification)[1]	4 February 2016	4 May 2016
Gabon (accession)	17 April 2019	17 July 2019
Germany (ratification)	20 June 2013	14 April 2015
Guinea-Bissau (accession)	12 May 2022	12 August 2022
Guyana (accession)	20 February 2019	20 May 2019
Honduras (accession)	15 February 2022	15 May 2022
India (accession)	23 March 2011	14 April 2015
Indonesia (accession)	14 December 2020	14 March 2021
Iran (Islamic Republic of) (accession)	19 April 2011	14 April 2015
Iraq (accession)	8 August 2023	8 November 2023
Japan (accession)	1 July 2020	1 October 2020
Jordan (accession)	16 September 2016	16 December 2016
Kazakhstan (accession)[1]	28 April 2021	28 July 2021
Kenya (accession)[1]	14 April 2015	14 July 2015
Liberia (accession)[1]	8 January 2015	14 April 2015
Lithuania (accession)[1]	5 November 2024	5 February 2025
Luxembourg (accession)	29 July 2022	29 October 2022
Madagascar (accession)	26 July 2019	26 October 2019
Malaysia (accession)	28 November 2013	14 April 2015
Malta (accession)[1]	18 January 2015	18 April 2015
Marshall Islands (accession)[1]	27 October 2014	14 April 2015
Montenegro (accession)[1]	17 February 2025	17 May 2025
Morocco (accession)	13 June 2013	14 April 2015
Nauru (accession)	23 March 2020	23 June 2020
Netherlands (approval) [1, 3]	19 January 2016	19 April 2016
Nigeria (accession)	23 July 2009	14 April 2015
Niue (accession) [1]	27 April 2015	27 July 2015
Norway (accession)	11 November 2024	11 February 2024
Oman (accession)	30 April 2020	30 July 2020
Pakistan (accession)	17 June 2022	17 September 2022
Palau (accession)	29 September 2011	14 April 2015
Panama (accession) [1]	18 August 2015	18 November 2015
Portugal (accession)	19 October 2017	19 January 2018
Republic of Moldova (accession)	13 August 2026	13 November 2026
Romania (accession)	20 September 2016	20 December 2016
Russian Federation (accession)	3 February 2022	3 May 2022
Saint Kitts and Nevis (accession)	31 March 2016	30 June 2016
Saint Lucia (accession)	2 December 2020	2 March 2021
Saint Vincent and the Grenadines (accession)	2 July 2020	2 October 2020
San Marino (accession)	11 April 2022	11 July 2022
Sao Tome and Principe	15 August 2022	15 November 2022
Saudi Arabia (accession)	18 July 2019	18 October 2019
Seychelles (accession)	28 November 2023	28 February 2024
Sierra Leone (accession)	22 November 2019	22 February 2020
Singapore (accession)	8 June 2017	8 September 2017
Solomon Islands (accession)	27 November 2025	27 February 2026
Somalia (accession) [1]	26 June 2026	26 September 2026
South Africa (accession)	4 September 2015	4 December 2015
Sweden (accession) [1]	3 November 2017	3 February 2018
Switzerland (accession)	16 May 2016	16 August 2016
Togo (accession)	20 March 2015	20 June 2015
Tonga (accession)	17 May 2022	17 August 2022
Tuvalu	17 February 2015	17 May 2015
United Arab Emirates (accession)[1]	24 September 2025	24 December 2025
United Kingdom (accession) [1, 2]	30 November 2012	14 April 2015
Vanuatu (accession)[1]	16 October 2025	16 January 2026

Number of Contracting States: 79

III. Declarations, Reservations and Statements

ALBANIA

The instrument of accession of Albania was accompanied by the following declaration:

"Pursuant to Article 3, paragraph 2 of the Nairobi International Convention on the Removal of Wrecks, 2007, the Republic of Albania declares to extend the application of this Convention to wrecks located within its territory, including the territorial sea of the Republic of Albania, subject to Article 4, paragraph 4 of this Convention."

ANTIGUA AND BARBUDA

The instrument of accession of Antigua and Barbuda was accompanied by the following declaration:

"In accordance with paragraph 2 of Article 3 of the Nairobi International Convention on the Removal of Wrecks, 2007, Antigua and Barbuda declares that it will apply this Convention to wrecks located within its territory, including the territorial sea."

BAHAMAS

The instrument of accession of the Bahamas contained the following declaration:

"The Government of the Commonwealth of the Bahamas do hereby give notification to the Secretary-General of the IMO in accordance with article 3, paragraph 2, of the Convention, at the time of the presentation of the instrument of ratification of the said Convention. Under Act (No. 37 of 1993), respecting the territorial sea, archipelagic waters, internal waters and the exclusive economic zone (1) cited as *The Archipelagic Waters and Maritime Jurisdiction Act, 1993*. The territorial sea of the Commonwealth of the Bahamas comprises those areas defined in article 4, paragraphs 1 and 2 of the Act and Archipelagic waters are defined by Article 3."

BANGLADESH

The instrument of accession by Bangladesh was accompanied by the following declaration:

"Pursuant to Article 3, paragraph 2 of the International Convention on the Removal of Wrecks, Bangladesh declares that it extends the application of this Convention to wrecks located within its territory, including the territorial sea."

BARBADOS

The instrument of accession of Barbados was accompanied by the following declaration:

"Barbados notifies that the scope of application of the Nairobi International Convention on the Removal of Wrecks extends to Barbados territory, including its territorial sea, in accordance with article 3(2) of the Wreck Removal Convention."

BELIZE

The instrument of accession by Belize was accompanied by the following declaration, in accordance with article 3 of the Convention:

"The Government of Belize, having considered the Convention, hereby notifies the Secretary-General of its intention to extend the application of the Convention to wrecks located within its territory, including the territorial sea."

BULGARIA

The instrument of accession of Bulgaria contained the following declaration:

"The Republic of Bulgaria declares that it extends the application of the Nairobi International Convention on the Removal of Wrecks, 2007, to wrecks located within its territory, including the territorial sea, subject to article 4, paragraph 4, of the Convention."

CANADA

The instrument of accession was accompanied by the following declaration:

"Canada declares that the Convention shall also extend to wrecks within Canada's territory, including its territorial sea, subject to paragraph 4 of Article 4 of the Convention.".

CHINA

The instrument of accession of the People's Republic of China (the PRC) was accompanied by the following declaration:

1. The PRC is not bound by Paragraphs 2 and 3 of Article 15 of the Convention.
2. The Convention is without prejudice to the maritime rights and interests the PRC lawfully enjoys. The PRC excludes any third-party settlement of disputes, including arbitration, judicial settlement, resort to regional agencies or arrangement, on issues concerning "Convention area" and any other issues concerning territorial sovereignty and maritime rights and interests, and will resolve through friendly negotiation and consultation with countries directly concerned.
3. The Convention shall not apply to the Hong Kong Special Administrative Region and the Macao Special Administrative Region of the PRC until otherwise notified by the Government of the PRC.

CROATIA

The instrument of accession by Croatia was accompanied by the following declaration:

"Pursuant to article 3, paragraph 2 of the Convention, the Republic of Croatia declares that it will apply the Convention in relation to wrecks located within the territory of the Republic of Croatia, including the territorial sea."

CYPRUS

The instrument of accession of Cyprus contained the following declaration:

"The Republic of Cyprus declares that it extends the application of the Nairobi International Convention on the Removal of Wrecks, 2007, to wrecks located within its territory, including the territorial sea."

DENMARK

The instrument of ratification of Denmark was accompanied by the following declaration and reservation:

"In accordance with paragraph 2 of Article 3 of the Nairobi International Convention on the Removal of Wrecks, 2007, the Kingdom of Denmark declares that it will apply this Convention to wrecks located within its territory, including the territorial sea."

"The Convention shall not apply to the Faroes and Greenland until further notice." The Depositary subsequently received another notification, see footnote above.

EQUATORIAL GUINEA

The instrument of accession of Equatorial Guinea included the following declaration:

"Pursuant to article 3, paragraph 2, of the Convention, the Republic of Equatorial Guinea hereby declares that it extends the application of this Convention to wrecks located within its territory, including the territorial sea."

FINLAND

The instrument of accession by Finland was accompanied by the following declaration:

"In accordance with paragraph 2 of Article 3 of the Nairobi International Convention on the Removal of Wrecks, 2007, the Republic of Finland declares that it will apply this Convention to wrecks located within its territory, including the territorial sea."

FRANCE

The instrument of ratification of France was accompanied by the following declarations:

In accordance with Article 3(2) of the Nairobi International Convention on the Removal of Wrecks, 2007, "France declares that the Convention will apply to wrecks located within the territory, including its territorial sea."

In accordance with article 10(2) of the Nairobi International Convention on the Removal of Wrecks, 2007, France

reiterates its declaration made at the time of its ratification of the Protocol of 1996 to Amend the Convention on Limitation of Liability for Maritime Claims, 1976, as follows: "Pursuant to the provisions of article 7 of this Protocol amending paragraph 1(a), article 18 of the Convention on Limitation of Liability for Maritime Claims, 1976, the Government of the Republic of France reiterates its decision, declared on depositing its instrument of approval of the above-mentioned Convention, to exclude all entitlement to limitation of liability for claims relating to paragraphs 1(d) and 1(e), article 2 of the Convention."

KAZAKHSTAN

The instrument of accession included a declaration that "In accordance with paragraph 2 of Article 3 of the Nairobi International Convention on the Removal of Wrecks, 2007, the Republic of Kazakhstan hereby, notifies the Secretary-General of its intention to extend the application of the Convention to wrecks located within its territory, including the territorial waters."

KENYA

The instrument of accession of Kenya included a declaration that, in accordance with paragraph 2 of Article 3 of the Convention, the Government of the Republic of Kenya declares that it will apply this Convention to wrecks located within its territory, including the territorial sea.

LIBERIA

The instrument of accession of Liberia contained the declaration that, "in accordance with paragraph 2 of Article 3 of the Convention, the Government of the Republic of Liberia declares that it will apply this Convention to wrecks located within its territory, including the territorial sea."

LITHUANIA

The instrument of accession included the following declaration that "…. in accordance with paragraph 2 of article 3 of the above-mentioned Convention, the Seimas of the Republic of Lithuania declarers that the Republic of Lithuania will extend the application of this Convention to Wrecks located within its territory, including the territorial sea."

MALTA

The instrument of accession of Malta was accompanied by the following declaration:

"In accordance with paragraph 2 of article 3 of the Nairobi International Convention on the Removal of Wrecks, 2007, the Government of the Republic of Malta declares that it will apply this Convention to wrecks located within its territory, including the territorial sea."

MARSHALL ISLANDS

The instrument of accession of Marshall Islands was accompanied by the following declaration:

"The Republic of Marshall Islands desires, in accordance with Article 3(2), to extend the application of the Nairobi Convention to wrecks located within the territory of the Republic of the Marshall Islands, including its territorial sea."

MONTENEGRO

The instrument of accession of Montenegro contained the following declaration:

"Montenegro declares, in accordance with Article 3, paragraph 2, of the Convention, that it will apply this Convention to wrecks located within its territory, including the territorial sea."

NETHERLANDS

The Secretary-General received, on 24 March 2016, a declaration by the Kingdom of the Netherlands, as follows:

"In accordance with paragraph 2 of article 3 of the Nairobi International Convention on the Removal of Wrecks, 2007, the Kingdom of the Netherlands declares, for the European part of the Netherlands, that it will apply this Convention to wrecks located within its territory, including the territorial sea."

NIUE

The instrument of accession of Niue contained the following declaration:

"Pursuant to Article 3(2), the application of this Convention shall extend to wrecks located within Niue territory, including the territorial sea."

NORWAY

The instrument of accession of Niue included the following reservation and declaration:

> "Norway reserves the right not to apply the Convention to fisheries protection zone of Svalbard and the fisheries zone of Jan Mayen.
>
> According to article 3, paragraph 2 of the Convention, Norway declares to extend the application of the Convention to the territory of Mainland-Norway and the adjacent territorial sea."

PANAMA

The instrument of accession of Panama was accompanied by the following declaration:

"Pursuant to Article 3, paragraph 2 of the Nairobi International Convention on the Removal of Wrecks, 2007, the Government of the Republic of Panama declares to extend the application of this Convention to wrecks located within its territory, including the territorial sea."

SOMALIA

The instrument of accession of Somalia was accompanied by the following declaration:

"Pursuant to Article 3, paragraph 2 of the Nairobi International Convention on the Removal of Wrecks, 2007, [the] Federal Republic of Somalia declares to extend the application of this Convention to wrecks located within its territory, including the territorial sea."

SWEDEN

The instrument of accession of Sweden was accompanied by the following declaration:

"In accordance with paragraph 2 of article 3 of the Nairobi International Convention on the Removal of Wrecks, 2007, the Kingdom of Sweden declares that it will apply this Convention to wrecks located within its territory, including the territorial sea."

UNITED ARAB EMIRATES

The instrument of accession of the United Arab Emirates contained the following declaration and reservation:

> "NOW THEREFORE the Government of the United Arab Emirates, having considered and approved the said Convention, hereby formally declares its accession to the Nairobi International Convention on the Removal of Wrecks, and hereby notifies that the application of this Convention shall extend to wrecks located within the territory of the United Arab Emirates, including its territorial sea, in accordance with Article 3(2) of this Convention, subject to the following reservation:
>
> The United Arab Emirates is not a party to the United Nations Convention on the Law of the Sea, 1982 (UNCLOS), and the Government of the United Arab Emirates hereby makes a reservation with respect to Article 15 of this Convention concerning the settlement of disputes arising between the States Parties in accordance with the provisions of Part XV of UNCLOS."

UNITED KINGDOM

The instrument of accession of the United Kingdom contained the following declaration:

“In accordance with paragraph 2 of Article 3 of the Nairobi International Convention on the Removal of Wrecks, 2007, the United Kingdom of Great Britain and Northern Ireland declares that it will apply this Convention to wrecks located within its territory, including the territorial sea.”

VANUATU

The instrument of accession of Vanuatu contained the following declaration:

"Pursuant to article 3, paragraph 2, of the Convention, Vanuatu hereby declares that it extends the application of this Convention to wrecks located within its territory, including the territorial sea."

HONG KONG INTERNATIONAL CONVENTION FOR THE SAFE AND ENVIRONMENTALLY SOUND RECYCLING OF SHIPS, 2009 (HONG KONG CONVENTION)

Done in Hong Kong, 15 May 2009

Entry into force: 26 June 2025

Signature, ratification, acceptance, approval and accession

Article 16

1 This Convention shall be open for signature at the Headquarters of the Organization from 1 September 2009 until 31 August 2010 and shall thereafter remain open for accession.

(a) States may become Parties to this Convention by:

.1 signature not subject to ratification, acceptance, or approval; or

.2 signature subject to ratification, acceptance, or approval, followed by ratification, acceptance or approval; or

.3 accession.

(b) Ratification, acceptance, approval or accession shall be effected by the deposit of an instrument to that effect with the Secretary-General.

Entry into force

Article 17

1 This Convention shall enter into force 24 months after the date on which the following conditions are met:

.1 not less than 15 States have either signed it without reservation as to ratification, acceptance or approval, or have deposited the requisite instrument of ratification, acceptance, approval or accession in accordance with Article 16;

.2 the combined merchant fleets of the States mentioned in paragraph 1.1 constitute not less than 40 per cent of the gross tonnage of the world's merchant shipping; and

.3 the combined maximum annual ship recycling volume of the States mentioned in paragraph 1.1 during the preceding 10 years constitutes not less than 3 per cent of the gross tonnage of the combined merchant shipping of the same States.

2 For States which have deposited an instrument of ratification, acceptance, approval or accession in respect of this Convention after the requirements for entry into force thereof have been met, but prior to the date of entry into force, the ratification, acceptance, approval or accession shall take effect on the date of entry into force of this Convention, or three months after the date of deposit of the instrument, whichever is the later date.

3 Any instrument of ratification, acceptance, approval or accession deposited after the date on which this Convention enters into force shall take effect three months after the date of deposit.

4 After the date on which an amendment to this Convention is deemed to have been accepted under Article 18, any instrument of ratification, acceptance, approval or accession deposited shall apply to the Convention, as amended.

Denunciation

Article 19

1 This Convention may be denounced by any Party at any time after the expiry of two years from the date on which this Convention enters into force for that Party.

2 Denunciation shall be effected by written notification to the Secretary-General, to take effect one year after receipt or such longer period as may be specified in that notification.

Amendment

Article 18

1 This Convention may be amended by either of the procedures specified in the following paragraphs.

2 Amendments after consideration within the Organization:

.1 Any Party may propose an amendment to this Convention. A proposed amendment shall be submitted to the Secretary-General, who shall then circulate it to the Parties and Members of the Organization at least six months prior to its consideration.

.2 An amendment proposed and circulated as above shall be referred to the Committee for consideration. Parties, whether or not Members of the Organization, shall be entitled to participate in the proceedings of the Committee for consideration and adoption of the amendment.

.3 Amendments shall be adopted by a two-thirds majority of the Parties present and voting in the Committee, on condition that at least one-third of the Parties shall be present at the time of voting.

.4 Amendments adopted in accordance with subparagraph 3 shall be communicated by the Secretary-General to the Parties for acceptance.

.5 An amendment shall be deemed to have been accepted in the following circumstances:

.5.1 An amendment to an article of this Convention shall be deemed to have been accepted on the date on which two-thirds of the Parties have notified the Secretary-General of their acceptance of it.

.5.2 An amendment to the Annex shall be deemed to have been accepted at the end of a period to be determined by the Committee at the time of its adoption, which period shall not be less than ten months after the date of adoption. However, if by that date more than one-third of the Parties notify the Secretary-General that they object to the amendment, it shall be deemed not to have been accepted.

.6 An amendment shall enter into force under the following conditions:

.6.1 An amendment to an article of this Convention shall enter into force, for those Parties that have declared that they have accepted it, six months after the date on which it is deemed to have been accepted in accordance with subparagraph .5.1.

.6.2 An amendment to the Annex shall enter into force with respect to all Parties six months after the date on which it is deemed to have been accepted, except for any Party that has:

.6.2.1 notified its objection to the amendment in accordance with subparagraph .5.2 and that has not withdrawn such objection; or

.6.2.2 notified the Secretary-General, prior to the entry into force of such amendment, that the amendment shall enter into force for it only after a subsequent notification of its acceptance.

.6.3 A Party that has notified an objection under subparagraph .6.2.1 may subsequently notify the Secretary-General that it accepts the amendment. Such amendment shall enter into force for such Party six months after the date of its notification of acceptance, or the date on which the amendment enters into force, whichever is the later date.

.6.4 If a Party that has made a notification referred to in subparagraph .6.2.2 notifies the Secretary-General of its acceptance with respect to an amendment, such amendment shall enter into force for such Party six months after the date of its notification of acceptance, or the date on which the amendment enters into force, whichever is the later date.

3 Amendment by a Conference:

.1 Upon the request of a Party concurred in by at least one-third of the Parties, the Organization shall convene a Conference of Parties to consider amendments to this Convention.

.2 An amendment adopted by such a Conference by a two-thirds majority of the Parties present and voting shall be communicated by the Secretary-General to all Parties for acceptance.

.3 Unless the Conference decides otherwise, the amendment shall be deemed to have been accepted and shall enter into force in accordance with the procedures specified in paragraphs 2.5 and 2.6 respectively.

4 Any Party that has declined to accept an amendment to the Annex shall be treated as a non-Party only for the purpose of application of that amendment.

5 Any notification under this Article shall be made in writing to the Secretary-General.

6 The Secretary-General shall inform the Parties and Members of the Organization of:

.1 any amendment that enters into force and the date of its entry into force generally and for each Party; and

.2 any notification made under this Article.

I. Signatories

II. Contracting States

III. Declarations, Reservations and Statements

IV. Amendments

I. Signatories

France	"Sous réserve de ratification"	19 November 2009
Italy	"subject to ratification"	2 August 2010
Netherlands	"subject to acceptance"	21 April 2010
Saint Kitts and Nevis	"subject to ratification"	27 August 2010
Türkiye	"subject to ratification"	26 August 2010

II. Contracting States

	Date of deposit of instrument	Date of entry into force
Albania (accession)	22 April 2026	22 July 2026
Bangladesh[1]	26 June 2023	26 June 2025
Barbados (accession)	29 September 2025	29 December 2025
Belgium (accession)[1]	7 March 2016	26 June 2025
Congo (accession)[1]	19 May 2014	26 June 2025
Croatia (accession)[1]	16 February 2021	26 June 2025
Cyprus (accession)[1]	26 November 2025	26 February 2026
Denmark (accession)[1,2]	14 June 2017	26 June 2025
Estonia (accession) [1]	25 April 2019	26 June 2025
Finland (accession)	31 July 2025	31 October 2025
France (ratification)[1]	2 July 2014	26 June 2025
Germany (accession)[1]	16 July 2019	26 June 2025
Ghana (accession) [1]	18 November 2019	26 June 2025
India (accession) [1]	28 November 2019	26 June 2025
Japan (accession)[1]	27 March 2019	26 June 2025
Latvia (accession)[1]	29 May 2026	29 August 2026

Liberia (accession)[1]	26 June 2023	26 June 2025
Lithuania (accession) [1]	7 May 2026	7 August 2026
Luxembourg (accession)	29 July 2022	26 June 2025
Malta (accession)[1]	14 May 2019	26 June 2025
Marhsall Islands	18 January 2024	26 June 2025
Netherlands (acceptance)[1,3]	20 February 2019	26 June 2025
Norway (accession)[1]	26 June 2013	26 June 2025
Pakistan (accession)[1]	30 November 2023	26 June 2025
Panama (accession)[1]	19 September 2016	26 June 2025
Portugal (accession) [1]	28 March 2023	26 June 2025
Republic of Korea (accession)[1]	23 December 2025	23 March 2026
Republic of Moldova (accession)	13 August 2026	13 November 2026
San Marino (accession)	15 September 2026	15 December 2026
Serbia (accession)[1]	22 March 2019	26 June 2025
Solomon Islands (accession)[1]	27 November 2025	27 February 2026
Spain (accession)[1]	3 June 2021	26 June 2025
Sao Tome and Principe	15 August 2022	26 June 2025
Türkiye (ratification)[1]	31 January 2019	26 June 2025

Number of Contracting States: 34

[1] For the text of a declaration, reservations and statement, see section III.

[2] Denmark declares, in accordance with paragraph 4 of article 16 of the Hong Kong International Convention for the Safe and Environmentally Sound Recycling of Ships, 2009, that its accession does not apply to the Faroe Islands and Greenland until further notice.

3 Acceptance applies to the European and Caribbean parts of the Netherlands.

III. Declarations, Reservations and Statements

BANGLADESH

The instrument of accession of Bangladesh contained the following declaration:

"Pursuant to article 16.6 of the Hong Kong International Convention for the Safe and Environmentally Sound Recycling of Ships, 2009, Bangladesh declares that it requires tacit approval of the Ship Recycling Plan before a ship may be recycled in its authorized Ship Recycling facility(ies).

BELGIUM

The instrument of accession of Belgium was accompanied by the following declarations:

[Translation]
Under article 16.6 of the Convention, “Belgium declares that the Recycling Plan of a ship must be explicitly approved before a ship may be recycled in its authorized Ship Recycling Facilities.”

CONGO

The Secretariat received by the Republic of the Congo, on 24 June 2015, the following declaration:

“In accordance with article 16(6) of the Hong Kong International Convention for the Safe and Environmentally Sound Recycling of Ships, 2009, the Government of the Republic of the Congo requires explicit approval of the Ship Recycling Plan before a ship may be recycled in its authorized Ship Recycling Facility(ies).”

CROATIA

The instrument of accession by Croatia was accompanied by the following declaration:

"In accordance with article 16, paragraph 6 of the Convention, the Republic of Croatia declares that an explicit approval of the Ship Recycling Plan is required before a ship may be recycled in its authorized Ship Recycling Facility(ies)."

CYPRUS

The instrument of accession of Cyprus was accompanied by the following declaration:

"Pursuant to article 16, paragraph 6 of the Convention, the Cyprus Republic declares that it requires explicit approval of the Ship Recycling Plan before a ship may be recycled in its authorized Ship Recycling Facility(ies)."

DENMARK

The instrument of accession was accompanied by the following declaration:

"Denmark declares, in accordance with paragraph 6 of article 16 of the Hong Kong International Convention for the Safe and Environmentally Sound Recycling of Ships, 2009, that it will require a tacit approval of the Ship Recycling Plan before a ship may be recycled in an authorized Danish Ship Recycling Facility.

ESTONIA

Pursuant to paragraph 6 of Article 16 of the Convention, the instrument of accession was accompanied by the following declaration:

"The Estonian Republic will apply the tacit approval of the Ship Recycling Plan".

FRANCE

The instrument of accession of France contained the following declarations:

[Translation]
"Under article 16.6 of the Convention, France requires explicit approval of the Ship Recycling Plan before a ship may be recycled in French recycling facilities.
…
Under article 16.4 of the Convention, France declares that the provisions of this Convention shall apply to the whole territory of the French Republic."

GERMANY

The instrument of accession of Germany was accompanied by the following declaration, pursuant to article 16(6):

"The Federal Republic of Germany declares that Ship Recycling Plans shall be explicitly approved in all of its federal states (Länder) by the Competent Authority of the respective Land."

GHANA

The instrument of accession of Ghana contained the following declaration:

"Pursuant to article 16, paragraph 6 of the Hong Kong International Convention for the Safe and Environmentally Sound Recycling of Ships, 2009, the Republic of Ghana declares that it requires explicit approval of the Ship Recycling Plan before a ship may be recycled in its authorized Ship Recycling Facility (ies)"

INDIA

Pursuant to article 16(6) of the Convention, the instrument of accession by India was accompanied by the following declaration:

"… the Government of India declares that India will require tacit approval of the Ship Recycling Plan before a ship may be recycled in its authorized Ship Recycling Facility(ies)."

JAPAN

The instrument of accession was accompanied by the following declaration:

“Pursuant to paragraph 6 of Article 16 of the Convention, Japan requires explicit approval of the Ship Recycling Plan before a ship may be recycled in its authorized Ship Recycling Facility(ies).”

LATVIA

The instrument of accession by Latvia was accompanied by the following declaration:

“In accordance with Article 16, paragraph 6 of the International Convention for the Safe and Environmentally Sound Recycling of Ships, done in Hong Kong on the 15th day of May in the year 2009, the Republic of Latvia declares that tacit approval is required of the Ship Recycling Plan before a ship may be recycled in its authorized Ship Recycling Facility(ies).”

LIBERIA

The instrument of accession by Liberia was accompanied by the following declaration, in accordance with article 16, paragraph 6 of the Convention:

“The Government of Liberia declares that it requires explicit approval of the Ship Recycling Plan before a ship may be recycled in its authorized Ship Recycling Facility(ies).”

LITHUANIA

The instrument of accession of Lithuania was accompanied by the following declaration: "In accordance with paragraph 6 of article 16, of the above-mentioned Convention, the Seimas of the Republic of Lithuania declares that the Republic of Lithuania requires explicit approval of the Ship Recycling Plan before a ship may be recycled in its authorized Ship Recycling Facility(ies)."

MALTA

"In accordance with article 16, paragraph 6 of the Hong Kong International Convention for the Safe and Environmentally Sound Recycling of Ships, adopted in Hong Kong on the 15 May 2009, the Republic of Malta declares that it requires explicit approval of the Ship Recycling Plan before a ship may be recycled in its authorised Ship Recycling Facilities".

NETHERLANDS

The instrument of acceptance was accompanied by the following declaration:

"The Kingdom of the Netherlands, for the European part of the Netherlands and the Caribbean part of the Netherlands (the islands of Bonaire, Sint Eustatius and Saba), declares in accordance with article 16, paragraph 6, of the Hong Kong International Convention, that it requires explicit approval of the Ship Recycling Plan before a ship may be recycled in its authorized Ship Recycling Facility."

NORWAY

The instrument of accession of Norway contained the following declaration:

“In accordance with article 16(6) of the Hong Kong International Convention for the Safe and Environmentally Sound Recycling of Ships, 2009, the Government of the Kingdom of Norway requires tacit approval of the Ship Recycling Plan before a ship may be recycled in its authorized Ship Recycling Facility(ies).”

PANAMA

The instrument of accession of Panama was accompanied by the following declaration:

"In accordance with article 16, paragraph 6 of the Hong Kong International Convention for the Safe and Environmentally Sound Recycling of Ships, 2009, the Government of the Republic of Panama declares that it will require explicit approval of the Ship Recycling Plan before a ship may be recycled in its authorized Ship Recycling Facility(ies).”

PAKISTAN

The instrument of accession of Pakistan was accompanied by the following declaration:

"In accordance with article 16, paragraph 6 of the Convention, the Islamic Republic of Pakistan declares that an explicit approval of the Ship Recycling Plan is required before a ship may be recycled in its authorized/approved Ship Recycling Facilities."

PORTUGAL

The instrument of accession of Portugal was accompanied by the following declaration:

"In accordance with article 16, paragraph 6 of the Convention, the Portuguese Republic declares that an explicit approval of the Ship Recycling Plan before is required before a ship may be recycled in its authorized Ship Recycling Facility(ies)."

REPUBLIC OF KOREA

The instrument of accession of the Republic of Korea was accompanied by the following declaration:

"Under Article 16.6 of the Convention, the Republic of Korea declares that it requires explicit approval of the Ship Recycling Plan before a ship may be recycled in its authorized Ship Recycling Facility(ies)."

SERBIA

The instrument of accession of Serbia was accompanied by the following declaration:

"Pursuant to article 16(6) of the Hong Kong International Convention for the Safe and Environmentally Sound Recycling of Ships, 2009, the Republic of Serbia declares that it requires tacit approval of the Ship Recycling Plan before a ship may be recycled in its authorized Ship Recycling Facility(ies)."

SOLOMON ISLANDS

The instrument of accession of Solomon Islands was accompanied by the following declaration:

"Pursuant to article 16, paragraph 6 of the Convention, Solomon Islands declares that it requires explicit approval of the Ship Recycling Plan before a ship may be recycled in its authorized Ship Recycling Facilities."

SPAIN

The instrument of accession by Spain was accompanied by two declarations:
[Translation]

> "The Kingdom of Spain shall require the explicit approval of the ship recycling plan before a ship may be recycled in its authorized ship recycling facility or facilities, on the basis of article 16.6 of the Hong Kong International Convention for the Safe and Environmentally Sound Recycling of Ships."
>
> "In the event that this Convention is ratified by the United Kingdom and extended to the territory of Gibraltar, Spain wishes to make the following declaration:
>
> 1. Gibraltar is a Non-Self-Governing Territory for whose external relations the United Kingdom is responsible and which is undergoing a process of decolonization in accordance with the relevant decisions and resolutions of the United Nations General Assembly.
>
> 2. The Gibraltar authorities are local in character and exercise exclusively internal powers that have their origin and basis in the distribution and allocation of powers made by the United Kingdom, in accordance with the provisions of its domestic legislation, as the sovereign State on which the Non-Self-Governing Territory depends.
>
> 3. Accordingly, any participation by the Gibraltar authorities in the implementation of this Convention shall be understood to be solely within the framework of Gibraltar's internal powers and shall not be deemed to produce any change with respect to the provisions of the two preceding paragraphs.
>
> 4. The application to Gibraltar of this Convention shall not be construed as recognizing any rights or situations relating to areas not covered by article 10 of the Treaty of Utrecht of 13 July 1713 between the Crowns of Spain and Great Britain."

TÜRKIYE

The instrument of ratification was accompanied by the following declaration and reservation:

"The Republic of Türkiye declares that pursuant to article 16, paragraph 6 of the Hong Kong International Convention for the Safe and Environmentally Sound Recycling of Ships, 2009, it requires explicit approval of the Ship Recycling Plan before a ship may be recycled in its authorized Ship Recycling Facility(ies)."

"The Republic of Türkiye dissociates itself from the references made in article 15 of the Hong Kong International Convention for the Safe and Environmentally Sound Recycling of Ships, 2009, to the international instruments that it is not party to, including the United Nations Convention of the Law of the Sea, 1982. The signing of Türkiye of the said Convention cannot be construed as a change in the legal position of Türkiye with regard to the said instruments."

CONVENTION ON THE PREVENTION OF MARINE POLLUTION BY DUMPING OF WASTES AND OTHER MATTER, 1972, AS AMENDED (LC 1972)[1]

Done in quadruplicate at London, Mexico City, Moscow and Washington, 29 December 1972

Entry into force: 30 August 1975

Signature

Article XVI

This Convention shall be open for signature by any State at London, Mexico City, Moscow and Washington from 29 December 1972 until 31 December 1973.

Ratification

Article XVII

This Convention shall be subject to ratification. The instruments of ratification shall be deposited with the Governments of Mexico, the Union of Soviet Socialist Republics, the United Kingdom of Great Britain and Northern Ireland, and the United States of America.

Accession

Article XVIII

After 31 December 1973, this Convention shall be open for accession by any State. The instruments of accession shall be deposited with the Governments of Mexico, the Union of Soviet Socialist Republics, the United Kingdom of Great Britain and Northern Ireland, and the United States of America.

Entry into force

Article XIX

1. This Convention shall enter into force on the thirtieth day following the date of deposit of the fifteenth instrument of ratification or accession.

2. For each Contracting Party ratifying or acceding to the Convention after the deposit of the fifteenth instrument of ratification or accession, the Convention shall enter into force on the thirtieth day after deposit by such Party of its instrument of ratification or accession.

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[1] See the Introduction to this document.

Amendment of the Convention and Annexes

Article XV

1. (a) At meetings of the Contracting Parties called in accordance with article XIV amendments to this Convention may be adopted by a two-thirds majority of those present. An amendment shall enter into force for the Parties which have accepted it on the sixtieth day after two-thirds of the Parties shall have deposited an instrument of acceptance of the amendment with the Organization. Thereafter the amendment shall enter into force for any other Party 30 days after that Party deposits its instrument of acceptance of the amendment.

(b) The Organization shall inform all Contracting Parties of any request made for a special meeting under article XIV and of any amendments adopted at meetings of the Parties and of the date on which each such amendment enters into force for each Party.

2. Amendments to the Annexes will be based on scientific or technical considerations. Amendments to the Annexes approved by a two-thirds majority of those present at a meeting called in accordance with article XIV shall enter into force for each Contracting Party immediately on notification of its acceptance to the Organization and 100 days after approval by the meeting for all other Parties except for those which before the end of the 100 days make a declaration that they are not able to accept the amendment at the time. Parties should endeavour to signify their acceptance of an amendment to the Organization as soon as possible after approval at a meeting. A Party may at any time substitute an acceptance for a previous declaration of objection and the amendment previously objected to shall thereupon enter into force for that Party.

3. An acceptance or declaration of objection under this article shall be made by the deposit of an instrument with the Organization. The Organization shall notify all Contracting Parties of the receipt of such instruments.

4. Prior to the designation of the Organization, the secretarial functions herein attributed to it, shall be performed temporarily by the Government of the United Kingdom of Great Britain and Northern Ireland, as one of the depositaries of this Convention.

I. Contracting States

II. Amendments

A To the Convention

B To the Annexes

I. Contracting States

	Date of deposit of instrument	Date of entry into force or succession
Afghanistan	2 April 1975	30 August 1975
Antigua and Barbuda	6 January 1989	5 February 1989
Argentina	11 September 1979	11 October 1979
Australia	21 August 1985	20 September 1985
Azerbaijan	1 July 1997	31 July 1997
Barbados	4 May 1994	3 June 1994
Belarus	29 January 1976	28 February 1976
Belgium	12 June 1985	12 July 1985
Benin	28 April 2011	28 May 2011

Bolivia (Plurinational State of)	10 June 1999	10 July 1999
Brazil	26 July 1982	25 August 1982
Bulgaria	25 January 2006	24 February 2006
Canada	13 November 1975	13 December 1975
Cape Verde	26 May 1977	25 June 1977
Chile	4 August 1977	3 September 1977
China[1]	14 November 1985	14 December 1985
Costa Rica	16 June 1986	16 July 1986
Côte d'Ivoire	9 October 1987	8 November 1987
Croatia (succession)	-	8 October 1991
Cuba	1 December 1975	31 December 1975
Cyprus	7 June 1990	7 July 1990
Democratic Republic of the Congo[2]	16 September 1975	16 October 1975
Denmark[3]	23 October 1974	30 August 1975
Dominican Republic	7 December 1973	30 August 1975
Egypt	30 July 1992	29 August 1992
Equatorial Guinea (accession)	21 January 2004	20 February 2004
Finland	3 May 1979	2 June 1979
France	3 February 1977	5 March 1977
Gabon	5 February 1982	7 March 1982
Germany[4]	8 November 1977	8 December 1977
Greece	10 August 1981	9 September 1981
Guatemala	14 July 1975	30 August 1975
Haiti	28 August 1975	27 September 1975
Honduras	2 May 1980	1 June 1980
Hungary	5 February 1976	6 March 1976
Iceland	24 May 1973	30 August 1975
Iran (Islamic Republic of)	13 January 1997	12 February 1997
Ireland	17 February 1982	19 March 1982
Italy	30 April 1984	30 May 1984
Jamaica	22 March 1991	21 April 1991
Japan	15 October 1980	14 November 1980
Jordan	11 November 1974	30 August 1975
Kenya	7 January 1976	6 February 1976
Kiribati (succession)	-	12 July 1979
Libya	22 November 1976	22 December 1976
Luxembourg	21 February 1991	23 March 1991
Malta	28 December 1989	27 January 1991
Mexico	7 April 1975	30 August 1975
Monaco	16 May 1977	15 June 1977
Montenegro (succession)[8,9]	-	3 June 2006
Morocco	18 February 1977	20 March 1977
Nauru	26 July 1982	25 August 1982
Netherlands[5]	2 December 1977	2 January 1978
New Zealand	30 April 1975	30 August 1975
Nigeria	19 March 1976	18 April 1976
Norway	4 April 1974	30 August 1975
Oman	13 March 1984	12 April 1984
Pakistan	9 March 1995	8 April 1995
Panama	31 July 1975	30 August 1975
Papua New Guinea	10 March 1980	9 April 1980
Peru	7 May 2003	6 June 2003
Philippines	10 August 1973	30 August 1975
Poland	23 January 1979	22 February 1979
Portugal[8]	14 April 1978	14 May 1978
Republic of Korea	21 December 1993	20 January 1994
Russian Federation[6]	30 December 1975	29 January 1976
Saint Lucia	23 August 1985	22 September 1985
Saint Vincent and the Grenadines	24 October 2001	23 November 2001
Serbia [10,11]	-	3 June 2006
Seychelles	29 October 1984	28 November 1984
Sierra Leone (accession)	12 March 2008	11 April 2008
Slovenia (succession)	-	25 June 1991
Solomon Islands (succession)	-	7 July 1978

South Africa	7 August 1978	6 September 1978
Spain	31 July 1974	30 August 1975
Suriname	21 October 1980	20 November 1980
Sweden	21 February 1974	30 August 1975
Switzerland	31 July 1979	30 August 1979
Syrian Arab Republic	6 May 2009	5 June 2009
Tonga	8 November 1995	8 December 1995
Tunisia	13 April 1976	13 May 1976
Ukraine	5 February 1976	6 March 1976
United Arab Emirates	9 August 1974	30 August 1975
United Kingdom[7]	17 November 1975	17 December 1975
United Republic of Tanzania	28 July 2008	27 August 2008
United States	29 April 1974	30 August 1975
Vanuatu	22 September 1992	22 October 1992

Number of Contracting States: 87

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[1] Applies to the Hong Kong Special Administrative Region with effect from 1 July 1997.
Applies to Macau with effect from 12 May 1999.* Ceased to apply to Macau with effect from 20 December 1999.

[2] Formerly Zaire.

[3] Ratification by Denmark was declared to be effective in respect of the Faroes as from 15 November 1976.

[4] On 3 October 1990 the German Democratic Republic acceded to the Federal Republic of Germany. The German Democratic Republic had acceded to the Convention on 20 August 1976.

[5] Ratification by the Netherlands was declared to be effective in respect of the Netherlands Antilles* and, with effect from 1 January 1986, in respect of Aruba.

* The Netherlands Antilles has ceased to exist as an autonomous country within the Kingdom of the Netherlands with effect from 10 October 2010. Since that date, the Kingdom of the Netherlands consists of four autonomous countries: The Netherlands (European part and Caribbean part), Aruba, Curaçao and Sint Maarten. For more details see footnote 4, in section II of SOLAS 1974.. The Convention applies as follows:

		Effective from
The Netherlands (European part)	)	2 January 1978
Caribbean part of the Netherlands	)	10 October 2010
Aruba	)	1 January 1986
Curaçao	)	10 October 2010
Sint Maarten	)	10 October 2010

[6] As from 26 December 1991 the membership of the USSR in the Convention is continued by the Russian Federation.

[Footnotes continued]

[Footnotes continued]

[7] The United Kingdom declared ratification to be effective also in respect of:

		Effective date
Bailiwick of Guernsey	)	
Belize[I]	)	
Bermuda	)	
British Indian Ocean Territory	)	
British Virgin Islands	)	
Cayman Islands	)	
Falkland Islands and Dependencies[II]	)	
Gilbert Islands[III]	)	
Hong Kong[IV]	)	
Isle of Man	)	
Montserrat	)	17 November 1975
Pitcairn	)	
Henderson	)	
Ducie and Oeno Islands	)	
St. Helena, Ascension and Tristan da Cunha[V]	)	
Seychelles[VI]	)	
Solomon Islands[VII]	)	

Turks and Caicos Islands	)
Tuvalu[VIII]	)
United Kingdom Sovereign Base Areas of Akrotiri and Dhekelia in the Island of Cyprus	)
Guerney	30 August 1975
Bailiwick of Jersey	5 March 1976

[I] Has since become the independent State of Belize.

[II] For the text of communications received from the Argentine Government and the United Kingdom Foreign and Commonwealth Office, see footnote *** of section II of COLREG 1972.

[III] Has since become the independent State of Kiribati and a Contracting State to the Convention.

[IV] Ceased to apply to Hong Kong with effect from 1 July 1997.

[V] The depositary received a communication, dated 2 March 2010, from the Foreign and Commonwealth Office in London, informing that the name of the British overseas territory formerly called “St. Helena and Dependencies” has been changed to “St. Helena, Ascension and Tristan da Cunha”. The status of the territory as a British overseas territory remains unchanged.

[VI] Has since become the independent State of Seychelles and a Contracting State to the Convention.

[VII] Has since become the independent State of Solomon Islands and a Contracting State to the Convention.

[VIII] Has since become the independent State of Tuvalu.

[8] As from 4 February 2003, the name of the State of the Federal republic of Yugoslavia was changed to Serbia and Montenegro. The date of succession by Serbia and Montenegro to the Convention is the date on which the Federal Republic of Yugoslavia assumed responsibility for its international relations.

[9] Following the dissolution of the State Union of Serbia and Montenegro on 3 June 2006, all Treaty actions undertaken by Serbia and Montenegro continue to be in force with respect to Republic of Serbia. Montenegro has informed that it wished to succeed to this treaty with effect from the same date, ie. 3 June 2006.

II. Amendments

A. Amendments to the Convention

(1) 1978 (Disputes) Amendments

A. Adoption

The Contracting Parties to the Convention adopted, at their Third Consultative Meeting on 12 October 1978, resolution LDC Res.6(III) concerning procedures for the settlement of disputes. The Secretary-General transmitted the texts of the amendments to the Parties to the Convention for acceptance by Note Verbale T5/5.01 (NV/1) of 27 November 1978 and Note Verbale T5/5.01 (NV.3) of 29 November 1978.

B. Entry into force

The 1978 (Disputes) Amendments are not yet in force

Number of acceptances necessary for entry into force: 52

Number of acceptances deposited: 20

C. Accepting Governments

	Date of acceptance
Belgium	25 November 1988
Canada	27 February 1979
Denmark	12 June 1979
Finland	17 December 1992
France	1 October 1979
Germany[1]	29 May 1987
Iceland	30 October 1996
Italy	30 April 1984
Japan	15 October 1980
Monaco	17 February 1992
Netherlands[2]	20 September 1979
Norway	3 November 1992
Portugal	10 March 1989
South Africa	9 June 1994
Spain	29 November 1990
Sweden	16 May 1980
Switzerland	15 December 1987
United Kingdom[3]	21 March 1980
United States	24 October 1980
Vanuatu	22 September 1992

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[1] The instrument of acceptance was accompanied by the following declaration (in the German language):

[Translation]

"... that the said Amendments shall also apply to Berlin (West) with effect from the date on which they enter into force for the Federal Republic of Germany."

[2] Acceptance by the Netherlands was declared to be effective in respect of the Netherlands Antilles* and, with effect from 1 January 1986, in respect of Aruba.

*The Netherlands Antilles has ceased to exist as an autonomous country within the Kingdom of the Netherlands with effect from 10 October 2010.

[Footnotes continued]

[3] The United Kingdom declared acceptance to be effective in respect of:

Bailiwick of Jersey
Bailiwick of Guernsey
Isle of Man
Belize*
Bermuda
British Indian Ocean Territory
British Virgin Islands
Cayman Islands
Falkland Islands and Dependencies**
Hong Kong***
Montserrat
Pitcairn, Henderson, Ducie and Oeno Islands
St. Helena, Ascension and Tristan da Cunha ****
Turks and Caicos Islands
United Kingdom Sovereign Base Areas of Akrotiri and Dhekelia
in the Island of Cyprus

* Has since become the independent State of Belize.

** A dispute exists between the Governments of Argentina and the United Kingdom of Great Britain and Northern Ireland concerning sovereignty over the Falkland Islands (Malvinas).

*** Ceased to apply to Hong Kong with effect from 1 July 1997.

**** The depositary received a communication, dated 2 March 2010, from the Foreign and Commonwealth Office in London, informing that the name of the British overseas territory formerly called “St. Helena and Dependencies” has been changed to “St. Helena, Ascension and Tristan da Cunha”.
The status of the territory as a British overseas territory remains unchanged.

B. Amendments to the Annexes

(1) 1978 (Incineration) Amendments

A. Adoption

The Contracting Parties to the Convention adopted, at their Third Consultative Meeting on 12 October 1978, resolution LDC Res.5(III) concerning the prevention and control of pollution by incineration of wastes and other matter at sea. The Secretary-General transmitted the texts of the amendments to the Annexes to the Parties to the Convention for acceptance by Notes Verbales T5/5.01 (NV.2) and (NV.4) of 29 December 1978.

B. Entry into force

In accordance with the terms of the resolution and article XV(2) of the Convention the amendments entered into force on 11 March 1979 for all Contracting Parties with the exception of those referred to under (C) below.

C. Contracting Parties which made a declaration of non-acceptance:

Germany, Federal Republic of [1]

New Zealand[2]

---

[1] Acceptance of the amendments by the Federal Republic of Germany was effected by deposit of an instrument on 9 May 1983 and was accompanied by the following declaration:

[Translation]

"that with effect from the day on which these amendments enter into force for the Federal Republic of Germany they shall also apply to Berlin (West)."

[2] By a communication dated 3 March 1983 the depositary was informed by the Government of New Zealand that the declaration of non-acceptance had been withdrawn with effect from 3 March 1983. Accordingly, the amendments entered into force for New Zealand on 3 March 1983.

(2) 1980 (Lists of Substances) Amendments

A. Adoption

The Contracting Parties to the Convention adopted, at their Fifth Consultative Meeting on 24 September 1980 resolution LDC Res.12(V) concerning the amendment of the lists of substances contained in Annexes I and II to the Convention. The Secretary-General transmitted the texts of the amendments to the Annex to the Parties to the Convention for acceptance by Notes Verbales T5/5.0l (NV.5) of 27 January 1981, T5/5.05 (NV.1) of 13 March 1981 and T5/5.05 (NV.2) of 1 April 1981.

B. Entry into force

In accordance with the terms of the resolution and article XV(2) of the Convention the amendments entered into force on 11 March 1981 for all Contracting Parties with the exception of those referred to under (C) below.

C. Contracting Parties which made a declaration of non-acceptance:

Germany, Federal Republic of [1]

Japan

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[1] Acceptance of the amendments by the Federal Republic of Germany was effected by deposit of an instrument on 9 May 1983 and was accompanied by the following declaration:

[Translation]

"that with effect from the day on which these amendments enter into force for the Federal Republic of Germany they shall also apply to Berlin (West)."

(3) 1989 (Annex III) Amendments

A. Adoption

The Contracting Parties to the Convention adopted, at their twelfth Consultative Meeting on 3 November 1989 resolution LDC.37(12) concerning an amendment to Annex III to the Convention. The Secretary-General transmitted the text of the amendment to the Annex to the Parties to the Convention for acceptance by Note Verbale T5/5.09 (NV.1) of 8 February 1990.

B. Entry into force

In accordance with the terms of the resolution and article XV(2) of the Convention the amendments entered into force on 19 May 1990 for all Contracting Parties.

(4) 1993 (Industrial Waste) Amendments

A. Adoption

The Contracting Parties to the Convention adopted, at their sixteenth Consultative Meeting on 12 November 1993 resolution LDC.49(16) concerning phasing out sea disposal of industrial waste. The Secretary-General transmitted the texts of the amendments to the Annexes to the Parties to the Convention for acceptance by Note Verbale T5/5.10 (NV.1) of 22 December 1993.

B. Entry into force

In accordance with the terms of the resolution and article XV(2) of the Convention the amendments entered into force on 20 February 1994 for all Contracting Parties with the exception of those referred to under (C) below.

C. Contracting Parties which made a declaration of non-acceptance:

Argentina[1]

Australia[2]

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[1] By a communication received on 28 April 1994 the depositary was informed that the Government of Argentina declares its acceptance of resolution LC.49(16). Accordingly, the amendments entered into force for Argentina on 28 April 1994.

[2] On 15 February 1994 the depositary received the following declaration:

"Australia accepts the prohibition on the dumping of industrial wastes at sea as from 1 January 1996 as envisaged in resolution LC.49(16) for all types of industrial wastes as defined by the resolution with the exception of jarosite waste for which it is necessary, for technical reasons which will be elaborated at future meetings of the London Convention, to retain the option of dumping at sea for a short period after the expiration of the deadline set down in resolution LC.49(16). Under no circumstances will the dumping at sea of jarosite be permitted by the Australian Government beyond 31 December 1997."

Acceptance of the amendments by Australia was effected by deposit of an instrument on 24 August 1998.

(5) 1993 (Incineration) Amendments

A. Adoption

The Contracting Parties to the Convention adopted, at their sixteenth Consultative Meeting on 12 November 1993 resolution LDC.50(16) concerning incineration at sea. The Secretary-General transmitted the text of the amendment to Annex I to the Parties to the Convention for acceptance by Note Verbale T5/5.10 (NV.1) of 22 December 1993.

B. Entry into force

In accordance with the terms of the resolution and article XV(2) of the Convention the amendments entered into force on 20 February 1994 for all Contracting Parties.

(6) 1993 (Radioactive Wastes) Amendments

A. Adoption

The Contracting Parties to the Convention adopted, at their sixteenth Consultative Meeting on 12 November 1993 resolution LDC.51(16) concerning disposal at sea of radioactive wastes and other radioactive matter. The Secretary-General transmitted the texts of the amendments to the Annexes to the Parties to the Convention for acceptance by Note Verbale T5/5.10 (NV.1) of 22 December 1993.

B. Entry into force

In accordance with the terms of the resolution and article XV(2) of the Convention the amendments entered into force on 20 February 1994 for all Contracting Parties with the exception of those referred to under (C) below.

C. Contracting Parties which made a declaration of non-acceptance:

Russian Federation[1, 2]

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[1] On 18 February 1994 the depositary received a declaration from the Russian Federation as follows:

[Translation]

> "... the Russian Federation does not accept the amendment to Annexes I and II to the Convention on the Prevention of Marine Pollution by Dumping of Wastes and Other Matter of 29 December 1972, as contained in resolution LC.51(16), adopted on 12 November 1993 at the Sixteenth Consultative Meeting of the States Parties to the Convention. Russia will, however, continue its endeavours to ensure that the sea is not polluted by the dumping of wastes and other matter, the prevention of which is the object of the provisions contained in the above-mentioned amendment."

[2] On 17 May 2005 the depositary received information from the Russian Federation informing that the Russian Federation had accepted the amendments adopted on 12 November 1993 to the Annexes to the Convention as contained in resolution LC.51(16).

1996 PROTOCOL TO THE CONVENTION ON THE PREVENTION OF MARINE POLLUTION BY DUMPING OF WASTES AND OTHER MATTER, 1972 (LC PROT 1996)

Done at London, 7 November 1996

Entry into force: 24 March 2006

Relationship between the Protocol and the Convention

Article 23

This Protocol will supersede the Convention[1] as between Contracting Parties to this Protocol which are also Parties to the Convention[1].

Signature, ratification, acceptance, approval and accession

Article 24

1. This Protocol shall be open for signature by any State at the Headquarters of the Organization from 1 April 1997 to 31 March 1998 and shall thereafter remain open for accession by any State.

2. States may become Contracting Parties to this Protocol by:

.1 signature not subject to ratification, acceptance or approval; or

.2 signature subject to ratification, acceptance or approval, followed by ratification, acceptance or approval; or

.3 accession.

3. Ratification, acceptance, approval or accession shall be effected by the deposit of an instrument to that effect with the Secretary-General.

Entry into force

Article 25

1. This Protocol shall enter into force on the thirtieth day following the date on which:

.1 at least 26 States have expressed their consent to be bound by this Protocol in accordance with article 24; and

.2 at least 15 Contracting Parties to the Convention[1] are included in the number of States referred to in paragraph 1.1.

2. For each State that has expressed its consent to be bound by this Protocol in accordance with article 24 following the date referred to in paragraph 1, this Protocol shall enter into force on the thirtieth day after the date on which such State expressed its consent.

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[1] Convention on the Prevention of Marine Pollution by Dumping of Wastes and Other Matter, 1972.

I. Signatories

II. Contracting States

III. Declarations, Reservations and Statements

IV. Amendments

I. Signatories

Argentina	Subject to ratification
Australia	Subject to ratification
Belgium	Subject to ratification
Brazil	Subject to ratification
China	*[Translation]* Subject to ratification
Denmark	With the qualification that the Protocol will not apply to the Faroes or to Greenland pending a further decision
Finland	Subject to acceptance
Germany, Federal Republic of	Subject to ratification
Iceland	Subject to ratification
Morocco	Subject to ratification
Netherlands	Subject to acceptance
New Zealand	Subject to ratification
Norway	Subject to ratification
Spain	Ad referendum
Sweden	Subject to ratification
Switzerland	Sous réserve de ratification
United Kingdom	Subject to ratification
United States	Subject to ratification

II. Contracting States

	Date of deposit of instrument	Date of entry into force
Angola (accession)	4 October 2001	24 March 2006
Antigua and Barbuda (accession)	24 November 2015	24 December 2015
Australia (ratification)	4 December 2000	24 March 2006
Barbados (accession)	25 July 2006	24 August 2006
Belgium (ratification)	13 February 2006	24 March 2006
Bulgaria (accession)	25 January 2006	24 March 2006
Canada (accession)	15 May 2000	24 March 2006
Chile (accession)	26 September 2011	26 October 2011
China (ratification)[2,4]	29 September 2006	29 October 2006
Congo (accession)	19 May 2014	18 June 2014
Croatia (accession)	13 May 2025	12 June 2025
Denmark (signature)[1]	17 April 1997	24 March 2006
Egypt (accession)	20 May 2004	24 March 2006
Estonia (accession)	10 July 2013	9 August 2013
Finland (acceptance)	9 October 2017	8 November 2017
France (accession)	7 January 2004	24 March 2006
Guatemala (accession)	25 February 2019	27 March 2019
Georgia (accession)	18 April 2000	24 March 2006
Germany (ratification)	16 October 1998	24 March 2006
Ghana (accession)	2 June 2010	2 July 2010
Guyana (accession)	20 February 2019	22 March 2019
Iceland (ratification)	21 May 2003	24 March 2006

Iraq (accession)[2]	11 September 2023	11 October 2023
Ireland (accession)	26 April 2001	24 March 2006
Islamic Republic of Iran (accession)	23 November 2016	23 December 2016
Italy (accession)	13 October 2006	12 November 2006
Japan (accession)	2 October 2007	1 November 2007
Kenya (accession)	14 January 2008	13 February 2008
Luxembourg (accession)	21 November 2005	24 March 2006
Madagascar (accession)	27 July 2017	26 August 2017
Marshall Islands (accession)	9 May 2008	8 June 2008
Mexico (accession)	22 February 2006	24 March 2006
Morocco (ratification)	25 February 2016	26 March 2016
New Zealand (ratification)[1]	30 July 2001	24 March 2006
Netherlands (acceptance)[5]	24 September 2008	24 October 2008
Nigeria (accession)	1 October 2010	31 October 2010
Norway (ratification)[2]	16 December 1999	24 March 2006
Peru (accession)[2]	31 October 2018	30 November 2018
Philippines (accession)	9 May 2012	8 June 2012
Republic of Korea (accession)[2]	22 January 2009	21 February 2009
Saint Kitts and Nevis (accession)	7 October 2004	24 March 2006
Saudi Arabia (accession)	2 February 2006	24 March 2006
Sierra Leone (accession)	10 March 2008	9 April 2008
Slovenia (accession)	3 March 2006	2 April 2006
Solomon Islands (accession)	30 September 2024	30 October 2024
South Africa (accession)	23 December 1998	24 March 2006
Spain (ratification)	24 March 1999	24 March 2006
Suriname (accession)	11 February 2007	13 March 2007
Sweden (ratification)[2]	16 October 2000	24 March 2006
Switzerland (ratification)	8 September 2000	24 March 2006
Tonga (accession)	18 September 2003	24 March 2006
Trinidad and Tobago (accession)	6 March 2000	24 March 2006
United Kingdom (ratification)[3]	15 December 1998	24 March 2006
Uruguay (accession)	17 December 2013	16 January 2014
Vanuatu (accession)	18 February 1999	24 March 2006
Yemen (accession)	24 January 2011	23 February 2011

Number of Contracting States: 56

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[1] The Protocol was "signed with the qualification that the Protocol will not apply to the Faroes or to Greenland pending a further decision".

By communication dated 29 October 1997, the depositary was notified "that the Kingdom of Denmark wished to withdraw the reservation made for application to Greenland. The reservation for application to the Faroes remains unaffected until further notice".

[2] For the text of a reservation, declaration or statement, see section III.

[3] The United Kingdom declared ratification to be effective in respect of:

Bailiwick of Jersey
Bermuda
British Virgin Islands
Cayman Islands
Falkland Islands*
Isle of Man
Montserrat
St. Helena, Ascension and Tristan da Cunha**
South Georgia and South Sandwich Islands

and the Bailiwick of Guernsey with effect from 22 October 2001

* A dispute exists between the Governments of Argentina and the United Kingdom of Great Britain and Northern Ireland concerning sovereignty over the Falkland Islands (Malvinas).

** The depositary received a communication, dated 2 March 2010, from the Foreign and Commonwealth Office in London, informing that the name of the British overseas territory formerly called “St. Helena and Dependencies” has been changed to “St. Helena, Ascension and Tristan da Cunha”. The status of the territory as a British overseas territory remains unchanged.

[4]Applies to the Hong Kong Special Administrative Region and does not apply to the Macao Special Administrative Region.

[5] Extended to Bonaire, Sint Eustatius and Saba (the Caribbean part of the Netherlands) with effect from 10 October 2010. For more detail on the restructuring of the Netherlands, see footnote 4, in section II of SOLAS 1974.

III. Declarations, Reservations and Statements

CHINA

The instrument of ratification of the People's Republic of China was accompanied by the following declarations:

"1. With regard to Article 16.2 and 16.5 of the *Protocol*, if the People's Republic of China becomes a party to a dispute concerning the interpretation and application of the *Protocol*, including the interpretation and application of Article 3.1 and 3.2, the Arbitral Procedure set forth in Annex 3 of the *Protocol* shall only be applied with written consent of the Government of the People's Republic of China.

2. Unless otherwise notified by the Government of the People's Republic of China, the Protocol shall not apply to the Macau Special Administrative Region of the People's Republic of China."

ESTONIA

The instrument of accession of Estonia contained the following declaration, in accordance with article 16(5) of the Protocol:

> "For the settlement of a dispute regarding the interpretation or application of article 3.1 or 3.2, the consent of the Republic of Estonia shall be required before the dispute may be settled by means of the Arbitral Procedure set forth in Annex 3."

FINLAND

The instrument of acceptance by Finland was accompanied by the following declaration:

> "Pursuant to Article 4(2) of the Protocol, the Republic of Finland notifies the International Maritime Organization of measures by which it has prohibited the dumping of wastes and other matters mentioned in Annex I of the Protocol apart from disposal of dredged material."

Furthermore, pursuant to article 9(1), the Embassy of the Republic of Finland notifies that the competent authorities in Finland are the Regional State Administrative Agencies and the Finnish Environment Institute.

IRAQ

The instrument of accession of Iraq was accompanied by the following declaration:

"The Republic of Iraq asserts that acceding to the convention does not, under any circumstances, imply recognition of Israel or entering into any relations with it."

ISLAMIC REPUBLIF OF IRAN

The instrument of accession by China was accompanied by the following declarations:

1.China is not bound by Paragraphs 2 and 3 of Article 15 of the Convention.

2. The Convention is without prejudice to the maritime rights and interests China lawfully enjoys. China excludes any third-party settlement of disputes, including arbitration, judicial settlement, resort to regional agencies or arrangement, on issues concerning "Convention area" and any other issues concerning territorial sovereignty and maritime rights and interests, and will resolve through friendly negotiation and consultation with countries directly concerned.

3. The Convention shall not apply to the Hong Kong Special Administrative Region and the Macao Special Administrative Region of the PRC until otherwise notified by the Government of the PRC."

NEW ZEALAND

The instrument of ratification of New Zealand contained the following declaration:

"That, consistent with the constitutional status of Tokelau and taking into account the commitment of the Government of New Zealand to the development of self-government for Tokelau through an act of self-determination under the Charter of the United Nations, this ratification shall not extend to Tokelau unless and until a Declaration to this effect is lodged by the Government of New Zealand with the Depositary on the basis of appropriate consultation with that territory."

NORWAY

The instrument of ratification of the Kingdom of Norway contained the following declarations:

"1. In accordance with Article 10, paragraph 5 of the Protocol, the Kingdom of Norway hereby declares that it will apply the provisions of this Protocol to such Norwegian vessels and aircraft as are referred to in paragraph 4.

2. In accordance with Article 16, paragraph 5 of the Protocol, the Kingdom of Norway hereby notifies the Secretary-General that, when the Kingdom of Norway is a party to a dispute about the interpretation or application of Article 3.1 or 3.2, its consent will be required before the dispute may be settled by means of the Arbitral Procedure set forth in Annex 3."

PERU

The instrument of accession by Peru contained the following reservation:

"Peru makes use of what is established under article 8.3 of the Protocol and, in this regard, renounces the right established under article 8.2 with respect to issuing permits as an exception to articles 4.1 and 5.
Furthermore, with regard to the substances that may be considered for dumping, as listed in Annex 1 to the Protocol, Peru does not authorize the dumping of the following wastes or other matter:

- sewage sludge (item 1.2 of Annex 1);
- fish waste, or material resulting from industrial fish processing operations (item 1.3 of Annex 1); and
- carbon dioxide streams from carbon dioxide capture processes for sequestration (item 1.8 of Annex 1)."

REPUBLIC OF KOREA

The instrument of accession by the Republic of Korea contained the following declaration:

“The Republic of Korea accepts the prohibition of the dumping of any wastes or other matter as set out in Article 4.1.1 of the 1996 London Protocol to the 1972 London Convention and the exceptions thereto as listed in Annex 1 to the Protocol, with the exception of bauxite residues for which it will be necessary to retain the option of dumping at sea until 31 December 2015, as set out in the Marine Environment Management Act of the Republic of Korea.

Under no circumstances will the Government of the Republic of Korea permit the dumping at sea of bauxite residues beyond 31 December 2015.

The Government of the Republic of Korea will make every effort to phase out the dumping at sea of bauxite residues before 31 December 2015, as and when alternatives to dumping of these wastes become available.

The Government of the Republic of Korea will monitor the impact of dumping bauxite residues at sea to ensure that this practice is environmentally acceptable and report the outcome of these monitoring activities to future meetings of the 1996 London Protocol.”

SWEDEN

The instrument of ratification of the Kingdom of Sweden contained the following declaration:

"Referring to paragraphs 10.4 and 5 of the Protocol, Sweden shall apply the provisions of this Protocol to its vessels and aircraft referred to in paragraph 10.4, recognizing that only Sweden may enforce those provisions

against such vessels."

IV. Amendments

(1) 2006 (Annex I) amendments (LP.1(1))

A. Adoption

The 1st Meeting of the Contracting Parties to the Protocol adopted, by resolution LP.1(1), in accordance with article 22 of the Protocol, amendments to Annex I.

B. Entry into force

In accordance with Article 22.4 of the Protocol, the amendments concerned: 1) will enter into force for each Contracting Party to the Protocol immediately on notification of its acceptance to the Organization; or 2) will enter into force 100 days after the date of their adoption, i.e. on 10 February 2007, for each Contracting Party to the Protocol, except for those Contracting Parties which before the end of the 100 days make a declaration that they are not able to accept the amendment at that time.

IMO received from the Government of Canada an instrument of acceptance on 29 January 2007, but no objections to the amendments from Contracting Parties to the London Protocol 1996, within the 100 days-period mentioned in Article 22.4 after resolution LP.1(1) was adopted. Consequently, the amendments entered into force for Canada on 29 January 2007 and for all other Contracting Parties to the Protocol on 10 February 2007.

(2) 2009 (Article 6) amendment (LP.3(4))

A. Adoption

The 4th Meeting of the Contracting Parties to the Protocol adopted on 30 October 2009, by resolution LP.3(4), in accordance with article 21 of the Protocol, an amendment to article 6.

B. Entry into force

In accordance with Article 21.3 of the Protocol, the amendment concerned will enter into force for the Contracting Parties which have accepted it on the sixtieth day after two-thirds of the Contracting Parties shall have deposited an instrument of its acceptance with the Organization. Thereafter the amendment will enter into force for any other Contracting Party on the sixtieth day after the date on which that Contracting Party has deposited its instrument of acceptance of the amendment.

There are currently **17** acceptances of the amendment (see below)

C.

Accepting Governments	**Date of deposit of acceptance**
Australia	28 October 2024
Belgium	13 September 2022
Croatia	13 May 2025
Denmark*	27 January 2022
Estonia	7 February 2019
Finland	9 October 2017
France	27 October 2025
Germany	9 June 2026
Islamic Republic of Iran	23 November 2016
Japan	16 December 2025
Netherlands **	13 November 2014
Norway	29 July 2011
Republic of Korea	12 April 2022
Spain	25 June 2025
Sweden	23 November 2020
Switzerland	3 January 2024
United Kingdom ***	29 November 2011

* Until further notice by the Government of the Kingdom of Denmark, the acceptance of the amendment to article 6 of the 1996 Protocol and its provisional application (see **Note** below) shall not apply to Greenland and the Faroe

Islands.
** European and Caribbean parts of the Netherlands.
*** The acceptance is extended to the Bailiwick of Guernsey, the Bailiwick of Jersey, Bermuda, British Virgin Islands, Cayman Islands, Falkland Islands†, Isle of Man, Montserrat, South Georgia and South Sandwich Islands, St. Helena, Ascension and Tristan da Cunha.

†A dispute exists between the Governments of Argentina and the United Kingdom of Great Britain and Northern Ireland concerning sovereignty over the Falkland Islands (Malvinas).

Note: Provisional application of the 2009 amendment to article 6 of the London Protocol (resolution LP.5(14))

The fourteenth Meeting of the Contracting Parties to the Protocol, decide on 11 October 2019, to allow for the provisional application of the 2009 amendment pending its entry into force by those Contracting Parties which have deposited a declaration to this effect.

1. The Secretary-General received, on 16 June 2020, a declaration by **Norway** on its Government's provisional application of the 2009 amendment, pending entry into force.
2. The Secretary-General received 4 November 2020, a declaration by the **Kingdom of the Netherlands** on its provisional application of the 2009 amendment, pending entry into force. The provisional application concerns both the European part of the Netherlands and the Caribbean part of the Netherlands (the islands of Bonaire, Sint Eustatius and Saba).
3. The Secretary-General received, on 27 January 2022, a declaration by the **Kingdom of Denmark** on its Government's provisional application of the 2009 amendment, from 1 January 2022, pending entry into force.
4. The Secretary-General received, on 12 April 2022, a declaration by the Government of the **Republic of Korea** on its provisional application of the 2009 amendment, pending entry into force.
5. The Secretary-General received, on 1 September 2022, a declaration by the Government of the **United Kingdom** on its provisional application of the 2009 amendment, pending entry into force.
6. The Secretary-General received, on 13 September 2022, a declaration by the Government of the **Kingdom of Belgium** on its provisional application of the 2009 amendment, pending entry into force.
7. The Secretary-General received, on 29 September 2022, a declaration by the Government of the **Kingdom of Sweden** on its provisional application of the 2009 amendment, pending entry into force.
8. The Secretary-General received, on 3 January 2024, a declaration by **Swiss Confederation** on its provisional application of the 2009 amendment, pending entry into force.
9. The Secretary-General received, on 28 October 2024, a declaration by **Australia** on its provisional application of the 2009 amendment, pending entry into force, with effect from 7 November 2024.
10. The Secretary-General received, on 3 June 2025, a declaration by **Finland** on its provisional application of the 2009 amendment, pending entry into force, with effect from 10 June 2025.
11. The Secretary-General received, on 25 June 2025, a declaration by **Spain** on its provisional application of the 2009 amendment, pending entry into force.
12. The Secretary-General received, on 27 October 2025, a declaration by **France** on its provisional application of the 2009 amendment, pending entry into force.
13. The Secretary-General received, on 16 October 2025, a declaration by **Japan** on its provisional application of the 2009 amendment, pending entry into force.
14. The Secretary-General received, on 9 June 2026, a declaration by **the Federal Republic of Germany** on its provisional application of the 2009 amendment, pending entry into force.

(3) 2013 amendment (LP.4(8))

A. Adoption

The Eighth Meeting of the Contracting Parties to the Protocol adopted on 18 October 2013, by resolution LP.4(8), in accordance with article 21 of the Protocol, an amendment to the Protocol to regulate the placement of matter for ocean fertilization and other marine geoengineering activities.

B. Entry into force

In accordance with Article 21.3 of the Protocol, the amendment concerned will enter into force for the Contracting Parties which have accepted it on the sixtieth day after two-thirds of the Contracting Parties shall have deposited an instrument of its acceptance with the Organization. Thereafter the amendment will enter into force for any other Contracting Party on the sixtieth day after the date on which that Contracting Party has deposited its instrument of acceptance of the amendment.

There are currently 9 acceptances of the amendments (see below).

C. Accepting Governments

	Date of deposit of acceptance
Australia	28 October 2024
Croatia	13 May 2025
Estonia	7 February 2019
Denmark **	7 May 2025
Finland	9 October 2017
Germany	5 March 2020
Netherlands *	3 September 2018
Norway	12 November 2018
United Kingdom	24 June 2016

* European and Caribbean parts of the Netherlands.
** Until further notice by the Government of the Kingdom of Denmark the Protocol shall not apply to Greenland and the Faroe Islands.

(3) 2022 amendments (LP.6(17))

A. Adoption

The Seventeenth Meeting of the Contracting Parties to the Protocol adopted on 7 October 2022, by resolution LP.6(17), in accordance with article 22 of the Protocol, amendments to Annexes 1 and consequential amendment to Annex 2 of the Protocol to remove sewage sludge from the list of permissible wastes.

B. Entry into force

The amendments concerned entered into force on 15 January 2023, in accordance with Article 22.4 of the Protocol, which provides that "the amendments to the Annexes shall enter into force for each Contracting Party immediately on notification of its acceptance to the Organization or 100 days after the date of their adoption at a Meeting of Contracting Parties, if that is later, except for those Contracting Parties which before the end of the 100 days make a declaration that they are not able to accept the amendment at that time. As at 15 January 2023, three objections* had been received and the amendments accordingly entered into force on 15 January 2023 except for Canada, Finland and the People's Republic of China.

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* The Secretary-General received, on 2 December 2022, a declaration by Canada that it fully supports and intends to comply with the amendments, and that however, due to its domestic procedures Canada is unable to accept the amendments at that time. Canada has begun its domestic procedure and will inform the Depositary of their completion.

† The Secretary-General received, on 29 November 2023, a communication from Canada withdrawing its objection to these amendments. The amendments therefore entered into force for Canada on 29 November 2023.

The Secretary-General received, on 10 January 2023, a declaration by Finland that, due to national procedural requirements, Finland was obliged to object the amendments and it intended to approve and accept them as soon as necessary constitutional procedures have been carried out and inform the Secretary-General accordingly.

The Secretary-General received, on 13 January 2023, a declaration by the People's Republic of China that its Government is going through the domestic legal procedure for acceptance of the above amendments, and until further notification otherwise, is provisionally unable to accept the above amendments.

†† The Secretary-General received, on 17 April 2025, a communication from the People's Republic of China withdrawing its objection to these amendments. The amendments therefore entered into force for the People's Republic

of China on 17 April 2025. The above-mentioned amendments apply to the Hong Kong Special Administrative Region, and unless otherwise notified by the Government, shall not apply to the Macao Special Administrative Region.

The Secretary-General received, on 30 September 2025, a communication by Finland that it has concluded the necessary constitutional procedures and accepts the amendments from 1 October 2025, thereby withdrawing an earlier objection.

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